

THE
WORKS
OF
DANIEL WEBSTER.
VOLUME I.

EIGHTH EDITION



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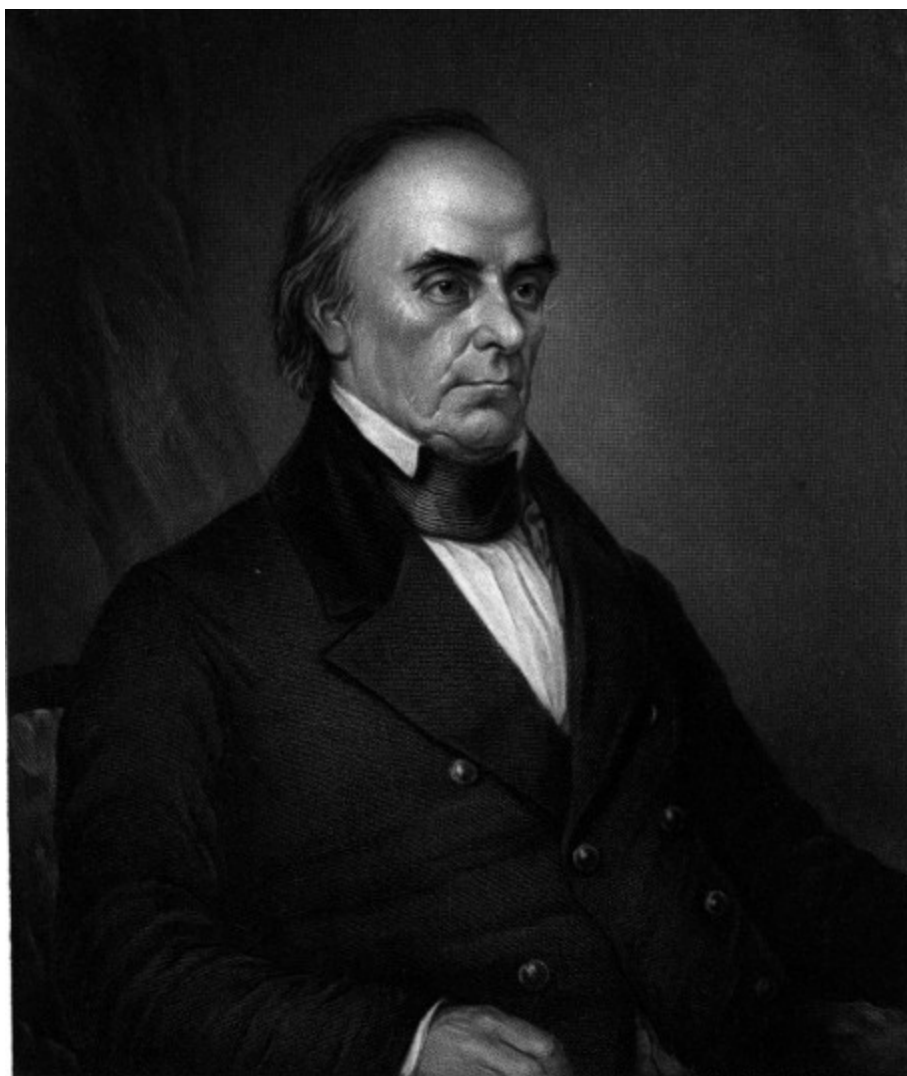
**THE
WORKS
OF
DANIEL WEBSTER.**

**VOLUME I.
EIGHTH EDITION**

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DEDICATION
OF THE FIRST VOLUME.

TO MY NIECES,
MRS. ALICE BRIDGE WHIPPLE,
AND
MRS. MARY ANN SANBORN:

Many of the Speeches contained in this volume were delivered and printed in the lifetime of your father whose fraternal affection led him to speak of them with approbation.

His death, which happened when he had only just past the middle period of life, left you without a father, and me without a brother.

I dedicate this volume to you, not only for the love I have for yourselves, but also as a tribute of affection to his memory, and from a desire that the name of my brother,

EZEKIEL WEBSTER,

may be associated with mine, so long as any thing written or spoken by me shall be regarded or read.

DANIEL WEBSTER.

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BIOGRAPHICAL MEMOIR
OF THE
PUBLIC LIFE
OF
DANIEL WEBSTER.

BY
EDWARD EVERETT.



CHAPTER I.

Former Editions of the Works of Mr. Webster, and Plan of this Edition.—Parentage and Birth.—First Settlements in the Interior of New Hampshire.—Establishment of his Father at Salisbury.—Scanty Opportunities of Early Education.—First Teachers, and recent Letter to Master Tappan.—Placed at Exeter Academy.—Anecdotes while there.—Dartmouth College.—Study of the Law at Salisbury.—Residence at Fryeburg in Maine, and Occupations there.—Continuance of the Study of the Law at Boston, in the Office of Hon. Christopher Gore.—Admission to the Bar of Suffolk, Massachusetts.—Commencement of Practice at Boscawen, New Hampshire.—Removal to Portsmouth.—Contemporaries in the Profession.—Increasing Practice.

The first collection of Mr. Webster's speeches in the Congress of the United States and on various public occasions was published in Boston, in one volume octavo, in 1830. This volume was more than once reprinted, and in 1835 a second volume was published, containing the speeches made up to that time, and not included in the first collection. Several impressions of these two volumes were called for by the public. In 1843 a third volume was prepared, containing a selection from the speeches of Mr. Webster from the year 1835 till his entrance into the cabinet of General Harrison. In the year 1848 appeared a fourth volume of diplomatic papers, containing a portion of Mr. Webster's official correspondence as Secretary of State.

The great favor with which these volumes have been received throughout the country, and the importance of the subjects discussed in the Senate of the United States after Mr. Webster's return to that body in 1845, have led his friends to think that a valuable service would be rendered to the community by bringing together his speeches of a later date than those contained in the third volume of the former collection, and on political subjects arising since that time. Few periods of our history will be entitled to be remembered by events of greater moment, such as the admission of Texas to the Union, the settlement of the Oregon controversy, the Mexican war, the acquisition of California and other Mexican provinces, and the exciting questions which have grown out of the sudden extension of the territory of the United States. Rarely have public discussions been carried on with greater earnestness, with more important consequences visibly at stake, or with greater ability. The speeches made by Mr. Webster in the Senate, and on public occasions of various kinds, during the progress of these controversies, are more than sufficient to fill two new volumes. The

opportunity of their collection has been taken by the enterprising publishers, in compliance with opinions often expressed by the most respectable individuals, and with a manifest public demand, to bring out a new edition of Mr. Webster's speeches in uniform style. Such is the object of the present publication. The first two volumes contain the speeches delivered by him on a great variety of public occasions, commencing with his discourse at Plymouth in December, 1820. Three succeeding volumes embrace the greater part of the speeches delivered in the Massachusetts Convention and in the two houses of Congress, beginning with the speech on the Bank of the United States in 1816. The sixth and last volume contains the legal arguments and addresses to the jury, the diplomatic papers, and letters addressed to various persons on important political questions.

The collection does not embrace the entire series of Mr. Webster's writings. Such a series would have required a larger number of volumes than was deemed advisable with reference to the general circulation of the work. A few juvenile performances have accordingly been omitted, as not of sufficient importance or maturity to be included in the collection. Of the earlier speeches in Congress, some were either not reported at all, or in a manner too imperfect to be preserved without doing injustice to the author. No attempt has been made to collect from the contemporaneous newspapers or Congressional registers the short conversational speeches and remarks made by Mr. Webster, as by other prominent members of Congress, in the progress of debate, and sometimes exercising greater influence on the result than the set speeches. Of the addresses to public meetings it has been found impossible to embrace more than a selection, without swelling the work to an unreasonable size. It is believed, however, that the contents of these volumes furnish a fair specimen of Mr. Webster's opinions and sentiments on all the subjects treated, and of his manner of discussing them. The responsibility of deciding what should be omitted and what included has been left by Mr. Webster to the friends having the charge of the publication, and his own opinion on details of this kind has rarely been taken.

In addition to such introductory notices as were deemed expedient relative to the occasions and subjects of the various speeches, it has been thought advisable that the collection should be accompanied with a Biographical Memoir, presenting a condensed view of Mr. Webster's public career, with a few observations by way of commentary on the principal speeches. Many

things which might otherwise fitly be said in such an essay must, it is true, be excluded by that delicacy which qualifies the eulogy to be awarded even to the most eminent living worth. Much may be safely omitted, as too well known to need repetition in this community, though otherwise pertaining to a full survey of Mr. Webster's career. In preparing the following notice, free use has been made by the writer of the biographical sketches already before the public. Justice, however, requires that a specific acknowledgment should be made to an article in the American Quarterly Review for June, 1831, written, with equal accuracy and elegance, by Mr. George Ticknor, and containing a discriminating estimate of the speeches embraced in the first collection; and also to the highly spirited and vigorous work entitled "Reminiscences of Congress," by Mr. Charles W. March. To this work the present sketch is largely indebted for the account of the parentage and early life of Mr. Webster; as well as for a very graphic description of the debate on Foot's resolution.

The family of Daniel Webster has been established in America from a very early period. It was of Scottish origin, but passed some time in England before the final emigration. Thomas Webster, the remotest ancestor who can be traced, was settled at Hampton, on the coast of New Hampshire, as early as 1636, sixteen years after the landing at Plymouth, and six years from the arrival of Governor Winthrop in Massachusetts Bay. The descent from Thomas Webster to Daniel can be traced in the church and town records of Hampton, Kingston (now East Kingston), and Salisbury. These records and the mouldering headstones of village grave-yards are the herald's office of the fathers of New England. Noah Webster, the learned author of the American Dictionary of the English Language, was of a collateral branch of the family.

Ebenezer Webster, the father of Daniel, is still recollected in Kingston and Salisbury. His personal appearance was striking. He was erect, of athletic stature, six feet high, broad and full in the chest. Long service in the wars had given him a military air and carriage. He belonged to that intrepid border race, which lined the whole frontier of the Anglo-American colonies, by turns farmers, huntsmen, and soldiers, and passing their lives in one long struggle with the hardships of an infant settlement, on the skirts of a primeval forest. Ebenezer Webster enlisted early in life as a common soldier, in one of those formidable companies of rangers, which rendered

such important services under Sir Jeffrey Amherst and Wolfe in the Seven Years' War. He followed the former distinguished leader in the invasion of Canada, attracted the attention and gained the good-will of his superior officers by his brave and faithful conduct, and rose to the rank of a captain before the end of the war.

For the first half of the last century the settlements of New Hampshire had made but little progress into the interior. Every war between France and Great Britain in Europe was the signal of an irruption of the Canadian French and their Indian allies into New England. As late as 1755 they sacked villages on the Connecticut River, and John Stark, while hunting on Baker's River, three years before, was taken a prisoner and sold as a slave into Canada. One can scarcely believe that it is not yet a hundred years since occurrences like these took place. The cession of Canada to England by the treaty of 1763 entirely changed this state of things. It opened the pathways of the forest and the gates of the Western hills. The royal governor of New Hampshire, Benning Wentworth, began to make grants of land in the central parts of the State. Colonel Stevens of Kingston, with some of his neighbors, mostly retired officers and soldiers, obtained a grant of the town of Salisbury, which was at first called Stevenstown, from the principal grantee. This town is situated exactly at the point where the Merrimack River is formed by the confluence of the Pemigewasset and Winnipiseogee. Captain Webster was one of the settlers of the newly granted township, and received an allotment in its northerly portion. More adventurous than others of the company, he cut his way deeper into the wilderness, and made the path he could not find. At this time his nearest civilized neighbors on the northwest were at Montreal.

The following allusion of Mr. Webster to his birthplace will be read with interest. It is from a speech delivered before a great public assembly at Saratoga, in the year 1840.

"It did not happen to me to be born in a log cabin; but my elder brothers and sisters were born in a log cabin, raised amid the snowdrifts of New Hampshire, at a period so early that, when the smoke first rose from its rude chimney, and curled over the frozen hills, there was no similar evidence of a white man's habitation between it and the settlements on the rivers of Canada. Its remains still exist. I make to it an annual visit. I carry my children to it to teach them the hardships endured by the generations which have gone before them. I love to dwell on the tender recollections, the kindred ties, the early affections, and the touching narratives and incidents, which mingle with all I know of this primitive family abode. I weep to think that none of those who inhabited it are now among the living; and if ever I

am ashamed of it, or if I ever fail in affectionate veneration for HIM who reared and defended it against savage violence and destruction, cherished all the domestic virtues beneath its roof, and, through the fire and blood of seven years' revolutionary war, shrunk from no danger, no toil, no sacrifice, to serve his country, and to raise his children to a condition better than his own, may my name and the name of my posterity be blotted for ever from the memory of mankind!"

Soon after his settlement in Salisbury, the first wife of Ebenezer Webster having deceased, he married Abigail Eastman, who became the mother of Ezekiel and Daniel Webster, the only sons of the second marriage. Like the mothers of so many men of eminence, she was a woman of more than ordinary intellect, and possessed a force of character which was felt throughout the humble circle in which she moved. She was proud of her sons and ambitious that they should excel. Her anticipations went beyond the narrow sphere in which their lot seemed to be cast, and the distinction attained by both, and especially by the younger, may well be traced in part to her early promptings and judicious guidance.

About the time of his second marriage, Captain Ebenezer Webster erected a frame house hard by the log cabin. He dug a well near it and planted an elm sapling. In this house Daniel Webster was born. It has long since disappeared, but the spot where it stood is well known, and is covered by a house since built. The cellar of the log cabin is still visible, though partly filled with the accumulations of seventy years. "The well still remains," says Mr. March, "with water as pure, as cool, and as limpid as when first brought to light, and will remain in all probability for ages, to refresh hereafter the votaries of genius who make their pilgrimage hither, to visit the cradle of one of her greatest sons. The elm that shaded the boy still flourishes in vigorous leaf, and may have an existence beyond its perishable nature. Like

'The witch-elm that guards St. Fillan's spring,'

it may live in story long after leaf, and branch, and root have disappeared for ever."

The interval between the peace of 1763 and the breaking out of the war of the Revolution was one of excitement and anxiety throughout the Colonies. The great political questions of the day were not only discussed in the towns and cities, but in the villages and hamlets. Captain Webster took a deep interest in those discussions. Like so many of the officers and soldiers

of the former war, he obeyed the first call to arms in the new struggle. He commanded a company, chiefly composed of his own townspeople, friends, and kindred, who followed him through the greater portion of the war. He was at the battle of White Plains, and was at West Point when the treason of Arnold was discovered. He acted as a Major under Stark at Bennington, and contributed his share to the success of that eventful day.

In the last year of the Revolutionary war, on the 18th of January, 1782, Daniel Webster was born, in the home which his father had established on the outskirts of civilization. If the character and situation of the place, and the circumstances under which he passed the first years of his life, might seem adverse to the early cultivation of his extraordinary talent, it still cannot be doubted that they possessed influences favorable to elevation and strength of character. The hardships of an infant settlement and border life, the traditions of a long series of Indian wars, and of two mighty national contests, in which an honored parent had borne his part, the anecdotes of Fort William Henry, of Quebec, of Bennington, of West Point, of Wolfe and Stark and Washington, the great Iliad and Odyssey of American Independence,—this was the fireside entertainment of the long winter evenings of the secluded village home. Abroad, the uninviting landscape, the harsh and craggy outline of the hills broken and relieved only by the funereal hemlock and the “cloud seeking” pine, the lowlands traversed in every direction by unbridged streams, the tall, charred trunks in the cornfields, that told how stern had been the struggle with the boundless woods, and, at the close of the year, the dismal scene which presents itself in high latitudes in a thinly settled region, when

“the snows descend; and, foul and fierce,
All winter drives along the darkened air”;—

these are circumstances to leave an abiding impression on the mind of a thoughtful child, and induce an early maturity of character.

Mr. March has described an incident of Mr. Webster’s earliest youth in a manner so graphical, that we are tempted to repeat it in his own words:—

“In Mr. Webster’s earliest youth an occurrence of such a nature took place, which affected him deeply at the time, and has dwelt in his memory ever since. There was a sudden and extraordinary rise in the Merrimack River, in a spring thaw. A deluge of rain for two whole days poured down upon the houses. A mass of mingled water and snow rushed madly from

the hills, inundating the fields far and wide. The highways were broken up, and rendered undistinguishable. There was no way for neighbors to interchange visits of condolence or necessity, save by boats, which came up to the very door-steps of the houses.

“Many things of value were swept away, even things of bulk. A large barn, full fifty feet by twenty, crowded with hay and grain, sheep, chickens, and turkeys, sailed majestically down the river, before the eyes of the astonished inhabitants; who, no little frightened, got ready to fly to the mountains, or construct another ark. xx

“The roar of waters, as they rushed over precipices, casting the foam and spray far above, the crashing of the forest-trees as the storm broke through them, the immense sea everywhere in range of the eye, the sublimity, even danger, of the scene, made an indelible impression upon the mind of the youthful observer.

“Occurrences and scenes like these excite the imaginative faculty, furnish material for proper thought, call into existence new emotions, give decision to character, and a purpose to action.”—pp. 7, 8.

It may well be supposed that Mr. Webster's early opportunities for education were very scanty. It is indeed correctly remarked by Mr. Ticknor, in reference to this point, that “in New England, ever since the first free school was established amidst the woods that covered the peninsula of Boston in 1636, the schoolmaster has been found on the border line between savage and civilized life, often indeed with an axe to open his own path, but always looked up to with respect, and always carrying with him a valuable and preponderating influence.” Still, however, compared with any thing that would be called a good school in this region and at the present time, the schools which existed on the frontier sixty years ago were sadly defective. Many of our district schools even now are below their reputation. The Swedish Chancellor's exclamation of wonder at the little wisdom with which the world is governed, might well be repeated at the little learning and skill with which the scholastic world in too many parts of our country is still taught. In Mr. Webster's boyhood it was much worse. Something that was called a school was kept for two or three months in the winter, frequently by an itinerant, too often a pretender, claiming only to teach a little reading, writing, and ciphering, and wholly incompetent to give any valuable assistance to a clever youth in learning either.

Such as the village school was, Mr. Webster enjoyed its advantages, if they could be called by that name. It was, however, of a migratory character. When it was near his father's residence it was easy to attend; but it was sometimes in a distant part of the town, and sometimes in another town. While he was quite young, he was daily sent two miles and a half or three miles to school in mid-winter and on foot. If the school-house lay in the xx

same direction with the miller or the blacksmith, an occasional ride might be hoped for. If the school was removed to a still greater distance, he was boarded at a neighbor's. Poor as these opportunities of education were, they were bestowed on Mr. Webster more liberally than on his brothers. He showed a greater eagerness for learning; and he was thought of too frail a constitution for any robust pursuit. An older half-brother good-humoredly said, that "Dan was sent to school that he might get to know as much as the other boys." It is probable that the best part of his education was derived from the judicious and experienced father, and the strong-minded, affectionate, and ambitious mother.

Mr. Webster's first master was Thomas Chase. He could read tolerably well, and wrote a fair hand; but spelling was not his *forte*. His second master was James Tappan, now living at an advanced age in Gloucester, Massachusetts. His qualifications as a teacher far exceeded those of Master Chase. The worthy veteran, now dignified with the title of Colonel, feels a pride, it may well be supposed, in the fame of his quondam pupil. He lately addressed a letter to him, recounting some of the incidents of his own life since he taught school at Salisbury. This unexpected communication from his aged teacher drew from Mr. Webster the following answer, in which a handsome gratuity was inclosed, more, probably, than the old gentleman ever received for a winter's teaching at "New Salisbury."^[1]

"Washington, February 26, 1851.

"MASTER TAPPAN,—I thank you for your letter, and am rejoiced to know that you are among the living. I remember you perfectly well as a teacher of my infant years. I suppose my mother must have taught me to read very early, as I have never been able to recollect the time when I could not read the Bible. I think Master Chase was my earliest schoolmaster, probably when I was three or four years old. Then came Master Tappan. You boarded at our house, and sometimes, I think, in the family of Mr. Benjamin Sanborn, our neighbor, the lame man. Most of those whom you knew in 'New Salisbury' have gone to their graves. Mr. John Sanborn, the son of Benjamin, is yet living, and is about your age.^{xxii} Mr. John Colby, who married my oldest sister, Susannah, is also living. On the 'North Road' is Mr. Benjamin Hunton, and on the 'South Road' is Mr. Benjamin Pettengil. I think of none else among the living whom you would probably remember.

"You have indeed lived a checkered life. I hope you have been able to bear prosperity with meekness, and adversity with patience. These things are all ordered for us far better than we could order them for ourselves. We may pray for our daily bread; we may pray for the forgiveness of sins; we may pray to be kept from temptation, and that the kingdom of God may come, in us, and in all men, and his will everywhere be done. Beyond this, we hardly know for what good to supplicate the Divine Mercy. Our Heavenly Father knoweth what we have need of better than we know ourselves, and we are sure that his eye and his loving-kindness are upon us and around us every moment.

“I thank you again my good old schoolmaster, for your kind letter, which has awakened many sleeping recollections; and, with all good wishes, I remain your friend and pupil,

“DANIEL WEBSTER.

To “MR. JAMES TAPPAN.”

He derived, also, no small benefit from the little social library, which, chiefly by the exertions of Mr. Thompson (the intelligent lawyer of the place), the clergyman, and Mr. Webster’s father, had been founded in Salisbury. The attention of the people of New Hampshire had been called to this mode of promoting general and popular education by Dr. Belknap. In the patriotic address to the people of New Hampshire, at the close of his excellent History, he says:—

“This (the establishment of social libraries) is the easiest, the cheapest, and the most effectual mode of diffusing knowledge among the people. For the sum of six or eight dollars at once, and a small annual payment besides, a man may be supplied with the means of literary improvement during his life, and his children may inherit the blessing.”^[2]

From the village library at Salisbury, founded on recommendations like these, Mr. Webster was able to obtain a moderate supply of good reading. It is quite worth noticing, that his attention, like that of Franklin, was in early boyhood attracted to the Spectator. Franklin, as is well known, studiously formed his style on that of Addison;—and a considerable resemblance may be traced between them. There is no such resemblance between Mr. Webster’s style and that of Addison, unless it be the negative merit of freedom from balanced sentences, hard words, and inversions. It may, no doubt, have been partly owing to his early familiarity with the Spectator, that he escaped in youth from the turgidity and pomp of the Johnsonian school, and grew up to the mastery of that direct and forcible, but not harsh and affected sententiousness, that masculine simplicity, with which his speeches and writings are so strongly marked.

The year before Mr. Webster was born was rendered memorable in New Hampshire by the foundation of the Academy at Exeter, through the munificence of the Honorable John Phillips. His original endowment is estimated by Dr. Belknap at nearly ten thousand pounds, which, in the comparative scarcity of money in 1781, cannot be considered as less than three times that amount at the present day. Few events are more likely to be regarded as eras in the history of that State. In the year 1788, Dr. Benjamin Abbot, soon afterwards its principal, became connected with the Academy

as an instructor, and from that time it assumed the rank which it still maintains among the schools of the country. To this Academy Mr. Webster was taken by his father in May, 1796. He enjoyed the advantage of only a few months' instruction in this excellent school; but, short as the period was, his mind appears to have received an impulse of a most genial and quickening character. Nothing could be more graceful or honorable to both parties than the tribute paid by Mr. Webster to his ancient instructor, at the festival at Exeter, in 1838, in honor of Dr. Abbot's jubilee. While at the Academy, his studies were aided and his efforts encouraged by a pupil younger than himself, but who, having enjoyed better advantages of education in boyhood, was now in the senior class at Exeter, the early celebrated and lamented Joseph Stevens Buckminster. The following anecdote from Mr. March's work will not be thought out of place in this connection:—

“It may appear somewhat singular that the greatest orator of modern times should have evinced in his boyhood the strongest antipathy to public declamation. This fact, however, is established by his own words, which have recently appeared in print. ‘I believe,’ says Mr. Webster, ‘I made tolerable progress in most branches which I attended to while in this school; but there was one thing I could not do. I could not make a declamation. I could not speak before the school. The kind and excellent Buckminster sought especially to persuade^{xxiv} me to perform the exercise of declamation, like other boys, but I could not do it. Many a piece did I commit to memory, and recite and rehearse in my own room, over and over again; yet when the day came, when the school collected to hear declamations, when my name was called, and I saw all eyes turned to my seat, I could not raise myself from it. Sometimes the instructors frowned, sometimes they smiled. Mr. Buckminster always pressed and entreated, most winningly, that I would venture. But I never could command sufficient resolution.’ Such diffidence of its own powers may be natural to genius, nervously fearful of being unable to reach that ideal which it proposes as the only full consummation of its wishes. It is fortunate, however, for the age, fortunate for all ages, that Mr. Webster by determined will and frequent trial overcame this moral incapacity, as his great prototype, the Grecian orator, subdued his physical defect.”—pp. 12, 13.

The effect produced, even at that early period of Mr. Webster's life, on the mind of a close observer of his mental powers, is strikingly illustrated by the following anecdote. Mr. Nicholas Emery, afterwards a distinguished lawyer and judge, and now living in Portland, was temporarily employed, at that time, as an usher in the Academy. On entering the Academy, Mr. Webster was placed in the lowest class, which consisted of half a dozen boys, of no remarkable brightness of intellect. Mr. Emery was the instructor of this class, among others. At the end of a month, after morning recitations, “Webster,” said Mr. Emery, “you will pass into the other room and join a

higher class”; and added, “Boys, you will take your final leave of Webster, you will never see him again.”

After a few months well spent at Exeter, Mr. Webster returned home, and in February, 1797, was placed by his father under the Rev. Samuel Wood, the minister of the neighboring town of Boscawen. He lived in Mr. Wood’s family, and for board and instruction the entire charge was one dollar per week.

On their way to Mr. Wood’s, Mr. Webster’s father first opened to his son, now fifteen years old, the design of sending him to college, the thought of which had never before entered his mind. The advantages of a college education were a privilege to which he had never aspired in his most ambitious dreams. “I remember,” says Mr. Webster, in an autobiographical memorandum of his boyhood, “the very hill which we were ascending, through deep snows, in a New England sleigh, when my father made known this purpose to me. I could not speak. How could he, I thought, with so large a family and in such narrow circumstances, think of incurring so great an expense for me. A warm glow ran all over me, and I laid my head on my father’s shoulder and wept.”

In truth, a college education was a far different affair fifty years ago from what it has since become, by the multiplication of collegiate institutions, and the establishment of public funds in aid of those who need assistance. It constituted a person at once a member of an intellectual aristocracy. In many cases it really conferred qualifications, and in all was supposed to do so, without which professional and public life could not be entered upon with any hope of success. In New England, at that time, it was not a common occurrence that any one attained a respectable position in either of the professions without this advantage. In selecting the member of the family who should enjoy this privilege, the choice not unfrequently fell upon the son whose slender frame and early indications of disease unfitted him for the laborious life of our New England yeomanry.

From February till August, 1797, Mr. Webster remained under the instruction of Mr. Wood, at Boscawen, and completed his preparation for college. It is hardly necessary to say, that the preparation was imperfect. There is probably no period in the history of the country at which the standard of classical literature stood lower than it did at the close of the last

century. The knowledge of Greek and Latin brought by our forefathers from England had almost run out in the lapse of nearly two centuries, and the signal revival which has taken place within the last thirty years had not yet begun. Still, however, when we hear of a youth of fifteen preparing himself for college by a year's study of Greek and Latin, we must recollect that the attainments which may be made in that time by a young man of distinguished talent, at the period of life when the faculties develop themselves with the greatest energy, studying night and day, summer and winter, under the master influence of hope, ambition, and necessity, are not to be measured by the tardy progress of the thoughtless or languid children of prosperity, sent to school from the time they are able to go alone, and carried along by routine and discipline from year to year, in the majority of cases without strong personal motives to diligence. Besides this, it is to be considered that the studies which occupy this usually prolonged novitiate are those which are required for the acquisition of grammatical and metrical niceties, the elegancies and the luxuries of scholarship. Short as was his period of preparation, it enabled Mr. Webster to lay the foundation of a knowledge of the classical writers, especially the Latin, which was greatly increased in college, and which has been kept up by constant recurrence to the great models of antiquity, during the busiest periods of active life. The happiness of Mr. Webster's occasional citations from the Latin classics is a striking feature of his oratory.

Mr. Webster entered college in 1797, and passed the four academic years in assiduous study. He was not only distinguished for his attention to the prescribed studies, but devoted himself to general reading, especially to English history and literature. He took part in the publication of a little weekly newspaper, furnishing selections from books and magazines, with an occasional article from his own pen. He delivered addresses, also, before the college societies, some of which were published. The winter vacations brought no relaxation. Like those of so many of the meritorious students at our places of education, they were employed in teaching school, for the purpose of eking out his own frugal means and aiding his brother to prepare himself for college. The attachment between the two brothers was of the most affectionate kind, and it was by the persuasion of Daniel that the father had been induced to extend to Ezekiel also the benefits of a college education.

The genial and companionable spirit of Mr. Webster is still remembered by his classmates, and by the close of his first college year he had given proof of powers and aspirations which placed him far above rivalry among his associates. "It is known," says Mr. Ticknor, "in many ways, that, by those who were acquainted with him at this period of life, he was already regarded as a marked man, and that to the more sagacious of them the honors of his subsequent career have not been unexpected."

Mr. Webster completed his college course in August, 1801, and immediately entered the office of Mr. Thompson, the next-door neighbor of his father, as a student of law. Mr. Thompson was a gentleman of education and intelligence, and, at a later period, a respectable member, successively, of the House of Representatives and Senate of the United States. He maintained a high character till his death. Mr. Webster remained in his office as a student till, in the words of Mr. March, "he felt it necessary to go somewhere and do something to earn a little money." In this emergency, application was made to him to take charge of an academy at Fryeburg in Maine, upon a salary of about one dollar *per diem*, being what is now paid for the coarsest kind of unskilled manual labor. As he was able, besides, to earn enough to pay for his board and to defray his other expenses by acting as assistant to the register of deeds for the county, his salary was all saved,—a fund for his own professional education and to help his brother through college.

Mr. Webster's son and one of his friends have lately visited Fryeburg and examined these records of deeds. They are still preserved in two huge folio volumes, in Mr. Webster's handwriting, exciting wonder how so much work could be done in the evening, after days of close confinement to the business of the school. They looked also at the records of the trustees of the academy and found in them a most respectful and affectionate vote of thanks and good-will to Mr. Webster when he took leave of the employment.^[3]

These humble details need no apology. They relate to trials, hardships, and efforts which constitute no small part of the discipline by which a great character is formed. During his residence at Fryeburg, Mr. Webster borrowed (he was too poor to buy) Blackstone's Commentaries, and read them for the first time. "Among other mental exercises," says Mr. March, "he committed to memory Mr. Ames's celebrated speech on the British

treaty.” In after life he has been heard to say, that few things moved him more than the perusal and reperusal of this celebrated speech.

In September, 1802, Mr. Webster returned to Salisbury, and resumed his studies under Mr. Thompson, in whose office he remained for eighteen months. Mr. Thompson, though, as we have said, a person of excellent character and a good lawyer, yet seems not to have kept pace in his profession with the progress of improvement. Although Blackstone’s Commentaries had been known in this country for a full generation, Mr. Thompson still directed the reading of his pupils on the principle of the hardest book first. Coke’s Littleton was still the work with which his students were broken into the study of the profession. Mr. Webster has condemned this practice. “A boy of twenty,” says he, “with no previous knowledge of such subjects, cannot understand Coke. It is folly to set him upon such an author. There are propositions in Coke so abstract, and distinctions so nice, and doctrines embracing so many distinctions and qualifications, that it requires an effort not only of a mature mind, but of a mind both strong and mature, to understand him. Why disgust and discourage a young man by telling him he must break into his profession through such a wall as this?” Acting upon these views, even in his youth, Mr. Webster gave his attention to more intelligible authors, and to titles of law of greater importance in this country than the curious learning of tenures, many of which are antiquated, even in England. He also gave a good deal of time to general reading, and especially the study of the Latin classics, English history, and the volumes of Shakespeare. In order to obtain a wider compass of knowledge, and to learn something of the language not to be gained from the classics, he read through attentively Puffendorff’s Latin History of England.

In July, 1804, he took up his residence in Boston. Before entering upon the practice of his profession, he enjoyed the advantage of pursuing his legal studies for six or eight months in the office of the Hon. Christopher Gore. This was a fortunate event for Mr. Webster. Mr. Gore, afterwards Governor of Massachusetts, was a lawyer of eminence, a statesman and a civilian, a gentleman of the old school of manners, and a rare example of distinguished intellectual qualities, united with practical good sense and judgment. He had passed several years in England as a commissioner, under Jay’s treaty, for liquidating the claims of citizens of the United States for

seizures by British cruisers in the early wars of the French Revolution. His library, amply furnished with works of professional and general literature, his large experience of men and things at home and abroad, and his uncommon amenity of temper, combined to make the period passed by Mr. Webster in his office one of the pleasantest in his life. These advantages, it hardly need be said, were not thrown away. He diligently attended the sessions of the courts and reported their decisions. He read with care the leading elementary works of the common and municipal law, with the best authors on the law of nations, some of them for a second and third time; diversifying these professional studies with a great amount and variety of general reading. His chief study, however, was the common law, and more especially that part of it which relates to the now unfashionable science of special pleading. He regarded this, not only as a most refined and ingenious, but a highly instructive and useful branch of the law. Besides mastering all that could be derived from more obvious sources, he waded through Saunders's Reports in the original edition, and abstracted and translated into English from the Latin and Norman French all the pleadings contained in the two folio volumes. This manuscript still remains.

Just as he was about to be admitted to practise in the Suffolk Court of Common Pleas in Massachusetts, an incident occurred which came near affecting his career for life. The place of clerk in the Court of Common Pleas for the county of Hillsborough, in New Hampshire, became vacant. Of this court Mr. Webster's father had been made one of the judges, in conformity with a very common practice at that time, of placing on the side bench of the lower courts men of intelligence and respectability, though not lawyers. From regard to Judge Webster, the vacant clerkship was offered by his colleagues to his son. It was what the father had for some time looked forward to and desired. The fees of the office were about fifteen hundred dollars *per annum*, which in those days and in that region was not so much a competence as a fortune. Mr. Webster himself was disposed to accept the office. It promised an immediate provision in lieu of a distant and doubtful prospect. It enabled him at once to bring comfort into his father's family, while to refuse it was to condemn himself and them to an uncertain and probably harassing future. He was willing to sacrifice his hopes of professional eminence to the welfare of those whom he held most dear. But the earnest dissuasions of Mr. Gore, who saw in this step the certain postponement, perhaps the final defeat, of all hopes of professional

advancement, prevented his accepting the office. His aged father was, in a personal interview with his son, if not reconciled to the refusal, at least induced to bury his regrets in his own bosom. The subject was never mentioned by him again. In the spring of the same year (1805), Mr. Webster was admitted to the practice of the law in the Court of Common Pleas for Suffolk county, Boston. According to the custom of that day, Mr. Gore accompanied the motion for his admission with a brief speech in recommendation of the candidate. The remarks of Mr. Gore on this occasion are well remembered by those present. He dwelt with emphasis on the remarkable attainments and uncommon promise of his pupil, and closed with a prediction of his future eminence.

Immediately on his admission to the bar, Mr. Webster went to Amherst, in New Hampshire, where his father's court was in session; from that place he went home with his father. He had intended to establish himself at Portsmouth, which, as the largest town and the seat of the foreign commerce of the State, opened the widest field for practice. But filial duty kept him nearer home. His father was now infirm from the advance of years, and had no other son at home. Under these circumstances Mr. Webster opened an office at Boscawen, not far from his father's residence, and commenced the practice of the law in this retired spot. Judge Webster lived but a year after his son's entrance upon the practice of his profession; long enough, however, to hear his first argument in court, and to be gratified with the confident predictions of his future success.

In May, 1807, Mr. Webster was admitted as an attorney and counsellor of the Superior Court in New Hampshire, and in September of that year, relinquishing his office in Boscawen to his brother Ezekiel, he removed to Portsmouth, in conformity with his original intention. Here he remained in the practice of his profession for nine successive years. They were years of assiduous labor, and of unremitted devotion to the study and practice of the law. He was associated with several persons of great eminence, citizens of New Hampshire or of Massachusetts occasionally practising at the Portsmouth bar. Among the latter were Samuel Dexter and Joseph Story; of the residents of New Hampshire, Jeremiah Mason was the most distinguished. Often opposed to each other as lawyers, a strong personal friendship grew up between them, which ended only with the death of Mr. Mason. Mr. Webster's eulogy on Mr. Mason will be found in one of the

volumes of this collection, and will descend to posterity an enduring monument of both. Had a more active temperament led Mr. Mason to embark earlier and continue longer in public life, he would have achieved a distinction shared by few of his contemporaries. Mr. Webster, in the lapse of time, was called to perform the same melancholy office for Judge Story.

During the greater part of Mr. Webster's practice of the law in New Hampshire, Jeremiah Smith was Chief Justice of the State, a learned and excellent judge, whose biography has been written by the Rev. John H. Morison, and will well repay perusal. Judge Smith was an early and warm friend of Judge Webster, and this friendship descended to the son, and glowed in his breast with fervor till he went to his grave.

Although dividing with Mr. Mason the best of the business of Portsmouth, and indeed of all the eastern portion of the State, Mr. Webster's practice was mostly on the circuit. He followed the Superior Court through the principal counties of the State, and was retained in nearly every important cause. It is mentioned by Mr. March, as a somewhat singular fact in his professional life, that, with the exception of the occasions on which he has been associated with the Attorney-General of the United States for the time being, he has hardly appeared ten times as junior counsel. Within the sphere in which he was placed, he may be said to have risen at once to the head of his profession; not, however, like Erskine and some other celebrated British lawyers, by one and the same bound, at once to fame and fortune. The American bar holds forth no such golden prizes, certainly not in the smaller States. Mr. Webster's practice in New Hampshire, though probably as good as that of any of his contemporaries, was never lucrative. Clients were not very rich, nor the concerns litigated such as would carry heavy fees. Although exclusively devoted to his profession, it afforded him no more than a bare livelihood.

But the time for which he practised at the New Hampshire bar was probably not lost with reference to his future professional and political eminence. His own standard of legal attainment was high. He was associated with professional brethren fully competent to put his powers to their best proof, and to prevent him from settling down in early life into an easy routine of ordinary professional practice. It was no disadvantage, under these circumstances, (except in reference to immediate pecuniary benefit,) to enjoy some portion of that leisure for general reading, which is almost

wholly denied to the lawyer of commanding talents, who steps immediately into full practice in a large city.

FOOTNOTES

[1]

Fifty dollars. The knowledge of this fact is derived from the "Gloucester News," to which it was no doubt communicated by Master Tappan.

[2]

Belknap's History of New Hampshire, Vol. III. p. 328.

[3]

The old school-house was burned down many years ago. The spot on which it stood belongs to Mr. Robert J. Bradley, who has inherited from his father a devoted friendship for Mr. Webster, and who would never suffer any other building to be erected on the spot, and says that none shall be during his life.

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CHAPTER II.

Entrance on Public Life.—State of Parties in 1812.—Election to Congress.—Extra Session of 1813.—Foreign Relations of the Country.—Resolutions relative to the Berlin and Milan Decrees.—Naval Defence.—Reelected to Congress in 1814.—Peace with England.—Projects for a National Bank.—Mr. Webster's Course on that Question.—Battle of New Orleans.—New Questions arising on the Return of Peace.—Course of Prominent Men of Different Parties.—Mr. Webster's Opinions on the Constitutionality of the Tariff Policy.—The Resolution to restore Specie Payments moved by Mr. Webster.—Removal to Boston.

Mr. Webster had hitherto taken less interest in politics than has been usual with the young men of talent, at least with the young lawyers, of America. In fact, at the time to which the preceding narrative refers, the politics of the country were in such a state, that there was scarce any course which could be pursued with entire satisfaction by a patriotic young man sagacious enough to penetrate behind mere party names, and to view public questions in their true light. Party spirit ran high; errors had been committed by ardent men on both sides; and extreme opinions had been advanced on most questions, which no wise and well-informed person at the present day would probably be willing to espouse. The United States, although not actually drawn to any great depth into the vortex of the French Revolution,

were powerfully affected by it. The deadly struggle of the two great European belligerents, in which the neutral rights of this country were grossly violated by both, gave a complexion to our domestic politics. A change of administration, mainly resulting from difference of opinion in respect to our foreign relations, had taken place in 1801. If we may consider President Jefferson's inaugural address as the indication of the principles on which he intended to conduct his administration, it was his purpose to take a new departure, and to disregard the former party divisions. "We have," said he, in that eloquent state paper, "called by different names brethren of the same principle. We are all republicans, we are all federalists."

At the time these significant expressions were uttered, Mr. Webster, at the age of nineteen, was just leaving college and preparing to embark on the voyage of life. A sentiment so liberal was not only in accordance with the generous temper of youth, but highly congenial with the spirit of enlarged patriotism which has ever guided his public course. There is certainly no individual who has filled a prominent place in our political history who has shown himself more devoted to principle and less to party. While no man has clung with greater tenacity to the friendships which spring from agreement in political opinion (the *idem sentire de republica*), no man has been less disposed to find in these associations an instrument of monopoly or exclusion in favor of individuals, interests, or sections of the country.

But however catholic may have been the intentions and wishes of Mr. Jefferson, events both at home and abroad were too strong for him, and defeated that policy of blending the great parties into one, which has always been a favorite, perhaps we must add, a visionary project, with statesmen of elevated and generous characters. The aggressions of the belligerents on our neutral commerce still continued, and, by the joint effect of the Berlin and Milan Decrees and the Orders in Council, it was all but swept from the ocean. In this state of things two courses were open to the United States, as a growing neutral power: one, that of prompt resistance to the aggressive policy of the belligerents; the other, that which was called "the restrictive system," which consisted in an embargo on our own vessels, with a view to withdraw them from the grasp of foreign cruisers, and in laws inhibiting commercial intercourse with England and France. There was a division of opinion in the cabinet of Mr. Jefferson and in the country at large. The latter policy was finally adopted. It fell in with the general views of Mr. Jefferson

against committing the country to the risks of foreign war. His administration was also strongly pledged to retrenchment and economy, in the pursuit of which a portion of our little navy had been brought to the hammer, and a species of shore defence substituted, which can now be thought of only with mortification and astonishment.

Although the discipline of party was sufficiently strong to cause this system of measures to be adopted and pursued for years, it was never cordially approved by the people of the United States of any party. Leading Republicans both at the South and at the North denounced it. With Mr. Jefferson's retirement from office it fell rapidly into disrepute. It continued, however, to form the basis of our party divisions till the war of 1812. In these divisions, as has been intimated, both parties were in a false position; the one supporting and forcing upon the country a system of measures not cordially approved, even by themselves; the other, a powerless minority, zealously opposing those measures, but liable for that reason to be thought backward in asserting the neutral rights of the country. A few men of well-balanced minds, true patriotism, and sound statesmanship, in all sections of the country, were able to unite fidelity to their party associations with a comprehensive view to the good of the country. Among these, mature beyond his years, was Mr. Webster. As early as 1806 he had, in a public oration, presented an impartial view of the foreign relations of the country in reference to both belligerents, of the importance of our commercial interests and the duty of protecting them. "Nothing is plainer," said he, "than this: if we will have commerce, we must protect it. This country is commercial as well as agricultural. Indissoluble bonds connect him who ploughs the land with him who ploughs the sea. Nature has placed us in a situation favorable to commercial pursuits, and no government can alter the destination. Habits confirmed by two centuries are not to be changed. An immense portion of our property is on the waves. Sixty or eighty thousand of our most useful citizens are there, and are entitled to such protection from the government as their case requires."

At length the foreign belligerents themselves perceived the folly and injustice of their measures. In the strife which should inflict the greatest injury on the other, they had paralyzed the commerce of the world and embittered the minds of all the neutral powers. The Berlin and Milan Decrees were revoked, but in a manner so unsatisfactory as in a great

degree to impair the pacific tendency of the measure. The Orders in Council were also rescinded in the summer of 1812. War, however, justly provoked by each and both of the parties, had meantime been declared by Congress against England, and active hostilities had been commenced on the frontier. At the elections next ensuing, Mr. Webster was brought forward as a candidate for Congress of the Federal party of that day, and, having been chosen in the month of November, 1812, he took his seat at the first session of the Thirteenth Congress, which was an extra session called in May, 1813. Although his course of life hitherto had been in what may be called a provincial sphere, and he had never been a member even of the legislature of his native State, a presentiment of his ability seems to have gone before him to Washington. He was, in the organization of the House, placed by Mr. Clay, its Speaker, upon the Committee of Foreign Affairs, a select committee at that time, and of necessity the leading committee in a state of war.

There were many men of uncommon ability in the Thirteenth Congress. Rarely has so much talent been found at any one time in the House of Representatives. It contained Clay, Calhoun, Lowndes, Pickering, Gaston, Forsyth, in the front rank; Macon, Benson, J. W. Taylor, Oakley, Grundy, Grosvenor, W. R. King, Kent of Maryland, C. J. Ingersoll of Pennsylvania, Pitkin of Connecticut, and others of scarcely inferior note. Although among the youngest and least experienced members of the body, Mr. Webster rose, from the first, to a position of undisputed equality with the most distinguished. The times were critical. The immediate business to be attended to was the financial and military conduct of the war, a subject of difficulty and importance. The position of Mr. Webster was not such as to require or permit him to take a lead; but it was his steady aim, without the sacrifice of his principles, to pursue such a course as would tend most effectually to extricate the country from the embarrassments of her present position, and to lead to peace upon honorable terms.

As the repeal of the Orders in Council was nearly simultaneous with the declaration of war, the delay of a few weeks might have led to an amicable adjustment. Whatever regret on the score of humanity this circumstance may now inspire, the war must be looked upon, in reviewing the past, as a great chapter in the progress of the country, which could not be passed over. When we reflect on the influence of the conflict, in its general results, upon

the national character; its importance as a demonstration to the belligerent powers of the world that the rights of neutrals must be respected; and more especially, when we consider the position among the nations of the earth which the United States have been enabled to take, in consequence of the capacity for naval achievement which the war displayed, we shall readily acknowledge it to be a part of that great training, by which the country was prepared to take the station which she now occupies.

Mr. Webster was not a member of Congress when war was declared, nor in any other public station. He was too deeply read in the law of nations, and regarded that august code with too much respect, not to contemplate with indignation its infraction by both the belligerents. With respect to the Orders in Council, the highest judicial magistrate in England (Lord Chief Justice Campbell) has lately admitted that they were contrary to the law of nations.^[4] As little doubt can exist that the French decrees were equally at variance with the public law. But however strong his convictions of this truth, Mr. Webster's sagacity and practical sense pointed out the inadequacy, and what may be called the political irrelevancy, of the restrictive system, as a measure of defence or retaliation. He could not but feel that it was a policy which tended at once to cripple the national resources, and abase the public sentiment, with an effect upon the foreign powers doubtful and at best indirect. In the state of the military resources of the country at that time, he discerned, in common with many independent men of all parties, that less was to be hoped from the attempted conquest of foreign territory, than from a gallant assault upon the fancied supremacy of the enemy at sea. It is unnecessary to state, that the whole course of the war confirmed the justice of these views. They furnish the key to Mr. Webster's course in the Thirteenth Congress.

Early in the session, he moved a series of resolutions of inquiry, relative to the repeal of the Berlin and Milan Decrees. The object of these resolutions was to elicit a communication on this subject from the executive, which would unfold the proximate causes of the war, as far as they were to be sought in those famous Decrees, and in the Orders in Council. On the 10th of June, 1813, Mr. Webster delivered his maiden speech on these resolutions. No full report of this speech has been preserved. It is known only from extremely imperfect sketches, contained in the contemporaneous newspaper accounts of the proceedings of Congress, from the recollection

of those who heard it, and from general tradition. It was a calm and statesmanlike exposition of the objects of the resolutions; and was listened to with profound attention by the House. It was marked by all the characteristics of Mr. Webster's maturest parliamentary efforts,—moderation of tone, precision of statement, force of reasoning, absence of ambitious rhetoric and high-flown language, occasional bursts of true eloquence, and, pervading the whole, a genuine and fervid patriotism. We have reason to believe that its effect upon the House is accurately described in the following extract from Mr. March's work.

"The speech took the House by surprise, not so much from its eloquence as from the vast amount of historical knowledge and illustrative ability displayed in it. How a person, untrained to forensic contests and unused to public affairs, could exhibit so much parliamentary tact, such nice appreciation of the difficulties of a difficult question, and such quiet facility in surmounting them, puzzled the mind. The age and inexperience of the speaker had prepared the House for no such display, and astonishment for a time subdued the expression of its admiration.

"'No member before,' says a person then in the House, 'ever riveted the attention of the House so closely, in his first speech. Members left their seats, where they could not see the speaker face to face, and sat down, or stood on the floor, fronting him. All listened attentively and silently, during the whole speech; and when it was over, many went up and warmly congratulated the orator; among whom were some, not the most niggard of their compliments, who most dissented from the views he had expressed.'

"Chief Justice Marshall, writing to a friend some time after this speech, says: 'At the time when this speech was delivered, I did not know Mr. Webster, but I was so much struck with it, that I did not hesitate then to state, that Mr. Webster was a very able man, and would become one of the very first statesmen in America, and perhaps the very first.'"—pp. 35, 36.^[5]

The resolutions moved by Mr. Webster prevailed by a large majority, and drew forth from Mr. Monroe, then Secretary of State, an elaborate and instructive report upon the subject to which they referred.

We have already observed, that, as early as 1806, Mr. Webster had expressed himself in favor of the protection of our commerce against the aggressions of both the belligerents. Some years later, before the war was declared, but when it was visibly impending, he had put forth some vigorous articles to the same effect. In an oration delivered in 1812, he had said: "A navy sufficient for the defence of our coasts and harbors, for the convoy of important branches of our trade, and sufficient also to give our enemies to understand, when they injure us, that they too are vulnerable, and that we have the power of retaliation as well as of defence, seems to be the plain, necessary, indispensable policy of the nation. It is the dictate of

nature and common sense, that means of defence shall have relation to the danger.” In accordance with these views, first announced by Mr. Webster a considerable time before Hull, Decatur, and Bainbridge had broken the spell of British naval supremacy, he used the following language in his speech on encouraging enlistments in 1814:—

“The humble aid which it would be in my power to render to measures of government shall be given cheerfully, if government will pursue measures which I can conscientiously support. If even now, failing in an honest and sincere attempt to procure an honorable peace, it will return to measures of defence and protection, such as reason and common sense and the public opinion all call for, my vote shall not be withheld from the means. Give up your futile projects of invasion. Extinguish the fires which blaze on your inland frontiers. Establish perfect safety and defence there by adequate force. Let every man that sleeps on your soil sleep in security. Stop the blood that flows from the veins of unarmed yeomanry, and women and children. Give to the living time to bury and lament their dead, in the quietness of private sorrow. Having performed this work of beneficence and mercy on your inland border, turn and look with the eye of justice and compassion on your vast population along the coast. Unclench the iron grasp of your embargo. Take measures for that end before another sun sets upon you. With all the war of the enemy on your commerce, if you would cease to make war upon it yourselves, you would still have some commerce. That commerce would give you some revenue. Apply that revenue to the augmentation of your navy. That navy in turn will protect your commerce. Let it no longer be said, that not one ship of force, built by your hands since the war, yet floats upon the ocean. Turn the current of your efforts into the channel which national sentiment has already worn broad and deep to receive it. A naval force competent to defend your coasts against considerable armaments, to convoy your trade, and perhaps raise the blockade of your rivers, is not a chimera. It may be realized. If then the war must continue, go to the ocean. If you are seriously contending for maritime rights, go to the theatre where alone those rights can be defended. Thither every indication of your fortune points you. There the united wishes and exertions of the nation will go with you. Even our party divisions, acrimonious as they are, cease at the water’s edge. They are lost in attachment to the national character, on the element where that character is made respectable. In protecting naval interests by naval means, you will arm yourselves with the whole power of national sentiment, and may command the whole abundance of the national resources. In time you may be able to redress injuries in the place where they may be offered; and, if need be, to accompany your own flag throughout the world with the protection of your own cannon.”

The principal subjects on which Mr. Webster addressed the House during the Thirteenth Congress were his own resolutions, the increase of the navy, the repeal of the embargo, and an appeal from the decision of the chair on a motion for the previous question. His speeches on those questions raised him to the front rank of debaters. He manifested upon his entrance into public life that variety of knowledge, familiarity with the history and traditions of the government, and self-possession on the floor, which in most cases are acquired by time and long experience. They gained for him the reputation indicated by the well-known remark of Mr. Lowndes, that

“the North had not his equal, nor the South his superior.” It was not the least conspicuous of the strongly marked qualities of his character as a public man, disclosed at this early period, and uniformly preserved throughout his career, that, at a time when party spirit went to great lengths, he never permitted himself to be infected with its contagion. His opinions were firmly maintained and boldly expressed; but without bitterness toward those who differed from him. He cultivated friendly relations on both sides of the House, and gained the personal respect even of those with whom he most differed.

In August, 1814, Mr. Webster was reëlected to Congress. The treaty of Ghent, as is well known, was signed in December, 1814, and the prospect of peace, universally welcomed by the country, opened on the Thirteenth Congress toward the close of its third session. Earlier in the season a project for a Bank of the United States was introduced into the House of Representatives on the recommendation of Mr. Dallas, Secretary of the Treasury. The charter of the first incorporated bank of the United States had expired in 1811. No general complaints of mismanagement or abuse had been raised against this institution; but the opinions entertained by what has been called the “Virginia School” of politicians, against the constitutionality of a national bank, prevented the renewal of the charter. The want of such an institution was severely felt in the war of 1812, although it is probable that the amount of assistance which it could have afforded the financial operations of the government was greatly overrated. Be this as it may, both the Treasury Department and Congress were now strongly disposed to create a bank. Its capital was to consist of forty-five millions of the public stocks and five millions of specie, and it was to be under obligation to lend the government thirty millions of dollars on demand. To enable it to exist under these conditions, it was relieved from the necessity of redeeming its notes in specie. In other words, it was an arrangement for the issue of an irredeemable paper currency. It was opposed mainly on this ground by Mr. Calhoun, Mr. Webster, Mr. Lowndes, and others of the ablest men on both sides of the House, as a project not only unsound in its principles, but sure to increase the derangement of the currency already existing. The speech of Mr. Webster against the bill will be found in one of these volumes, and it will be generally admitted to display a mastery of the somewhat difficult subjects of banking and finance, rarely to be found in the debates in Congress. The project was supported as an administration measure, but the

leading members from South Carolina and their friends united with the regular opposition against it, and it was lost by the casting vote of the Speaker, Mr. Cheves. It was revived by reconsideration, on motion of Mr. Webster, and such amendments introduced that it passed the House by a large majority. It was carried through the Senate in this amended form with difficulty, but it was negatived by Mr. Madison, being one of the two cases in which he exercised the veto power during his eight years' administration.

On the 8th of January of the year 1815, the victory at New Orleans was gained by General Jackson. No occurrence on land, in the course of the war, was of equal immediate interest, or destined to have so abiding an influence on the future. Besides averting the indescribable calamity of the sack of a populous and flourishing city, it showed the immense military power of the volunteer force of the country, when commanded with energy and skill. The praises of General Jackson were on every tongue throughout the land, and Congress responded to the grateful feelings of the country. A vote of thanks was unanimously passed by the Senate and House of Representatives.

In the interval between the Thirteenth and Fourteenth Congresses (March-December, 1815), Mr. Webster was busily engaged at home in the practice of the law. He had begun at this time to consider the expediency of removing his residence to a wider professional field. Though receiving a full share of the best business of New Hampshire, it ceased to yield an adequate support for his increasing family, and still more failed to afford any thing like the just reward of his legal attainment and labors. The destruction of his house, furniture, library, and many important manuscript collections, in "the great fire" at Portsmouth, in December, 1813, had entailed upon him the loss of the entire fruits of his professional industry up to that time, and made it necessary for him to look around him for the means of a considerably increased income. He hesitated between Albany and Boston; and, in consequence of this indecision, the execution of his purpose was for the present postponed.

The Fourteenth Congress assembled in December, 1815. An order of things in a great degree new presented itself. After a momentary pause, the country rose with an elastic bound from the pressure of the war. Old party dissensions had lost much of their interest. The condition of Europe had undergone a great change. The power of the French emperor was annihilated; and with the return of general peace, all occasions for

belligerent encroachments on neutral rights had ceased. Two thirds of our domestic feuds had turned on foreign questions, and there was a spontaneous feeling throughout the country in favor of healing the wounds which these feuds had inflicted upon its social and political harmony. Nor was this all. New relations and interests had arisen. The public debt had been swelled by the war expenditure to a large amount, and its interest was to be paid. Domestic manufactures had, in some of the States, grown up into importance through the operation of the restrictive system and the war, and asked for protection. The West began to fill up with unexampled rapidity, and required new facilities of communication with the Atlantic coast. The navy had fought itself into favor, and the war with Algiers, in 1816, forbade its reduction below the recent war establishment. The necessity of a system of coast defences had made itself felt. With all these loud calls for increased expenditure, the public finances were embarrassed and the currency was in extreme disorder. In a word, there were new and great wants and interests at home and abroad, throwing former topics of dissension into the shade, and calling for the highest efforts of statesmanship and a patriotism embracing the whole country.

Among those who responded with the greatest cordiality and promptness to the new demand were the distinguished statesmen of the preceding Congress, and conspicuous among them Clay, Calhoun, Webster, Lowndes, and Cheves. It will excite some surprise at the present day, in consideration of the political history of the last thirty years, to find how little difference as to leading measures existed in 1816 between these distinguished statesmen. No line of general party difference separated the members of the first Congress after the peace. The great measures brought forward were a national bank, internal improvement, and a protective tariff. On these various subjects members divided, not in accordance with any party organization, but from individual convictions, supposed sectional interests, and general public grounds. On the two first-named subjects no systematic difference of views disclosed itself between the great Northern and Southern leaders; on the third alone there was diversity of opinion. In the Northern States considerable advances had been made in manufacturing industry, in different places, especially at Waltham (Mass.); but a great manufacturing interest had not yet grown up. The strength of this interest as yet lay mainly in Pennsylvania. Navigation and foreign trade were the leading pursuits of the North; and these interests, it was feared, would suffer

from the attempt to build up manufactures by a protective tariff. It is accordingly a well-known fact, which may teach all to entertain opinions on public questions with some distrust of their own judgment, that the tariff of 1816, containing the *minimum* duty on coarse cotton fabrics, the cornerstone of the protective system, was supported by Mr. Calhoun and a few other Southern members, and carried by their influence against the opposition of the New England members generally, including Mr. Webster. It has been stated, that, during the pendency of this law before Congress, he denied the constitutionality of a tariff for protection. This statement is inaccurate; although, had it been true, it would have placed him only in the same relation to the question with Mr. Calhoun and other Southern members, who at that time admitted the principle of protection, but lived to reject it as the grossest and most pernicious constitutional heresy. It would have shown only that, in a long political career, he had, on the first discussion of a new question, expressed an opinion which, in the lapse of time and under a change of circumstances, he had seen occasion to alter. This is no ground of just reproach. It has happened to every public man in every free country, who has been of importance enough to have his early opinions remembered. It has happened to a large portion of the prominent men at the South, in reference to almost every great question agitated within the last generation. The bank, internal improvements, a navy, the Colonization Society, the annexation of Texas, the power of Congress over the territories, this very question of the tariff, the doctrine of State rights generally, are subjects on which many prominent statesmen of the South, living or recently deceased, have in the course of their career entertained opposite views.

But it is not true that Mr. Webster in 1816 denied the constitutionality of a tariff for protection. In 1820, in discussing the subject in Faneuil Hall, he argued that, if the right of laying duties for protection were derived from the revenue power, it was of necessity incidental; and on that assumption, as the incident cannot go beyond that to which it is incidental, duties avowedly for protection, and not having any reference to revenue, could not be constitutionally laid. The hypothetical form of the statement shows a degree of indecision; while the proposition itself is not to be gainsaid. At a later period, and after it had been confidently stated, and satisfactorily shown by Mr. Madison, that the Federal Convention intended, under the provision for regulating commerce, to clothe Congress with the power of laying duties

for the protection of manufactures; and after Congress had, by repeated laws, passed against the wishes of the navigating and strictly commercial interests, practically settled this constitutional question, and turned a vast amount of the capital of the country into the channel of manufactures; Mr. Webster considered a moderate degree of protection (such as would keep the home market steady under the occasional gluts in the foreign market, and shield the domestic manufacturer from the wholesale frauds of foreign importation) as the established policy of the United States; and he accordingly supported it. It is unnecessary to state, that this course has been pursued with the approbation of his constituents, and to the manifest good of the country. No change has taken place in Mr. Webster's opinions on the subject of protection which has not been generally shared and sanctioned by the intelligence of the manufacturing States. There are strong indications, even, that in the Southern States the superiority of the home market over the foreign is beginning to be felt.

Mr. Webster took an active and efficient part, at the first session of the Fourteenth Congress, in the debates on the charter of the Bank of the United States, which passed Congress in April, 1816. While the bill was before the House, he moved and carried several amendments similar to those which he had caused to be introduced into the bill of the former year. He exerted himself in vain, however, against the participation of the government in its management, and, in common with several independent members usually supporting the administration, he voted against it on its passage. Among the amendments to the bill, of which Mr. Webster procured the adoption, was one which required *deposits*, as well as the *notes* of the bank, to be paid on demand in specie.

But the great service rendered by Mr. Webster to the currency of the country in the Fourteenth Congress was in procuring the adoption of the specie resolution, in virtue of which, from and after the 20th of February, 1817, all debts due to the treasury were required to be paid in the legal currency of the country (gold or silver), in treasury notes, or the notes of the Bank of the United States, or in notes of banks which are payable and paid on demand in the same legal currency. This service can hardly be appreciated at the present day by those too young to recollect the state of things existing in this respect during the war and after its close. This resolution passed the two houses, and was approved by the President on the 30th of April, 1816. It

completely accomplished its object; and that object was to restore to a sound basis the currency of the country, and to give the people a uniform circulating medium. Of this they were destitute at the close of the war. All the banks, except those of the New England States, had suspended specie payments; but their depreciated bills were permitted by general consent, and within certain limits, to circulate as money. They were received of each other by the different banks; they passed from hand to hand; and even the public revenue was collected at par in this degraded paper. The rate of depreciation was different in different States, and with different banks in the same States, according as greater or less advantage had been taken of the suspension of the specie obligation.

What was not less harassing than this diversity was the uncertainty everywhere prevailing, how far the reputed rate of depreciation in any particular case might represent justly the real condition of a bank or set of banks. In other words, men were obliged to make and receive payments in a currency of which, at the time, the value was not certainly known to them, and which might vary as it was passing through their hands. The enormous injustice suffered by the citizens of different States, in being obliged to pay their dues at the custom-houses in as many different currencies as there were States, varying at least twenty-five per cent. between Boston and Richmond, need not be pointed out. For all these mischiefs the resolution of Mr. Webster afforded a remedy as efficient as simple; and what chiefly moves our astonishment at the present day is, that a measure of this kind, demanded by the first principles of finance, overlooked by the executive and its leading friends in Congress, should be left to be brought forward by one of its youngest members, and he not belonging to the supporters of the administration. But commanding talent and profound knowledge of the subjects to be treated vindicate to themselves a position in public bodies, which official relations can neither confer nor take away. It would not be easy to name a political measure, in the history of the government, which has accomplished its design with greater simplicity and directness; and that design one of paramount importance to the country, and coming home to the business of every individual.

In all the other public measures brought forward in this Congress for meeting the new conditions of the country, Mr. Webster bore an active part, but they furnish no topic requiring illustration. At the close of the first

session, in August, 1816, he executed the project to which we have already alluded of removing to a wider professional field. After some hesitation he decided on Boston, in which and its vicinity he has ever since made his home. He had established friendly relations here at an early period of life. In no part of the Union was his national reputation more cordially recognized than in the metropolis of New England. He took at once the place in his profession which belonged to his commanding talent and legal eminence, and was welcomed into every circle of social life.

FOOTNOTES

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Lives of the Chancellors, Vol. VII. p. 218; see also p. 301.

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The friend to whom the letter referred to by Mr. March was written, was Mr. Justice Story, who adds: "Such praise from such a man ought to be very gratifying. Consider that he is now seventy-five years old, and that he speaks of his recollections of some eighteen years ago with a freshness which shows how deeply your reasoning impressed itself upon his mind. Keep this *in memoriam rei*."

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CHAPTER III.

Professional Character particularly in Reference to Constitutional Law.—The Dartmouth College Case argued at Washington in 1818.—Mr. Ticknor's Description of that Argument.—The Case of Gibbons and Ogden in 1824.—Mr. Justice Wayne's Allusion to that Case in 1847.—The Case of Ogden and Saunders in 1827.—The Case of the Proprietors of the Charles River Bridge.—The Alabama Bank Case.—The Case relative to the Boundary between Massachusetts and Rhode Island.—The Girard Will Case.—The Case of the Constitution of Rhode Island.—General Remarks on Mr. Webster's Practice in the Supreme Court of the United States.—Practice in the State Courts.—The Case of Goodridge,—and the Case of Knapp.

With Mr. Webster's removal to Boston commenced a period of five or six years' retirement from active political life, during which time, with a single exception which will be hereafter alluded to, he filled no public office, and devoted himself exclusively to the duties of his profession. It was

accordingly within this period that his reputation as a lawyer was fixed and established. The promise of his youth, and the expectations of those who had known him as a student, were more than fulfilled. He took a position as a counsellor and an advocate, above which no one has ever risen in the country. A large share of the best business of New England passed into his hands; and the veterans of the Boston bar admitted him to an entire equality of standing, repute, and influence.

Besides the reputation which he acquired in the ordinary routine of practice, Mr. Webster, shortly after his removal to Boston, took the lead in establishing what might almost be called a new school of constitutional law. It fell to his lot to perform a prominent part in unfolding a most important class of constitutional doctrines, which, either because occasion had not drawn them forth, or the jurists of a former period had failed to deduce and apply them, had not yet grown into a system. It was reserved for Mr. Webster to distinguish himself before most, if not all, of his contemporaries, in this branch of his profession. It may be mentioned as a somewhat curious coincidence, that the case in which he made his first great effort in this direction arose in his native State, and concerned the College in which he had been educated.

In the months of June and December, 1816, the legislature of New Hampshire passed acts altering the charter of Dartmouth College (of which the name was changed to Dartmouth University), enlarging the number of the trustees, and generally reorganizing the corporation. These acts, although passed without the consent and against the protest of the Trustees of the College, went into operation. The newly created body took possession of the corporate property, and assumed the administration of the institution. The old board were all named as members of the new corporation, but declined acting as such, and brought an action against the treasurer of the new board for the books of record, the original charter, the common seal, and other corporate property of the College.

The action was commenced in the Court of Common Pleas for Grafton County, in February, 1817, and carried immediately to the Superior Court, in May of the same year. The general issue was pleaded by the defendants and joined by the plaintiffs. The case turned upon the point, whether the acts of the legislature above referred to were binding upon the corporation without their assent, and not repugnant to the Constitution of the United

States. It was first argued by Messrs. Jeremiah Mason and Jeremiah Smith for the plaintiffs, and by the Attorney-General of New Hampshire for the defendants; and subsequently by Messrs. Mason, Smith, and Webster for the plaintiffs, and the Attorney-General and Mr. L Bartlett for the defendants. At the November term it was decided by the Superior Court of New Hampshire, in an opinion delivered by Chief Justice Richardson, that the acts of the New Hampshire legislature were valid and constitutional. In giving his opinion on the case, the Chief Justice said: "The cause has been argued on both sides with uncommon learning and ability, and we have witnessed a display of talents and eloquence upon this occasion in the highest degree honorable to the profession of the law in this State."^[6]

The case thus decided in the Superior Court of New Hampshire in favor of the validity of the State laws, was carried by writ of error to the Supreme Court of the United States, where, on the 10th of March, 1818, it came on for argument before all the judges, Mr. Webster and Mr. (afterwards Judge) Hopkinson for the plaintiffs, and Mr. J. Holmes of Maine and the Attorney-General, Wirt, for the defendants in error. This was perhaps the first occasion in this country on which a question precisely of this kind had come up, and it is stated that, when one of the court had run his eye cursorily over the record, he said that he did not see how any thing important could be urged by the plaintiffs in error.

It devolved upon Mr. Webster, as junior counsel, to open the case, and it is scarcely necessary to say to any one who has read the report of his argument, that, if such an impression as that just alluded to existed in the mind of any of the court, it must have been immediately dispelled. The ground was broadly taken, that the acts in question were not only against common right and the constitution of New Hampshire, but also, and this was the leading principle, against the provision of the Constitution of the United States which forbids the individual States from passing laws that impair the obligation of contracts. Under the first head, the entire English law relative to educational foundations was unfolded by Mr. Webster, and it was shown that colleges, unless otherwise specifically constituted by their charters, were private eleemosynary corporations, over whose property, members, and franchises the crown has no control, except by due process of law, for acts inconsistent with their charters. The whole learning of the subject was brought to bear with overwhelming weight on this point.

The second main point required to be less elaborately argued; namely, that such a charter is a contract which it is not competent for a State to annul. The argument throughout was pursued with a closeness and vigor which have been rarely witnessed in our courts. The topics were beyond the usual range of forensic investigation in this country. The constitutional principles sought to be applied were of commanding importance. Great public expectation was awakened by the novelty and magnitude of the case. The personal connection of Mr. Webster with Dartmouth College as the place of his education gave a fervor to his manner, which added, no doubt, to the effect of the reasoning. On this point Mr. Ticknor expresses himself as follows:—

“Mr. Webster’s argument is given in this volume [the first collection of his works], that is, we have there the technical outline; the dry skeleton of it. But those who heard him when it was originally delivered still wonder how such dry bones could ever have lived with the power they there witnessed and felt. He opened his cause, as he always does, with perfect simplicity in the general statement of its facts, and then went on to unfold the topics of his argument in a lucid order, which made each position sustain every other. The logic and the law were rendered irresistible. But as he advanced, his heart warmed to the subject and the occasion. Thoughts and feelings that had grown old with his best affections rose unbidden to his lips. He remembered that the institution he was defending was the one where his own youth had been nurtured; and the moral tenderness and beauty this gave to the grandeur of his thoughts, the sort of religious sensibility it imparted to his urgent appeals and demands for the stern fulfilment of what law and justice required, wrought up the whole audience to an extraordinary state of excitement. Many betrayed strong agitation, many were dissolved in tears. Prominent among them was that eminent lawyer and statesman, Robert Goodloe Harper, who came to him when he resumed his seat, evincing emotions of the highest gratification. When he ceased to speak, there was a perceptible interval before any one was willing to break the silence; and when that vast crowd separated, not one person of the whole number doubted that the man who had that day so moved, astonished, and controlled them, had vindicated for himself a place at the side of the first jurists of the country.”^[7]

The opinion of the court, unanimous; with the exception of Justice Duvall, was pronounced by Chief Justice Marshall in the term for 1819, declaring the acts of the legislature of New Hampshire to be unconstitutional and invalid, and reversing the opinion of the court below. By this opinion the law of the land in reference to collegiate charters was firmly established. Henceforward our colleges and universities and their trustees, unless provision to the contrary is made in their acts of incorporation, stand upon the broad basis of common right and justice; holding in like manner as individuals their property and franchises by a firm legal tenure, and not subject to control or interference on the part of the local legislatures on the vague ground that public institutions are at the mercy of the government.

That such is the recognized law of the land is owing in no small degree to the ability with which the Dartmouth College case was argued by Mr. Webster. The battle fought and the victory gained in this case were sought and gained for every college and university, for every academy and school, in the United States, endowed with property or possessed of chartered rights. It ought to be mentioned, to the credit of the State of New Hampshire, that she readily acquiesced in the decision of the Supreme Court of the United States, and made no attempt to sustain her recent legislation.

This celebrated cause, argued with such success before the highest tribunal in the country, established Mr. Webster's position in the profession. It placed him at once with Emmett and Pinkney and Wirt, in the front rank of the American bar, and, though considerably the youngest of this illustrious group, on an equality with the most distinguished of them. He was henceforward retained in almost every considerable cause argued at Washington. No counsel in the United States has probably been engaged in a larger portion of the business brought before that tribunal. While Mr. Webster as a politician and a statesman has performed an amount of intellectual labor, as is abundantly shown in these volumes, sufficient to form the sole occupation of an active life, there is no doubt that his arguments to the court and his addresses to the jury in important suits at law would, if they had been reported like his political speeches, have filled a much greater space.

It would exceed the limits of this sketch to allude in detail to all the cases argued by Mr. Webster in the Supreme Court of the United States; still less would it be practicable to trace him through his labors in the State courts. We can barely mention a few of the more considerable causes. The case of Gibbons and Ogden, in 1824, is one of great celebrity. In this case the grant by the State of New York to the assignees of Fulton, of an exclusive right to navigate the rivers, harbors, and bays of New York by steam, was called in question, and was decided to be unconstitutional, after having been maintained by all the tribunals of that great and respectable State. The decision of this great case turned upon the principle, that the grant of such a monopoly of the right to enter a portion of the navigable waters of the Union was an encroachment, by the State, upon the power "to regulate commerce,"—a power reserved by the Constitution to Congress, and in

its nature exclusive. The cause was argued by Messrs. Webster and Wirt for the plaintiffs, and by Messrs. Oakley and Emmett for the defendants in error,—an array of talent worthy the magnitude of the interests at stake. The decision of the court was against the monopoly. Few cases in the annals of federal jurisprudence are of equal importance; none, perhaps, was ever argued with greater ability. In the course of his discussion, Mr. Webster said, with great felicity of illustration, that, by the establishment of the Constitution, the commerce of this whole country had become a *unit*, a form of expression used with approbation by Chief Justice Marshall in delivering the opinion of the court.

A very distinguished compliment was paid to Mr. Webster's argument in this case, a quarter of a century after its delivery, by Mr. Justice Wayne of the Supreme Court of the United States. On the occasion of Mr. Webster's visit to the South, in the spring of 1847, he was received with public honors, among other places, at Savannah. He was there addressed by Judge Wayne on behalf of his fellow-citizens. In the course of his remarks on that occasion, Judge Wayne alluded to Mr. Webster's line of argument in this case in the following manner:—

“From one of your constitutional suggestions, every man in the land has been more or less benefited. We allude to it with the greater pleasure, because it was in a controversy begun by a Georgian in behalf of the constitutional rights of the citizen. When the late Mr. Thomas Gibbons determined to put to hazard a large part of his fortune in testing the constitutionality of the laws of New York limiting the navigation of the waters of that State to steamers belonging to a company, his own interest was not so much concerned as the right of every citizen to use a coasting license upon the waters of the United States, in whatever way their vessels might be propelled. It was a sound view of the law, but not broad enough for the occasion. It is not unlikely that the case would have been decided upon it, if you had not insisted that it should be put upon the broader constitutional ground of commerce and navigation. The court felt the application and force of your reasoning, and it made a decision releasing every creek, and river, lake, bay, and harbor in our country from the interference of monopolies, which had already provoked unfriendly legislation between some of the States, and which would have been as little favorable to the interest of Fulton, as they were unworthy his genius.”

The case of *Ogden and Saunders*, in 1827, brought in question the right of a State to pass an insolvent law. It was of course a case of high constitutional law, belonging to the same general class with those just mentioned, and relating to the limit of the powers of the several States, in reference to matters confided by the Constitution to the general government. This cause was argued by Mr. Clay and Mr. David B. Ogden of New York for the plaintiffs, and by Mr. Webster and Mr. Henry Wheaton for the defendants in

error. In his argument in this case, Mr. Webster maintained the entire unconstitutionality of State bankrupt laws. This was a step in advance of the doctrines laid down by the Supreme Court of the United States in the case of *Sturges and Crowninshield*, nor did the court on the present occasion incline to go further than they had done in that case. They were divided in opinion, but a majority of the judges held, that, although it was not competent to a State to pass a law discharging a debtor from the obligation of payment, they might pass a law to discharge him from imprisonment on personal execution. The Chief Justice and Judge Story were the minority of the court, and the opinion of the Chief Justice sustained the principle of Mr. Webster's argument, which is, in fact, usually regarded as not falling below his most successful forensic efforts. The manner in which he meets the argument in favor of a prospective State insolvent law, namely, that such a law cannot impair the obligation of a contract because it is a part of the contract, may be quoted as a specimen of the acutest dialectics brought in aid of the broadest views of constitutional law.

In the year 1836, Mr. Webster argued at Washington the great cause of the proprietors of Charles River Bridge. This well-remembered case was a suit in chancery commenced in the Supreme Court of Massachusetts, where the bill was dismissed by a decree *pro forma*, the members of that court being equally divided in opinion. A writ of error was taken to the Supreme Court of the United States, on the ground that the rights of the proprietors of Charles River Bridge under their charter had been violated by the legislature, in authorizing the erection of Warren Bridge. The cause was argued at Washington, in 1836, and, having been then held under advisement by the court for a year, was, upon difference of opinion among the judges, ordered to be again argued, which was done in 1837. This was another of the great constitutional cases argued by Mr. Webster before the Supreme Court of the United States. The abstract principles of the case were perhaps as clear as in those to which we have alluded; but there were practical difficulties, no doubt, in their application to restrain the right of a legislature to grant an act of incorporation, in the usual form, for the construction of a new bridge, on the ground of interference with some prior similar franchise. The opinion of the court, adverse to the complainants, was delivered by Chief Justice Taney. Mr. Justice McLean was clearly of opinion that the merits of the case were with the complainants, but that the Supreme Court of the United States had no jurisdiction over it. Mr. Justice

Story dissented from the majority, and sustained the doctrines advanced by Mr. Webster in a very learned and powerfully reasoned opinion.

In 1839 the constitutional rights of the Bank of the United States (so called), which was incorporated by the State of Pennsylvania after the termination of the Congressional charter, were drawn in question by a case from the State of Alabama, in which the right of a corporation or a citizen in one State to perform any legal act in another was asserted by Mr. Webster, and his argument was sustained by the court. Not long afterwards the controversy between Massachusetts and Rhode Island relative to their boundary, a controversy running back to the earliest periods of their colonial history, was brought before the Supreme Court, at Washington, and argued by Mr. Webster for the Commonwealth of Massachusetts.

In 1844 the important case relative to the validity of Mr. Girard's bequest of the greater part of his estate to the city of Philadelphia, for the foundation of a college for orphans, was argued by Mr. Webster before the Supreme Court, at Washington, for the heirs at law. One of the grounds on which the bequest was impeached by them was, the exclusion by the will of all ecclesiastics, missionaries, or ministers, of whatever sect, from all offices in the college, and even from admission within the premises as visitors. So impressive was Mr. Webster's argument upon the importance of making provision for religious instruction in all institutions for education, that a meeting of the citizens of Washington belonging to different religious denominations was held, at which a resolution was passed expressing the opinion entertained by the meeting of the great value of Mr. Webster's argument, "in demonstrating the vital importance of Christianity to the success of our free institutions, and that the general diffusion of that argument among the people of the United States is a matter of deep public interest." A committee of eight gentlemen of the different denominations of Christians in the city was appointed to wait upon Mr. Webster, and request him to prepare for the press the report of that portion of his argument in which this important topic is treated.

In the month of January, 1848, the great Rhode Island case was brought before the Supreme Court of the United States, and argued by Mr. Webster for the chartered government of the State, and against the insurrectionary government, to which an abortive attempt had been made to give the form of a constitution, by a pretended act of the popular will. The true principles

of popular and constitutional government are explored with unsurpassed sagacity in this argument. Some copies of the report of it in a pamphlet form reached Europe during the memorable year of 1848, when the Continent was convulsed with revolutionary struggles from one end to the other. It was there regarded as a most seasonable and instructive commentary on the nature of constitutional obligations, and of the rights of the people to modify their institutions of government.

A large portion of the causes argued by Mr. Webster belong to the province of constitutional law, and have their origin in that partition of powers which exists between the State governments and the government of the United States, each clothed with sovereignty in its appropriate sphere, each subject to limitations resulting from its relations to the other, each possessing its legislative bodies, its judicial tribunals, its executive authorities, and consequently armed with the means of asserting its rights, and both combined into one great political system. In such a system it cannot but happen that questions of conflicting jurisdiction should arise. When we consider that the powers of these two orders of government are defined in written constitutions of recent date, and that all the direct precedents of administration must of necessity, at the oldest, be still more recent, we cannot but wonder at the small number of disputed cases which have arisen, and at the sagacity, forethought, and practical wisdom of the founders of our government, who made such admirable provision for the harmonious operation of the system.

Still, however, it was impossible that the class of cases provided for by the appellate jurisdiction of the Supreme Court of the United States should not present themselves, and no small portion of Mr. Webster's forensic life has been devoted to their investigation. It is unnecessary to state that they are questions of an elevated character. They often involve the validity of the legislative acts and judicial decisions of governments substantially independent, as they may in fact the constitutionality of the acts of Congress itself. No court in England will allow any thing, not even a treaty with a foreign government, or the most undoubted principles of the law of nations, to be pleaded against an act of Parliament. The Supreme Court of the United States entertains the question not only of the constitutionality of the acts of the legislatures of States possessing most of the attributes of sovereignty, but also of the constitutionality of the acts of the national

legislature, which possesses those attributes of sovereignty which are denied to the States. These circumstances give great dignity to its deliberations, and tend materially to elevate the character of a constitutional lawyer in the United States.^[8] Professional training in England has not been deemed the best school of statesmanship; but it will be readily perceived, that in this country a great class of questions, and those of the highest importance, belong alike to the senate and the court. Every one must feel that, in the case of Mr. Webster, the lawyer and the statesman have contributed materially to form each other.

Before quite quitting this subject, it may be proper to allude to Mr. Webster's professional labors of another class, in the ordinary State tribunals. Employed as counsel in all the most important cases during a long professional life, it is hardly necessary to say, that his investigations have extended to every department of the law, and that his speeches to the jury and arguments to the court have evinced a mastery of the learning and a control of the logic belonging to it, which are in most cases to be attained only by the exclusive study and practice of a life. The jurist and the advocate are so mingled in Mr. Webster's professional character, that it is not easy to say which predominates. His fervid spirit and glowing imagination place at his control all the resources of an overwhelming rhetoric, and make him all-powerful with a jury; while the ablest court is guided by his severe logic, and instructed by the choice which he lays before them of the most appropriate learning of the cases which he argues. It happens, unfortunately, that forensic efforts of this kind are rarely reported at length. A brief sketch of an important law argument finds a place in the history of the case, but distinguished counsel rarely have time or bestow the labor required to reproduce in writing an elaborate address either to court or jury. There is probably no species of intellectual labor of the highest order, which perishes for want of a contemporary record to the same extent as that which is daily exerted in the courts of law.

The present collection contains two speeches addressed to the jury by Mr. Webster in criminal trials. One was delivered in the case of Goodridge, and in defence of the persons whom he accused of having robbed him on the highway. This cause was tried in 1817, shortly after the establishment of Mr. Webster at Boston. Rarely has a case, in itself of no greater importance, produced a stronger impression of the ability of the counsel. The cross-

examination of Goodridge, who pretended to have been robbed, and who had previously been considered a person of some degree of respectability, is still remembered at the bar of Massachusetts as terrific beyond example, and the speech to the jury in which his artfully contrived tale was stripped of its disguises may be studied as a model of this species of exposition.

Mr. Webster's speech to the jury in the memorable case of John F. Knapp is of a higher interest. The great importance of this case, as well on account of the legal principles involved, as of the depth of the tragedy in real life with which it was connected, has given it a painful celebrity. A detailed history of the case and of the trial, from the pen of the late ingenious and learned Mr. Merrill, will be found prefixed to Mr. Webster's speech, as contained in the fifth volume of this collection. The record of the *causes célèbres* of no country or age will furnish either a more thrilling narrative, or a forensic effort of greater ability. A passage on the power of conscience will arrest the attention of the reader. There is nothing in the language superior to it. It was unquestionably owing to the legal skill and moral courage with which the case was conducted by Mr. Webster, that one of the foulest crimes ever committed was brought to condign punishment; and the nicest refinements of the law of evidence were made the means of working out the most important practical results. But it is time to return to the chronological series of events.

FOOTNOTES

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1 New Hampshire Reports, p. 113.

[7]

American Review, Vol. IX. p. 434.

[8]

"Crescit enim cum amplitudine rerum vis ingenii, nec quisquam claram et inlustrem orationem efficere potest, nisi qui causam parem invenit." The dialogue *De Oratoribus*, § 37, usually printed with the works of Tacitus.

CHAPTER IV.

The Convention to revise the Constitution of Massachusetts.—John Adams a Delegate.—Mr. Webster's Share in its Proceedings.—Speeches on Oaths of Office, Basis of Senatorial Representation, and Independence of the Judiciary.—Centennial Anniversary at Plymouth on the 22d of December, 1820.—Discourse delivered by Mr. Webster.—Bunker Hill Monument, and Address by Mr. Webster on the Laying of the Corner-Stone, 17th of June, 1825.—Discourse on the Completion of the Monument, 17th of June, 1843.—Simultaneous Decease of Adams and Jefferson on the 4th of July, 1826.—Eulogy by Mr. Webster in Faneuil Hall.—Address at the Laying of the Corner-Stone of the New Wing of the Capitol.—Remarks on the Patriotic Discourses of Mr. Webster, and on the Character of his Eloquence in Efforts of this Class.

In 1820, on the separation of Maine, a convention became necessary in Massachusetts to readjust the Senate; and the occasion was deemed a favorable one for a general revision of the constitution. The various towns in the Commonwealth were authorized by law to choose as many delegates as they were entitled to elect members to the House of Representatives; and a body was constituted containing much of the talent, political experience, and weight of character of the State. Mr. Webster was chosen one of the delegates from Boston; and, with the exception of a few days' service, two or three years afterwards, in the Massachusetts House of Representatives;^[9] this is the only occasion on which he ever filled any political office under the State government either of Massachusetts or New Hampshire.

The venerable John Adams, second President of the United States, was a delegate to this convention from Quincy. He was the author of the original draft of the State constitution in 1780, and although his advanced age (he was now eighty-six years old) made it impossible for him to take an active part in the proceedings of the convention, he received the honor of a unanimous election as president. He declined the appointment; and Chief Justice Parker was chosen in his place.

The convention of 1820 was no doubt as respectable a political body as ever assembled in Massachusetts; and it is no more than justice to Mr. Webster to say, that, although he had been but a few years a citizen of the Commonwealth, and was personally a stranger to most of his associates, he was among the most efficient members of the body. He was named chairman of the committee to whom the important subject of oaths and qualifications for office was referred, and of the special committee on that

chapter of the constitution which relates to the "University at Cambridge." Besides taking a leading part in the discussion of most of the important subjects which were agitated in the convention, he was the authority most deferred to on questions of order, and in that way exercised a steady and powerful influence over the general course of its proceedings. It is believed that on this occasion the practice of considering business in committee of the whole body was for the first time adopted in Massachusetts; that mode of procedure never having obtained in the legislature of the State. The dignified and efficient manner in which the duties of the chair were performed by Mr. Webster, whenever he was called to occupy it, was matter of general remark. It has often been a subject of regret with those who witnessed the uncommon aptitude evinced by him on these, as on similar occasions at Washington, for the discharge of the duties of presiding officer of a deliberative assembly, that he was never, during his Congressional career, called to the important office of Speaker of the House of Representatives. Considering the relation of the House to the political condition of the country, there is no position under the government which bears more directly upon the general character of the public counsels. The place has occasionally, both in former times and recently, been filled with great ability; but it has more frequently happened that speakers have been chosen from considerations of political expediency, and without regard to personal qualifications and fitness for the office. The effect has been highly prejudicial to the tone of the House, and its consequent estimation in the country. It has frequently happened that the decisions of the Speaker, as such, have commanded no respect. An appeal has been taken from them almost as a matter of course. The state of things is very different in the body most nearly resembling the houses of Congress. Such a thing as an appeal from the decision of the Speaker on a point of order is hardly known in the British House of Commons, and the disposition of all parties to acquiesce in, if not to support, the decisions of the chair, is one of the characteristic features of that assembly.

The proceedings of the Massachusetts convention were ably reported, from day to day, in the Boston Daily Advertiser; but a contemporary report usually implies much abridgment of the speeches. Much that was said by Mr. Webster, as by other prominent speakers, appeared but in a condensed form; and it is believed, that, even when reported at greatest length and with most care, it was without the advantage of personal revision by the

speakers. The third volume of the present collection contains Mr. Webster's remarks on those provisions of the constitution which related to oaths of office and formed a kind of religious test, which Mr. Webster was disposed to abolish; a speech upon the basis of senatorial representation; and another upon the independence of the judiciary.

In the speech on the basis of the Senate, Mr. Webster defended the principle, which was incorporated into the original constitution, and is recognized by the liberal writers of greatest authority on government, that due regard should be had to property in establishing a basis of representation. He showed the connection between the security of republican liberty and this principle. He first called attention in this country to the fact, that this important principle was originally developed in Harrington's *Oceana*, a work much studied by our Revolutionary fathers. The practical consequence which Mr. Webster deduced from the principle was, that constitutional and legal provision ought to be made to produce the utmost possible diffusion and equality of property.

It is a melancholy instance of the injustice of party, that these views of Mr. Webster, which contain the philosophy of constitutional republicanism as distinct from a mere democracy of numbers, have, even down to the present day, served as the basis of a charge against him of anti-popular principles. Having observed in the speech referred to, "that it would seem to be the part of political wisdom to found government on property, and to establish such a distribution of property by the laws which regulate its transmission and alienation, as to interest the great majority of society in the protection of the government," the former part of this sentence has often been quoted as a substantive rule in favor of a moneyed aristocracy, and the latter uncandidly suppressed. It is hardly necessary to observe, that the point at issue was the constitution of the senatorial districts on the basis of the valuation; and that it was never proposed by Mr. Webster, or by any body else, to apply the principle to individuals. The poor man in the rich senatorial district possessed as much political power as his wealthy neighbor. The principle, in fact, is but another form of that which gave the first impulse to the American Revolution, namely, that representation and taxation ought to go hand in hand.

While the Massachusetts convention was in session, Mr. Webster appeared before the public in another department of intellectual effort, and with the

most distinguished success. It is hazardous for a person of great professional eminence to venture out of his sphere; perhaps the experiment has never before been so triumphantly made. In 1820, Mr. Webster was invited by the Pilgrim Society at Plymouth to deliver a discourse on the great anniversary of New England, the ever-memorable 22d of December. Several circumstances contributed on this occasion to the interest of the day. The peaceful surrender by Massachusetts of a portion of her territory, greatly exceeding in magnitude that which she retained, in order to form the new State of Maine, was a pleasing exemplification of that prosperous multiplication of independent commonwealths within the limits of the Union, which forms one of the most distinctive features in our history. It was as much an alienation of territory from the local jurisdiction of Massachusetts, as if it had been ceded to Great Britain, and yet the alienation was cordially made. At this very time a controversy existed between the United States and England, relative to the conflicting title of the two governments to a very small portion, and that the least valuable part, of the same territory, which, after the aggravations and irritations of forty years of controversy, was in 1842 adjusted by Mr. Webster and Lord Ashburton, at a moment when war seemed all but inevitable. In any other country or age of the world, Maine could have been severed from Massachusetts only by a bloody revolution. Their amicable separation by mutual consent, although neither the first nor the second similar event in the United States, was still an occurrence which carried back the reflections of thoughtful men to the cradle of New England.

These reflections gathered interest from the convention then in session. It was impossible not to feel with unusual force the contrast between the circumstances under which the first simple compact of government, the germ of the American constitutions, was drawn up on board the Mayflower, and those under which the assembled experience, wisdom, and patriotism of the State were now engaged in reorganizing the government. Several of the topics which presented themselves to Mr. Webster's mind, and were discussed by him at Plymouth, had entered into the debates of the convention a few days before. Still more, the close of the second century from the landing of the Fathers, with all its mighty series of events in the social, political, and moral world, gave the highest interest to the occasion. Six New England generations were to pass in review. It was an anniversary which could be celebrated nowhere else as it could be at Plymouth. It was

such an anniversary, with its store of traditions, comparisons, and anticipations, as none then living could witness again. The Pilgrim Society gave utterance to the unanimous feeling of the community, in calling upon Mr. Webster to speak for the whole people of New England, at home and abroad, on this great occasion.

The discourse delivered by him in pursuance of their invitation, in some respects the most remarkable of his performances, begins the series of his works contained in the present collection. The felicity and spirit with which its descriptive portions are executed; the affecting tribute which it pays to the memory of the Pilgrims; the moving picture of their sufferings on both sides of the water; the masterly exposition and analysis of those institutions to which the prosperity of New England under Providence is owing; the eloquent inculcation of those great principles of republicanism on which our American commonwealths are founded; the instructive survey of the past, the sublime anticipations of the future of America,—have long since given this discourse a classical celebrity. Several of its soul-stirring passages have become as household words throughout the country. They are among the most favorite of the extracts contained in the school-books. An entire generation of young men have derived from this noble performance some of their first lessons in the true principles of American republicanism. It obtained at once a wide circulation throughout the country, and gave to Mr. Webster a position among the popular writers and speakers of the United States scarcely below that which he had already attained as a lawyer and a statesman. It is doubtful whether any extra-professional literary effort by a public man has attained equal celebrity.

In the course of a few years, when the corner-stone of the Bunker Hill Monument was to be laid, on the fiftieth anniversary of the battle, the general expectation again pointed to Mr. Webster as the orator of the day. This, too, was a great national and patriotic anniversary. For the first time, and after the lapse of a half-century, the commencement of the war of the American Revolution was to be publicly celebrated under novel, significant, and highly affecting circumstances. Fifty years had extinguished all the unkindly associations of the day, and raised it from the narrow sphere of local history to a high place in the annals of the world. A great confederacy had sprung from the blood of Bunker Hill. This was too important an event in the history of the world to be surrendered to hostile and party feeling. No

friend of representative government in England had reason to deplore the foundation of the American republics. No one can doubt that the development of the representative principle in this country has contributed greatly to promote the cause of Parliamentary reform in Great Britain. Other considerations gave great interest to the festival of the 17th of June, 1825. Fifty years of national life, fortune, and experience, not exhibiting in their detail an unvarying series of prosperity, (for it was fifty years in the history, not of angels, but of men,) but assuredly not surpassed in the grand aggregate by any half-century in the annals of the world, were now brought to a close. Vast as the contrast was in the condition of the country at the beginning and close of the period, there were still living venerable men who had acted prominent and efficient parts in the opening scenes of the drama. Men who had shared the perils of 1775 shared the triumph of the jubilee. More than a hundred of the heroes of the battle were among the joyous participators in this great festival. Not the least affecting incident of the celebration was the presence of Lafayette, who had hastened from his more than royal progress through the Union to take a part in the ceremonial.

It is unnecessary to say, that on such an occasion, with all these circumstances addressed to the imaginations and the thoughts of men, in the presence of a vast multitude of the intelligent population of Massachusetts and the other New England States, with no inconsiderable attendance of kindred and descendants from every part of the Union, an address from such an orator as Mr. Webster, on such a platform, on such a theme, in the flower of his age and the maturity of his faculties, discoursing upon an occasion of transcendent interest, and kindling with the enthusiasm of the day and the spot, may well be regarded as an intellectual treat of the highest order. Happy the eyes that saw that most glorious gathering! Happy the ears that heard the heart-stirring strain!

Scarcely inferior in interest was the anniversary celebration, when the Bunker Hill Monument was finally completed, in 1843, and Mr. Webster again consented to address the immense multitude which the ceremonial could not fail to bring together. In addition to all the other sources of public interest belonging to the occasion, the completion itself of the structure was one to which the community attached great importance. It had been an object steadily pursued, under circumstances of considerable discouragement, by a large number of liberal and patriotic individuals, for

nearly a quarter of a century. The great work was now finished; and the most important event in the history of New England was henceforward commemorated by a monument destined, in all human probability, to last as long as any work erected by the hands of man. The thrill of admiration which ran through the assembled thousands, when, at the commencement of his discourse on that occasion, Mr. Webster apostrophized the monument itself as the mute orator of the day, has been spoken of by those who had the good fortune to be present as an emotion beyond the power of language to describe. The gesture, the look, the tone of the speaker, as he turned to the majestic shaft, seemed to invest it with a mysterious life; and men held their breath as if a solemn voice was about to come down from its towering summit. This address does not appear to have had the advantage possessed by those of Plymouth in 1820, and of Bunker Hill in 1825, in having been written out for the press by Mr. Webster. It seems to have been prepared for publication from the reporter's notes, with some hasty revision, perhaps, by the author.

On the 4th of July, 1826, occurred the extraordinary coincidence of the deaths of Adams and Jefferson, within a few hours of each other, on the fiftieth anniversary of the Declaration of Independence; an event with which they were both so closely connected, as members of the committee by which the ever-memorable state paper was prepared and brought into the Continental Congress. The public mind was already predisposed for patriotic emotions and sentiments of every kind by many conspiring causes. The recency of the Revolutionary contest, sufficiently illustrated by the fact that many of those engaged in it were still alive and had been the subjects of liberal provision by Congress; the complete, though temporary, fusion of parties, producing for a few years a political lull, never witnessed to the same extent before or since; the close of the half-century from the commencement of the Revolutionary War, and the commemoration of its early conflicts on many of the spots where they occurred; the foundation of the Bunker Hill Monument, and of a similar work on a smaller scale at Concord; the visit of Lafayette; abroad, the varying scenes of the Greek revolution and the popular movement in many other parts of Europe,—united in exciting the public mind in this country. They kindled to new fervor the susceptible and impulsive American temperament. The simultaneous decease of the illustrious patriarchs of the Revolution, under these circumstances of coincidence, fell upon a community already

prepared to be deeply affected. It touched a tender chord, which vibrated from one end of the Union to the other. The affecting event was noticed throughout the country. Cities and States vied with each other in demonstrations of respect for the memory of the departed. The heart of the country poured itself forth in one general utterance of reverential feeling. Nowhere was the wonderful event noticed with greater earnestness and solemnity of public sentiment than in Boston. Faneuil Hall was shrouded in black. Perhaps for the first time since its erection an organ was placed in the gallery, and a sublime funeral service was performed. It is unnecessary to dwell upon the effect of preparations like these upon an intelligent audience, assembled under highly wrought feeling. They produced a tone of mind in unison with the magnificent effort of thought which was to follow.

It has, perhaps, never been the fortune of an orator to treat a subject in all respects so extraordinary as that which called forth the eulogy on Adams and Jefferson; a subject in which the characters commemorated, the field of action, the magnitude of the events, and the peculiar personal relations, were so important and unusual. Certainly it is not extravagant to add, that no similar effort of oratory was ever more completely successful. The speech ascribed to John Adams in the Continental Congress, on the subject of declaring the independence of the Colonies,—a speech of which the topics of course present themselves on the most superficial consideration of the subject, but of which a few hints only of what was actually said are supplied by the letters and diaries of Mr. Adams,—is not excelled by any thing of the kind in our language. Few things have taken so strong a hold of the public mind. It thrills and delights alike the student of history, who recognizes it at once as the creation of the orator, and the common reader, who takes it to be the composition, not of Mr. Webster, but of Mr. Adams. From the time the eulogy was delivered to the present day, the inquiry has been often made and repeated, sometimes even in letters addressed to Mr. Webster himself, whether this exquisite appeal is his or Mr. Adams's. An answer to a letter of this kind will be found appended to the eulogy in the present edition.

These discourses, with the exception of the second Bunker Hill Address, were delivered within about five years of each other; the first on the 22d of December, 1820, the last on the 2d of August, 1826. With the exception named, Mr. Webster has excused himself from the delivery of public

addresses of this class, though continually invited from almost every part of the country and upon occasions of every kind. Within the last twelvemonth, however, he has yielded himself to the peculiar and urgent condition of public affairs, and has addressed his fellow-citizens on several occasions not immediately connected with senatorial or professional duty, and with the power and felicity which mark his earlier efforts. The most remarkable of these recent addresses is his speech delivered at Washington on the 4th of July, 1851, at the ceremonial of the laying of the corner-stone of the addition to the Capitol. This ceremonial, itself of no ordinary interest, and the aspect of public affairs under which it was performed, gave a peculiar fervor and solemnity to Mr. Webster's treatment of the subject. Never, perhaps, were the principles to which the great day is consecrated unfolded in a few paragraphs with greater precision and comprehensiveness; or the auspicious influence of these principles on the progress of the country more happily set forth. The contrast between the United States of 1793, when the corner-stone of the original Capitol was laid by President Washington, and the United States of 1851, when this enlargement became necessary, is brought out with great skill and discrimination. The appeal to the Southern States, whether the government under which the Union has grown and prospered is a blessing or a curse to the country, is a burst of the highest eloquence. The allusion and apostrophe to Washington will be rehearsed by the generous youth of America as long as the English language is spoken on this side of the Atlantic Ocean.

This great oration, perhaps not premeditated so carefully, as far as the mere language is concerned, as those of an earlier date with which we have classed it, is not inferior to either of them in the essentials of patriotic eloquence. It belongs, in common with them, to a species of oratory neither forensic, nor parliamentary, nor academical; and which might perhaps conveniently enough be described by the epithet which we have just applied to it,—the patriotic. These addresses are strongly discriminated from the forensic and the parliamentary class of speeches, in being from the nature of the case more elaborately prepared. The public taste in a highly cultivated community would not admit, in a performance of this kind, those marks of extemporaneous execution, which it not only tolerates, but admires, in the unpremeditated efforts of the senate and the bar. The latter shines to greatest advantage in happy impromptu strokes, whether of illustration or argument;

the former admits, and therefore demands, the graceful finish of a mature preparation.^[10]

It is not, indeed, to be supposed, that an orator like Mr. Webster is slavishly tied down, on any occasion, to his manuscript notes, or to a *memoriter* repetition of their contents. It may be presumed that in many cases the noblest and the boldest flights, the last and warmest tints thrown upon the canvas, in discourses of this kind, were the unpremeditated inspiration of the moment of delivery. The opposite view would be absurd, because it would imply that the mind, under the high excitement of delivery, was less fertile and creative than in the repose of the closet. A speaker could not, if he attempted it, anticipate in his study the earnestness and fervor of spirit induced by actual contact with the audience; he could not by any possibility forestall the sympathetic influence upon his imagination and intellect of the listening and applauding throng. However severe the method required by the nature of the occasion, or dictated by his own taste, a speaker like Mr. Webster will not often confine himself “to pouring out fervors a week old.”

The orator who would do justice to a great theme or a great occasion must thoroughly study and understand the subject; he must accurately, and if possible minutely, digest in writing beforehand the substance, and even the form, of his address; otherwise, though he may speak ably, he will be apt not to make in all respects an able speech. He must entirely possess himself beforehand of the main things which he wishes to say, and then throw himself upon the excitement of the moment and the sympathy of the audience. In those portions of his discourse which are didactic or narrative, he will not be likely to wander, in any direction, far from his notes; although even in those portions new facts, illustrations, and suggestions will be apt to spring up before him as he proceeds. But when the topic rises, when the mind kindles from within, and the strain becomes loftier, or bolder, or more pathetic, when the sacred fountain of tears is ready to overflow, and audience and speaker are moved by one kindred sympathetic passion, then the thick-coming fancies cannot be kept down, the storehouse of the memory is unlocked, images start up from the slumber of years, and all that the orator has seen, read, heard, or felt returns in distinct shape and vivid colors. The cold and premeditated text will no longer suffice for the glowing thought. The stately, balanced phrase gives place to some abrupt, graphic expression, that rushes unbidden to his lips. The unforeseen

incident or locality furnishes an apt and speaking image; and the discourse instinctively transposes itself into a higher key.

Many illustrations of these remarks may be found in the following volumes. We may refer particularly to the address to the survivors of the Revolution and the apostrophe to Warren in the first discourse on Bunker Hill. These were topics too obvious and essential, in an address on laying the cornerstone of the monument, to have been omitted in the orator's notes prepared beforehand. But no one will think that the entire apostrophe to Warren, as it stands in the reported speech, was elaborated in the closet and committed to memory. In fact there is a slight grammatical inaccuracy, caused by passing from the third person to the second in the same sentence, which is at once the natural consequence and the proof of an unpremeditated expansion or elevation of the preconceived idea. We see the process. When the sentence commenced, "But, ah! him!" it was evidently in the mind of the orator to close it by saying, "How shall I speak of him?" But in the progress of the sentence, forgetful, unconscious, of the grammatical form, but melting with the thought, beholding, as he stood upon the spot where the hero fell, his beloved and beautiful image rising from the ground, he can no longer speak of him. Willing subject of his own witchery, he clothes his conception with sensible forms, and speaks *to* the glorious being whom he has called back to life. He no longer attempts to discourse of Warren to the audience, but passing, after a few intervening clauses, from the third person to the second, he exclaims, "How shall I struggle with the emotions that stifle the utterance of *thy* name! Our poor work may perish, but *thine* shall endure! This monument may moulder away; the solid ground it rests upon may sink down to a level with the sea; but *thy* memory shall not fail!"

FOOTNOTES

[9]

Mr. Webster makes the following playful allusion to this circumstance in a speech at a public dinner in Syracuse (New York), in the month of May of the present year:—

“It has so happened that all the public services which I have rendered in the world, in my day and generation, have been connected with the general government. I think I ought to make an exception. I was ten days a member of the Massachusetts legislature, and I turned my thoughts to the search for some good object in which I could be useful in that position; and, after much reflection, I introduced a bill which, with the general consent of both houses of the Massachusetts legislature, passed into a law, and is now a law of the State, which enacts that no man in the State shall catch trout in any other manner than in the old way, with an ordinary hook and line.”

[10]

The leading ideas in this and the following paragraph may be found in a review of Mr. Webster’s Speeches, in the North American Review, Vol. XLI. p. 241, written by the author of this Memoir.

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CHAPTER V.

Election to Congress from Boston.—State of Parties.—Meeting of the Eighteenth Congress.—Mr. Webster’s Resolution and Speech in favor of the Greeks.—Argument in the Supreme Court in the Case of Gibbons and Ogden.—Circumstances under which it was made.—Speech on the Tariff Law of 1824.—A complete Revision of the Law for the Punishment of Crimes against the United States reported by Mr. Webster, and enacted.—The Election of Mr. Adams as President of the United States.—Meeting of the Nineteenth Congress, and State of Parties.—Congress of Panama, and Mr. Webster’s Speech on that Subject.—Election as a Senator of the United States.—Revision of the Tariff Law by the Twentieth Congress.—Embarrassments of the Question.—Mr. Webster’s Course and Speech on this Subject.

In the autumn of 1822, Mr. Webster consented to be a candidate for Congress for the city (then town) of Boston, and was chosen by a very large majority over his opponent, Mr. Jesse Putnam. The former party distinctions, as has been already observed, had nearly lost their significance in Massachusetts, as in some other parts of the country. As a necessary, or at least a natural consequence of this state of things, four candidates had already been brought forward for the Presidential election of November, 1824; namely, Mr. John Quincy Adams of Massachusetts, Mr. Clay of Kentucky, General Jackson of Tennessee, and Mr. Crawford of Georgia. Mr.

Calhoun of South Carolina and Mr. Lowndes of the same State had also both been nominated by their friends at an early period of the canvass; but the latter was soon removed by death, and Mr. Calhoun withdrew his pretensions in favor of General Jackson. All the candidates named had either originally belonged to the old Democratic party (or Republican party as it was then more usually called), or had for many years attached themselves to it; but no one of them was supported on that ground. Mr. Crawford alone had attempted to avail himself of the ancient party machinery, so far as to accept a nomination by a Congressional caucus of his friends. They formed, however, but a minority of the Republican members of Congress, and the signal failure of the nomination contributed to the final abandonment of that mode of procedure. No Presidential candidate has since been nominated by a Congressional caucus. In the canvass of 1824, it was the main effort of the friends of all the candidates, by holding out the prospect of a liberal basis of administration, to draw to themselves as many as possible of the old Federal party. In Massachusetts, and generally in New England, the fusion of parties was complete, and Mr. Adams received their united support. In the Middle States the union was less perfect, and the votes of a large proportion of the old Federal party were given to General Jackson and Mr. Crawford.

The Congressional elections in Massachusetts are held a year in advance. It was not till December, 1823, that Mr. Webster took his seat as a member of the Eighteenth Congress. It has rarely happened to an individual, by engaging in public life, to make an equal sacrifice of personal interest. Born to an inheritance of poverty, struggling through youth and early manhood against all the difficulties of straitened means and a narrow sphere, he had risen above them all, and was now in an advantageous position, at the height of his reputation, receiving as great a professional income as any lawyer in the United States, and rapidly laying the foundation of an ample independence. All this was to be put at risk for the hazardous uncertainties, and the scarcely less hazardous certainties, of public life. It was not till after repeated refusals of a nomination to both houses of Congress, that Mr. Webster was at last called upon, in a manner which seemed to him imperative, to make the great sacrifice. In fact, it may truly be said, that, to an individual of his commanding talent and familiarity with political affairs, and consequent ability to take a lead in the public business, the question whether he shall do so is hardly submitted to his option. It is one of the

great privileges of second-rate men, that they are permitted in some degree to follow the bent of their inclinations. It was the main inducement of Mr. Webster in returning to political life, that the cessation of the coarse conflicts of party warfare seemed to hold out some hope that statesmanship of a higher order, an impartial study of the great interests of the country, and a policy aiming to promote the development of its vast natural resources, might be called into action.

Although the domestic politics of the United States were in a condition of repose, the politics of Europe at this time were disturbed and anxious. Revolutions had within a few years broken out in Naples, Piedmont, and Spain; while in Greece a highly interesting struggle was in progress, between the Christian population of that country and the government of their Ottoman oppressors. At an early period of this contest, it had attracted much notice in the United States. A correspondence had been opened between an accredited committee of the Grecian patriots sitting at Paris, with the celebrated Koray at their head, and friends of the cause of Greece in this country;^[11] and a formal appeal had been made to the people of the United States, by the Messenian Senate of Kalamata, the first revolutionary congress which assembled in Greece. President Monroe, both in his annual message of December, 1822, and in that of 1823, had expressed respect and sympathy for their cause. The attention of Congress being thus called to the subject, Mr. Webster thought it a favorable opportunity to speak an emphatic word, from a quarter whence it would be respected, in favor of those principles of rational liberty and enlightened progress which were seeking to extend themselves in Europe. As the great strength of the Grecian patriots was to be derived, not from the aid of the governments of Christendom, but from the public opinion and the sympathy of the civilized world, he felt that they had a peculiar right to expect some demonstration of friendly feeling from the only powerful republican state. He was also evidently willing to embrace the opportunity of entering an American protest against the doctrines which had been promulgated in the manifestoes of the recent congresses of the European sovereigns.

Till the administration of Mr. Jefferson, it had been the custom of the two houses to return answers to the annual messages of the President. These answers furnished Congress with the means of responding to the executive suggestions. As much time was often consumed in debating these answers,

(a consumption of time not directly leading to any legislative result,) and as differences in opinion between Congress and the executive, if they existed, were thus prematurely developed, it was thought a matter of convenience, when Mr. Jefferson came into power, to depart from the usage. But though attended with evils, it had its advantages. The opportunity of general political debate, under a government like ours, if not furnished, will be taken. The constituencies look to their representatives to discuss public questions. It will perhaps be found, on comparing the proceedings of Congress at the present day with what they were fifty years ago, that, although the general debate on the answer to the President's message has been retrenched, there is in the course of the session quite as much discussion of topics incidentally brought in, and often to the serious obstruction of the public business, at the advanced stages of the session.

Whatever may be thought of this as a general principle, President Monroe, as we have seen, having in two successive annual messages called the attention of Congress to this subject, Mr. Webster, by way of response to these allusions, at an early period of the session offered the following resolution in the House of Representatives:—

“*Resolved*, That provision ought to be made by law for defraying the expense incident to the appointment of an agent or commissioner to Greece, whenever the President shall deem it expedient to make such appointment.”

His speech in support of this resolution was delivered on the 19th of January, 1824, in the presence of an immense audience, brought together by the interesting nature of the subject and by the fame of the speaker, now returned, after six years' absence, to the field where he had gathered early laurels, and to which he had now come back with greatly augmented reputation. The public expectation was highly excited; and it is but little to say, that it was entirely fulfilled. The speech was conceived and executed with rare felicity; and was as remarkable for what it did not, as for what it did contain. To a subject on which it was almost impossible to avoid a certain strain of classical sentiment, Mr. Webster brought a chastened taste and a severe logic. He indulged in no *ad captandum* reference to the topics which lay most obviously in his way. A single allusion to Greece, as the mistress of the world in letters and arts, found an appropriate place in the exordium. But he neither rhapsodized about the ancients, nor denounced the Turks, nor overflowed with Americanism. He treated, in a statesmanlike

manner, what he justly called “the great political question of the age,” the question “between absolute and regulated governments,” and the duty of the United States on fitting occasions to let their voice be heard on this question. He concisely reviewed the doctrines of the Continental sovereigns, as set forth in what has been called “the Holy Alliance,” and in the manifestoes of several successive congresses. He pointed out the inconsistency of these principles with those of self-government and national independence, and the duty of the United States to declare their sentiments in support of the latter. He showed that such a declaration was inconsistent with no principle of public law, and forbidden by no prudential consideration. He briefly sketched the history of the Greek revolution; and having shown that his proposal was a pacific measure, both as regards the Turkish government and the European allies, he took leave of the subject with a few manly words of sympathy for the Greeks.

He was supported by several leading members of the House,—by Mr. Clay, Mr. Stevenson of Virginia, afterwards Speaker of the House and Minister to England, and by General Houston of Tennessee; but the subject lay too far beyond the ordinary range of legislation; it gained no strength from the calculations of any of the Presidential candidates; it enlisted none of the great local interests of the country; and it was not of a nature to be pushed against opposition or indifference. It was probably with little or no expectation of carrying it, that the resolution was moved by Mr. Webster. His object was gained in the opportunity of expressing himself upon the great political question of the day. His words of encouragement were soon read in every capital and at every court of Europe, and in every Continental language; they were received with grateful emotion in Greece. At home the speech fully sustained Mr. Webster’s reputation, not merely for parliamentary talent, but for an acquaintance with general politics, which few public men in the United States give themselves the trouble to acquire,—even among those who are selected to represent the country abroad. In a letter from Mr. Jeremiah Mason, a person whose judgment on a matter of this kind was entitled to as much respect as that of any man in the community, this speech is pronounced “the best sample of parliamentary eloquence and statesmanlike reasoning which our country can show.”

It was during this session, that Mr. Webster made his great argument in the Supreme Court of the United States in the case of Gibbons and Ogden, to

which we have already alluded. It must increase the admiration with which this great constitutional effort is read, to know that the case came on in court a week or ten days earlier than Mr. Webster expected, and that it was late in the afternoon, after a severe debate in the House of Representatives on some of the details of the tariff bill, that he received the intimation that he must be ready to go into court and argue the cause the next morning. At this time his brief was not drawn out; and the statement of the argument, the selecting of the authorities, and the final digest of his materials, whether of reasoning or fact, were to be the work of the few intervening hours. It is superfluous to say that there was no long space for rest or sleep; though it seems hardly credible that the only specific premeditation of such an argument before such a tribunal should have been in the stolen watches of one night.

In the course of this session Mr. Webster, besides taking a leading part in the discussion of the details of the tariff law of 1824, made a carefully prepared speech, in reply to Mr. Clay, on some of the principles upon which he had supported it. His exposition of the popular errors on the subject of the balance of trade may be referred to as a very happy specimen of philosophical reasoning applied to commercial questions. Mr. Webster did not contest the constitutional right of Congress to lay duties for the protection of manufactures. He opposed the bill on grounds of expediency, drawn from the condition of the country at the time, and from the unfriendly bearing of some of its provisions on the navigating interests. He was the representative of the principal commercial city of New England. The great majority of his constituents were opposed to the bill; one member only from Massachusetts voted in its favor. The last sentence of the speech shows the general view which he took of the provisions of the act as a whole: "There are some parts of this bill which I highly approve; there are others in which I should acquiesce; but those to which I have now stated my objections appear to me so destitute of all justice, so burdensome and so dangerous to that interest which has steadily enriched, gallantly defended, and proudly distinguished us, that nothing can prevail upon me to give it my support." This sentence sufficiently shows with how little justice it was asserted, in 1828, that Mr. Webster had, in 1824, declared an uncompromising hostility to all legislative provision for the encouragement and protection of manufactures.

No subject of great popular interest came up for debate in the second session of the Eighteenth Congress, but the attention of Mr. Webster, as chairman of the Judiciary Committee, was assiduously devoted to a subject of great practical importance; brought forward entirely without ostentation or display, but inferior in interest to scarce any act of legislation since the first organization of the government. We refer to the act of the 3d of March, 1825, "more effectually to provide for the punishment of certain crimes against the United States, and for other purposes." This chapter in the legislation of the United States had been comparatively overlooked. The original act of the 30th of April, 1790, "for the punishment of certain crimes against the United States," deserves, in common with much of the legislation of the First Congress, the praise of great sagacity and foresight in anticipating the wants and the operation of the new system of government. Still, however, there was a class of cases, arising out of the complex nature of our system, and the twofold jurisdiction existing in the United States, which, being entirely novel in the history of other governments, was scarcely to be provided for in advance. The analysis of the English constitution here failed the able men upon whom it devolved to put the new system of government in operation. It is to be wondered at, not that some things were overlooked, but that so many were provided for.

Of the cases left thus unprovided for, more perhaps were to be found in the judiciary department than in any other. Many crimes committed on shipboard, beyond the jurisdiction of any State, or in places within the Union excepted from State jurisdiction, were unprovided for. Statutes had been enacted from time to time to supply these deficiencies; but the subject does not appear at any time to have attracted the special attention of any one whose professional knowledge and weight of character qualified him to propose a remedy. It was at length taken up by Mr. Webster, in the second session of the Eighteenth Congress. It fell appropriately within the sphere of the Committee on the Judiciary, of which he was chairman; and his own extensive practice in the courts both of the United States and of the separate States had made him well acquainted with the defects of the existing laws. He accordingly drew up what finally passed the two houses, as the sixty-fifth chapter of the laws of the second session of the Eighteenth Congress, and procured the assent of the Committee on the Judiciary to report it to the House. Some amendments of no great moment were made to it on its passage, partly on the motion of Mr. Webster himself; and partly on the

suggestion of other members of the House. As it finally passed, in twenty-six sections, it covered all the cases which had occurred in the thirty-five years which had elapsed since the law of 1790 was enacted; and it amounted to a brief, but comprehensive, code of the criminal jurisprudence of the United States, as distinct from that of the separate States.

It was Mr. Webster's object in this statute, not to enact theoretical reforms, but to remedy practical evils; to make provision for crimes which, for want of jurisdiction, had hitherto gone unpunished. It was objected to the bill, on its passage through the House, that it created a considerable number of capital offences. But these were already, in every case, capital offences either at common law or by the criminal law of the States, whenever the State tribunals were competent to take cognizance of them. It was the effect of Mr. Webster's act, not to create new offences, but to bring within the reach of a proper tribunal crimes recognized as such by all the codes of law, but which had hitherto escaped with impunity between separate jurisdictions. The bill was received with great favor by the House. Mr. Buchanan said that he highly approved its general features. "It was a disgrace," he added, "to our system of laws, that no provision had ever been made for the punishment of the crimes which it embraced, when committed in places within the jurisdiction of the United States." An eloquent argument was made by Mr. Livingston of Louisiana in favor of substituting lower penalties for capital punishment, but he failed to satisfy the House of the expediency of so great a revolution in our criminal jurisprudence. Some slight modifications of the bill were conceded to the sensitiveness of those who apprehended encroachment on State jurisdiction; but it passed substantially in the form in which it was reported by Mr. Webster. Twenty-seven years' experience have shown it to be one of the most valuable laws in the statute-book.

At this session of Congress the election of a President of the United States devolved upon the House of Representatives, in default of a popular choice. The votes of the electoral colleges were ninety-nine for General Jackson, eighty-four for Mr. Adams, forty-one for Mr. Crawford, and thirty-seven for Mr. Clay. This was the second time since the adoption of the Constitution, in 1789, that such an event had occurred. The other case was in 1801, and under the Constitution in its original form, which required the electoral colleges to vote for two persons, without designating which of the two was

to be President, and which Vice-President, the choice between the two to be decided by plurality. The Republican candidates, Thomas Jefferson and Aaron Burr, having received each an equal number of votes, it devolved upon the House of Representatives to designate one of them as President. The Constitution was immediately amended so as to require the candidates for the two offices to be designated as such in the electoral colleges; so that precisely such a case as that of 1801 can never recur. In 1824, however, no person having received a majority of all the votes, it became necessary for the House to choose a President from among the three candidates having the highest number. On these occasions the House votes, not *per capita*, but by States, the delegation of each State choosing its teller. Mr. Webster was appointed teller for the Massachusetts delegation. The number of States was twenty-four, and the tellers were seated in parties of twelve at two tables. Mr. Webster was appointed by the tellers at one of the tables to announce the result of the balloting; Mr. Randolph was appointed to the same service at the other table. The result was declared to be, for Mr. Adams thirteen votes, for General Jackson seven, and for Mr. Crawford four. The votes of most of the States were matters of confident calculation beforehand; those of Maryland and New York were in some degree doubtful. The former was supposed to depend upon the decision of Mr. Warfield; the latter on that of General Van Rensselaer. Mr. Webster possessed the political confidence of both these gentlemen; and is believed to have exerted a decisive influence in leading them to vote for Mr. Adams.

Mr. Webster had been elected to the Nineteenth Congress in the autumn of 1824, by a vote of four thousand nine hundred and ninety out of five thousand votes cast, the nearest approach to unanimity in a Congressional election, perhaps, that ever took place. The session which began in December, 1825, was of course the first session under Mr. Adams's administration. The brief armistice in party warfare which existed under Mr. Monroe was over. The friends of General Jackson *en masse*, most of the friends of Mr. Crawford, and a portion of those of Mr. Clay, joined in a violent opposition to the new administration. It would be impossible in this place to unfold the griefs, the interests, the projects, the jealousies, and the mutual struggles, of the leaders and the factions, who, with no community of political principle, entered into this warfare. The absence of any well-defined division of parties, like that which had formerly existed, gave wide scope to personal intrigue and sectional preference. Although, estimated in

reference to individual suffrages, Mr. Adams had received a popular majority; and although he was selected from the three highest candidates by an absolute majority of the States voting in the House of Representatives, and by a very large plurality over both his competitors, yet, as General Jackson had received a small plurality of votes in the electoral colleges (but a little more, however, than a third part of the entire electoral vote), he stood before the masses as a candidate wrongfully deprived of the place to which he was designated by the popular choice. Great sensibility was evinced at this defeat of the "Will of the People"; and none seemed to feel the wrong more than a portion of the friends of that one of the three candidates who had received the smallest vote, but whom there had been, nevertheless, a confident hope of electing in the House. The prejudice against Mr. Adams arising from this source derived strength from the widely circulated calumny of a corrupt understanding between him and Mr. Clay. The bare suspicion of an arrangement between party leaders to help each other into office, however groundless in point of fact, and however disproved by all the testimony which could be brought to bear on a negative proposition, was sufficient seriously to affect the popularity of both parties.

Great talent, the amplest civil experience, and the purest patriotism are an inadequate basis of strength for an administration. If the capricious and ill-defined element of what is called popularity is wanting, all else is of little avail. Mr. Adams's administration was conducted with the highest ability; it was incorruptible; it was frugal; it was tolerant of opponents to its own injury. With the exception of half a dozen editors of newspapers warmly opposed to the administration, from whom the trifling privilege of printing the laws was withdrawn, no one was removed from office for political opinion. But the administration was unpopular, and was doomed from its formation. It was supported by very able men in both houses of Congress, and of these Mr. Webster was by all acknowledgment the chief. But it failed to command the confidence of a numerical majority of the people.

The leading measure of the first session of the Nineteenth Congress was the Congress of Panama. Mr. Adams had announced in his message at the commencement of the session, that an invitation to the congress had been accepted, and that "ministers on the part of the United States would be commissioned to attend its deliberations." In announcing this purpose, it is probable that the President regarded himself as within the ordinary limits of

executive discretion. The power of nominating ambassadors and other public ministers is given by the Constitution to the President alone. No laws for the establishment of any particular missions have ever been passed, nor has any control been exercised over them by Congress beyond determining the salaries of the ministers of different ranks, and making the annual appropriations for their payment. The executive is manifestly the sole depository of the knowledge of the foreign relations of the country which is necessary to determine what missions ought to be established. Notwithstanding these obvious considerations and constitutional principles, the novel and anomalous character of the proposed Congress afforded a temptation to the opposition too strong to be resisted. The President's announcement formed the great point of attack during the first session of the new Congress. The confirmation of the ministers was vigorously resisted in the Senate, and the resolution declaring the expediency of making the requisite appropriations as strenuously opposed in the House. The mischiefs likely to result from the public discussion of the measure showed the wisdom of those constitutional provisions on which the President had acted. The opposition, in denying that the executive control of foreign relations is exclusive, showed at any rate that it ought to be, at least as far as it is made so by the Constitution. After a lapse of twenty-six years, we can scarcely believe that any doubt should have existed, on the part of men of judgment and discretion, that sound policy required that the United States should be present at such a general conference of the American powers; if for no other reason, to observe their movements. But all the motives for such a course could not be avowed, and of those that could, a part of the force was weakened by the avowal. The influence of the United States was impaired in order that the administration might be distressed.

The subject was discussed with great ability in both houses. The greater portion of the senatorial debate was with closed doors. Mr. Webster's speech in the House is far the ablest of those published. It raised the question from the wretched level of party politics to the elevation of real statesmanship. It discussed the constitutional question with a clearness and power which make us wonder that it was ever raised; and it unfolded the true nature of the proposed congress, as viewed in the light of the public law. A very important topic of the speech was an explanation of the declaration of President Monroe, in his annual message of 1823, against the interposition of the governments of Europe for the purpose of enabling

Spain to resubjugate her former colonial possessions on this continent. Mr. Webster pointed out the circumstances which warranted at the time the opinion that such interposition might be attempted; and he stated the important fact, not before known, that the purpose on the part of the United States to resist it was deliberately and unanimously formed by Mr. Monroe's cabinet, consisting at that time of Messrs. Adams, Crawford, Calhoun, Southard, and Wirt. The principles assumed in the debate on the Panama mission by the friends of Messrs. Crawford and Calhoun were greatly at variance with the spirit and tendency of the declaration, as they were with what has more recently been regarded as the true Democratic doctrine in reference to the relations of the United States to her sister republics on this continent.

The speech on the Panama question was the most considerable effort made by Mr. Webster in the Nineteenth Congress. In the interval of the two sessions, in November, 1826, he was reëlected with but a show of opposition. The eulogy upon Adams and Jefferson, of which we have already spoken, was delivered in the month of August of this year. In the month of June, 1827, Mr. Webster was elected to the Senate of the United States by a large majority of the votes of the two houses of the legislature of Massachusetts, the Hon. Mr. Mills of Northampton, who had filled that station with great ability, having declined being a candidate for reëlection in consequence of ill health.

The principal measure which occupied the attention of the two houses during the first session of the Twentieth Congress was the revision of the tariff. This measure had its origin in the distressed condition of the woollen interest, which found itself deprived (partly by the effect of the repeal of the duty on wool imported into Great Britain) of that measure of protection which the tariff law of 1824 was designed to afford. An unsuccessful attempt had been made at the last session of Congress, to pass a law exclusively for the relief of the woollen manufacturers; but no law having in view the protection of any one great interest is likely to be enacted by Congress, however called for by the particular circumstances of the case. At the present session an entire revision of the tariff was attempted. Political considerations unfortunately could not be excluded from the arrangements of the bill. A majority of the two houses was in favor of protection; but in a country so extensive as the United States, and embracing such a variety of

interests, there were different views among the friends of the policy as to the articles to be protected and the amount of protection. This diversity of opinions and supposed diversity of interests enabled those wholly opposed to the principle and policy of protection, by uniting their votes on questions of detail with members who represented local interests, to render the bill objectionable in many parts to several of its friends, and to reduce them to the alternative of either voting against it, or tolerating more or less which they deemed inexpedient, and even highly injurious. Hence it received the name of the “Bill of Abominations.”

The political motives alluded to caused the bill to be made as acceptable as possible to Pennsylvania and the other Middle States, and as unfavorable as possible to the leading interests of New England. The depression of the woollen manufactures had originally caused the revision of the tariff at this session. A heavy duty on the raw material was one of the features of the bill. But this was represented as due to the agricultural interest. The East, although it had now become eminently a manufacturing region, was still the seat of an active commerce, and largely concerned in the fisheries. The duty on molasses, a great article of consumption with the mariners and fishermen of the East, both in its natural form and that of cheap spirits, was doubled; but this, it was said, was required for the benefit of the grain-growers of the Middle States. Other provisions of this kind were introduced into the bill, in all cases with the assistance of the votes of its opponents, given in such a way as to render the bill as unpalatable as possible to the Northeastern manufacturers. Mr. Webster addressed the Senate, while the bill was before that body, exposing the objectionable features to which we have alluded. Believing, however, that the great article of woollens required the protection given it by the bill, and regarding the general system of protection as the established policy of the country and of the government, and feeling that the capital which had been invited into manufactures by former acts of legislation was now entitled to be sustained against the glut of foreign markets, fraudulent invoices, and the competition of foreign labor working at starvation wages, he gave his vote for the bill, and has ever since supported the policy of moderate protection. He has been accused of inconsistency in this respect; and by none more earnestly than by the friends of Mr. Calhoun, who was one of those influential statesmen of the South by whom, in the Fourteenth Congress, the foundation of a protective tariff was laid on the corner-stone of the square-yard duty on domestic

cotton fabrics. But he has been sustained by the great majority of his constituents and of the people of the Northern, Middle, and Northwestern States; and should the prospects of success be fulfilled with which manufactures have been attempted at the South, there is little doubt that she will at length perceive that her own interest would be promoted by upholding the same policy.

When the speech of Mr. Webster of 1824, in which he assigned his reasons for voting against the tariff law of that year, is carefully compared with his speech of 1828, just referred to, it will be found that there is no other diversity than that which was induced by the change in the state of the country itself in reference to its manufacturing interests, and by the course pursued in reference to the details of the bill by those opposed to protection *in toto*. It is the best proof of this, that, in the former edition of Mr. Webster's works, the two speeches were, for more easy comparison, placed side by side.

FOOTNOTES

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See North American Review, Vol. XVII. p. 414.

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CHAPTER VI.

Election of General Jackson.—Debate on Foot's Resolution.—Subject of the Resolution, and Objects of its Mover.—Mr. Hayne's First Speech.—Mr. Webster's original Participation in the Debate unpremeditated.—His First Speech.—Reply of Mr. Hayne with increased Asperity.—Mr. Webster's Great Speech.—Its Threefold Object.—Description of the Manner of Mr. Webster in the Delivery of this Speech, from Mr. March's "Reminiscences of Congress."—Reception of his Speech throughout the Country.—The Dinner at New York.—Chancellor Kent's Remarks.—Final Disposal of Foot's Resolution.—Report of Mr. Webster's Speech.—Mr. Healey's Painting.

In the interval between the two sessions of the Twentieth Congress, the Presidential election was decided. Mr. Adams and General Jackson were the opposing candidates; and the latter was chosen by a large popular majority. This result was brought about by the active coöperation with General

Jackson's original supporters of the friends of Mr. Calhoun, and many of the friends of the other candidates of 1824. This coöperation implied the combination of the most discordant materials, which did not, however, prevent its members during the canvass from heaping the bitterest reproaches upon Mr. Adams's administration for receiving the support of Mr. Clay. That there was no cordiality among the component elements of the party by which General Jackson was elevated to the chair was soon quite apparent.

The first session of the Twenty-first Congress, that of 1829-30, is rendered memorable in the history of Mr. Webster, as well as in the parliamentary history of the country, by what has been called the debate on Foot's resolution, in which Mr. Webster delivered the speech which is usually regarded as his ablest, and which may probably with truth be pronounced the most celebrated speech ever delivered in Congress. The great importance of this effort will no doubt be considered as a sufficient reason for relating somewhat in detail the circumstances under which it was made.

The debate arose in the following manner.

On the 29th of December, 1829, Mr. Foot, one of the Senators from Connecticut, moved the following resolution:—

“Resolved, That the Committee on Public Lands be instructed to inquire and report ^{the}^{xviii} the quantity of public lands remaining unsold within each State and Territory, and whether it be expedient to limit for a certain period the sales of the public lands to such lands only as have heretofore been offered for sale, and are now subject to entry at the *minimum* price. And, also, whether the office of Surveyor-General, and some of the land offices, may not be abolished without detriment to the public interest.”

There is no reason to believe that, in bringing forward this resolution, Mr. Foot acted in concert with any other member of the Senate. When it came up for consideration the next day, the mover stated that he had been induced to offer the resolution from having at the last session examined the report of the Commissioner of the Land Office, from which it appeared that the quantity of land remaining unsold at the *minimum* price of one dollar and twenty-five cents per acre exceeded seventy-two millions of acres; while it appeared from the commissioner's report at this session, that the annual demand was not likely to exceed a million of acres at present, although of course it might be expected somewhat to increase with the growth of the population.

This resolution, though one of inquiry only, was resisted. It was represented by Mr. Benton of Missouri as a resolution to inquire into the expediency of committing a great injury upon the new States of the West. Mr. Holmes of Maine supported the resolution, as one of inquiry into an important subject. Mr. Foot disclaimed every purpose unfriendly to the West, and at the close of the conversation (in which Mr. Webster took no part), it was agreed that the consideration of the resolution should be postponed to the 11th of January, and made the special order of the day for that day. In this manner, it often happens that a resolution of inquiry on a business question of no urgent importance, intended to have no political bearing, and brought forward without concert with others by an individual, becomes by delay the theme of impassioned debates for weeks and months, to the serious obstruction of the real business of Congress. In the present case, it must be admitted that the loss of the public time thus occasioned was amply made up, by the importance of the speech which has given celebrity to the debate.

The consideration of Mr. Foot's resolution was not resumed till Wednesday, the 13th of January, when it was opposed by several Western gentlemen. It was next taken up on Monday, the 18th, when Mr. Benton of Missouri spoke at length against it. On Tuesday, the 19th, Mr. Holmes of Maine replied at no great length to Mr. Benton. Other members took some part in the debate, and then Mr. Hayne of South Carolina commenced a speech, which occupied the rest of the day. Mr. Hayne was one of the younger members of the Senate. He came forward in his native State in 1814, when hardly of age, with great *éclat*, filled in rapid succession responsible offices, and came to the Senate of the United States in 1823, with a reputation already brilliant, and rapidly increasing. He was active and diligent in business, fluent, graceful, and persuasive as a debater; of a sanguine and self-relying temper; shrinking from no antagonist, and disposed to take the part of a champion.

Mr. Webster, up to this time, had not participated in the debate, which had in fact been rather a pointless affair, and was dragging its slow length through the Senate, no one knew exactly to what purpose. It had as yet assumed no character in which it invited or required his attention. He was much engaged at the time in the Supreme Court of the United States. The important case of John Jacob Astor and the State of New York, in which he was of counsel, was to come on for argument on the 20th of January; and on

that day the argument of the case was in fact commenced.^[12] Leaving the court-room when the court adjourned on Tuesday, the 19th, Mr. Webster came into the Senate in season to hear the greater part of Mr. Hayne's speech; and it was suggested to him by several friends, and among others by Mr. Bell of New Hampshire, Mr. Chambers of Maryland, and his colleague, Mr. Silsbee, that an immediate answer to Mr. Hayne was due from him. The line of discussion pursued by the Senator from South Carolina was such as to require, if not to provoke, an immediate answer from the North. Mr. Webster accordingly rose when Mr. Hayne took his seat, but gave way to a motion for adjournment from Mr. Benton. These circumstances will sufficiently show how entirely without premeditation, and with what preoccupation by other trains of thought, Mr. Webster was led into this great intellectual conflict.

He appeared in the Senate the next morning, Wednesday, January 20th, and Mr. Foot's resolution, being called up, was modified, on the suggestion of Messrs. Sprague of Maine and Woodbury of New Hampshire, by adding the following clause:—

“Or whether it be expedient to adopt measures to hasten the sales and extend more rapidly the surveys of the public lands.”

Mr. Webster immediately proceeded with the debate. No elaborate preparation, of course, could have been made by him, as the speech of Mr. Hayne, to which his reply was mainly directed, was delivered the day before. He vindicated the government, under its successive administrations, from the general charge of having managed the public lands in a spirit of hostility to the Western States. He particularly defended New England against the accusation of hostility to the West. A passage in this part of his speech, contrasting Ohio as she was in 1794 with the Ohio of 1830, will compare advantageously with any thing in these volumes. In speaking of the settlement of the West, Mr. Webster introduced with just commendation the honored name of Nathan Dane, as the author of the Ordinance of 1787, for the organization and government of the territory northwest of the Ohio. He maintained that every measure of legislation beneficial to the West had been carried in Congress by the aid of New England votes, and he closed by an allusion to his own course as uniformly friendly to that part of the Union. Mr. Benton followed Mr. Webster, and commenced a speech in reply.

The next day, Thursday, the 21st, the subject again came up, and it was now evident that the debate had put on a new character. Its real interest and importance were felt to be commencing. Mr. Chambers expressed the hope that the Senate would consent to postpone the further consideration of the resolution till the next Monday, as Mr. Webster, who had engaged in the discussion and wished to be present when it should be resumed, had pressing engagements out of the house, and could not conveniently give his attendance in the Senate before Monday.^[13] Mr. Hayne said “he saw the gentleman from Massachusetts in his seat, and presumed he could make an arrangement which would enable him to be present here, during the discussion to-day. He was unwilling that this subject should be postponed before he had an opportunity of replying to some of the observations which had fallen from that gentleman yesterday. He would not deny that some things had fallen from him which rankled^[14] here (touching his breast), from which he would desire at once to relieve himself. The gentleman had discharged his fire in the presence of the Senate. He hoped he would now afford him an opportunity of returning the shot.”

The manner in which this was said was not such as to soften the harshness of the sentiment. It will be difficult, in reverting to Mr. Webster’s speech, to find either in its substance or spirit any adequate grounds for the feeling manifested by Mr. Hayne. Nor would it probably be easy in the history of Congress to find another case in which a similar act of accommodation in the way of postponing a subject has been refused, at least on such a ground. Mr. Webster, in reply to Mr. Hayne’s remark, that he wished without delay to return his shot, said, “Let the discussion proceed; I am ready now to receive the gentleman’s fire.”

Mr. Benton then addressed the Senate for about an hour, in conclusion of the speech which he had commenced the day before. At the close of Mr. Benton’s argument, Mr. Bell of New Hampshire moved that the further consideration of the subject should be postponed till Monday, but the motion was negatived. Mr. Hayne then took the floor, and spoke for about an hour in reply to Mr. Webster’s remarks of the preceding day. Before he had concluded his argument, the Senate adjourned till Monday. On that day, January the 25th, he spoke for two hours and a half, and completed his speech. Mr. Webster immediately rose to reply, but the day was far advanced, and he yielded to a motion for adjournment.

The second speech of Mr. Hayne, to which Mr. Webster was now called upon to reply, was still more strongly characterized than the first with severity, not to say bitterness, towards the Eastern States. The tone toward Mr. Webster personally was not courteous. It bordered on the offensive. It was difficult not to find in both of the speeches of the Senator from South Carolina the indication of a preconceived purpose to hold up New England, and Mr. Webster as her most distinguished representative, to public odium. In his second speech, Mr. Hayne reaffirmed and urged those constitutional opinions which are usually known as the doctrines of Nullification; that is to say, the assumed right of a State, when she deems herself oppressed by an unconstitutional act of Congress, to declare by State ordinance the act of Congress null and void, and discharge the citizens of the State from the duty of obedience.

Such being the character of Mr. Hayne's speech, Mr. Webster had three objects to accomplish in his answer. The first was to repel the personalities toward himself, which formed one of the most prominent features of Mr. Hayne's speech. This object was accomplished by a few retaliatory strokes, in which the severest sarcasm was so mingled with unaffected good humor and manly expostulation, as to carry captive the sympathy of the audience. The vindication of the Eastern States generally, and of Massachusetts in particular, was the second object, and was pursued in a still higher strain. When it was finished, no one probably regretted more keenly than the accomplished antagonist the easy credence which he had lent to the purveyors of forgotten scandal, some of whom were present, and felt grateful for their obscurity.

The third and far the more important object with Mr. Webster was the constitutional argument, in which he asserted the character of our political system as a government established by the people of the United States, in contradistinction to a compact between the separate States; and exposed the fallacy of attempting to turn the natural right of revolution against the government into a right reserved under the Constitution to overturn the government itself.

Several chapters of the interesting work of Mr. March, already referred to, [\[15\]](#) are devoted to the subject of this debate; and we have thought that we could in no way convey to the reader so just and distinct an impression of

the effect of Mr. Webster's speech at the time of its delivery, as by borrowing largely from his animated pages.

"It was on Tuesday, January the 26th, 1830,—a day to be hereafter for ever memorable in Senatorial annals,—that the Senate resumed the consideration of Foot's resolution. There^{xciii} never was before, in the city, an occasion of so much excitement. To witness this great intellectual contest, multitudes of strangers had for two or three days previous been rushing into the city, and the hotels overflowed. As early as 9 o'clock of this morning, crowds poured into the Capitol, in hot haste; at 12 o'clock, the hour of meeting, the Senate-chamber—its galleries, floor, and even lobbies—was filled to its utmost capacity. The very stairways were dark with men, who clung to one another, like bees in a swarm.

"The House of Representatives was early deserted. An adjournment would have hardly made it emptier. The Speaker, it is true, retained his chair, but no business of moment was, or could be, attended to. Members all rushed in to hear Mr. Webster, and no call of the House or other parliamentary proceedings could compel them back. The floor of the Senate was so densely crowded, that persons once in could not get out, nor change their position; in the rear of the Vice-Presidential chair, the crowd was particularly intense. Dixon H. Lewis, then a Representative from Alabama, became wedged in here. From his enormous size, it was impossible for him to move without displacing a vast portion of the multitude. Unfortunately, too, for him, he was jammed in directly behind the chair of the Vice-President, where he could not see, and hardly hear, the speaker. By slow and laborious effort, pausing occasionally to breathe, he gained one of the windows, which, constructed of painted glass, flank the chair of the Vice-President on either side. Here he paused, unable to make more headway. But determined to see Mr. Webster as he spoke, with his knife he made a large hole in one of the panes of the glass; which is still visible as he made it. Many were so placed as not to be able to see the speaker at all.

"The courtesy of Senators accorded to the fairer sex room on the floor—the most gallant of them, their own seats. The gay bonnets and brilliant dresses threw a varied and picturesque beauty over the scene, softening and embellishing it.

"Seldom, if ever, has speaker in this or any other country had more powerful incentives to exertion; a subject, the determination of which involved the most important interests, and even duration, of the republic; competitors, unequalled in reputation, ability, or position; a name to make still more glorious, or lose for ever; and an audience, comprising not only persons of this country most eminent in intellectual greatness, but representatives of other nations, where the art of eloquence had flourished for ages. All the soldier seeks in opportunity was here.

"Mr. Webster perceived, and felt equal to, the destinies of the moment. The very greatness of the hazard exhilarated him. His spirits rose with the occasion. He awaited the time of onset with a stern and impatient joy. He felt like the war-horse of the Scriptures, who^{xciv} 'paweth in the valley, and rejoiceth in his strength: who goeth on to meet the armed men,—who saith among the trumpets, Ha, ha! and who smelleth the battle afar off, the thunder of the captains and the shouting.'

"A confidence in his own resources, springing from no vain estimate of his power, but the legitimate offspring of previous severe mental discipline, sustained and excited him. He had gauged his opponents, his subject, and *himself*.

"He was, too, at this period, in the very prime of manhood. He had reached middle age,—an era in the life of man when the faculties, physical or intellectual, may be supposed to

attain their fullest organization and most perfect development. Whatever there was in him of intellectual energy and vitality, the occasion, his full life, and high ambition might well bring forth.

“He never rose on an ordinary occasion to address an ordinary audience more self-possessed. There was no tremulousness in his voice nor manner; nothing hurried, nothing simulated. The calmness of superior strength was visible everywhere; in countenance, voice, and bearing. A deep-seated conviction of the extraordinary character of the emergency, and of his ability to control it, seemed to possess him wholly. If an observer, more than ordinarily keen-sighted, detected at times something like exultation in his eye, he presumed it sprang from the excitement of the moment, and the anticipation of victory.

“The anxiety to hear the speech was so intense, irrepressible, and universal, that no sooner had the Vice-President assumed the chair, than a motion was made, and unanimously carried, to postpone the ordinary preliminaries of Senatorial action, and to take up immediately the consideration of the resolution.

“Mr. Webster rose and addressed the Senate. His exordium is known by heart everywhere: ‘Mr. President, when the mariner has been tossed, for many days, in thick weather, and on an unknown sea, he naturally avails himself of the first pause in the storm, the earliest glance of the sun, to take his latitude, and ascertain how far the elements have driven him from his true course. Let us imitate this prudence, and, before we float farther on the waves of this debate, refer to the point from which we departed, that we may at least be able to conjecture where we now are. I ask for the reading of the resolution before the Senate.’

“There wanted no more to enchain the attention. There was a spontaneous, though silent, expression of eager approbation, as the orator concluded these opening remarks. And while the clerk read the resolution, many attempted the impossibility of getting nearer the speaker. Every head was inclined closer towards him, every ear turned in the direction of his voice, and that deep, sudden, mysterious silence followed, which always attends fulness of emotion. From the sea of upturned faces before him, the orator beheld his thoughts reflected as from a mirror. The varying countenance, the suffused eye, the earnest smile, the ever-attentive look, assured him of his audience’s entire sympathy. If among his hearers there were those who affected at first an indifference to his glowing thoughts and fervent periods, the difficult mask was soon laid aside, and profound, undisguised, devoted attention followed. In the earlier part of his speech, one of his principal opponents seemed deeply engrossed in the careful perusal of a newspaper he held before his face; but this, on nearer approach, proved to be *upside down*. In truth, all, sooner or later, voluntarily, or in spite of themselves, were wholly carried away by the eloquence of the orator.

“Those who had doubted Mr. Webster’s ability to cope with and overcome his opponents were fully satisfied of their error before he had proceeded far in his speech. Their fears soon took another direction. When they heard his sentences of powerful thought, towering in accumulative grandeur, one above the other, as if the orator strove, Titan-like, to reach the very heavens themselves, they were giddy with an apprehension that he would break down in his flight. They dared not believe that genius, learning, and intellectual endowment however uncommon, that was simply mortal, could sustain itself long in a career seemingly so perilous. They feared an Icarian fall.

“What New England heart was there but throbbed with vehement, tumultuous, irrepressible emotion, as he dwelt upon New England sufferings, New England struggles, and New England triumphs during the war of the Revolution? There was scarcely a dry eye in the

Senate; all hearts were overcome; grave judges and men grown old in dignified life turned aside their heads, to conceal the evidences of their emotion.

“In one corner of the gallery was clustered a group of Massachusetts men. They had hung from the first moment upon the words of the speaker, with feelings variously but always warmly excited, deepening in intensity as he proceeded. At first, while the orator was going through his exordium, they held their breath and hid their faces, mindful of the savage attack upon him and New England, and the fearful odds against him, her champion;—as he went deeper into his speech, they felt easier; when he turned Hayne’s flank on Banquo’s ghost, they breathed freer and deeper. But now, as he alluded to Massachusetts, their feelings were strained to the highest tension; and when the orator, concluding his encomium of the land of their birth, turned, intentionally or otherwise, his burning eye full upon them, *they shed tears like girls!*

“No one who was not present can understand the excitement of the scene. No one who ^{xcvi} was, can give an adequate description of it. No word-painting can convey the deep, intense enthusiasm, the reverential attention, of that vast assembly, nor limner transfer to canvas their earnest, eager, awe-struck countenances. Though language were as subtle and flexible as thought, it still would be impossible to represent the full idea of the scene. There is something intangible in an emotion, which cannot be transferred. The nicer shades of feeling elude pursuit. Every description, therefore, of the occasion, seems to the narrator himself most tame, spiritless, unjust.

“Much of the instantaneous effect of the speech arose, of course, from the orator’s delivery,—the tones of his voice, his countenance, and manner. These die mostly with the occasion that calls them forth; the impression is lost in the attempt at transmission from one mind to another. They can only be described in general terms. ‘Of the effectiveness of Mr. Webster’s manner in many parts,’ says Mr. Everett, ‘it would be in vain to attempt to give any one not present the faintest idea. It has been my fortune to hear some of the ablest speeches of the greatest living orators on both sides of the water, but I must confess I never heard any thing which so completely realized my conception of what Demosthenes was when he delivered the Oration for the Crown.’

“The variety of incident during the speech, and the rapid fluctuation of passions, kept the audience in continual expectation and ceaseless agitation. There was no chord of the heart the orator did not strike, as with a master-hand. The speech was a complete drama of comic and pathetic scenes; one varied excitement; laughter and tears gaining alternate victory.

“A great portion of the speech is strictly argumentative; an exposition of constitutional law. But grave as such portion necessarily is, severely logical, abounding in no fancy or episode, it engrossed throughout the undivided attention of every intelligent hearer. Abstractions, under the glowing genius of the orator, acquired a beauty, a vitality, a power to thrill the blood and enkindle the affections, awakening into earnest activity many a dormant faculty. His ponderous syllables had an energy, a vehemence of meaning in them, that fascinated, while they startled. His thoughts in their statuesque beauty merely would have gained all critical judgment; but he realized the antique fable, and warmed the marble into life. There was a sense of power in his language,—of power withheld and suggestive of still greater power,—that subdued, as by a spell of mystery, the hearts of all. For power, whether intellectual or physical, produces in its earnest development a feeling closely allied to awe. It was never more felt than on this occasion. It had entire mastery. The sex ^{xcvii} which is said to love it best, and abuse it most, seemed as much or more carried away than the sterner one. Many who had entered the hall with light, gay thoughts, anticipating at

most a pleasurable excitement, soon became deeply interested in the speaker and his subject; surrendered him their entire heart; and when the speech was over, and they left the hall, it was with sadder, perhaps, but surely with far more elevated and ennobling emotions.

“The exulting rush of feeling with which he went through the peroration threw a glow over his countenance, like inspiration. Eye, brow, each feature, every line of the face, seemed touched, as with a celestial fire.

“The swell and roll of his voice struck upon the ears of the spellbound audience, in deep and melodious cadence, as waves upon the shore of the ‘far-resounding’ sea. The Miltonic grandeur of his words was the fit expression of his thought, and raised his hearers up to his theme. His voice, exerted to its utmost power, penetrated every recess or corner of the Senate,—penetrated even the ante-rooms and stairways, as he pronounced in deepest tones of pathos these words of solemn significance: ‘When my eyes shall be turned to behold, for the last time, the sun in heaven, may I not see him shining on the broken and dishonored fragments of a once glorious Union; on States dissevered, discordant, belligerent; on a land rent with civil feuds, or drenched, it may be, in fraternal blood! Let their last feeble and lingering glance rather behold the gorgeous ensign of the republic, now known and honored throughout the earth, still full high advanced, its arms and trophies streaming in their original lustre, not a stripe erased or polluted, nor a single star obscured, bearing for its motto, no such miserable interrogatory as, “What is all this worth?” nor those other words of delusion and folly, “Liberty first and Union afterwards”; but everywhere, spread all over in characters of living light, blazing on all its ample folds, as they float over the sea and over the land, and in every wind under the whole heavens, that other sentiment, dear to every American heart,—LIBERTY AND UNION, NOW AND FOR EVER, ONE AND INSEPARABLE!’

“The speech was over, but the tones of the orator still lingered upon the ear, and the audience, unconscious of the close, retained their positions. The agitated countenance, the heaving breast, the suffused eye, attested the continued influence of the spell upon them. Hands that, in the excitement of the moment, had sought each other, still remained closed in an unconscious grasp. Eye still turned to eye, to receive and repay mutual sympathy; and everywhere around seemed forgetfulness of all but the orator’s presence and words.”—pp. 132-148.

After having spoken about three hours on the 26th of January, Mr. Webster gave way for an adjournment. He resumed and concluded the speech on the following day. During most of the time that he was speaking, Mr. Hayne occupied himself in taking notes, and rose to reply at the conclusion of Mr. Webster’s argument. An adjournment was proposed by one of Mr. Hayne’s friends, but he wisely determined to terminate all that he intended to say on the subject upon the spot. He accordingly addressed the Senate for about half an hour upon the constitutional question which formed the most important portion of Mr. Webster’s speech. These remarks of Mr. Hayne were, in the newspaper report, expanded into an elaborate argument, which occupies nineteen pages in the register of Congressional debates. When Mr. Hayne sat down, Mr. Webster, in turn, rose to make a brief rejoinder. “The

gentleman,” said he, “has in vain attempted to reconstruct his shattered argument”; and this formidable exordium was followed up by a brief restatement of his own argument, which, for condensation, precision, and force, may be referred to as a specimen of parliamentary logic never surpassed. The art of reasoning on moral questions can go no further.

Thus terminated the day’s great work. In the evening the Senatorial champions met at a friend’s house, and exchanged those courteous salutations which mitigate the asperity of political collision, and prevent the conflicts of party from embittering social life.

The sensation produced by the great debate on those who heard it was but the earnest of its effect on the country at large. The length of Mr. Webster’s speech did not prevent its being copied into the leading newspapers throughout the country. It was the universal theme of conversation. Letters of acknowledgment and congratulation from the most distinguished individuals, from politicians retired from active life, from entire strangers, from persons not sympathizing with all Mr. Webster’s views, from distant parts of the Union, were addressed to him by every mail. Immense editions of the speech in a pamphlet form were called for. A proposal was made to the friends of Mr. Hayne to unite in the publication of a joint edition of the two speeches for general circulation throughout the country, but this offer was declined. Mr. Webster’s friends in Boston published a pamphlet edition of the speeches of Mr. Hayne and Mr. Webster. It is no exaggeration to say, that throughout the country Mr. Webster’s speech was regarded, not only as a brilliant and successful personal defence and a triumphant vindication of New England, but as a complete overthrow of the dangerous constitutional heresies which had menaced the stability of the Union.

In this light it was looked upon by a large number of the most distinguished citizens of New York, who took occasion to offer Mr. Webster the compliment of a public dinner the following winter. Circumstances delayed the execution of their purpose till some time had elapsed from the delivery of the speech, but the recollection of it was vivid, and it was referred to by Chancellor Kent, the president of the day, as the service especially demanding the grateful recognition of the country. After alluding to the debate on Foot’s resolution and to the character of Mr. Webster’s speech, the venerable Chancellor added:—

“The consequences of that discussion have been extremely beneficial. It turned the attention of the public to the great doctrines of national rights and national union. Constitutional law ceased to remain wrapped up in the breasts, and taught only by the responses, of the living oracles of the law. Socrates was said to have drawn down philosophy from the skies, and scattered it among the schools. It may with equal truth be said that constitutional law, by means of those senatorial discussions and the master genius that guided them, was rescued from the archives of our tribunals and the libraries of our lawyers, and placed under the eye and submitted to the judgment of the American people. *Their verdict is with us, and from it there lies no appeal.*”^[16]

With respect to Mr. Foot’s resolution it may be observed, that it continued before the Senate a long time, a standing subject of discussion. One half at least of the members of the Senate took part in the debate, which daily assumed a wider range and wandered farther from the starting-point. Many speeches were made which, under other circumstances, would have attracted notice, but the interest of the controversy expired with the great effort of the 26th and 27th of January. At length, on the 21st of May, a motion for indefinite postponement, submitted by Mr. Webster at the close of his first speech, prevailed, and thus the whole discussion ended.

It may be worthy of remark, that Mr. Webster’s speech was taken in shorthand by Mr. Gales, the veteran editor of the National Intelligencer, a stenographer of great experience and skill. It was written out in common hand by a member of his family, and sent to Mr. Webster for correction. It remained in his hands for that purpose a part of one day, and then went to the press.

A young and gifted American artist,^[17] whose talents had been largely put in requisition by King Louis Philippe to adorn the walls of Versailles, conceived a few years ago the happy idea of a grand historical picture of this debate. On a canvas of the largest size he has nobly delineated the person of the principal individual in the act of replying to Mr. Hayne, with those of his colleagues in the Senate. The passages and galleries of the Senate-Chamber are filled with attentive listeners of both sexes. Above a hundred accurate studies from life give authenticity to a work in which posterity will find the sensible presentment of this great intellectual effort.

FOOTNOTES

^[12]

This case is known as that of Carver's Lessees against John Jacob Astor, and is reported in 4 Peters, I.

[13]

Mr. Chambers referred to the case in court just mentioned, in which Mr. Webster was engaged, and in which the argument had already begun.

[14]

Mr. Hayne subsequently disclaimed having used this word.

[15]

Reminiscences of Congress.

[16]

Chancellor Kent's remarks are given entire in the introduction to Mr. Webster's Speech at the New York Dinner, Vol. I. p. 194.

[17]

Mr. Geo. P. A. Healey.

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CHAPTER VII.

General Character of President Jackson's Administrations.—Speedy Discord among the Parties which had united for his Elevation.—Mr. Webster's Relations to the Administration.—Veto of the Bank.—Rise and Progress of Nullification in South Carolina.—The Force Bill, and the Reliance of General Jackson's Administration on Mr. Webster's Aid.—His Speech in Defence of the Bill, and in Opposition to Mr. Calhoun's Resolutions.—Mr. Madison's Letter on Secession.—The Removal of the Deposits.—Motives for that Measure.—The Resolution of the Senate disapproving it.—The President's Protest.—Mr. Webster's Speech on the Subject of the Protest.—Opinions of Chancellor Kent and Mr. Tazewell.—The Expunging Resolution.—Mr. Webster's Protest against it.—Mr. Van Buren's Election.—The Financial Crisis and the Extra Session of Congress.—The Government Plan of Finance supported by Mr. Calhoun and opposed by Mr. Webster.—Personalities.—Mr. Webster's Visit to Europe and distinguished Reception.—The Presidential Canvass of 1840.—Election of General Harrison.

It would require a volume of ample dimensions to relate the history of Mr. Webster's Senatorial career from this time till the accession of General Harrison to the Presidency, in 1841. In this interval the government was administered for two successive terms by General Jackson, and for a single term by Mr. Van Buren. It was a period filled with incidents of great importance in various departments of the government, often of a startling character at the time, and not less frequently exerting a permanent influence

on the condition of the country. It may be stated as the general characteristic of the political tendencies of this period, that there was a decided weakening of respect for constitutional restraint. Vague ideas of executive discretion prevailed on the one hand in the interpretation of the Constitution, and of popular sovereignty on the other, as represented by a President elevated to office by overwhelming majorities of the people. The expulsion of the Indian tribes from the Southern States, in violation of the faith of treaties and in open disregard of the opinion of the Supreme Court of the United States as to their obligation; the claim of a right on the part of a State to nullify an act of the general government; the violation of the charter of the bank, and the Presidential veto of the act of Congress rechartering it; the deposit of the public money in the selected State banks with a view to its safe keeping and for the greater encouragement of trade by the loan of the public funds; the explosion of this system, and the adoption of one directly opposed to it, which rejected wholly the aid of the banks and denied the right of the government to employ the public funds for any but fiscal purposes; the executive menaces of war against France; the unsuccessful attempt of Mr. Van Buren's administration to carry on the government upon General Jackson's system; the panic of 1837, succeeded by the general uprising of the country and the universal demand for a change of men and measures,—these are the leading incidents in the chronicle of the period in question. Most of the events referred to are discussed in the following volumes. On some of them Mr. Webster put forth all his power. The questions pertaining to the construction of the Constitution, to the bank, to the veto power, to the currency, to the constitutionality of the tariff, to the right of removal from office, and to the finances, were discussed in almost every conceivable form, and with every variety of argument and illustration.

It has already been observed, that General Jackson was brought into power by a somewhat ill-compacted alliance between his original friends and a portion of the friends of the other candidates of 1824. As far as Mr. Calhoun and his followers were concerned, the cordiality of the union was gone before the inauguration of the new President. There was not only on the list of the cabinet to be appointed no adequate representative of the Vice-President, but his rival candidate for the succession (Mr. Van Buren) was placed at the head of the administration. There is reason to suppose that General Jackson, who, though his policy tended greatly to impair the

strength of the Union, was in feeling a warm Unionist, witnessed with no dissatisfaction the result of the great constitutional debate and its influence upon the country.

But the effect of this debate on the friendly relations of Mr. Webster with the administration was in some degree neutralized by the incidents of the second session of the Twenty-first Congress. Mr. Van Buren had retreated before the embarrassments of the position in which he found himself in the Department of State, and had accepted the mission to England. The instructions which he had given to Mr. McLane in 1829, in reference to the adjustment of the question relative to the colonial trade, were deemed highly objectionable by a majority of the Senate, as bringing the relations of our domestic parties to the notice of a foreign government, and founding upon a change of administration an argument for the concession of what was deemed and called "a boon" by the British government. In order to mark the spirit of these instructions with the disapprobation of the Senate, the nomination of Mr. Van Buren as Minister to England was negatived by a majority of that body. While the subject was under discussion, Mr. Clay, Mr. Webster, and Mr. Calhoun took the same view of this delicate question. It will be found treated in the speech of Mr. Webster of the 24th of January, 1832, with all the gravity, temper, and moderation which its importance demanded.

In the Twenty-second Congress (the second of General Jackson's administration) the bank question became prominent. General Jackson had in his first message called the attention of Congress to the subject of the bank. No doubt of its constitutionality was then intimated by him. In the course of a year or two an attempt was made, on the part of the executive, to control the appointment of the officers of one of the Eastern branches. This attempt was resisted by the bank, and from that time forward a state of warfare, at first partially disguised, but finally open and flagrant, existed between the government and the directors of the institution. In the first session of the Twenty-second Congress (1831-32), a bill was introduced by Mr. Dallas, and passed the two houses, to renew the charter of the bank. This measure was supported by Mr. Webster, on the ground of the importance of a national bank to the fiscal operations of the government, and to the currency, exchange, and general business of the country. No specific complaints of mismanagement had then been made, nor were any

abuses alleged to exist. The bank was, almost without exception, popular at that time with the business interests of the country, and particularly at the South and West. Its credit in England was solid; its bills and drafts on London took the place of specie for remittances to India and China. Its convenience and usefulness were recognized in the report of the Secretary of the Treasury (Mr. McLane), at the same time that its constitutionality was questioned and its existence threatened by the President. So completely, however, was the policy of General Jackson's administration the impulse of his own feelings and individual impressions, and so imperfectly had these been disclosed on the present occasion, that the fate of the bill for rechartering the bank was a matter of uncertainty on the part both of adherents and opponents. Many persons on both sides of the two houses were taken by surprise by the veto. When the same question was to be decided by General Washington, he took the opinion in writing of every member of the Cabinet.

But events of a different complexion soon occurred, and gave a new direction to the thoughts of men throughout the country. The opposition of South Carolina to the protective policy had been pushed to a point of excitement at which it was beyond the control of party leaders. Although, as we have seen, that policy had in 1816 been established by the aid of distinguished statesmen of South Carolina, who saw in the success of American cotton manufactures a new market for the staple of the South, in which it would take the place of the cotton of India, the protective policy at a later period had come to be generally considered unconstitutional at the South. A change of opinion somewhat similar had taken place in New England, which had been originally opposed to this policy, as adverse to the commercial and navigating interests. Experience gradually showed that such was not the case. The enactment of the law of 1824 was considered as establishing the general principle of protection as the policy of the country. It was known to be the policy of the great central States. The capital of the North was to some extent forced into new channels. Some branches of manufactures flourished, as skill was acquired and improvements in machinery made. The coarse cotton fabrics which had enjoyed the protection of the *minimum* duty prospered, manufacturing villages grew up, the price of the fabric fell, and as competition increased the tariff did little more than protect the domestic manufacturer from fraudulent invoices and the fluctuation of foreign markets. Thus all parties were benefited, not

excepting the South, which gained a new customer for her staple. These changes in the condition of things led Mr. Webster, as we have remarked in a former chapter, to modify his course on the tariff question.

Unfortunately, no manufactures had been established at the South. The vast quantities of new and fertile land opened in the west of Georgia, in Alabama, and Mississippi, injured the value of the old and partly exhausted lands of the Atlantic States. Labor was drawn off to found plantations in the new States, and the injurious consequences were ascribed to the tariff. Considerations of a political nature had entirely changed the tolerant feeling which, up to a certain period, had been shown by one class of Southern politicians toward the protective policy. With the exception of Louisiana, and one or two votes in Virginia, the whole South was united against the tariff. South Carolina had suffered most by the inability of her worn lands to sustain the competition with the lands of the Yazoo and the Red River, and to her the most active opposition, under the lead of Mr. Calhoun, was confined. The modern doctrine of nullification was broached by her accomplished statesmen, and an unsuccessful attempt made to deduce it from the Virginia resolutions of 1798. Mr. Madison, in a letter addressed to the writer of these pages,^[18] in August, 1830, firmly resisted this attempt; and, as a theory, the whole doctrine of nullification was overthrown by Mr. Webster, in his speech of the 26th of January, 1830. But public sentiment had gone too far in South Carolina to be checked; party leaders were too deeply committed to retreat; and at the close of 1832 the ordinance of nullification was adopted by a State convention.

This decisive act roused the hero of New Orleans from the vigilant repose with which he had watched the coming storm. Confidential orders to hold themselves in readiness for active service were sent in every direction to the officers of the army and the navy. Prudent and resolute men were quietly stationed at the proper posts. Arms and munitions in abundance were held in readiness, and a chain of expresses in advance of the mail was established from the Capitol to Charleston. These preparations made, the Presidential proclamation of the 11th of December, 1832, was issued. It was written by Mr. Edward Livingston, then Secretary of State, from notes furnished by General Jackson himself; but there is not an idea of importance in it which may not be found in Mr. Webster's speech on Foot's resolution.

The proclamation of the President was met by the counter-proclamation of Governor Hayne; and the State of South Carolina proceeded to pass laws for carrying the ordinance of nullification into effect, and for putting the State into a condition to carry on war with the general government. In this posture of affairs the President of the United States laid the matter before Congress, in his message of the 16th of January, 1833, and the bill "further to provide for the collection of duties on imports" was introduced into the Senate, in pursuance of his recommendations. Mr. Calhoun was at this time a member of that body, having been chosen to succeed Governor Hayne, and having of course resigned the office of Vice-President. Thus called, for the first time, to sustain in person before the Senate and the country the policy of nullification, which had been adopted by South Carolina mainly under his influence, and which was now threatening the Union, it hardly need be said that he exerted all his ability, and put forth all his resources, in defence of the doctrine which had brought his State to the verge of revolution. It is but justice to add, that he met the occasion with equal courage and vigor. The bill "to make further provision for the collection of the revenue," or "Force Bill," as it was called, was reported by Mr. Wilkins from the Committee on the Judiciary on the 21st of January, and on the following day Mr. Calhoun moved a series of resolutions, affirming the right of a State to annul, as far as her citizens are concerned, any act of Congress which she may deem oppressive and unconstitutional. On the 15th and 16th of February, he spoke at length in opposition to the bill, and in development and support of his resolutions. On this occasion the doctrine of nullification was sustained by him with far greater ability than it had been by General Hayne, and in a speech which we believe is regarded as Mr. Calhoun's most powerful effort. In closing his speech, Mr. Calhoun challenged the opponents of his doctrines to disprove them, and warned them, in the concluding sentence, that the principles they might advance would be subjected to the revision of posterity.^[19]

Mr. Webster, before Mr. Calhoun had resumed his seat, or he had risen from his own, accepted the challenge, and commenced his reply. He began to speak as he was rising, and continued to address the Senate with great force and effect, for about two hours. The Senate then took a recess, and after it came together Mr. Webster spoke again, from five o'clock till eight in the evening. The speech was more purely a constitutional argument than that of the 26th of January, 1830. It was mainly devoted to an examination of Mr.

Calhoun's resolutions; to a review of the adoption and ratification of the Constitution of the United States, by way of elucidating the question whether the system provided by the Constitution is a government of the people or a compact between the States; and to a discussion of the constitutionality of the tariff. It was less various and discursive in its matter than the speech on Foot's resolution, but more condensed and systematic. Inferior, perhaps, in interest for a mixed audience, from the absence of personal allusions, which at all times give the greatest piquancy to debate, a severe judgment might pronounce it a finer piece of parliamentary logic. Nor must it be inferred from this description that it was destitute of present interest. The Senate-chamber was thronged to its utmost capacity, both before and after the recess, although the streets of Washington, owing to the state of the weather at the time, were nearly impassable.

The opinion entertained of this speech by the individual who, of all the people of America, was the best qualified to estimate its value, may be seen from the following letter of Mr. Madison, which has never before been published.

"Montpellier, March 15th, 1833.

"MY DEAR SIR:—I return my thanks for the copy of your late very powerful speech in the Senate of the United States. It crushes 'nullification,' and must hasten an abandonment of 'secession.' But this dodges the blow, by confounding the claim to secede at will with the right of seceding from intolerable oppression. The former answers itself, being a violation without cause of a faith solemnly pledged. The latter is another name only for revolution, about which there is no theoretic controversy. Its double aspect, nevertheless, with the countenance received from certain quarters, is giving it a popular currency here, which may influence the approaching elections both for Congress and for the State legislature. It has gained some advantage also by mixing itself with the question, whether the Constitution of the United States was formed by the people or by the States, now under a theoretic discussion by animated partisans.

"It is fortunate when disputed theories can be decided by undisputed facts, and here the undisputed fact is, that the Constitution was made by the people, but as embodied into the several States who were parties to it, and therefore made by the States in their highest authoritative capacity. They might, by the same authority and by the same process, have converted the confederacy into a mere league or treaty, or continued it with enlarged or abridged powers; or have embodied the people of their respective States into one people, nation, or sovereignty; or, as they did, by a mixed form, make them one people, nation, or sovereignty for certain purposes, and not so for others.

"The Constitution of the United States, being established by a competent authority, by that of the sovereign people of the several States who were parties to it, it remains only to inquire what the Constitution is; and here it speaks for itself. It organizes a government into the usual legislative, executive, and judiciary departments; invests it with specified powers, leaving others to the parties to the Constitution. It makes the government like other

governments to operate directly on the people; places at its command the needful physical means of executing its powers; and finally proclaims its supremacy, and that of the laws made in pursuance of it, over the constitutions and laws of the States, the powers of the government being exercised, as in other elective and responsible governments, under the control of its constituents, the people and the legislatures of the States, and subject to the revolutionary rights of the people, in extreme cases.

“Such is the Constitution of the United States *de jure* and *de facto*, and the name, whatever it be, that may be given to it can make it nothing more or less than what it is.

“Pardon this hasty effusion, which, whether precisely according or not with your ideas, presents, I am aware, none that will be new to you.

“With great esteem and cordial salutations,

“JAMES MADISON.”

To “MR. WEBSTER.”

It may be observed, in reference to the closing remark in the above important letter, that the view which it presents of the nature of the government established by the Constitution is precisely that taken by Mr. Webster in the various speeches in which the subject is discussed by him.

The President of the United States felt the importance of Mr. Webster’s aid in the great constitutional struggle of the session. There were men of great ability enlisted in support of his administration, Messrs Forsyth, Grundy, Dallas, Rives, and others, but no one competent to assume the post of antagonist to the great Southern leader. The general political position of Mr. Webster made it in no degree his duty to sustain the administration in any party measure, but the reverse. But his whole course as a public man, and all his principles, forbade him to act from party motives in a great crisis of the country’s fortunes. The administration was now engaged in a fearful struggle for the preservation of the Union, and the integrity of the Constitution. The doctrines of the proclamation were the doctrines of his speech on Foot’s resolution almost to the words. He would have been unjust to his most cherished principles and his views of public duty had he not come to the rescue, not of the administration, but of the country, in this hour of her peril. His aid was personally solicited in the great debate on the “Force Bill” by a member of the Cabinet, but it was not granted till the bill had undergone important amendments suggested by him, when it was given cordially, without stint and without condition.^[20]

In the recess of Congress in the year 1833, Mr. Webster made a short journey to the Middle States and the West. He was everywhere the object of

the most distinguished and respectful attentions. Public receptions took place at Buffalo and Pittsburg, where, under the auspices of committees of the highest respectability, he addressed immense assemblages convened without distinction of party. Invitations to similar meetings reached him from many quarters, which he was obliged by want of leisure to decline.

The friendly relations into which Mr. Webster had been drawn with the President, and the enthusiastic welcome given to the President on his tour to the East, in the summer of 1833, awakened jealousy in certain quarters. It was believed at the time, by well-informed persons, that among the motives which actuated some persons in General Jackson's confidence, in fanning his hostility to the Bank of the United States, was that of bringing forward a question of great interest both to the public and the President, on which he would be sure to encounter Mr. Webster's opposition.

Such a subject was the removal of the deposits of the public moneys from the Bank of the United States, a measure productive of more immediate distress to the community and a larger train of evil consequences than perhaps any similar measure in our political history. It was finally determined upon while the President was on his Northern tour, in the summer of 1833, receiving in every part of New England those warm demonstrations of respect which his patriotic course in the great nullification struggle had inspired. It is proper to state, that up to this period, in the judgment of more than one committee of Congress appointed to investigate its affairs, in the opinion of both houses of Congress, who in 1832 had passed a bill to renew the charter, and of the House of Representatives, which had resolved that the deposits were safe in its custody, the affairs of the bank had been conducted with prudence, integrity, and remarkable skill. It was not the least evil consequence of the warfare waged upon the bank, that it was finally drawn into a position (though not till its Congressional charter expired, and it accepted very unwisely a charter as a State institution) in which, in its desperate struggle to sustain itself, it finally forfeited the confidence of its friends and the public, and made a deplorable and shameful shipwreck at once of its interests and honor, involving hundreds, at home and abroad, in its own deserved ruin.

The second administration of General Jackson, which commenced in March, 1833, was principally employed in carrying on this war against the bank, and in the effort to build up the league of the associated banks into an

efficient fiscal agent of the government. The dangerous crisis of affairs in South Carolina had, for the time, passed. The passage of the "Force Bill" had vindicated the authority of the Constitution as the supreme law of the land, and had armed the President with the needed powers to maintain it. On the other hand, the Compromise Bill of Mr. Clay, providing for the gradual reduction of all duties to one uniform rate of twenty per cent., was accepted by Mr. Calhoun and his friends as a practical concession, and furnished them the opportunity of making what they deemed a not discreditable retreat from the attitude of military resistance in which they had placed the State. Regarding this bill in the light of a concession to unconstitutional menace, as tending to the eventual prostration of all the interests which had grown up under the system so long pursued by the government, Mr. Webster felt himself compelled to withhold from it his support. He rejoiced, however, in the concurrence of events which had averted the dread appeal to arms that seemed at one time unavoidable.

It would occupy an unreasonable space to dwell upon every public measure before Congress at this session; but there is one which cannot with propriety be passed over, as it drew forth from Mr. Webster an argument not inferior to his speech on the "Force Bill." A resolution, originally moved by Mr. Clay, expressing disapprobation of the removal of the deposits from the bank, was, after material amendments, adopted by the Senate. This resolution led to a formal protest from the President, communicated to the Senate on the 15th of April, 1834. Looking upon the resolution referred to as one of expediency, it is probable that Mr. Webster did not warmly favor, though, with Mr. Calhoun, he concurred in, its passage. The protest of the President, however, placed the subject on new ground. Mr. Webster considered it as an encroachment on the constitutional rights of the Senate, and as a denial to that body of the freedom of action which the executive claimed so earnestly for itself. He accordingly addressed the Senate on the 7th of May, in a speech of the highest ability, in which the doctrines of the protest were subjected to the severest scrutiny, and the constitutional rights and duties of the Senate asserted with a force and spirit worthy of the important position occupied by that body in the frame of the government. This speech will be ever memorable for that sublime passage on the extent of the power of England, which will be quoted with admiration wherever our language is spoken and while England retains her place in the family of nations.

This speech was received throughout the country with the highest favor; by the most distinguished jurists and statesmen as well as by the mass of the people. Chancellor Kent's language of praise passes the limits of moderation. "You never," said he, "equalled this effort. It surpasses every thing in logic, in simplicity and beauty and energy of diction, in clearness, in rebuke, in sarcasm, in patriotic and glowing feeling, in just and profound constitutional views, in critical severity, and matchless strength. It is worth millions to our liberties." Not less decided was the approbation of a gentleman of great sagacity and experience as a statesman, Governor Tazewell of Virginia. In writing to Mr. Tyler he uses this language: "Tell Webster from me that I have read his speech in the National Intelligencer with more pleasure than any I have lately seen. If the approbation of one who has not been used to coincide with him in opinion can be grateful to him, he has mine *in extenso*. I agree with him perfectly, and thank him cordially for his many excellent illustrations of what I always thought. If it is published in a pamphlet form, beg him to send me one. I will have it bound in good Russia leather, and leave it as a special legacy to my children."^[21]

At the same session of Congress, Mr. Webster spoke frequently on the presentation of memorials, which were poured in upon him from every part of the country, in reference to the existing distress. These speeches were of necessity made, in almost every case, with little or no preparation, but many of them contain expositions of the operation of the financial experiment instituted by General Jackson, which will retain a permanent value in our political history. Some of them are marked by bursts of the highest eloquence. The entire subject of the currency was also treated with great ability by Mr. Webster, in a report made at this session of Congress from the committee of the Senate on finance, of which he was chairman. Few documents more skilfully digested or powerfully reasoned have proceeded from his pen.

The same topics substantially occupied the attention of the Senate at the Twenty-fourth as at the Twenty-third Congress. The principal subjects discussed pertained to the currency. The specie circular and the distribution of the surplus revenue were among the prominent measures. A motion made in the Senate to expunge from its records the resolution of March, 1834, by which the Senate expressed its disapprobation of the removal of the

deposits, drew forth from Mr. Webster, on behalf of himself and his colleague, a protest against that measure, of singular earnestness and power. Committed to writing, and read with unusual solemnity, it produced upon the Senate an effect which is still remembered and spoken of. Every word in it is weighed as in a balance.

The administration of General Jackson was drawing to a close; Mr. Van Buren had been chosen to succeed him in November, 1836. In the month of February following, upon an invitation from a large committee of merchants, professional men, and citizens generally of New York, given some months previous, Mr. Webster attended one of those great public meetings which he has been so often called to address. His speech on this occasion, delivered in Niblo's Saloon on the 15th of March, 1837, is one of the most important in this collection. It embraced a comprehensive review of the entire course of General Jackson's policy, and closed with a prediction of the impending catastrophe. After the adjournment of Congress, Mr. Webster made a hasty tour to the West, in the course of which he addressed large public meetings at Wheeling in Virginia, at Madison in Indiana, and at other places. The coincidence of passing events with all his anticipations of the certain effects of the administration policy gave peculiar force to these addresses. It is to be regretted that these speeches appear from inadequate reports; of some of the speeches made by him on this tour, no notes were taken.

Such was the financial embarrassment induced by the explosion of the system of the late administration, that President Van Buren's first official act was a proclamation for an extra session of Congress, to be held in September, 1837. At this session the new government plan of finance, usually called "the Sub-treasury system," was brought forward. It was the opinion of Mr. Webster, that the rigid enforcement by the government of a system of specie payments in all its public receipts and expenditures was an actual impossibility, in the present state of things in this country and the other commercial countries of the civilized world. The attempt to reject altogether the aid of convertible paper, of bills of exchange, of drafts, and other substitutes for the use and transportation of the precious metals, must fail in practice in a commercial country, where the great mass of the business affairs of the community are transacted with their aid. If the attempt could be forced through, it would be like an attempt on the part of

the government to make use of the ancient modes of travel and conveyance, while every citizen in his private affairs enjoyed the benefit of steam navigation and railways. Mr. Webster accordingly opposed the sub-treasury project from its inception; and it failed to become a law at the extra session of Congress in 1837.

Somewhat to the surprise of the country generally, it received the support of Mr. Calhoun. In common with most of his friends, he had sustained the Bank of the United States, and denounced the financial policy of General Jackson at every stage. But at the extra session of Congress he expressed opinions favorable to the sub-treasury, and followed them up in a remarkable letter to his constituents, published after the adjournment. At the winter session of 1837-38 he defended the government plan in an elaborate speech. This speech drew from Mr. Webster a very able reply. He had, earlier in the session, delivered his sentiments in opposition to the government measure, and Mr. Calhoun, in his speech of the 15th of February, 1838, had animadverted upon them, and represented the sub-treasury system as little more than an attempt to carry out the joint resolution of the 30th of April, 1816, which, as we have seen above, was introduced by Mr. Webster, and was the immediate means of restoring specie payments after the war.

This reference, as well as the whole tenor of Mr. Calhoun's remarks, called upon Mr. Webster for a rejoinder, which was made by him on the 12th of March. It is the most elaborate and effective of Mr. Webster's speeches on the subject of the currency.^[22] The constitutional right of the general government to employ a convertible paper in its fiscal transactions, and to make use of banks in the custody and transmission of its funds, is argued in this speech with much ability, from the necessity of the case, from the contemporaneous expositions of the Constitution, from the practice of the government under every administration, from the expressed views and opinions of every President of the United States, including General Jackson, and from the often-declared opinions of all the leading statesmen of the country, not excepting Mr. Calhoun himself, whose course in this respect was reviewed by Mr. Webster somewhat at length, and in such a way as unavoidably to suggest the idea of inconsistency, although no such charge was made.

To some portions of this speech Mr. Calhoun replied a few weeks afterwards, and sought to ward off the comments upon his own course in reference to this class of questions, by some severe strictures on that of Mr. Webster. This drew from him a prompt and spirited rejoinder. The following passage may be extracted as a specimen:—

“But, Sir, before attempting that, he [Mr. Calhoun] has something else to say. He had prepared, it seems, to draw comparisons himself. He had intended to say something, if time had allowed, upon our respective opinions and conduct in regard to the war. If time had allowed! Sir, time does allow, time must allow. A general remark of that kind ought not to be, cannot be, left to produce its effect, when that effect is obviously intended to be unfavorable. Why did the gentleman allude to my votes or my opinions respecting the war at all, unless he had something to say? Does he wish to leave an undefined impression that something was done, or something said, by me, not now capable of defence or justification? something not reconcilable with true patriotism? He means that, or nothing. And now, Sir, let him bring the matter forth; let him take the responsibility of the accusation; let him state his facts. I am here to answer; I am here, this day, to answer. Now is the time, and now the hour. I think we read, Sir, that one of the good spirits would not bring against the Arch-enemy of mankind a railing accusation; and what is railing but general reproach, an imputation without fact, time, or circumstance? Sir, I call for particulars. The gentleman knows my whole conduct well; indeed, the journals show it all, from the moment I came into Congress till the peace. If I have done, then, Sir, any thing unpatriotic, any thing which, as far as love to country goes, will not bear comparison with his or any man’s conduct, let it now be stated. Give me the fact, the time, the manner. He speaks of the war; that which we call the late war, though it is now twenty-five years since it terminated. He would leave an impression that I opposed it. How? I was not in Congress when war was declared, nor in public life anywhere. I was pursuing my profession,^{cxvi} keeping company with judges and jurors, and plaintiffs and defendants. If I had been in Congress, and had enjoyed the benefit of hearing the honorable gentleman’s speeches, for aught I can say, I might have concurred with him. But I was not in public life. I never had been for a single hour; and was in no situation, therefore, to oppose or to support the declaration of war. I am speaking to the fact, Sir; and if the gentleman has any fact, let us know it.

“Well, Sir, I came into Congress during the war. I found it waged, and raging. And what did I do here to oppose it? Look to the journals. Let the honorable gentleman tax his memory. Bring up any thing, if there be any thing to bring up, not showing error of opinion, but showing want of loyalty or fidelity to the country. I did not agree to all that was proposed, nor did the honorable member. I did not approve of every measure, nor did he. The war had been preceded by the restrictive system and the embargo. As a private individual, I certainly did not think well of these measures. It appeared to me that the embargo annoyed ourselves as much as our enemies, while it destroyed the business and cramped the spirits of the people. In this opinion I may have been right or wrong, but the gentleman was himself of the same opinion. He told us the other day, as a proof of his independence of party on great questions, that he differed with his friends on the subject of the embargo. He was decidedly and unalterably opposed to it. It furnishes in his judgment, therefore, no imputation either on my patriotism, or on the soundness of my political opinions, that I was opposed to it also. I mean opposed in opinion; for I was not in Congress, and had nothing to do with the act creating the embargo. And as to opposition to

measures for carrying on the war, after I came into Congress, I again say, let the gentleman specify; let him lay his finger on any thing calling for an answer, and he shall have an answer.

“Mr. President, you were yourself in the House during a considerable part of this time. The honorable gentleman may make a witness of you. He may make a witness of any body else. He may be his own witness. Give us but some fact, some charge, something capable in itself either of being proved or disproved. Prove any thing, state any thing, not consistent with honorable and patriotic conduct, and I am ready to answer it. Sir, I am glad this subject has been alluded to in a manner which justifies me in taking public notice of it; because I am well aware that, for ten years past, infinite pains has been taken to find something, in the range of these topics, which might create prejudice against me in the country. The journals have all been pored over, and the reports ransacked, and scraps of paragraphs and half-sentences have been collected, fraudulently put together, and then made to flare out as if there had been some discovery. But all this failed. The next resort was to supposed correspondence. My letters were sought for, to learn if, in the confidence of private friendship, I had ever said any thing which an enemy could make use of. With this view, the vicinity of my former residence has been searched, as with a lighted candle. New Hampshire has been explored from the mouth of the Merrimack to the White Hills. In one instance, a gentleman had left the State, gone five hundred miles off, and died. His papers were examined; a letter was found, and, I have understood, it was brought to Washington; a conclave was held to consider it, and the result was, that, if there was nothing else against Mr. Webster, the matter had better be let alone. Sir, I hope to make every body of that opinion who brings against me a charge of want of patriotism. Errors of opinion can be found, doubtless, on many subjects; but as conduct flows from the feelings which animate the heart, I know that no act of my life has had its origin in the want of ardent love of country.”

This is the only occasion during the long political lives of these distinguished statesmen, begun nearly at the same time, and continued through a Congressional career which brought them of necessity much in contact with each other, in which there was any approach to personality in their keen encounters. In fact, of all the highly eminent public men of the day, they are the individuals who have made the least use of the favorite weapon of ordinary politicians, personality toward opponents. On the decease of Mr. Calhoun at Washington, in the spring of 1850, their uninterrupted friendly relations were alluded to by Mr. Webster in cordial and affecting terms. He regarded Mr. Calhoun as decidedly the ablest of the public men to whom he had been opposed in the course of his political life.

These kindly feelings on Mr. Webster's part were fully reciprocated by Mr. Calhoun. He is known to have declared on his death-bed, that, of all the public men of the day, there was no one whose political course had been more strongly marked by a strict regard to truth and honor than Mr. Webster's.

In the spring of 1839, Mr. Webster crossed the Atlantic for the first time in his life, making a hasty tour through England, Scotland, and France. His attention was particularly drawn to the agriculture of England and Scotland; to the great subjects of currency and exchange; to the condition of the laboring classes; and to the practical effect on the politics of Europe of the system of the Continental alliance. No traveller from this country has probably ever been received with equal attention in the highest quarters in England. Courtesies usually paid only to ambassadors and foreign ministers were extended to him. His table was covered with invitations to the seats of the nobility and gentry; and his company was eagerly sought at the public entertainments which took place while he was in the country. Among the distinguished individuals with whom he contracted intimate relations of friendship, the late Lord Ashburton may be particularly mentioned. A mutual regard of more than usual warmth arose between them. This circumstance was well understood in the higher circles of English society, and when, two years later, a change of administration in both countries brought the parties to which they were respectively attached into power, the friendly relations well known to exist between them were no doubt among the motives which led to the appointment of Lord Ashburton as special minister to the United States.

Toward that great political change which was consummated in 1840, by which General Harrison was raised to the Presidency, no individual probably in the country had contributed more largely than Mr. Webster; and this by powerful appeals to the reason of the people. His speeches had been for years a public armory, from which weapons both of attack and defence were furnished to his political friends throughout the Union. The financial policy of the two preceding administrations was the chief cause of the general discontent which prevailed; and it is doing no injustice to the other eminent leaders of opposition in the several States to say, that by none of them had the vices of this system from the first been so laboriously and effectively exposed as by Mr. Webster. During the canvass of 1840, the most strenuous ever witnessed in the United States, he gave himself up for months to what may literally be called the arduous labor of the field. These volumes exhibit the proof, that not only in Massachusetts, but in distant places, from Albany to Richmond, his voice of encouragement and exhortation was heard.

The event corresponded to the effort, and General Harrison was triumphantly elected.

FOOTNOTES

[18]

North American Review, Vol. XXXI. p. 537.

[19]

This passage does not appear in the report preserved in the volume containing his Select Speeches.

[20]

It is not wholly unworthy of remark in this place, as illustrating the dependence on Mr. Webster's aid which was felt at the White House, that, on the day of his reply to Mr. Calhoun, the President's carriage was sent to Mr. Webster's lodgings, as was supposed with a message borne by the President's private secretary. Happening to be still at the door when Mr. Webster was about to go to the Capitol, it conveyed him to the Senate-chamber.

[21]

March's Reminiscences of Congress, pp. 291, 292.

[22]

Not long after the publication of this speech, the present Lord Overstone, then Mr. S. Jones Lloyd, one of the highest authorities upon financial subjects in England, was examined upon the subject of banks and currency before a committee of the House of Commons. He produced a copy of the speech of Mr. Webster before the committee, and pronounced it one of the ablest and most satisfactory discussions of these subjects which he had seen. In writing afterwards to Mr. Webster, he spoke of him as a master who had instructed him on these subjects.

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CHAPTER VIII. [23]

Critical State of Foreign Affairs on the Accession of General Harrison.—Mr. Webster appointed to the State Department.—Death of General Harrison.—Embarrassed Relations with England.—Formation of Sir Robert Peel's Ministry, and Appointment of Lord Ashburton as Special Minister to the United States.—Course pursued by Mr. Webster in the Negotiations.—The Northeastern Boundary.—Peculiar Difficulties in its Settlement happily overcome.—Other Subjects of Negotiation.—Extradition of Fugitives from Justice.—Suppression of the Slave-Trade on the Coast of Africa.—History of that Question.—

Affair of the Caroline.—Impressment.—Other Subjects connected with the Foreign Relations of the Government.—Intercourse with China.—Independence of the Sandwich Islands.—Correspondence with Mexico.—Sound Duties and the Zoll-Verein.—Importance of Mr. Webster's Services as Secretary of State.

The condition of affairs in the United States, on the accession of President Harrison to office, in the spring of 1841, was difficult and critical, especially as far as the foreign relations of the country were concerned. Ancient and modern controversies existed with England, which seemed to defy adjustment. The great question of the northeastern boundary had been the subject of negotiation almost ever since the peace of 1783. Every effort to settle it had but increased the difficulties with which it was beset, by exhausting the expedients of diplomacy. The Oregon question was rapidly assuming a formidable aspect, as emigrants began to move into the country in dispute. Not less serious was the state of affairs on the southwestern frontier, where, although a collision with Mexico might not in itself be an event to be viewed with great anxiety, it was probable, as things then stood, that it would have brought a war with Great Britain in its train.

To the uneasiness necessarily growing out of these boundary questions, no little bitterness was added by more recent occurrences. The interruption of our vessels on the coast of Africa was a frequently recurring source of irritation. Great cause of complaint was sometimes given by boarding officers, acting on frivolous pretences or in a vexatious manner. At other times the public feeling in the United States was excited by the exaggerations and misstatements of unworthy American citizens, who abused the flag of the country to cover a detestable traffic, which is made a capital felony by its laws. The affair of the "Caroline," followed by the arrest of McLeod, created a degree of discontent on both sides, which discussion had done nothing to remove, but much to exasperate. A crisis had arisen, which the Minister of the United States in London^[24] deemed so serious, as to make it his duty to communicate with the commander of the American squadron in the Mediterranean.^[25]

Such was the state of things when General Harrison acceded to the Presidency, after perhaps the most strenuously contested election ever known, and by a larger popular vote than had ever before been given in the United States. As soon as the result was known, the President elect addressed a letter to Mr. Webster, offering him any place he might choose in his Cabinet, and asking his advice as to the other members of which it

should be composed. The wants and wishes of the country in reference to currency and finance having brought about the political revolution which placed General Harrison in the chair, he was rather desirous that the Department of the Treasury should be assumed by Mr. Webster, who had studied those subjects profoundly, and whose opinions were in full concurrence with his own. Averse to the daily drudgery of the Treasury, Mr. Webster gave his preference to the Department of State, without concealing from himself that it might be the post of greater care and responsibility. In this anticipation he was not disappointed. Although the whole of the danger did not at once appear, it was evident from the outset that the moment was extremely critical. Still, however, the circumstances under which General Harrison was elected were such as to give to his administration a moral power and a freedom of action, as to pre-existing controversies, favorable to their settlement on honorable terms.

But the death of the new President, when just entering upon the discharge of his duties, changed the state of affairs in this respect. The great national party which had called him to the helm was struck with astonishment. No rallying-point presented itself. A position of things existed, not overlooked, indeed, by the sagacious men who framed the Constitution, but which, from its very nature, can never enter practically into the calculations of the enthusiastic multitudes by which, in times of difficulty and excitement, a favorite candidate is borne to the chair. How much of the control which it would otherwise have possessed over public opinion could be retained by an administration thus unexpectedly deprived of its head, was a question which time alone could settle. Happily, as far as our foreign relations were concerned, a character had been assumed by the administration, from the very formation of General Harrison's Cabinet, which was steadily maintained, till the adjustment of the most difficult points in controversy was effected by the treaty of Washington. President Harrison, as is well known, lived but one month after his inauguration, but all the members of his Cabinet remained in office under Mr. Tyler, who succeeded to the Presidency. With him, of course, rested the general authority of regulating and directing the negotiations with foreign powers, in which the government might be engaged. But the active management of these negotiations was in the hands of the Secretary of State, and it is believed that no difference of views in regard to important matters arose between him and Mr. Tyler. For the result of the principal negotiation, Mr. Tyler

manifested great anxiety; and Mr. Webster has not failed, in public or private, to bear witness to the intelligent and earnest attention which was bestowed by him on the proceedings, through all their stages, and to express his sense of the confidence reposed in himself by the head of the administration, from the beginning to the end of the transactions.

If the position of things was difficult here, it was not less so on the other side of the Atlantic; indeed, many of the causes of embarrassment were common to the two countries. There, as here, the correspondence, whether conducted at Washington or London, had of late years done nothing toward an amicable settlement of the great questions at issue. It had degenerated into an exercise of diplomatic logic, with the effect, in England as well as in America, of strengthening each party in the belief of its own rights, and of working up the public mind to a reluctant feeling that the time was at hand when those rights must be maintained by force. That the British and American governments, during a considerable part of the administrations of General Jackson and Mr. Van Buren, should, with the fate of the reference to the King of the Netherlands before their eyes, have exerted themselves with melancholy ingenuity in arranging the impossible details of another convention of exploration and arbitration, shows of itself that neither party had any real hope of actually settling the controversy, but that both were willing to unite in a decent pretext for procrastination.

The report of Mr. Featherstonhaugh, erroneously believed, in England, to rest upon the results of actual exploration, had been sanctioned by the ministry, and seemed to extinguish the last hope that England would agree to any terms of settlement which the United States would deem reasonable. The danger of collision on the frontier became daily more imminent, and troops to the amount of seventeen regiments had been poured into the British Provinces. The arrest of McLeod, as we have already observed, had brought matters to a point at which the public sensibility of England would not have allowed a minister to blink the question. Lord Palmerston is known to have written to Mr. Fox, that the arrest of McLeod, under the authority of the State of New York, was universally regarded in England as a direct affront to the British government, and that such was the excitement caused by it, that, if McLeod should be condemned and executed, it would not be in the power either of ministers or opposition, or of the leading men of both parties, to prevent immediate war.

While this was the state of affairs with reference to the immediate relations of the two countries, Lord Palmerston was urging France into a coöperation with the four other leading powers of Europe in the adoption of a policy, by the negotiation of the quintuple treaty, which would have left the United States in a position of dangerous insulation on the subject of the great maritime question of the day.

At this juncture, a change of administration occurred in England, subsequent but by a few months to that which had taken place in the government of the United States. Lord Melbourne's government gave way to that of Sir Robert Peel in the summer of 1841; it remained to be seen with what influence on the relations of the two countries. Some circumstances occurred to put at risk the tendency toward ^{cxxix}an accommodation, which might naturally be hoped for from a change of administration nearly simultaneous on both sides of the water. A note of a very uncompromising character, on the subject of the search of American vessels on the coast of Africa, had been addressed to Mr. Stevenson by Lord Palmerston on the 27th of August, 1841, a day only before the expiration of Lord Melbourne's ministry. To this note Mr. Stevenson replied in the same strain. The answer of Lord Aberdeen, who had succeeded Lord Palmerston as Secretary of State for Foreign Affairs, bears date the 10th of October, 1841, and an elaborate rejoinder was returned by Mr. Stevenson on the very day of his departure from London. Lord Aberdeen's reply to this note was of necessity addressed to Mr. Everett, who had succeeded Mr. Stevenson. It was dated on the 20th of December, the day on which the quintuple treaty was signed at London by the representatives of the five powers, and it contained an announcement of that fact.

Happily, however, affairs were already taking a turn auspicious of better results. From his first entrance on office as Secretary of State, Mr. Webster, long familiar with the perplexed history of the negotiation relative to the boundary, had perceived the necessity of taking a "new departure." The negotiation had broken down under its own weight. It was like one of those lawsuits which, to the opprobrium of tribunals, descend from age to age; a disease of the body politic not merely chronic, but hereditary. Early in the summer of 1841, Mr. Webster had intimated to Mr. Fox, the British Minister at Washington, that the American government was prepared to consider, and, if practicable, adopt, a conventional line, as the only mode of cutting

the Gordian knot of the controversy. This overture was, of course, conveyed to London. Though not leading to any result on the part of the ministry just going out of office, it was embraced by their successors in the same wise and conciliatory spirit in which it had been made. On the 26th of December, 1841, a note was addressed by Lord Aberdeen to Mr. Everett, inviting him to an interview on the following day, when he communicated the purpose of the British government to send a special mission to the United States, Lord Ashburton being the person selected as minister, and furnished with full powers to settle every question in controversy.

This step on the part of the British government was as bold as it was wise. It met the difficulty in the face. It justly assumed the existence of a corresponding spirit of conciliation on the part of the United States, and of a desire to bring matters to a practical result. It was bold, because it was the last expedient for an amicable adjustment, and because its failure must necessarily lead to very serious and immediate consequences.

In his choice of a minister, Lord Aberdeen was not less fortunate than he had been wise in proposing the measure. Lord Ashburton was above the reach of the motives which influence politicians of an ordinary stamp, and unencumbered by the habits of routine which belong to men regularly trained in a career. He possessed a weight of character at home which made him independent of the vulgar resorts of popularity. He was animated by a kindly feeling, and bound by kindly associations to this country. There was certainly no public man in England who united in an equal degree the confidence of his own government and country with those claims to the good-will of the opposite party, which were scarcely less essential to success. The relations of personal friendship contracted by Mr. Webster with Lord Ashburton in 1839 have already been alluded to, as influencing the selection. They decided Lord Ashburton in accepting the appointment. The writer was informed by Lord Ashburton himself, that he should have despaired of bringing matters to a settlement advantageous to both countries, but for his reliance on the upright and honorable character of the American Secretary.

With the appointment of Lord Ashburton, the discussion of the main questions in controversy between the two countries, as far as it had been carried on in London, was transferred to Washington. But as an earnest of the conciliatory spirit which bore sway in the British counsels, Lord

Aberdeen had announced to Mr. Everett, in the interval which elapsed between Lord Ashburton's appointment and his arrival at his place of destination, that the Queen's government admitted the wrong done by the detention of the "Tigris" and "Seamew" in the African waters, and was prepared to indemnify their owners for the losses sustained.

Notwithstanding the favorable circumstances under which the mission of Lord Ashburton was instituted, the great difficulties to be overcome soon disclosed themselves. The points in dispute in reference to the boundary had for years been the subject of discussion, more or less, throughout the country, but especially in Massachusetts and Maine (the States having an immediate territorial interest in its decision), and, above all, in the last-named State. Parties differing on all other great questions emulated each other in the zeal with which they asserted the American side of this dispute. So strong and unanimous was the feeling, that, when the award of the King of the Netherlands arrived, the firm purpose of General Jackson to accept it was subdued. The writer of these pages was informed by the late Mr. Forsyth, while Secretary of State, that, when the award reached this country, General Jackson regarded it as definitive, and was disposed, without consulting the Senate, to issue his proclamation announcing it as such; and that he was driven from this course by the representations of his friends in Maine, that it would change the politics of the State. He was accustomed to add, in reference to the inconveniences caused by the rejection of the award, and the still more serious evils to be anticipated, that "it was somewhat singular that the only occasion of importance in his life in which he had allowed himself to be overruled by his friends, was one of all others in which he ought to have adhered to his own opinions."

From the diplomatic papers contained in the sixth volume of the present edition of Mr. Webster's works it appears that the first step taken by Mr. Webster, after receiving the directions of the President in reference to the negotiation, was to invite the coöperation of Massachusetts and Maine, the territory in dispute being the property of the two States, and under the jurisdiction of the latter. The extent of the treaty-making power of the United States, in a matter of such delicacy as the cession of territory claimed by a State to be within its limits, belongs to the more difficult class of constitutional doctrines. We have just seen both the theory and practice of General Jackson on this point. The administration of Mr. Tyler took for

granted that the full consent of Massachusetts and Maine was necessary to any adjustment of this great dispute on the principle of mutual cession and equivalents, or any other principle than that of the ascertainment of the true, original line of boundary by agreement, mutual commission, or arbitration. Communications were accordingly addressed to the governors of the two States. Massachusetts had anticipated the necessity of the measure, and made provision for the appointment of commissioners. The legislature of Maine was promptly convened for the same purpose by the late Governor Fairfield. Four parties were thus in presence at Washington for the management of the negotiation: the United States and Great Britain, Massachusetts and Maine. Recollecting that the question to be settled was one which had defied all the arts of diplomacy for half a century, it seemed to a distant, and especially a European observer, as if the last experiment, exceeding every former step in its necessary complication, was destined to a failure proportionably signal and ignominious. The course pursued by the American Secretary, in making the result of the negotiation relative to the boundary contingent upon the approval of the State commissioners, was regarded in Europe as decidedly ominous of its failure.

It undoubtedly required a high degree of political courage thus to put the absolute control of the subject, to a certain extent, out of the hands of the national government; but it was a courage fully warranted by the event. It is now evident that this mode of procedure was the only one which could have been adopted with any hope of success. Though complicated in appearance, it was in reality the simplest mode in which the coöperation of the States could have been secured. The commissions were, upon the whole, happily constituted; they were framed in each State without reference to party views. By their presence in Washington, it was in the power of the Secretary of State to avail himself, at every difficult conjuncture, of their counsel. Limited in number, they yet represented the public opinion of the two States, as fully as it could have been done by the entire body of their legislatures; while it is quite evident that any attempt to refer to large deliberative bodies at home the discussion of the separate points which arose in the negotiation, would have been physically impossible and politically absurd. The commissioners were, on the part of Maine, Messrs. Edward Kavanagh, Edward Kent, William P. Preble, and John Otis; and on the part of Massachusetts, Messrs. Abbott Lawrence, John Mills, and Charles Allen.

While we name with honor the gentlemen forming the commissions, a tribute of respect is also due to the patriotism of the States immediately concerned, and especially of Maine. To devolve on any individuals, however high in the public regard, a power of transferring, without ratification or appeal, a portion of the territory of the State, for such consideration as those individuals might judge to be adequate, was a measure to be expected only in a case of clear necessity and high confidence. Mr. Webster is known to have regarded this with the utmost concern and anxiety, as the turning-point of the whole attempt. His letter to Governor Fairfield states the case with equal strength and fairness, and puts the course there recommended in striking contrast with that of proceeding to agree to another arbitration, as had been offered by the preceding administration, and assented to by England. The fate of the negotiation might be considered as involved in the success of this appeal to the chief magistrate of Maine, and through him to his constituents. It is said that, when Mr. Webster heard that the legislature of Maine had adopted the resolutions for the commission, he went to President Tyler and said, with evident satisfaction and some animation, "*The crisis is past!*"

A considerable portion, though not the whole, of the official correspondence between the Secretary of State and the other parties to the negotiation is contained in the sixth volume of this collection. The documents published exhibit full proof of the ability with which the argument was conducted. They probably furnish but an inadequate specimen of the judgment, tact, and moral power required to conduct such a negotiation to a successful result. National, State, and individual susceptibilities were to be respected and soothed; adverse interests, real or imaginary, to be consulted; the ordeal of the Senate to be passed through, after every other difficulty had been overcome; and all this in an atmosphere as little favorable to such an operation as can well be imagined. What neither Mr. Monroe in the "era of good feelings," nor the ability and experience of Messrs. Adams, Clay, and Gallatin, nor General Jackson's overwhelming popularity, had been able to bring about, was effected under the administration of Mr. Tyler, though that administration seemed already crumbling for want of harmony between some of the members and the head, and between that head and the party which had brought him into power. No higher tribute can be paid to the ability and temper which were brought to the work.

It was, however, in truth, an adjustment equally honorable and advantageous to all parties. There is not an individual of common sense or common conscience in Maine or Massachusetts, in the United States or Great Britain, who would now wish it disturbed. It took from Maine a tract of land northwest of the St. John, which the people of Maine believed to belong to them under the treaty of 1783. But it is not enough that we think ourselves right; the other party thinks the same; and when there is no common tribunal which both acknowledge, there must be compromise. The tract of land in question, for any purpose of cultivation or settlement, was without value; and had it been otherwise, it would not have been worth the cost of a naval armament or one military expedition, to say nothing of the abomination of shedding blood on such an issue. But the disputed title to the worthless tract of morass, heath, and rock, covered with snow or fog throughout a great part of the year, was not ceded gratuitously. We obtained the navigation of the St. John, the natural outlet of the whole country, without which the territory watered by it would have been of comparatively little value; we obtained a good natural boundary as far as the course of the river was followed; and we established the line which we claimed at the head of the Connecticut, on Lake Champlain, and on the upper lakes; territorial objects of considerable interest. Great Britain had equal reason to be satisfied with the result. For her the territory northwest of the St. John, worthless to us, had a geographical and political value; it gave her a convenient connection between her provinces, which was all she desired. Both sides gained the only object which really was of importance to either, a settlement by creditable means of a wearisome national controversy; an honorable escape from the scourge and curse of war.

Both governments appear to have been fortunate in the constitution of the joint commission to survey, run, and mark the long line of boundary. Mr. Albert Smith, of Maine, was appointed commissioner on the part of the United States, with Major James D. Graham, of the United States Topographical Engineers as head of a scientific corps, and Mr. Edward Webster^[26] as his secretary. On the part of Great Britain, Lieutenant-Colonel J. B. B. Estcourt, of her Majesty's service, was appointed commissioner, with Captain W. H. Robinson, of the Royal Engineers, as principal astronomer, and J. Scott, Esq., as secretary. Other professional gentlemen were also employed on both sides. Great harmony characterized all the proceedings and results of the commission. The lines were accurately

run, and that part of them not designated by rivers was marked all the way by substantial cast-iron monuments, with suitable inscriptions, at every mile, and at most of the principal angles; and wherever the lines extended through forests, the trees were cut down and cleared to the width of thirty feet. All the islands in the St. John were also designated with iron monuments, with inscriptions indicating the government to which they belonged; and upon that and all other streams forming portions of the boundary, monuments were erected at the junction of every branch with the main river.

But it is time to advert to the other great and difficult questions included in this adjustment. The extradition of fugitives from justice is regarded by Grotius and other respectable authorities as the duty of states, by the law of nations. Other authorities reject this doctrine;^[27] and if it be the law of nations, it requires for its execution so much administrative machinery as to be of no practical value without treaty stipulations. The treaty of 1794 with Great Britain (Jay's treaty) made provision for a mutual extradition of fugitives, in cases of murder and forgery; and the case of Jonathan Robbins, memorable for the argument of Chief Justice Marshall in defence of his surrender, gave a political notoriety to that feature of the treaty not favorable to its renewal in subsequent negotiations. This treaty stipulation expired by its own limitation in 1806.

Besides the convenience of such an understanding on the part of the two great commercial countries, from which language, personal appearance, and manners render mutual escape so easy, the condition of the frontier of the United States and Canada was such as to make this provision all but necessary for the preservation of the peace of the two countries. An extensive secret organization existed in the border States, the object of which was, under the delusive name of "sympathy," to foment and aid rebellion in the British Provinces. Although an agreement for mutual extradition of necessity left untouched a great deal of political agitation unfriendly to border peace, murder and arson were, of course, within its provisions. It appears from the testimony of the parties best informed on the subject, that the happiest consequences flowed from this article of the treaty of Washington. No more was heard of border forays, "Hunters' Lodges," "Associations for the Liberty of Canada," or violences offered or retaliated across the line. The mild, but certain influence of law imposed a restraint,

which even costly and formidable military means had not been found entirely adequate to produce.

The stipulations for extradition in the treaty of Washington appear to have served as a model for those since entered into between the most considerable European powers. A convention for the same purpose was concluded between England and France on the 13th of February, 1843, and other similar compacts have still more recently been negotiated. Between the United States and Great Britain the operation of this part of the treaty has, in all ordinary cases, been entirely satisfactory. Persons charged with the crimes to which its provisions extend have been mutually surrendered; and the cause of public justice, and in many cases important private interests, have been materially served on both sides of the water.

Not inferior in importance and delicacy to the other subjects provided for by the treaty was that which concerned the measures for the suppression of “the slave-trade” on the coast of Africa. In order to understand the difficulties with which Mr. Webster had to contend on this subject, a brief history of the question must be given. The law of nations, as understood and expounded by the most respectable authorities and tribunals, European and American, recognizes the right of search of neutral vessels in time of war, by the public ships of the belligerents. It recognizes no right of search in time of peace. It makes no distinction between a right of visitation and a right of search. To compel a trading-vessel, against the will of her commander, to come to and be boarded, for any purpose whatsoever, is an exercise of the right of search which the law of nations concedes to belligerents for certain purposes. To do this in time of peace, under whatever name it may be excused or justified, is to perform an act of mere power, for which the law of nations affords no warrant. The moral quality of the action, and the estimate formed of it, will of course depend upon circumstances, motives, and manner. If an armed ship board a vessel under reasonable suspicion that she is a pirate, and when there is no other convenient mode of ascertaining that point, there would be no cause of blame, although the suspicion turned out to be groundless.

The British government, for the praiseworthy purpose of putting a stop to the traffic in slaves, has at different times entered into conventions with several of the states of Europe authorizing a mutual right of search of the trading-vessels of each contracting party by the armed cruisers of the other

party. These treaties give no right to search the vessels of nations not parties to them. But if an armed ship of either party should search a vessel of a third power under a reasonable suspicion that she belonged to the other contracting party, and was pursuing the slave-trade in contravention of the treaty, this act of power, performed by mistake, and with requisite moderation and circumspection in the manner, would not be just ground of offence. It would, however, authorize a reasonable expectation of indemnification on behalf of the private individuals who might suffer by the detention, as in other cases of injury inflicted on innocent persons by public functionaries acting with good intentions, but at their peril.

The government of the United States, both in its executive and legislative branches, has at almost all times manifested an extreme repugnance to enter into conventions for a mutual right of search. It has not yielded to any other power in its aversion to the slave-trade, which it was the first government to denounce as piracy. The reluctance in question grew principally out of the injuries inflicted upon the American commerce, and still more out of the personal outrages in the impressment of American seamen, which took place during the wars of Napoleon, and incidentally to the belligerent right of search and the enforcement of the Orders in Council and the Berlin and Milan Decrees. Besides a wholesale confiscation of American property, hundreds of American seamen were impressed into the ships of war of Great Britain. So deeply had the public sensibility been wounded on both points, that any extension of the right of search by the consent of the United States was for a long time nearly hopeless.

But this feeling, strong and general as it was, yielded at last to the detestation of the slave-trade. Toward the close of the second administration of Mr. Monroe the executive had been induced, acting under the sanction of resolutions of the two houses of Congress, to agree to a convention with Great Britain for a mutual right of search of vessels suspected of being engaged in the traffic. This convention was negotiated in London by Mr. Rush on the part of the United States, Mr. Canning being the British Secretary of State for Foreign Affairs.

In defining the limits within which this right should be exercised, the coasts of America were included. The Senate were of opinion that such a provision might be regarded as an admission that the slave-trade was carried on between the coasts of Africa and the United States, contrary to the known

fact, and to the reproach either of the will or power of the United States to enforce their laws, by which it was declared to be piracy. It also placed the whole coast of the Union under the *surveillance* of the cruisers of a foreign power. The Senate, accordingly, ratified the treaty, with an amendment exempting the coasts of the United States from the operation of the article. They also introduced other amendments of less importance.

On the return of the treaty to London thus amended, Mr. Canning gave way to a feeling of dissatisfaction at the course pursued by the Senate, not so much on account of any decided objection to the amendment in itself considered, as to the claim of the Senate to introduce any change into a treaty negotiated according to instructions. Under the influence of this feeling, Mr. Canning refused to ratify the treaty as amended, and no further attempt was at that time made to renew the negotiation.

It will probably be admitted on all hands, at the present day, that Mr. Canning's scruple was without foundation. The treaty had been negotiated by this accomplished statesman, under the full knowledge that the Constitution of the United States reserves this power to the Senate. That it should be exercised was, therefore, no more matter of complaint, than that the treaty should be referred at all to the ratification of the Senate. The course pursued by Mr. Canning was greatly to be regretted, as it postponed the amicable adjustment of this matter for eighteen years, not without risk of serious misunderstanding in the interval.

Attempts were made on the part of England, during the ministry of Lord Melbourne, to renew the negotiation with the United States, but without success. Conventions between France and England, for a mutual right of search within certain limits, were concluded in 1831 and 1833, under the ministry of the Duc de Broglie, without awakening the public sensibility in the former country. As these treaties multiplied, the activity of the English cruisers increased. After the treaty with Portugal, in 1838, the vessels of that country, which, with those of Spain, were most largely engaged in the traffic, began to assume the flag of the United States as a protection; and in many cases, also, although the property of vessels and cargo had, by collusive transfers on the African coast, become Spanish or Portuguese, the vessels had been built and fitted out in the United States, and too often, it may be feared, with American capital. Vessels of this description were provided with two sets of papers, to be used as occasion might require.

Had nothing further been done by British cruisers than to board and search these vessels, whether before or after a transfer of this kind, no complaint would probably have been made by the government of the United States. But, as many American vessels were engaged in lawful commerce on the coast of Africa, it frequently happened that they were boarded by British cruisers, not always under the command of discreet officers. Some voyages were broken up, officers and men occasionally ill-treated, and vessels sent to the United States or Sierra Leone for adjudication.

In 1840 an agreement was made between the officers in command of the British and American squadrons respectively, sanctioning a reciprocal right of search on the coast of Africa. It will be found among the papers pertaining to this subject, in the sixth volume of this collection. It was a well-meant, but unauthorized step, and was promptly disavowed by the administration of Mr. Van Buren. Its operation, while it lasted, was but to increase the existing difficulty. Reports of the interruptions experienced by our commerce in the African waters began greatly to multiply; and there was a strong interest on the part of those surreptitiously engaged in the traffic to give them currency. A deep feeling began to be manifested in the country; and the correspondence between the American Minister in London and Lord Palmerston, in the last days of the Melbourne ministry, was such as to show that the controversy had reached a critical point. Such was the state of the question when Mr. Webster entered the Department of State.

The controversy was transmitted, as we have seen, to the new administrations on both sides of the water, but soon assumed a somewhat modified character. The quintuple treaty, as it was called, was concluded at London, on the 20th of December, 1841, by England, France, Austria, Prussia, and Russia; and information of that fact, as we have seen above, was given by Lord Aberdeen to Mr. Everett the same day. A strong desire was intimated that the United States would join this association of the great powers, but no formal invitation for that purpose was addressed to them. But the recent occurrences on the coast of Africa, and the tone of the correspondence above alluded to, had increased the standing repugnance of the United States to the recognition of a right of search in time of peace.

In the mean time, the same complaints, sometimes just, sometimes exaggerated, sometimes groundless, had reached France from the coast of Africa, and a strong feeling against the right of search was produced in that

country. The incidents connected with the adjustment of the Syrian question, in 1840, had greatly irritated the French ministry and people, and the present was deemed a favorable moment for retaliation. On the assembling of the Chambers, an amendment was moved by M. Lefebvre to the address in reply to the king's speech in the following terms: "We have also the confidence, that, in granting its concurrence to the suppression of a criminal traffic, your government will know how to preserve from every attack the interest of our commerce and the independence of our flag." This amendment was adopted by the unanimous vote of the Chambers.

This was well understood to be a blow aimed at the quintuple treaty. It was the most formidable parliamentary check ever encountered by M. Guizot's administration. It excited profound sensation throughout Europe. It compelled the French ministry to make the painful sacrifice of a convention negotiated agreeably to instructions, and not differing in principle from those of 1831 and 1833, which were consequently liable to be involved in its fate. The ratification of the quintuple treaty was felt to be out of the question. Although it soon appeared that the king was determined to sustain M. Guizot, it was by no means apparent in what manner his administration was to be rescued from the present embarrassment.

The public feeling in France was considerably heightened by various documents which appeared at this juncture, in connection with the controversy between the United States and Great Britain. The President's message and its accompanying papers reached Europe about the period of the opening of the session. A very few days after the adoption of M. Lefebvre's amendment, a pamphlet, written by General Cass, was published in Paris, and, being soon after translated into French and widely circulated, contributed to strengthen the current of public feeling. A more elaborate essay was, in the course of the season, published by Mr. Wheaton, the Minister of the United States at Berlin, in which the theory of a right of search in time of peace was vigorously assailed.

The preceding sketch of the history of the question will show the difficulty of the position in reference to this most important interest, at the time Lord Ashburton's mission was instituted. With what practical good sense and high statesmanship the controversy was terminated is well known to the country. It is unnecessary here to retrace the steps of the correspondence, to comment on the eighth article of the treaty of Washington, or to analyze the

parliamentary and diplomatic discussions to which in the following year it gave rise. It is enough to say, that, under circumstances of some embarrassment to the Department of State, a course of procedure was happily devised by Mr. Webster, and incorporated into the treaty, which, leaving untouched the metaphysics of the question, furnished a satisfactory practical solution of the difficulty. Circumstances having made a restatement expedient of the principles maintained by the United States on this most important subject, a letter was addressed by Mr. Webster to Mr. Everett, on the 28th of March, 1843, to be read to the British Secretary of State for Foreign Affairs, in which the law of nations applicable to the subject was expounded by the American Secretary with a clearness and power which will render any further discussion of the subject, under its present aspects, entirely superfluous. Nor will it be thought out of place to acknowledge the fairness, good temper, and ability with which the doctrine and practice of the English government were sustained by the Earl of Aberdeen.

The wisdom with which the eighth article of the treaty was drawn up was soon seen in its consequences. Its effect was decisive. It put a stop to all discontent at home in reference to the interruption of our lawful commerce on the coast of Africa. Abroad, it raised the jealousy already existing in France on this subject to the point of uncontrollable repugnance. The ratification of the quintuple treaty had long been abandoned. It was soon evident that the conventions of 1831 and 1833 must be given up. In the course of the year 1844, the Duc de Broglie, the honorable and accomplished minister by whom they had been negotiated, accepted a special mission to London, for the purpose of coming to some satisfactory arrangement by way of substitute, and a convention was soon concluded with the British government on precisely the same principles with those of the treaty of Washington.

It may be hoped that the important suggestion of Mr. Webster will be borne in mind, in any future discussions of this and other maritime questions, that the policy of the United States is not that of a feeble naval power interested in exaggerating the doctrine of neutral inviolability. A respect for every independent flag is a common interest of all civilized states, powerful or weak; but the rank of the United States among naval powers, and their position as the great maritime power on the western coasts of the Atlantic

and the eastern coasts of the Pacific, may lead them to doubt the expediency of pressing too far the views they have hitherto held, and moderate their anxiety to construe with extreme strictness the rights which the law of nations concedes to public vessels.

The three subjects on which we have dwelt, namely, the northeastern boundary, the extradition of fugitives, and the suppression of the slave-trade, were the only ones which required to be provided for by treaty stipulation. Other subjects, scarcely less important and fully as difficult were happily disposed of in the correspondence of the plenipotentiaries. These were the affair of the "Caroline," that of the "Creole," and the question of impressment. Our limits do not permit us to dwell at length on these topics; but we shall be pardoned for one or two reflections.

So urgent is the pressure on the public mind of the successive events which demand attention each as it presents itself, that the formidable difficulties growing out of the destruction of the "Caroline" and the arrest of McLeod are already fading from recollection. They formed, in reality, a crisis of a most serious and delicate character. A glance at the correspondence of the two governments at Washington and London sufficiently shows this to be the case. The violation of the territory of the United States in the destruction of the "Caroline," however unwarrantable the conduct of the "sympathizers" which provoked it, became, from the moment the British government assumed the responsibility of the act, an incident of the gravest character. On the other hand, the inability of the government of the United States to extricate McLeod from the risks of a capital trial in a State court, although the government of England demanded his liberation on the ground that he was acting under the legal orders of his superior, presented a difficulty in the working of our system equally novel and important. Other cases had arisen in which important constitutional principles had failed to take effect, for want of the requisite legislative provisions. It is believed that this was the first time in which a difficulty of this kind had presented itself in our foreign relations. A more threatening one can scarcely be imagined. In addition to the embarrassment occasioned by the refusal of the executive and judiciary of New York to yield to the representations of the general government, the violent interference of the mob presented new difficulties of the most deplorable character. If McLeod had been executed, it is not too much to say, that war would at once have ensued. His acquittal averted this impending danger. The conciliatory spirit cannot be too warmly commended with which, on the one hand, the proper reparation was made by Lord Ashburton for the violation of the American territory, and, on the other hand, Congress, by the passage of an appropriate law, provided an

effectual legislative remedy for any future similar case. They show with what simplicity and ease the greatest evils may be averted, and the most desirable ends achieved, by statesmen and governments animated by a sincere desire to promote the welfare of those who have placed power in their hands, not for selfish, party purposes, but for the public good.

There is, perhaps, no one of the papers written by Mr. Webster as Secretary of State, in which so much force of statement and power of argument are displayed as in the letter on “impressment.” To incorporate a stipulation on this subject into a treaty was, regarding the antecedents of the question, impracticable. But the reply of Lord Ashburton to Mr. Webster’s announcement of the American principle must be considered as acquiescence on the part of his government. It may be doubted whether this odious and essentially illegal practice will ever again be systematically resorted to, even in England.^[28] Considering the advance made by public sentiment on all questions connected with personal liberty, “a hot-press on the Thames” would hardly stand the ordeal of an investigation in Parliament at the present day. It is certain that the right of impressing seamen from American vessels could never be practically asserted in a future war with any other effect than that of adding the United States to the parties in the contest. No refinements in the doctrine of natural allegiance, although their theoretical soundness might equal their subtilty, would be of the least avail here. To force seamen from the deck of a peaceful neutral vessel, pursuing a lawful commerce, and compel them to serve for an indefinite and hopeless period on board a foreign man-of-war, is an act of power and violence to which no nation will submit that is able to resist it. In the case of the United States and Great Britain, that community of language and resemblance in general appearance which may have been considered as palliating the most deplorable results of the exercise of this power, in reality constitute the strongest reason for its abandonment. The unquestionable danger that, with the best intentions, the boarding officer may mistake an American for an Englishman; the certainty that a reckless lieutenant, unmindful of consequences, but bent upon recruiting his ship on a remote foreign station, will pretend to believe that he is seizing the subjects of his own government, whatever may be the evidence to the contrary, are reasons of themselves for denying on the threshold the existence of a right exposed to such inevitable and intolerable abuse.

These and other views of the subject are presented in Mr. Webster's letter to Lord Ashburton of the 8th of August, 1842, with a strength of reasoning and force of illustration not often equalled in a state paper. That letter was spoken of, in the hearing of the writer of this memoir, by one whose name, if it could be mentioned with propriety, would give the highest authority to the remark, as a composition not surpassed by any thing in the language. The principles laid down in it may be considered as incorporated into the public law of the United States, and will have their influence beyond our own territorial limits and beyond our own time.

Some disappointment was probably felt, when the treaty of Washington was published, that a settlement of the Oregon question was not included among its provisions. It need not be said that a subject of such magnitude did not escape the attention of the negotiators. It was, however, speedily inferred by Mr. Webster, from the purport of his informal conferences with Lord Ashburton on this point, that an arrangement of this question was not then practicable, and that to attempt it would be to put the entire negotiation to great risk of failure. On the other hand, it was not less certain that, by closing up the other matters in controversy, the best preparation was made for bringing the Oregon dispute to an amicable issue, whenever circumstances should favor that undertaking. Considerable firmness was no doubt required to act upon this policy, and to forego the attempt, at least, to settle a question rapidly growing into the most formidable magnitude. It is unnecessary to say how completely the course adopted has been justified by the event.

We have in the preceding remarks confined ourselves to the topics connected with the treaty of Washington. But other subjects of great importance connected with the foreign affairs of the country engaged the attention of Mr. Webster as Secretary of State.

The first of these pertained to our controversies with Mexico, and was treated in a letter to M. de Bocanegra, the Mexican Secretary of State and Foreign Relations. The great and unexpected changes which have taken place in that quarter since the date of this correspondence will not impair the interest with which it will be read. It throws important light on the earlier stages of our controversy with that ill-advised and infatuated

government. Among the papers in this part of the volume are those which relate to the Santa Fé prisoners and Captain Jones's attack on Monterey.

Under the head of "Relations with Spain" will be found a correspondence of great interest between the Chevalier d'Argaiz, the representative of that government, and Mr. Webster, on the subject of the "Amistad." The pertinacity with which this matter was pursued by Spain, after its adjudication by the Supreme Court of the United States, furnishes an instructive commentary upon the sincerity of that government in its measures for the abolition of the slave-trade. The entire merits of this important and extraordinary case are condensed in Mr. Webster's letters of the 1st of September, 1841, and 21st of June, 1842.

Of still greater interest are the institution of the mission to China, and the steps which led to the establishment of the independence of the Sandwich Islands. The sixth volume of this collection contains the instructions given to Mr. Cushing as commissioner to China, and the correspondence between Mr. Webster and Messrs. Richards and Haalilio on behalf of the Sandwich Islands. At any period less crowded with important events the opening of diplomatic relations with China, and the conclusion of a treaty of commerce with that power, would have been deemed occurrences of unusual importance. It certainly reflects great credit on the administration, that it acted with such promptitude and efficiency in seizing this opportunity of multiplying avenues of commercial intercourse. Nor is less praise due to the energy and skill of the negotiator,^[29] to whom this novel and important undertaking was confided, and who was able to embark from China, on his return homeward, in six months after his arrival, having in the mean time satisfactorily concluded the treaty.

The application of the representatives of the Sandwich Islands to the government of the United States, and the countenance extended to them at Washington, exercised a most salutary and seasonable influence over the destiny of those islands. The British government was promptly made aware of the course pursued by the United States, and was no doubt led, in a considerable degree, by this circumstance, to promise the Hawaiian delegates, on the part of England, to respect the independent neutrality of their government. In the mean time, the British admiral on that station had taken provisional possession of them on behalf of his government, in anticipation of a similar movement which was expected on the part of

France. If intelligence of this occurrence had been received in London before the promise above alluded to was given by Lord Aberdeen to Messrs. Richards and Haalilio, it is not impossible that Great Britain might have felt herself warranted in retaining the protectorate of the Hawaiian Islands as an offset for the occupation of Tahiti by the French. As it was, the temporary arrangement of the British admiral was disavowed, and the government restored to the native chief.

Among the papers contained in the sixth volume will be found a correspondence between Mr. Webster and the Portuguese Minister, on the subject of duties on Portuguese wines, and a report of great importance on the Sound duties and the Zoll-Verein, topics to which the recent changes in the Germanic system will henceforward impart a greatly increased importance.

This brief enumeration will of itself sufficiently show the extensive range of the subjects to which the attention of Mr. Webster was called, during the two years for which he filled the Department of State.

The published correspondence probably forms but a small portion of the official labors of the Department of State for the period during which it was filled by Mr. Webster. They constitute, nevertheless, the most important part of the documentary record of a period of official service, brief, indeed, but as beneficial to the country as any of which the memory is preserved in her annals. The administration of General Harrison found the United States, in the spring of 1841, on the verge of a war, not with a feeble Spanish province, scarcely capable of a respectable resistance, but with the most powerful government on earth. The conduct of our foreign relations was intrusted to Mr. Webster, as Secretary of State, and in the two years during which he filled that office controversies of fifty years' standing were terminated, new causes of quarrel that sprung up like hydra's heads were settled, and peace was preserved upon honorable terms. The British government, fresh from the conquest of China, perhaps never felt itself stronger than in the year 1842, and a full share of credit is due to the spirit of conciliation which swayed its counsels. Much is due to the wise and amiable minister who was despatched from England on the holy errand of peace; much to the patriotism of the Senate of the United States, who confirmed the treaty of Washington by a larger majority than ever before sustained a measure of this kind which divided public opinion; but the first

meed of praise is unquestionably due to the American negotiator. Let the just measure of that praise be estimated, by reflecting what would have been our condition during the last few years, if, instead of, or in addition to, the war with Mexico, we had been involved in a war with Great Britain.

FOOTNOTES

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This chapter is republished, with but slight modifications, from the volume of Mr. Webster's Diplomatic and Official Papers which appeared in 1848, to which it served as the Introduction.

[24]

Mr. Stevenson.

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Senate Papers, Twenty-seventh Congress, First Session, No. 33.

[26]

Younger son of Mr. Webster, who died in Mexico, in 1848, being a major in the regiment of Massachusetts Volunteers.

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The authorities are given in Story's Commentaries Vol. III. pp. 675, 676; Conflict of Laws, pp. 520, 522; and in Kent's Commentaries, Vol. I. pp. 36, 37.

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The following passage from a letter of Robert Walsh, Esq., to the editors of the National Intelligencer, dated Paris, 28th October, 1842, furnishes confirmation of the remark in the text:—

“The former journal [The Times], of the 18th instant, acknowledges that Mr. Webster ‘has not exaggerated the hardships and evils which the practice of impressment occasioned in the last war.’ It ratifies his ideas of the probable aggravation of them, if the practice should be ever renewed; it would even dispense with press-warrants at home, as adverse to the general principles of British liberty and law: it advises some general measure for the entire abolition of arbitrary impressment both at home and abroad, and it expresses its belief of a very strong probability, that, in the event of a war, no instructions for the impressment of British seamen found in American merchant-vessels will be issued to her Majesty's cruisers. The Standard chimes with the great oracle, and concludes in this strain: ‘We may infer that, whatever may be the plan hereafter for managing our navy, impressment will never again be resorted to; this is beyond a doubt: *the practice complained of by Mr. Webster will be abandoned.*’”

[29]

Mr. Cushing.

CHAPTER IX.

Mr. Webster resigns his Place in Mr. Tyler's Cabinet.—Attempts to draw public Attention to the projected Annexation of Texas.—Supports Mr. Clay's Nomination for the Presidency.—Causes of the Failure of that Nomination.—Mr. Webster returns to the Senate of the United States.—Admission of Texas to the Union.—The War with Mexico.—Mr. Webster's Course in Reference to the War.—Death of Major Webster in Mexico.—Mr. Webster's unfavorable Opinion of the Mexican Government.—Settlement of the Oregon Controversy.—Mr. Webster's Agency in effecting the Adjustment.—Revival of the Sub-Treasury System and Repeal of the Tariff Law of 1842.—Southern Tour.—Success of the Mexican War and Acquisition of the Mexican Provinces.—Efforts in Congress to organize a Territorial Government for these Provinces.—Great Exertions of Mr. Webster on the last Night of the Session.—Nomination of General Taylor, and Course of Mr. Webster in Reference to it.—A Constitution of State Government adopted by California prohibiting Slavery.—Increase of Antislavery Agitation.—Alarming State of Affairs.—Mr. Webster's Speech for the Union.—Circumstances under which it was made, and Motives by which he was influenced.—General Taylor's Death, and the Accession of Mr. Fillmore to the Presidency.—Mr. Webster called to the Department of State.

Mr. Webster remained in the Department of State but a little over two years. His last act was the preparation of the instructions of Mr. Cushing, who had been appointed Commissioner to China. Difficulties had occurred the summer before, between President Tyler and some of the members of his Cabinet, and all of those gentlemen, with the exception of Mr. Webster, tendered their resignations, which were accepted. Hard thoughts were entertained of Mr. Webster in some quarters for continuing to hold his seat after the resignation of his colleagues. President Tyler, however, had in no degree withdrawn his confidence from Mr. Webster in reference to the foreign affairs of the country, nor interfered with the administration of his department, and Mr. Webster conceived that the interests involved in his remaining at his post were far too important to be sacrificed to punctilio. His own sense of duty in this respect was confirmed by the unanimous counsel of the Massachusetts delegation in Congress, and by judicious friends in all parts of the country. In fact, it will be remembered that when difficulties sprung up between Mr. Tyler and the Whig party in Congress, in 1842, the Whig press generally throughout the country called upon the members of the Cabinet appointed by General Harrison to retain their places till they should be removed by Mr. Tyler.

Mr. Webster remained in private life during the residue of President Tyler's administration, occupied as usual with professional pursuits, and enjoying in the appropriate seasons the retirement of his farm. He endeavored by private communications to arouse the feeling of the North to the projects which he perceived to be in agitation for the annexation of Texas but the danger was regarded at that time as too remote to be contended against. A short time only elapsed before the fulfilment of his anticipations was forced upon the country, with fearful urgency, and a train of consequences of which it will be left to a late posterity to witness the full development. Between the years 1843 and 1845 the fortunes of the United States were subjected to an influence, for good or for evil, not to be exhausted for centuries.

The nomination of Mr. Clay to the Presidency in 1844 was cordially supported by Mr. Webster. He took the field, as in the summer of 1840 in favor of General Harrison. The proofs of the untiring zeal with which he entered into the canvass, and of the great power and fertility with which he discussed the various topics of the day, will be seen in the second volume of the present collection. It has, however, been found impossible to insert more than a selection of the speeches made by him during the campaign. Others not inferior in merit and interest were made by him in the course of the summer and autumn of 1844.

It is well known that the result of this election was decisive of the question of the annexation of Texas. The opinions expressed by Mr. Van Buren against the immediate consummation of that project had prevented his receiving the nomination of the Baltimore Convention. Mr. Clay was pledged against the measure, and Mr. Polk was selected as its sure friend. If in 1844 the friends of Mr. Van Buren, instead of giving in their adhesion to the Baltimore nomination (which was in fact turning the scale in favor of Texas), had been prepared, as in 1848, to support a separate nomination, or even if the few thousand votes cast by the "Liberty party" against Mr. Clay had been given in his favor, he would have been chosen President of the United States, to the indefinite postponement of the annexation of Texas and the Mexican war, with all their consequences. But in great things as in small, men throw away the substance while they grasp at the shadow.

At the first session of the Twenty-ninth Congress (1845-46), Mr. Webster took his seat as the successor of Mr. Choate in the Senate of the United

States. The question of the admission of Texas was decided at the very commencement of the session. It was opposed by Mr. Webster. To all the other objections to the measure in his mind was added that of unconstitutionality. The annexation was now brought about simply by a joint resolution of the two houses, after it had been found impossible to effect it by treaty, the only form known to the Constitution by which a compact can be entered into with a foreign power. Mr. Jefferson was of opinion in 1803, that even a treaty with France was not sufficient for the annexation of Louisiana, but that an amendment of the Constitution was necessary for that purpose. In 1845 the executive and a majority of Congress, having failed to carry the ratification of a treaty of annexation by the constitutional majority, scrupled not to accomplish their purpose by a joint resolution of the two houses; and this measure was effected under the lead of statesmen who claim to construe the Constitution with literal strictness. Events like these furnish a painful illustration of the frailty of constitutional restraints as a barrier against the consummation of the favorite measures of a dominant party.

The great event of the administration of President Polk was the war with Mexico. The time has not yet arrived when the counsels under which this war was brought about can be fully unfolded. On the 2d of December, 1845, in his first annual message, having communicated to Congress the acceptance by Texas of the terms of annexation offered by the joint resolution, President Polk thus expressed himself:—

“This accession to our territory has been a bloodless achievement. No arm of force has been raised to produce the result. The sword has had no part in the victory. We have not sought to extend our territorial possessions by conquest, or our republican institutions over a reluctant people. It was the deliberate homage of each people to the great principle of our federative Union.”

The proffered annexation of Texas had been declined both by General Jackson and Mr. Van Buren, on the ground that, unless made with the consent of Mexico, it would involve a war with that power. That this would be the effect was not less certain on the 2d of December, 1845, when Congress were congratulated on the “bloodless” acquisition, than it was when, on the 13th of January following, General Taylor was instructed to occupy the left bank of the Rio del Norte. In fact, in the very message in which President Polk remarks to Congress “that the sword had had no part in the victory,” he gives them also the significant information, that, upon the

earnest appeal both of the Congress and convention of Texas, he had ordered “an efficient military force to take a position between the Nueces and the Del Norte.”

This force, however efficient in proportion to its numbers and in virtue of the gallantry and skill of its commander, was found to be inadequate to sustain the brunt of the Mexican arms. Rapid movements on the part of Generals Ampudia and Arista, commanding on the frontier, seriously endangered the safety of General Taylor’s force, and it became necessary for Congress to strengthen it by prompt reinforcements. In this way the war was commenced. No formal declaration had taken place, nor had it been in the power of Congress to make known its will on the subject, till an absolute necessity arose of reinforcing General Taylor, and the subject had ceased to be one for legislative discretion.

Under these circumstances it was of course impossible for Mr. Webster to approve the war. It had been brought on by the executive will, and without the concurrence of Congress till Congress had ceased to have an option, and its well-known ulterior objects were such as he could not but contemplate with equal disapprobation and alarm. Still, however, in common with the body of his political friends, in and out of Congress, he abstained from all factious opposition, and all measures calculated to embarrass the government. The supplies were voted for by him, but he never ceased to urge upon the President to pursue a magnanimous policy toward the distracted and misgoverned country with which we had been brought in collision. Nor did his opinions of the character of the war lead him to discourage the inclination of his younger son, Mr. Edward Webster, to accept a commission in the regiment of Massachusetts Volunteers. This young gentleman had evinced an energy beyond his years, and practical talent of a high order, as a member of the commission for marking the boundary line between Maine and the British Provinces under the treaty of Washington. His friends looked forward with confidence to his running a brilliant military career. These hopes, like those which accompanied so many other gallant and patriotic spirits to the scene of action, were destined to be early blasted. Major Webster fell a victim to the labors and exposures of the service, and to the climate of the country, under the walls of Mexico.

To avoid all misconception, it may be proper to state that Mr. Webster has at all times entertained an unfavorable opinion of the various administrations

by which Mexico, almost ever since her revolution, has been successively misgoverned. He has felt constrained to regard the greater part of them as military factions, bent more upon supplanting each other than upon promoting the welfare of their country. He was fully aware of the justice of many of the complaints of citizens of the United States for wrongs inflicted and justice withheld. Both while in the executive government himself, and as a member of Congress, he had uniformly expressed himself in terms of severe condemnation of the conduct of the Mexican government in withholding or delaying redress; and he foresaw and foretold that, in obstinately refusing to recognize the independence of Texas, she was laying up for herself a store of consequences the most humiliating and disastrous. Nothing but the most deplorable infatuation could have led the government of Mexico to suppose, that, after the independence of Texas had been recognized by the United States, Great Britain, France, and Belgium, it would be possible for a power as feeble as that of Mexico to reduce the rebellious province to submission. If any confirmation of these statements is needed, it may be found in Mr. Webster's letter to Mr. de Bocanegra, in the sixth volume of this collection.

The settlement of the controversy with England relative to the boundary of Oregon was effected in the first year of Mr. Polk's administration. The foundations for this adjustment had long been laid; in fact, as long ago as the administration of Mr. Monroe, the United States had offered to England the obvious basis of the extension of the forty-ninth degree of latitude to the Pacific. Great Britain allowed herself to be influenced by the Hudson's Bay Company so far, as to insist upon following the course of the Columbia down to the sea. She even took the extravagant ground that, although the United States, by the Louisiana and Florida treaties, combined the Spanish and the French titles with that of actual contiguity and prior discovery of the Columbia River, they had no exclusive title to any portion of the territory, but that it was all subject to her own joint and rival claim. This unreasonable pretension brought the two countries to the verge of war. The Baltimore Convention, in the year 1844, set up a claim, equally unreasonable, to the whole of the territory. President Polk in his inaugural message, quoting the words of the resolution of the Baltimore Convention, pronounced our title to the territory to be "clear and unquestionable."

The assertion of these opposite extremes of pretension happily resulted in the final adjustment on the forty-ninth degree. Mr. Webster had uniformly been of opinion that this was the fair basis of settlement. Had he supposed that an arrangement could have been effected on this basis with Lord Ashburton, he would gladly have included it in the treaty of Washington. After Mr. Webster's retirement from the Department of State, it is stated by President Polk that Mr. Upshur instructed Mr. Everett to offer that line to the British government; but the negotiation had in the mean time, by the appointment of Mr. Pakenham, been transferred to Washington. The offer of the forty-ninth degree of latitude was renewed to Mr. Pakenham, but accompanied with conditions which led him to decline it, and to express the hope that the United States would make "some further proposal for the settlement of the Oregon question more consistent with fairness and equity, and with the reasonable expectations of the British government." The offer thus injudiciously rejected was withdrawn by the administration. In this dangerous juncture of affairs, the following incidents occurred, which we give in the words of the "London Examiner":

"In reply to a question put to him in reference to the present war establishments of this country, and the propriety of applying the principle of arbitration in the settlement of disputes arising among nations, Mr. McGregor, one of the candidates for the representation of Glasgow, took occasion to narrate the following very important and remarkable anecdote in connection with our recent, but now happily terminated differences with the United States on the Oregon question. At the time our ambassador at Washington, the Hon. Mr. Pakenham, refused to negotiate on the forty-ninth parallel of north latitude as the basis of a treaty, and when by that refusal the danger of a rupture between Great Britain and America became really imminent, Mr. Daniel Webster, formerly Secretary of State to the American government, wrote a letter to Mr. McGregor, in which he strongly deprecated Mr. Pakenham's conduct, which, if persisted in and adopted at home, would, to a certainty, embroil the two countries, and suggested an equitable compromise, taking the forty-ninth parallel as the basis of an adjustment. Mr. McGregor agreeing entirely with Mr. Webster in the propriety of a mutual giving and taking to avoid a rupture, and the more especially as the whole territory in dispute was not worth £20,000 to either power, while the preparations alone for a war would cost a great deal more before the parties could come into actual conflict, communicated the contents of Mr. Webster's letter to Lord John Russell, who at the time was living in the neighborhood of Edinburgh, and, in reply, received a letter from Lord John, in which he stated his entire accordance with the proposal recommended by Mr. Webster, and approved of by Mr. McGregor, and requested the latter, as he (Lord John) was not in a position to do it himself, to intimate his opinion to Lord Aberdeen. Mr. McGregor, through Lord Canning, Under-Secretary for the Foreign Department, did so, and the result was, that the first packet that left England carried out to America the proposal, in accordance with the communication already referred to, on which the treaty of Oregon was happily concluded. Mr. McGregor may, therefore, be very justly said to have been the instrument of preserving the peace of the world; and for that alone, even if he had no other services to appeal to, he has justly earned the applause and

admiration, not of his own countrymen only, but of all men who desire to promote the best interests of the human race.”

Without wishing to detract in any degree from the praise due to Mr. McGregor for his judicious and liberal conduct on this occasion, the credit of the main result is exclusively due to his American correspondent. A powerful influence was ascribed also to an able article in the *Edinburgh Review* for April, 1845, in which the reasonableness of this basis of settlement was set forth with great ability.

The first session of the Twenty-ninth Congress was signaled by the revival of the sub-treasury system, and the overthrow of the tariff of 1842. At a moment when the public finances were, in reference to the means of collection, custody, and transfer, in a sound and healthy condition, the administration deemed it expedient to subject the country and the treasury to the hazard and inconvenience of a change. Mr. Webster spoke with equal earnestness and power against the renewal of experiments which had already proved so disastrous; but the bill was carried by a party vote. The same success attended the President’s recommendation of an entire change in the revenue system, by which, instead of specific duties, *ad valorem* duties were to be assessed on the foreign valuation. Various other changes were made in the tariff established in 1842, equally tending to depress our own manufactures, and to give a preference to foreign over native labor, and this even in cases where no benefit could be expected to accrue to the treasury from the change. Mr. Webster made a truly Herculean effort against the government project, in his speech of the 25th and 26th of July, 1846, but the decree had gone forth. The scale was turned by the Senators from the new State of Texas, which had been brought into the Union by the votes of members of Congress whose constituents had the deepest interest in sustaining the tariff of 1842.

In the spring of 1847, after the adjournment of Congress, Mr. Webster undertook a tour to the South. His object was to pass by the way of the Atlantic States to New Orleans, and to ascend the Mississippi. He had never seen that part of the Union, and promised himself equal gratification and instruction from an opportunity, however brief, of personal inspection. He was ever of opinion that higher motives than those of curiosity and recreation should lead the citizens of different parts of the country to the interchange of visits of this kind. That they had become so much less

frequent than they were in former years he regarded as one of the inauspicious features of the times. He was accompanied on this excursion by his family. They passed hastily through Virginia and North Carolina to South Carolina. At Charleston he was received with the most distinguished attention and cordiality. He was welcomed on his arrival by an assemblage of the most respectable citizens. Entertainments were given him by the New England Society of Charleston and by the Charleston Bar. At these festivals the sentiments and speeches were of the most cordial description. Similar hospitalities and honors were paid him at Columbia, Augusta, and Savannah. No trace of sectional or party feeling detracted from the warmth of his reception. His visit was everywhere regarded as an interesting public event. Unhappily, his health failed him on his arrival at Savannah; and the advance of the season made it impossible for him to execute the original project of a journey to New Orleans. He was compelled to hasten back to the North.

Meantime events of higher importance were in progress. Success crowned our arms in the Mexican war. The military skill, gallantry, and indomitable resolution of the great captains to whom the chief command of the war had been committed, (though not by the first choice of the administration,) aided by the spirit and discipline of the troops, achieved the conquest of Mexico. Peace was dictated to her from Washington, and a treaty concluded, by which extensive portions of her territory, comprising the province of New Mexico and a considerable part of California, were ceded to the United States. Mr. Webster, foreseeing that these cessions would prove a Pandora's box of discord and strife between the different sections of the Union, voted against the ratification of the treaty. He was sustained in this course by some Southern Whig Senators, but the constitutional majority deemed any treaty better than the continuation of the war.

With the restoration of peace, the question what should be done with the territories presented itself with alarming prominence. Formidable under any circumstances, it became doubly so in consequence of the discovery of gold in California, and the prodigious rush to that quarter of adventurers from every part of the world. Population flocked into and took possession of the country, its ancient political organization, feeble at best, was subverted, and the immediate action of Congress was necessary to prevent a state of anarchy. The House of Representatives passed a bill providing for the

organization of a territorial government for the provinces newly acquired from Mexico, with the antislavery proviso, borrowed from the Ordinance of 1787. This bill failed to pass the Senate, and nothing was done at the first session of the Thirtieth Congress to meet the existing emergency in California.

At the second session, bills were introduced into the Senate for erecting California and New Mexico into States; the question of slavery to be left to the people of the States respectively. These bills, however, did not pass the Senate. A few days before the close of the session, Mr. Walker of Wisconsin moved an amendment to the general appropriation bill for the support of government, providing for the extension of the revenue laws of the United States over California and New Mexico; to extend the provisions of the Constitution of the United States to these territories, together with all the laws applicable to them; and granting authority to the President to appoint the officers necessary to carry these provisions into effect. This amendment prevailed in the Senate, but was further amended in the House, by adding to it the "Wilmot Proviso." The Senate refused to accede to this amendment of their amendment, and the two houses were brought to the verge of a disagreement, which would have prevented the passage of the general appropriation bill, and stopped the wheels of government. The debates in the Senate were of the most impassioned kind, and were protracted till five o'clock of Sunday morning, the 4th of March; when the Senate, on the suggestion of Mr. Webster, disagreed to the amendment of the House relative to California, and at the same time receded from their own amendment, and thus passed the general appropriation bill, as it originally came from the House. All provision for the territories was necessarily sacrificed by this course; but a bill which had previously passed the House, extending the revenue laws of the United States to California, was passed by the Senate, and rescued the people of California from an entire destitution of government on behalf of the United States. The Senate on this occasion was, for the first time since the adoption of the Constitution, on the verge of disorganization; and it was felt throughout the day and night, that it was saved from falling into that condition mainly by the parliamentary tact and personal influence of Mr. Webster. This tribute was paid to Mr. Webster's arduous exertions on that occasion by a member of Congress warmly opposed to him.

Not the least important consequence of the Mexican war was the political revolution in the United States of which it was the cause. When the policy of invading and conquering Mexico was determined upon, it was probably regarded by the administration as a measure calculated to strengthen their party. Opponents were likely to expose themselves to odium by disapproving the war. The commanding generals were both Whigs, and one of them had been named as a candidate for the Presidency. It was probably thought that, if they succeeded, the glory would accrue to the administration; if they failed, the discredit would fall upon themselves.

If anticipations like these were formed, they were signally disappointed. A series of the most brilliant triumphs crowned the arms both of General Taylor and General Scott. Those of General Taylor were first in time; and as they had been preceded by doubts, anxieties, and, in the case of Buena Vista, by rumors of disaster, they took the stronger hold of the public mind. The nomination for the Presidency was not reserved for the Whig convention. It was in effect made at Palo Alto and Monterey, and was confirmed at Buena Vista. It was a movement of the people to which resistance was in vain.

Statesmen and civilians, however, might well pause for a moment. The late experience of the country, under a President elected in consequence of military popularity, was not favorable to a repetition of the experiment; and General Taylor was wholly unknown in political life. At the Whig convention in Philadelphia other distinguished Whigs, General Scott, Mr. Clay, and Mr. Webster, had divided the votes with General Taylor. He was, however, selected by a great majority as the candidate of the party. Mr. Webster took the view of this nomination which might have been expected from a veteran statesman and a civilian of forty years' experience in the service of the country. He had, in common with the whole Whig party, in General Jackson's case, opposed the nomination of a military chieftain. How many Whigs who hailed General Taylor's nomination with enthusiasm had as good reasons for so doing as Mr. Webster had for the moderation and reserve with which he spoke of it in his Marshfield speech? Few persons, at the present day, will find in that speech any thing, with respect to General Taylor's nomination, from which a candid and impartial judgment would dissent; and it is well known, that, in the progress of the canvass, that nomination found no firmer supporter than Mr. Webster. On his accession to

the Presidency, General Taylor found Mr. Webster disposed and prepared to give his administration a cordial and efficient support.

In the summer and autumn of 1849 events of the utmost importance occurred in California. The people of that region, left almost entirely without a government by Congress, met in convention to form a constitution; and although nearly half of the members who were newcomers were from the Southern States, they unanimously agreed to the prohibition of slavery. The constitution prepared by the convention was accepted by the people, and with it they applied for admission to the Union. General Riley, who had been appointed by the President to command the forces in that territory, was instructed to facilitate, as far as it was in his power, the assembling of a convention; and the course pursued by the convention and the people in the formation of the constitution was understood to be in all respects approved by President Taylor.

Other occurrences, however, had in the mean time taken place, which materially increased the difficulties attending the territorial question. The subject of slavery had for fifteen or twenty years been agitated with steadily increasing warmth, and for the latter portion of the period with growing violence. On the acquisition of the Mexican provinces, the representatives of the non-slaveholding States generally deemed it their duty to introduce into the acts passed for their government a restriction analogous to the antislavery proviso of the Ordinance of 1787. A motion to this effect having been made by Mr. Wilmot of Pennsylvania, by way of amendment to one of the appropriation bills passed during the war, the restriction has obtained the name of the "Wilmot Proviso." This motion in the House of Representatives was extensively seconded by the press, by popular assemblies, and by legislative resolutions throughout the non-slaveholding States, and caused a considerable increase of antislavery agitation.

The South, of course, took an interest in the question not inferior to that of the North. The extension of the United States on the southwestern frontier has long been a cardinal point in the policy of most Southern statesmen. The application of an antislavery proviso to territories acquired by conquest in that quarter came into direct conflict with this policy. Meetings were accordingly held at Washington during the first session of the Thirtieth Congress, attended by a majority of the members from the slaveholding States, to take into consideration the measures proper to be adopted. At one

of these meetings a sub-committee was appointed, of which Mr. Calhoun was chairman, to prepare an address “of the Southern delegates to their constituents.” At a subsequent meeting a substitute for this address was submitted by Mr. Berrien of Georgia, under the title of an address “to the people of the United States.” The original paper was, however, adopted in preference, and received the signatures of forty-eight of the members of Congress from the slaveholding States. Of these all but two were of the Democratic party.^[30]

These proceedings contributed materially to increase the discontents existing at the South. Nor was the progress of excitement less rapid at the North. The nomination of General Taylor by the Whig convention, accompanied by the refusal of that convention to countenance the Wilmot Proviso, led to the organization of the Free Soil party in the non-slaveholding States. In the summer of 1848, a convention of delegates of this party assembled at Buffalo in New York, at which an antislavery platform was adopted, and Mr. Van Buren was nominated as a candidate for the Presidency.

These occurrences and the state of feeling which they created, or indicated, appeared to Mr. Webster to constitute a crisis in the condition of the country of a most formidable description. Opinion at the North and South had, in his judgment, either reached, or was rapidly reaching, a point at which the coöperation of the two sections of the country in carrying on the government as coequal members of the Federal Union would cease to be practicable. The constitutional opinions and the views on the subject of slavery set forth in Mr. Calhoun’s address he deemed to be such as could never be acquiesced in by the non-slaveholding States. On the other hand, the organization of a party on the basis of antislavery agitation at the North appeared to him equally menacing to the Union. The professions of attachment to the Union and the Constitution made on both sides, and often, no doubt, in entire good faith, did but increase the danger, by their tendency to produce misapprehension and self-deception as to the really irreconcilable nature of the opposite extremes of opinion.

It was his profound and anxious sense of the dangers of the Union, in this crisis of affairs, which reconciled Mr. Webster to the nomination of General Taylor. He saw in his position as a citizen of a Southern State and a slaveholder the basis of support to his administration from that quarter of

the Union; while his connection with the Whig party, the known moderation of his views, with his declared sentiments on the subject of the Presidential veto, were a sufficient ground for the confidence of the North. In fact, in the existing state of things, it was soon apparent that there was no other candidate of either party so well calculated to allay sectional differences, and guide the vessel of state over the stormy sea of excitement and agitation.

But whatever reliance might justly have been placed upon the character and disposition of General Taylor, the prospect of affairs was sufficiently dark and inauspicious. Thoughtful persons looked forward to a struggle on the territorial question, at the first session of the Thirty-first Congress, which would convulse the country. In this state of things the event which we have already alluded to took place, and California presented herself for admission as a State, with a constitution prohibiting slavery. As California was the only portion of the Mexican territory in reference to which the question was of practical importance, Mr. Webster derived from this unexpected and seasonable occurrence a gleam of hope. It removed a topic of controversy in reference to which it had seemed hopeless to propose any terms of compromise; and it opened, as it were providentially, the door for an understanding on other points, on the basis of carrying into execution existing compacts and constitutional provisions on the one hand, and not strenuously insisting, on the other hand, upon applying the antislavery proviso where, as in Utah and New Mexico, he was persuaded it could be of no practical importance.

On these principles, and with this object in view, Mr. Webster made his great speech of the 7th of March, 1850.

It would be too much to expect, in reference to a subject of so much difficulty, and one on which the public mind has been so greatly excited, that a speech of this description should find universal favor in any part of the country. It is believed, however, that by the majority of patriotic and reflecting citizens in every part of the United States, while on single topics there may be differences of opinion, it has been regarded as holding out a practical basis for the adjustment of controversies, which had already gone far to dissolve the Union, and could not be much longer pursued without producing that result. If those who have most strongly expressed their dissent from the doctrines of the speech (we do not, of course, allude to the

mere clamor of political or personal enemies) will pause from the work of denunciation, and make the attempt themselves to lay down *a practicable platform* on which this great controversy can in fact be settled, and the union of the States perpetuated, they will not find it so hard to censure what is done by others as to do better themselves. It is quite easy to construct a Southern platform or a Northern platform; the difficulty is to find a basis on which South and North will be able and *willing* to stand together. Of all those who have condemned the views of Mr. Webster, who has gone further than he, in the speech of the 7th of March, 1850, to furnish such a basis? Or rather, we may ask, who of those that have been loudest in condemnation of his course has taken a single step towards effecting this paramount object?

Mr. Webster's thoughts are known to have been earnestly and profoundly employed on this subject from the commencement of the session. He saw beforehand the difficulties and the dangers incident to the step which he adopted, but he believed that, unless some such step was taken in the North, the separation of the States was inevitable. The known state of opinion of leading members of Congress led him to look for little support from them. He opened the matter to some of his political friends, but they did not encourage him in the course he felt bound to pursue. He found that he could not expect the coöperation of the members of Congress from his own State, nor that of many of the members from the other Northern States. He gave up all attempt to rally beforehand a party which would sustain him. His own description of his feelings at the time was, "that he had made up his mind to embark alone on what he was aware would prove a stormy sea, because, in that case, should final disaster ensue, there would be but one life lost." But he believed that the step which he was about to take would be sanctioned by the mass of the people, and in that reliance he went forward.

While the compromise measures were still undecided before Congress, about midsummer of 1850, President Taylor was removed from his high office by death. In the reorganization of the executive occasioned by this event, Mr. Webster, to the general satisfaction of the country, was placed by President Fillmore at the head of the administration. Subsequent events are too recent to need to be described. The correspondence with the Austrian Chargé d'Affaires is the worthy complement, after an interval of a quarter of a century, to the profound discussion of international politics contained in the speech of January, 1824, on the revolution in Greece, and that of

1826, on the Congress of Panama. We have before us a translation of this correspondence furtively published in Germany, and circulated throughout the Austrian empire. The fervid appeals to the patriotism of the people, with which Mr. Webster has electrified the Union on various occasions during the last nine months, have contributed materially to the great work of sectional conciliation; and his last noble effort, on laying the corner-stone of the Capitol, will be read with admiration as long as the Capitol itself shall last.

Such, in a brief and imperfect narrative, is the public life of Mr. Webster, extending over a period of forty years, marked by the occurrence of events of great importance. It has been the aim of the writer to prevent the pen of the biographer from being too much influenced by the partiality of the friend. Should he seem to the candid not wholly to have escaped that error, (which, however, he trusts will not be the case,) he ventures to hope that it will be forgiven to an intimacy which commenced in the youth of one of the parties and the boyhood of the other, and which has subsisted for nearly half a century. It will be admitted, he thinks, by every one, that this career, however inadequately delineated, has been one of singular eminence and brilliancy. Entering upon public life at the close of the first epoch in the political history of the United States under the present Constitution, Mr. Webster has stood below none of the distinguished men who have impressed their character on the second.

There is a class of public questions in reference to which the opinions of most men are greatly influenced by prejudices founded in natural temperament, early association, and real or supposed local interest. As far as such questions are concerned, it is too much to hope that, in times of high party excitement, full justice will be done to prominent statesmen by those of their contemporaries who differ from them. We greatly err, however, if candid men of all parties, and in all parts of the country, do not accord to Mr. Webster the praise of having formed to himself a large and generous view of the character of an American statesman, and of having adopted the loftiest standard of public conduct. They will agree that he has conceived, in all its importance, the position of the country as a member of the great family of nations, and as the leading republican government. In reference to domestic politics it will be as generally conceded, that, reposing less than most public men on a party basis, it has been the main object of his life to

confirm and perpetuate the great work of the constitutional fathers of the last generation.

By their wisdom and patriotic forethought we are blessed with a system in which the several States are brought into a union so admirably composed and balanced,—both complicated and kept distinct with such skill,—as to seem less a work of human prudence than of Providential interposition.^[31] Mr. Webster has at all times been fully aware of the evils of anarchy, discord, and civil war at home, and of utter national insignificance abroad, from which the formation of the Union saved us. He has been not less sensible to the obstacles to be overcome the perils to be encountered, and the sufferings to be borne, before this wonderful framework of government could be established. And he has been firmly persuaded that, if once destroyed, it can never be reconstructed. With these views, his political life has been consecrated to the maintenance in all their strength of the principles on which the Constitution rests, and to the support of the system of government created by it.

The key to his whole political course is the belief that, when the Union is dissolved, the internal peace, the vigorous growth, and the prosperity of the States, and the welfare of their inhabitants, are blighted for ever, and that, while the Union endures, all else of trial and calamity which can befall a nation may be remedied or borne. So believing, he has pursued a course which has earned for him an honored name among those who have discharged the duty of good citizens with the most distinguished ability, zeal, and benefit to the country. In the relations of civilized life, there is no higher service which man can render to man, than thus to preserve a wise constitution of government in healthful action. Nor does the most eloquent of the statesmen of antiquity content himself with pronouncing this the highest human merit. In that admirable treatise on the Republic, of which some precious chapters have been restored to us after having been lost for ages, he does not hesitate to affirm, that there is nothing in which human virtue approaches nearer the divine, than in establishing and preserving states: “neque enim ulla res est, in qua propius ad deorum numen virtus accedat humana, quam civitates aut condere novas aut conservare jam conditas.”^[32]

FOOTNOTES

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In compiling this narrative much use has been made of the third volume of the work entitled “The Statesman’s Manual,” a most useful work of reference.

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This idea is beautifully expressed in the following passage of a late letter from Mr. Webster, in reply to an invitation from the citizens of Macon, Georgia:—

“The States are united, not consolidated;

‘Not, chaos-like, together crashed and bruised,
But, like the world, harmoniously confused,
Where order in variety we see;
And where, though all things differ, all agree.’”

[32]

M. Tulli Ciceronis de Re Publica quæ supersunt, edente Angelo Maio. Lib. I. § 7.

FIRST SETTLEMENT OF NEW ENGLAND.

INTRODUCTORY NOTE.

3

The first public anniversary celebration of the landing of the Pilgrims at Plymouth took place under the auspices of the “Old Colony Club,” of whose formation an account may be found in the interesting little work of William S. Russell, Esq., entitled “Guide to Plymouth and Recollections of the Pilgrims.”

This club was formed for general purposes of social intercourse, in 1769; but its members determined, by a vote passed on Monday the 18th of December of that year, “to keep” Friday, the 22d, in commemoration of the landing of the fathers. A particular account of the simple festivities of this first public celebration of the landing of the Pilgrims will be found at page 220 of Mr. Russell’s work.

The following year, the anniversary was celebrated much in the same manner as in 1769, with the addition of a short address, pronounced “with modest and decent firmness, by a member of the club, Edward Winslow, Jr., Esq.,” being the first address ever delivered on this occasion.

In 1771, it was suggested by Rev. Chandler Robbins, pastor of the First Church at Plymouth, in a letter addressed to the club, “whether it would not be agreeable, for the entertainment and instruction of the rising generation on these anniversaries, to have a sermon in public, some part of the day, peculiarly adapted to the occasion.” This recommendation prevailed, and an appropriate discourse was delivered the following year by the Rev. Dr. Robbins.

In 1773 the Old Colony Club was dissolved, in consequence of the conflicting opinions of its members on the great political questions then agitated. Notwithstanding this event, the anniversary celebrations of the 22d

of December continued without interruption till 1780, when they were suspended. After an interval of fourteen years, a public discourse was again delivered by the Rev. Dr. Robbins. Private celebrations took place the four following years, and from that time till the year 1819, with one or two exceptions, the day was annually commemorated, and public addresses were delivered by distinguished clergymen and laymen of Massachusetts.

In 1820 the “Pilgrim Society” was formed by the citizens of Plymouth and the descendants of the Pilgrims in other places, desirous of uniting “to commemorate the landing, and to honor the memory of the intrepid men who first set foot on Plymouth rock.” The foundation of this society gave a new impulse to the anniversary celebrations of this great event. The Hon. Daniel Webster was requested to deliver the public address on the 22d of December of that year, and the following discourse was pronounced by him on the ever-memorable occasion. Great public expectation was awakened by the fame of the orator; an immense concourse assembled at Plymouth to unite in the celebration; and it may be safely anticipated, that some portion of the powerful effect of the following address on the minds of those who were so fortunate as to hear it, will be perpetuated by the press to the latest posterity.

From 1820 to the present day, with occasional interruptions, the 22d of December has been celebrated by the Pilgrim Society. A list of all those by whom anniversary discourses have been delivered since the first organization of the Old Colony Club, in 1769, may be found in Mr. Russell’s work.

Nor has the notice of the day been confined to New England. Public celebrations of the landing of the Pilgrims have been frequent in other parts of the country, particularly in New York. The New England Society of that city has rarely permitted the day to pass without appropriate honors. Similar societies have been formed at Philadelphia, Charleston, S. C., and Cincinnati, and the day has been publicly commemorated in several other parts of the country.

FIRST SETTLEMENT OF NEW ENGLAND. [33]

Let us rejoice that we behold this day. Let us be thankful that we have lived to see the bright and happy breaking of the auspicious morn, which commences the third century of the history of New England. Auspicious, indeed,—bringing a happiness beyond the common allotment of Providence to men,—full of present joy, and gilding with bright beams the prospect of futurity, is the dawn that awakens us to the commemoration of the landing of the Pilgrims.

Living at an epoch which naturally marks the progress of the history of our native land, we have come hither to celebrate the great event with which that history commenced. For ever honored be this, the place of our fathers' refuge! For ever remembered the day which saw them, weary and distressed, broken in every thing but spirit, poor in all but faith and courage, at last secure from the dangers of wintry seas, and impressing this shore with the first footsteps of civilized man!

It is a noble faculty of our nature which enables us to connect our thoughts, our sympathies, and our happiness with what is distant in place or time; and, looking before and after, to hold communion at once with our ancestors and our posterity. Human and mortal although we are, we are nevertheless not mere insulated beings, without relation to the past or the future. Neither the point of time, nor the spot of earth, in which we physically live, bounds our rational and intellectual enjoyments. We live in the past by a knowledge of its history; and in the future by hope and anticipation. By ascending to an association with our ancestors; by contemplating their example and studying their character; by partaking their sentiments, and imbibing their spirit; by accompanying them in their toils, by sympathizing in their sufferings, and rejoicing in their successes and their triumphs; we seem to belong to their age, and to mingle our own existence with theirs. We become their contemporaries, live the lives which they lived, endure what they endured, and partake in the rewards which they enjoyed. And in like manner, by running along the line of future time, by contemplating the probable fortunes of those who are coming after us, by attempting something which may promote their happiness, and leave some not dishonorable memorial of ourselves for their regard, when we

shall sleep with the fathers, we protract our own earthly being, and seem to crowd whatever is future, as well as all that is past, into the narrow compass of our earthly existence. As it is not a vain and false, but an exalted and religious imagination, which leads us to raise our thoughts from the orb, which, amidst this universe of worlds, the Creator has given us to inhabit, and to send them with something of the feeling which nature prompts, and teaches to be proper among children of the same Eternal Parent, to the contemplation of the myriads of fellow-beings, with which his goodness has peopled the infinite of space; so neither is it false or vain to consider ourselves as interested and connected with our whole race, through all time; allied to our ancestors; allied to our posterity; closely compacted on all sides with others; ourselves being but links in the great chain of being, which begins with the origin of our race, runs onward through its successive generations, binding together the past, the present, and the future, and terminating at last, with the consummation of all things earthly, at the throne of God.

There may be, and there often is, indeed, a regard for ancestry, which nourishes only a weak pride; as there is also a care for posterity, which only disguises an habitual avarice, or hides the workings of a low and grovelling vanity. But there is also a moral and philosophical respect for our ancestors, which elevates the character and improves the heart. Next to the sense of religious duty and moral feeling, I hardly know what should bear with stronger obligation on a liberal and enlightened mind, than a consciousness of alliance with excellence which is departed; and a consciousness, too, that in its acts and conduct, and even in its sentiments and thoughts, it may be actively operating on the happiness of those who come after it. Poetry is found to have few stronger conceptions, by which it would affect or overwhelm the mind, than those in which it presents the moving and speaking image of the departed dead to the senses of the living. This belongs to poetry, only because it is congenial to our nature. Poetry is, in this respect, but the handmaid of true philosophy and morality; it deals with us as human beings, naturally reverencing those whose visible connection with this state of existence is severed, and who may yet exercise we know not what sympathy with ourselves; and when it carries us forward, also, and shows us the long continued result of all the good we do, in the prosperity of those who follow us, till it bears us from ourselves, and absorbs us in an intense interest for what shall happen to the generations after us, it speaks

only in the language of our nature, and affects us with sentiments which belong to us as human beings.

Standing in this relation to our ancestors and our posterity, we are assembled on this memorable spot, to perform the duties which that relation and the present occasion impose upon us. We have come to this Rock, to record here our homage for our Pilgrim Fathers; our sympathy in their sufferings; our gratitude for their labors; our admiration of their virtues; our veneration for their piety; and our attachment to those principles of civil and religious liberty, which they encountered the dangers of the ocean, the storms of heaven, the violence of savages, disease, exile, and famine, to enjoy and to establish. And we would leave here, also, for the generations which are rising up rapidly to fill our places, some proof that we have endeavored to transmit the great inheritance unimpaired; that in our estimate of public principles and private virtue, in our veneration of religion and piety, in our devotion to civil and religious liberty, in our regard for whatever advances human knowledge or improves human happiness, we are not altogether unworthy of our origin.

There is a local feeling connected with this occasion, too strong to be resisted; a sort of *genius of the place*, which inspires and awes us. We feel that we are on the spot where the first scene of our history was laid; where the hearths and altars of New England were first placed; where Christianity, and civilization, and letters made their first lodgement in a vast extent of country, covered with a wilderness, and peopled by roving barbarians. We are here, at the season of the year at which the event took place. The imagination irresistibly and rapidly draws around us the principal features and the leading characters in the original scene. We cast our eyes abroad on the ocean, and we see where the little bark, with the interesting group upon its deck, made its slow progress to the shore. We look around us, and behold the hills and promontories where the anxious eyes of our fathers first saw the places of habitation and of rest. We feel the cold which benumbed, and listen to the winds which pierced them. Beneath us is the Rock,^[34] on which New England received the feet of the Pilgrims. We seem even to behold them, as they struggle with the elements, and, with toilsome efforts, gain the shore. We listen to the chiefs in council; we see the unexampled exhibition of female fortitude and resignation; we hear the whisperings of youthful impatience, and we see, what a painter of our own has also

represented by his pencil,^[35] chilled and shivering childhood, houseless, but for a mother's arms, couchless, but for a mother's breast, till our own blood almost freezes. The mild dignity of CARVER and of BRADFORD; the decisive and soldierlike air and manner of STANDISH; the devout BREWSTER; the enterprising ALLERTON;^[36] the general firmness and thoughtfulness of the whole band; their conscious joy for dangers escaped; their deep solicitude about dangers to come; their trust in Heaven; their high religious faith, full of confidence and anticipation; all of these seem to belong to this place, and to be present upon this occasion, to fill us with reverence and admiration.

The settlement of New England by the colony which landed here^[37] on the twenty-second^[38] of December, sixteen hundred and twenty, although not the first European establishment in what now constitutes the United States, was yet so peculiar in its causes and character, and has been followed and must still be followed by such consequences, as to give it a high claim to lasting commemoration. On these causes and consequences, more than on its immediately attendant circumstances, its importance, as an historical event, depends. Great actions and striking occurrences, having excited a temporary admiration, often pass away and are forgotten, because they leave no lasting results, affecting the prosperity and happiness of communities. Such is frequently the fortune of the most brilliant military achievements. Of the ten thousand battles which have been fought, of all the fields fertilized with carnage, of the banners which have been bathed in blood, of the warriors who have hoped that they had risen from the field of conquest to a glory as bright and as durable as the stars, how few that continue long to interest mankind! The victory of yesterday is reversed by the defeat of to-day; the star of military glory, rising like a meteor, like a meteor has fallen; disgrace and disaster hang on the heels of conquest and renown; victor and vanquished presently pass away to oblivion, and the world goes on in its course, with the loss only of so many lives and so much treasure.

But if this be frequently, or generally, the fortune of military achievements, it is not always so. There are enterprises, military as well as civil, which sometimes check the current of events, give a new turn to human affairs, and transmit their consequences through ages. We see their importance in their results, and call them great, because great things follow. There have been battles which have fixed the fate of nations. These come down to us in

history with a solid and permanent interest, not created by a display of glittering armor, the rush of adverse battalions, the sinking and rising of pennons, the flight, the pursuit, and the victory; but by their effect in advancing or retarding human knowledge, in overthrowing or establishing despotism, in extending or destroying human happiness. When the traveller pauses on the plain of Marathon, what are the emotions which most strongly agitate his breast? What is that glorious recollection, which thrills through his frame, and suffuses his eyes? Not, I imagine, that Grecian skill and Grecian valor were here most signally displayed; but that Greece herself was saved. It is because to this spot, and to the event which has rendered it immortal, he refers all the succeeding glories of the republic. It is because, if that day had gone otherwise, Greece had perished. It is because he perceives that her philosophers and orators, her poets and painters, her sculptors and architects, her governments and free institutions, point backward to Marathon, and that their future existence seems to have been suspended on the contingency, whether the Persian or the Grecian banner should wave victorious in the beams of that day's setting sun. And, as his imagination kindles at the retrospect, he is transported back to the interesting moment; he counts the fearful odds of the contending hosts; his interest for the result overwhelms him; he trembles, as if it were still uncertain, and seems to doubt whether he may consider Socrates and Plato, Demosthenes, Sophocles, and Phidias, as secure, yet, to himself and to the world.

"If we conquer," said the Athenian commander on the approach of that decisive day, "if we conquer, we shall make Athens the greatest city of Greece."^[39] A prophecy, how well fulfilled! "If God prosper us," might have been the more appropriate language of our fathers, when they landed upon this Rock, "if God prosper us, we shall here begin a work which shall last for ages; we shall plant here a new society, in the principles of the fullest liberty and the purest religion; we shall subdue this wilderness which is before us; we shall fill this region of the great continent, which stretches almost from pole to pole, with civilization and Christianity; the temples of the true God shall rise, where now ascends the smoke of idolatrous sacrifice; fields and gardens, the flowers of summer, and the waving and golden harvest of autumn, shall spread over a thousand hills, and stretch along a thousand valleys, never yet, since the creation, reclaimed to the use of civilized man. We shall whiten this coast with the canvas of a prosperous

commerce; we shall stud the long and winding shore with a hundred cities. That which we sow in weakness shall be raised in strength. From our sincere, but houseless worship, there shall spring splendid temples to record God's goodness; from the simplicity of our social union, there shall arise wise and politic constitutions of government, full of the liberty which we ourselves bring and breathe; from our zeal for learning, institutions shall spring which shall scatter the light of knowledge throughout the land, and, in time, paying back where they have borrowed, shall contribute their part to the great aggregate of human knowledge; and our descendants, through all generations, shall look back to this spot, and to this hour, with unabated affection and regard."

A brief remembrance of the causes which led to the settlement of this place; some account of the peculiarities and characteristic qualities of that settlement, as distinguished from other instances of colonization; a short notice of the progress of New England in the great interests of society, during the century which is now elapsed; with a few observations on the principles upon which society and government are established in this country; comprise all that can be attempted, and much more than can be satisfactorily performed, on the present occasion.

Of the motives which influenced the first settlers to a voluntary exile, induced them to relinquish their native country, and to seek an asylum in this then unexplored wilderness, the first and principal, no doubt, were connected with religion. They sought to enjoy a higher degree of religious freedom, and what they esteemed a purer form of religious worship, than was allowed to their choice, or presented to their imitation, in the Old World. The love of religious liberty is a stronger sentiment, when fully excited, than an attachment to civil or political freedom. That freedom which the conscience demands, and which men feel bound by their hope of salvation to contend for, can hardly fail to be attained. Conscience, in the cause of religion and the worship of the Deity, prepares the mind to act and to suffer beyond almost all other causes. It sometimes gives an impulse so irresistible, that no fetters of power or of opinion can withstand it. History instructs us that this love of religious liberty, a compound sentiment in the breast of man, made up of the clearest sense of right and the highest conviction of duty, is able to look the sternest despotism in the face, and,

with means apparently most inadequate, to shake principalities and powers. There is a boldness, a spirit of daring, in religious reformers, not to be measured by the general rules which control men's purposes and actions. If the hand of power be laid upon it, this only seems to augment its force and its elasticity, and to cause its action to be more formidable and violent. Human invention has devised nothing, human power has compassed nothing, that can forcibly restrain it, when it breaks forth. Nothing can stop it, but to give way to it; nothing can check it, but indulgence. It loses its power only when it has gained its object. The principle of toleration, to which the world has come so slowly, is at once the most just and the most wise of all principles. Even when religious feeling takes a character of extravagance and enthusiasm, and seems to threaten the order of society and shake the columns of the social edifice, its principal danger is in its restraint. If it be allowed indulgence and expansion, like the elemental fires, it only agitates, and perhaps purifies, the atmosphere; while its efforts to throw off restraint would burst the world asunder.

It is certain, that, although many of them were republicans in principle, we have no evidence that our New England ancestors would have emigrated, as they did, from their own native country, would have become wanderers in Europe, and finally would have undertaken the establishment of a colony here, merely from their dislike of the political systems of Europe. They fled not so much from the civil government, as from the hierarchy, and the laws which enforced conformity to the church establishment. Mr. Robinson had left England as early as 1608, on account of the persecutions for nonconformity, and had retired to Holland. He left England, from no disappointed ambition in affairs of state, from no regrets at the want of preferment in the church, nor from any motive of distinction or of gain. Uniformity in matters of religion was pressed with such extreme rigor, that a voluntary exile seemed the most eligible mode of escaping from the penalties of noncompliance. The accession of Elizabeth had, it is true, quenched the fires of Smithfield, and put an end to the easy acquisition of the crown of martyrdom. Her long reign had established the Reformation, but toleration was a virtue beyond her conception, and beyond the age. She left no example of it to her successor; and he was not of a character which rendered it probable that a sentiment either so wise or so liberal would originate with him. At the present period it seems incredible, that the learned, accomplished, unassuming, and inoffensive Robinson should

neither be tolerated in his peaceable mode of worship in his own country,¹³ nor suffered quietly to depart from it. Yet such was the fact. He left his country by stealth, that he might elsewhere enjoy those rights which ought to belong to men in all countries. The departure of the Pilgrims for Holland is deeply interesting, from its circumstances, and also as it marks the character of the times, independently of its connection with names now incorporated with the history of empire. The embarkation was intended to be made in such a manner, that it might escape the notice of the officers of government. Great pains had been taken to secure boats, which should come undiscovered to the shore, and receive the fugitives; and frequent disappointments had been experienced in this respect.

At length the appointed time came, bringing with it unusual severity of cold and rain. An unfrequented and barren heath, on the shores of Lincolnshire, was the selected spot, where the feet of the Pilgrims were to tread, for the last time, the land of their fathers. The vessel which was to receive them did not come until the next day, and in the mean time the little band was collected, and men and women and children and baggage were crowded together, in melancholy and distressed confusion. The sea was rough, and the women and children were already sick, from their passage down the river to the place of embarkation on the sea. At length the wished-for boat silently and fearfully approaches the shore, and men and women and children, shaking with fear and with cold, as many as the small vessel could bear, venture off on a dangerous sea. Immediately the advance of horses is heard from behind, armed men appear, and those not yet embarked are seized, and taken into custody. In the hurry of the moment, the first parties had been sent on board without any attempt to keep members of the same family together, and on account of the appearance of the horsemen, the boat never returned for the residue. Those who had got away, and those who had not, were in equal distress. A storm, of great violence, and long duration, arose at sea, which not only protracted the voyage, rendered distressing by the want of all those accommodations which the interruption of the embarkation had occasioned, but also forced the vessel out of her course, and menaced immediate shipwreck; while those on shore, when they were dismissed from the custody of the officers of justice, having no longer¹⁴ homes or houses to retire to, and their friends and protectors being already gone, became objects of necessary charity, as well as of deep commiseration.

As this scene passes before us, we can hardly forbear asking, whether this be a band of malefactors and felons flying from justice. What are their crimes, that they hide themselves in darkness? To what punishment are they exposed, that, to avoid it, men, and women, and children, thus encounter the surf of the North Sea, and the terrors of a night storm? What induces this armed pursuit, and this arrest of fugitives, of all ages and both sexes? Truth does not allow us to answer these inquiries in a manner that does credit to the wisdom or the justice of the times. This was not the flight of guilt, but of virtue. It was an humble and peaceable religion, flying from causeless oppression. It was conscience, attempting to escape from the arbitrary rule of the Stuarts. It was Robinson and Brewster, leading off their little band from their native soil, at first to find shelter on the shore of the neighboring continent, but ultimately to come hither; and having surmounted all difficulties and braved a thousand dangers, to find here a place of refuge and of rest. Thanks be to God, that this spot was honored as the asylum of religious liberty! May its standard, reared here, remain for ever! May it rise up as high as heaven, till its banner shall fan the air of both continents, and wave as a glorious ensign of peace and security to the nations!

The peculiar character, condition, and circumstances of the colonies which introduced civilization and an English race into New England, afford a most interesting and extensive topic of discussion. On these, much of our subsequent character and fortune has depended. Their influence has essentially affected our whole history, through the two centuries which have elapsed; and as they have become intimately connected with government, laws, and property, as well as with our opinions on the subjects of religion and civil liberty, that influence is likely to continue to be felt through the centuries which shall succeed. Emigration from one region to another, and the emission of colonies to people countries more or less distant from the residence of the parent stock, are common incidents in the history of mankind; but it has not often, perhaps never, happened, that the establishment of colonies should be attempted under circumstances, however beset with present difficulties and dangers, yet so favorable to ultimate success, and so conducive to magnificent results, as those which attended the first settlements on this part of the American continent. In other instances, emigration has proceeded from a less exalted purpose, in periods of less general intelligence, or more without plan and by accident; or under

circumstances, physical and moral, less favorable to the expectation of laying a foundation for great public prosperity and future empire.

A great resemblance exists, obviously, between all the English colonies established within the present limits of the United States; but the occasion attracts our attention more immediately to those which took possession of New England, and the peculiarities of these furnish a strong contrast with most other instances of colonization.

Among the ancient nations, the Greeks, no doubt, sent forth from their territories the greatest number of colonies. So numerous, indeed, were they, and so great the extent of space over which they were spread, that the parent country fondly and naturally persuaded herself, that by means of them she had laid a sure foundation for the universal civilization of the world. These establishments, from obvious causes, were most numerous in places most contiguous; yet they were found on the coasts of France, on the shores of the Euxine Sea, in Africa, and even, as is alleged, on the borders of India. These emigrations appear to have been sometimes voluntary and sometimes compulsory; arising from the spontaneous enterprise of individuals, or the order and regulation of government. It was a common opinion with ancient writers, that they were undertaken in religious obedience to the commands of oracles, and it is probable that impressions of this sort might have had more or less influence; but it is probable, also, that on these occasions the oracles did not speak a language dissonant from the views and purposes of the state.

Political science among the Greeks seems never to have extended to the comprehension of a system, which should be adequate to the government of a great nation upon principles of liberty. They were accustomed only to the contemplation of small republics, and were led to consider an augmented population as incompatible with free institutions. The desire of a remedy for this supposed evil, and the wish to establish marts for trade, led the governments often to undertake the establishment of colonies as an affair of state expediency. Colonization and commerce, indeed, would naturally become objects of interest to an ingenious and enterprising people, inhabiting a territory closely circumscribed in its limits, and in no small part mountainous and sterile; while the islands of the adjacent seas, and the promontories and coasts of the neighboring continents, by their mere proximity, strongly solicited the excited spirit of emigration. Such was this

proximity, in many instances, that the new settlements appeared rather to be the mere extension of population over contiguous territory, than the establishment of distant colonies. In proportion as they were near to the parent state, they would be under its authority, and partake of its fortunes. The colony at Marseilles might perceive lightly, or not at all, the sway of Phocis; while the islands in the Ægean Sea could hardly attain to independence of their Athenian origin. Many of these establishments took place at an early age; and if there were defects in the governments of the parent states, the colonists did not possess philosophy or experience sufficient to correct such evils in their own institutions, even if they had not been, by other causes, deprived of the power. An immediate necessity, connected with the support of life, was the main and direct inducement to these undertakings, and there could hardly exist more than the hope of a successful imitation of institutions with which they were already acquainted, and of holding an equality with their neighbors in the course of improvement. The laws and customs, both political and municipal, as well as the religious worship of the parent city, were transferred to the colony; and the parent city herself, with all such of her colonies as were not too far remote for frequent intercourse and common sentiments, would appear like a family of cities, more or less dependent, and more or less connected. We know how imperfect this system was, as a system of general politics, and what scope it gave to those mutual dissensions and conflicts which proved so fatal to Greece.

But it is more pertinent to our present purpose to observe, that nothing existed in the character of Grecian emigrations, or in the spirit and intelligence of the emigrants, likely to give a new and important direction¹⁷ to human affairs, or a new impulse to the human mind. Their motives were not high enough, their views were not sufficiently large and prospective. They went not forth, like our ancestors, to erect systems of more perfect civil liberty, or to enjoy a higher degree of religious freedom. Above all, there was nothing in the religion and learning of the age, that could either inspire high purposes, or give the ability to execute them. Whatever restraints on civil liberty, or whatever abuses in religious worship, existed at the time of our fathers' emigration, yet even then all was light in the moral and mental world, in comparison with its condition in most periods of the ancient states. The settlement of a new continent, in an age of progressive knowledge and improvement, could not but do more than merely enlarge

the natural boundaries of the habitable world. It could not but do much more even than extend commerce and increase wealth among the human race. We see how this event has acted, how it must have acted, and wonder only why it did not act sooner, in the production of moral effects, on the state of human knowledge, the general tone of human sentiments, and the prospects of human happiness. It gave to civilized man not only a new continent to be inhabited and cultivated, and new seas to be explored; but it gave him also a new range for his thoughts, new objects for curiosity, and new excitements to knowledge and improvement.

Roman colonization resembled, far less than that of the Greeks, the original settlements of this country. Power and dominion were the objects of Rome, even in her colonial establishments. Her whole exterior aspect was for centuries hostile and terrific. She grasped at dominion, from India to Britain, and her measures of colonization partook of the character of her general system. Her policy was military, because her objects were power, ascendancy, and subjugation. Detachments of emigrants from Rome incorporated themselves with, and governed, the original inhabitants of conquered countries. She sent citizens where she had first sent soldiers; her law followed her sword. Her colonies were a sort of military establishment; so many advanced posts in the career of her dominion. A governor from Rome ruled the new colony with absolute sway, and often with unbounded rapacity. In Sicily, in Gaul, in Spain, and in Asia, the power of Rome prevailed, not nominally only, but really and effectually. Those who immediately exercised it were Roman; the tone and tendency of its administration, Roman. Rome herself continued to be the heart and centre of the great system which she had established. Extortion and rapacity, finding a wide and often rich field of action in the provinces, looked nevertheless to the banks of the Tiber, as the scene in which their ill-gotten treasures should be displayed; or, if a spirit of more honest acquisition prevailed, the object, nevertheless, was ultimate enjoyment in Rome itself. If our own history and our own times did not sufficiently expose the inherent and incurable evils of provincial government, we might see them portrayed, to our amazement, in the desolated and ruined provinces of the Roman empire. We might hear them, in a voice that terrifies us, in those strains of complaint and accusation, which the advocates of the provinces poured forth in the Roman Forum:—"Quas res luxuries in flagitiis,

crudelitas in suppliciis, avaritia in rapinis, superbia in contumeliis, efficere potuisset, eas omnes sese pertulisse.”

As was to be expected, the Roman Provinces partook of the fortunes, as well as of the sentiments and general character, of the seat of empire. They lived together with her, they flourished with her, and fell with her. The branches were lopped away even before the vast and venerable trunk itself fell prostrate to the earth. Nothing had proceeded from her which could support itself; and bear up the name of its origin, when her own sustaining arm should be enfeebled or withdrawn. It was not given to Rome to see, either at her zenith or in her decline, a child of her own, distant, indeed, and independent of her control, yet speaking her language and inheriting her blood, springing forward to a competition with her own power, and a comparison with her own great renown. She saw not a vast region of the earth peopled from her stock, full of states and political communities, improving upon the models of her institutions, and breathing in fuller measure the spirit which she had breathed in the best periods of her existence; enjoying and extending her arts and her literature; rising rapidly from political childhood to manly strength and independence; her offspring, yet now her equal; unconnected with the causes which might affect the duration of her own power and greatness; of common origin, but not linked to a common fate; giving ample pledge, that her name should not be forgotten, that her language should not cease to be used among men; that whatsoever she had done for human knowledge and human happiness should be treasured up and preserved; that the record of her existence and her achievements should not be obscured, although, in the inscrutable purposes of Providence, it might be her destiny to fall from opulence and splendor; although the time might come, when darkness should settle on all her hills; when foreign or domestic violence should overturn her altars and her temples; when ignorance and despotism should fill the places where Laws, and Arts, and Liberty had flourished; when the feet of barbarism should trample on the tombs of her consuls, and the walls of her senate-house and forum echo only to the voice of savage triumph. She saw not this glorious vision, to inspire and fortify her against the possible decay or downfall of her power. Happy are they who in our day may behold it, if they shall contemplate it with the sentiments which it ought to inspire!

The New England Colonies differ quite as widely from the Asiatic establishments of the modern European nations, as from the models of the ancient states. The sole object of those establishments was originally trade; although we have seen, in one of them, the anomaly of a mere trading company attaining a political character, disbursing revenues, and maintaining armies and fortresses, until it has extended its control over seventy millions of people. Differing from these, and still more from the New England and North American Colonies, are the European settlements in the West India Islands. It is not strange, that, when men's minds were turned to the settlement of America, different objects should be proposed by those who emigrated to the different regions of so vast a country. Climate, soil, and condition were not all equally favorable to all pursuits. In the West Indies, the purpose of those who went thither was to engage in that species of agriculture, suited to the soil and climate, which seems to bear more resemblance to commerce, than to the hard and plain tillage of New England. The great staples of these countries, being partly an agricultural and partly a manufactured product, and not being of the necessities of life, become the object of calculation, with respect to a profitable investment of capital, like any other enterprise of trade or manufacture. The more especially, as, requiring, by necessity or habit, slave labor for their production, the capital necessary to carry on the work of this production is very considerable. The West Indies are resorted to, therefore, rather for the investment of capital, than for the purpose of sustaining life by personal labor. Such as possess a considerable amount of capital, or such as choose to adventure in commercial speculations without capital, can alone be fitted to be emigrants to the islands. The agriculture of these regions, as before observed, is a sort of commerce; and it is a species of employment in which labor seems to form as inconsiderable ingredient in the productive causes, since the portion of white labor is exceedingly small, and slave labor is rather more like profit on stock or capital, than *labor* properly so called. The individual who undertakes an establishment of this kind takes into the account the cost of the necessary number of slaves, in the same manner as he calculates the cost of the land. The uncertainty, too, of this species of employment, affords another ground of resemblance to commerce. Although gainful on the whole, and in a series of years, it is often very disastrous for a single year, and, as the capital is not readily invested in other pursuits, bad crops or bad markets not only affect the profits, but the

capital itself. Hence the sudden depressions which take place in the value of such estates.

But the great and leading observation, relative to these establishments, remains to be made. It is, that the owners of the soil and of the capital seldom consider themselves *at home* in the colony. A very great portion of the soil itself is usually owned in the mother country; a still greater is mortgaged for capital obtained there; and, in general, those who are to derive an interest from the products look to the parent country as the place for enjoyment of their wealth. The population is therefore constantly fluctuating. Nobody comes but to return. A constant succession of owners, agents, and factors takes place. Whatsoever the soil, forced by the unmitigated toil of slavery, can yield, is sent home to defray rents, and interest, and agencies, or to give the means of living in a better society. In such a state, it is evident that no spirit of permanent improvement is likely to spring up. Profits will not be invested with a distant view of benefiting posterity. Roads and canals will hardly be built; schools will not be founded; colleges will not be endowed. There will be few fixtures in society; no principles of utility or of elegance, planted now, with the hope of being developed and expanded hereafter. Profit, immediate profit, must be the principal active spring in the social system. There may be many particular exceptions to these general remarks, but the outline of the whole is such as is here drawn.

Another most important consequence of such a state of things is, that no idea of independence of the parent country is likely to arise; unless, indeed, it should spring up in a form that would threaten universal desolation. The inhabitants have no strong attachment to the place which they inhabit. The hope of a great portion of them is to leave it; and their great desire, to leave it soon. However useful they may be to the parent state, how much soever they may add to the conveniences and luxuries of life, these colonies are not favored spots for the expansion of the human mind, for the progress of permanent improvement, or for sowing the seeds of future independent empire.

Different, indeed, most widely different, from all these instances of emigration and plantation, were the condition, the purposes, and the prospects of our fathers, when they established their infant colony upon this spot. They came hither to a land from which they were never to return.

Hither they had brought, and here they were to fix, their hopes, their attachments, and their objects in life. Some natural tears they shed, as they left the pleasant abodes of their fathers, and some emotions they suppressed, when the white cliffs of their native country, now seen for the last time, grew dim to their sight. They were acting, however, upon a resolution not to be daunted. With whatever stifled regrets, with whatever occasional hesitation, with whatever appalling apprehensions, which might sometimes arise with force to shake the firmest purpose, they had yet committed themselves to Heaven and the elements; and a thousand leagues of water soon interposed to separate them for ever from the region which gave them birth. A new existence awaited them here; and when they saw these shores, rough, cold, barbarous, and barren, as then they were, they beheld their country. That mixed and strong feeling, which we call love of country, and which is, in general, never extinguished in the heart of man, grasped and embraced its proper object here. Whatever constitutes *country*, except the earth and the sun, all the moral causes of affection and attachment which operate upon the heart, they had brought with them²² to their new abode. Here were now their families and friends, their homes, and their property. Before they reached the shore, they had established the elements of a social system,^[40] and at a much earlier period had settled their forms of religious worship. At the moment of their landing, therefore, they possessed institutions of government, and institutions of religion: and friends and families, and social and religious institutions, framed by consent, founded on choice and preference, how nearly do these fill up our whole idea of country! The morning that beamed on the first night of their repose saw the Pilgrims already *at home* in their country. There were political institutions, and civil liberty, and religious worship. Poetry has fancied nothing, in the wanderings of heroes, so distinct and characteristic. Here was man, indeed, unprotected, and unprovided for, on the shore of a rude and fearful wilderness; but it was politic, intelligent, and educated man. Every thing was civilized but the physical world. Institutions, containing in substance all that ages had done for human government, were organized in a forest. Cultivated mind was to act on uncultivated nature; and, more than all, a government and a country were to commence, with the very first foundations laid under the divine light of the Christian religion. Happy auspices of a happy futurity! Who would wish that his country's existence had otherwise begun? Who would desire the power of going back

to the ages of fable? Who would wish for an origin obscured in the darkness of antiquity? Who would wish for other emblazoning of his country's heraldry, or other ornaments of her genealogy, than to be able to say, that her first existence was with intelligence, her first breath the inspiration of liberty, her first principle the truth of divine religion?

Local attachments and sympathies would ere long spring up in the breasts of our ancestors, endearing to them the place of their refuge. Whatever natural objects are associated with interesting scenes and high efforts obtain a hold on human feeling, and demand from the heart a sort of recognition and regard. This Rock soon became hallowed in the esteem of the Pilgrims, ^[41] and these hills grateful to their sight. Neither they nor their children ^[23] were again to till the soil of England, nor again to traverse the seas which surround her. ^[42] But here was a new sea, now open to their enterprise, and a new soil, which had not failed to respond gratefully to their laborious industry, and which was already assuming a robe of verdure. Hardly had they provided shelter for the living, ere they were summoned to erect sepulchres for the dead. The ground had become sacred, by inclosing the remains of some of their companions and connections. A parent, a child, a husband, or a wife, had gone the way of all flesh, and mingled with the dust of New England. We naturally look with strong emotions to the spot, though it be a wilderness, where the ashes of those we have loved repose. Where the heart has laid down what it loved most, there it is desirous of laying itself down. No sculptured marble, no enduring monument, no honorable inscription, no ever-burning taper that would drive away the darkness of the tomb, can soften our sense of the reality of death, and hallow to our feelings the ground which is to cover us, like the consciousness that we shall sleep, dust to dust, with the objects of our affections.

In a short time other causes sprung up to bind the Pilgrims with new cords to their chosen land. Children were born, and the hopes of future generations arose, in the spot of their new habitation. The second generation found this the land of their nativity, and saw that they were bound to its fortunes. They beheld their fathers' graves around them, and while they read the memorials of their toils and labors, they rejoiced in the inheritance which they found bequeathed to them.

Under the influence of these causes, it was to be expected, that an interest and a feeling should arise here, entirely different from the interest and feeling of mere Englishmen; and all the subsequent history of the Colonies proves this to have actually and gradually taken place. With a general acknowledgment of the supremacy of the British crown, there was, from the first a repugnance to an entire submission to the control of British legislation. The Colonies stood upon their charters, which, as they contended, exempted them from the ordinary power of the British Parliament, and authorized them to conduct their own concerns by their own counsels. They utterly resisted the notion that they were to be ruled by the mere authority of the government at home, and would not endure even that their own charter governments should be established on the other side of the Atlantic. It was not a controlling or protecting board in England, but a government of their own, and existing immediately within their limits, which could satisfy their wishes. It was easy to foresee, what we know also to have happened, that the first great cause of collision and jealousy would be, under the notion of political economy then and still prevalent in Europe, an attempt on the part of the mother country to monopolize the trade of the Colonies. Whoever has looked deeply into the causes which produced our Revolution has found, if I mistake not, the original principle far back in this claim, on the part of England, to monopolize our trade, and a continued effort on the part of the Colonies to resist or evade that monopoly; if, indeed, it be not still more just and philosophical to go farther back, and to consider it decided, that an independent government must arise here, the moment it was ascertained that an English colony, such as landed in this place, could sustain itself against the dangers which surrounded it, and, with other similar establishments, overspread the land with an English population. Accidental causes retarded at times, and at times accelerated, the progress of the controversy. The Colonies wanted strength, and time gave it to them. They required measures of strong and palpable injustice, on the part of the mother country, to justify resistance; the early part of the late king's reign furnished them. They needed spirits of high order, of great daring, of long foresight, and of commanding power, to seize the favoring occasion to strike a blow, which should sever, for all time, the tie of colonial dependence; and these spirits were found, in all the extent which that or any crisis could demand, in Otis, Adams, Hancock, and the other immediate authors of our independence.

Still, it is true that, for a century, causes had been in operation tending to prepare things for this great result. In the year 1660 the English Act²⁵ of Navigation was passed; the first and grand object of which seems to have been, to secure to England the whole trade with her plantations.^[43] It was provided by that act, that none but English ships should transport American produce over the ocean, and that the principal articles of that produce should be allowed to be sold only in the markets of the mother country. Three years afterwards another law was passed, which enacted, that such commodities as the Colonies might wish to purchase should be bought only in the markets of the mother country. Severe rules were prescribed to enforce the provisions of these laws, and heavy penalties imposed on all who should violate them. In the subsequent years of the same reign, other statutes were enacted to reënforce these statutes, and other rules prescribed to secure a compliance with these rules. In this manner was the trade to and from the Colonies restricted, almost to the exclusive advantage of the parent country. But laws, which rendered the interest of a whole people subordinate to that of another people, were not likely to execute themselves; nor was it easy to find many on the spot, who could be depended upon for carrying them into execution. In fact, these laws were more or less evaded or resisted, in all the Colonies. To enforce them was the constant endeavor of the government at home; to prevent or elude their operation, the perpetual object here. “The laws of navigation,” says a living British writer, “were nowhere so openly disobeyed and contemned as in New England.” “The people of Massachusetts Bay,” he adds, “were from the first disposed to act as if independent of the mother country, and having a governor and magistrates of their own choice, it was difficult to enforce any regulation which came from the English Parliament, adverse to their interests.” To provide more effectually for the execution of these laws, we know that courts of admiralty were afterwards established by the crown, with power to try revenue causes, as questions of admiralty, upon the construction given by the crown lawyers to an act of Parliament; a great departure from the ordinary principles of English jurisprudence, but which has been maintained, nevertheless, by the force of habit and precedent, and²⁶ is adopted in our own existing systems of government.

“There lie,” says another English writer, whose connection with the Board of Trade has enabled him to ascertain many facts connected with Colonial history, “There lie among the documents in the board of trade and state-

paper office, the most satisfactory proofs, from the epoch of the English Revolution in 1688, throughout every reign, and during every administration, of the settled purpose of the Colonies to acquire direct independence and positive sovereignty.” Perhaps this may be stated somewhat too strongly; but it cannot be denied, that, from the very nature of the establishments here, and from the general character of the measures respecting their concerns early adopted and steadily pursued by the English government, a division of the empire was the natural and necessary result to which every thing tended.^[44]

I have dwelt on this topic, because it seems to me, that the peculiar original character of the New England Colonies, and certain causes coeval with their existence, have had a strong and decided influence on all their subsequent history, and especially on the great event of the Revolution. Whoever would write our history, and would understand and explain early transactions, should comprehend the nature and force of the feeling which I have endeavored to describe. As a son, leaving the house of his father for his own, finds, by the order of nature, and the very law of his being, nearer and dearer objects around which his affections circle, while his attachment to the parental roof becomes moderated, by degrees, to a composed regard and an affectionate remembrance; so our ancestors, leaving their native land, not without some violence to the feelings of nature and affection, yet, in time, found here a new circle of engagements, interests, and affections; a feeling, which more and more encroached upon the old, till an undivided sentiment, *that this was their country*, occupied the heart; and patriotism, shutting out from its embraces the parent realm, became *local* to America.

Some retrospect of the century which has now elapsed is among the duties²⁷ of the occasion. It must, however, necessarily be imperfect, to be compressed within the limits of a single discourse. I shall content myself; therefore, with taking notice of a few of the leading and most important occurrences which have distinguished the period.

When the first century closed, the progress of the country appeared to have been considerable; notwithstanding that, in comparison with its subsequent advancement, it now seems otherwise. A broad and lasting foundation had been laid; excellent institutions had been established; many of the prejudices of former times had been removed; a more liberal and catholic

spirit on subjects of religious concern had begun to extend itself; and many things conspired to give promise of increasing future prosperity. Great men had arisen in public life, and the liberal professions. The Mathers, father and son, were then sinking low in the western horizon; Leverett, the learned, the accomplished, the excellent Leverett, was about to withdraw his brilliant and useful light. In Pemberton great hopes had been suddenly extinguished, but Prince and Colman were in our sky; and along the east had begun to flash the crepuscular light of a great luminary which was about to appear, and which was to stamp the age with his own name, as the age of Franklin.

The bloody Indian wars, which harassed the people for a part of the first century; the restrictions on the trade of the Colonies, added to the discouragements inherently belonging to all forms of colonial government; the distance from Europe, and the small hope of immediate profit to adventurers, are among the causes which had contributed to retard the progress of population. Perhaps it may be added, also, that during the period of the civil wars in England, and the reign of Cromwell, many persons, whose religious opinions and religious temper might, under other circumstances, have induced them to join the New England colonists, found reasons to remain in England; either on account of active occupation in the scenes which were passing, or of an anticipation of the enjoyment, in their own country, of a form of government, civil and religious, accommodated to their views and principles. The violent measures, too, pursued against the Colonies in the reign of Charles the Second, the mockery of a trial, and the forfeiture of the charters, were serious evils. And during the open violences²⁸ of the short reign of James the Second, and the tyranny of Andros, as the venerable historian of Connecticut observes, "All the motives to great actions, to industry, economy, enterprise, wealth, and population, were in a manner annihilated. A general inactivity and languishment pervaded the public body. Liberty, property, and every thing which ought to be dear to men, every day grew more and more insecure."

With the Revolution in England, a better prospect had opened on this country, as well as on that. The joy had been as great at that event, and far more universal, in New than in Old England. A new charter had been granted to Massachusetts, which, although it did not confirm to her inhabitants all their former privileges, yet relieved them from great evils

and embarrassments, and promised future security. More than all, perhaps, the Revolution in England had done good to the general cause of liberty and justice. A blow had been struck in favor of the rights and liberties, not of England alone, but of descendants and kinsmen of England all over the world. Great political truths had been established. The champions of liberty had been successful in a fearful and perilous conflict. Somers, and Cavendish, and Jekyl, and Howard, had triumphed in one of the most noble causes ever undertaken by men. A revolution had been made upon principle. A monarch had been dethroned for violating the original compact between king and people. The rights of the people to partake in the government, and to limit the monarch by fundamental rules of government, had been maintained; and however unjust the government of England might afterwards be towards other governments or towards her colonies, she had ceased to be governed herself by the arbitrary maxims of the Stuarts.

New England had submitted to the violence of James the Second not longer than Old England. Not only was it reserved to Massachusetts, that on her soil should be acted the first scene of that great revolutionary drama, which was to take place near a century afterwards, but the English Revolution itself, as far as the Colonies were concerned, commenced in Boston. The seizure and imprisonment of Andros, in April, 1689, were acts of direct and forcible resistance to the authority of James the Second. The pulse of liberty beat as high in the extremities as at the heart. The vigorous feeling of the Colony burst out before it was known how the parent country would finally conduct herself. The king's representative, Sir Edmund Andros, was a prisoner in the castle at Boston, before it was or could be known that the king himself had ceased to exercise his full dominion on the English throne.

Before it was known here whether the invasion of the Prince of Orange would or could prove successful, as soon as it was known that it had been undertaken, the people of Massachusetts, at the imminent hazard of their lives and fortunes, had accomplished the Revolution as far as respected themselves. It is probable that, reasoning on general principles and the known attachment of the English people to their constitution and liberties, and their deep and fixed dislike of the king's religion and politics, the people of New England expected a catastrophe fatal to the power of the reigning prince. Yet it was neither certain enough, nor near enough, to come to their aid against the authority of the crown, in that crisis which had

arrived, and in which they trusted to put themselves, relying on God and their own courage. There were spirits in Massachusetts congenial with the spirits of the distinguished friends of the Revolution in England. There were those who were fit to associate with the boldest asserters of civil liberty; and Mather himself, then in England, was not unworthy to be ranked with those sons of the Church, whose firmness and spirit in resisting kingly encroachments in matters of religion, entitled them to the gratitude of their own and succeeding ages.

The second century opened upon New England under circumstances which evinced that much had already been accomplished, and that still better prospects and brighter hopes were before her. She had laid, deep and strong, the foundations of her society. Her religious principles were firm, and her moral habits exemplary. Her public schools had begun to diffuse widely the elements of knowledge; and the College, under the excellent and acceptable administration of Leverett, had been raised to a high degree of credit and usefulness.

The commercial character of the country, notwithstanding all discouragements, had begun to display itself, and *five hundred vessels*, then belonging to Massachusetts, placed her, in relation to commerce, thus early at the head of the Colonies. An author who wrote very near the close of the first century says:—"New England is almost deserving that *noble name*, so mightily hath it increased; and from a small settlement at first, is now become a *very populous* and *flourishing* government. The *capital city*, Boston, is a place of *great wealth and trade*; and by much the largest of any in the English empire of America; and not exceeded but by few cities, perhaps two or three, in all the American world."

But if our ancestors at the close of the first century could look back with joy, and even admiration, at the progress of the country, what emotions must we not feel, when, from the point on which we stand, we also look back and run along the events of the century which has now closed! The country which then, as we have seen, was thought deserving of a "noble name,"—which then had "mightily increased," and become "very populous,"—what was it, in comparison with what our eyes behold it? At that period, a very great proportion of its inhabitants lived in the eastern section of Massachusetts proper, and in Plymouth Colony. In Connecticut, there were towns along the coast, some of them respectable, but in the

interior all was a wilderness beyond Hartford. On Connecticut River, settlements had proceeded as far up as Deerfield, and Fort Dummer had been built near where is now the south line of New Hampshire. In New Hampshire no settlement was then begun thirty miles from the mouth of Piscataqua River, and in what is now Maine, the inhabitants were confined to the coast. The aggregate of the whole population of New England did not exceed one hundred and sixty thousand. Its present amount (1820) is probably one million seven hundred thousand. Instead of being confined to its former limits, her population has rolled backward, and filled up the spaces included within her actual local boundaries. Not this only, but it has overflowed those boundaries, and the waves of emigration have pressed farther and farther toward the West. The Alleghany has not checked it; the banks of the Ohio have been covered with it. New England farms, houses, villages, and churches spread over and adorn the immense extent from the Ohio to Lake Erie, and stretch along from the Alleghany onwards, beyond the Miamis, and toward the Falls of St. Anthony. Two thousand miles westward from the rock where their fathers landed, may now be found the sons of the Pilgrims, cultivating smiling fields, rearing towns and villages, and cherishing, we trust, the patrimonial blessings of wise institutions,³¹ of liberty, and religion. The world has seen nothing like this. Regions large enough to be empires, and which, half a century ago, were known only as remote and unexplored wildernesses, are now teeming with population, and prosperous in all the great concerns of life; in good governments, the means of subsistence, and social happiness. It may be safely asserted, that there are now more than a million of people, descendants of New England ancestry, living, free and happy, in regions which scarce sixty years ago were tracts of unpenetrated forest. Nor do rivers, or mountains, or seas resist the progress of industry and enterprise. Ere long, the sons of the Pilgrims will be on the shores of the Pacific.^[45] The imagination hardly keeps pace with the progress of population, improvement, and civilization.

It is now five-and-forty years since the growth and rising glory of America were portrayed in the English Parliament, with inimitable beauty, by the most consummate orator of modern times. Going back somewhat more than half a century, and describing our progress as foreseen from that point by his amiable friend Lord Bathurst, then living, he spoke of the wonderful progress which America had made during the period of a single human life. There is no American heart, I imagine, that does not glow, both with

conscious, patriotic pride, and admiration for one of the happiest efforts of eloquence, so often as the vision of “that little speck, scarce visible in the mass of national interest, a small seminal principle, rather than a formed body,” and the progress of its astonishing development and growth, are recalled to the recollection. But a stronger feeling might be produced, if we were able to take up this prophetic description where he left it, and, placing ourselves at the point of time in which he was speaking, to set forth with equal felicity the subsequent progress of the country. There is yet among the living a most distinguished and venerable name, a descendant of the Pilgrims; one who has been attended through life by a great and fortunate genius; a man illustrious by his own great merits, and favored of Heaven in the long continuation of his years.^[46] The time when the English orator was thus speaking of America preceded but by a few days the actual opening of the revolutionary drama at Lexington. He to whom I have alluded, then at the age of forty, was among the most zealous and able defenders of the violated rights of his country. He seemed already to have filled a full measure of public service, and attained an honorable fame. The moment was full of difficulty and danger, and big with events of immeasurable importance. The country was on the very brink of a civil war, of which no man could foretell the duration or the result. Something more than a courageous hope, or characteristic ardor, would have been necessary to impress the glorious prospect on his belief, if, at that moment, before the sound of the first shock of actual war had reached his ears, some attendant spirit had opened to him the vision of the future;—if it had said to him, “The blow is struck, and America is severed from England for ever!”—if it had informed him, that he himself, during the next annual revolution of the sun, should put his own hand to the great instrument of independence, and write his name where all nations should behold it and all time should not efface it; that ere long he himself should maintain the interests and represent the sovereignty of his new-born country in the proudest courts of Europe; that he should one day exercise her supreme magistracy; that he should yet live to behold ten millions of fellow-citizens paying him the homage of their deepest gratitude and kindest affections; that he should see distinguished talent and high public trust resting where his name rested; that he should even see with his own unclouded eyes the close of the second century of New England, who had begun life almost with its commencement, and lived through nearly half the whole history of his

country; and that on the morning of this auspicious day he should be found in the political councils of his native State, revising, by the light of experience, that system of government which forty years before he had assisted to frame and establish; and, great and happy as he should then behold his country, there should be nothing in prospect to cloud the scene, nothing to check the ardor of that confident and patriotic hope which should glow in his bosom to the end of his long protracted and happy life.

It would far exceed the limits of this discourse even to mention the principal events in the civil and political history of New England during the century; the more so, as for the last half of the period that history has, most happily, been closely interwoven with the general history of the United States. New England bore an honorable part in the wars which took place between England and France. The capture of Louisburg gave her a character for military achievement; and in the war which terminated with the peace of 1763, her exertions on the frontiers were of most essential service, as well to the mother country as to all the Colonies.

In New England the war of the Revolution commenced. I address those who remember the memorable 19th of April, 1775; who shortly after saw the burning spires of Charlestown; who beheld the deeds of Prescott, and heard the voice of Putnam amidst the storm of war, and saw the generous Warren fall, the first distinguished victim in the cause of liberty. It would be superfluous to say, that no portion of the country did more than the States of New England to bring the Revolutionary struggle to a successful issue. It is scarcely less to her credit, that she saw early the necessity of a closer union of the States, and gave an efficient and indispensable aid to the establishment and organization of the federal government.

Perhaps we might safely say, that a new spirit and a new excitement began to exist here about the middle of the last century. To whatever causes it may be imputed, there seems then to have commenced a more rapid improvement. The Colonies had attracted more of the attention of the mother country, and some renown in arms had been acquired. Lord Chatham was the first English minister who attached high importance to these possessions of the crown, and who foresaw any thing of their future growth and extension. His opinion was, that the great rival of England was chiefly to be feared as a maritime and commercial power, and to drive her out of North America and deprive her of her West Indian possessions was a

leading object in his policy. He dwelt often on the fisheries, as nurseries for British seamen, and the colonial trade, as furnishing them employment. The war, conducted by him with so much vigor, terminated in a peace, by which Canada was ceded to England. The effect of this was immediately visible in the New England Colonies; for, the fear of Indian hostilities on the frontiers being now happily removed, settlements went on with an activity before that time altogether unprecedented, and public affairs wore a new and encouraging aspect. Shortly after this fortunate termination of the French war, the interesting topics connected with the taxation of America by the British Parliament began to be discussed, and the attention and all the faculties of the people drawn towards them. There is perhaps no portion of our history more full of interest than the period from 1760 to the actual commencement of the war. The progress of opinion in this period, though less known, is not less important than the progress of arms afterwards. Nothing deserves more consideration than those events and discussions which affected the public sentiment and settled the revolution in men's minds, before hostilities openly broke out.

Internal improvement followed the establishment and prosperous commencement of the present government. More has been done for roads, canals, and other public works, within the last thirty years, than in all our former history. In the first of these particulars, few countries excel the New England States. The astonishing increase of their navigation and trade is known to every one, and now belongs to the history of our national wealth.

We may flatter ourselves, too, that literature and taste have not been stationary, and that some advancement has been made in the elegant, as well as in the useful arts.

The nature and constitution of society and government in this country are interesting topics, to which I would devote what remains of the time allowed to this occasion. Of our system of government the first thing to be said is, that it is really and practically a free system. It originates entirely with the people, and rests on no other foundation than their assent. To judge of its actual operation, it is not enough to look merely at the form of its construction. The practical character of government depends often on a variety of considerations, besides the abstract frame of its constitutional organization. Among these are the condition and tenure of property; the

laws regulating its alienation and descent; the presence or absence of a military power; an armed or unarmed yeomanry; the spirit of the age, and the degree of general intelligence. In these respects it cannot be denied that the circumstances of this country are most favorable to the hope of maintaining the government of a great nation on principles entirely popular. In the absence of military power, the nature of government must essentially depend on the manner in which property is holden and distributed. There is a natural influence belonging to property, whether it exists in many hands or few; and it is on the rights of property that both despotism and unrestrained popular violence ordinarily commence their attacks. Our ancestors began their system of government here under a condition of comparative equality in regard to wealth, and their early laws were of a nature to favor and continue this equality.

A republican form of government rests not more on political constitutions, than on those laws which regulate the descent and transmission of property. Governments like ours could not have been maintained, where property was holden according to the principles of the feudal system; nor, on the other hand, could the feudal constitution possibly exist with us. Our New England ancestors brought hither no great capitals from Europe; and if they had, there was nothing productive in which they could have been invested. They left behind them the whole feudal policy of the other continent. They broke away at once from the system of military service established in the Dark Ages, and which continues, down even to the present time, more or less to affect the condition of property all over Europe. They came to a new country. There were, as yet, no lands yielding rent, and no tenants rendering service. The whole soil was unreclaimed from barbarism. They were themselves, either from their original condition, or from the necessity of their common interest, nearly on a general level in respect to property. Their situation demanded a parcelling out and division of the lands, and it may be fairly said, that this necessary act *fixed the future frame and form of their government*. The character of their political institutions was determined by the fundamental laws respecting property. The laws rendered estates divisible among sons and daughters. The right of primogeniture, at first limited and curtailed, was afterwards abolished. The property was all freehold. The entailment of estates, long trusts, and the other processes for fettering and tying up inheritances, were not applicable to the condition of society, and seldom made use of. On the contrary, alienation of the land was

every way facilitated, even to the subjecting of it to every species of debt.¹⁶¹ The establishment of public registries, and the simplicity of our forms of conveyance, have greatly facilitated the change of real estate from one proprietor to another. The consequence of all these causes has been, a great subdivision of the soil, and a great equality of condition; the true basis, most certainly, of a popular government. "If the people," says Harrington, "hold three parts in four of the territory, it is plain there can neither be any single person nor nobility able to dispute the government with them; in this case, therefore, *except force be interposed*, they govern themselves."

The history of other nations may teach us how favorable to public liberty are the division of the soil into small freeholds, and a system of laws, of which the tendency is, without violence or injustice, to produce and to preserve a degree of equality of property. It has been estimated, if I mistake not, that about the time of Henry the Seventh four fifths of the land in England was holden by the great barons and ecclesiastics. The effects of a growing commerce soon afterwards began to break in on this state of things, and before the Revolution, in 1688, a vast change had been wrought. It may be thought probable, that, for the last half-century, the process of subdivision in England has been retarded, if not reversed; that the great weight of taxation has compelled many of the lesser freeholders to dispose of their estates, and to seek employment in the army and navy, in the professions of civil life, in commerce, or in the colonies. The effect of this on the British constitution cannot but be most unfavorable. A few large estates grow larger; but the number of those who have no estates also increases; and there may be danger, lest the inequality of property become so great, that those who possess it may be dispossessed by force; in other words, that the government may be overturned.

A most interesting experiment of the effect of a subdivision of property on government is now making in France. It is understood, that the law regulating the transmission of property in that country, now divides it, real and personal, among all the children equally, both sons and daughters; and that there is, also, a very great restraint on the power of making dispositions of property by will. It has been supposed, that the effects of this might probably be, in time, to break up the soil into such small subdivisions, that the proprietors would be too poor to resist the encroachments of executive power. I think far otherwise. What is lost in individual wealth will be more

than gained in numbers, in intelligence, and in a sympathy of sentiment. If, indeed, only one or a few landholders were to resist the crown, like the barons of England, they must, of course, be great and powerful landholders, with multitudes of retainers, to promise success. But if the proprietors of a given extent of territory are summoned to resistance, there is no reason to believe that such resistance would be less forcible, or less successful, because the number of such proprietors happened to be great. Each would perceive his own importance, and his own interest, and would feel that natural elevation of character which the consciousness of property inspires. A common sentiment would unite all, and numbers would not only add strength, but excite enthusiasm. It is true, that France possesses a vast military force, under the direction of an hereditary executive government; and military power, it is possible, may overthrow any government. It is in vain, however, in this period of the world, to look for security against military power to the arm of the great landholders. That notion is derived from a state of things long since past; a state in which a feudal baron, with his retainers, might stand against the sovereign and his retainers, himself but the greatest baron. But at present, what could the richest landholder do, against one regiment of disciplined troops? Other securities, therefore, against the prevalence of military power must be provided. Happily for us, we are not so situated as that any purpose of national defence requires, ordinarily and constantly, such a military force as might seriously endanger our liberties.

In respect, however, to the recent law of succession in France, to which I have alluded, I would, presumptuously perhaps, hazard a conjecture, that, if the government do not change the law, the law in half a century will change the government; and that this change will be, not in favor of the power of the crown, as some European writers have supposed, but against it. Those writers only reason upon what they think correct general principles, in relation to this subject. They acknowledge a want of experience. Here we have had that experience; and we know that a multitude of small proprietors, acting with intelligence, and that enthusiasm which a common cause inspires, constitute not only a formidable, but an invincible power.^[38]^[47]

The true principle of a free and popular government would seem to be, so to construct it as to give to all, or at least to a very great majority, an interest in its preservation; to found it, as other things are founded, on men's interest.

The stability of government demands that those who desire its continuance should be more powerful than those who desire its dissolution. This power, of course, is not always to be measured by mere numbers. Education, wealth, talents, are all parts and elements of the general aggregate of power; but numbers, nevertheless, constitute ordinarily the most important consideration, unless, indeed, there be *a military force* in the hands of the few, by which they can control the many. In this country we have actually existing systems of government, in the maintenance of which, it should seem, a great majority, both in numbers and in other means of power and influence, must see their interest. But this state of things is not brought about solely by written political constitutions, or the mere manner of organizing the government; but also by the laws which regulate the descent and transmission of property. The freest government, if it could exist, would not be long acceptable, if the tendency of the laws were to create a rapid accumulation of property in few hands, and to render the great mass of the population dependent and penniless. In such a case, the popular power would be likely to break in upon the rights of property, or else the influence of property to limit and control the exercise of popular power. Universal suffrage, for example, could not long exist in a community where there was great inequality of property. The holders of estates would be obliged, in such case, in some way to restrain the right of suffrage, or else such right of suffrage would, before long, divide the property. In the nature of things, those who have not property, and see their neighbors possess much more than they think them to need, cannot be favorable to laws made for the protection of property. When this class becomes numerous, it grows clamorous. It looks on property as its prey and plunder, and is naturally ready, at all times, for violence and revolution.

It would seem, then, to be the part of political wisdom to found government on property; and to establish such distribution of property, by the laws which regulate its transmission and alienation, as to interest the great majority of society in the support of the government. This is, I imagine, the true theory and the actual practice of our republican institutions. With property divided as we have it, no other government than that of a republic could be maintained, even were we foolish enough to desire it. There is reason, therefore, to expect a long continuance of our system. Party and passion, doubtless, may prevail at times, and much temporary mischief be done. Even modes and forms may be changed, and perhaps for the worse. But a great revolution in regard to property must take place, before our governments can be moved from their republican basis, unless they be violently struck off by military power. The people possess the property, more emphatically than it could ever be said of the people of any other country, and they can have no interest to overturn a government which protects that property by equal laws.

Let it not be supposed, that this state of things possesses too strong tendencies towards the production of a dead and uninteresting level in society. Such tendencies are sufficiently counteracted by the infinite diversities in the characters and fortunes of individuals. Talent, activity, industry, and enterprise tend at all times to produce inequality and distinction; and there is room still for the accumulation of wealth, with its great advantages, to all reasonable and useful extent. It has been often urged against the state of society in America, that it furnishes no class of men of fortune and leisure. This may be partly true, but it is not entirely so, and the evil, if it be one, would affect rather the progress of taste and literature, than the general prosperity of the people. But the promotion of taste and literature cannot be primary objects of political institutions; and if they could, it might be doubted whether, in the long course of things, as much is not gained by a wide diffusion of general knowledge, as is lost by diminishing the number of those who are enabled by fortune and leisure to devote themselves exclusively to scientific and literary pursuits. However this may be, it is to be considered that it is the spirit of our system to be equal and general, and if there be particular disadvantages incident to this, they are far more than counterbalanced by the benefits which weigh against them. The important concerns of society are generally conducted, in all

countries, by the men of business and practical ability; and even in matters of taste and literature, the advantages of mere leisure are liable to be overrated. If there exist adequate means of education and a love of letters be excited, that love will find its way to the object of its desire, through the crowd and pressure of the most busy society.

Connected with this division of property, and the consequent participation of the great mass of people in its possession and enjoyments, is the system of representation, which is admirably accommodated to our condition, better understood among us, and more familiarly and extensively practised, in the higher and in the lower departments of government, than it has been by any other people. Great facility has been given to this in New England by the early division of the country into townships or small districts, in which all concerns of local police are regulated, and in which representatives to the legislature are elected. Nothing can exceed the utility of these little bodies. They are so many councils or parliaments, in which common interests are discussed, and useful knowledge acquired and communicated.

The division of governments into departments, and the division, again, of the legislative department into two chambers, are essential provisions in our system. This last, although not new in itself, yet seems to be new in its application to governments wholly popular. The Grecian republics, it is plain, knew nothing of it; and in Rome, the check and balance of legislative power, such as it was, lay between the people and the senate. Indeed, few things are more difficult than to ascertain accurately the true nature and construction of the Roman commonwealth. The relative power of the senate and the people, of the consuls and the tribunes, appears not to have been at all times the same, nor at any time accurately defined or strictly observed. Cicero, indeed, describes to us an admirable arrangement of political power, and a balance of the constitution, in that beautiful passage, in which he compares the democracies of Greece with the Roman commonwealth. “O morem preclarum, disciplinamque, quam a majoribus accepimus, si quidem teneremus! sed nescio quo pacto jam de manibus elabatur. Nullam enim illi nostri sapientissimi et sanctissimi viri vim concionis esse voluerunt, quæ scisseret plebs, aut quæ populus juberet; summota concione, distributis partibus, tributim et centuriatim descriptis ordinibus, classibus, ætatibus, auditis auctoribus, re multos dies promulgata et cognita, juberi vetarique

voluerunt. Græcorum autem totæ respublicæ sedentis concionis temeritate administrantur.”^[48]

But at what time this wise system existed in this perfection at Rome, no proofs remain to show. Her constitution, originally framed for a monarchy, never seemed to be adjusted in its several parts after the expulsion of the kings. Liberty there was, but it was a disputatious, an uncertain, an ill-secured liberty. The patrician and plebeian orders, instead of being matched and joined, each in its just place and proportion, to sustain the fabric of the state, were rather like hostile powers, in perpetual conflict. With us, an attempt has been made, and so far not without success, to divide representation into chambers, and, by difference of age, character, qualification, or mode of election, to establish salutary checks, in governments altogether elective.

Having detained you so long with these observations, I must yet advert to another most interesting topic,—the Free Schools. In this particular, New England may be allowed to claim, I think, a merit of a peculiar character. She early adopted, and has constantly maintained the principle, that it is the undoubted right and the bounden duty of government to provide for the instruction of all youth. That which is elsewhere left to chance or to charity, we secure by law.^[49] For the purpose of public instruction, we hold every man subject to taxation in proportion to his property, and we look not to the question, whether he himself have, or have not, children to be benefited by the education for which he pays. We regard it as a wise and liberal system of police, by which property, and life, and the peace of society are secured. We seek to prevent in some measure the extension of the penal code, by inspiring a salutary and conservative principle of virtue and of knowledge in an early age. We strive to excite a feeling of respectability, and a sense of character, by enlarging the capacity and increasing the sphere of intellectual enjoyment. By general instruction, we seek, as far as possible, to purify the whole moral atmosphere; to keep good sentiments uppermost, and to turn the strong current of feeling and opinion, as well as the censures of the law and the denunciations of religion, against immorality and crime. We hope for a security beyond the law, and above the law, in the prevalence of an enlightened and well-principled moral sentiment. We hope to continue and prolong the time, when, in the villages and farm-houses of New England, there may be undisturbed sleep within unbarred doors. And knowing that

our government rests directly on the public will, in order that we may preserve it we endeavor to give a safe and proper direction to that public will. We do not, indeed, expect all men to be philosophers or statesmen; but we confidently trust, and our expectation of the duration of our system of government rests on that trust, that, by the diffusion of general knowledge and good and virtuous sentiments, the political fabric may be secure, as well against open violence and overthrow, as against the slow, but sure, undermining of licentiousness.

We know that, at the present time, an attempt is making in the English Parliament to provide by law for the education of the poor, and that a gentleman of distinguished character (Mr. Brougham) has taken the lead in presenting a plan to government for carrying that purpose into effect. And yet, although the representatives of the three kingdoms listened to him with astonishment as well as delight, we hear no principles with which we ourselves have not been familiar from youth; we see nothing in the plan but an approach towards that system which has been established in New England for more than a century and a half. It is said that in England not more than *one child in fifteen* possesses the means of being taught to read and write; in Wales, *one in twenty*; in France, until lately, when some improvement was made, not more than *one in thirty-five*. Now, it is hardly too strong to say, that in New England *every child possesses* such means.⁴³ It would be difficult to find an instance to the contrary, unless where it should be owing to the negligence of the parent; and, in truth, the means are actually used and enjoyed by nearly every one. A youth of fifteen, of either sex, who cannot both read and write, is very seldom to be found. Who can make this comparison, or contemplate this spectacle, without delight and a feeling of just pride? Does any history show property more beneficently applied? Did any government ever subject the property of those who have estates to a burden, for a purpose more favorable to the poor, or more useful to the whole community?

A conviction of the importance of public instruction was one of the earliest sentiments of our ancestors. No lawgiver of ancient or modern times has expressed more just opinions, or adopted wiser measures, than the early records of the Colony of Plymouth show to have prevailed here. Assembled on this very spot, a hundred and fifty-three years ago, the legislature of this Colony declared, "Forasmuch as the maintenance of good literature doth

much tend to the advancement of the weal and flourishing state of societies and republics, this Court doth therefore order, that in whatever township in this government, consisting of fifty families or upwards, any meet man shall be obtained to teach a grammar school, such township shall allow at least twelve pounds, to be raised by rate on all the inhabitants.”

Having provided that all youth should be instructed in the elements of learning by the institution of free schools, our ancestors had yet another duty to perform. Men were to be educated for the professions and the public. For this purpose they founded the University, and with incredible zeal and perseverance they cherished and supported it, through all trials and discouragements.^[50] On the subject of the University, it is not possible for a son of New England to think without pleasure, or to speak without emotion. Nothing confers more honor on the State where it is established, or more utility on the country at large. A respectable university is an establishment which must be the work of time. If pecuniary means were not wanting,⁴⁴ no new institution could possess character and respectability at once. We owe deep obligation to our ancestors, who began, almost on the moment of their arrival, the work of building up this institution.

Although established in a different government, the Colony of Plymouth manifested warm friendship for Harvard College. At an early period, its government took measures to promote a general subscription throughout all the towns in this Colony, in aid of its small funds. Other colleges were subsequently founded and endowed, in other places, as the ability of the people allowed; and we may flatter ourselves, that the means of education at present enjoyed in New England are not only adequate to the diffusion of the elements of knowledge among all classes, but sufficient also for respectable attainments in literature and the sciences.

Lastly, our ancestors established their system of government on morality and religious sentiment. Moral habits, they believed, cannot safely be trusted on any other foundation than religious principle, nor any government be secure which is not supported by moral habits. Living under the heavenly light of revelation, they hoped to find all the social dispositions, all the duties which men owe to each other and to society, enforced and performed. Whatever makes men good Christians, makes them good citizens. Our fathers came here to enjoy their religion free and unmolested; and, at the end of two centuries, there is nothing upon which

we can pronounce more confidently, nothing of which we can express a more deep and earnest conviction, than of the inestimable importance of that religion to man, both in regard to this life and that which is to come.

If the blessings of our political and social condition have not been too highly estimated, we cannot well overrate the responsibility and duty which they impose upon us. We hold these institutions of government, religion, and learning, to be transmitted, as well as enjoyed. We are in the line of conveyance, through which whatever has been obtained by the spirit and efforts of our ancestors is to be communicated to our children.

We are bound to maintain public liberty, and, by the example of our own systems, to convince the world that order and law, religion and morality, the rights of conscience, the rights of persons, and the rights of property, may all be preserved and secured, in the most perfect manner, by a government entirely and purely elective. If we fail in this, our disaster will be signal, and will furnish an argument, stronger than has yet been found, in support of those opinions which maintain that government can rest safely on nothing but power and coercion. As far as experience may show errors in our establishments, we are bound to correct them; and if any practices exist contrary to the principles of justice and humanity within the reach of our laws or our influence, we are inexcusable if we do not exert ourselves to restrain and abolish them.

I deem it my duty on this occasion to suggest, that the land is not yet wholly free from the contamination of a traffic, at which every feeling of humanity must for ever revolt,—I mean the African slave-trade.^[51] Neither public sentiment, nor the law, has hitherto been able entirely to put an end to this odious and abominable trade. At the moment when God in his mercy has blessed the Christian world with a universal peace, there is reason to fear, that, to the disgrace of the Christian name and character, new efforts are making for the extension of this trade by subjects and citizens of Christian states, in whose hearts there dwell no sentiments of humanity or of justice, and over whom neither the fear of God nor the fear of man exercises a control. In the sight of our law, the African slave-trader is a pirate and a felon; and in the sight of Heaven, an offender far beyond the ordinary depth of human guilt. There is no brighter page of our history, than that which records the measures which have been adopted by the government at an early day, and at different times since, for the suppression of this traffic; and

I would call on all the true sons of New England to coöperate with the laws of man, and the justice of Heaven. If there be, within the extent of our knowledge or influence, any participation in this traffic, let us pledge ourselves here, upon the rock of Plymouth, to extirpate and destroy it. It is not fit that the land of the Pilgrims should bear the shame longer. I hear the sound of the hammer, I see the smoke of the furnaces where manacles and fetters are still forged for human limbs. I see the visages of those who by stealth and at midnight labor in this work of hell, foul and dark, as may become the artificers of such instruments of misery and torture. Let that spot be purified, or let it cease to be of New England. Let it be purified, or let it be set aside from the Christian world; let it be put out of the circle of human sympathies and human regards, and let civilized man henceforth have no communion with it.

I would invoke those who fill the seats of justice, and all who minister at her altar, that they execute the wholesome and necessary severity of the law. I invoke the ministers of our religion, that they proclaim its denunciation of these crimes, and add its solemn sanctions to the authority of human laws. If the pulpit be silent whenever or wherever there may be a sinner bloody with this guilt within the hearing of its voice, the pulpit is false to its trust. I call on the fair merchant, who has reaped his harvest upon the seas, that he assist in scourging from those seas the worst pirates that ever infested them. That ocean, which seems to wave with a gentle magnificence to waft the burden of an honest commerce, and to roll along its treasures with a conscious pride,—that ocean, which hardy industry regards, even when the winds have ruffled its surface, as a field of grateful toil,—what is it to the victim of this oppression, when he is brought to its shores, and looks forth upon it, for the first time, loaded with chains, and bleeding with stripes? What is it to him but a wide-spread prospect of suffering, anguish, and death? Nor do the skies smile longer, nor is the air longer fragrant to him. The sun is cast down from heaven. An inhuman and accursed traffic has cut him off in his manhood, or in his youth, from every enjoyment belonging to his being, and every blessing which his Creator intended for him.

The Christian communities send forth their emissaries of religion and letters, who stop, here and there, along the coast of the vast continent of Africa, and with painful and tedious efforts make some almost imperceptible progress in the communication of knowledge, and in the

general improvement of the natives who are immediately about them. Not thus slow and imperceptible is the transmission of the vices and bad passions which the subjects of Christian states carry to the land. The slave-trade having touched the coast, its influence and its evils spread, like⁴⁷ a pestilence, over the whole continent, making savage wars more savage and more frequent, and adding new and fierce passions to the contests of barbarians.

I pursue this topic no further, except again to say, that all Christendom, being now blessed with peace, is bound by every thing which belongs to its character, and to the character of the present age, to put a stop to this inhuman and disgraceful traffic.

We are bound, not only to maintain the general principles of public liberty, but to support also those existing forms of government which have so well secured its enjoyment, and so highly promoted the public prosperity. It is now more than thirty years that these States have been united under the Federal Constitution, and whatever fortune may await them hereafter, it is impossible that this period of their history should not be regarded as distinguished by signal prosperity and success. They must be sanguine indeed, who can hope for benefit from change. Whatever division of the public judgment may have existed in relation to particular measures of the government, all must agree, one should think, in the opinion, that in its general course it has been eminently productive of public happiness. Its most ardent friends could not well have hoped from it more than it has accomplished; and those who disbelieved or doubted ought to feel less concern about predictions which the event has not verified, than pleasure in the good which has been obtained. Whoever shall hereafter write this part of our history, although he may see occasional errors or defects, will be able to record no great failure in the ends and objects of government. Still less will he be able to record any series of lawless and despotic acts, or any successful usurpation. His page will contain no exhibition of provinces depopulated, of civil authority habitually trampled down by military power, or of a community crushed by the burden of taxation. He will speak, rather, of public liberty protected, and public happiness advanced; of increased revenue, and population augmented beyond all example; of the growth of commerce, manufactures, and the arts; and of that happy condition, in which the restraint and coercion of government are almost invisible and

imperceptible, and its influence felt only in the benefits which it confers. We can entertain no better wish for our country, than that this government may be preserved; nor have a clearer duty than to maintain and support it in the full exercise of all its just constitutional powers.

The cause of science and literature also imposes upon us an important and delicate trust. The wealth and population of the country are now so far advanced, as to authorize the expectation of a correct literature and a well formed taste, as well as respectable progress in the abstruse sciences. The country has risen from a state of colonial subjection; it has established an independent government, and is now in the undisturbed enjoyment of peace and political security. The elements of knowledge are universally diffused, and the reading portion of the community is large. Let us hope that the present may be an auspicious era of literature. If, almost on the day of their landing, our ancestors founded schools and endowed colleges, what obligations do not rest upon us, living under circumstances so much more favorable both for providing and for using the means of education? Literature becomes free institutions. It is the graceful ornament of civil liberty, and a happy restraint on the asperities which political controversies sometimes occasion. Just taste is not only an embellishment of society, but it rises almost to the rank of the virtues, and diffuses positive good throughout the whole extent of its influence. There is a connection between right feeling and right principles, and truth in taste is allied with truth in morality. With nothing in our past history to discourage us, and with something in our present condition and prospects to animate us, let us hope, that, as it is our fortune to live in an age when we may behold a wonderful advancement of the country in all its other great interests, we may see also equal progress and success attend the cause of letters.

Finally, let us not forget the religious character of our origin. Our fathers were brought hither by their high veneration for the Christian religion. They journeyed by its light, and labored in its hope. They sought to incorporate its principles with the elements of their society, and to diffuse its influence through all their institutions, civil, political, or literary. Let us cherish these sentiments, and extend this influence still more widely; in the full conviction, that that is the happiest society which partakes in the highest degree of the mild and peaceful spirit of Christianity.

The hours of this day are rapidly flying, and this occasion will soon be passed. Neither we nor our children can expect to behold its return. They are in the distant regions of futurity, they exist only in the all-creating power of God, who shall stand here a hundred years hence, to trace, through us, their descent from the Pilgrims, and to survey, as we have now surveyed, the progress of their country, during the lapse of a century. We would anticipate their concurrence with us in our sentiments of deep regard for our common ancestors. We would anticipate and partake the pleasure with which they will then recount the steps of New England's advancement. On the morning of that day, although it will not disturb us in our repose, the voice of acclamation and gratitude, commencing on the Rock of Plymouth, shall be transmitted through millions of the sons of the Pilgrims, till it lose itself in the murmurs of the Pacific seas.

We would leave for the consideration of those who shall then occupy our places, some proof that we hold the blessings transmitted from our fathers in just estimation; some proof of our attachment to the cause of good government, and of civil and religious liberty; some proof of a sincere and ardent desire to promote every thing which may enlarge the understandings and improve the hearts of men. And when, from the long distance of a hundred years, they shall look back upon us, they shall know, at least, that we possessed affections, which, running backward and warming with gratitude for what our ancestors have done for our happiness, run forward also to our posterity, and meet them with cordial salutation, ere yet they have arrived on the shore of being.

Advance, then, ye future generations! We would hail you, as you rise in your long succession, to fill the places which we now fill, and to taste the blessings of existence where we are passing, and soon shall have passed, our own human duration. We bid you welcome to this pleasant land of the fathers. We bid you welcome to the healthful skies and the verdant fields of New England. We greet your accession to the great inheritance which we have enjoyed. We welcome you to the blessings of good government and religious liberty. We welcome you to the treasures of science and the delights of learning. We welcome you to the transcendent sweets of domestic life, to the happiness of kindred, and parents, and children. We welcome you to the immeasurable blessings of rational existence, the immortal hope of Christianity, and the light of everlasting truth!

FOOTNOTES

[33]

A Discourse delivered at Plymouth, on the 22d of December, 1820.

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An interesting account of the Rock may be found in Dr. Thacher's History of the Town of Plymouth, pp. 29, 198, 199.

[35]

See [Note A](#), at the end of the Discourse.

[36]

For notices of Carver, Bradford, Standish, Brewster, and Allerton, see Young's Chronicles of Plymouth and Massachusetts; Morton's Memorial, p. 126; Belknap's American Biography, Vol. II.; Hutchinson's History, Vol. II., App., pp. 456 *et seq.*; Collections of the Massachusetts Historical Society; Winthrop's Journal; and Thacher's History.

[37]

For the original name of what is now *Plymouth*, see Lives of American Governors, p. 38, note, a work prepared with great care by J. B. Moore, Esq.

[38]

The *twenty-first* is now acknowledged to be the true anniversary. See the Report of the Pilgrim Society on the subject.

[39]

Herodot. VI. § 109.

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For the compact to which reference is made in the text, signed on board the Mayflower, see Hutchinson's History, Vol. II., Appendix, No. I. For an eloquent description of the manner in which the first Christian Sabbath was passed on board the Mayflower, at Plymouth, see Barnes's Discourse at Worcester.

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The names of the passengers in the Mayflower, with some account of them, may be found in the New England Genealogical Register, Vol. I. p. 47, and a narration of some of the incidents of the voyage, Vol. II. p. 188. For an account of Mrs. White the mother of the first child born in New England, see Baylies's History of Plymouth, Vol. II. p. 18, and for a notice of her son Peregrine, see Moore's Lives of American Governors, Vol. I. p. 31, note.

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See the admirable letter written on board the Arbella, in Hutchinson's History, Vol. I., Appendix, No. I.

[43]

In reference to the British policy respecting Colonial manufactures, see Representations of the Board of Trade to the House of Lords, 23d Jan., 1734; also, 8th June, 1749. For an able vindication of the British Colonial policy, see "Political Essays concerning the Present State of the British Empire." London, 1772.

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Many interesting papers, illustrating the early history of the Colony, may be found in Hutchinson's "Collection of Original Papers relating to the History of the Colony of Massachusetts Bay."

[45]

In reference to the fulfilment of this prediction, see Mr. Webster's Address at the Celebration of the New England Society of New York, on the 23d of December, 1850.

[46]

John Adams, second President of the United States.

[47]

See [Note B](#), at the end of the Discourse.

[48]

Oratio pro Flacco, § 7.

[49]

The first free school established by law in the Plymouth Colony was in 1670-72. One of the early teachers in Boston taught school more than *seventy* years. See Cotton Mather's "Funeral Sermon upon Mr. Ezekiel Cheever, the ancient and honorable Master of the Free School in Boston."

For the impression made upon the mind of an intelligent foreigner by the general attention to popular education, as characteristic of the American polity, see Mackay's *Western World*, Vol. III. p. 225 *et seq.* Also, *Edinburgh Review*, No. 186.

[50]

By a law of the Colony of Massachusetts Bay, passed as early as 1647, it was ordered, that, "when any town shall increase to the number of one hundred families or householders, they shall set up a grammar school, the master thereof being able to instruct youth so far as they may be fitted for the University."

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In reference to the opposition of the Colonies to the slave-trade, see a representation of the Board of Trade to the House of Lords, 23d January, 1733-4.

NOTES.

NOTE A. [Page 8.](#)

The allusion in the Discourse is to the large historical painting of the Landing of the Pilgrims at Plymouth, executed by Henry Sargent, Esq., of Boston, and, with great liberality, presented by him to the Pilgrim Society. It appeared in their hall (of which it forms the chief ornament) for the first time at the celebration of 1824. It represents the principal personages of the company at the moment of landing, with the Indian Samoset, who approaches them with a friendly welcome. A very competent judge, himself a distinguished artist, the late venerable Colonel Trumbull, has pronounced that this painting has great merit. An interesting account of it will be found in Dr. Thacher's History of Plymouth, pp. 249 and 257.

An historical painting, by Robert N. Weir, Esq., of the largest size, representing the embarkation of the Pilgrims from Delft-Haven, in Holland, and executed by order of Congress, fills one of the panels of the Rotunda of the Capitol at Washington. The moment chosen by the artist for the action of the picture is that in which the venerable pastor Robinson, with tears, and benedictions, and prayers to Heaven, dismisses the beloved members of his little flock to the perils and the hopes of their great enterprise. The characters of the personages introduced are indicated with discrimination and power, and the accessories of the work marked with much taste and skill. It is a painting of distinguished historical interest and of great artistic merit.

The "Landing of the Pilgrims" has also been made the subject of a very interesting painting by Mr. Flagg, intended to represent the deep religious feeling which so strikingly characterized the first settlers of New England. With this object in view, the central figure is that of Elder Brewster. It is a picture of cabinet size, and is in possession of a gentleman of New Haven, descended from Elder Brewster, and of that name.

NOTE B. [Page 38.](#)

As the opinion of contemporaneous thinkers on this important subject cannot fail to interest the general reader, it is deemed proper to insert here the following extract from a letter, written in 1849, to show how powerfully the truths uttered in 1820, in the spirit of prophecy, as it were, impressed themselves upon certain minds, and how closely the verification of the prediction has been watched.

“I do not remember any political prophecy, founded on the spirit of a wide and far-reaching statesmanship, that has been so remarkably fulfilled as the one made by Mr. Webster, in his Discourse delivered at Plymouth in 1820, on the effect which the laws of succession to property in France, then in operation, would be likely to produce on the forms and working of the French government. But to understand what he said, and what he foresaw, I must explain a little what had been the course of legislation in France on which his predictions were founded.

“Before the Revolution of 1789, there had been a great accumulation of the landed property of the country, and, indeed, of all its property,—by means of laws of entail, *majorats*, and other legal contrivances,—in the hands of the privileged classes; chiefly in those of the nobility and the clergy. The injury and injustice done by long continued legislation in this direction were obviously great; and it was not, perhaps, unnatural, that the opposite course to that which had brought on the mischief should be deemed the best one to cure it. At any rate, such was the course taken.

“In 1791 a law was passed, preventing any man from having any interest beyond the period of his own life in any of his property, real, personal, or mixed, and distributing all his possessions for him, immediately after his death, among his children, in equal shares, or if he left no children, then among his next of kin, on the same principle. This law, with a slight modification, made under the influence of Robespierre, was in force till 1800. But the period was entirely revolutionary, and probably quite as much property changed hands from violence and the consequences of violence, during the nine years it continued, as was transmitted by the laws that directly controlled its succession.

“With the coming in of Bonaparte, however, there was established a new order of things, which has continued, with little modification, ever since, and has had its full share in working out the great changes in French society which we now witness. A few experiments were first made, and then the great Civil Code, often called the *Code Napoleon*, was adopted. This was in 1804. By this remarkable code, which is still in force, a man, if he has but one child, can give away by his last will, as he pleases, half of his property,—the law insuring the other half to the child; if he has two children, then he can so give away only one third,—the law requiring the other two thirds to be given equally to the two children; if three, then only one fourth, under similar conditions; but if he has a greater number, it restricts the rights of the parent more and more, and makes it more and more difficult for him to distribute his property according to his own judgment; the restrictions embarrassing him even in his lifetime.

“The consequences of such laws are, from their nature, very slowly developed. When Mr. Webster spoke in 1820, the French code had been in operation sixteen years, and similar principles had prevailed for nearly a generation. But still its wide results were not even suspected. Those who had treated the subject at all supposed that the tendency was to break up the great estates in France, and make the larger number of the holders of small estates

more accessible to the influence of the government, then a limited monarchy, and so render it stronger and more despotic.

“Mr. Webster held a different opinion. He said, ‘In respect, however, to the recent law of succession in France, to which I have alluded, *I would, presumptuously perhaps, hazard a conjecture, that, if the government do not change the law, the law in half a century will change the government; and that this change will be, not in favor of the power of the crown, as some European writers have supposed, but against it.* Those writers only reason upon what they think correct general principles, in relation to this subject. They acknowledge a want of experience. Here we have had that experience; and we know that a multitude of small proprietors, acting with intelligence, and that enthusiasm which a common cause inspires, constitute not only a formidable, but an invincible power.’

“In less than six years after Mr. Webster uttered this remarkable prediction, the king of France himself, at the opening of the Legislative Chambers, thus strangely echoed it: —‘Legislation ought to provide, by successive improvements, for all the wants of society. The progressive partitioning of landed estates, essentially contrary to the spirit of a monarchical government, would enfeeble the guaranties which the charter has given to my throne and to my subjects. Measures will be proposed to you, gentlemen, to establish the consistency which ought to exist between the political law and the civil law, and to preserve the patrimony of families, without restricting the liberty of disposing of one’s property. The preservation of families is connected with, and affords a guaranty to, political stability, which is the first want of states, and which is especially that of France, after so many vicissitudes.’

“Still, the results to which such subdivision and comminution of property tended were not foreseen even in France. The Revolution of 1830 came, and revealed a part of them; for that revolution was made by the influence of men possessing very moderate estates, who believed that the guaranties of a government like that of the elder branch of the Bourbons were not sufficient for their safety. But when the revolution was made, and the younger branch of the Bourbons reigned instead of the elder, the laws for the descent of property continued to be the same, and the subdivision went on as if it were an admitted benefit to society.

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“In consequence of this, in 1844 it was found that there were in France at least five millions and a half of families, or about twenty-seven millions of souls, who were proprietary families, and that of these about four millions of families had each less than nine English acres to the family on the average. Of course, a vast majority of these twenty-seven millions of persons, though they might be interested in some small portion of the soil, were really poor, and multitudes of them were dependent.

“Now, therefore, the results began to appear in a practical form. One third of all the rental of France was discovered to be absolutely mortgaged, and another third was swallowed up by other encumbrances, leaving but one third free for the use and benefit of its owners. In other words, a great proportion of the people of France were embarrassed and poor, and a great proportion of the remainder were fast becoming so.

“Such a state of things produced, of course, a wide-spread social uneasiness. Part of this uneasiness was directed against the existing government; another and more formidable portion was directed against *all* government, and against the very institution of property. The convulsion of 1848 followed; France is still unsettled; and Mr. Webster’s prophecy seems still to be in the course of a portentous fulfilment.”

In the London Quarterly Review for 1846 there is an interesting discussion on so much of the matter as relates to the subdivision of real estate for agricultural purposes in France, as far as it had then advanced, and from which many of the facts here alluded to are taken.

THE BUNKER HILL MONUMENT.

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INTRODUCTORY NOTE.

As early as 1776, some steps were taken toward the commemoration of the battle of Bunker Hill and the fall of General Warren, who was buried upon the hill the day after the action. The Massachusetts Lodge of Masons, over which he presided, applied to the provisional government of Massachusetts, for permission to take up his remains and to bury them with the usual solemnities. The council granted this request, on condition that it should be carried into effect in such a manner that the government of *the Colony* might have an opportunity to erect a monument to his memory. A funeral procession was had, and a Eulogy on General Warren was delivered by Perez Morton, but no measures were taken toward building a monument.

A resolution was adopted by the Congress of the United States on the 8th of April, 1777, directing that monuments should be erected to the memory of General Warren, in Boston, and of General Mercer, at Fredericksburg; but this resolution has remained to the present time unexecuted.

On the 11th of November, 1794, a committee was appointed by King Solomon's Lodge, at Charlestown,^[52] to take measures for the erection of a monument to the memory of General Joseph Warren at the expense of the Lodge. This resolution was promptly carried into effect. The land for this purpose was presented to the Lodge by the Hon. James Russell, of Charlestown, and it was dedicated with appropriate ceremonies on the 2d of December, 1794. It was a wooden pillar of the Tuscan order, eighteen feet in height, raised on a pedestal eight feet square, and of an elevation of ten feet from the ground. The pillar was surmounted by a gilt urn. An appropriate inscription was placed on the south side of the pedestal.

In February, 1818, a committee of the Legislature of Massachusetts was appointed to consider the expediency of building a monument of American marble to the memory of General Warren, but this proposal was not carried into effect.

As the half-century from the date of the battle drew toward a close, a stronger feeling of the duty of commemorating it began to be awakened in the community. Among those who from the first manifested the greatest interest in the subject, was the late William Tudor, Esq. He expressed the wish, in a letter still preserved, to see upon the battle-ground “the noblest monument in the world,” and he was so ardent and persevering in urging the project, that it has been stated that he first conceived the idea of it. The steps taken in execution of the project, from the earliest private conferences among the gentlemen first engaged in it to its final completion, are accurately sketched by Mr. Richard Frothingham, Jr., in his valuable History of the Siege of Boston. All the material facts contained in this note are derived from his chapter on the Bunker Hill Monument. After giving an account of the organization of the society, the measures adopted for the collection of funds, and the deliberations on the form of the monument, Mr. Frothingham proceeds as follows:

“It was at this stage of the enterprise that the directors proposed to lay the corner-stone of the monument, and ground was broken (June 7th) for this purpose. As a mark of respect to the liberality and patriotism of King Solomon’s Lodge, they invited the Grand Master of the Grand Lodge of Massachusetts to perform the ceremony. They also invited General Lafayette to accompany the President of the Association, Hon. Daniel Webster, and assist in it.

“This celebration was unequalled in magnificence by any thing of the kind that had been seen in New England. The morning proved propitious. The air was cool, the sky was clear, and timely showers the previous day had brightened the vesture of nature into its loveliest hue. Delighted thousands flocked into Boston to bear a part in the proceedings, or to witness the spectacle. At about ten o’clock a procession moved from the State House towards Bunker Hill. The military, in their fine uniforms, formed the van. About two hundred veterans of the Revolution, of whom forty were survivors of the battle, rode in barouches next to the escort. These venerable men, the relics of a past generation, with emaciated frames, tottering limbs, and trembling voices, constituted a touching spectacle. Some wore, as honorable decorations, their old fighting equipments, and some bore the scars of still more honorable wounds. Glistening eyes constituted their answer to the enthusiastic cheers of the grateful multitudes who lined their pathway and cheered their progress. To this patriot band succeeded the Bunker Hill Monument Association. Then the Masonic fraternity, in their splendid regalia, thousands in number. Then Lafayette, continually welcomed by tokens of love and gratitude, and the invited guests. Then a long array of societies, with their various badges and banners. It was a splendid procession, and of such length that the front nearly reached Charlestown Bridge ere the rear had left Boston

Common. It proceeded to Breed's Hill, where the Grand Master of the Freemasons, the President of the Monument Association, and General Lafayette, performed the ceremony of laying the corner-stone, in the presence of a vast concourse of people."

The procession then moved to a spacious amphitheatre on the northern declivity of the hill, when the following address was delivered by Mr. Webster, in the presence of as great a multitude as was ever perhaps assembled within the sound of a human voice.

FOOTNOTES

[52]

General Warren, at the time of his decease, was Grand Master of the Masonic Lodges in America.

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THE BUNKER HILL MONUMENT.[53]

This uncounted multitude before me and around me proves the feeling which the occasion has excited. These thousands of human faces, glowing with sympathy and joy, and from the impulses of a common gratitude turned reverently to heaven in this spacious temple of the firmament, proclaim that the day, the place, and the purpose of our assembling have made a deep impression on our hearts.

If, indeed, there be any thing in local association fit to affect the mind of man, we need not strive to repress the emotions which agitate us here. We are among the sepulchres of our fathers. We are on ground, distinguished by their valor, their constancy, and the shedding of their blood. We are here, not to fix an uncertain date in our annals, nor to draw into notice an obscure and unknown spot. If our humble purpose had never been conceived, if we ourselves had never been born, the 17th of June, 1775, would have been a day on which all subsequent history would have poured its light, and the eminence where we stand a point of attraction to the eyes of successive generations. But we are Americans. We live in what may be called the early age of this great continent; and we know that our posterity, through all time,

are here to enjoy and suffer the allotments of humanity. We see before us a probable train of great events; we know that our own fortunes have been happily cast; and it is natural, therefore, that we should be moved by the contemplation of occurrences which have guided our destiny before many of us were born, and settled the condition in which we should pass that portion of our existence which God allows to men on earth.

We do not read even of the discovery of this continent, without feeling something of a personal interest in the event; without being reminded how much it has affected our own fortunes and our own existence. It would be still more unnatural for us, therefore, than for others, to contemplate with unaffected minds that interesting, I may say that most touching and pathetic scene, when the great discoverer of America stood on the deck of his shattered bark, the shades of night falling on the sea, yet no man sleeping; tossed on the billows of an unknown ocean, yet the stronger billows of alternate hope and despair tossing his own troubled thoughts; extending forward his harassed frame, straining westward his anxious and eager eyes, till Heaven at last granted him a moment of rapture and ecstasy, in blessing his vision with the sight of the unknown world.

Nearer to our times, more closely connected with our fates, and therefore still more interesting to our feelings and affections, is the settlement of our own country by colonists from England. We cherish every memorial of these worthy ancestors; we celebrate their patience and fortitude; we admire their daring enterprise; we teach our children to venerate their piety; and we are justly proud of being descended from men who have set the world an example of founding civil institutions on the great and united principles of human freedom and human knowledge. To us, their children, the story of their labors and sufferings can never be without its interest. We shall not stand unmoved on the shore of Plymouth, while the sea continues to wash it; nor will our brethren in another early and ancient Colony forget the place of its first establishment, till their river shall cease to flow by it.^[54] No vigor of youth, no maturity of manhood, will lead the nation to forget the spots where its infancy was cradled and defended.

But the great event in the history of the continent, which we are now met here to commemorate, that prodigy of modern times, at once the wonder and the blessing of the world, is the American Revolution. In a day of extraordinary prosperity and happiness, of high national honor, distinction,

and power, we are brought together, in this place, by our love of country, by our admiration of exalted character, by our gratitude for signal services and patriotic devotion.

The Society whose organ I am^[55] was formed for the purpose of rearing some honorable and durable monument to the memory of the early friends of American Independence. They have thought, that for this object no time could be more propitious than the present prosperous and peaceful period; that no place could claim preference over this memorable spot; and that no day could be more auspicious to the undertaking, than the anniversary of the battle which was here fought. The foundation of that monument we have now laid. With solemnities suited to the occasion, with prayers to Almighty God for his blessing and in the midst of this cloud of witnesses, we have begun the work. We trust it will be prosecuted, and that, springing from a broad foundation, rising high in massive solidity and unadorned grandeur, it may remain as long as Heaven permits the works of man to last, a fit emblem, both of the events in memory of which it is raised, and of the gratitude of those who have reared it.

We know, indeed, that the record of illustrious actions is most safely deposited in the universal remembrance of mankind. We know, that if we could cause this structure to ascend, not only till it reached the skies, but till it pierced them, its broad surfaces could still contain but part of that which, in an age of knowledge, hath already been spread over the earth, and which history charges itself with making known to all future times. We know that no inscription on entablatures less broad than the earth itself can carry information of the events we commemorate where it has not already gone; and that no structure, which shall not outlive the duration of letters and knowledge among men, can prolong the memorial. But our object is, by this edifice, to show our own deep sense of the value and importance of the achievements of our ancestors; and, by presenting this work of gratitude^[62] to the eye, to keep alive similar sentiments, and to foster a constant regard for the principles of the Revolution. Human beings are composed, not of reason only, but of imagination also, and sentiment; and that is neither wasted nor misapplied which is appropriated to the purpose of giving right direction to sentiments, and opening proper springs of feeling in the heart. Let it not be supposed that our object is to perpetuate national hostility, or even to cherish a mere military spirit. It is higher, purer, nobler. We consecrate our

work to the spirit of national independence, and we wish that the light of peace may rest upon it for ever. We rear a memorial of our conviction of that unmeasured benefit which has been conferred on our own land, and of the happy influences which have been produced, by the same events, on the general interests of mankind. We come, as Americans, to mark a spot which must for ever be dear to us and our posterity. We wish that whosoever, in all coming time, shall turn his eye hither, may behold that the place is not undistinguished where the first great battle of the Revolution was fought. We wish that this structure may proclaim the magnitude and importance of that event to every class and every age. We wish that infancy may learn the purpose of its erection from maternal lips, and that weary and withered age may behold it, and be solaced by the recollections which it suggests. We wish that labor may look up here, and be proud, in the midst of its toil. We wish that, in those days of disaster, which, as they come upon all nations, must be expected to come upon us also, desponding patriotism may turn its eyes hitherward, and be assured that the foundations of our national power are still strong. We wish that this column, rising towards heaven among the pointed spires of so many temples dedicated to God, may contribute also to produce, in all minds, a pious feeling of dependence and gratitude. We wish, finally, that the last object to the sight of him who leaves his native shore, and the first to gladden him who revisits it, may be something which shall remind him of the liberty and the glory of his country. Let it rise! let it rise, till it meet the sun in his coming; let the earliest light of the morning gild it, and parting day linger and play on its summit.

We live in a most extraordinary age. Events so various and so important that they might crowd and distinguish centuries, are, in our times, compressed within the compass of a single life. When has it happened that history has had so much to record, in the same term of years, as since the 17th of June, 1775? Our own Revolution, which, under other circumstances, might itself have been expected to occasion a war of half a century, has been achieved; twenty-four sovereign and independent States erected; and a general government established over them, so safe, so wise, so free, so practical, that we might well wonder its establishment should have been accomplished so soon, were it not far the greater wonder that it should have been established at all. Two or three millions of people have been augmented to twelve, the great forests of the West prostrated beneath the

arm of successful industry, and the dwellers on the banks of the Ohio and the Mississippi become the fellow-citizens and neighbors of those who cultivate the hills of New England.^[56] We have a commerce, that leaves no sea unexplored; navies, which take no law from superior force; revenues, adequate to all the exigencies of government, almost without taxation; and peace with all nations, founded on equal rights and mutual respect.

Europe, within the same period, has been agitated by a mighty revolution, which, while it has been felt in the individual condition and happiness of almost every man, has shaken to the centre her political fabric, and dashed against one another thrones which had stood tranquil for ages. On this, our continent, our own example has been followed, and colonies have sprung up to be nations. Unaccustomed sounds of liberty and free government have reached us from beyond the track of the sun; and at this moment the dominion of European power in this continent, from the place where we stand to the south pole, is annihilated for ever.^[57]

In the mean time, both in Europe and America, such has been the general progress of knowledge, such the improvement in legislation, in commerce, in the arts, in letters, and, above all, in liberal ideas and the general spirit of the age, that the whole world seems changed.

Yet, notwithstanding that this is but a faint abstract of the things which have happened since the day of the battle of Bunker Hill, we are but fifty years removed from it; and we now stand here to enjoy all the blessings of our own condition, and to look abroad on the brightened prospects of the world, while we still have among us some of those who were active agents in the scenes of 1775, and who are now here, from every quarter of New England, to visit once more, and under circumstances so affecting, I had almost said so overwhelming, this renowned theatre of their courage and patriotism.

VENERABLE MEN! you have come down to us from a former generation. Heaven has bounteously lengthened out your lives, that you might behold this joyous day. You are now where you stood fifty years ago, this very hour, with your brothers and your neighbors, shoulder to shoulder, in the strife for your country. Behold, how altered! The same heavens are indeed over your heads; the same ocean rolls at your feet; but all else how changed! You hear now no roar of hostile cannon, you see no mixed volumes of smoke and flame rising from burning Charlestown. The ground

strowed with the dead and the dying; the impetuous charge; the steady and successful repulse; the loud call to repeated assault; the summoning of all that is manly to repeated resistance; a thousand bosoms freely and fearlessly bared in an instant to whatever of terror there may be in war and death;—all these you have witnessed, but you witness them no more. All is peace. The heights of yonder metropolis, its towers and roofs, which you then saw filled with wives and children and countrymen in distress and terror, and looking with unutterable emotions for the issue of the combat, have presented you to-day with the sight of its whole happy population, come out to welcome and greet you with a universal jubilee. Yonder proud ships, by a felicity of position appropriately lying at the foot of this mount, and seeming fondly to cling around it, are not means of annoyance to you, but your country's own means of distinction and defence.^[58] All is peace; and God has granted you this sight of your country's happiness, ere you slumber in the grave. He has allowed you to behold and to partake the reward of your patriotic toils; and he has allowed us, your sons and countrymen, to meet you here, and in the name of the present generation, in the name of your country, in the name of liberty, to thank you!

But, alas! you are not all here! Time and the sword have thinned your ranks. Prescott, Putnam, Stark, Brooks, Read, Pomeroy, Bridge! our eyes seek for you in vain amid this broken band. You are gathered to your fathers, and live only to your country in her grateful remembrance and your own bright example. But let us not too much grieve, that you have met the common fate of men. You lived at least long enough to know that your work had been nobly and successfully accomplished. You lived to see your country's independence established, and to sheathe your swords from war. On the light of Liberty you saw arise the light of Peace, like

“another morn,
Risen on mid-noon”;

and the sky on which you closed your eyes was cloudless.

But ah! Him! the first great martyr in this great cause! Him! the premature victim of his own self-devoting heart! Him! the head of our civil councils, and the destined leader of our military bands, whom nothing brought hither but the unquenchable fire of his own spirit! Him! cut off by Providence in

the hour of overwhelming anxiety and thick gloom; falling ere he saw the star of his country rise; pouring out his generous blood like water, before he knew whether it would fertilize a land of freedom or of bondage!—how shall I struggle with the emotions that stifle the utterance of thy name!^[59] Our poor work may perish; but thine shall endure! This monument may moulder away; the solid ground it rests upon may sink down to a level with the sea; but thy memory shall not fail! Wheresoever among men a heart shall be found that beats to the transports of patriotism and liberty, its aspirations shall be to claim kindred with thy spirit!

But the scene amidst which we stand does not permit us to confine ^[60]our thoughts or our sympathies to those fearless spirits who hazarded or lost their lives on this consecrated spot. We have the happiness to rejoice here in the presence of a most worthy representation of the survivors of the whole Revolutionary army.

VETERANS! you are the remnant of many a well-fought field. You bring with you marks of honor from Trenton and Monmouth, from Yorktown, Camden, Bennington, and Saratoga. VETERANS OF HALF A CENTURY! when in your youthful days you put every thing at hazard in your country's cause, good as that cause was, and sanguine as youth is, still your fondest hopes did not stretch onward to an hour like this! At a period to which you could not reasonably have expected to arrive, at a moment of national prosperity such as you could never have foreseen, you are now met here to enjoy the fellowship of old soldiers, and to receive the overflowings of a universal gratitude.

But your agitated countenances and your heaving breasts inform me that even this is not an unmixed joy. I perceive that a tumult of contending feelings rushes upon you. The images of the dead, as well as the persons of the living, present themselves before you. The scene overwhelms you, and I turn from it. May the Father of all mercies smile upon your declining years, and bless them! And when you shall here have exchanged your embraces, when you shall once more have pressed the hands which have been so often extended to give succor in adversity, or grasped in the exultation of victory, then look abroad upon this lovely land which your young valor defended, and mark the happiness with which it is filled; yea, look abroad upon the whole earth, and see what a name you have contributed to give to your country, and what a praise you have added to freedom, and then rejoice in

the sympathy and gratitude which beam upon your last days from the improved condition of mankind!

The occasion does not require of me any particular account of the battle of the 17th of June, 1775, nor any detailed narrative of the events which immediately preceded it. These are familiarly known to all. In the progress of the great and interesting controversy, Massachusetts and the town of Boston had become early and marked objects of the displeasure of the British Parliament. This had been manifested in the act for altering the government of the Province, and in that for shutting up the port of Boston. Nothing sheds more honor on our early history, and nothing better shows how little the feelings and sentiments of the Colonies were known or regarded in England, than the impression which these measures everywhere produced in America. It had been anticipated, that while the Colonies in general would be terrified by the severity of the punishment inflicted on Massachusetts, the other seaports would be governed by a mere spirit of gain; and that, as Boston was now cut off from all commerce, the unexpected advantage which this blow on her was calculated to confer on other towns would be greedily enjoyed. How miserably such reasoners deceived themselves! How little they knew of the depth, and the strength, and the intenseness of that feeling of resistance to illegal acts of power, which possessed the whole American people! Everywhere the unworthy boon was rejected with scorn. The fortunate occasion was seized, everywhere, to show to the whole world that the Colonies were swayed by no local interest, no partial interest, no selfish interest. The temptation to profit by the punishment of Boston was strongest to our neighbors of Salem. Yet Salem was precisely the place where this miserable proffer was spurned, in a tone of the most lofty self-respect and the most indignant patriotism. "We are deeply affected," said its inhabitants, "with the sense of our public calamities; but the miseries that are now rapidly hastening on our brethren in the capital of the Province greatly excite our commiseration. By shutting up the port of Boston, some imagine that the course of trade might be turned hither and to our benefit; but we must be dead to every idea of justice, lost to all feelings of humanity, could we indulge a thought to seize on wealth and raise our fortunes on the ruin of our suffering neighbors." These noble sentiments were not confined to our immediate vicinity. In that day of general affection and brotherhood, the blow given to Boston smote

on every patriotic heart from one end of the country to the other. Virginia and the Carolinas, as well as Connecticut and New Hampshire, felt and proclaimed the cause to be their own. The Continental Congress, then holding its first session in Philadelphia, expressed its sympathy for the suffering inhabitants of Boston, and addresses were received from all quarters, assuring them that the cause was a common one, and should be met by common efforts and common sacrifices. The Congress of Massachusetts responded to these assurances; and in an address to the Congress at Philadelphia, bearing the official signature, perhaps among the last, of the immortal Warren, notwithstanding the severity of its suffering and the magnitude of the dangers which threatened it, it was declared, that this Colony “is ready, at all times, to spend and to be spent in the cause of America.”

But the hour drew nigh which was to put professions to the proof, and to determine whether the authors of these mutual pledges were ready to seal them in blood. The tidings of Lexington and Concord had no sooner spread, than it was universally felt that the time was at last come for action. A spirit pervaded all ranks, not transient, not boisterous, but deep, solemn, determined,

“totamque infusa per artus
Mens agitat molem, et magno se corpore miscet.”

War, on their own soil and at their own doors; was, indeed, a strange work to the yeomanry of New England; but their consciences were convinced of its necessity, their country called them to it, and they did not withhold themselves from the perilous trial. The ordinary occupations of life were abandoned; the plough was staid in the unfinished furrow; wives gave up their husbands, and mothers gave up their sons, to the battles of a civil war. Death might come, in honor, on the field; it might come, in disgrace, on the scaffold. For either and for both they were prepared. The sentiment of Quincy was full in their hearts. “Blandishments,” said that distinguished son of genius and patriotism, “will not fascinate us, nor will threats of a halter intimidate; for, under God, we are determined that, wheresoever, whensoever, or howsoever we shall be called to make our exit, we will die free men.”

The 17th of June saw the four New England Colonies standing here, side by side, to triumph or to fall together; and there was with them from that moment to the end of the war, what I hope will remain with them for ever, one cause, one country, one heart.

The battle of Bunker Hill was attended with the most important effects beyond its immediate results as a military engagement. It created at once a state of open, public war. There could now be no longer a question of proceeding against individuals, as guilty of treason or rebellion. That fearful crisis was past. The appeal lay to the sword, and the only question was, whether the spirit and the resources of the people would hold out, till the object should be accomplished. Nor were its general consequences confined to our own country. The previous proceedings of the Colonies, their appeals, resolutions, and addresses, had made their cause known to Europe. Without boasting, we may say, that in no age or country has the public cause been maintained with more force of argument, more power of illustration, or more of that persuasion which excited feeling and elevated principle can alone bestow, than the Revolutionary state papers exhibit. These papers will for ever deserve to be studied, not only for the spirit which they breathe, but for the ability with which they were written.

To this able vindication of their cause, the Colonies had now added a practical and severe proof of their own true devotion to it, and given evidence also of the power which they could bring to its support. All now saw, that if America fell, she would not fall without a struggle. Men felt sympathy and regard, as well as surprise, when they beheld these infant states, remote, unknown, unaided, encounter the power of England, and, in the first considerable battle, leave more of their enemies dead on the field, in proportion to the number of combatants, than had been recently known to fall in the wars of Europe.

Information of these events, circulating throughout the world, at length reached the ears of one who now hears me.^[60] He has not forgotten the emotion which the fame of Bunker Hill, and the name of Warren, excited in his youthful breast.

SIR, we are assembled to commemorate the establishment of great public principles of liberty, and to do honor to the distinguished dead. The occasion is too severe for eulogy of the living. But, Sir, your interesting

relation to this country, the peculiar circumstances which surround you and surround us, call on me to express the happiness which we derive from your presence and aid in this solemn commemoration.

Fortunate, fortunate man! with what measure of devotion will you not thank God for the circumstances of your extraordinary life! You are connected with both hemispheres and with two generations. Heaven saw fit to ordain, that the electric spark of liberty should be conducted, through you, from the New World to the Old; and we, who are now here to perform this duty of patriotism, have all of us long ago received it in charge from our fathers to cherish your name and your virtues. You will account it an instance of your good fortune, Sir, that you crossed the seas to visit us at a time which enables you to be present at this solemnity. You now behold the field, the renown of which reached you in the heart of France, and caused a thrill in your ardent bosom. You see the lines of the little redoubt thrown up by the incredible diligence of Prescott; defended, to the last extremity, by his lion-hearted valor; and within which the corner-stone of our monument has now taken its position. You see where Warren fell, and where Parker, Gardner, McCleary, Moore, and other early patriots, fell with him. Those who survived that day, and whose lives have been prolonged to the present hour, are now around you. Some of them you have known in the trying scenes of the war. Behold! they now stretch forth their feeble arms to embrace you. Behold! they raise their trembling voices to invoke the blessing of God on you and yours for ever.

Sir, you have assisted us in laying the foundation of this structure. You have heard us rehearse, with our feeble commendation, the names of departed patriots. Monuments and eulogy belong to the dead. We give them this day to Warren and his associates. On other occasions they have been given to your more immediate companions in arms, to Washington, to Greene, to Gates, to Sullivan, and to Lincoln. We have become reluctant to grant these, our highest and last honors, further. We would gladly hold them yet back from the little remnant of that immortal band. *Serus in cælum redeas.* Illustrious as are your merits, yet far, O, very far distant be the day, when any inscription shall bear your name, or any tongue pronounce its eulogy!

The leading reflection to which this occasion seems to invite us, respects the great changes which have happened in the fifty years since the battle of

Bunker Hill was fought. And it peculiarly marks the character of the present age, that, in looking at these changes, and in estimating their effect on our condition, we are obliged to consider, not what has been done in our own country only, but in others also. In these interesting times, while nations are making separate and individual advances in improvement, they make, too, a common progress; like vessels on a common tide, propelled by the gales at different rates, according to their several structure and management, but all moved forward by one mighty current, strong enough to bear onward whatever does not sink beneath it.

A chief distinction of the present day is a community of opinions and knowledge amongst men in different nations, existing in a degree heretofore unknown. Knowledge has, in our time, triumphed, and is triumphing, over distance, over difference of languages, over diversity of habits, over prejudice, and over bigotry. The civilized and Christian world is fast learning the great lesson, that difference of nation does not imply necessary hostility, and that all contact need not be war. The whole world is becoming a common field for intellect to act in. Energy of mind, genius, power, wheresoever it exists, may speak out in any tongue, and the *world* will hear it. A great chord of sentiment and feeling runs through two continents, and vibrates over both. Every breeze wafts intelligence from country to country; every wave rolls it; all give it forth, and all in turn receive it. There is a vast commerce of ideas; there are marts and exchanges for intellectual discoveries, and a wonderful fellowship of those individual intelligences which make up the mind and opinion of the age. Mind is the great lever of all things; human thought is the process by which human ends are ultimately answered; and the diffusion of knowledge, so astonishing in the last half-century, has rendered innumerable minds, variously gifted by nature, competent to be competitors or fellow-workers on the theatre of intellectual operation.

From these causes important improvements have taken place in the personal condition of individuals. Generally speaking, mankind are not only better fed and better clothed, but they are able also to enjoy more leisure; they possess more refinement and more self-respect. A superior tone ⁷⁶of education, manners, and habits prevails. This remark, most true in its application to our own country, is also partly true when applied elsewhere. It is proved by the vastly augmented consumption of those articles of

manufacture and of commerce which contribute to the comforts and the decencies of life; an augmentation which has far outrun the progress of population. And while the unexampled and almost incredible use of machinery would seem to supply the place of labor, labor still finds its occupation and its reward; so wisely has Providence adjusted men's wants and desires to their condition and their capacity.

Any adequate survey, however, of the progress made during the last half-century in the polite and the mechanic arts, in machinery and manufactures, in commerce and agriculture, in letters and in science, would require volumes. I must abstain wholly from these subjects, and turn for a moment to the contemplation of what has been done on the great question of politics and government. This is the master topic of the age; and during the whole fifty years it has intensely occupied the thoughts of men. The nature of civil government, its ends and uses, have been canvassed and investigated; ancient opinions attacked and defended; new ideas recommended and resisted, by whatever power the mind of man could bring to the controversy. From the closet and the public halls the debate has been transferred to the field; and the world has been shaken by wars of unexampled magnitude, and the greatest variety of fortune. A day of peace has at length succeeded; and now that the strife has subsided, and the smoke cleared away, we may begin to see what has actually been done, permanently changing the state and condition of human society. And, without dwelling on particular circumstances, it is most apparent, that, from the before-mentioned causes of augmented knowledge and improved individual condition, a real, substantial, and important change has taken place, and is taking place, highly favorable, on the whole, to human liberty and human happiness.

The great wheel of political revolution began to move in America. Here its rotation was guarded, regular, and safe. Transferred to the other continent, from unfortunate but natural causes, it received an irregular and violent impulse; it whirled along with a fearful celerity; till at length, like the chariot-wheels in the races of antiquity, it took fire from the rapidity of its own motion, and blazed onward, spreading conflagration and terror around.

We learn from the result of this experiment, how fortunate was our own condition, and how admirably the character of our people was calculated for setting the great example of popular governments. The possession of power

did not turn the heads of the American people, for they had long been in the habit of exercising a great degree of self-control. Although the paramount authority of the parent state existed over them, yet a large field of legislation had always been open to our Colonial assemblies. They were accustomed to representative bodies and the forms of free government; they understood the doctrine of the division of power among different branches, and the necessity of checks on each. The character of our countrymen, moreover, was sober, moral, and religious; and there was little in the change to shock their feelings of justice and humanity, or even to disturb an honest prejudice. We had no domestic throne to overturn, no privileged orders to cast down, no violent changes of property to encounter. In the American Revolution, no man sought or wished for more than to defend and enjoy his own. None hoped for plunder or for spoil. Rapacity was unknown to it; the axe was not among the instruments of its accomplishment; and we all know that it could not have lived a single day under any well-founded imputation of possessing a tendency adverse to the Christian religion.

It need not surprise us, that, under circumstances less auspicious, political revolutions elsewhere, even when well intended, have terminated differently. It is, indeed, a great achievement, it is the master-work of the world, to establish governments entirely popular on lasting foundations; nor is it easy, indeed, to introduce the popular principle at all into governments to which it has been altogether a stranger. It cannot be doubted, however, that Europe has come out of the contest, in which she has been so long engaged, with greatly superior knowledge, and, in many respects, in a highly improved condition. Whatever benefit has been acquired is likely to be retained, for it consists mainly in the acquisition of more enlightened ideas. And although kingdoms and provinces may be wrested from the hands that hold them, in the same manner they were obtained; although ordinary and vulgar power may, in human affairs, be lost as it has been won; yet it is the glorious prerogative of the empire of knowledge, that what it gains it never loses. On the contrary, it increases by the multiple of its own power; all its ends become means; all its attainments, helps to new conquests. Its whole abundant harvest is but so much seed wheat, and nothing has limited, and nothing can limit, the amount of ultimate product.

Under the influence of this rapidly increasing knowledge, the people have begun, in all forms of government, to think, and to reason, on affairs of

state. Regarding government as an institution for the public good, they demand a knowledge of its operations, and a participation in its exercise. A call for the representative system, wherever it is not enjoyed, and where there is already intelligence enough to estimate its value, is perseveringly made. Where men may speak out, they demand it; where the bayonet is at their throats, they pray for it.

When Louis the Fourteenth said, "I am the state," he expressed the essence of the doctrine of unlimited power. By the rules of that system, the people are disconnected from the state; they are its subjects; it is their lord. These ideas, founded in the love of power, and long supported by the excess and the abuse of it, are yielding, in our age, to other opinions; and the civilized world seems at last to be proceeding to the conviction of that fundamental and manifest truth, that the powers of government are but a trust, and that they cannot be lawfully exercised but for the good of the community. As knowledge is more and more extended, this conviction becomes more and more general. Knowledge, in truth, is the great sun in the firmament. Life and power are scattered with all its beams. The prayer of the Grecian champion, when enveloped in unnatural clouds and darkness, is the appropriate political supplication for the people of every country not yet blessed with free institutions:—

"Dispel this cloud, the light of heaven restore,
Give me TO SEE,—and Ajax asks no more."

We may hope that the growing influence of enlightened sentiment will promote the permanent peace of the world. Wars to maintain family alliances, to uphold or to cast down dynasties, and to regulate successions to thrones, which have occupied so much room in the history of modern times, if not less likely to happen at all, will be less likely to become general and involve many nations, as the great principle shall be more and more established, that the interest of the world is peace, and its first great statute, that every nation possesses the power of establishing a government for itself. But public opinion has attained also an influence over governments which do not admit the popular principle into their organization. A necessary respect for the judgment of the world operates, in some measure, as a control over the most unlimited forms of authority. It is owing, perhaps, to this truth, that the interesting struggle of the Greeks has

been suffered to go on so long, without a direct interference, either to wrest that country from its present masters, or to execute the system of pacification by force, and, with united strength, lay the neck of Christian and civilized Greek at the foot of the barbarian Turk. Let us thank God that we live in an age when something has influence besides the bayonet, and when the sternest authority does not venture to encounter the scorching power of public reproach. Any attempt of the kind I have mentioned should be met by one universal burst of indignation; the air of the civilized world ought to be made too warm to be comfortably breathed by any one who would hazard it.

It is, indeed, a touching reflection, that, while, in the fulness of our country's happiness, we rear this monument to her honor, we look for instruction in our undertaking to a country which is now in fearful contest, not for works of art or memorials of glory, but for her own existence. Let her be assured, that she is not forgotten in the world; that her efforts are applauded, and that constant prayers ascend for her success. And let us cherish a confident hope for her final triumph. If the true spark of religious and civil liberty be kindled, it will burn. Human agency cannot extinguish it. Like the earth's central fire, it may be smothered for a time; the ocean may overwhelm it; mountains may press it down; but its inherent and unconquerable force will heave both the ocean and the land, and at some time or other, in some place or other, the volcano will break out and flame up to heaven.

Among the great events of the half-century, we must reckon, certainly, the revolution of South America; and we are not likely to overrate the importance of that revolution, either to the people of the country itself or to the rest of the world. The late Spanish colonies, now independent states, under circumstances less favorable, doubtless, than attended our own revolution, have yet successfully commenced their national existence. They have accomplished the great object of establishing their independence; they are known and acknowledged in the world; and although in regard to their systems of government, their sentiments on religious toleration, and their provisions for public instruction, they may have yet much to learn, it must be admitted that they have risen to the condition of settled and established states more rapidly than could have been reasonably anticipated. They already furnish an exhilarating example of the difference between free

governments and despotic misrule. Their commerce, at this moment, creates a new activity in all the great marts of the world. They show themselves able, by an exchange of commodities, to bear a useful part in the intercourse of nations.

A new spirit of enterprise and industry begins to prevail; all the great interests of society receive a salutary impulse; and the progress of information not only testifies to an improved condition, but itself constitutes the highest and most essential improvement.

When the battle of Bunker Hill was fought, the existence of South America was scarcely felt in the civilized world. The thirteen little Colonies of North America habitually called themselves the "Continent." Borne down by colonial subjugation, monopoly, and bigotry, these vast regions of the South were hardly visible above the horizon. But in our day there has been, as it were, a new creation. The southern hemisphere emerges from the sea. Its lofty mountains begin to lift themselves into the light of heaven; its broad and fertile plains stretch out, in beauty, to the eye of civilized man, and at the mighty bidding of the voice of political liberty the waters of darkness retire.

And, now, let us indulge an honest exultation in the conviction of the benefit which the example of our country has produced, and is likely to produce, on human freedom and human happiness. Let us endeavor to comprehend in all its magnitude, and to feel in all its importance, the part assigned to us in the great drama of human affairs. We are placed at the head of the system of representative and popular governments. Thus far our example shows that such governments are compatible, not only with respectability and power, but with repose, with peace, with security of personal rights, with good laws, and a just administration.

We are not propagandists. Wherever other systems are preferred, either as being thought better in themselves, or as better suited to existing condition, we leave the preference to be enjoyed. Our history hitherto proves, however, that the popular form is practicable, and that with wisdom and knowledge men may govern themselves; and the duty incumbent on us is, to preserve the consistency of this cheering example, and take care that nothing may weaken its authority with the world. If, in our case, the representative system ultimately fail, popular governments must be

pronounced impossible. No combination of circumstances more favorable to the experiment can ever be expected to occur. The last hopes of mankind, therefore, rest with us; and if it should be proclaimed, that our example had become an argument against the experiment, the knell of popular liberty would be sounded throughout the earth.

These are excitements to duty; but they are not suggestions of doubt. Our history and our condition, all that is gone before us, and all that surrounds us, authorize the belief, that popular governments, though subject to occasional variations, in form perhaps not always for the better, may yet, in their general character, be as durable and permanent as other systems. We know, indeed, that in our country any other is impossible. The *principle* of free governments adheres to the American soil. It is bedded in it, immovable as its mountains.

And let the sacred obligations which have devolved on this generation, and on us, sink deep into our hearts. Those who established our liberty and our government are daily dropping from among us. The great trust now descends to new hands. Let us apply ourselves to that which is presented to us, as our appropriate object. We can win no laurels in a war for independence. Earlier and worthier hands have gathered them all. Nor are there places for us by the side of Solon, and Alfred, and other founders of states. Our fathers have filled them. But there remains to us a great duty⁷⁸ of defence and preservation; and there is opened to us, also, a noble pursuit, to which the spirit of the times strongly invites us. Our proper business is improvement. Let our age be the age of improvement. In a day of peace, let us advance the arts of peace and the works of peace. Let us develop the resources of our land, call forth its powers, build up its institutions, promote all its great interests, and see whether we also, in our day and generation, may not perform something worthy to be remembered. Let us cultivate a true spirit of union and harmony. In pursuing the great objects which our condition points out to us, let us act under a settled conviction, and an habitual feeling, that these twenty-four States are one country. Let our conceptions be enlarged to the circle of our duties. Let us extend our ideas over the whole of the vast field in which we are called to act. Let our object be, OUR COUNTRY, OUR WHOLE COUNTRY, AND NOTHING BUT OUR COUNTRY. And, by the blessing of God, may that country itself become a vast and splendid monument, not of oppression and terror, but of

Wisdom, of Peace, and of Liberty, upon which the world may gaze with admiration for ever!

FOOTNOTES

[53]

An Address delivered at the Laying of the Corner-stone of the Bunker Hill Monument at Charlestown, Massachusetts, on the 17th of June, 1825.

[54]

An interesting account of the voyage of the early emigrants to the Maryland Colony, and of its settlement, is given in the official report of Father White, written probably within the first month after the landing at St. Mary's. The original Latin manuscript is still preserved among the archives of the Jesuits, at Rome. The "Ark" and the "Dove" are remembered with scarcely less interest by the descendants of the sister Colony, than is the "Mayflower" in New England, which, thirteen years earlier, at the same season of the year, bore thither the Pilgrim Fathers.

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Mr. Webster was at this time President of the Bunker Hill Monument Association, chosen on the decease of Governor John Brooks, the first President.

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That which was spoken of figuratively in 1825 has, in the lapse of a quarter of a century, by the introduction of railroads and telegraphic lines, become a reality. It is an interesting circumstance, that the first railroad on the Western Continent was constructed for the purpose of accelerating the erection of this monument.

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See President Monroe's Message to Congress in 1823, and Mr. Webster's speech on the Panama mission, in 1828.

[58]

It is necessary to inform those only who are unacquainted with the localities, that the United States Navy Yard at Charlestown is situated at the base of Bunker Hill.

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See the North American Review, Vol. XLI. p. 242.

[60]

Among the earliest of the arrangements for the celebration of the 17th of June, 1825, was the invitation to General Lafayette to be present; and he had so timed his progress through the other States as to return to Massachusetts in season for the great occasion.

THE COMPLETION OF THE BUNKER HILL MONUMENT.

INTRODUCTORY NOTE.*

In the introductory note to the preceding Address, a brief account is given of the origin and progress of the measures adopted for the erection of the Bunker Hill Monument, down to the time of laying the corner-stone, compiled from Mr. Frothingham's History of the Siege of Boston. The same valuable work (pp. 345-352) relates the obstacles which presented themselves to the rapid execution of the design, and the means by which they were overcome. In this narrative, Mr. Frothingham has done justice to the efforts and exertions of the successive boards of direction and officers of the Association, to the skill and disinterestedness of the architect, to the liberality of distinguished individuals, to the public spirit of the Massachusetts Charitable Mechanic Association, in promoting a renewed subscription, and to the patriotic zeal of the ladies of Boston and the vicinity, in holding a most successful fair. As it would be difficult farther to condense the information contained in this interesting summary, we must refer the reader to Mr. Frothingham's work for an adequate account of the causes which delayed the completion of the monument for nearly seventeen years, and of the resources and exertions by which the desired end was finally attained. The last stone was raised to its place on the morning of the 23d of July, 1842.

It was determined by the directors of the Association, that the completion of the work should be celebrated in a manner not less imposing than that in which the laying of the corner-stone had been celebrated, seventeen years

before. The coöperation of Mr. Webster was again invited, and, notwithstanding the pressure of his engagements as Secretary of State at Washington, was again patriotically yielded. Many circumstances conspired to increase the interest of the occasion. The completion of the monument had been long delayed, but in the interval the subject had been kept much before the public mind. Mr. Webster's address on the 17th of June, 1825, had obtained the widest circulation throughout the country; passages from it had passed into household words throughout the Union. Wherever they were repeated, they made the Bunker Hill Monument a familiar thought with the people. Meantime, Boston and Charlestown had doubled their population, and the multiplication of railroads in every direction enabled a person, in almost any part of New England, to reach the metropolis in a day. The President of the United States and his Cabinet had accepted invitations to be present; delegations of the descendants of New England were present from the remotest parts of the Union; one hundred and eight surviving veterans of the Revolution, among whom were some who were in the battle of Bunker Hill, imparted a touching interest to the scene.

Every thing conspired to promote the success of the ceremonial. The day was uncommonly fine; cool for the season, and clear. A large volunteer force from various parts of the country had assembled for the occasion, and formed a brilliant escort to an immense procession, as it moved from Boston to the battle-ground on the hill. The bank which slopes down from the obelisk on the eastern side of Monument Square was covered with seats, rising in the form of an amphitheatre, under the open sky. These had been prepared for ladies, who had assembled in great numbers, awaiting the arrival of the procession. When it arrived, it was received into a large open area in front of these seats. Mr. Webster was stationed upon an elevated platform, in front of the audience and of the monument towering in the background. According to Mr. Frothingham's estimate, a hundred thousand persons were gathered about the spot, and nearly half that number are supposed to have been within the reach of the orator's voice. The ground rises slightly between the platform and the Monument Square, so that the whole of this immense concourse, compactly crowded together, breathless with attention, swayed by one sentiment of admiration and delight, was within the full view of the speaker. The position and the occasion were the height of the moral sublime. "When, after saying, 'It is not from my lips, it could not be from any human lips, that that strain of eloquence is this day to

flow most competent to move and excite the vast multitude around me,—the powerful speaker stands motionless before us,’ he paused, and pointed in silent admiration to the sublime structure, the audience burst into long and loud applause. It was some moments before the speaker could go on with the address.”

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THE COMPLETION OF THE BUNKER HILL MONUMENT.

[61]

A duty has been performed. A work of gratitude and patriotism is completed. This structure, having its foundations in soil which drank deep of early Revolutionary blood, has at length reached its destined height, and now lifts its summit to the skies.

We have assembled to celebrate the accomplishment of this undertaking, and to indulge afresh in the recollection of the great event which it is designed to commemorate. Eighteen years, more than half the ordinary duration of a generation of mankind, have elapsed since the cornerstone of this monument was laid. The hopes of its projectors rested on voluntary contributions, private munificence, and the general favor of the public. These hopes have not been disappointed. Donations have been made by individuals, in some cases of large amount, and smaller sums have been contributed by thousands. All who regard the object itself as important, and its accomplishment, therefore, as a good attained, will entertain sincere respect and gratitude for the unwearied efforts of the successive presidents, boards of directors, and committees of the Association which has had the general control of the work. The architect, equally entitled to our thanks and commendation, will find other reward, also, for his labor and skill, in the beauty and elegance of the obelisk itself, and the distinction which, as a work of art, it confers upon him.

At a period when the prospects of further progress in the undertaking were gloomy and discouraging, the Mechanic Association, by a most ⁸⁴praiseworthy and vigorous effort, raised new funds for carrying it forward,

and saw them applied with fidelity, economy, and skill. It is a grateful duty to make public acknowledgments of such timely and efficient aid.

The last effort and the last contribution were from a different source. Garlands of grace and elegance were destined to crown a work which had its commencement in manly patriotism. The winning power of the sex addressed itself to the public, and all that was needed to carry the monument to its proposed height, and to give to it its finish, was promptly supplied. The mothers and the daughters of the land contributed thus, most successfully, to whatever there is of beauty in the monument itself, or whatever of utility and public benefit and gratification there is in its completion.

Of those with whom the plan originated of erecting on this spot a monument worthy of the event to be commemorated, many are now present; but others, alas! have themselves become subjects of monumental inscription. William Tudor, an accomplished scholar, a distinguished writer, a most amiable man, allied both by birth and sentiment to the patriots of the Revolution, died while on public service abroad, and now lies buried in a foreign land.^[62] William Sullivan, a name fragrant of Revolutionary merit, and of public service and public virtue, who himself partook in a high degree of the respect and confidence of the community, and yet was always most loved where best known, has also been gathered to his fathers.^[63] And last, George Blake, a lawyer of learning and eloquence, a man of wit and of talent, of social qualities the most agreeable and fascinating, and of gifts which enabled him to exercise large sway over public assemblies, has closed his human career.^[63] I know that in the crowds before me there are those from whose eyes tears will flow at the mention of these names. But such mention is due to their general character, their public and private virtues, and especially, on this occasion, to the spirit and zeal with which they entered into the undertaking which is now completed.

I have spoken only of those who are no longer numbered with the living.^[95] But a long life, now drawing towards its close, always distinguished by acts of public spirit, humanity, and charity, forming a character which has already become historical, and sanctified by public regard and the affection of friends, may confer even on the living the proper immunity of the dead, and be the fit subject of honorable mention and warm commendation. Of the early projectors of the design of this monument, one of the most

prominent, the most zealous, and the most efficient, is Thomas H. Perkins. It was beneath his ever-hospitable roof that those whom I have mentioned, and others yet living and now present, having assembled for the purpose, adopted the first step towards erecting a monument on Bunker Hill. Long may he remain, with unimpaired faculties, in the wide field of his usefulness! His charities have distilled, like the dews of heaven; he has fed the hungry, and clothed the naked; he has given sight to the blind; and for such virtues there is a reward on high, of which all human memorials, all language of brass and stone, are but humble types and attempted imitations.

Time and nature have had their course, in diminishing the number of those whom we met here on the 17th of June, 1825. Most of the Revolutionary characters then present have since deceased; and Lafayette sleeps in his native land. Yet the name and blood of Warren are with us; the kindred of Putnam are also here; and near me, universally beloved for his character and his virtues, and now venerable for his years, sits the son of the noble-hearted and daring Prescott.^[64] Gideon Foster of Danvers, Enos Reynolds of Boxford, Phineas Johnson, Robert Andrews, Elijah Dresser, Josiah Cleaveland, Jesse Smith, Philip Bagley, Needham Maynard, Roger Plaisted, Joseph Stephens, Nehemiah Porter, and James Harvey, who bore arms for their country either at Concord and Lexington, on the 19th of April, or on Bunker Hill, all now far advanced in age, have come here to-day, to look once more on the field where their valor was proved, and to receive a hearty outpouring of our respect.

They have long outlived the troubles and dangers of the Revolution; they have outlived the evils arising from the want of a united and efficient government; they have outlived the menace of imminent dangers to the public liberty; they have outlived nearly all their contemporaries; but they have not outlived, they cannot outlive, the affectionate gratitude of their country. Heaven has not allotted to this generation an opportunity of rendering high services, and manifesting strong personal devotion, such as they rendered and manifested, and in such a cause as that which roused the patriotic fires of their youthful breasts, and nerved the strength of their arms. But we may praise what we cannot equal, and celebrate actions which we were not born to perform. *Pulchrum est benefacere reipublicæ, etiam bene dicere haud absurdum est.*

The Bunker Hill Monument is finished. Here it stands. Fortunate in the high natural eminence on which it is placed, higher, infinitely higher in its objects and purpose, it rises over the land and over the sea; and, visible, at their homes, to three hundred thousand of the people of Massachusetts, it stands a memorial of the last, and a monitor to the present and to all succeeding generations. I have spoken of the loftiness of its purpose. If it had been without any other design than the creation of a work of art, the granite of which it is composed would have slept in its native bed. It has a purpose, and that purpose gives it its character. That purpose enrobes it with dignity and moral grandeur. That well-known purpose it is which causes us to look up to it with a feeling of awe. It is itself the orator of this occasion. It is not from my lips, it could not be from any human lips, that that strain of eloquence is this day to flow most competent to move and excite the vast multitudes around me. The powerful speaker stands motionless before us. It is a plain shaft. It bears no inscriptions, fronting to the rising sun, from which the future antiquary shall wipe the dust. Nor does the rising sun cause tones of music to issue from its summit. But at the rising of the sun, and at the setting of the sun; in the blaze of noonday, and beneath the milder effulgence of lunar light; it looks, it speaks, it acts, to the full comprehension of every American mind, and the awakening of glowing enthusiasm in every American heart. Its silent, but awful utterance; its deep pathos, as it brings to our contemplation the 17th of June, 1775, and the consequences which have resulted to us, to our country, and to the world, from the events of that day, and which we know must continue to rain influence on the destinies of mankind to the end of time; the elevation with which it raises us high above the ordinary feelings of life, surpass all that the study of the closet, or even the inspiration of genius, can produce. To-day it speaks to us. Its future auditories will be the successive generations of men, as they rise up before it and gather around it. Its speech will be of patriotism and courage; of civil and religious liberty; of free government; of the moral improvement and elevation of mankind; and of the immortal memory of those who, with heroic devotion, have sacrificed their lives for their country.^[65]

In the older world, numerous fabrics still exist, reared by human hands, but whose object has been lost in the darkness of ages. They are now monuments of nothing but the labor and skill which constructed them.

The mighty pyramid itself, half buried in the sands of Africa, has nothing to bring down and report to us, but the power of kings and the servitude of the people. If it had any purpose beyond that of a mausoleum, such purpose has perished from history and from tradition. If asked for its moral object, its admonition, its sentiment, its instruction to mankind, or any high end in its erection, it is silent; silent as the millions which lie in the dust at its base, and in the catacombs which surround it. Without a just moral object, therefore, made known to man, though raised against the skies, it excites only conviction of power, mixed with strange wonder. But if the civilization of the present race of men, founded, as it is, in solid science, the true knowledge of nature, and vast discoveries in art, and which is elevated and purified by moral sentiment and by the truths of Christianity, be not destined to destruction before the final termination of human existence on earth, the object and purpose of this edifice will be known till that hour shall come. And even if civilization should be subverted, and the truths of the Christian religion obscured by a new deluge of barbarism, the memory of Bunker Hill and the American Revolution will still be elements and parts of the knowledge which shall be possessed by the last man to whom the light of civilization and Christianity shall be extended.

This celebration is honored by the presence of the chief executive magistrate of the Union. An occasion so national in its object and character, and so much connected with that Revolution from which the government sprang at the head of which he is placed, may well receive from him this mark of attention and respect. Well acquainted with Yorktown, the scene of the last great military struggle of the Revolution, his eye now surveys the field of Bunker Hill, the theatre of the first of those important conflicts. He sees where Warren fell, where Putnam, and Prescott, and Stark, and Knowlton, and Brooks fought. He beholds the spot where a thousand trained soldiers of England were smitten to the earth, in the first effort of revolutionary war, by the arm of a bold and determined yeomanry, contending for liberty and their country. And while all assembled here entertain towards him sincere personal good wishes and the high respect due to his elevated office and station, it is not to be doubted that he enters, with true American feeling, into the patriotic enthusiasm kindled by the occasion which animates the multitudes that surround him.

His Excellency, the Governor of the Commonwealth, the Governor of Rhode Island, and the other distinguished public men whom we have the honor to receive as visitors and guests to-day, will cordially unite in a celebration connected with the great event of the Revolutionary war.

No name in the history of 1775 and 1776 is more distinguished than that borne by an ex-president of the United States, whom we expected to see here, but whose ill health prevents his attendance. Whenever popular rights were to be asserted, an Adams was present; and when the time came for the formal Declaration of Independence, it was the voice of an Adams that shook the halls of Congress. We wish we could have welcomed to us this day the inheritor of Revolutionary blood, and the just and worthy representative of high Revolutionary names, merit, and services.

Banners and badges, processions and flags, announce to us, that amidst this uncounted throng are thousands of natives of New England now residents in other States. Welcome, ye kindred names, with kindred blood! From the broad savannas of the South, from the newer regions of the West, from amidst the hundreds of thousands of men of Eastern origin who cultivate the rich valley of the Genesee or live along the chain of the Lakes, from the mountains of Pennsylvania, and from the thronged cities of the coast, welcome, welcome! Wherever else you may be strangers, here you are all at home. You assemble at this shrine of liberty, near the family altars at which your earliest devotions were paid to Heaven; near to the temples of worship first entered by you, and near to the schools and colleges in which your education was received. You come hither with a glorious ancestry of liberty. You bring names which are on the rolls of Lexington, Concord, and Bunker Hill. You come, some of you, once more to be embraced by an aged Revolutionary father, or to receive another, perhaps a last, blessing, bestowed in love and tears, by a mother, yet surviving to witness and to enjoy your prosperity and happiness.

But if family associations and the recollections of the past bring you hither with greater alacrity, and mingle with your greeting much of local attachment and private affection, greeting also be given, free and hearty greeting, to every American citizen who treads this sacred soil with patriotic feeling, and respire with pleasure in an atmosphere perfumed with the recollections of 1775! This occasion is respectable, nay, it is grand, it is sublime, by the nationality of its sentiment. Among the seventeen millions

of happy people who form the American community, there is not one who has not an interest in this monument, as there is not one that has not a deep and abiding interest in that which it commemorates.

Woe betide the man who brings to this day's worship feeling less than wholly American! Woe betide the man who can stand here with the fires of local resentments burning, or the purpose of fomenting local jealousies and the strifes of local interests festering and rankling in his heart. Union, established in justice, in patriotism, and the most plain and obvious common interest,—union, founded on the same love of liberty, cemented by blood shed in the same common cause,—union has been the source of all our glory and greatness thus far, and is the ground of all our highest hopes. This column stands on Union. I know not that it might not keep its position, if the American Union, in the mad conflict of human passions, and in the strife of parties and factions, should be broken up and destroyed. I know not that it would totter and fall to the earth, and mingle its fragments with the fragments of Liberty and the Constitution, when State should be separated from State, and faction and dismemberment obliterate for ever all the hopes of the founders of our republic, and the great inheritance of their children. It might stand. But who, from beneath the weight of mortification and shame that would oppress him, could look up to behold it? Whose eyeballs would not be seared by such a spectacle? For my part, should I live to such a time, I shall avert my eyes from it for ever.

It is not as a mere military encounter of hostile armies, that the battle of Bunker Hill presents its principal claim to attention. Yet, even as a mere battle, there were circumstances attending it extraordinary in character, and entitling it to peculiar distinction. It was fought on this eminence; in the neighborhood of yonder city; in the presence of many more spectators than there were combatants in the conflict. Men, women, and children, from every commanding position, were gazing at the battle, and looking for its results with all the eagerness natural to those who knew that the issue was fraught with the deepest consequences to themselves, personally, as well as to their country. Yet, on the 16th of June, 1775, there was nothing around this hill but verdure and culture. There was, indeed, the note of awful preparation in Boston. There was the Provincial army at Cambridge, with its right flank resting on Dorchester, and its left on Chelsea. But here all was peace. Tranquillity reigned around. On the 17th every thing was

changed. On this eminence had arisen, in the night, a redoubt, built by Prescott, and in which he held command. Perceived by the enemy at dawn, it was immediately cannonaded from the floating batteries in the river, and from the opposite shore. And then ensued the hurried movement in Boston, and soon the troops of Britain embarked in the attempt to dislodge the Colonists. In an hour every thing indicated an immediate and bloody conflict. Love of liberty on one side, proud defiance of rebellion on the other; hopes and fears, and courage and daring, on both sides, animated the hearts of the combatants as they hung on the edge of battle.

I suppose it would be difficult, in a military point of view, to ascribe to the leaders on either side any just motive for the engagement which followed. On the one hand, it could not have been very important to the Americans to attempt to hem the British within the town, by advancing one single post a quarter of a mile; while, on the other hand, if the British found it essential to dislodge the American troops, they had it in their power at no expense of life. By moving up their ships and batteries, they could have completely cut off all communication with the mainland over the Neck, and the forces in the redoubt would have been reduced to a state of famine in forty-eight hours.

But that was not the day for any such consideration on either side! Both parties were anxious to try the strength of their arms. The pride of England would not permit the rebels, as she termed them, to defy her to the teeth; and, without for a moment calculating the cost, the British general determined to destroy the fort immediately. On the other side, Prescott and his gallant followers longed and thirsted for a decisive trial of strength and of courage. They wished a battle, and wished it at once. And this is the true secret of the movements on this hill.

I will not attempt to describe that battle. The cannonading; the landing of the British; their advance; the coolness with which the charge was met; the repulse; the second attack; the second repulse; the burning of Charlestown; and, finally, the closing assault, and the slow retreat of the Americans,—the history of all these is familiar.

But the consequences of the battle of Bunker Hill were greater than those of any ordinary conflict, although between armies of far greater force, and terminating with more immediate advantage on the one side or the other. It

was the first great battle of the Revolution; and not only the first blow, but the blow which determined the contest. It did not, indeed, put an end to the war, but in the then existing hostile state of feeling, the difficulties could only be referred to the arbitration of the sword. And one thing is certain; that after the New England troops had shown themselves able to face and repulse the regulars, it was decided that peace never could be established, but upon the basis of the independence of the Colonies. When the sun of that day went down, the event of Independence was no longer doubtful. In a few days Washington heard of the battle, and he inquired if the militia had stood the fire of the regulars. When told that they had not only stood that fire, but reserved their own till the enemy was within eight rods, and then poured it in with tremendous effect, "Then," exclaimed he, "the liberties of the country are safe!"

The consequences of this battle were just of the same importance as the Revolution itself.

If there was nothing of value in the principles of the American Revolution, then there is nothing valuable in the battle of Bunker Hill and its consequences. But if the Revolution was an era in the history of man favorable to human happiness, if it was an event which marked the progress of man all over the world from despotism to liberty, then this monument is not raised without cause. Then the battle of Bunker Hill is not an event undeserving celebrations, commemorations, and rejoicings, now and in all coming times.

What, then, is the true and peculiar principle of the American Revolution, and of the systems of government which it has confirmed and established? The truth is, that the American Revolution was not caused by the instantaneous discovery of principles of government before unheard of, or the practical adoption of political ideas such as had never before entered into the minds of men. It was but the full development of principles of government, forms of society, and political sentiments, the origin of all which lay back two centuries in English and American history.

The discovery of America, its colonization by the nations of Europe, the history and progress of the colonies, from their establishment to the time when the principal of them threw off their allegiance to the respective states by which they had been planted, and founded governments of their own,

constitute one of the most interesting portions of the annals of man. These events occupied three hundred years; during which period civilization and knowledge made steady progress in the Old World; so that Europe, at the commencement of the nineteenth century, had become greatly changed from that Europe which began the colonization of America at the close of the fifteenth, or the commencement of the sixteenth. And what is most material to my present purpose is, that in the progress of the first of these centuries, that is to say, from the discovery of America to the settlements of Virginia and Massachusetts, political and religious events took place, which most materially affected the state of society and the sentiments of mankind, especially in England and in parts of Continental Europe. After a few feeble and unsuccessful efforts by England, under Henry the Seventh, to plant colonies in America, no designs of that kind were prosecuted for a long period, either by the English government or any of its subjects. Without inquiring into the causes of this delay, its consequences are sufficiently clear and striking. England, in this lapse of a century, unknown to herself, but under the providence of God and the influence of events, was fitting herself for the work of colonizing North America, on such principles and by such men, as should spread the English name and English blood, in time, over a great portion of the Western hemisphere. The commercial spirit was greatly fostered by several laws passed in the reign of Henry the Seventh; and in the same reign encouragement was given to arts and manufactures in the eastern counties, and some not unimportant modifications of the feudal system took place, by allowing the breaking of entails. These and other measures, and other occurrences, were making way for a new class of society to emerge, and show itself, in a military and feudal age; a middle class, between the barons or great landholders and the retainers of the crown, on the one side, and the tenants of the crown and barons, and agricultural and other laborers, on the other side. With the rise and growth of this new class of society, not only did commerce and the arts increase, but better education, a greater degree of knowledge, juster notions of the true ends of government, and sentiments favorable to civil liberty, began to spread abroad, and become more and more common. But the plants springing from these seeds were of slow growth. The character of English society had indeed begun to undergo a change; but changes of national character are ordinarily the work of time. Operative causes were, however, evidently in existence, and sure to produce, ultimately, their proper effect.

From the accession of Henry the Seventh to the breaking out of the civil wars, England enjoyed much greater exemption from war, foreign and domestic, than for a long period before, and during the controversy between the houses of York and Lancaster. These years of peace were favorable to commerce and the arts. Commerce and the arts augmented general and individual knowledge; and knowledge is the only fountain, both of the love and the principles of human liberty.

Other powerful causes soon came into active play. The Reformation⁹⁴ of Luther broke out, kindling up the minds of men afresh, leading to new habits of thought, and awakening in individuals energies before unknown even to themselves. The religious controversies of this period changed society, as well as religion; indeed, it would be easy to prove, if this occasion were proper for it, that they changed society to a considerable extent, where they did not change the religion of the state. They changed man himself; in his modes of thought, his consciousness of his own powers, and his desire of intellectual attainment. The spirit of commercial and foreign adventure, therefore, on the one hand, which had gained so much strength and influence since the time of the discovery of America, and, on the other, the assertion and maintenance of religious liberty, having their source indeed in the Reformation, but continued, diversified, and constantly strengthened by the subsequent divisions of sentiment and opinion among the Reformers themselves, and this love of religious liberty drawing after it or bringing along with it, as it always does, an ardent devotion to the principle of civil liberty also, were the powerful influences under which character was formed and men trained, for the great work of introducing English civilization, English law, and what is more than all, Anglo-Saxon blood, into the wilderness of North America. Raleigh and his companions may be considered as the creatures, principally, of the first of these causes. High-spirited, full of the love of personal adventure, excited, too, in some degree, by the hopes of sudden riches from the discovery of mines of the precious metals, and not unwilling to diversify the labors of settling a colony with occasional cruising against the Spaniards in the West Indian seas, they crossed and recrossed the ocean, with a frequency which surprises us, when we consider the state of navigation, and which evinces a most daring spirit.

The other cause peopled New England. The Mayflower sought our shores under no high-wrought spirit of commercial adventure, no love of gold, no mixture of purpose warlike or hostile to any human being. Like the dove from the ark, she had put forth only to find rest. Solemn supplications on the shore of the sea, in Holland, had invoked for her, at her departure, the blessings of Providence. The stars which guided her were the unobscured constellations of civil and religious liberty. Her deck was the altar of the living God. Fervent prayers on bended knees, mingled, morning and evening, with the voices of ocean, and the sighing of the wind in her shrouds. Every prosperous breeze, which, gently swelling her sails, helped the Pilgrims onward in their course, awoke new anthems of praise; and when the elements were wrought into fury, neither the tempest, tossing their fragile bark like a feather, nor the darkness and howling of the midnight storm, ever disturbed, in man or woman, the firm and settled purpose of their souls, to undergo all, and to do all, that the meekest patience, the boldest resolution, and the highest trust in God could enable human beings to suffer or to perform.

Some differences may, doubtless, be traced at this day between the descendants of the early colonists of Virginia and those of New England, owing to the different influences and different circumstances under which the respective settlements were made; but only enough to create a pleasing variety in the midst of a general family resemblance.

“Facies, non omnibus una,
Nec diversa tamen, qualem docet esse sororum.”

But the habits, sentiments, and objects of both soon became modified by local causes, growing out of their condition in the New World; and as this condition was essentially alike in both, and as both at once adopted the same general rules and principles of English jurisprudence, and became accustomed to the authority of representative bodies, these differences gradually diminished. They disappeared by the progress of time, and the influence of intercourse. The necessity of some degree of union and coöperation to defend themselves against the savage tribes, tended to excite in them mutual respect and regard. They fought together in the wars against France. The great and common cause of the Revolution bound them to one another by new links of brotherhood; and at length the present constitution

of government united them happily and gloriously, to form the great republic of the world, and bound up their interests and fortunes, till the whole earth sees that there is now for them, in present possession as well as in future hope, but “One Country, One Constitution, and One Destiny.”

The colonization of the tropical region, and the whole of the southern parts of the continent, by Spain and Portugal, was conducted on other principles, under the influence of other motives, and followed by far different consequences. From the time of its discovery, the Spanish government pushed forward its settlements in America, not only with vigor, but with eagerness; so that long before the first permanent English settlement had been accomplished in what is now the United States, Spain had conquered Mexico, Peru, and Chili, and stretched her power over nearly all the territory she ever acquired on this continent. The rapidity of these conquests is to be ascribed in a great degree to the eagerness, not to say the rapacity, of those numerous bands of adventurers, who were stimulated by individual interests and private hopes to subdue immense regions, and take possession of them in the name of the crown of Spain. The mines of gold and silver were the incitements to these efforts, and accordingly settlements were generally made, and Spanish authority established immediately on the subjugation of territory, that the native population might be set to work by their new Spanish masters in the mines. From these facts, the love of gold—gold, not produced by industry, nor accumulated by commerce, but gold dug from its native bed in the bowels of the earth, and that earth ravished from its rightful possessors by every possible degree of enormity, cruelty, and crime—was long the governing passion in Spanish wars and Spanish settlements in America. Even Columbus himself did not wholly escape the influence of this base motive. In his early voyages we find him passing from island to island, inquiring everywhere for gold; as if God had opened the New World to the knowledge of the Old, only to gratify a passion equally senseless and sordid, and to offer up millions of an unoffending race of men to the destruction of the sword, sharpened both by cruelty and rapacity. And yet Columbus was far above his age and country. Enthusiastic, indeed, but sober, religious, and magnanimous; born to great things and capable of high sentiments, as his noble discourse before Ferdinand and Isabella, as well as the whole history of his life, shows. Probably he sacrificed much to the known sentiments of others, and addressed to his followers motives likely to influence them. At the same

time, it is evident that he himself looked upon the world which he discovered as a world of wealth, all ready to be seized and enjoyed.

The conquerors and the European settlers of Spanish America were mainly military commanders and common soldiers. The monarchy of Spain was not transferred to this hemisphere, but it acted in it, as it acted at home, through its ordinary means, and its true representative, military force. The robbery and destruction of the native race was the achievement of standing armies, in the right of the king, and by his authority, fighting in his name, for the aggrandizement of his power and the extension of his prerogatives, with military ideas under arbitrary maxims,—a portion of that dreadful instrumentality by which a perfect despotism governs a people. As there was no liberty in Spain, how could liberty be transmitted to Spanish colonies?

The colonists of English America were of the people, and a people already free. They were of the middle, industrious, and already prosperous class, the inhabitants of commercial and manufacturing cities, among whom liberty first revived and respired, after a sleep of a thousand years in the bosom of the Dark Ages. Spain descended on the New World in the armed and terrible image of her monarchy and her soldiery; England approached it in the winning and popular garb of personal rights, public protection, and civil freedom. England transplanted liberty to America; Spain transplanted power. England, through the agency of private companies and the efforts of individuals, colonized this part of North America by industrious individuals, making their own way in the wilderness, defending themselves against the savages, recognizing their right to the soil, and with a general honest purpose of introducing knowledge as well as Christianity among them. Spain stooped on South America, like a vulture on its prey. Every thing was force. Territories were acquired by fire and sword. Cities were destroyed by fire and sword. Hundreds of thousands of human beings fell by fire and sword. Even conversion to Christianity was attempted by fire and sword.

Behold, then, fellow-citizens, the difference resulting from the operation of the two principles! Here, to-day, on the summit of Bunker Hill, and at the foot of this monument, behold the difference! I would that the fifty thousand voices present could proclaim it with a shout which should be heard over the globe. Our inheritance was of liberty, secured and regulated by law, and enlightened by religion and knowledge; that of South America

was of power, stern, unrelenting, tyrannical, military power. And now look to the consequences of the two principles on the general and aggregate happiness of the human race. Behold the results, in all the regions conquered by Cortéz and Pizarro, and the contrasted results here. I suppose the territory of the United States may amount to one eighth, or one tenth, of that colonized by Spain on this continent; and yet in all that vast region there are but between one and two millions of people of European color and European blood, while in the United States there are fourteen millions who rejoice in their descent from the people of the more northern part of Europe.

But we may follow the difference in the original principle of colonization, and in its character and objects, still further. We must look to moral and intellectual results; we must consider consequences, not only as they show themselves in hastening or retarding the increase of population and the supply of physical wants, but in their civilization, improvement, and happiness. We must inquire what progress has been made in the true science of liberty, in the knowledge of the great principles of self-government, and in the progress of man, as a social, moral, and religious being.

I would not willingly say any thing on this occasion discourteous to the new governments founded on the demolition of the power of the Spanish monarchy. They are yet on their trial, and I hope for a favorable result. But truth, sacred truth, and fidelity to the cause of civil liberty, compel me to say, that hitherto they have discovered quite too much of the spirit of that monarchy from which they separated themselves. Quite too frequent resort is made to military force; and quite too much of the substance of the people is consumed in maintaining armies, not for defence against foreign aggression, but for enforcing obedience to domestic authority. Standing armies are the oppressive instruments for governing the people, in the hands of hereditary and arbitrary monarchs. A military republic, a government founded on mock elections, and supported only by the sword, is a movement indeed, but a retrograde and disastrous movement, from the regular and old-fashioned monarchical systems. If men would enjoy the blessings of republican government, they must govern themselves by reason, by mutual counsel and consultation, by a sense and feeling of general interest, and by the acquiescence of the minority in the will of the majority, properly expressed; and, above all, the military must be kept, according to the language of our Bill of Rights, in strict subordination to the

civil authority. Wherever this lesson is not both learned and practised, there can be no political freedom. Absurd, preposterous is it, a scoff and a satire on free forms of constitutional liberty, for frames of government to be prescribed by military leaders, and the right of suffrage to be exercised at the point of the sword.

Making all allowance for situation and climate, it cannot be doubted by intelligent minds, that the difference now existing between North and South America is justly attributable, in a great degree, to political institutions in the Old World and in the New. And how broad that difference is! Suppose an assembly, in one of the valleys or on the side of one of the mountains of the southern half of the hemisphere, to be held, this day, in the neighborhood of a large city;—what would be the scene presented? Yonder is a volcano, flaming and smoking, but shedding no light, moral or intellectual. At its foot is the mine, sometimes yielding, perhaps, large gains to capital, but in which labor is destined to eternal and unrequited toil, and followed only by penury and beggary. The city is filled with armed men; not a free people, armed and coming forth voluntarily to rejoice in a public festivity, but hireling troops, supported by forced loans, excessive impositions on commerce, or taxes wrung from a half-fed and a half-clothed population. For the great there are palaces covered with gold; for the poor there are hovels of the meanest sort. There is an ecclesiastical hierarchy, enjoying the wealth of princes; but there are no means of education for the people. Do public improvements favor intercourse between place and place? So far from this, the traveller cannot pass from town to town, without danger, every mile, of robbery and assassination. I would not overcharge or exaggerate this picture; but its principal features are all too truly sketched.

And how does it contrast with the scene now actually before us? Look round upon these fields; they are verdant and beautiful, well cultivated, and at this moment loaded with the riches of the early harvest. The hands which till them are those of the free owners of the soil, enjoying equal rights, and protected by law from oppression and tyranny. Look to the thousand vessels in our sight, filling the harbor, or covering the neighboring sea. They are the vehicles of a profitable commerce, carried on by men who know that the profits of their hardy enterprise, when they make them, are their own; and this commerce is encouraged and regulated by wise laws, and defended,

when need be, by the valor and patriotism of the country. Look to that fair city, the abode of so much diffused wealth, so much general happiness and comfort, so much personal independence, and so much general knowledge, and not undistinguished, I may be permitted to add, for hospitality and social refinement. She fears no forced contributions, no siege or sacking from military leaders of rival factions. The hundred temples in which her citizens worship God are in no danger of sacrilege. The regular administration of the laws encounters no obstacle. The long processions of children and youth, which you see this day, issuing by thousands from her free schools, prove the care and anxiety with which a popular government provides for the education and morals of the people. Everywhere there is order; everywhere there is security. Everywhere the law reaches to the highest and reaches to the lowest, to protect all in their rights, and to restrain all from wrong; and over all hovers liberty; that liberty for which our fathers fought and fell on this very spot, with her eye ever watchful, and her eagle wing ever wide outspread.

The colonies of Spain, from their origin to their end, were subject to the sovereign authority of the mother country. Their government, as well as their commerce, was a strict home monopoly. If we add to this the established usage of filling important posts in the administration of the colonies exclusively by natives of Old Spain, thus cutting off for ever all hopes of honorable preferment from every man born in the Western hemisphere, causes enough rise up before us at once to account fully for the subsequent history and character of these provinces. The viceroys and provincial governors of Spain were never at home in their governments in America. They did not feel that they were of the people whom they governed. Their official character and employment have a good deal of resemblance to those of the proconsuls of Rome, in Asia, Sicily, and Gaul; but obviously no resemblance to those of Carver and Winthrop, and very little to those of the governors of Virginia after that Colony had established a popular House of Burgesses.

The English colonists in America, generally speaking, were men who were seeking new homes in a new world. They brought with them their families and all that was most dear to them. This was especially the case with the colonists of Plymouth and Massachusetts. Many of them were educated men, and all possessed their full share, according to their social condition,

of the knowledge and attainments of that age. The distinctive characteristic of their settlement is the introduction of the civilization of Europe into a wilderness, without bringing with it the political institutions of Europe. The arts, sciences, and literature of England came over with the settlers. That great portion of the common law which regulates the social and personal relations and conduct of men, came also. The jury came; the *habeas corpus* came; the testamentary power came; and the law of inheritance and descent came also, except that part of it which recognizes the rights of primogeniture, which either did not come at all, or soon gave way to the rule of equal partition of estates among children. But the monarchy did not come, nor the aristocracy, nor the church, as an estate of the realm. Political institutions were to be framed anew, such as should be adapted to the state of things. But it could not be doubtful what should be the nature and character of these institutions. A general social equality prevailed among the settlers, and an equality of political rights seemed the natural, if not the necessary consequence. After forty years of revolution, violence, and war, the people of France have placed at the head of the fundamental instrument of their government, as the great boon obtained by all their sufferings and sacrifices, the declaration that all Frenchmen are equal before the law. What France has reached only by the expenditure of so much blood and treasure, and the perpetration of so much crime, the English colonists obtained by simply changing their place, carrying with them the intellectual and moral culture of Europe, and the personal and social relations to which they were accustomed, but leaving behind their political institutions. It has been said with much vivacity, that the felicity of the American colonists consisted in their escape from the past. This is true so far as respects political establishments, but no further. They brought with them a full portion of all the riches of the past, in science, in art, in morals, religion, and literature. The Bible came with them. And it is not to be doubted, that to the free and universal reading of the Bible, in that age, men were much indebted for right views of civil liberty. The Bible is a book of faith, and a book of doctrine, and a book of morals, and a book of religion, of especial revelation from God; but it is also a book which teaches man his own individual responsibility, his own dignity, and his equality with his fellow-man.

Bacon and Locke, and Shakspeare and Milton, also came with the colonists. It was the object of the first settlers to form new political systems, but all

that belonged to cultivated man, to family, to neighborhood, to social relations, accompanied them. In the Doric phrase of one of our own historians, “they came to settle on bare creation”; but their settlement in the wilderness, nevertheless, was not a lodgement of nomadic tribes, a mere resting-place of roaming savages. It was the beginning of a permanent community, the fixed residence of cultivated men. Not only was English literature read, but English, good English, was spoken and written, before the axe had made way to let in the sun upon the habitations and fields of Plymouth and Massachusetts. And whatever may be said to the contrary, a correct use of the English language is, at this day, more general throughout the United States, than it is throughout England herself.

But another grand characteristic is, that, in the English colonies, political affairs were left to be managed by the colonists themselves. This is another fact wholly distinguishing them in character, as it has distinguished them in fortune, from the colonists of Spain. Here lies the foundation of that experience in self-government, which has preserved order, and security, and regularity, amidst the play of popular institutions. Home government was the secret of the prosperity of the North American settlements. The more distinguished of the New England colonists, with a most remarkable sagacity and a long-sighted reach into futurity, refused to come to America unless they could bring with them charters providing for the administration of their affairs in this country.^[66] They saw from the first the evils of being governed in the New World by a power fixed in the Old. Acknowledging the general superiority of the crown, they still insisted on the right of passing local laws, and of local administration. And history teaches us the justice and the value of this determination in the example of Virginia. The early attempts to settle that Colony failed, sometimes with the most melancholy and fatal consequences, from want of knowledge, care, and attention on the part of those who had the charge of their affairs in England; and it was only after the issuing of the third charter, that its prosperity fairly commenced. The cause was, that by that third charter the people of Virginia, for by this time they deserve to be so called, were allowed to constitute and establish the first popular representative assembly which ever convened on this continent, the Virginia House of Burgesses.

The great elements, then, of the American system of government, originally introduced by the colonists, and which were early in operation, and ready to

be developed, more and more, as the progress of events should justify or demand, were,—

Escape from the existing political systems of Europe, including its religious hierarchies, but the continued possession and enjoyment of its science and arts, its literature, and its manners;

Home government, or the power of making in the colony the municipal laws which were to govern it;

Equality of rights;

Representative assemblies, or forms of government founded on popular elections.

Few topics are more inviting, or more fit for philosophical discussion, than the effect on the happiness of mankind of institutions founded upon these principles; or, in other words, the influence of the New World upon the Old.

Her obligations to Europe for science and art, laws, literature, and manners, America acknowledges as she ought, with respect and gratitude. The people of the United States, descendants of the English stock, grateful for the treasures of knowledge derived from their English ancestors, admit also, with thanks and filial regard, that among those ancestors, under the culture of Hampden and Sydney and other assiduous friends, that seed of popular liberty first germinated, which on our soil has shot up to its full height, until its branches overshadow all the land.

But America has not failed to make returns. If she has not wholly cancelled the obligation, or equalled it by others of like weight, she has, at least, made respectable advances towards repaying the debt. And she admits, that, standing in the midst of civilized nations, and in a civilized age, a nation among nations, there is a high part which she is expected to act, for the general advancement of human interests and human welfare.

American mines have filled the mints of Europe with the precious metals. The productions of the American soil and climate have poured out their abundance of luxuries for the tables of the rich, and of necessities for the sustenance of the poor. Birds and animals of beauty and value have been added to the European stocks; and transplantations from the unequalled

riches of our forests have mingled themselves profusely with the elms, and ashes, and Druidical oaks of England.

America has made contributions to Europe far more important. Who can estimate the amount, or the value, of the augmentation of the commerce of the world that has resulted from America? Who can imagine to himself what would now be the shock to the Eastern Continent, if the Atlantic were no longer traversable, or if there were no longer American productions, or American markets?

But America exercises influences, or holds out examples, for the consideration of the Old World, of a much higher, because they are of a moral and political character.

America has furnished to Europe proof of the fact, that popular institutions, founded on equality and the principle of representation, are capable of maintaining governments, able to secure the rights of person, property, and reputation.

America has proved that it is practicable to elevate the mass of mankind,—that portion which in Europe is called the laboring, or lower class,—to raise them to self-respect, to make them competent to act a part in the great right and great duty of self-government; and she has proved that this may be done by education and the diffusion of knowledge. She holds out an example, a thousand times more encouraging than ever was presented before, to those nine tenths of the human race who are born without hereditary fortune or hereditary rank.

America has furnished to the world the character of Washington! And if our American institutions had done nothing else, that alone would have entitled them to the respect of mankind.

Washington! “First in war, first in peace, and first in the hearts of his countrymen!” Washington is all our own! The enthusiastic veneration and regard in which the people of the United States hold him prove them to be worthy of such a countryman; while his reputation abroad reflects the highest honor on his country. I would cheerfully put the question to-day to the intelligence of Europe and the world, what character of the century, upon the whole, stands out in the relief of history, most pure, most

respectable, most sublime; and I doubt not, that, by a suffrage approaching to unanimity, the answer would be Washington!

The structure now standing before us, by its uprightness, its solidity, its durability, is no unfit emblem of his character. His public virtues and public principles were as firm as the earth on which it stands; his personal motives, as pure as the serene heaven in which its summit is lost. But, indeed, though a fit, it is an inadequate emblem. Towering high above the column which our hands have builded, beheld, not by the inhabitants of a single city or a single State, but by all the families of man, ascends the colossal grandeur of the character and life of Washington. In all the constituents of the one, in all the acts of the other, in all its titles to immortal love, admiration, and renown, it is an American production. It is the embodiment and vindication of our Transatlantic liberty. Born upon our soil, of parents also born upon it; never for a moment having had sight of the Old World; instructed, according to the modes of his time, only in the spare, plain, but wholesome elementary knowledge which our institutions provide for the children of the people; growing up beneath and penetrated by the genuine influences of American society; living from infancy to manhood and age amidst our expanding, but not luxurious civilization; partaking in our great destiny of labor, our long contest with unreclaimed nature and uncivilized man, our agony of glory, the war of Independence, our great victory of peace, the formation of the Union, and the establishment of the Constitution; he is all, all our own! Washington is ours. That crowded and glorious life,

“Where multitudes of virtues passed along,
Each pressing foremost, in the mighty throng
Ambitious to be seen, then making room
For greater multitudes that were to come,”—

that life was the life of an American citizen.

I claim him for America. In all the perils, in every darkened moment of the state, in the midst of the reproaches of enemies and the misgiving of friends, I turn to that transcendent name for courage and for consolation. To him who denies or doubts whether our fervid liberty can be combined with law, with order, with the security of property, with the pursuits and advancement of happiness; to him who denies that our forms of government are capable of producing exaltation of soul, and the passion of true glory; to him who denies that we have contributed any thing to the stock of great lessons and great examples;—to all these I reply by pointing to Washington!

And now, friends and fellow-citizens, it is time to bring this discourse to a close.

We have indulged in gratifying recollections of the past, in the prosperity and pleasures of the present, and in high hopes for the future. But let us remember that we have duties and obligations to perform, corresponding to the blessings which we enjoy. Let us remember the trust, the sacred trust, attaching to the rich inheritance which we have received from our fathers. Let us feel our personal responsibility, to the full extent of our power and influence, for the preservation of the principles of civil and religious liberty. And let us remember that it is only religion, and morals, and knowledge, that can make men respectable and happy, under any form of government. Let us hold fast the great truth, that communities are responsible, as well as individuals; that no government is respectable, which is not just; that without unspotted purity of public faith, without sacred public principle, fidelity, and honor, no mere forms of government, no machinery of laws, can give dignity to political society. In our day and generation let us seek to raise and improve the moral sentiment, so that we may look, not for a degraded, but for an elevated and improved future. And when both we and our children shall have been consigned to the house appointed for all living,

may love of country and pride of country glow with equal fervor among those to whom our names and our blood shall have descended! And then, when honored and decrepit age shall lean against the base of this monument, and troops of ingenuous youth shall be gathered round it, and when the one shall speak to the other of its objects, the purposes of its construction, and the great and glorious events with which it is connected, there shall rise from every youthful breast the ejaculation, “Thank God, I—I also—AM AN AMERICAN!”

FOOTNOTES

[\[61\]](#)

An Address delivered on Bunker Hill, on the 17th of June, 1843.

[\[62\]](#)

William Tudor died at Rio de Janeiro, as Chargé d’Affaires of the United States, in 1830.

[\[63\]](#)

William Sullivan died in Boston in 1839, George Blake in 1841, both gentlemen of great political and legal eminence.

[\[64\]](#)

William Prescott (since deceased, in 1844), son of Colonel William Prescott, who commanded on the 17th of June, 1775, and father of William H. Prescott, the historian.

[\[65\]](#)

See the [Note](#) at the end of the Address.

[\[66\]](#)

See the “Records of the Company of the Massachusetts Bay in New England,” as published in the third volume of the Transactions of the American Antiquarian Society, pp. 47-50.

NOTE.

[Page 87.](#)

The following description of the Bunker Hill Monument and Square is from Mr. Frothingham's History of the Siege of Boston, pp. 355, 356.

"Monument Square is four hundred and seventeen feet from north to south, and four hundred feet from east to west, and contains nearly six acres. It embraces the whole site of the redoubt, and a part of the site of the breastwork. According to the most accurate plan of the town and the battle (Page's), the monument stands where the southwest angle of the redoubt was, and the whole of the redoubt was between the monument and the street that bounds it on the west. The small mound in the northeast corner of the square is supposed to be the remains of the breastwork. Warren fell about two hundred feet west of the monument. An iron fence incloses the square, and another surrounds the monument. The square has entrances on each of its sides, and at each of its corners, and is surrounded by a walk and rows of trees.

"The obelisk is thirty feet in diameter at the base, about fifteen feet at the top of the truncated part, and was designed to be two hundred and twenty feet high; but the mortar and the seams between the stones make the precise height two hundred and twenty-one feet. Within the shaft is a hollow cone, with a spiral stairway winding round it to its summit, which enters a circular chamber at the top. There are ninety courses of stone in the shaft,—six of them below the ground, and eighty-four above the ground. The capstone, or apex, is a single stone, four feet square at the base, and three feet six inches in height, weighing two and a half tons."

ADAMS AND JEFFERSON.

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INTRODUCTORY NOTE.

Since the decease of General Washington, on the 14th of December, 1799, the public mind has never been so powerfully affected in this part of the country by any similar event, as by the death of John Adams, on the 4th of July, 1826. The news reached Boston in the evening of that day. The decease of this venerable fellow-citizen must at all times have appealed with much force to the patriotic sympathies of the people of Massachusetts. It acquired a singular interest from the year and the day on which it took place;—the 4th of July of the year completing the half century from that ever memorable era in the history of this country and the world, the Declaration of Independence; a measure in which Mr. Adams himself had taken so distinguished a part. The emotions of the public were greatly increased by the indications given by Mr. Adams in his last hours, that he was fully aware that the day was the anniversary of Independence, and by his dying allusion to the supposed fact that his colleague, Jefferson, survived him. When, in the course of a few days, the news arrived from Virginia, that he also had departed this life, on the same day and a few hours before Mr. Adams, the sensibility of the community, as of the country at large, was touched beyond all example. The occurrence was justly deemed without a parallel in history. The various circumstances of association and coincidence which marked the characters and careers of these great men, and especially those of their simultaneous decease on the 4th of July, were dwelt upon with melancholy but untiring interest. The circles of private life, the press, public bodies, and the pulpit, were for some time almost engrossed with the topic; and solemn rites of commemoration were performed throughout the country.

An early day was appointed for this purpose by the City Council of Boston. The whole community manifested its sympathy in the extraordinary event; and on the 2d of August, 1826, at the request of the municipal authorities, and in the presence of an immense audience, the following Discourse was delivered in Faneuil Hall.

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ADAMS AND JEFFERSON.[\[67\]](#)

This is an unaccustomed spectacle. For the first time, fellow-citizens, badges of mourning shroud the columns and overhang the arches of this hall. These walls, which were consecrated, so long ago, to the cause of American liberty, which witnessed her infant struggles, and rung with the shouts of her earliest victories, proclaim, now, that distinguished friends and champions of that great cause have fallen. It is right that it should be thus. The tears which flow, and the honors that are paid, when the founders of the republic die, give hope that the republic itself may be immortal. It is fit that, by public assembly and solemn observance, by anthem and by eulogy, we commemorate the services of national benefactors, extol their virtues, and render thanks to God for eminent blessings, early given and long continued, through their agency, to our favored country.

ADAMS and JEFFERSON are no more; and we are assembled, fellow-citizens, the aged, the middle-aged, and the young, by the spontaneous impulse of all, under the authority of the municipal government, with the presence of the chief magistrate of the Commonwealth, and others its official representatives, the University, and the learned societies, to bear our part in those manifestations of respect and gratitude which pervade the whole land. ADAMS and JEFFERSON are no more. On our fiftieth anniversary, the great day of national jubilee, in the very hour of public rejoicing, in the midst of echoing and reëchoing voices of thanksgiving, while their own names were on all tongues, they took their flight together to the world of spirits.

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If it be true that no one can safely be pronounced happy while he lives, if that event which terminates life can alone crown its honors and its glory, what felicity is here! The great epic of their lives, how happily concluded! Poetry itself has hardly terminated illustrious lives, and finished the career of earthly renown, by such a consummation. If we had the power, we could not wish to reverse this dispensation of the Divine Providence. The great objects of life were accomplished, the drama was ready to be closed. It has closed; our patriots have fallen; but so fallen, at such age, with such coincidence, on such a day, that we cannot rationally lament that that end has come, which we knew could not be long deferred.

Neither of these great men, fellow-citizens, could have died, at any time, without leaving an immense void in our American society. They have been so intimately, and for so long a time, blended with the history of the country, and especially so united, in our thoughts and recollections, with the events of the Revolution, that the death of either would have touched the chords of public sympathy. We should have felt that one great link, connecting us with former times, was broken; that we had lost something more, as it were, of the presence of the Revolution itself, and of the act of independence, and were driven on, by another great remove from the days of our country's early distinction, to meet posterity, and to mix with the future. Like the mariner, whom the currents of the ocean and the winds carry along, till he sees the stars which have directed his course and lighted his pathless way descend, one by one, beneath the rising horizon, we should have felt that the stream of time had borne us onward till another great luminary, whose light had cheered us and whose guidance we had followed, had sunk away from our sight.

But the concurrence of their death on the anniversary of Independence has naturally awakened stronger emotions. Both had been Presidents, both had lived to great age, both were early patriots, and both were distinguished and ever honored by their immediate agency in the act of independence. It cannot but seem striking and extraordinary, that these two should live to see the fiftieth year from the date of that act; that they should complete that year; and that then, on the day which had fast linked for ever their own fame with their country's glory, the heavens should open to receive them both at once. As their lives themselves were the gifts of Providence, who is not willing to recognize in their happy termination, as well as in their long

continuance, proofs that our country and its benefactors are objects of His care?

ADAMS and JEFFERSON, I have said, are no more. As human beings, indeed, they are no more. They are no more, as in 1776, bold and fearless advocates of independence; no more, as at subsequent periods, the head of the government; no more, as we have recently seen them, aged and venerable objects of admiration and regard. They are no more. They are dead. But how little is there of the great and good which can die! To their country they yet live, and live for ever. They live in all that perpetuates the remembrance of men on earth; in the recorded proofs of their own great actions, in the offspring of their intellect, in the deep-engraved lines of public gratitude, and in the respect and homage of mankind. They live in their example; and they live, emphatically, and will live, in the influence which their lives and efforts, their principles and opinions, now exercise, and will continue to exercise, on the affairs of men, not only in their own country, but throughout the civilized world. A superior and commanding human intellect, a truly great man, when Heaven vouchsafes so rare a gift, is not a temporary flame, burning brightly for a while, and then giving place to returning darkness. It is rather a spark of fervent heat, as well as radiant light, with power to enkindle the common mass of human mind; so that when it glimmers in its own decay, and finally goes out in death, no night follows, but it leaves the world all light, all on fire, from the potent contact of its own spirit. Bacon died; but the human understanding, roused by the touch of his miraculous wand to a perception of the true philosophy and the just mode of inquiring after truth, has kept on its course successfully and gloriously. Newton died; yet the courses of the spheres are still known, and they yet move on by the laws which he discovered, and in the orbits which he saw, and described for them, in the infinity of space.

No two men now live, fellow-citizens, perhaps it may be doubted whether any two men have ever lived in one age, who, more than those we now commemorate, have impressed on mankind their own sentiments in regard to politics and government, infused their own opinions more deeply into the opinions of others, or given a more lasting direction to the current of human thought. Their work doth not perish with them. The tree which they assisted to plant will flourish, although they water it and protect it no longer; for it has struck its roots deep, it has sent them to the very centre; no storm, not of

force to burst the orb, can overturn it; its branches spread wide; they stretch their protecting arms broader and broader, and its top is destined to reach the heavens. We are not deceived. There is no delusion here. No age will come in which the American Revolution will appear less than it is, one of the greatest events in human history. No age will come in which it shall cease to be seen and felt, on either continent, that a mighty step, a great advance, not only in American affairs, but in human affairs, was made on the 4th of July, 1776. And no age will come, we trust, so ignorant or so unjust as not to see and acknowledge the efficient agency of those we now honor in producing that momentous event.

We are not assembled, therefore, fellow-citizens, as men overwhelmed with calamity by the sudden disruption of the ties of friendship or affection, or as in despair for the republic by the untimely blighting of its hopes. Death has not surprised us by an unseasonable blow. We have, indeed, seen the tomb close, but it has closed only over mature years, over long-protracted public service, over the weakness of age, and over life itself only when the ends of living had been fulfilled. These suns, as they rose slowly and steadily, amidst clouds and storms, in their ascendant, so they have not rushed from their meridian to sink suddenly in the west. Like the mildness, the serenity, the continuing benignity of a summer's day, they have gone down with slow-descending, grateful, long-lingering light; and now that they are beyond the visible margin of the world, good omens cheer us from "the bright track of their fiery car"!

There were many points of similarity in the lives and fortunes of these great men. They belonged to the same profession, and had pursued its studies and its practice, for unequal lengths of time indeed, but with diligence and effect. Both were learned and able lawyers. They were natives and inhabitants, respectively, of those two of the Colonies which at the Revolution were the largest and most powerful, and which naturally had a lead in the political affairs of the times. When the Colonies became in some degree united, by the assembling of a general Congress, they were brought to act together in its deliberations, not indeed at the same time, but both at early periods. Each had already manifested his attachment to the cause of the country, as well as his ability to maintain it, by printed addresses, public speeches, extensive correspondence, and whatever other mode could be adopted for the purpose of exposing the encroachments of the British

Parliament, and animating the people to a manly resistance. Both were not only decided, but early, friends of Independence. While others yet doubted, they were resolved; where others hesitated, they pressed forward. They were both members of the committee for preparing the Declaration of Independence, and they constituted the sub-committee appointed by the other members to make the draft. They left their seats in Congress, being called to other public employments, at periods not remote from each other, although one of them returned to it afterwards for a short time. Neither of them was of the assembly of great men which formed the present Constitution, and neither was at any time a member of Congress under its provisions. Both have been public ministers abroad, both Vice-Presidents and both Presidents of the United States. These coincidences are now singularly crowned and completed. They have died together; and they died on the anniversary of liberty.

When many of us were last in this place, fellow-citizens, it was on the day of that anniversary. We were met to enjoy the festivities belonging to the occasion, and to manifest our grateful homage to our political fathers. We did not, we could not here, forget our venerable neighbor of Quincy. We knew that we were standing, at a time of high and palmy prosperity, where he had stood in the hour of utmost peril; that we saw nothing but liberty and security, where he had met the frown of power; that we were enjoying every thing, where he had hazarded every thing; and just and sincere plaudits rose to his name, from the crowds which filled this area, and hung over these galleries. He whose grateful duty it was to speak to us,^[68] on that day, of the virtues of our fathers, had, indeed, admonished us that time and years were about to level his venerable frame with the dust. But he bade us hope that “the sound of a nation’s joy, rushing from our cities, ringing from our valleys, echoing from our hills, might yet break the silence of his aged ear; that the rising blessings of grateful millions might yet visit with glad light his decaying vision.” Alas! that vision was then closing for ever. Alas! the silence which was then settling on that aged ear was an everlasting silence! For, lo! in the very moment of our festivities, his freed spirit ascended to God who gave it! Human aid and human solace terminate at the grave; or we would gladly have borne him upward, on a nation’s outspread hands; we would have accompanied him, and with the blessings of millions and the prayers of millions, commended him to the Divine favor.

While still indulging our thoughts, on the coincidence of the death of this venerable man with the anniversary of Independence, we learn that Jefferson, too, has fallen; and that these aged patriots, these illustrious fellow-laborers, have left our world together. May not such events raise the suggestion that they are not undesigned, and that Heaven does so order things, as sometimes to attract strongly the attention and excite the thoughts of men? The occurrence has added new interest to our anniversary, and will be remembered in all time to come.

The occasion, fellow-citizens, requires some account of the lives and services of JOHN ADAMS and THOMAS JEFFERSON. This duty must necessarily be performed with great brevity, and in the discharge of it I shall be obliged to confine myself, principally, to those parts of their history and character which belonged to them as public men.

JOHN ADAMS was born at Quincy, then part of the ancient town of Braintree, on the 19th day of October (old style), 1735. He was a descendant of the Puritans, his ancestors having early emigrated from England, and settled in Massachusetts. Discovering in childhood a strong love of reading and of knowledge, together with marks of great strength and activity of mind, proper care was taken by his worthy father to provide for his education. He pursued his youthful studies in Braintree, under Mr. Marsh, a teacher whose fortune it was that Josiah Quincy, Jr., as well as the subject of these remarks, should receive from him his instruction in the rudiments of classical literature. Having been admitted, in 1751, a member of Harvard College, Mr. Adams was graduated, in course, in 1755; and on the catalogue of that institution, his name, at the time of his death, was second among the living Alumni, being preceded only by that of the venerable Holyoke. With what degree of reputation he left the University is not now precisely known. We know only that he was distinguished in a class which numbered Locke and Hemmenway among its members. Choosing the law for his profession, he commenced and prosecuted its studies at Worcester, under the direction of Samuel Putnam, a gentleman whom he has himself described as an acute man, an able and learned lawyer, and as being in large professional practice at that time. In 1758 he was admitted to the bar, and entered upon the practice of the law in Braintree. He is understood to have made his first considerable effort, or to have attained his first signal success, at Plymouth, on one of those occasions which furnish the earliest opportunity for

distinction to many young men of the profession, a jury trial, and a criminal cause. His business naturally grew with his reputation, and his residence in the vicinity afforded the opportunity, as his growing eminence gave the power, of entering on a larger field of practice in the capital. In 1766 he removed his residence to Boston, still continuing his attendance on the neighboring circuits, and not unfrequently called to remote parts of the Province. In 1770 his professional firmness was brought to a test of some severity, on the application of the British officers and soldiers to undertake their defence, on the trial of the indictments found against them on account of the transactions of the memorable 5th of March. He seems to have thought, on this occasion, that a man can no more abandon the proper duties of his profession, than he can abandon other duties. The event proved, that, as he judged well for his own reputation, so, too, he judged well for the interest and permanent fame of his country. The result of that trial proved, that, notwithstanding the high degree of excitement then existing in consequence of the measures of the British government, a jury of Massachusetts would not deprive the most reckless enemies, even the officers of that standing army quartered among them, which they so perfectly abhorred, of any part of that protection which the law, in its mildest and most indulgent interpretation, affords to persons accused of crimes.

Without following Mr. Adams's professional course further suffice it to say, that on the first establishment of the judicial tribunals under the authority of the State, in 1776, he received an offer of the high and responsible station of Chief Justice of the Supreme Court of Massachusetts. But he was destined for another and a different career. From early life the bent of his mind was toward politics; a propensity which the state of the times, if it did not create, doubtless very much strengthened. Public subjects must have occupied the thoughts and filled up the conversation in the circles in which he then moved; and the interesting questions at that time just arising could not but seize on a mind like his, ardent, sanguine, and patriotic. A letter, fortunately preserved, written by him at Worcester, so early as the 12th of October, 1755, is a proof of very comprehensive views, and uncommon depth of reflection, in a young man not yet quite twenty. In this letter he predicted the transfer of power, and the establishment of a new seat of empire in America; he predicted, also, the increase of population in the Colonies; and anticipated their naval distinction, and foretold that all Europe combined

could not subdue them. All this is said, not on a public occasion or for effect, but in the style of sober and friendly correspondence, as the result of his own thoughts. “I sometimes retire,” said he, at the close of the letter, “and, laying things together, form some reflections pleasing to myself. The produce of one of these reveries you have read above.”^[69] This prognostication so early in his own life, so early in the history of the country, of independence, of vast increase of numbers, of naval force,^[121] of such augmented power as might defy all Europe, is remarkable. It is more remarkable that its author should live to see fulfilled to the letter what could have seemed to others, at the time, but the extravagance of youthful fancy. His earliest political feelings were thus strongly American, and from this ardent attachment to his native soil he never departed.

While still living at Quincy, and at the age of twenty-four, Mr. Adams was present, in this town, at the argument before the Supreme Court respecting *Writs of Assistance*, and heard the celebrated and patriotic speech of JAMES OTIS. Unquestionably, that was a masterly performance. No flighty declamation about liberty, no superficial discussion of popular topics, it was a learned, penetrating, convincing, constitutional argument, expressed in a strain of high and resolute patriotism. He grasped the question then pending between England and her Colonies with the strength of a lion; and if he sometimes sported, it was only because the lion himself is sometimes playful. Its success appears to have been as great as its merits, and its impression was widely felt. Mr. Adams himself seems never to have lost the feeling it produced, and to have entertained constantly the fullest conviction of its important effects. “I do say,” he observes, “in the most solemn manner, that Mr. Otis’s Oration against Writs of Assistance breathed into this nation the breath of life.”^[70]

In 1765 Mr. Adams laid before the public, anonymously, a series of essays, afterwards collected in a volume in London, under the title of *A Dissertation on the Canon and Feudal Law*.^[71] The object of this work was to show that our New England ancestors, in consenting to exile themselves from their native land, were actuated mainly by the desire of delivering themselves from the power of the hierarchy, and from the monarchical and aristocratical systems of the other continent; and to make this truth bear with effect on the politics of the times. Its tone is uncommonly bold and animated for that period. He calls on the people, not only to defend, but to

study and understand, their rights and privileges; urges earnestly the necessity of diffusing general knowledge; invokes the clergy and the bar, the colleges and academies, and all others who have the ability and the means to expose the insidious designs of arbitrary power, to resist its approaches, and to be persuaded that there is a settled design on foot to enslave all America. “Be it remembered,” says the author, “that liberty must, at all hazards, be supported. We have a right to it, derived from our Maker. But if we had not, our fathers have earned and bought it for us, at the expense of their ease, their estates, their pleasure, and their blood. And liberty cannot be preserved without a general knowledge among the people, who have a right, from the frame of their nature, to knowledge, as their great Creator, who does nothing in vain, has given them understandings and a desire to know. But, besides this, they have a right, an indisputable, unalienable, indefeasible, divine right, to that most dreaded and envied kind of knowledge, I mean of the characters and conduct of their rulers. Rulers are no more than attorneys, agents, and trustees for the people; and if the cause, the interest and trust, is insidiously betrayed, or wantonly trifled away, the people have a right to revoke the authority that they themselves have deputed, and to constitute abler and better agents, attorneys, and trustees.”

The citizens of this town conferred on Mr. Adams his first political distinction, and clothed him with his first political trust, by electing him one of their representatives, in 1770. Before this time he had become extensively known throughout the Province, as well by the part he had acted in relation to public affairs, as by the exercise of his professional ability. He was among those who took the deepest interest in the controversy with England, and whether in or out of the legislature, his time and talents were alike devoted to the cause. In the years 1773 and 1774 he was chosen a Councillor by the members of the General Court, but rejected by Governor Hutchinson in the former of those years, and by Governor Gage in the latter.

The time was now at hand, however, when the affairs of the Colonies urgently demanded united counsels throughout the country. An open rupture with the parent state appeared inevitable, and it was but the dictate of prudence that those who were united by a common interest and a common danger should protect that interest and guard against that danger by united efforts. A general Congress of Delegates from all the Colonies having been

proposed and agreed to, the House of Representatives, on the 17th of June, 1774, elected James Bowdoin, Thomas Cushing, Samuel Adams, John Adams, and Robert Treat Paine, delegates from Massachusetts. This appointment was made at Salem, where the General Court had been convened by Governor Gage, in the last hour of the existence of a House of Representatives under the Provincial Charter. While engaged in this important business, the Governor, having been informed of what was passing, sent his secretary with a message dissolving the General Court. The secretary, finding the door locked, directed the messenger to go in and inform the Speaker that the secretary was at the door with a message from the Governor. The messenger returned, and informed the secretary that the orders of the House were that the doors should be kept fast; whereupon the secretary soon after read upon the stairs a proclamation dissolving the General Court. Thus terminated, for ever, the actual exercise of the political power of England in or over Massachusetts. The four last-named delegates accepted their appointments, and took their seats in Congress the first day of its meeting, the 5th of September, 1774, in Philadelphia.

The proceedings of the first Congress are well known, and have been universally admired. It is in vain that we would look for superior proofs of wisdom, talent, and patriotism. Lord Chatham said, that, for himself, he must declare that he had studied and admired the free states of antiquity, the master states of the world, but that for solidity of reasoning, force of sagacity, and wisdom of conclusion, no body of men could stand in preference to this Congress. It is hardly inferior praise to say, that no production of that great man himself can be pronounced superior to several of the papers published as the proceedings of this most able, most firm, most patriotic assembly. There is, indeed, nothing superior to them in the range of political disquisition. They not only embrace, illustrate, and enforce every thing which political philosophy, the love of liberty, and the spirit of free inquiry had antecedently produced, but they add new and striking views of their own, and apply the whole, with irresistible force, in support of the cause which had drawn them together.

Mr. Adams was a constant attendant on the deliberations of this body, and bore an active part in its important measures. He was of the committee to state the rights of the Colonies, and of that also which reported the Address to the King.

As it was in the Continental Congress, fellow-citizens, that those whose deaths have given rise to this occasion were first brought together, and called upon to unite their industry and their ability in the service of the country, let us now turn to the other of these distinguished men, and take a brief notice of his life up to the period when he appeared within the walls of Congress.

THOMAS JEFFERSON, descended from ancestors who had been settled in Virginia for some generations, was born near the spot on which he died, in the county of Albemarle, on the 2d of April (old style), 1743. His youthful studies were pursued in the neighborhood of his father's residence until he was removed to the College of William and Mary, the highest honors of which he in due time received. Having left the College with reputation, he applied himself to the study of the law under the tuition of George Wythe, one of the highest judicial names of which that State can boast. At an early age he was elected a member of the legislature, in which he had no sooner appeared than he distinguished himself by knowledge, capacity, and promptitude.

Mr. Jefferson appears to have been imbued with an early love of letters and science, and to have cherished a strong disposition to pursue these objects. To the physical sciences, especially, and to ancient classic literature, he is understood to have had a warm attachment, and never entirely to have lost sight of them in the midst of the busiest occupations. But the times were times for action, rather than for contemplation. The country was to be defended, and to be saved, before it could be enjoyed. Philosophic leisure and literary pursuits, and even the objects of professional attention, were all necessarily postponed to the urgent calls of the public service. The exigency of the country made the same demand on Mr. Jefferson that it made on others who had the ability and the disposition to serve it; and he obeyed the call; thinking and feeling in this respect with the great Roman orator: "*Quis enim est tam cupidus in perspicienda cognoscendaque rerum natura, ut, si ei tractanti contemplantique res cognitione dignissimas subito sit allatum periculum discrimenque patriæ, cui subvenire opitularique possit, non illa omnia relinquat atque abjiciat, etiam si dinumerare se stellas, aut metiri mundi magnitudinem posse arbitretur?*"^[72]

Entering with all his heart into the cause of liberty, his ability, patriotism, and power with the pen naturally drew upon him a large participation in the

most important concerns. Wherever he was, there was found a soul devoted to the cause, power to defend and maintain it, and willingness to incur all its hazards. In 1774 he published a Summary View of the Rights of British America, a valuable production among those intended to show the dangers which threatened the liberties of the country, and to encourage the people in their defence. In June, 1775, he was elected a member of the Continental Congress, as successor to Peyton Randolph, who had resigned his place on account of ill health, and took his seat in that body on the 21st of the same month.

And now, fellow-citizens, without pursuing the biography of these illustrious men further, for the present, let us turn our attention to the most prominent act of their lives, their participation in the DECLARATION OF INDEPENDENCE.

Preparatory to the introduction of that important measure, a committee, at the head of which was Mr. Adams, had reported a resolution, which Congress adopted on the 10th of May, recommending, in substance, to all the Colonies which had not already established governments suited to the exigencies of their affairs, *to adopt such government as would, in the opinion of the representatives of the people, best conduce to the happiness and safety of their constituents in particular, and America in general.*

This significant vote was soon followed by the direct proposition which Richard Henry Lee had the honor to submit to Congress, by resolution, on the 7th day of June. The published journal does not expressly state it, but there is no doubt, I suppose, that this resolution was in the same words, when originally submitted by Mr. Lee, as when finally passed. Having been discussed on Saturday, the 8th, and Monday, the 10th of June, this resolution was on the last mentioned day postponed for further consideration to the first day of July; and at the same time it was voted, that a committee be appointed to prepare a Declaration to the effect of the resolution. This committee was elected by ballot, on the following day, and consisted of Thomas Jefferson, John Adams, Benjamin Franklin, Roger Sherman, and Robert R. Livingston.

It is usual, when committees are elected by ballot, that their members should be arranged in order, according to the number of votes which each has received. Mr. Jefferson, therefore, had received the highest, and Mr.

Adams the next highest number of votes. The difference is said to have been but of a single vote. Mr. Jefferson and Mr. Adams, standing thus at the head of the committee, were requested by the other members to act as a sub-committee to prepare the draft; and Mr. Jefferson drew up the paper. The original draft, as brought by him from his study, and submitted to the other members of the committee, with interlineations in the handwriting of Dr. Franklin, and others in that of Mr. Adams, was in Mr. Jefferson's possession at the time of his death.^[73] The merit of this paper is Mr. Jefferson's. Some changes were made in it at the suggestion of other members of the committee, and others by Congress while it was under discussion. But none of them altered the tone, the frame, the arrangement, or the general character of the instrument. As a composition, the Declaration is Mr. Jefferson's. It is the production of his mind, and the high honor of it belongs to him, clearly and absolutely.

It has sometimes been said, as if it were a derogation from the merits of this paper, that it contains nothing new; that it only states grounds of proceeding, and presses topics of argument, which had often been stated and pressed before. But it was not the object of the Declaration to produce any thing new. It was not to invent reasons for independence, but to state those which governed the Congress. For great and sufficient causes, it was proposed to declare independence; and the proper business of the paper to be drawn was to set forth those causes, and justify the authors of the measure, in any event of fortune, to the country and to posterity. The cause of American independence, moreover, was now to be presented to the world in such manner, if it might so be, as to engage its sympathy, to command its respect, to attract its admiration; and in an assembly of most able and distinguished men, THOMAS JEFFERSON had the high honor of being the selected advocate of this cause. To say that he performed his great work well, would be doing him injustice. To say that he did excellently well, admirably well, would be inadequate and halting praise. Let us rather say, that he so discharged the duty assigned him, that all Americans may well rejoice that the work of drawing the title-deed of their liberties devolved upon him.

With all its merits, there are those who have thought that there was one thing in the Declaration to be regretted; and that is, the asperity and apparent anger with which it speaks of the person of the king; the

industrious ability with which it accumulates and charges upon him all the injuries which the Colonies had suffered from the mother country. Possibly some degree of injustice, now or hereafter, at home or abroad, may be done to the character of Mr. Jefferson, if this part of the Declaration be not placed in its proper light. Anger or resentment, certainly much less personal reproach and invective, could not properly find place in a composition of such high dignity, and of such lofty and permanent character.

A single reflection on the original ground of dispute between England and the Colonies is sufficient to remove any unfavorable impression in this respect.

The inhabitants of all the Colonies, while Colonies, admitted themselves bound by their allegiance to the king; but they disclaimed altogether the authority of Parliament; holding themselves, in this respect, to resemble the condition of Scotland and Ireland before the respective unions of those kingdoms with England, when they acknowledged allegiance to the same king, but had each its separate legislature. The tie, therefore, which our Revolution was to break did not subsist between us and the British Parliament, or between us and the British government in the aggregate, but directly between us and the king himself. The Colonies had never admitted themselves subject to Parliament. That was precisely the point of the original controversy. They had uniformly denied that Parliament had authority to make laws for them. There was, therefore, no subjection to Parliament to be thrown off.^[74] But allegiance to the king did exist, and had been uniformly acknowledged; and down to 1775 the most solemn assurances had been given that it was not intended to break that allegiance, or to throw it off. Therefore, as the direct object and only effect of the Declaration, according to the principles on which the controversy had been maintained on our part, were to sever the tie of allegiance which bound us to the king, it was properly and necessarily founded on acts of the crown itself, as its justifying causes. Parliament is not so much as mentioned in the whole instrument. When odious and oppressive acts are referred to, it is done by charging the king with confederating with others “in pretended acts of legislation”; the object being constantly to hold the king himself directly responsible for those measures which were the grounds of separation. Even the precedent of the English Revolution was not overlooked, and in this case, as well as in that, occasion was found to say that the king had

abdicated the government. Consistency with the principles upon which resistance began, and with all the previous state papers issued by Congress, required that the Declaration should be bottomed on the misgovernment of the king; and therefore it was properly framed with that aim and to that end. The king was known, indeed, to have acted, as in other cases, by his ministers, and with his Parliament; but as our ancestors had never admitted themselves subject either to ministers or to Parliament, there were no reasons to be given for now refusing obedience to their authority. This clear and obvious necessity of founding the Declaration on the misconduct of the king himself, gives to that instrument its personal application, and its character of direct and pointed accusation.

The Declaration having been reported to Congress by the committee, ¹⁷⁷⁶ the resolution itself was taken up and debated on the first day of July, and again on the second, on which last day it was agreed to and adopted, in these words:—

“Resolved, That these united Colonies are, and of right ought to be, free and independent States; that they are absolved from all allegiance to the British crown, and that all political connection between them and the state of Great Britain is, and ought to be, totally dissolved.”

Having thus passed the main resolution, Congress proceeded to consider the reported draught of the Declaration. It was discussed on the second, and third, and FOURTH days of the month, in committee of the whole; and on the last of those days, being reported from that committee, it received the final approbation and sanction of Congress. It was ordered, at the same time, that copies be sent to the several States, and that it be proclaimed at the head of the army. The Declaration thus published did not bear the names of the members, for as yet it had not been signed by them. It was authenticated, like other papers of the Congress, by the signatures of the President and Secretary. On the 19th of July, as appears by the secret journal, Congress *“Resolved*, That the Declaration, passed on the fourth, be fairly engrossed on parchment, with the title and style of ‘THE UNANIMOUS DECLARATION OF THE THIRTEEN UNITED STATES OF AMERICA’; and that the same, when engrossed be signed by every member of Congress.” And on the SECOND DAY OF AUGUST following, “the Declaration, being engrossed and compared at the table, was signed by the members.” So that it happens, fellow-citizens, that we pay these honors to their memory on the anniversary of that day (2d

of August) on which these great men actually signed their names to the Declaration. The Declaration was thus made, that is, it passed and was adopted as an act of Congress, on the fourth of July; it was then signed, and certified by the President and Secretary, like other acts. The FOURTH OF JULY, therefore, is the ANNIVERSARY OF THE DECLARATION. But the signatures of the members present were made to it, being then engrossed on parchment, on the second day of August. Absent members afterwards signed, as they came in; and indeed it bears the names of some who were not chosen members of Congress until after the fourth of July. The interest belonging to the subject will be sufficient, I hope, to justify these details.^[75]

The Congress of the Revolution, fellow-citizens, sat with closed doors, and no report of its debates was ever made. The discussion, therefore, which accompanied this great measure, has never been preserved, except in memory and by tradition. But it is, I believe, doing no injustice to others to say, that the general opinion was, and uniformly has been, that in debate, on the side of independence, JOHN ADAMS had no equal. The great author of the Declaration himself has expressed that opinion uniformly and strongly. "JOHN ADAMS," said he, in the hearing of him who has now the honor to address you, "JOHN ADAMS was our colossus on the floor. Not graceful, not elegant, not always fluent, in his public addresses, he yet came out with a power, both of thought and of expression, which moved us from our seats."

For the part which he was here to perform, Mr. Adams doubtless was eminently fitted. He possessed a bold spirit, which disregarded danger, and a sanguine reliance on the goodness of the cause, and the virtues of the people, which led him to overlook all obstacles. His character, too, had been formed in troubled times. He had been rocked in the early storms of the controversy, and had acquired a decision and a hardihood proportioned to the severity of the discipline which he had undergone.

He not only loved the American cause devoutly, but had studied and understood it. It was all familiar to him. He had tried his powers on the questions which it involved, often and in various ways; and had brought to their consideration whatever of argument or illustration the history of his own country, the history of England, or the stores of ancient or of legal learning could furnish. Every grievance enumerated in the long catalogue of the Declaration had been the subject of his discussion, and the object of his remonstrance and reprobation. From 1760, the Colonies, the rights of the

Colonies, the liberties of the Colonies, and the wrongs inflicted on the Colonies, had engaged his constant attention; and it has surprised those who have had the opportunity of witnessing it, with what full remembrance ⁴³¹ and with what prompt recollection he could refer, in his extreme old age, to every act of Parliament affecting the Colonies, distinguishing and stating their respective titles, sections, and provisions; and to all the Colonial memorials, remonstrances, and petitions, with whatever else belonged to the intimate and exact history of the times from that year to 1775. It was, in his own judgment, between these years that the American people came to a full understanding and thorough knowledge of their rights, and to a fixed resolution of maintaining them; and bearing himself an active part in all important transactions, the controversy with England being then in effect the business of his life, facts, dates, and particulars made an impression which was never effaced. He was prepared, therefore, by education and discipline, as well as by natural talent and natural temperament, for the part which he was now to act.

The eloquence of Mr. Adams resembled his general character, and formed, indeed, a part of it. It was bold, manly, and energetic; and such the crisis required. When public bodies are to be addressed on momentous occasions, when great interests are at stake, and strong passions excited, nothing is valuable in speech farther than as it is connected with high intellectual and moral endowments. Clearness, force, and earnestness are the qualities which produce conviction. True eloquence, indeed, does not consist in speech. It cannot be brought from far. Labor and learning may toil for it, but they will toil in vain. Words and phrases may be marshalled in every way, but they cannot compass it. It must exist in the man, in the subject, and in the occasion. Affected passion, intense expression, the pomp of declamation, all may aspire to it; they cannot reach it. It comes, if it come at all, like the outbreking of a fountain from the earth, or the bursting forth of volcanic fires, with spontaneous, original, native force. The graces taught in the schools, the costly ornaments and studied contrivances of speech, shock and disgust men, when their own lives, and the fate of their wives, their children, and their country, hang on the decision of the hour. Then words have lost their power, rhetoric is vain, and all elaborate oratory contemptible. Even genius itself then feels rebuked and subdued, as in the presence of higher qualities. Then patriotism is eloquent; then self-devotion is eloquent. The clear conception, outrunning the deductions of logic, the ⁴³²

high purpose, the firm resolve, the dauntless spirit, speaking on the tongue, beaming from the eye, informing every feature, and urging the whole man onward, right onward to his object,—this, this is eloquence; or rather it is something greater and higher than all eloquence, it is action, noble, sublime, godlike action.

In July, 1776, the controversy had passed the stage of argument. An appeal had been made to force, and opposing armies were in the field. Congress, then, was to decide whether the tie which had so long bound us to the parent state was to be severed at once, and severed for ever. All the Colonies had signified their resolution to abide by this decision, and the people looked for it with the most intense anxiety. And surely, fellow-citizens, never, never were men called to a more important political deliberation. If we contemplate it from the point where they then stood, no question could be more full of interest; if we look at it now, and judge of its importance by its effects, it appears of still greater magnitude.

Let us, then, bring before us the assembly, which was about to decide a question thus big with the fate of empire. Let us open their doors and look in upon their deliberations. Let us survey the anxious and care-worn countenances, let us hear the firm-toned voices, of this band of patriots.

HANCOCK presides over the solemn sitting; and one of those not yet prepared to pronounce for absolute independence is on the floor, and is urging his reasons for dissenting from the declaration.

“Let us pause! This step, once taken, cannot be retraced. This resolution, once passed, will cut off all hope of reconciliation. If success attend the arms of England, we shall then be no longer Colonies, with charters and with privileges; these will all be forfeited by this act; and we shall be in the condition of other conquered people, at the mercy of the conquerors. For ourselves, we may be ready to run the hazard; but are we ready to carry the country to that length? Is success so probable as to justify it? Where is the military, where the naval power by which we are to resist the whole strength of the arm of England, for she will exert that strength to the utmost? Can we rely on the constancy and perseverance of the people? or will they not act as the people of other countries have acted, and, wearied with a long war, submit, in the end, to a worse oppression? While we stand on our old ground, and insist on redress of grievances, we know we are

right, and are not answerable for consequences. Nothing, then, can be imputed to us. But if we now change our object, carry our pretensions farther, and set up for absolute independence, we shall lose the sympathy of mankind. We shall no longer be defending what we possess, but struggling for something which we never did possess, and which we have solemnly and uniformly disclaimed all intention of pursuing, from the very outset of the troubles. Abandoning thus our old ground, of resistance only to arbitrary acts of oppression, the nations will believe the whole to have been mere pretence, and they will look on us, not as injured, but as ambitious subjects. I shudder before this responsibility. It will be on us, if, relinquishing the ground on which we have stood so long, and stood so safely, we now proclaim independence, and carry on the war for that object, while these cities burn, these pleasant fields whiten and bleach with the bones of their owners, and these streams run blood. It will be upon us, it will be upon us, if, failing to maintain this unseasonable and ill-judged declaration, a sterner despotism, maintained by military power, shall be established over our posterity, when we ourselves, given up by an exhausted, a harassed, a misled people, shall have expiated our rashness and atoned for our presumption on the scaffold.”

It was for Mr. Adams to reply to arguments like these. We know his opinions, and we know his character. He would commence with his accustomed directness and earnestness.

“Sink or swim, live or die, survive or perish, I give my hand and my heart to this vote. It is true, indeed, that in the beginning we aimed not at independence. But there’s a Divinity which shapes our ends. The injustice of England has driven us to arms; and, blinded to her own interest for our good, she has obstinately persisted, till independence is now within our grasp. We have but to reach forth to it, and it is ours. Why, then, should we defer the Declaration? Is any man so weak as now to hope for a reconciliation with England, which shall leave either safety to the country and its liberties, or safety to his own life and his own honor? Are not you, Sir, who sit in that chair, is not he, our venerable colleague near you, are you not both already the proscribed and predestined objects of punishment and of vengeance? Cut off from all hope of royal clemency, what are you, what can you be, while the power of England remains, but outlaws? If we postpone independence, do we mean to carry on, or to give up, the war? Do

we mean to submit to the measures of Parliament, Boston Port Bill and all? Do we mean to submit, and consent that we ourselves shall be ground to powder, and our country and its rights trodden down in the dust? I know we do not mean to submit. We never shall submit. Do we intend to violate that most solemn obligation ever entered into by men, that plighting, before God, of our sacred honor to Washington, when, putting him forth to incur the dangers of war, as well as the political hazards of the times, we promised to adhere to him, in every extremity, with our fortunes and our lives? I know there is not a man here, who would not rather see a general conflagration sweep over the land, or an earthquake sink it, than one jot or tittle of that plighted faith fall to the ground. For myself, having, twelve months ago, in this place, moved you, that George Washington be appointed commander of the forces raised, or to be raised, for defence of American liberty,^[76] may my right hand forget her cunning, and my tongue cleave to the roof of my mouth, if I hesitate or waver in the support I give him.

“The war, then, must go on. We must fight it through. And if the war must go on, why put off longer the Declaration of Independence? That measure will strengthen us. It will give us character abroad. The nations will then treat with us, which they never can do while we acknowledge ourselves subjects, in arms against our sovereign. Nay, I maintain that England herself will sooner treat for peace with us on the footing of independence, than consent, by repealing her acts, to acknowledge that her whole conduct towards us has been a course of injustice and oppression. Her pride will be less wounded by submitting to that course of things which now predestinates our independence, than by yielding the points in controversy to her rebellious subjects. The former she would regard as the result of fortune; the latter she would feel as her own deep disgrace. Why, then, why then, Sir, do we not as soon as possible change this from a civil to a national war? And since we must fight it through, why not put ourselves in a state to enjoy all the benefits of victory, if we gain the victory?

“If we fail, it can be no worse for us. But we shall not fail. The cause will raise up armies; the cause will create navies. The people, the people, if we are true to them, will carry us, and will carry themselves, gloriously, through this struggle. I care not how fickle other people have been found. I know the people of these Colonies, and I know that resistance to British aggression is deep and settled in their hearts and cannot be eradicated.

Every Colony, indeed, has expressed its willingness to follow, if we but take the lead. Sir, the Declaration will inspire the people with increased courage. Instead of a long and bloody war for the restoration of privileges, for redress of grievances, for chartered immunities, held under a British king, set before them the glorious object of entire independence, and it will breathe into them anew the breath of life. Read this Declaration at the head of the army; every sword will be drawn from its scabbard, and the solemn vow uttered, to maintain it, or to perish on the bed of honor. Publish it from the pulpit; religion will approve it, and the love of religious liberty will cling round it, resolved to stand with it, or fall with it. Send it to the public halls; proclaim it there; let them hear it who heard the first roar of the enemy's cannon; let them see it who saw their brothers and their sons fall on the field of Bunker Hill, and in the streets of Lexington and Concord, and the very walls will cry out in its support.

"Sir, I know the uncertainty of human affairs, but I see, I see clearly, through this day's business. You and I, indeed, may rue it. We may not live to the time when this Declaration shall be made good. We may die; die colonists; die slaves; die, it may be, ignominiously and on the scaffold. Be it so. Be it so. If it be the pleasure of Heaven that my country shall require the poor offering of my life, the victim shall be ready at the appointed hour of sacrifice, come when that hour may. But while I do live, let me have a country, or at least the hope of a country, and that a free country.

"But whatever may be our fate, be assured, be assured that this Declaration will stand. It may cost treasure, and it may cost blood; but it will stand, and it will richly compensate for both. Through the thick gloom of the present, I see the brightness of the future, as the sun in heaven. We shall make this a glorious, an immortal day. When we are in our graves, our children will honor it. They will celebrate it with thanksgiving, with festivity, with bonfires, and illuminations. On its annual return they will shed tears, copious, gushing tears, not of subjection and slavery, not of agony and distress, but of exultation, of gratitude, and of joy. Sir, before God, I believe the hour is come. My judgment approves this measure, and my whole heart is in it. All that I have, and all that I am, and all that I hope, in this life, I am now ready here to stake upon it; and I leave off as I begun, that live or die, survive or perish, I am for the Declaration. It is my living sentiment, and by

the blessing of God it shall be my dying sentiment, Independence, *now*, and INDEPENDENCE FOR EVER.”^[77]

And so that day shall be honored, illustrious prophet and patriot! so that day shall be honored, and as often as it returns, thy renown shall come along with it, and the glory of thy life, like the day of thy death, shall not fail from the remembrance of men.

It would be unjust, fellow-citizens, on this occasion, while we express our veneration for him who is the immediate subject of these remarks, were we to omit a most respectful, affectionate, and grateful mention of those other great men, his colleagues, who stood with him, and with the same spirit, the same devotion, took part in the interesting transaction. HANCOCK, the proscribed HANCOCK, exiled from his home by a military governor, cut off by proclamation from the mercy of the crown,—Heaven reserved for him the distinguished honor of putting this great question to the vote, and of writing his own name first, and most conspicuously, on that parchment which spoke defiance to the power of the crown of England. There, too, is the name of that other proscribed patriot, SAMUEL ADAMS, a man who hungered and thirsted for the independence of his country; who thought the Declaration halted and lingered, being himself not only ready, but eager, for it, long before it was proposed; a man of the deepest sagacity, the dearest foresight, and the profoundest judgment in men. And there is GERRY, himself among the earliest and the foremost of the patriots, found, when the battle of Lexington summoned them to common counsels, by the side of WARREN; a man who lived to serve his country at home and abroad, and to die in the second place in the government. There, too, is the inflexible, the upright, the Spartan character, ROBERT TREAT PAINE. He also lived to serve his country through the struggle, and then withdrew from her councils, only that he might give his labors and his life to his native State, in another relation. These names, fellow-citizens, are the treasures of the Commonwealth; and they are treasures which grow brighter by time.

It is now necessary to resume the narrative, and to finish with great brevity the notice of the lives of those whose virtues and services we have met to commemorate.

Mr. Adams remained in Congress from its first meeting till November, 1777, when he was appointed Minister to France. He proceeded on that service in the February following, embarking in the frigate Boston, from the shore of his native town, at the foot of Mount Wollaston. The year following, he was appointed commissioner to treat of peace with England. Returning to the United States, he was a delegate from Braintree in the Convention for framing the Constitution of this Commonwealth, in 1780. [78] At the latter end of the same year, he again went abroad in the diplomatic service of the country, and was employed at various courts, and occupied with various negotiations, until 1788. The particulars of these interesting and important services this occasion does not allow time to relate. In 1782 he concluded our first treaty with Holland. His negotiations with that republic, his efforts to persuade the States-General to recognize our independence, his incessant and indefatigable exertions to represent the American cause favorably on the Continent, and to counteract the designs of its enemies, open and secret, and his successful undertaking to obtain loans, on the credit of a nation yet new and unknown, are among his most arduous, most useful, most honorable services. It was his fortune to bear a part in the negotiation for peace with England, and in something more than six years from the Declaration which he had so strenuously supported, he had the satisfaction of seeing the minister plenipotentiary of the crown subscribe his name to the instrument which declared that his "Britannic Majesty acknowledged the United States to be free, sovereign, and independent." In these important transactions, Mr. Adams's conduct received the marked approbation of Congress and of the country.

While abroad, in 1787, he published his Defence of the American Constitutions; a work of merit and ability, though composed with haste, on the spur of a particular occasion, in the midst of other occupations, and under circumstances not admitting of careful revision. The immediate object of the work was to counteract the weight of opinions advanced by several popular European writers of that day, M. Turgot, the Abbé de Mably, and Dr. Price, at a time when the people of the United States were employed in forming and revising their systems of government.

Returning to the United States in 1788, he found the new government about going into operation, and was himself elected the first Vice-President, a situation which he filled with reputation for eight years, at the expiration of

which he was raised to the Presidential chair, as immediate successor to the immortal Washington. In this high station he was succeeded by Mr. Jefferson, after a memorable controversy between their respective friends, in 1801; and from that period his manner of life has been known to all who hear me. He has lived, for five-and-twenty years, with every enjoyment that could render old age happy. Not inattentive to the occurrences of the times, political cares have yet not materially, or for any long time, disturbed his repose. In 1820 he acted as elector of President and Vice-President, and in the same year we saw him, then at the age of eighty-five, a member of the Convention of this Commonwealth called to revise the Constitution. Forty years before, he had been one of those who formed that Constitution; and he had now the pleasure of witnessing that there was little which the people desired to change.^[79] Possessing all his faculties to the end of his long life, with an unabated love of reading and contemplation, in the centre of interesting circles of friendship and affection, he was blessed in his retirement with whatever of repose and felicity the condition of man allows. He had, also, other enjoyments. He saw around him that prosperity and general happiness which had been the object of his public cares and labors. No man ever beheld more clearly, and for a longer time, the great and beneficial effects of the services rendered by himself to his country. That liberty which he so early defended, that independence of which he was so able an advocate and supporter, he saw, we trust, firmly and securely established. The population of the country thickened around him faster, and extended wider, than his own sanguine predictions had anticipated; and the wealth, respectability, and power of the nation sprang up to a magnitude which it is quite impossible he could have expected to witness in his day. He lived also to behold those principles of civil freedom which had been developed, established, and practically applied in America, attract attention, command respect, and awaken imitation, in other regions of the globe; and well might, and well did, he exclaim, “Where will the consequences of the American Revolution end?”

If any thing yet remain to fill this cup of happiness, let it be added, that he lived to see a great and intelligent people bestow the highest honor in their gift where he had bestowed his own kindest parental affections and lodged his fondest hopes. Thus honored in life, thus happy at death, he saw the JUBILEE, and he died; and with the last prayers which trembled on his lips was the fervent supplication for his country, “Independence for ever!”^[80]

Mr. Jefferson, having been occupied in the years 1778 and 1779 in the important service of revising the laws of Virginia, was elected Governor of that State, as successor to Patrick Henry, and held the situation when the State was invaded by the British arms. In 1781 he published his Notes on Virginia, a work which attracted attention in Europe as well as America, dispelled many misconceptions respecting this continent, and gave its author a place among men distinguished for science. In November, 1783, he again took his seat in the Continental Congress, but in the May following was appointed Minister Plenipotentiary, to act abroad, in the negotiation of commercial treaties, with Dr. Franklin and Mr. Adams. He proceeded to France in execution of this mission, embarking at Boston; and that was the only occasion on which he ever visited this place. In 1785 he was appointed Minister to France, the duties of which situation he continued to perform until October, 1789, when he obtained leave to retire, just on the eve of that tremendous revolution which has so much agitated the world in our times. Mr. Jefferson's discharge of his diplomatic duties was marked by great ability, diligence, and patriotism; and while he resided at Paris, in one of the most interesting periods, his character for intelligence, his love of knowledge and of the society of learned men, distinguished him in the highest circles of the French capital. No court in Europe had at that time in Paris a representative commanding or enjoying higher regard, for political knowledge or for general attainments, than the minister of this then infant republic. Immediately on his return to his native country, at the organization of the government under the present Constitution, his talents and experience recommended him to President Washington for the first office in his gift. He was placed at the head of the Department of State. In this situation, also, he manifested conspicuous ability. His correspondence with the ministers of other powers residing here, and his instructions to our own diplomatic agents abroad, are among our ablest state papers. A thorough knowledge of the laws and usages of nations, perfect acquaintance with the immediate subject before him, great felicity, and still greater facility, in writing, show themselves in whatever effort his official situation called on him to make. It is believed by competent judges, that the diplomatic intercourse of the government of the United States, from the first meeting of the Continental Congress in 1774 to the present time, taken together, would not suffer, in respect to the talent with which it has been conducted, by comparison with any thing which other and older governments can produce; and to the

attainment of this respectability and distinction Mr. Jefferson has contributed his full part.

On the retirement of General Washington from the Presidency, and the election of Mr. Adams to that office in 1797, he was chosen Vice-President. While presiding in this capacity over the deliberations of the Senate, he compiled and published a Manual of Parliamentary Practice, a work of more labor and more merit than is indicated by its size. It is now received as the general standard by which proceedings are regulated, not only in both Houses of Congress, but in most of the other legislative bodies in the country. In 1801 he was elected President, in opposition to Mr. Adams, and reëlected in 1805, by a vote approaching towards unanimity.

From the time of his final retirement from public life, in 1808, Mr. Jefferson lived as became a wise man. Surrounded by affectionate friends, his ardor in the pursuit of knowledge undiminished, with uncommon health and unbroken spirits, he was able to enjoy largely the rational pleasures of life, and to partake in that public prosperity which he had so much contributed to produce. His kindness and hospitality, the charm of his conversation, the ease of his manners, the extent of his acquirements, and, especially, the full store of Revolutionary incidents which he had treasured in his memory, and which he knew when and how to dispense, rendered his abode in a high degree attractive to his admiring countrymen, while his high public and scientific character drew towards him every intelligent and educated traveller from abroad. Both Mr. Adams and Mr. Jefferson had the pleasure of knowing that the respect which they so largely received was not paid to their official stations. They were not men made great by office; but great men, on whom the country for its own benefit had conferred office. There was that in them which office did not give, and which the relinquishment of office did not, and could not, take away. In their retirement, in the midst of their fellow-citizens, themselves private citizens, they enjoyed as high regard and esteem as when filling the most important places of public trust.

There remained to Mr. Jefferson yet one other work of patriotism and beneficence, the establishment of a university in his native State. To this object he devoted years of incessant and anxious attention, and by the enlightened liberality of the Legislature of Virginia, and the coöperation of other able and zealous friends, he lived to see it accomplished. May all success attend this infant seminary; and may those who enjoy its

advantages, as often as their eyes shall rest on the neighboring height, recollect what they owe to their disinterested and indefatigable benefactor; and may letters honor him who thus labored in the cause of letters!^[81]

Thus useful, and thus respected, passed the old age of Thomas Jefferson. But time was on its ever-ceaseless wing, and was now bringing the last hour of this illustrious man. He saw its approach with undisturbed serenity. He counted the moments as they passed, and beheld that his last sands were falling. That day, too, was at hand which he had helped to make immortal. One wish, one hope, if it were not presumptuous, beat in his fainting breast. Could it be so, might it please God, he would desire once more to see the sun, once more to look abroad on the scene around him, on the great day of liberty. Heaven, in its mercy, fulfilled that prayer. He saw that sun, he enjoyed its sacred light, he thanked God for this mercy, and bowed his aged head to the grave. “Felix, non vitæ tantum claritate, sed etiam opportunitate mortis.”

The last public labor of Mr. Jefferson naturally suggests the expression of the high praise which is due, both to him and to Mr. Adams, for their uniform and zealous attachment to learning, and to the cause of general knowledge. Of the advantages of learning, indeed, and of literary accomplishments, their own characters were striking recommendations and illustrations. They were scholars, ripe and good scholars; widely acquainted with ancient, as well as modern literature, and not altogether uninstructed in the deeper sciences. Their acquirements, doubtless, were different, and so were the particular objects of their literary pursuits; as their tastes and characters, in these respects, differed like those of other men. Being, also, men of busy lives, with great objects requiring action constantly before them, their attainments in letters did not become showy or obtrusive. Yet I would hazard the opinion, that, if we could now ascertain all the causes^[142] which gave them eminence and distinction in the midst of the great men with whom they acted, we should find not among the least their early acquisitions in literature, the resources which it furnished, the promptitude and facility which it communicated, and the wide field it opened for analogy and illustration; giving them thus, on every subject, a larger view and a broader range, as well for discussion as for the government of their own conduct.

Literature sometimes disgusts, and pretension to it much oftener disgusts, by appearing to hang loosely on the character, like something foreign or extraneous, not a part, but an ill-adjusted appendage; or by seeming to overload and weigh it down by its unsightly bulk, like the productions of bad taste in architecture, where there is massy and cumbrous ornament without strength or solidity of column. This has exposed learning, and especially classical learning, to reproach. Men have seen that it might exist without mental superiority, without vigor, without good taste, and without utility. But in such cases classical learning has only not inspired natural talent; or, at most, it has but made original feebleness of intellect, and natural bluntness of perception, something more conspicuous. The question, after all, if it be a question, is, whether literature, ancient as well as modern, does not assist a good understanding, improve natural good taste, add polished armor to native strength, and render its possessor, not only more capable of deriving private happiness from contemplation and reflection, but more accomplished also for action in the affairs of life, and especially for public action. Those whose memories we now honor were learned men; but their learning was kept in its proper place, and made subservient to the uses and objects of life. They were scholars, not common nor superficial; but their scholarship was so in keeping with their character, so blended and inwrought, that careless observers, or bad judges, not seeing an ostentatious display of it, might infer that it did not exist; forgetting, or not knowing, that classical learning in men who act in conspicuous public stations, perform duties which exercise the faculty of writing, or address popular, deliberative, or judicial bodies, is often felt where it is little seen, and sometimes felt more effectually because it is not seen at all.

But the cause of knowledge, in a more enlarged sense, the cause of general knowledge and of popular education, had no warmer friends, nor more powerful advocates, than Mr. Adams and Mr. Jefferson. On this foundation they knew the whole republican system rested; and this great and all-important truth they strove to impress, by all the means in their power. In the early publication already referred to, Mr. Adams expresses the strong and just sentiment, that the education of the poor is more important, even to the rich themselves, than all their own riches. On this great truth, indeed, is founded that unrivalled, that invaluable political and moral institution, our own blessing and the glory of our fathers, the New England system of free schools.

As the promotion of knowledge had been the object of their regard through life, so these great men made it the subject of their testamentary bounty. Mr. Jefferson is understood to have bequeathed his library to the University of Virginia, and that of Mr. Adams is bestowed on the inhabitants of Quincy.

Mr. Adams and Mr. Jefferson, fellow-citizens, were successively Presidents of the United States. The comparative merits of their respective administrations for a long time agitated and divided public opinion. They were rivals, each supported by numerous and powerful portions of the people, for the highest office. This contest, partly the cause and partly the consequence of the long existence of two great political parties in the country, is now part of the history of our government. We may naturally regret that any thing should have occurred to create difference and discord between those who had acted harmoniously and efficiently in the great concerns of the Revolution. But this is not the time, nor this the occasion, for entering into the grounds of that difference, or for attempting to discuss the merits of the questions which it involves. As practical questions, they were canvassed when the measures which they regarded were acted on and adopted; and as belonging to history, the time has not come for their consideration.

It is, perhaps, not wonderful, that, when the Constitution of the United States first went into operation, different opinions should be entertained as to the extent of the powers conferred by it. Here was a natural source of diversity of sentiment. It is still less wonderful, that that event, nearly contemporary with our government under the present Constitution, which so entirely shocked all Europe, and disturbed our relations with her leading powers, should be thought, by different men, to have different bearings on our own prosperity; and that the early measures adopted by the government of the United States, in consequence of this new state of things, should be seen in opposite lights. It is for the future historian, when what now remains of prejudice and misconception shall have passed away, to state these different opinions, and pronounce impartial judgment. In the mean time, all good men rejoice, and well may rejoice, that the sharpest differences sprung out of measures which, whether right or wrong, have ceased with the exigencies that gave them birth, and have left no permanent effect, either on the Constitution or on the general prosperity of the country. This remark, I am aware, may be supposed to have its exception in one measure, the

alteration of the Constitution as to the mode of choosing President; but it is true in its general application. Thus the course of policy pursued towards France in 1798, on the one hand, and the measures of commercial restriction commenced in 1807, on the other, both subjects of warm and severe opposition, have passed away and left nothing behind them. They were temporary, and whether wise or unwise, their consequences were limited to their respective occasions. It is equally clear, at the same time, and it is equally gratifying, that those measures of both administrations which were of durable importance, and which drew after them momentous and long remaining consequences, have received general approbation. Such was the organization, or rather the creation, of the navy, in the administration of Mr. Adams; such the acquisition of Louisiana, in that of Mr. Jefferson. The country, it may safely be added, is not likely to be willing either to approve, or to reprobate, indiscriminately, and in the aggregate, all the measures of either, or of any, administration. The dictate of reason and of justice is, that, holding each one his own sentiments on the points of difference, we imitate the great men themselves in the forbearance and moderation which they have cherished, and in the mutual respect and kindness which they have been so much inclined to feel and to reciprocate.

No men, fellow-citizens, ever served their country with more entire exemption from every imputation of selfish and mercenary motives, than those to whose memory we are paying these proofs of respect. A suspicion of any disposition to enrich themselves, or to profit by their public employments, never rested on either. No sordid motive approached them. The inheritance which they have left to their children is of their character and their fame.

Fellow-citizens, I will detain you no longer by this faint and feeble tribute to the memory of the illustrious dead. Even in other hands, adequate justice could not be done to them, within the limits of this occasion. Their highest, their best praise, is your deep conviction of their merits, your affectionate gratitude for their labors and their services. It is not my voice, it is this cessation of ordinary pursuits, this arresting of all attention, these solemn ceremonies, and this crowded house, which speak their eulogy. Their fame, indeed, is safe. That is now treasured up beyond the reach of accident. Although no sculptured marble should rise to their memory, nor engraved stone bear record of their deeds, yet will their remembrance be as lasting as

the land they honored. Marble columns may, indeed, moulder into dust, time may erase all impress from the crumbling stone, but their fame remains; for with AMERICAN LIBERTY it rose, and with AMERICAN LIBERTY ONLY Can it perish. It was the last swelling peal of yonder choir, "THEIR BODIES ARE BURIED IN PEACE, BUT THEIR NAME LIVETH EVERMORE." I catch that solemn song, I echo that lofty strain of funeral triumph, "THEIR NAME LIVETH EVERMORE."

Of the illustrious signers of the Declaration of Independence there now remains only CHARLES CARROLL. He seems an aged oak, standing alone on the plain, which time has spared a little longer after all its contemporaries have been levelled with the dust. Venerable object! we delight to gather round its trunk, while yet it stands, and to dwell beneath its shadow. Sole survivor of an assembly of as great men as the world has witnessed, in a transaction one of the most important that history records, what thoughts, what interesting reflections, must fill his elevated and devout soul! If he dwell on the past, how touching its recollections; if he survey the present, how happy, how joyous, how full of the fruition of that hope, which his ardent patriotism indulged; if he glance at the future, how does the prospect of his country's advancement almost bewilder his weakened conception. Fortunate, distinguished patriot! Interesting relic of the past! Let him know that, while we honor the dead, we do not forget the living; and that there is not a heart here which does not fervently pray, that Heaven may keep him yet back from the society of his companions.

And now, fellow-citizens, let us not retire from this occasion without a deep and solemn conviction of the duties which have devolved upon us. This lovely land, this glorious liberty, these benign institutions, the dear purchase of our fathers, are ours; ours to enjoy, ours to preserve, ours to transmit. Generations past and generations to come hold us responsible for this sacred trust. Our fathers, from behind, admonish us, with their anxious paternal voices; posterity calls out to us, from the bosom of the future; the world turns hither its solicitous eyes; all, all conjure us to act wisely, and faithfully, in the relation which we sustain. We can never, indeed, pay the debt which is upon us; but by virtue, by morality, by religion, by the cultivation of every good principle and every good habit, we may hope to enjoy the blessing, through our day, and to leave it unimpaired to our

children. Let us feel deeply how much of what we are and of what we possess we owe to this liberty, and to these institutions of government. Nature has, indeed, given us a soil which yields bounteously to the hand of industry, the mighty and fruitful ocean is before us, and the skies over our heads shed health and vigor. But what are lands, and seas, and skies, to civilized man, without society, without knowledge, without morals, without religious culture; and how can these be enjoyed, in all their extent and all their excellence, but under the protection of wise institutions and a free government? Fellow-citizens, there is not one of us, there is not one of us here present, who does not, at this moment, and at every moment, experience, in his own condition, and in the condition of those most near and dear to him, the influence and the benefits of this liberty and these institutions. Let us then acknowledge the blessing, let us feel it deeply and powerfully, let us cherish a strong affection for it, and resolve to maintain and perpetuate it. The blood of our fathers, let it not have been shed in vain; the great hope of posterity, let it not be blasted.

The striking attitude, too, in which we stand to the world around us, a topic to which, I fear, I advert too often, and dwell on too long, cannot be altogether omitted here. Neither individuals nor nations can perform their part well, until they understand and feel its importance, and comprehend and justly appreciate all the duties belonging to it. It is not to inflate national vanity, nor to swell a light and empty feeling of self-importance, but it is that we may judge justly of our situation, and of our own duties, that I earnestly urge upon you this consideration of our position and our character among the nations of the earth. It cannot be denied, but by those who would dispute against the sun, that with America, and in America, a new era commences in human affairs. This era is distinguished by free representative governments, by entire religious liberty, by improved systems of national intercourse, by a newly awakened and an unconquerable spirit of free inquiry, and by a diffusion of knowledge through the community, such as has been before altogether unknown and unheard of. America, America, our country, fellow-citizens, our own dear and native land, is inseparably connected, fast bound up, in fortune and by fate, with these great interests. If they fall, we fall with them; if they stand, it will be because we have maintained them. Let us contemplate, then, this connection, which binds the prosperity of others to our own; and let us manfully discharge all the duties which it imposes. If we cherish the virtues

and the principles of our fathers, Heaven will assist us to carry on the work of human liberty and human happiness. Auspicious omens cheer us. Great examples are before us. Our own firmament now shines brightly upon our path. WASHINGTON is in the clear, upper sky. These other stars have now joined the American constellation; they circle round their centre, and the heavens beam with new light. Beneath this illumination let us walk the course of life, and at its close devoutly commend our beloved country, the common parent of us all, to the Divine Benignity.

FOOTNOTES

[67]

A Discourse in Commemoration of the Lives and Services of John Adams and Thomas Jefferson, delivered in Faneuil Hall, Boston, on the 2d of August, 1826.

[68]

Hon. Josiah Quincy.

[69]

Extract of a letter written by John Adams to Nathan Webb, dated at Worcester, Massachusetts, October 12, 1755.

“Soon after the Reformation, a few people came over into this New World, for conscience’ sake. Perhaps this apparently trivial incident may transfer the great seat of empire into America. It looks likely to me; for, if we can remove the turbulent Gallics, our people, according to the exactest computations, will, in another century, become more numerous than England itself. Should this be the case, since we have, I may say, all the naval stores of the nation in our hands, it will be easy to obtain a mastery of the seas; and then the united force of all Europe will not be able to subdue us. The only way to keep us from setting up for ourselves is to disunite us.

“Be not surprised that I am turned politician. This whole town is immersed in politics. The interests of nations, and all the dira of war, make the subject of every conversation. I sit and hear, and after having been led through a maze of sage observations, I sometimes retire, and, laying things together, form some reflections pleasing to myself. The produce of one of these reveries you have read above.”

[70]

Nearly all that was known of this celebrated argument, at the time the present Discourse was delivered, was derived from the recollections of John Adams, as preserved in Minot’s History of Massachusetts, Vol. II. p. 91. See Life and Works of John Adams, Vol. II. p. 124, published in the course of the past year (1850), in the Appendix to which, p. 521, will be found a paper hitherto unpublished, containing notes of the argument of Otis, “which seem to be the foundation of the sketch published by Minot.” Tudor’s Life of James Otis, p. 61.

[71]

See Life and Works of John Adams, Vol. II. p. 150, Vol. III. p. 447, and North American Review, Vol. LXXI. p. 430.

[72]

Cicero de Officiis, Lib. I. § 43.

[73]

A fac-simile of this ever-memorable state paper, as drafted by Mr. Jefferson, with the interlineations alluded to in the text, is contained in Mr. Jefferson's Writings, Vol. I. p. 146. See, also, in reference to the history of the Declaration, the Life and Works of John Adams Vol. II. p. 512 *et seq.*

[74]

This question, of the power of Parliament over the Colonies, was discussed with singular ability, by Governor Hutchinson on the one side, and the House of Representatives of Massachusetts on the other, in 1773. The argument of the House is in the form of an answer to the Governor's Message, and was reported by Mr. Samuel Adams, Mr. Hancock, Mr. Hawley, Mr. Bowers, Mr. Hobson, Mr. Foster, Mr. Phillips, and Mr. Thayer. As the power of the Parliament had been acknowledged, so far at least as to affect us by laws of trade, it was not easy to settle the line of distinction. It was thought, however, to be very clear, that the charters of the Colonies had exempted them from the general legislation of the British Parliament. See Massachusetts State Papers, p. 351. The important assistance rendered by John Adams in the preparation of the answer of the House to the Message of the Governor may be learned from the Life and Works of John Adams, Vol. II. p. 311 *et seq.*

[75]

The official copy of the Declaration, as engrossed and signed by the members of Congress, is framed and preserved in the Hall over the Patent-Office at Washington.

[76]

See Life and Works of John Adams, Vol. II. p. 417 *et seq.*

[77]

On the authorship of this speech, see [Note](#) at the end of the Discourse.

[78]

In this Convention he served as chairman of the committee for preparing the draft of a Constitution.

[79]

Upon the organization of this body, 15th November, 1820, John Adams was elected its President; an office which the infirmities of age compelled him to decline. For the interesting proceedings of the Convention on this occasion, the address of Chief Justice Parker, and the reply of Mr. Adams, see Journal of Debates and Proceedings in the Convention of Delegates chosen to revise the Constitution of Massachusetts, p. 8 *et seq.*

[\[80\]](#)

For an account of Mr. Webster's last interview with Mr. Adams, see March's *Reminiscences of Congress*, p. 62.

[\[81\]](#)

Mr. Jefferson himself considered his services in establishing the University of Virginia as among the most important rendered by him to the country. In Mr. Wirt's Eulogy, it is stated that a private memorandum was found among his papers, containing the following inscription to be placed on his monument:—"Here was buried Thomas Jefferson, Author of the Declaration of Independence, of the Statutes of Virginia for Religious Freedom, and Father of the University of Virginia." *Eulogies on Adams and Jefferson*, p. 426.

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NOTE.

Page 136.

The question has often been asked, whether the anonymous speech against the Declaration of Independence, and the speech in support of it ascribed to John Adams in the preceding Discourse, are a portion of the debates which actually took place in 1776 in the Continental Congress. Not only has this inquiry been propounded in the public papers, but several letters on the subject have been addressed to Mr. Webster and his friends. For this reason, it may be proper to state, that those speeches were composed by Mr. Webster, after the manner of the ancient historians, as embodying in an impressive form the arguments relied upon by the friends and opponents of the measure, respectively. They of course represent the speeches that were actually made on both sides, but no report of the debates of this period has been preserved, and the orator on the present occasion had no aid in framing these addresses, but what was furnished by general tradition and the known line of argument pursued by the speakers and writers of that day for and against the measure of Independence. The first sentence of the speech ascribed to Mr. Adams was of course suggested by the parting scene with Jonathan Sewall, as described by Mr. Adams himself, in the Preface to the *Letters of Novanglus and Massachusettensis*.

So much interest has been taken in this subject, that it has been thought proper, by way of settling the question in the most authentic manner, to give publicity to the following answer, written by Mr. Webster to one of the letters of inquiry above alluded to.

“Washington, 22 January, 1846.

“DEAR SIR:—

“I have the honor to acknowledge the receipt of your letter of the 18th instant. Its contents hardly surprise me, as I have received very many similar communications.

“Your inquiry is easily answered. The Congress of the Revolution sat with closed doors. Its proceedings were made known to the public, from time to time, by printing its journal; but the debates were not published. So far as I know, there is not existing, in print or manuscript, the speech, or any part or fragment of the speech, delivered by Mr. Adams on the question of the Declaration of Independence. We only know from the testimony of his auditors, that he spoke with remarkable ability and characteristic earnestness. 150

“The day after the Declaration was made, Mr. Adams, in writing to a friend, ^[82] declared the event to be one that ‘ought to be commemorated, as the day of deliverance, by solemn acts of devotion to God Almighty. It ought to be solemnized with pomp and parade, with shows, games, sports, guns, bells, bonfires, and illuminations, from one end of this continent to the other, from this time forward, for evermore.’

“And on the day of his death, hearing the noise of bells and cannon, he asked the occasion. On being reminded that it was ‘Independent day,’ he replied, ‘Independence for ever!’ These expressions were introduced into the speech *supposed* to have been made by him. For the rest, I must be answerable. The speech was written by me, in my house in Boston, the day before the delivery of the Discourse in Faneuil Hall; a poor substitute, I am sure it would appear to be, if we could now see the speech actually made by Mr. Adams on that transcendently important occasion.

“I am, respectfully,

“Your obedient servant,

“DANIEL WEBSTER.”

FOOTNOTES

^[82]

See Letters of John Adams to his Wife, Vol. I. p. 128, note.

THE ELECTION OF 1825.

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INTRODUCTORY NOTE.

It has already been observed in the Introductory Memoir, that, from the return of peace in 1815, a tendency manifested itself in many parts of the country toward a dissolution of the old parties. The overwrought feelings of the people demanded repose. The subject-matter of several of the points of party dissension had expired with the war. New questions of great public interest, traversing the old party lines, had sprung up. General Jackson, in a letter addressed to Mr. Monroe, in 1817, on the subject of the formation of his cabinet, had advised him to discard the former party divisions. In the progress of his eight years' administration, it was every day more and more apparent, that the old party influences had spent their force. It became at last impossible to recognize their continued existence.

With the approach of the national election in the autumn of 1824, at which four candidates were supported for the office of President, no thoughts were entertained in any quarter of recommending either of them as a candidate to be supported or opposed by one or the other of the ancient parties. If there was any seeming departure from this principle, it must have been to some quite limited extent, and for supposed advantage in narrow localities. In the Union at large, no such attempt was made. The several candidates were sustained on broad national grounds.

This was eminently the case in Massachusetts, where a very large majority of the people, assuming the name of National Republicans, and without reference to former divisions, were united in the support of their fellow-citizen, John Quincy Adams. At the State elections next succeeding his accession to the Presidency, in the spring of 1825, the candidates for the

offices of Governor and Lieutenant-Governor, who, at the last contested election, had been brought forward by the Democratic party, were almost unanimously supported, and a union ticket for Senators was nominated in most of the counties of the State. Such was the case in Suffolk County; and at a meeting held in Faneuil Hall, without distinction of party, to ratify these nominations, the following remarks were made by Mr. Webster.

THE ELECTION OF 1825.[\[83\]](#)

Mr. Webster said, he was quite unaccustomed to appear in that place; having on no occasion addressed his fellow-citizens there, either to recommend or to oppose the support of any candidates for public office. He had long been of opinion, that to preserve the distinction and the hostility of political parties was not consistent with the highest degree of public good. At the same time, he did not find fault with the conduct, nor question the motives, of those who thought otherwise. But, entertaining this opinion, he had habitually abstained from attending on those occasions on which the merits of public men, and of candidates for office, were discussed, necessarily with more or less reference to party attachment and party organization.

The present was an occasion of a different kind. The sentiment which had called this meeting together was one of union and conciliation; a sentiment so congenial to his own feelings, and to his opinion of the public interest, that he could not resist the inclination to be present, and to express his entire and hearty concurrence.

He should forbear, he said, from all remarks upon the particular names which had been recommended by the committee. They had been selected, he must presume, fairly, and with due consideration, by those who were appointed for that purpose. In cases of this sort, every one cannot expect to find every thing precisely as he might wish it; but those who concurred in the general sentiment which dictated the selection would naturally allow that sentiment to prevail as far as possible over particular objections.

On the general question he would make a few remarks, begging the indulgence of the meeting if he should say any thing which might with more propriety proceed from others.

He hardly conceived how well disposed and intelligent minds could differ as to the question, whether party contest and party strife, organized, systematic, and continued, were of themselves desirable ingredients in the composition of society. Difference of opinion on political subjects, honorable competition, and emulous rivalry, may indeed be useful. But these are very different things from organized and systematic party combinations. He admitted, it was true, that party associations were sometimes unavoidable, and perhaps necessary to the accomplishment of other ends and purposes. But this did not prove that, of themselves, they were good; or that they should be continued and preserved for their own sake, when there had ceased to be any object to be effected by them.

But there were those who supposed, that, whether political party distinctions were or were not useful, it was impossible to abolish them. Now he thought, on the contrary, that, under present circumstances, it was quite impossible to continue them. New parties, indeed, might arise, growing out of new events or new questions; but as to those old parties which had sprung from controversies now no longer pending, or from feelings which time and other causes had now changed, or greatly allayed, he did not believe that they could long remain. Efforts, indeed, made to that end, with zeal and perseverance, might delay their extinction, but, he thought, could not prevent it. There was nothing to keep alive these distinctions in the interests and objects which now engaged society. New questions and new objects arise, having no connection with the subjects of past controversies, and present interest overcomes or absorbs the recollection of former controversies. Those who are united on these existing questions and present interests will not be disposed to weaken their efforts to promote them, by angry reflections on past differences. If there were nothing *in things* to divide about, he thought the people not likely to maintain systematic controversies about *men*. They have no interest in so doing. Associations formed to support *principles* may be called *parties*; but if they have no bond of union but adherence to particular *men*, they become *factions*.

The people, in his opinion, were at present grateful to all parties for whatever of good they had accomplished, and indulgent to all for whatever of error they had committed; and, with these feelings, were now mainly intent on the great objects which affected their present interests. There might be exceptions to this remark; he was afraid there were; but, nevertheless, such appeared to him to be the general feeling in the country. It was natural that some prejudices should remain longer than their causes, as the waves lash the shore for a time after the storm has subsided; but the tendency of the elements was to repose. Monopolies of all sorts were getting out of fashion; they were yielding to liberal ideas, and to the obvious justice and expediency of fair competition.

An administration of the general government, which had been in general highly satisfactory to the country, had now closed.^[84] He was not aware that it could with propriety be said, that that administration had been either supported or opposed by any party associations or on any party principles. Certain it was, that, as far as there had been any organized opposition to the administration, it had had nothing to do with former parties. A new administration had now commenced, and he need hardly say that the most liberal and conciliatory principles had been avowed in the Inaugural Address of the newly elected President. It could not be doubted that his administration would conform to those principles. Thus far, he believed, its course had given general satisfaction. After what they all had seen in relation to the gentleman holding the highest appointment in the executive department under the President, he would take this opportunity to say, that, having been a member of the House of Representatives for six years, during the greater part of which time Mr. Clay had presided in that House, he was most happy in being able, in a manner less formal and more explicit than by concurring in the usual vote of thanks, to express his own opinion of his liberality, independence, and honorable feeling. And he would take this occasion also to add, if his opinion could be of any value in such a case, that he thought nothing more unfounded than that that gentleman owed his present situation to any unworthy compromise or arrangement whatever. He owed it to his talent, to his prominent standing in the community, to his course of public service, not now a short one, and to the high estimation in which he stands with that part of the country to which he belongs.

Remarks, Mr. Webster proceeded to say, had been made from the chair, very kind and partial, as to the manner in which he had discharged the duties which he owed to his constituents in the House of Representatives. He wished to say, that if he had been able to render any, the humblest services, either to the public or his constituents, in that place, it was owing wholly to the liberal manner in which his efforts there had been received.

Having alluded to the Inaugural Address, he did not mean in the slightest degree to detract from its merits, when he now said, that, in his opinion, if either of the other candidates had succeeded in the election, he also would have adopted a liberal course of policy. He had no reason to believe that the sentiments of either of those gentlemen were, in this respect, narrow or contracted. He fully believed the contrary, in regard to both of them; but if they had been otherwise, he thought still that expediency or necessity would have controlled their inclinations.

I forbear, said Mr. Webster, from pursuing these remarks farther. I repeat, that I do not complain of those who have hitherto thought, or who still think, that party organization is necessary to the public good. I do not question their motives; and I wish to be tolerant even to those who think that toleration ought not to be indulged.

It is said, Sir, that prosperity sometimes hardens the heart. Perhaps, also, it may sometimes have a contrary effect, and elevate and liberalize the feelings. If this can ever be the result of such a cause, there is certainly in the present condition of the country enough to inspire the most grateful and the kindest feelings. We have a common stock both of happiness and of distinction, of which we are all entitled, as citizens of the country, to partake. We may all rejoice in the general prosperity, in the peace and security which we enjoy, and in the brilliant success which has thus far attended our republican institutions. These are circumstances which may well excite in us all a noble pride. Our civil and political institutions, while they answer for us all the great ends designed by them, furnish at the same time an example to others, and diffuse blessings beyond our own limits. In whatever part of the globe men are found contending for political liberty, they look to the United States with a feeling of brotherhood, and put forth a claim of kindred. The South American states, especially, exhibit a most interesting spectacle. Let the great men who formed our constitutions of government, who still survive, and let the children of those who have gone

to their graves, console themselves with the reflection, that, whether they have risen or fallen in the little contests of party, they have not only established the liberty and happiness of their own native land, but have conferred blessings beyond their own country, and beyond their own thoughts, on millions of men and on successions of generations. Under the influence of these institutions, received and adopted in principle from our example, the whole southern continent has shaken off its colonial subjection. A new world, filled with fresh and interesting nations, has risen to our sight. America seems again discovered; not to geography, but to commerce, to social intercourse, to intelligence, to civilization, and to liberty. Fifty years ago, some of those who now hear me, and the fathers of many others, listened in this place to those mighty leaders, Otis and Adams. When they then uttered the spirit-stirring sounds of Independence and Liberty, there was not a foot of land on the continent, inhabited by civilized man, that did not acknowledge the dominion of European power. Thank God, at this moment, from this place to the south pole, and from sea to sea, there is hardly a foot of land that does.

And, Sir, when these states, thus newly disenthralled and emancipated, assume the tone and bear the port of independence, what language and what ideas do we find associated with their newly acquired liberty? They speak, Sir, of constitutions, of declarations of rights, of the liberty of the press, of a congress, and of representative government. Where, Sir, did they learn these? And when they have applied to their great leader, and the founder of their states, the language of praise and commendation till they have exhausted it, when unsatisfied gratitude can express itself no otherwise, do they not call him their WASHINGTON? Sir, the Spirit of Continental Independence, the Genius of American Liberty, which in earlier times tried her infant voice in the halls and on the hills of New England, utters it now, with power that seems to wake the dead, on the plains of Mexico, and along the sides of the Andes.

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“Her path, where’er the goddess roves,
Glory pursues, and generous shame,
The unconquerable mind, and Freedom’s holy flame.”

There is one other point of view, Sir, in regard to which I will say a few words, though perhaps at some hazard of misinterpretation.

In the wonderful spirit of improvement and enterprise which animates the country, we may be assured that each quarter will naturally exert its power in favor of objects in which it is interested. This is natural and unavoidable. Each portion, therefore, will use its best means. If the West feels a strong interest in clearing the navigation of its mighty streams, and opening roads through its vast forests, if the South is equally zealous to push the production and augment the prices of its great staples, it is reasonable to expect that these objects will be pursued by the best means which offer themselves. And it may therefore well deserve consideration, whether the commercial and navigating and manufacturing interests of the North do not call on us to aid and support them, by united counsels and united efforts. But I abstain from enlarging on this topic. Let me rather say, that in regard to the whole country a new era has arisen. In a time of peace, the proper pursuits of peace engage society with a degree of enterprise and an intenseness of application heretofore unknown. New objects are opening, and new resources developed, on every side. We tread on a broader theatre; and if, instead of acting our parts according to the novelty and importance of the scene, we waste our strength in mutual crimination and recrimination concerning the past, we shall resemble those navigators, who, having escaped from some crooked and narrow river to the sea, now that the whole ocean is before them, should, nevertheless, occupy themselves with the differences which happened as they passed along among the rocks and the shallows, instead of opening their eyes to the wide horizon around them, spreading their sail to the propitious gale that woos it, raising their quadrant to the sun, and grasping the helm with the conscious hand of a master.

FOOTNOTES

[83]

Speech delivered at a Meeting of Citizens of Boston, held in Fatima Hall on the Evening of April 3d, 1825, preparatory to the General Election in Massachusetts.

[84]

That of President Monroe, which commenced on the 4th of March, 1817, and continued for two terms, till the 4th of March, 1825.

DINNER AT FANEUIL HALL.

At a public dinner given him on the 5th of June, 1828, by the citizens of Boston (Hon. T. H. Perkins in the chair), as a mark of respect for his services as Senator of the United States, and late their Representative in Congress, after the annunciation of the following toast, "Our distinguished guest,—worthy the noblest homage which freemen can give or a freeman receive, the homage of their hearts," Mr. Webster rose and spoke as follows:—

MR. CHAIRMAN,—The honor conferred by this occasion, as well as the manner in which the meeting has been pleased to receive the toast which has now been proposed to them from the chair, requires from me a most respectful acknowledgment and a few words of honest and sincere thanks. I should, indeed, be lost to all just feeling, or guilty of a weak and puerile affectation, if I should fail to manifest the emotions which are excited by these testimonials of regard, from those among whom I live, who see me oftenest, and know me best. If the approbation of good men be an object fit to be pursued, it is fit to be enjoyed; if it be, as it doubtless is, one of the most stirring and invigorating motives which operate upon the mind, it is also among the richest rewards which console and gratify the heart.

I confess myself particularly touched and affected, Mr. President and Gentlemen, by the kind feeling which you manifest towards me as your fellow-citizen, your neighbor, and your friend. Respect and confidence, in these relations of life, lie at the foundation of all valuable character; they are as essential to solid and permanent reputation as to durable and social happiness. I assure you, Sir, with the utmost sincerity, that there is nothing which could flow from human approbation and applause, no distinction, however high or alluring, no object of ambition, which could possibly be brought within the horizon of my view, that would tempt me, in any degree, justly to forfeit the attachment of my private friends, or surrender my hold, as a citizen and a neighbor, on the confidence of the community in which I live; a community to which I owe so much, in the bosom of which I have enjoyed so much, and where I still hope to remain, in the interchange of mutual good wishes and the exercise of mutual good offices, for the residue of life.

The commendation bestowed by the meeting upon my attempts at public service, I am conscious, is measured rather by their own kindness, than by any other standard. Of those attempts, no one can think more humbly than I do. The affairs of the general government, foreign and domestic, are vast and various and complicated. They require from those who would aspire to take a leading part in them an amount, a variety, and an accuracy of information, which, even if the adequate capacity were not wanting, are not easily attained by one whose attention is of necessity mainly devoted to the duties of an active and laborious profession. For this as well as many other reasons, I am conscious of having discharged my public duties in a manner no way entitling them to the degree of favor which has now been manifested.

And this manifestation of favor and regard is the more especially to be referred to the candor and kindness of the meeting, on this occasion, since it is well known, that in a recent instance, and in regard to an important measure, I have felt it my duty to give a vote, in respect to the expediency and propriety of which considerable difference of opinion exists between persons equally entitled to my regard and confidence.^[85] The candid interpretation which has been given to that vote by those who disapproved it, and the assembling together here, for the purposes of this occasion, of those who felt pain, as well as those who felt pleasure, at the success of the measure for which the vote was given, afford ample proof, how far unsuspected uprightness of intention and the exercise of an independent judgment may be respected, even by those who differ from the results^[86] to which that exercise of judgment has arrived. There is no class of the community for whose interests I have ever cherished a more sincere regard, than that on whose pursuits some parts of the measure alluded to bear with great severity. They are satisfied, I hope, that, in supporting a measure in any degree injurious to them, I must have been governed by other paramount reasons, satisfactory to my own conscience; and that the blow inflicted on their interests was felt by me almost as painfully and heavily as it could be by those on whom it immediately fell. I am not now about to enter into the reason of that vote, or to explain the necessity under which I found myself placed, by a most strange and unprecedented manner of legislation, of taking the evil of a public measure for the sake of its good; the good and the bad provisions relating to different subjects, having not the slightest connection with each other, yet yoked together, and kept together,

for reasons and purposes which I need not state, as they have been boldly avowed, and are now before the public.

It was my misfortune, Sir, on that occasion, to differ from my most estimable and worthy colleague;^[86] and yet probably our difference was not so broad as it might seem. We both saw in the measure something to approve, and something to disapprove. If it could have been left to us to mould and to frame it according to our opinions of what the good of the country required, there would have been no diversity of judgment between us, as to what should have been retained and what rejected. The only difference was, when the measure had assumed its final shape, whether the good it contained so far preponderated over its acknowledged evil, as to justify the reception and support of the whole together. On a point of this sort, and under circumstances such as those in which we were placed, it is not strange that different minds should incline different ways. It gives me great pleasure to bear testimony to the constancy, the intelligence, and the conscious fidelity with which my colleague discharged his public duty in reference to this subject. I am happy also to have the opportunity of saying, that, if the bill had been presented to me in the form it was when it received a negative vote from the distinguished gentleman^[87] who represents this Congressional District, my own opinion of it would have entirely concurred with his, and I should have voted in the same manner.

The meeting will indulge me with one further remark, before parting from this subject. It is only the suggestion, that in the place I occupied I was one of the representatives of the whole Commonwealth. I was not at liberty to look exclusively to the interests of the district in which I live, and which I have heretofore had the high honor of representing. I was to extend my view from Barnstable to Berkshire; to comprehend in it a proper regard for all interests, and a proper respect for all opinions. Looking to the aggregate of all the interests of the Commonwealth, and regarding the general current of opinion, so far as that was properly to be respected, I saw, at least I thought I saw, my duty to lie in the path which I pursued. The measure is adopted. Its consequences, for good or evil, must be left to the results of experience. In the mean time, I refer the propriety of the vote which I gave, with entire submission, and with the utmost cheerfulness also, to the judgment of the good people of the Commonwealth.

On some other subjects, Mr. President, I had the good fortune to act in perfect unison with my colleague, and with every representative of the State. On one, especially, the success of which, I am sure, must have gratified every one who hears me. I could not, Sir, have met this assembly, I could not have raised my voice in Faneuil Hall,—you would have awed me down; if you had not, the portraits of patriots which adorn these walls would have frowned me into silence,—if I had refused either my vote or my voice to the cause of the officers and soldiers of the Revolutionary army. That measure, mixed up of justice, and charity, and mercy, is at last accomplished. The survivors of those who fought our Revolutionary battles, under an engagement to see the contest through, are at length provided for, not sumptuously, not extravagantly, but in a manner to place them, in their old age, beyond the reach of absolute want. Solace, also, has been administered to their feelings, as well as to their necessities. They are not left to count their scars, or to experience the pain of wounds, inflicted half a century ago, in their country's service, without some token, that they are yet held in grateful remembrance. A gratifying proof of respect for the services of their youth and manhood quickens the pulsations of patriotism in veteran bosoms; and as they may now live beyond the reach of absolute want, so they will have the pleasure of closing life, when that time for closing it shall come which must come to all, with the happy consciousness of meritorious services, gratefully recompensed.

Another subject, now becoming exceedingly interesting, was, in various forms, presented to Congress at the last session; and in regard to which, I believe, there is, substantially, a general union of opinion among the members from this Commonwealth; I mean what is commonly called Internal Improvements. The great and growing importance of this subject may, I hope, justify a few remarks relative to it on the present occasion.

It was evident to all persons of much observation, at the close of the late war, that the condition and prospects of the United States had become essentially changed, in regard to sundry great interests of the country. Almost from the formation of the government, till near the commencement of that war, the United States had occupied a position of singular and extraordinary advantage. They had been at peace, while the powers of Europe had been at war. The harvest of neutrality had been to them rich and ample; and they had reaped it with skill and diligence. Their agriculture and

commerce had both sensibly felt the benefit arising from the existing state of the world. Bread was raised for those whose hands were otherwise employed than in the cultivation of the field, and the seas were navigated, for account of such as, being belligerents, could not safely navigate them for themselves. These opportunities for useful employment were all seized and enjoyed, by the enterprise of the country; and a high degree of prosperity was the natural result.

But with general peace a new state of things arose. The European states at once turned their own attention to the pursuits proper for their new situation, and sought to extend their own agricultural, manufacturing, and commercial interests. It was evident, that thenceforward, instead of our enjoying the advantages peculiar to neutrality in times of war, a general competition would spring up, and nothing was to be expected without a struggle. Other nations would now raise their own bread, and as far as possible transport their own commodities; and the export trade and the carrying trade of this country were, therefore, certain to become the subjects of new and powerful competition, if not to receive sudden and violent checks. It seemed reasonable, therefore, in this state of things, to turn our thoughts inwards; to search out the hitherto unexplored resources of our own country; to find, if we could, new diversifications of industry and new subjects for the application of labor at home. It was fit to consider how far home productions could properly be made to furnish activity to home supply; and since the country stretched over so many parallels of latitude and longitude, abounding, of course, in the natural productions proper to each, it was of the highest importance to inquire what means existed of establishing free and cheap intercourse between those distant parts, thereby bringing the raw material, abounding in one, under the action of the productive labor which was found in another. Roads and canals, therefore, were seen to be of the first consequence. And then the interesting question arose, how far it was constitutionally lawful, and how far expedient, for the general government to give aid and succor to the business of making roads and canals, in conjunction with the enterprise of individuals or of states. I am among those who have held the opinion, that, if any object of that kind be of general and national importance, it is within the scope of the powers of the government; though I admit it to be a power which should be exercised with very great care and discretion. Congress has power to *regulate* commerce, both internal and external; and whatever might have

been thought to be the literal interpretation of these terms, we know the construction to have been, from the very first assembling of Congress, and by the very men who framed the Constitution, that the regulation of commerce comprehended such measures as were necessary for its support, its improvement, its advancement, and justified the expenditure of money for such purposes as the construction of piers, beacons, and light-houses, and the clearing out of harbors. Instances of this sort, in the application of the general revenues, have been frequent, from the commencement of the government. As the same power, precisely, exists in relation to internal as to external trade, it was not easy to see why like expenditures might not be justified, when made on internal objects. The vast regions of the West are penetrated by rivers, to which those of Europe are but as rills and brooks. But the navigation of these noble streams, washing, as they do, the margin of one third of the States of the Union, is obstructed by obstacles, capable of being removed, and yet not likely to be removed, but by the power of the general government. Was this a justifiable object of expenditure from the national treasury? Without hesitation, I have thought it was. A vast chain of lakes, if it be not more proper to call them a succession of inland seas, stretches into the deep interior of this northern part of the continent, as if kindly placed there by Providence to break the continuity of the land, and afford the easier and readier intercourse of water conveyance. But these vast lakes required, also, harbors, and light-houses, and breakwaters. And were these lawful objects of national legislation? To me, certainly, they have appeared to be such, as clearly as if they were on the Atlantic border.

In most of the new States of the West, the United States are yet proprietors of vast bodies of land. Through some of these States, and sometimes through these same public lands, the local authorities have prepared to carry expensive canals, for the general benefit of the country. Some of these undertakings have been attended with great expense, and have subjected the States, whose enterprising spirit has begun and carried them on, to large debts and heavy taxation. The lands of the United States, being exempted from all taxation, of course bear no part of this burden. Looking to the United States, therefore, as a great landed proprietor, essentially benefited by these improvements, I have felt no difficulty in voting for the appropriation of parts of these lands, as a reasonable contribution by the United States to these general objects.

Most of the subjects to which I have referred are much less local, in their influence and importance, than they might seem. The breakwater in the Delaware, useful to Philadelphia, is useful also to all the ship-owners in the United States, and indeed to all interested in commerce, especially that great branch, the coastwise commerce. If the mouths of the Southern rivers be deepened and improved, the neighboring cities are benefited, but so also are the ships which visit them; and if the Mississippi and Ohio be rendered more safe for navigation, the great markets of consumption along their shores are the more readily and cheaply approached by the products of the factories and fisheries of New England.

It is my opinion, Mr. President, that the present government of the United States cannot be maintained but by administering it on principles as wide and broad as the country over which it extends. I mean, of course, no extension of the powers which it confers; but I speak of the spirit with which those powers should be exercised. If there be any doubts, whether so many republics, covering so vast a territory, can be long held together under this Constitution, there is no doubt in my judgment of the impossibility of so holding them together by any narrow, local, or selfish system of legislation. To render the Constitution perpetual (which God grant it may be), it is necessary that its benefits should be practically felt by all parts of the country, and all interests in the country. The East and the West, the North and the South, must all see their own welfare protected and advanced by it. While the eastern frontier is defended by fortifications, its harbors improved, and commerce protected by a naval force, it is right and just that the region beyond the Alleghanies should receive fair consideration and equal attention, in any object of public improvement, interesting to itself, and within the proper power of the government. These, Sir, are in brief the general views by which I have been governed on questions of this kind; and I trust they are such as this meeting does not disapprove.

I would not trespass further upon your attention, if I did not feel it my duty to say a few words on the condition of public affairs under another aspect. We are on the eve of a new election of President; and the manner in which the existing administration is attacked might lead a stranger to suppose that the chief magistrate had committed some flagrant offence against the country, had threatened to overturn its liberties, or establish a military usurpation. On a former occasion I have in this place expressed my opinion

of the principle upon which the opposition to the administration is founded, without any reference whatever to the person who stands as its apparent head, and who is intended by it to be placed in the chief executive chair. I think that principle exceedingly dangerous and alarming, inasmuch as it does not profess to found opposition to the government on the measures of government, but to rest it on other causes, and those mostly personal. There is a combination or association of persons holding the most opposite opinions, both on the constitutional powers of the government and on the leading measures of public concern, and uniting in little, or in nothing, except the will to dislodge power from the hands in which the country has placed it. There has been no leading measure of the government, with perhaps a single exception, which has not been strenuously maintained by many, or by some, of those who all coöperate, nevertheless, in pursuit of the object which I have mentioned. This is but one of many proofs that the opposition does not rest on the principle of disapprobation of the measures of government. Many other evidences of the same truth might be adduced easily. A remarkable one is, that, while one ground of objection to the administration is urged in one place, its precise opposite is pressed in another. Pennsylvania and South Carolina, for example, are not treated with the same reasons for a change of administration; but with flatly contradictory reasons. In one, the administration is represented as bent on a particular system oppressive to that State, and which must ultimately ruin it; and for that reason there ought to be a change. In the other, that system, instead of being ruinous, is represented as salutary, as necessary, as indispensable. But the administration is declared to be but half in earnest in supporting it, and for that reason there ought to be a change.

Reflecting men have always supposed, that, if there were a weak point in the Federal Constitution, it was in the provision for the exercise of the executive power. And this, perhaps, may be considered as rendered more delicate and difficult, by the great augmentation of the number of the States. We must expect that there will often be, as there was on the last election, several candidates for the Presidency. All but one, of course, must be disappointed; and if the friends of all such, however otherwise divided, are immediately to unite, and to make common cause against him who is elected, little is ever to be expected but embarrassment and confusion. The love of office will ere long triumph over the love of country, and party and faction usurp the place of wisdom and patriotism. If the contest for the

executive power is thus to be renewed every four years; if it is to be conducted as the present has been conducted; and if every election is to be immediately followed, as the last was followed, by a prompt union of all whose friends are not chosen against him who is, there is, in my judgment, danger, much danger, that this great experiment of confederated government may fail, and that even those of us who are not among the youngest may behold its catastrophe.

It cannot have escaped the notice of any gentleman present, that, in the course of the controversy, pains have been taken to affect the character and the success of the present chief magistrate, by exciting odium towards that part of the country in which he was born and to which he belongs. Sneers, contumely, reproach, every thing that gentlemen could say, and many things which gentlemen could not say, have been uttered against New England. I am sure, Sir, every true son of New England must receive such things, when they come from sources which ought to be considered respectable, with a feeling of just indignation; and when proceeding from elsewhere, with contempt. If there be one among ourselves who can be induced, by any motives, to join in this cry against New England, he disgraces the New England mother who bore him, the New England father who bred and nurtured him, and the New England atmosphere which first supplied respiration to those lungs, now so unworthily employed in uttering calumnies against his country. Persons not known till yesterday, and having little chance of being remembered beyond to-morrow, have affected to draw a distinction between the patriot States and the States of New England; assigning the last to the present President, and the rest to his rival. I do not wonder, Sir, at the indignation and scorn which I perceive the recital of this injustice produces here. Nothing else was to be expected. Faneuil Hall is not a place where one is expected to hear with indifference that New England is not to be counted among the patriot States. The patriot States! What State was it, Sir, that was patriotic when patriotism cost something? Where but in New England did the great drama of the Revolution open? Where, but on the soil of Massachusetts, was the first blood poured out in the cause of liberty and independence? Where, sooner than here, where earlier than within the walls which now surround us, was patriotism found, when to be patriotic was to endanger houses and homes, and wives and children, and to be ready also to pay for the reputation of patriotism by the sacrifice of blood and of life?

Not farther to refer to her Revolutionary merits, it may be truly said that New England did her part, and more than her part, in the establishment of the present government, and in giving effect to the measures and the policy of the first President. Where, Sir, did the measures of Washington find the most active friends and the firmest support? Where are the general principles of his policy most widely spread, and most deeply seated? If, in subsequent periods, different opinions have been held by different portions of her people, New England has, nevertheless, been always obedient to the laws, even when she most severely felt their pressure, and most conscientiously doubted or disbelieved their propriety. Every great and permanent institution of the country, intended for defence or for improvement, has met her support. And if we look to recent measures, on subjects highly interesting to the community, and especially some portions of it, we see proofs of the same steady and liberal policy. It may be said with entire truth, and it ought to be said, and ought to be known, that no one measure for internal improvement has been carried through Congress, or could have been carried, but by the aid of New England votes. It is for those most deeply interested in subjects of that sort to consider in season, how far the continuance of the same aid is necessary for the further prosecution of the same objects. From the interference of the general government in making roads and canals, New England has as little to hope or expect as any part of the country. She has hitherto supported them upon principle, and from a sincere disposition to extend the blessings and the beneficence of the government. And, Sir, I confidently believe that those most concerned in the success of these measures feel towards her respect and friendship. They feel that she has acted fairly and liberally, wholly uninfluenced by selfish or sinister motives. Those, therefore, who have seen, or thought they saw, an object to be attained by exciting dislike and odium towards New England, are not likely to find quite so favorable an audience as they have expected. It will not go for quite so much as wished, to the disadvantage of the President, that he is a native of Massachusetts. Nothing is wanting but that we ourselves should entertain a proper feeling on this subject, and act with a just regard to our own rights and our own duties. If I could collect around me the whole population of New England, or if I could cause my voice to be heard over all her green hills, or along every one of her pleasant streams, in the exercise of true filial affection, I would say to her, in the language of the great master of the maxims of life and conduct,

“This above all,—to thine own self be true,
And it must follow, as the night the day,
Thou canst not then be false to any man.”

Mr. President,—I have delayed you too long. I beg to repeat my thanks for the kindness which has been manifested towards me by my fellow-citizens, and to conclude by reciprocating their good wishes:—

The City of Boston. Prosperity to all her interests, and happiness to all her citizens.

FOOTNOTES

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The subject referred to is the tariff law of 1828. For a fuller statement of the considerations which influenced the vote of Mr. Webster on that subject, see his speech, in a subsequent volume of this collection, delivered in the Senate of the United States on the 9th of May, 1828.

[\[86\]](#)

Hon. Nathaniel Silsbee.

[\[87\]](#)

Hon. Benjamin Gorham.

THE BOSTON MECHANICS' INSTITUTION.

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I appear before you, Gentlemen, for the performance of a duty which is in so great a degree foreign from my habitual studies and pursuits, that it may be presumptuous in me to hope for a creditable execution of the task. But I have not allowed considerations of this kind to weigh against a strong and ardent desire to signify my approbation of the objects, and my conviction of the utility, of this institution; and to manifest my prompt attention to whatever others may suppose to be in my power to promote its respectability and to further its designs.

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The constitution of the association declares its precise object to be, “Mutual Instruction in the Sciences, as connected with the Mechanic Arts.”

The distinct purpose is to connect science more and more with art; to teach the established, and invent new, modes of combining skill with strength; to bring the power of the human understanding in aid of the physical powers of the human frame; to facilitate the coöperation of the mind with the hand; to promote convenience, lighten labor, and mitigate toil, by stretching the dominion of mind farther and farther over the elements of nature, and by making those elements themselves submit to human rule, follow human bidding, and work together for human happiness.

The visible and tangible creation into which we are introduced at our birth, is not, in all its parts, fixed and stationary. Motion or change of place, regular or occasional, belongs to all or most of the things which are around us. Animal life everywhere moves; the earth itself has its motion, and its complexities of motion; the ocean heaves and subsides; rivers run, lingering or rushing, to the sea; and the air which we breathe moves and acts with mighty power. Motion, thus pertaining to the physical objects which surround us, is the exhaustless fountain whence philosophy draws the means by which, in various degrees and endless forms, natural agencies and the tendencies of inert matter are brought to the succor and assistance of human strength. It is the object of mechanical contrivance to modify motion, to produce it in new forms, to direct it to new purposes, to multiply its uses, by its means to do better that which human strength could do

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without its aid, and to perform that, also, which such strength, unassisted by art, could not perform.

Motion itself is but the result of force; or, in other words, force is defined to be whatever tends to produce motion. The operation of forces, therefore, on bodies, is the broad field which is open for that philosophical examination, the results of which it is the business of mechanical contrivance to apply. The leading forces or sources of motion are, as is well known, the power of animals, gravity, heat, the winds, and water. There are various others of less power, or of more difficult application. Mechanical philosophy, therefore, may be said to be that science which instructs us in the knowledge of natural moving powers, animate or inanimate; in the manner of modifying those powers, and of increasing the intensity of some of them by artificial means, such as heat and electricity; and in applying the varieties of force and motion, thus derived from natural agencies, to the arts of life. This is the object of mechanical philosophy. None can doubt, certainly, the high importance of this sort of knowledge, or fail to see how suitable it is to the elevated rank and the dignity of reasoning beings. Man's grand distinction is his intellect, his mental capacity. It is this which renders him highly and peculiarly responsible to his Creator. It is on account of this, that the rule over other animals is established in his hands; and it is this, mainly, which enables him to exercise dominion over the powers of nature, and to subdue them to himself.

But it is true, also, that his own animal organization gives him superiority, and is among the most wonderful of the works of God on earth. It contributes to cause, as well as prove, his elevated rank in creation. His port is erect, his face toward heaven, and he is furnished with limbs which are not absolutely necessary to his support or locomotion, and which are at once powerful, flexible, capable of innumerable modes and varieties of action, and terminated by an instrument of wonderful, heavenly workmanship,—the human hand. This marvellous physical conformation gives man the power of acting with great effect upon external objects, in pursuance of the suggestions of his understanding, and of applying the results of his reasoning power to his own purposes. Without this particular formation, he would not be man, with whatever sagacity he might have been endowed. No bounteous grant of intellect, were it the pleasure of Heaven to make such grant, could raise any of the brute creation to an

equality with the human race. Were it bestowed on the leviathan, he must remain, nevertheless, in the element where alone he could maintain his physical existence. He would still be but the inelegant, misshapen inhabitant of the ocean, “wallowing unwieldy, enormous in his gait.” Were the elephant made to possess it, it would but teach him the deformity of his own structure, the unsightliness of his frame, though “the hugest of things,” his disability to act on external matter, and the degrading nature of his own physical wants, which lead him to the deserts, and give him for his favorite home the torrid plains of the tropics. It was placing the king of Babylon sufficiently out of the rank of human beings, though he carried all his reasoning faculties with him, when he was sent away to eat grass like an ox. And this may properly suggest to our consideration, what is undeniably true, that there is hardly a greater blessing conferred on man than his natural wants. If he had wanted no more than the beasts, who can say how much more than they he would have attained? Does he associate, does he cultivate, does he build, does he navigate? The original impulse to all these lies in his wants. It proceeds from the necessities of his condition, and from the efforts of unsatisfied desire. Every want, not of a low kind, physical as well as moral, which the human breast feels, and which brutes do not feel and cannot feel, raises man by so much in the scale of existence, and is a clear proof and a direct instance of the favor of God towards his so much favored human offspring. If man had been so made as to desire nothing, he would have wanted almost every thing worth possessing.

But doubtless the reasoning faculty, the mind, is the leading and characteristic attribute of the human race. By the exercise of this, man arrives at the knowledge of the properties of natural bodies. This is science, properly and emphatically so called. It is the science of pure mathematics; and in the high branches of this science lies the true sublime of human acquisition. If any attainment deserve that epithet, it is the knowledge, which, from the mensuration of the minutest dust of the balance, proceeds on the rising scale of material bodies, everywhere weighing, everywhere measuring, everywhere detecting and explaining the laws of force and motion, penetrating into the secret principles which hold the universe of God together, and balancing world against world, and system against system. When we seek to accompany those who pursue studies at once so high, so vast, and so exact; when we arrive at the discoveries of Newton, which pour in day on the works of God, as if a second *fiat* for light had

gone forth from his own mouth; when, further, we attempt to follow those who set out where Newton paused, making his goal their starting-place, and, proceeding with demonstration upon demonstration, and discovery upon discovery, bring new worlds and new systems of worlds within the limits of the known universe, failing to learn all only because all is infinite; however we say of man, in admiration of his physical structure, that “in form and moving he is express and admirable,” it is here, and here without irreverence, we may exclaim, “In apprehension how like a god!” The study of the pure mathematics will of course not be extensively pursued in an institution, which, like this, has a direct practical tendency and aim. But it is still to be remembered, that pure mathematics lie at the foundation of mechanical philosophy, and that it is ignorance only which can speak or think of that sublime science as useless research or barren speculation.

It has already been said, that the general and well-known agents usually regarded as the principal sources of mechanical powers are gravity, acting on solid bodies, the fall of water, which is but gravity acting on fluids, air, heat, and animal strength. For the useful direction and application of the first four of these, that is, of all of them which belong to inanimate nature, some intermediate apparatus or contrivance becomes necessary; and this apparatus, whatever its form, is a machine. A machine is an invention for the application of motion, either by changing the direction of the moving power, or by rendering a body in motion capable of communicating a motion greater or less than its own to other bodies, or by enabling it to overcome a power of greater intensity or force than its own. And it is usually said that every machine, however apparently complex, is capable of being resolved into some one or more of those single machines, of which, according to one mode of description, there are six, and according to another, three, called the mechanical powers. But because machinery, or all mechanical contrivance, is thus capable of resolution into a few elementary forms, it is not to be inferred that science, or art, or both together, though pressed with the utmost force of human genius, and cultivated by the last degree of human assiduity, will ever exhaust the combinations into which these elementary forms may be thrown. An indefinite, though not an infinite, reach of invention may be expected; but indefinite, also, if not infinite, are the possible combinations of elementary principles. The field, then, is vast and unbounded. We know not to what yet unthought of heights the power of man over the agencies of nature may be carried. We only know

that the last half-century has witnessed an amazingly accelerated progress in useful discoveries, and that, at the present moment, science and art are acting together with a new companionship, and with the most happy and striking results. The history of mechanical philosophy is, of itself, a very interesting subject, and will doubtless be treated in this place fully and methodically, by stated lecturers.

It is a part of the history of man, which, like that of his domestic habits and daily occupations, has been too seldom the subject of research; having been thrust aside by the more dazzling topics of war and political revolutions. We are not often conducted by historians within the houses or huts of our ancestors, as they were centuries ago, and made acquainted with their domestic utensils and domestic arrangements. We see too little both of the conveniences and inconveniences of their daily and ordinary life. There are, indeed, rich materials for interesting details on these particulars to be collected from the labors of Goguet and Beckmann, Henry and Turner; but still, a thorough and well-written history of those inventions in the mechanic arts which are now commonly known is a *desideratum* in literature.

Human sagacity, stimulated by human wants, seizes first on the nearest natural assistant. The power of his own arm is an early lesson among the studies of primitive man. This is animal strength; and from this he rises to the conception of employing, for his own use, the strength of other animals. A stone, impelled by the power of his arm, he finds will produce a greater effect than the arm itself; this is a species of mechanical power. The effect results from a combination of the moving force with the gravity of a heavy body. The limb of a tree is a rude, but powerful instrument; it is a lever. And the mechanical powers being all discovered, like other natural qualities, by induction (I use the word as Bacon used it) or experience, and not by any reasoning *a priori*, their progress has kept pace with the general civilization and education of nations. The history of mechanical philosophy, while it strongly illustrates in its general results the force of the human mind, exhibits in its details most interesting pictures of ingenuity struggling with the conception of new combinations, and of deep, intense, and powerful thought, stretched to its utmost to find out or deduce the general principle from the indications of particular facts. We are now so far advanced beyond the age when the principal leading, important mathematical discoveries

were made, and they have become so much matter of common knowledge, that it is not easy to feel their importance, or be justly sensible what an epoch in the history of science each constituted. The half-frantic exultation of Archimedes, when he had solved the problem respecting the crown of Hiero, was on an occasion and for a cause certainly well allowing very high joy. And so also was the duplication of the cube.

The altar of Apollo, at Athens, was a square block, or cube, and to double it, required the duplication of the cube. This was a process involving an unascertained mathematical principle. It was quite natural, therefore, that it should be a traditional story, that, by way of atoning for some affront to that god, the oracle commanded the Athenians to *double his altar*; an injunction, we know, which occupied the keen sagacity of the Greek geometers for more than half a century, before they were able to obey it. It is to the great honor, however, of this inimitable people, the Greeks, a people whose genius seems to have been equally fitted for the investigations of science and the works of imagination, that the immortal Euclid, centuries before our era, composed his Elements of Geometry; a work which, for two thousand years, has been, and still continues to be, a text-book for instruction in that science.

A history of mechanical philosophy, however, would not begin with Greece. There is a wonder beyond Greece. Higher up in the annals of mankind, nearer, far nearer, to the origin of our race, out of all reach of letters, beyond the sources of tradition, beyond all history, except what remains in the monuments of her own art, stands Egypt, the mother of nations! Egypt! Thebes! the Labyrinth! the Pyramids! Who shall explain the mysteries which these names suggest? The Pyramids! Who can inform us whether it was by mere numbers, and patience, and labor, aided perhaps by the simple lever, or if not, by what forgotten combination of powers, by what now unknown machines, mass was thus aggregated to mass, and quarry piled on quarry, till solid granite seemed to cover the earth and reach the skies?

The ancients discovered many things, but they left many things also to be discovered; and this, as a general truth, is what our posterity a thousand years hence will be able to say, doubtless, when we and our generation shall be recorded also among the ancients. For, indeed, God seems to have proposed his material universe as a standing, perpetual study to his intelligent creatures; where, ever learning, they can yet never learn all; and

if that material universe shall last till man shall have discovered all that is now unknown, but which by the progressive improvement of his faculties he is capable of knowing, it will remain through a duration beyond human measurement, and beyond human comprehension.

The ancients knew nothing of our present system of arithmetical notation; nothing of algebra, and, of course, nothing of the important application of algebra to geometry. They had not learned the use of logarithms, and were ignorant of fluxions. They had not attained to any just mode for the mensuration of the earth; a matter of great moment to astronomy, navigation, and other branches of useful knowledge. It is scarcely necessary to add, that they were ignorant of the great results which have followed the development of the principle of gravitation.

In the useful and practical arts, many inventions and contrivances, to the production of which the degree of knowledge possessed by the ancients would appear to us to have been adequate, and which seem quite obvious, are yet of late origin. The application of water, for example, to turn a mill, is a thing not known to have been accomplished at all in Greece, and is not supposed to have been attempted at Rome till in or near the age of Augustus. The production of the same effect by wind is a still later invention. It dates only in the seventh century of our era. The propulsion of the saw by any other power than that of the arm is treated as a novelty in England, so late as in the middle of the sixteenth century. The Bishop of Ely, at that time ambassador from the queen of England to the Pope, says, “he saw, at Lyons, a sawmill driven with an upright wheel, and the water that maketh it go is gathered whole into a narrow trough, which delivereth the same water to the wheels. This wheel hath a piece of timber put to the axletree end, like the handle of a *broch* (a hand-organ), and fastened to the end of the saw, which being turned with the force of water, hoisteth up and down the saw, that it continually eateth in, and the handle of the same is kept in a rigall of wood, from swerving. Also the timber lieth, as it were, upon a ladder, which is brought by little and little to the saw with another vice.”^[89] From this description of the primitive power-saw, it would seem that it was probably fast only at one end, and that the *broch* and rigall performed the part of the arm in the common use of the handsaw.

It must always have been a very considerable object for men to possess or obtain the power of raising water otherwise than by mere manual labor. Yet

nothing like the common suction-pump has been found among rude nations. It has arrived at its present state only by slow and cautious steps of improvement; and, indeed, in that present state, however obvious and unattractive, it is something of an abstruse and refined invention. It was unknown in China, until Europeans visited the “Celestial Empire”; and is still unknown in other parts of Asia, beyond the pale of European settlements or the reach of European communication. The Greeks and Romans are supposed to have been ignorant of it, in the early times of their history; and it is usually said to have come from Alexandria, where physical science was much cultivated by the Greek philosophers, under the patronage of the Ptolemies.

These few and scattered historical notices, Gentlemen, of important inventions, have been introduced only for the purpose of suggesting that there is much which is both curious and instructive in the history of mechanics; and that many things which to us, in our state of knowledge, seem so obvious as that we should think they would at once force themselves on men’s adoption, have, nevertheless, been accomplished slowly and by painful efforts.

But if the history of the progress of the mechanical arts be interesting, still more so, doubtless, would be the exhibition of their present state, and a full display of the extent to which they are now carried. This field is much too wide to be entered on this occasion. The briefest outline even would exceed its limits; and the whole subject will regularly fall to hands much more able to sustain it. The slightest glance, however, must convince us that mechanical power and mechanical skill, as they are now exhibited in Europe and America, mark an epoch in human history worthy of all admiration. Machinery is made to perform what has formerly been the toil of human hands, to an extent that astonishes the most sanguine, with a degree of power to which no number of human arms is equal, and with such precision and exactness as almost to suggest the notion of reason and intelligence in the machines themselves. Every natural agent is put unrelentingly to the task. The winds work, the waters work, the elasticity of metals works; gravity is solicited into a thousand new forms of action; levers are multiplied upon levers; wheels revolve on the peripheries of other wheels; the saw and the plane are tortured into an accommodation to new uses, and, last of all, with inimitable power, and “with whirlwind sound,”

comes the potent agency of steam. In comparison with the past, what centuries of improvement has this single agent comprised, in the short compass of fifty years! Everywhere practicable, everywhere efficient, it has an arm a thousand times stronger than that of Hercules, and to which human ingenuity is capable of fitting a thousand times as many hands as belonged to Briareus. Steam is found in triumphant operation on the seas; and under the influence of its strong propulsion, the gallant ship,

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“Against the wind, against the tide,
Still *steadies*, with an upright keel.”

It is on the rivers, and the boatman may repose on his oars; it is on highways, and begins to exert itself along the courses of land conveyance; it is at the bottom of mines, a thousand feet below the earth's surface; it is in the mill, and in the workshops of the trades. It rows, it pumps, it excavates, it carries, it draws, it lifts, it hammers, it spins, it weaves, it prints. It seems to say to men, at least to the class of artisans, “Leave off your manual labor, give over your bodily toil; bestow but your skill and reason to the directing of my power, and I will bear the toil,—with no muscle to grow weary, no nerve to relax, no breast to feel faintness.” What further improvements may still be made in the use of this astonishing power, it is impossible to know, and it were vain to conjecture. What we do know is, that it has most essentially altered the face of affairs, and that no visible limit yet appears, beyond which its progress is seen to be impossible. If its power were now to be annihilated, if we were to miss it on the water and in the mills, it would seem as if we were going back to rude ages.

This society, then, Gentlemen, is instituted for the purpose of further and further applying science to the arts, at a time when there is much of science to be applied. Philosophy and the mathematics have attained to high degrees, and still stretch their wings like the eagle. Chemistry, at the same time, acting in another direction, has made equally important discoveries, capable of a direct application to the purposes of life. Here, again, within so short a period as the lives of some of us, almost all that is known has been learned. And while there is this aggregate of science, already vast, but still rapidly increasing, offering itself to the ingenuity of mechanical contrivance, there is a corresponding demand for every work and invention of art, produced by the wants of a rich, an enterprising, and an elegant age.

Associations like this, therefore, have materials to work upon, ends to work for, and encouragement to work.

It may not be improper to suggest, that not only are the general circumstances of the age favorable to such institutions as this, but that there seems a high degree of propriety that one or more should be established here, in the metropolis of New England. In no other part of the country is there so great a concentration of mechanical operations. Events have given to New England the lead in the great business of domestic manufactures. Her thickened population, her energetic free labor, her abundant falls of water, and various other causes, have led her citizens to engage, with great boldness, in extensive manufactures. The success of their establishments depends, of course, in no small degree, upon the perfection to which machinery may be carried. Improvement in this, therefore, instead of being left to chance or accident, is justly regarded as a fit subject of assiduous study. The attention of our community is also, at the present moment, strongly attracted towards the construction of canals, railways, dry docks, and other important public works. Civil engineering is becoming a profession, offering honorable support and creditable distinction to such as may qualify themselves to discharge its duties. Another interesting fact is before us. New taste and a new excitement are evidently springing up in our vicinity in regard to an art, which, as it unites in a singular degree utility and beauty, affords inviting encouragements to genius and skill. I mean Architecture. Architecture is military, naval, sacred, civil, or domestic. Naval architecture, certainly, is of the highest importance to a commercial and navigating people to say nothing of its intimate and essential connection with the means of national defence. This science should not be regarded as having already reached its utmost perfection. It seems to have been for some time in a course of rapid advancement. The building, the rigging, the navigating of ships, have, within the knowledge of every one, been subjects of great improvement within the last fifteen years. And where, rather than in New England, may still further improvements be looked for? Where is ship-building either a greater business, or pursued with more skill and eagerness?

In civil, sacred, and domestic architecture, present appearances authorize the strongest hopes of improvement. These hopes rest, among other things, on unambiguous indications of the growing prevalence of a just taste. The

principles of architecture are founded in nature, or good sense, as much as the principles of epic poetry. This art constitutes a beautiful medium between what belongs to mere fancy and what belongs entirely to the exact sciences. In its forms and modifications it admits of infinite variation, giving broad room for invention and genius; while, in its general principles, it is founded on that which long experience and the concurrent judgment of ages have ascertained to be generally pleasing. Certain relations of parts to parts have been satisfactory to all the cultivated generations of men. These relations constitute what is called *proportion*, and this is the great basis of architectural art. This established proportion is not to be *followed* merely because it is ancient, but because its use, and the pleasure which it has been found capable of giving to the mind, through the eye, in ancient times, and modern times, and all civilized times, prove that its principles are well founded and just; in the same manner that the Iliad is proved, by the consent of all ages, to be a good poem.

Architecture, I have said, is an art that unites in a singular manner the useful and the beautiful. It is not to be inferred from this that every thing in architecture is beautiful, or is to be so esteemed, in exact proportion to its apparent utility. No more is meant, than that nothing which evidently thwarts utility can or ought to be accounted beautiful; because, in every work of art, the design is to be regarded, and what defeats that design cannot be considered as well done. The French rhetoricians have a maxim, that, in literary composition, “nothing is beautiful which is not true.” They do not intend to say, that strict and literal truth is alone beautiful in poetry or oratory; but they mean, that that which grossly offends against probability is not in good taste in either. The same relation subsists between beauty and utility in architecture as between truth and imagination in poetry. Utility is not to be obviously sacrificed to beauty, in the one case; truth and probability are not to be outraged for the cause of fiction and fancy, in the other. In the severer styles of architecture, beauty and utility approach so as to be almost identical. Where utility is more especially the main design, the proportions which produce it raise the sense or feeling of beauty, by a sort of reflection or deduction of the mind. It is said that ancient Rome had perhaps no finer specimens of the classic Doric than the sewers which ran under her streets, and which were of course always to be covered from human observation: so true is it, that cultivated taste is always pleased with justness of proportion; and that design, seen to be

accomplished, gives pleasure. The discovery and fast-increasing use of a noble material, found in vast abundance nearer to our city than the Pentelican quarries to Athens, may well awaken, as they do, new attention to architectural improvement. If this material be not entirely well suited to the elegant Ionic or the rich Corinthian, it is yet fitted, beyond marble, beyond perhaps almost any other material, for the Doric, of which the appropriate character is strength, and for the Gothic, of which the appropriate character is grandeur.

It is not more than justice, perhaps, to our ancestors, to call the Gothic the English classic architecture; for in England, probably, are its most distinguished specimens. As its leading characteristic is grandeur, its main use would seem to be sacred. It had its origin, indeed, in ecclesiastical architecture. Its evident design was to surpass the ancient orders by the size of the structure and its far greater heights; to excite perceptions of beauty by the branching traceries and the gorgeous tabernacles within; and to inspire religious awe and reverence by the lofty pointed arches, the flying buttresses, the spires, and the pinnacles, springing from beneath, and stretching upwards towards the heavens with the prayers of the worshippers. Architectural beauty having always a direct reference to utility, edifices, whether civil or sacred, must of course undergo different changes, in different places, on account of climate, and in different ages, on account of the different states of other arts or different notions of convenience. The hypethral temple, for example, or temple without a roof, is not to be thought of in our latitude; and the use of glass, a thing not now to be dispensed with, is also to be accommodated, as well as it may be, to the architectural structure. These necessary variations, and many more admissible ones, give room for improvements to an indefinite extent, without departing from the principles of true taste. May we not hope, then, to see our own city celebrated as the city of architectural excellence? May we not hope to see our native granite reposing in the ever-during strength of the Doric, or springing up in the grand and lofty Gothic, in forms which beauty and utility, the eye and the judgment, taste and devotion, shall unite to approve and to admire? But while we regard sacred and civil architecture as highly important, let us not forget that other branch, so essential to personal comfort and happiness,—domestic architecture or common house-building. In ancient times, in all governments, and under despotic governments in all times, the convenience or gratification of the monarch,

the government, or the public has been allowed too often to put aside considerations of personal and individual happiness. With us, different ideas happily prevail. With us, it is not the public, or the government, in its corporate character, that is the only object of regard. The public happiness is to be the aggregate of the happiness of individuals. Our system begins with the individual man. It begins with him when he leaves the cradle; and it proposes to instruct him in knowledge and in morals, to prepare him for his state of manhood; on his arrival at that state, to invest him with political rights, to protect him in his property and pursuits, and in his family and social connections; and thus to enable him to enjoy, as an individual moral and rational being, what belongs to a moral and rational being. For the same reason, the arts are to be promoted for their general utility, as they affect the personal happiness and well-being of the individuals who compose the community. It would be adverse to the whole spirit of our system, that we should have gorgeous and expensive public buildings, if individuals were at the same time to live in houses of mud. Our public edifices are to be reared by the surplus of wealth and the savings of labor, after the necessities and comforts of individuals are provided for; and not, like the Pyramids, by the unremitted toil of thousands of half-starved slaves. Domestic architecture, therefore, as connected with individual comfort and happiness, is to hold a first place in the esteem of our artists. Let our citizens have houses cheap, but comfortable; not gaudy, but in good taste; not judged by the portion of earth they cover, but by their symmetry, their fitness for use, and their durability.

Without further reference to particular arts with which the objects of this society have a close connection, it may yet be added, generally, that this is a period of great activity, of industry, of enterprise in the various walks of life. It is a period, too, of growing wealth and increasing prosperity. It is a time when men are fast multiplying, but when means are increasing still faster than men. An auspicious moment, then, it is, full of motive and encouragement, for the vigorous prosecution of those inquiries which have for their object the discovery of farther and farther means of uniting the results of scientific research to the arts and business of life.

FOOTNOTES

Introductory Lecture, read at this Opening of the Course for the Season, on the 12th of November, 1828.

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See Beckmann's Inventions, Vol. I. p. 373, where the passage is quoted from the Miscellaneous State Papers.

PUBLIC DINNER AT NEW YORK.

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INTRODUCTORY NOTE.

In February, 1831, several distinguished gentlemen of the city of New York, in behalf of themselves and a large number of other citizens, invited Mr. Webster to a public dinner, as a mark of their respect for the value and success of his efforts, in the preceding session of Congress, in defence of the Constitution of the United States. His speech in reply to Mr. Hayne (contained in a subsequent volume of this collection), which, by that time, had been circulated and read through the country to a greater extent than any speech ever before delivered in Congress, was the particular effort which led to this invitation.

The dinner took place at the City Hotel, on the 10th of March, and was attended by a very large assembly.

Chancellor Kent presided, and, in proposing to the company the health of their guest, made the following remarks:—

“New England has been long fruitful in great men, the necessary consequence of the admirable discipline of her institutions—and we are this day honored with the presence of one of those cherished objects of her attachment and pride, who has an undoubted and peculiar title to our regard. It is a plain truth, that he who defends the constitution of his country by his wisdom in council is entitled to share her gratitude with those who protect it by valor in the field. Peace has its victories as well as war. We all recollect a late memorable occasion, when the exalted talents and enlightened patriotism of the gentleman to whom I have alluded were exerted in the support of our national Union and the sound interpretation of its charter.

“If there be any one political precept preëminent above all others and acknowledged by all, it is that which dictates the absolute necessity of a union of the States under one government, and that government clothed with those attributes and powers with which the existing Constitution has invested it. We are indebted, under Providence, to the operation and influence of the powers of that Constitution for our national honor abroad and for

unexampled prosperity at home. Its future stability depends upon the firm support and due exercise of its legitimate powers in all their branches. A tendency to disunion, to anarchy among the members rather than to tyranny in the head, has been heretofore the melancholy fate of all the federal governments of ancient and modern Europe. Our Union and national Constitution were formed, as we have hitherto been led to believe, under better auspices and with improved wisdom. But there was a deadly principle of disease inherent in the system. The assumption by any member of the Union of the right to question and resist, or annul, as its own judgment should dictate, either the laws of Congress, or the treaties, or the decisions of the federal courts, or the mandates of the executive power, duly made and promulgated as the Constitution prescribes, was a most dangerous assumption of power, leading to collision and the destruction of the system. And if, contrary to all our expectations, we should hereafter fail in the grand experiment of a confederate government extending over some of the fairest portions of this continent, and destined to act, at the same time, with efficiency and harmony, we should most grievously disappoint the hopes of mankind, and blast for ever the fruits of the Revolution.

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“But, happily for us, the refutation of such dangerous pretensions, on the occasion referred to, was signal and complete. The false images and delusive theories which had perplexed the thoughts and disturbed the judgments of men, were then dissipated in like manner as spectres disappear at the rising of the sun. The inestimable value of the Union, and the true principles of the Constitution, were explained by clear and accurate reasonings, and enforced by pathetic and eloquent illustrations. The result was the more auspicious, as the heretical doctrines which were then fairly reasoned down had been advanced by a very respectable portion of the Union, and urged on the floor of the Senate by the polished mind, manly zeal, and honored name of a distinguished member from the South.

“The consequences of that discussion have been extremely beneficial. It turned the attention of the public to the great doctrines of national rights and national union. Constitutional law ceased to remain wrapped up in the breasts, and taught only by the responses, of the living oracles of the law. Socrates was said to have drawn down philosophy from the skies, and scattered it among the schools. It may with equal truth be said that constitutional law, by means of those senatorial discussions and the master genius that guided them, was rescued from the archives of our tribunals and the libraries of lawyers, and placed under the eye, and submitted to the judgment, of the American people. *Their verdict is with us, and from it their lies no appeal.*”

As soon as the immense cheering and acclamations with which this address and toast were received had subsided, Mr. Webster rose and addressed the company as follows.

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PUBLIC DINNER AT NEW YORK.

I owe the honor of this occasion, Gentlemen, to your patriotic and affectionate attachment to the Constitution of our country. For an effort,

well intended, however otherwise of unpretending character, made in the discharge of public duty, and designed to maintain the Constitution and vindicate its just powers, you have been pleased to tender me this token of your respect. It would be idle affectation to deny that it gives me singular gratification. Every public man must naturally desire the approbation of his fellow-citizens; and though it may be supposed that I should be anxious, in the first place, not to disappoint the expectations of those whose immediate representative I am, it is not possible but that I should feel, nevertheless, the high value of such a mark of esteem as is here offered. But, Gentlemen, I am conscious that the main purpose of this occasion is higher than mere manifestation of personal regard. It is to evince your devotion to the Constitution, your sense of its transcendent value, and your just alarm at whatever threatens to weaken its proper authority, or endanger its existence.

Gentlemen, this could hardly be otherwise. It would be strange, indeed, if the members of this vast commercial community should not be first and foremost to rally for the Constitution, whenever opinions and doctrines are advanced hostile to its principles. Where sooner than here, where louder than here, may we expect a patriotic voice to be raised, when the union of the States is threatened? In this great emporium, at this central point of the united commerce of the United States, of all places, we may expect the warmest, the most determined and universal feeling of attachment to the national government. Gentlemen, no one can estimate more highly than I do the natural advantages of your city. No one entertains a higher opinion than myself, also, of that spirit of wise and liberal policy, which has actuated the government of your own great State in the accomplishment of high objects, important to the growth and prosperity both of the State and the city. But all these local advantages, and all this enlightened state policy, could never have made your city what it now is, without the aid and protection of a general government, extending over all the States, and establishing for all a common and uniform system of commercial regulation. Without national character, without public credit, without systematic finance, without uniformity of commercial laws, all other advantages possessed by this city would have decayed and perished, like unripe fruit. A general government was, for years before it was instituted, the great object of desire to the inhabitants of this city. New York, at a very early day, was conscious of her local advantages for commerce; she saw her destiny, and was eager to embrace it; but nothing else than a general government could make free her

path before her, and set her forward on her brilliant career. She early saw all this, and to the accomplishment of this great and indispensable object she bent every faculty, and exerted every effort. She was not mistaken. She formed no false judgment. At the moment of the adoption of the Constitution, New York was the capital of one State, and contained thirty-two or three thousand people. It now contains more than two hundred thousand people, and is justly regarded as the commercial capital, not only of all the United States, but of the whole continent also, from the pole to the South Sea. Every page of her history, for the last forty years, bears high and irresistible testimony to the benefits and blessings of the general government. Her astonishing growth is referred to, and quoted, all the world over, as one of the most striking proofs of the effects of our Federal Union. To suppose her now to be easy and indifferent, when notions are advanced tending to its dissolution, would be to suppose her equally forgetful of the past and blind to the present, alike ignorant of her own history and her own interest, metamorphosed, from all that she has been, into a being tired of its prosperity, sick of its own growth and greatness, and infatuated for its own destruction. Every blow aimed at the union of the States strikes on the tenderest nerve of her interest and her happiness. To bring the Union into debate is to bring her own future prosperity into debate also. To speak of arresting the laws of the Union, of interposing State power in matters of commerce and revenue, of weakening the full and just authority of the general government, would be, in regard to this city, but another mode of speaking of commercial ruin, of abandoned wharfs, of vacated houses, of diminished and dispersing population, of bankrupt merchants, of mechanics without employment, and laborers without bread. The growth of this city and the Constitution of the United States are coevals and contemporaries. They began together, they have flourished together, and if rashness and folly destroy one, the other will follow it to the tomb.

Gentlemen, it is true, indeed, that the growth of this city is extraordinary, and almost unexampled. It is now, I believe, sixteen or seventeen years since I first saw it. Within that comparatively short period, it has added to its number three times the whole amount of its population when the Constitution was adopted. Of all things having power to check this prosperity, of all things potent to blight and blast it, of all things capable of compelling this city to recede as fast as she has advanced, a disturbed government, an enfeebled public authority, a broken or a weakened union of

the States, would be most efficacious. This would be cause efficient enough. Every thing else, in the common fortune of communities, she may hope to resist or to prevent; but this would be fatal as the arrow of death.

Gentlemen, you have personal recollections and associations, connected with the establishment and adoption of the Constitution, which are necessarily called up on an occasion like this. It is impossible to forget the prominent agency exercised by eminent citizens of your own, in regard to that great measure. Those great men are now recorded among the illustrious dead; but they have left names never to be forgotten, and never to be remembered without respect and veneration. Least of all can they be forgotten by you, when assembled here for the purpose of signifying your attachment to the Constitution, and your sense of its inestimable importance to the happiness of the people.

I should do violence to my own feelings, Gentlemen, I think I should offend yours, if I omitted respectful mention of distinguished names yet fresh in your recollections. How can I stand here, to speak of the Constitution of the United States, of the wisdom of its provisions, of the difficulties attending its adoption, of the evils from which it rescued the country, and of the prosperity and power to which it has raised it, and yet pay no tribute to those who were highly instrumental in accomplishing the work? While we are here to rejoice that it yet stands firm and strong, while we congratulate one another that we live under its benign influence, and cherish hopes of its long duration, we cannot forget who they were that, in the day of our national infancy, in the times of despondency and despair, mainly assisted to work out our deliverance. I should feel that I was unfaithful to the strong recollections which the occasion presses upon us, that I was not true to gratitude, not true to patriotism, not true to the living or the dead, not true to your feelings or my own, if I should forbear to make mention of ALEXANDER HAMILTON.

Coming from the military service of the country yet a youth, but with knowledge and maturity, even in civil affairs, far beyond his years, he made this city the place of his adoption; and he gave the whole powers of his mind to the contemplation of the weak and distracted condition of the country. Daily increasing in acquaintance and confidence with the people of New York, he saw, what they also saw, the absolute necessity of some closer bond of union for the States. This was the great object of desire. He

never appears to have lost sight of it, but was found in the lead whenever any thing was to be attempted for its accomplishment One experiment after another, as is well known, was tried, and all failed. The States were urgently called on to confer such further powers on the old Congress as would enable it to redeem the public faith, or to adopt, themselves, some general and common principle of commercial regulation. But the States had not agreed, and were not likely to agree. In this posture of affairs, so full of public difficulty and public distress, commissioners from five or six of the States met, on the request of Virginia, at Annapolis, in September, 1786. The precise object of their appointment was to take into consideration the trade of the United States; to examine the relative situations and trade of the several States; and to consider how far a uniform system of commercial regulations was necessary to their common interest and permanent harmony. Mr. Hamilton was one of these commissioners; and I have understood, though I cannot assert the fact, that their report was drawn by him. His associate from this State was the venerable Judge Benson, who has lived long, and still lives, to see the happy results of the counsels which originated in this meeting. Of its members, he and Mr. Madison are, I believe, now the only survivors. These commissioners recommended, what took place the next year, a general Convention of all the States, to take into serious deliberation the condition of the country, and devise such provisions as should render the constitution of the federal government adequate to the exigencies of the Union. I need not remind you, that of this Convention Mr. Hamilton was an active and efficient member. The Constitution was framed, and submitted to the country. And then another great work was to be undertaken. The Constitution would naturally find, and did find, enemies and opposers. Objections to it were numerous, and powerful, and spirited. They were to be answered; and they were effectually answered. The writers of the numbers of the Federalist, Mr. Hamilton, Mr. Madison, and Mr. Jay, so greatly distinguished themselves in their discussions of the Constitution, that those numbers are generally received as important commentaries on the text, and accurate expositions, in general, of its objects and purposes. Those papers were all written and published in this city. Mr. Hamilton was elected one of the distinguished delegation from the city to the State Convention at Poughkeepsie, called to ratify the new Constitution. Its debates are published. Mr. Hamilton appears to have exerted, on this occasion, to the utmost, every power and faculty of his mind.

The whole question was likely to depend on the decision of New York. He felt the full importance of the crisis; and the reports of his speeches, imperfect as they probably are, are yet lasting monuments to his genius and patriotism. He saw at last his hopes fulfilled; he saw the Constitution adopted, and the government under it established and organized. The discerning eye of Washington immediately called him to that post, which was far the most important in the administration of the new system. He was made Secretary of the Treasury; and how he fulfilled the duties of such a place, at such a time, the whole country perceived with delight and the whole world saw with admiration. He smote the rock of the national resources, and abundant streams of revenue gushed forth. He touched the dead corpse of the Public Credit, and it sprung upon its feet. The fabled birth of Minerva, from the brain of Jove, was hardly more sudden or more perfect than the financial system of the United States, as it burst forth from the conceptions of ALEXANDER HAMILTON.

Your recollections, Gentlemen, your respect, and your affections, all conspire to bring before you, at such a time as this, another great man, now too numbered with the dead. I mean the pure, the disinterested, the patriotic JOHN JAY. His character is a brilliant jewel in the sacred treasures of national reputation. Leaving his profession at an early period, yet not before he had singularly distinguished himself in it, his whole life, from the commencement of the Revolution until his final retirement, was a life of public service. A member of the first Congress, he was the author of that political paper which is generally acknowledged to stand first among the incomparable productions of that body;^[90] productions which called forth that decisive strain of commendation from the great Lord Chatham, in which he pronounced them not inferior to the finest productions of the master states of the world. Mr. Jay had been abroad, and he had also been long intrusted with the difficult duties of our foreign correspondence at home. He had seen and felt, in the fullest measure and to the greatest possible extent, the difficulty of conducting our foreign affairs honorably and usefully, without a stronger and more perfect domestic union. Though not a member of the Convention which framed the Constitution, he was yet present while it was in session, and looked anxiously for its result. By the choice of this city, he had a seat in the State Convention, and took an active and zealous part for the adoption of the Constitution. On the organization of the new government, he was selected by Washington to be the first Chief

Justice of the Supreme Court of the United States; and surely the high and most responsible duties of that station could not have been trusted to abler or safer hands. It is the duty of that tribunal, one of equal importance and delicacy, to decide constitutional questions, occasionally arising on State laws. The general learning and ability, and especially the prudence, the mildness, and the firmness of his character, eminently fitted Mr. Jay to be the head of such a court. When the spotless ermine of the judicial robe fell on John Jay, it touched nothing less spotless than itself.

These eminent men, Gentlemen, the contemporaries of some of you, known to most, and revered by all, were so conspicuous in the framing and adopting of the Constitution, and called so early to important stations under it, that a tribute, better, indeed, than I have given, or am able to give, seemed due to them from us, on this occasion.

There was yet another, of whom mention is to be made. In the Revolutionary history of the country, the name of CHANCELLOR LIVINGSTON became early prominent. He was a member of that Congress which declared Independence; and a member, too, of the committee which drew and reported the immortal Declaration. At the period of the adoption of the Constitution, he was its firm friend and able advocate. He was a member of the State Convention, being one of that list of distinguished and gifted men who represented this city in that body; and he threw the whole weight of his talents and influence into the doubtful scale of the Constitution.

Gentlemen, as connected with the Constitution, you have also local recollections which must bind it still closer to your attachment and affection. It commenced its being and its blessings here. It was in this city, in the midst of friends, anxious, hopeful, and devoted, that the new government started in its course. To us, Gentlemen, who are younger, it has come down by tradition; but some around me are old enough to have witnessed, and did witness, the interesting scene of the first inauguration. They remember what voices of gratified patriotism, what shouts of enthusiastic hope, what acclamations rent the air, how many eyes were suffused with tears of joy, how cordially each man pressed the hand of him who was next to him, when, standing in the open air, in the centre of the city, in the view of assembled thousands, the first President of the United States was heard solemnly to pronounce the words of his official oath, repeating them from the lips of Chancellor Livingston. You then thought,

Gentlemen, that the great work of the Revolution was accomplished. You then felt that you had a government; that the United States were then, indeed, united. Every benignant star seemed to shed its selectest influence on that auspicious hour. Here were heroes of the Revolution; here were sages of the Convention; here were minds, disciplined and schooled in all the various fortunes of the country, acting now in several relations, but all coöperating to the same great end, the successful administration of the new and untried Constitution. And he,—how shall I speak of him?—he was at the head, who was already first in war, who was already first in the hearts of his countrymen, and who was now shown also, by the unanimous suffrage of the country, to be first in peace.

Gentlemen, how gloriously have the hopes then indulged been fulfilled! Whose expectation was then so sanguine, I may almost ask, whose imagination then so extravagant, as to run forward, and contemplate as probable, the one half of what has been accomplished in forty years? Who among you can go back to 1789, and see what this city, and this country, too, then were; and, beholding what they now are, can be ready to consent that the Constitution of the United States shall be weakened,—dishonored,—*nullified*?

Gentlemen, before I leave these pleasant recollections, I feel it an irresistible impulse of duty to pay a tribute of respect to another distinguished person, not, indeed, a fellow-citizen of your own, but associated with those I have already mentioned in important labors, and an early and indefatigable friend and advocate in the great cause of the Constitution. I refer to MR. MADISON. I am aware, Gentlemen, that a tribute of regard from me to him is of little importance; but if it shall receive your approbation and sanction, it will become of value. Mr. Madison, thanks to a kind Providence, is yet among the living, and there is certainly no other individual living, to whom the country is so much indebted for the blessings of the Constitution. He was one of the commissioners who met at Annapolis, in 1786, to which meeting I have already referred, and which, to the great credit of Virginia, had its origin in a proceeding of that State. He was a member of the Convention of 1787, and of that of Virginia in the following year. He was thus intimately acquainted with the whole progress of the formation of the Constitution, from its very first step to its final adoption. If ever man had the means of understanding a written instrument,

Mr. Madison has the means of understanding the Constitution. If it be possible to know what was designed by it, he can tell us. It was in this city, that, in conjunction with Mr. Hamilton and Mr. Jay, he wrote the numbers of the Federalist; and it was in this city that he commenced his brilliant career under the new Constitution, having been elected into the House of Representatives of the first Congress. The recorded votes and debates of those times show his active and efficient agency in every important measure of that Congress. The necessary organization of the government, the arrangement of the departments, and especially the paramount subject of revenue, engaged his attention, and divided his labors.

The legislative history of the first two or three years of the government is full of instruction. It presents, in striking light, the evils intended to be remedied by the Constitution, and the provisions which were deemed essential to the remedy of those evils. It exhibits the country, in the moment of its change from a weak and ill-defined confederacy of States, into a general, efficient, but still restrained and limited government. It shows the first working of our peculiar system, moved, as it then was, by master hands.

Gentlemen, for one, I confess I like to dwell on this part of our history. It is good for us to be here. It is good for us to study the situation of the country at this period, to survey its difficulties, to look at the conduct of its public men, to see how they struggled with obstacles, real and formidable, and how gloriously they brought the Union out of its state of depression and distress. Truly, Gentlemen, these founders and fathers of the Constitution were great men, and thoroughly furnished for every good work. All that reading and learning could do; all that talent and intelligence could do; and, what perhaps is still more, all that long experience in difficult and troubled times and a deep and intimate practical knowledge of the condition of the country could do,—conspired to fit them for the great business of forming a general, but limited government, embracing common objects, extending over all the States, and yet touching the power of the States no further than those common objects require. I confess I love to linger around these original fountains, and to drink deep of their waters. I love to imbibe, in as full measure as I may, the spirit of those who laid the foundations of the government, and so wisely and skilfully balanced and adjusted its bearings and proportions.

Having been afterwards, for eight years, Secretary of State, and as long President, Mr. Madison has had an experience in the affairs of the Constitution, certainly second to no man. More than any other man living, and perhaps more than any other who has lived, his whole public life has been incorporated, as it were, into the Constitution; in the original conception and project of attempting to form it, in its actual framing, in explaining and recommending it, by speaking and writing, in assisting at the first organization of the government under it, and in a long administration of its executive powers,—in these various ways he has lived near the Constitution, and with the power of imbibing its true spirit, and inhaling its very breath, from its first pulsation of life. Again, therefore, I ask, If he cannot tell us what the Constitution is, and what it means, who can? He had retired with the respect and regard of the community, and might naturally be supposed not willing to interfere again in matters of political concern. He has, nevertheless, not withholden his opinions on the vital question discussed on that occasion, which has caused this meeting. He has stated, with an accuracy almost peculiar to himself, and so stated as, in my opinion, to place almost beyond further controversy, the true doctrines of the Constitution. He has stated, not notions too loose and irregular to be called even a theory, not ideas struck out by the feeling of present inconvenience or supposed mal-administration, not suggestions of expediency, or evasions of fair and straightforward construction, but elementary principles, clear and sound distinctions, and indisputable truths. I am sure, Gentlemen, that I speak your sentiments, as well as my own, when I say, that, for making public so clearly and distinctly as he has done his own opinions on these vital questions of constitutional law, Mr. Madison has founded a new and strong claim on the gratitude of a grateful country. You will think, with me, that, at his advanced age, and in the enjoyment of general respect and approbation for a long career of public services, it was an act of distinguished patriotism, when he saw notions promulgated and maintained which he deemed unsound and dangerous, not to hesitate to come forward and to place the weight of his own opinion in what he deemed the right scale, come what come might. I am sure, Gentlemen, it cannot be doubted,—the manifestation is clear,—that the country feels deeply the force of this new obligation.^[91]

Gentlemen, what I have said of the benefits of the Constitution to your city might be said, with little change, in respect to every other part of the

country. Its benefits are not exclusive. What has it left undone, which any government could do, for the whole country? In what condition has it placed us? Where do we now stand? Are we elevated, or degraded, by its operation? What is our condition under its influence, at the very moment when some talk of arresting its power and breaking its unity? Do we not feel ourselves on an eminence? Do we not challenge the respect of the whole world? What has placed us thus high? What has given us this just pride? What else is it, but the unrestrained and free operation of that same Federal Constitution, which it has been proposed now to hamper, and manacle, and nullify? Who is there among us, that, should he find himself on any spot of the earth where human beings exist, and where the existence of other nations is known, would not be proud to say, I am an American? I am a countryman of Washington? I am a citizen of that republic, which, although it has suddenly sprung up, yet there are none on the globe who have ears to hear, and have not heard of it; who have eyes to see, and have not read of it; who know any thing, and yet do not know of its existence and its glory? And, Gentlemen, let me now reverse the picture. Let me ask, who there is among us, if he were to be found to-morrow in one of the civilized countries of Europe, and were there to learn that this goodly form of government had been overthrown, that the United States were no longer united, that a death-blow had been struck upon their bond of union, that they themselves had destroyed their chief good and their chief honor,—who is there whose heart would not sink within him? Who is there who would not cover his face for very shame?

At this very moment, Gentlemen, our country is a general refuge for the distressed and the persecuted of other nations. Whoever is in affliction from political occurrences in his own country looks here for shelter. Whether he be republican, flying from the oppression of thrones, or whether he be monarch or monarchist, flying from thrones that crumble and fall under or around him, he feels equal assurance, that, if he get foothold on our soil, his person will be safe, and his rights will be respected.

And who will venture to say, that, in any government now existing in the world, there is greater security for persons or property than in that of the United States? We have tried these popular institutions in times of great excitement and commotion, and they have stood, substantially, firm and steady, while the fountains of the great political deep have been elsewhere

broken up; while thrones, resting on ages of prescription, have tottered and fallen; and while, in other countries, the earthquake of unrestrained popular commotion has swallowed up all law, and all liberty, and all right together. Our government has been tried in peace, and it has been tried in war, and has proved itself fit for both. It has been assailed from without, and it has successfully resisted the shock; it has been disturbed within, and it has effectually quieted the disturbance. It can stand trial, it can stand assault, it can stand adversity, it can stand every thing, but the marring of its own beauty, and the weakening of its own strength. It can stand every thing but the effects of our own rashness and our own folly. It can stand every thing but disorganization, disunion, and nullification.

It is a striking fact, and as true as it is striking, that at this very moment, among all the principal civilized states of the world, *that* government is most secure against the danger of popular commotion which is itself entirely popular. It seems, indeed, that the submission of every thing to the public will, under constitutional restraints, imposed by the people themselves, furnishes itself security that they will desire nothing wrong.

Certain it is, that popular, constitutional liberty, as we enjoy it, appears, in the present state of the world, as sure and stable a basis for government to rest upon, as any government of enlightened states can find, or does find. Certain it is, that, in these times of so much popular knowledge, and so much popular activity, those governments which do not admit the people to partake in their administration, but keep them under and beneath, sit on materials for an explosion, which may take place at any moment, and blow them into a thousand atoms.

Gentlemen, let any man who would degrade and enfeeble the national Constitution, let any man who would nullify its laws, stand forth and tell us what he would wish. What does he propose? Whatever he may be, and whatever substitute he may hold forth, I am sure the people of this country will decline his kind interference, and hold on by the Constitution which they possess. Any one who would willingly destroy it, I rejoice to know, would be looked upon with abhorrence. It is deeply intrenched in the regards of the people. Doubtless it may be undermined by artful and long-continued hostility; it may be imperceptibly weakened by secret attack; it may be insidiously shorn of its powers by slow degrees; the public vigilance may be lulled, and when it awakes, it may find the Constitution

frittered away. In these modes, or some of them, it is possible that the union of the States may be dissolved.

But if the general attention of the people be kept alive, if they see the intended mischief before it is effected, they will prevent it by their own sovereign power. They will interpose themselves between the meditated blow and the object of their regard and attachment. Next to the controlling authority of the people themselves, the preservation of the government is mainly committed to those who administer it. If conducted in wisdom, it cannot but stand strong. Its genuine, original spirit is a patriotic, liberal, and generous spirit; a spirit of conciliation, of moderation, of candor, and charity; a spirit of friendship, and not a spirit of hostility toward the States; a spirit careful not to exceed, and equally careful not to relinquish, its just powers. While no interest can or ought to feel itself shut out from the benefits of the Constitution, none should consider those benefits as exclusively its own. The interests of all must be consulted, and reconciled, and provided for, as far as possible, that all may perceive the benefits of a united government.

Among other things, we are to remember that new States have arisen, possessing already an immense population, spreading and thickening over vast regions which were a wilderness when the Constitution was adopted. Those States are not, like New York, directly connected with maritime commerce. They are entirely agricultural, and need markets for consumption; and they need, too, access to those markets. It is the duty of the government to bring the interests of these new States into the Union, and incorporate them closely in the family compact. Gentlemen, it is not impracticable to reconcile these various interests, and so to administer the government as to make it useful to all. It was never easier to administer the government than it is now. We are beset with none, or with few, of its original difficulties; and it is a time of great general prosperity and happiness. Shall we admit ourselves incompetent to carry on the government, so as to be satisfactory to the whole country? Shall we admit that there has so little descended to us of the wisdom and prudence of our fathers? If the government could be administered in Washington's time, when it was yet new, when the country was heavily in debt, when foreign relations were in a threatening condition, and when Indian wars pressed on

the frontiers, can it not be administered now? Let us not acknowledge ourselves so unequal to our duties.

Gentlemen, on the occasion referred to by the chair, it became necessary to consider the judicial power, and its proper functions under the Constitution. In every free and balanced government, this is a most essential and important power. Indeed, I think it is a remark of Mr. Hume, that the administration of justice seems to be the leading object of institutions of government; that legislatures assemble, that armies are embodied, that both war and peace are made, with a sort of ultimate reference to the proper administration of laws, and the judicial protection of private rights. The judicial power comes home to every man. If the legislature passes incorrect or unjust general laws, its members bear the evil as well as others. But judicature acts on individuals. It touches every private right, every private interest, and almost every private feeling. What we possess is hardly fit to be called our own, unless we feel secure in its possession; and this security, this feeling of perfect safety, cannot exist under a wicked, or even under a weak and ignorant, administration of the laws. There is no happiness, there is no liberty, there is no enjoyment of life, unless a man can say when he rises in the morning, I shall be subject to the decision of no unjust judge to-day.

But, Gentlemen, the judicial department, under the Constitution of the United States, possesses still higher duties. It is true, that it may be called on, and is occasionally called on, to decide questions which are, in one sense, of a political nature. The general and State governments, both established by the people, are established for different purposes, and with different powers. Between those powers questions may arise; and who shall decide them? Some provision for this end is absolutely necessary. What shall it be? This was the question before the Convention; and various schemes were suggested. It was foreseen that the States might inadvertently pass laws inconsistent with the Constitution of the United States, or with acts of Congress. At least, laws might be passed which would be charged with such inconsistency. How should these questions be disposed of? Where shall the power of judging, in cases of alleged interference, be lodged? One suggestion in the Convention was, to make it an executive power, and to lodge it in the hands of the President, by requiring all State laws to be submitted to him, that he might negative such as he thought

appeared repugnant to the general Constitution. This idea, perhaps, may have been borrowed from the power exercised by the crown over the laws of the Colonies. It would evidently have been, not only an inconvenient and troublesome proceeding, but dangerous also to the powers of the States. It was not pressed. It was thought wiser and safer, on the whole, to require State legislatures and State judges to take an oath to support the Constitution of the United States, and then leave the States at liberty to pass whatever laws they pleased, and if interference, in point of fact, should arise, to refer the question to judicial decision. To this end, the judicial power, under the Constitution of the United States, was made coextensive with the legislative power. It was extended to all cases arising under the Constitution and the laws of Congress. The judiciary became thus possessed of the authority of deciding, in the last resort, in all cases of alleged interference, between State laws and the Constitution and laws of Congress.

Gentlemen, this is the actual Constitution, this is the law of the land. There may be those who think it unnecessary, or who would prefer a different mode of deciding such questions. But this is the established mode, and, till it be altered, the courts can no more decline their duty on these occasions than on other occasions. But can any reasonable man doubt the expediency of this provision, or suggest a better? Is it not absolutely essential to the peace of the country that this power should exist somewhere? Where can it exist, better than where it now does exist? The national judiciary is the common tribunal of the whole country. It is organized by the common authority, and its places filled by the common agent. This is a plain and practical provision. It was framed by no bunglers, nor by any wild theorists. And who can say that it has failed? Who can find substantial fault with its operation or its results? The great question is, whether we shall provide for the peaceable decision of cases of collision. Shall they be decided by law, or by force? Shall the decisions be decisions of peace, or decisions of war?

On the occasion which has given rise to this meeting, the proposition contended for in opposition to the doctrine just stated was, that every State, under certain supposed exigencies, and in certain supposed cases, might decide for itself, and act for itself, and oppose its own force to the execution of the laws. By what argument, do you imagine, Gentlemen, was such a proposition maintained? I should call it metaphysical and subtle; but these terms would imply at least ingenuity, and some degree of plausibility;

whereas the argument appears to me plain assumption, mere perverse construction of plain language in the body of the Constitution itself. As I understand it, when put forth in its revised and most authentic shape, it is this: that the Constitution provides that any amendments may be made to it which shall be agreed to by three fourths of the States; there is, therefore, to be nothing in the Constitution to which three fourths of the States have not agreed. All this is true; but then comes this inference, namely, that, when one State denies the constitutionality of any law of Congress, she may arrest its execution as to herself; and keep it arrested, till the States can all be consulted by their conventions, and three fourths of them shall have decided that the law is constitutional. Indeed, the inference is still stranger than this; for State conventions have no authority to construe the Constitution, though they have authority to amend it; therefore the argument must prove, if it prove any thing, that, when any one State denies that any particular power is included in the Constitution, it is to be considered as not included, and cannot be found there till three fourths of the States agree to insert it. In short, the result of the whole is, that, though it requires three fourths of the States to insert any thing in the Constitution, yet any one State can strike any thing out of it. For the power to strike out, and the power of deciding, without appeal, upon the construction of what is already in, are substantially and practically the same.

And, Gentlemen, what a spectacle should we have exhibited under the actual operation of notions like these! At the very moment when our government was quoted, praised, and commended all over the world, when the friends of republican liberty everywhere were gazing at it with delight, and were in perfect admiration at the harmony of its movements, one State steps forth, and, by the power of nullification, breaks up the whole system, and scatters the bright chain of the Union into as many sundered links as there are separate States!

Seeing the true grounds of the Constitution thus attacked, I raised my voice in its favor, I must confess with no preparation or previous intention. I can hardly say that I embarked in the contest from a sense of duty. It was an instantaneous impulse of inclination, not acting against duty, I trust, but hardly waiting for its suggestions. I felt it to be a contest for the integrity of the Constitution, and I was ready to enter into it, not thinking, or caring, personally, how I might come out.

Gentlemen, I have true pleasure in saying that I trust the crisis has in some measure passed by. The doctrines of nullification have received a severe and stern rebuke from public opinion. The general reprobation of the country has been cast upon them. Recent expressions of the most numerous branch of the national legislature are decisive and imposing. Everywhere, the general tone of public feeling is for the Constitution. While much will be yielded—every thing, almost, but the integrity of the Constitution, and the essential interests of the country—to the cause of mutual harmony and mutual conciliation, no ground can be granted, not an inch, to menace and bluster. Indeed, menace and bluster, and the putting forth of daring, unconstitutional doctrines, are, at this very moment, the chief obstacles to mutual harmony and satisfactory accommodation. Men cannot well reason, and confer, and take counsel together, about the discreet exercise of a power, with those who deny that any such power rightfully exists, and who threaten to blow up the whole Constitution if they cannot otherwise get rid of its operation. It is matter of sincere gratification, Gentlemen, that the voice of this great State has been so clear and strong, and her vote all but unanimous, on the most interesting of these occasions, in the House of Representatives. Certainly, such respect to the Union becomes New York. It is consistent with her interests and her character. That singularly prosperous State, which now is, and is likely to continue to be, the greatest link in the chain of the Union, will ever be, I am sure, the strongest link also. The great States which lie in her neighborhood agreed with her fully in this matter. Pennsylvania, I believe, was loyal to the Union, to a man; and Ohio raises her voice, like that of a lion, against whatsoever threatens disunion and dismemberment. This harmony of sentiment is truly gratifying. It is not to be gainsaid, that the union of opinion in this great central mass of our population, on this momentous point of the Constitution, augurs well for our future prosperity and security.

I have said, Gentlemen, what I verily believe to be true, that there is no danger to the Union from open and avowed attacks on its essential principles. Nothing is to be feared from those who will march up boldly to their own propositions, and tell us that they mean to annihilate powers exercised by Congress. But, certainly, there are dangers to the Constitution, and we ought not to shut our eyes to them. We know the importance of a firm and intelligent judiciary; but how shall we secure the continuance of a firm and intelligent judiciary? Gentlemen, the judiciary is in the

appointment of the executive power. It cannot continue or renew itself. Its vacancies are to be filled in the ordinary modes of executive appointment. If the time shall ever come (which Heaven avert), when men shall be placed in the supreme tribunal of the country, who entertain opinions hostile to the just powers of the Constitution, we shall then be visited by an evil defying all remedy. Our case will be past surgery. From that moment the Constitution is at an end. If they who are appointed to defend the castle shall betray it, woe betide those within! If I live to see that day come, I shall despair of the country. I shall be prepared to give it back to all its former afflictions, in the days of the Confederation. I know no security against the possibility of this evil, but an awakened public vigilance. I know no safety, but in that state of public opinion which shall lead it to rebuke and put down every attempt, either to gratify party by judicial appointments, or to dilute the Constitution by creating a court which shall construe away its provisions. If members of Congress betray their trust, the people will find it out before they are ruined. If the President should at any time violate his duty, his term of office is short, and popular elections may supply a seasonable remedy. But the judges of the Supreme Court possess, for very good reasons, an independent tenure of office. No election reaches them. If, with this tenure, they betray their trusts, Heaven save us! Let us hope for better results. The past, certainly, may encourage us. Let us hope that we shall never see the time when there shall exist such an awkward posture of affairs, as that the government shall be found in opposition to the Constitution, and when the guardians of the Union shall become its betrayers.

Gentlemen, our country stands, at the present time, on commanding ground. Older nations, with different systems of government, may be somewhat slow to acknowledge all that justly belongs to us. But we may feel without vanity, that America is doing her part in the great work of improving human affairs. There are two principles, Gentlemen, strictly and purely American, which are now likely to prevail throughout the civilized world. Indeed, they seem the necessary result of the progress of civilization and knowledge. These are, first, popular governments, restrained by written constitutions; and, secondly, universal education. Popular governments and general education, acting and reacting, mutually producing and reproducing each other, are the mighty agencies which in our days appear to be exciting,

stimulating, and changing civilized societies. Man, everywhere, is now found demanding a participation in government,—and he will not be refused; and he demands knowledge as necessary to self-government. On the basis of these two principles, liberty and knowledge, our own American systems rest. Thus far we have not been disappointed in their results. Our existing institutions, raised on these foundations, have conferred on us almost unmixed happiness. Do we hope to better our condition by change? When we shall have nullified the present Constitution, what are we to receive in its place? As fathers, do we wish for our children better government, or better laws? As members of society, as lovers of our country, is there any thing we can desire for it better than that, as ages and centuries roll over it, it may possess the same invaluable institutions which it now enjoys? For my part, Gentlemen, I can only say, that I desire to thank the beneficent Author of all good for being born *where* I was born, and *when* I was born; that the portion of human existence allotted to me has been meted out to me in this goodly land, and at this interesting period. I rejoice that I have lived to see so much development of truth, so much progress of liberty, so much diffusion of virtue and happiness. And, through good report and evil report, it will be my consolation to be a citizen of a republic unequalled in the annals of the world for the freedom of its institutions, its high prosperity, and the prospects of good which yet lie before it. Our course, Gentlemen, is onward, straight onward, and forward. Let us not turn to the right hand, nor to the left. Our path is marked out for us, clear, plain, bright, distinctly defined, like the milky way across the heavens. If we are true to our country, in our day and generation, and those who come after us shall be true to it also, assuredly, assuredly, we shall elevate her to a pitch of prosperity and happiness, of honor and power, never yet reached by any nation beneath the sun.

Gentlemen, before I resume my seat, a highly gratifying duty remains to be performed. In signifying your sentiments of regard, you have kindly chosen to select as your organ for expressing them the eminent person^[92] near whom I stand. I feel, I cannot well say how sensibly, the manner in which he has seen fit to speak on this occasion. Gentlemen, if I may be supposed to have made any attainment in the knowledge of constitutional law, he is among the masters in whose schools I have been taught. You see near him a distinguished magistrate,^[93] long associated with him in judicial labors, which have conferred lasting benefits and lasting character, not only on the

State, but on the whole country. Gentlemen, I acknowledge myself much their debtor. While yet a youth, unknown, and with little expectation of becoming known beyond a very limited circle, I have passed days and nights, not of tedious, but of happy and gratified labor, in the study of the judicature of the State of New York. I am most happy to have this public opportunity of acknowledging the obligation, and of repaying it as far as it can be repaid, by the poor tribute of my profound regard, and the earnest expression of my sincere respect.

Gentlemen, I will no longer detain you than to propose a toast:—

The City of New York; herself the noblest eulogy on the Union of the States.

FOOTNOTES

[\[90\]](#)

Address to the People of Great Britain.

[\[91\]](#)

The reference is to Mr. Madison's letter on the subject of *Nullification*, in the *North American Review*, Vol. XXXI. p. 537.

[\[92\]](#)

Chancellor Kent, the presiding officer.

[\[93\]](#)

Judge Spencer.

THE CHARACTER OF WASHINGTON.^[94]

On the 22d of February, 1832, being the centennial birthday of GEORGE WASHINGTON, a number of gentlemen, members of Congress and others, from different parts of the Union, united in commemorating the occasion by a public dinner in the city of Washington.

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At the request of the Committee of Arrangements, Mr. Webster, then a Senator from Massachusetts, occupied the chair. After the cloth was removed, he addressed the company in the following manner:

I rise, Gentlemen, to propose to you the name of that great man, in commemoration of whose birth, and in honor of whose character and services, we are here assembled.

I am sure that I express a sentiment common to every one present, when I say that there is something more than ordinarily solemn and affecting in this occasion.

We are met to testify our regard for him whose name is intimately blended with whatever belongs most essentially to the prosperity, the liberty, the free institutions, and the renown of our country. That name was of power to rally a nation, in the hour of thick-thronging public disasters and calamities; that name shone, amid the storm of war, a beacon light, to cheer and guide the country's friends; it flamed, too, like a meteor, to repel her foes. That name, in the days of peace, was a load-stone, attracting to itself a whole people's confidence, a whole people's love, and the whole world's respect. That name, descending with all time, spreading over the whole earth, and uttered in all the languages belonging to the tribes and races of men, will for ever be pronounced with affectionate gratitude by every one in whose breast there shall arise an aspiration for human rights and human liberty.

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We perform this grateful duty, Gentlemen, at the expiration of a hundred years from his birth, near the place, so cherished and beloved by him, where his dust now reposes, and in the capital which bears his own immortal name.

All experience evinces that human sentiments are strongly influenced by associations. The recurrence of anniversaries, or of longer periods of time,

naturally freshens the recollection, and deepens the impression, of events with which they are historically connected. Renowned places, also, have a power to awaken feeling, which all acknowledge. No American can pass by the fields of Bunker Hill, Monmouth, and Camden, as if they were ordinary spots on the earth's surface. Whoever visits them feels the sentiment of love of country kindling anew, as if the spirit that belonged to the transactions which have rendered these places distinguished still hovered round, with power to move and excite all who in future time may approach them.

But neither of these sources of emotion equals the power with which great moral examples affect the mind. When sublime virtues cease to be abstractions, when they become embodied in human character, and exemplified in human conduct, we should be false to our own nature, if we did not indulge in the spontaneous effusions of our gratitude and our admiration. A true lover of the virtue of patriotism delights to contemplate its purest models; and that love of country may be well suspected which affects to soar so high into the regions of sentiment as to be lost and absorbed in the abstract feeling, and becomes too elevated or too refined to glow with fervor in the commendation or the love of individual benefactors. All this is unnatural. It is as if one should be so enthusiastic a lover of poetry, as to care nothing for Homer or Milton; so passionately attached to eloquence as to be indifferent to Tully and Chatham; or such a devotee to the arts, in such an ecstasy with the elements of beauty, proportion, and expression, as to regard the masterpieces of Raphael and Michael Angelo with coldness or contempt. We may be assured, Gentlemen, that he who really loves the thing itself, loves its finest exhibitions. A true friend of his country loves her friends and benefactors, and thinks it no degradation to commend and commemorate them. The voluntary outpouring of the public feeling, made to-day, from the North to the South, and from the East to the West, proves this sentiment to be both just and natural. In the cities and in the villages, in the public temples and in the family circles, among all ages and sexes, gladdened voices to-day bespeak grateful hearts and a freshened recollection of the virtues of the Father of his Country. And it will be so, in all time to come, so long as public virtue is itself an object of regard. The ingenuous youth of America will hold up to themselves the bright model of Washington's example, and study to be what they behold; they will contemplate his character till all its virtues spread out and display themselves to their delighted vision; as the earliest astronomers, the

shepherds on the plains of Babylon, gazed at the stars till they saw them form into clusters and constellations, overpowering at length the eyes of the beholders with the united blaze of a thousand lights.

Gentlemen, we are at the point of a century from the birth of Washington; and what a century it has been! During its course, the human mind has seemed to proceed with a sort of geometric velocity, accomplishing, for human intelligence and human freedom, more than had been done in fives or tens of centuries preceding. Washington stands at the commencement of a new era, as well as at the head of the New World. A century from the birth of Washington has changed the world. The country of Washington has been the theatre on which a great part of that change has been wrought; and Washington himself a principal agent by which it has been accomplished. His age and his country are equally full of wonders; and of both he is the chief.

If the poetical prediction, uttered a few years before his birth, be true; if indeed it be designed by Providence that the grandest exhibition of human character and human affairs shall be made on this theatre of the Western world; if it be true that,

“The four first acts already past,
A fifth shall close the drama of the day;
Time’s noblest offspring is the last”;

how could this imposing, swelling, final scene be appropriately opened, how could its intense interest be adequately sustained, but by the introduction of just such a character as our Washington?

Washington had attained his manhood when that spark of liberty was struck out in his own country, which has since kindled into a flame, and shot its beams over the earth. In the flow of a century from his birth, the world has changed in science, in arts, in the extent of commerce, in the improvement of navigation, and in all that relates to the civilization of man. But it is the spirit of human freedom, the new elevation of individual man, in his moral, social, and political character, leading the whole long train of other improvements, which has most remarkably distinguished the era. Society, in this century, has not made its progress, like Chinese skill, by a greater acuteness of ingenuity in trifles; it has not merely lashed itself to an

increased speed round the old circles of thought and action; but it has assumed a new character; it has raised itself from *beneath* governments to a participation *in* governments; it has mixed moral and political objects with the daily pursuits of individual men; and, with a freedom and strength before altogether unknown, it has applied to these objects the whole power of the human understanding. It has been the era, in short, when the social principle has triumphed over the feudal principle; when society has maintained its rights against military power, and established, on foundations never hereafter to be shaken, its competency to govern itself.

It was the extraordinary fortune of Washington, that, having been intrusted, in revolutionary times, with the supreme military command, and having fulfilled that trust with equal renown for wisdom and for valor, he should be placed at the head of the first government in which an attempt was to be made on a large scale to rear the fabric of social order on the basis of a written constitution and of a pure representative principle. A government was to be established, without a throne, without an aristocracy, without castes, orders, or privileges; and this government, instead of being a democracy, existing and acting within the walls of a single city, was to be extended over a vast country, of different climates, interests, and habits, and of various communions of our common Christian faith. The experiment certainly was entirely new. A popular government of this extent, it was evident, could be framed only by carrying into full effect the principle of representation or of delegated power; and the world was to see whether society could, by the strength of this principle, maintain its own peace and good government, carry forward its own great interests, and conduct itself to political renown and glory. By the benignity of Providence, this experiment, so full of interest to us and to our posterity for ever, so full of interest, indeed, to the world in its present generation and in all its generations to come, was suffered to commence under the guidance of Washington. Destined for this high career, he was fitted for it by wisdom, by virtue, by patriotism, by discretion, by whatever can inspire confidence in man toward man. In entering on the untried scenes, early disappointment and the premature extinction of all hope of success would have been certain, had it not been that there did exist throughout the country, in a most extraordinary degree, an unwavering trust in him who stood at the helm.

I remarked, Gentlemen, that the whole world was and is interested in the result of this experiment. And is it not so? Do we deceive ourselves, or is it true that at this moment the career which this government is running is among the most attractive objects to the civilized world? Do we deceive ourselves, or is it true that at this moment that love of liberty and that understanding of its true principles which are flying over the whole earth, as on the wings of all the winds, are really and truly of American origin?

At the period of the birth of Washington, there existed in Europe no political liberty in large communities, except in the provinces of Holland, and except that England herself had set a great example, so far as it went, by her glorious Revolution of 1688. Everywhere else, despotic power was predominant, and the feudal or military principle held the mass of mankind in hopeless bondage. One half of Europe was crushed beneath the Bourbon sceptre, and no conception of political liberty, no hope even of religious toleration, existed among that nation which was America's first ally. The king was the state, the king was the country, the king was all. There was one king, with power not derived from his people, and too high to be questioned; and the rest were all subjects, with no political right but obedience. All above was intangible power, all below quiet subjection. A recent occurrence in the French Chambers shows us how public opinion on these subjects is changed. A minister had spoken of the "king's subjects." "There are no subjects," exclaimed hundreds of voices at once, "in²⁴ a country where the people make the king!"

Gentlemen, the spirit of human liberty and of free government, nurtured and grown into strength and beauty in America, has stretched its course into the midst of the nations. Like an emanation from Heaven, it has gone forth, and it will not return void. It must change, it is fast changing, the face of the earth. Our great, our high duty is to show, in our own example, that this spirit is a spirit of health as well as a spirit of power; that its benignity is as great as its strength; that its efficiency to secure individual rights, social relations, and moral order, is equal to the irresistible force with which it prostrates principalities and powers. The world, at this moment, is regarding us with a willing, but something of a fearful admiration. Its deep and awful anxiety is to learn whether free states may be stable, as well as free; whether popular power may be trusted, as well as feared; in short, whether wise, regular, and virtuous self-government is a vision for the

contemplation of theorists, or a truth established, illustrated, and brought into practice in the country of Washington.

Gentlemen, for the earth which we inhabit, and the whole circle of the sun, for all the unborn races of mankind, we seem to hold in our hands, for their weal or woe, the fate of this experiment. If we fail, who shall venture the repetition? If our example shall prove to be one, not of encouragement, but of terror, not fit to be imitated, but fit only to be shunned, where else shall the world look for free models? If this great *Western Sun* be struck out of the firmament, at what other fountain shall the lamp of liberty hereafter be lighted? What other orb shall emit a ray to glimmer, even, on the darkness of the world?

There is no danger of our overrating or overstating the important part which we are now acting in human affairs. It should not flatter our personal self-respect, but it should reanimate our patriotic virtues, and inspire us with a deeper and more solemn sense, both of our privileges and of our duties. We cannot wish better for our country, nor for the world, than that the same spirit which influenced Washington may influence all who succeed him; and that the same blessing from above, which attended his efforts, may also attend theirs.

The principles of Washington's administration are not left doubtful. They are to be found in the Constitution itself, in the great measures recommended and approved by him, in his speeches to Congress, and in that most interesting paper, his Farewell Address to the People of the United States. The success of the government under his administration is the highest proof of the soundness of these principles. And, after an experience of thirty-five years, what is there which an enemy could condemn? What is there which either his friends, or the friends of the country, could wish to have been otherwise? I speak, of course, of great measures and leading principles.

In the first place, all his measures were right in their intent. He stated the whole basis of his own great character, when he told the country, in the homely phrase of the proverb, that honesty is the best policy. One of the most striking things ever said of him is, that "*he changed mankind's ideas of political greatness.*"^[95] To commanding talents, and to success, the common elements of such greatness, he added a disregard of self, a

spotlessness of motive, a steady submission to every public and private duty, which threw far into the shade the whole crowd of vulgar great. The object of his regard was the whole country. No part of it was enough to fill his enlarged patriotism. His love of glory, so far as that may be supposed to have influenced him at all, spurned every thing short of general approbation. It would have been nothing to him, that his partisans or his favorites outnumbered, or outvoted, or outmanaged, or outclamored, those of other leaders. He had no favorites; he rejected all partisanship; and, acting honestly for the universal good, he deserved, what he has so richly enjoyed, the universal love.

His principle it was to act right, and to trust the people for support; his principle it was not to follow the lead of sinister and selfish ends, nor to rely on the little arts of party delusion to obtain public sanction for such a course. Born for his country and for the world, he did not give up to party what was meant for mankind. The consequence is, that his fame is as durable as his principles, as lasting as truth and virtue themselves. While the hundreds whom party excitement, and temporary circumstances, and casual combinations, have raised into transient notoriety, sink again, like thin bubbles, bursting and dissolving into the great ocean, Washington's fame is like the rock which bounds that ocean, and at whose feet its billows are destined to break harmlessly for ever.

The maxims upon which Washington conducted our foreign relations were few and simple. The first was an entire and indisputable impartiality towards foreign states. He adhered to this rule of public conduct, against very strong inducements to depart from it, and when the popularity of the moment seemed to favor such a departure. In the next place, he maintained true dignity and unsullied honor in all communications with foreign states. It was among the high duties devolved upon him, to introduce our new government into the circle of civilized states and powerful nations. Not arrogant or assuming, with no unbecoming or supercilious bearing, he yet exacted for it from all others entire and punctilious respect. He demanded, and he obtained at once, a standing of perfect equality for his country in the society of nations; nor was there a prince or potentate of his day, whose personal character carried with it, into the intercourse of other states, a greater degree of respect and veneration.

He regarded other nations only as they stood in political relations to us. With their internal affairs, their political parties and dissensions, he scrupulously abstained from all interference; and, on the other hand, he repelled with spirit all such interference by others with us or our concerns. His sternest rebuke, the most indignant measure of his whole administration, was aimed against such an attempted interference. He felt it as an attempt to wound the national honor, and resented it accordingly.

The reiterated admonitions in his Farewell Address show his deep fears that foreign influence would insinuate itself into our counsels through the channels of domestic dissension, and obtain a sympathy with our own temporary parties. Against all such dangers, he most earnestly entreats the country to guard itself. He appeals to its patriotism, to its self-respect, to its own honor, to every consideration connected with its welfare and happiness, to resist, at the very beginning, all tendencies towards such connection of foreign interests with our own affairs. With a tone of earnestness nowhere else found, even in his last affectionate farewell advice to his countrymen, he says, “Against the insidious wiles of foreign influence, (I conjure you to believe me, fellow-citizens,) the jealousy of a free people ought to be *constantly* awake; since history and experience prove, that foreign influence is one of the most baneful foes of republican government.”

Lastly, on the subject of foreign relations, Washington never forgot that we had interests peculiar to ourselves. The primary political concerns of Europe, he saw, did not affect us. We had nothing to do with her balance of power, her family compacts, or her successions to thrones. We were placed in a condition favorable to neutrality during European wars, and to the enjoyment of all the great advantages of that relation. “Why, then,” he asks us, “why forego the advantages of so peculiar a situation? Why quit our own to stand upon foreign ground? Why, by interweaving our destiny with that of any part of Europe, entangle our peace and prosperity in the toils of European ambition, rivalry, interest, humor, or caprice?”

Indeed, Gentlemen, Washington’s Farewell Address is full of truths important at all times, and particularly deserving consideration at the present. With a sagacity which brought the future before him, and made it like the present, he saw and pointed out the dangers that even at this moment most imminently threaten us. I hardly know how a greater service

of that kind could now be done to the community, than by a renewed and wide diffusion of that admirable paper, and an earnest invitation to every man in the country to peruse and consider it. Its political maxims are invaluable; its exhortations to love of country and to brotherly affection among citizens, touching; and the solemnity with which it urges the observance of moral duties, and impresses the power of religious obligation, gives to it the highest character of truly disinterested, sincere, parental advice.

The domestic policy of Washington found its pole-star in the avowed objects of the Constitution itself. He sought so to administer that Constitution, as to form a more perfect union, establish justice, insure domestic tranquillity, provide for the common defence, promote the general welfare, and secure the blessings of liberty. These were objects interesting, in the highest degree, to the whole country, and his policy embraced the whole country.

Among his earliest and most important duties was the organization of the government itself, the choice of his confidential advisers, and the various appointments to office. This duty, so important and delicate, when a whole government was to be organized, and all its offices for the first time filled, was yet not difficult to him; for he had no sinister ends to accomplish, no clamorous partisans to gratify, no pledges to redeem, no object to be regarded but simply the public good. It was a plain, straightforward matter, a mere honest choice of good men for the public service.

His own singleness of purpose, his disinterested patriotism, were evinced by the selection of his first cabinet, and by the manner in which he filled the seats of justice, and other places of high trust. He sought for men fit for offices; not for offices which might suit men. Above personal considerations, above local considerations, above party considerations, he felt that he could only discharge the sacred trust which the country had placed in his hands, by a diligent inquiry after real merit, and a conscientious preference of virtue and talent. The whole country was the field of his selection. He explored that whole field, looking only for whatever it contained most worthy and distinguished. He was, indeed, most successful, and he deserved success for the purity of his motives, the liberality of his sentiments, and his enlarged and manly policy.

Washington's administration established the national credit, made provision for the public debt, and for that patriotic army whose interests and welfare were always so dear to him; and, by laws wisely framed, and of admirable effect, raised the commerce and navigation of the country, almost at once, from depression and ruin to a state of prosperity. Nor were his eyes open to these interests alone. He viewed with equal concern its agriculture and manufactures, and, so far as they came within the regular exercise of the powers of this government, they experienced regard and favor.

It should not be omitted, even in this slight reference to the general measures and general principles of the first President, that he saw and felt the full value and importance of the judicial department of the government. An upright and able administration of the laws he held to be alike indispensable to private happiness and public liberty. The temple of justice, in his opinion, was a sacred place, and he would profane and pollute it who should call any to minister in it, not spotless in character, not incorruptible in integrity, not competent by talent and learning, not a fit object of unhesitating trust.

Among other admonitions, Washington has left us, in his last communication to his country, an exhortation against the excesses of party spirit. A fire not to be quenched, he yet conjures us not to fan and feed the flame. Undoubtedly, Gentlemen, it is the greatest danger of our system and of our time. Undoubtedly, if that system should be overthrown, it will be the work of excessive party spirit, acting on the government, which is dangerous enough, or acting *in* the government, which is a thousand times more dangerous; for government then becomes nothing but organized party, and, in the strange vicissitudes of human affairs, it may come at last, perhaps, to exhibit the singular paradox of government itself being in opposition to its own powers, at war with the very elements of its own existence. Such cases are hopeless. As men may be protected against murder, but cannot be guarded against suicide, so government may be shielded from the assaults of external foes, but nothing can save it when it chooses to lay violent hands on itself.

Finally, Gentlemen, there was in the breast of Washington one sentiment so deeply felt, so constantly uppermost, that no proper occasion escaped without its utterance. From the letter which he signed in behalf of the Convention when the Constitution was sent out to the people, to the

moment when he put his hand to that last paper in which he addressed his countrymen, the Union,—the Union was the great object of his thoughts. In that first letter he tells them that, to him and his brethren of the Convention, union appears to be the greatest interest of every true American; and in that last paper he conjures them to regard that unity of government which constitutes them one people as the very palladium of their prosperity and safety, and the security of liberty itself. He regarded the union of these States less as one of our blessings, than as the great treasure-house which contained them all. Here, in his judgment, was the great magazine of all our means of prosperity; here, as he thought, and as every true American still thinks, are deposited all our animating prospects, all our solid hopes for future greatness. He has taught us to maintain this union, not by seeking to enlarge the powers of the government, on the one hand, nor by surrendering them, on the other; but by an administration of them at once firm and moderate, pursuing objects truly national, and carried on in a spirit of justice and equity.

The extreme solicitude for the preservation of the Union, at all times manifested by him, shows not only the opinion he entertained of its importance, but his clear perception of those causes which were likely to spring up to endanger it, and which, if once they should overthrow the present system, would leave little hope of any future beneficial reunion. Of all the presumptions indulged by presumptuous man, that is one of the rashest which looks for repeated and favorable opportunities for the deliberate establishment of a united government over distinct and widely extended communities. Such a thing has happened once in human affairs, and but once; the event stands out as a prominent exception to all ordinary history; and unless we suppose ourselves running into an age of miracles, we may not expect its repetition.

Washington, therefore, could regard, and did regard, nothing as of paramount political interest, but the integrity of the Union itself. With a united government, well administered, he saw that we had nothing to fear; and without it, nothing to hope. The sentiment is just, and its momentous truth should solemnly impress the whole country. If we might regard our country as personated in the spirit of Washington, if we might consider him as representing her, in her past renown, her present prosperity, and her future career, and as in that character demanding of us all to account for our

conduct, as political men or as private citizens, how should he answer him who has ventured to talk of disunion and dismemberment? Or how should he answer him who dwells perpetually on local interests, and fans every kindling flame of local prejudice? How should he answer him who would array State against State, interest against interest, and party against party, careless of the continuance of that *unity of government which constitutes us one people*?

The political prosperity which this country has attained, and which it now enjoys, has been acquired mainly through the instrumentality of the present government. While this agent continues, the capacity of attaining to still higher degrees of prosperity exists also. We have, while this lasts, a political life capable of beneficial exertion, with power to resist or overcome misfortunes, to sustain us against the ordinary accidents of human affairs, and to promote, by active efforts, every public interest. But dismemberment strikes at the very being which preserves these faculties. It would lay its rude and ruthless hand on this great agent itself. It would sweep away, not only what we possess, but all power of regaining lost, or acquiring new possessions. It would leave the country, not only bereft of its prosperity and happiness, but without limbs, or organs, or faculties, by which to exert itself hereafter in the pursuit of that prosperity and happiness.

Other misfortunes may be borne, or their effects overcome. If disastrous war should sweep our commerce from the ocean, another generation may renew it; if it exhaust our treasury, future industry may replenish it; if it desolate and lay waste our fields, still, under a new cultivation, they will grow green again, and ripen to future harvests. It were but a trifle even if the walls of yonder Capitol were to crumble, if its lofty pillars should fall, and its gorgeous decorations be all covered by the dust of the valley. All these might be rebuilt. But who shall reconstruct the fabric of demolished government? Who shall rear again the well-proportioned columns of constitutional liberty? Who shall frame together the skilful architecture which unites national sovereignty with State rights, individual security, and public prosperity? No, if these columns fall, they will be raised not again. Like the Coliseum and the Parthenon, they will be destined to a mournful, a melancholy immortality. Bitterer tears, however, will flow over them, than were ever shed over the monuments of Roman or Grecian art; for they will

be the remnants of a more glorious edifice than Greece or Rome ever saw, the edifice of constitutional American liberty.

But let us hope for better things. Let us trust in that gracious Being who has hitherto held our country as in the hollow of his hand. Let us trust to the virtue and the intelligence of the people, and to the efficacy of religious obligation. Let us trust to the influence of Washington's example. Let us hope that that fear of Heaven which expels all other fear, and that regard to duty which transcends all other regard, may influence public men and private citizens, and lead our country still onward in her happy career. Full of these gratifying anticipations and hopes, let us look forward to the end of that century which is now commenced. A hundred years hence, other disciples of Washington will celebrate his birth, with no less of sincere admiration than we now commemorate it. When they shall meet, as we now meet, to do themselves and him that honor, so surely as they shall see the blue summits of his native mountains rise in the horizon, so surely as they shall behold the river on whose banks he lived, and on whose banks he rests, still flowing on toward the sea, so surely may they see, as we now see, the flag of the Union floating on the top of the Capitol; and then, as now, may the sun in his course visit no land more free, more happy, more lovely, than this our own country!

Gentlemen, I propose—"THE MEMORY OF GEORGE WASHINGTON."

From the excellent speeches delivered by gentlemen on this interesting occasion, we cannot refrain from selecting for this publication, though a little out of place, the appropriate, just, and classic remarks of Mr. Robbins.

Mr. Webster having retired, Mr. Chambers, being in the chair, called upon Mr. Robbins of Rhode Island; when Mr. Senator ROBBINS of that State addressed the company as follows:—

"GENTLEMEN,—I beg leave to offer a sentiment; but first, with your indulgence, will offer a few remarks, not inappropriate, I hope, to the occasion.

"It is the peculiar good fortune of this country to have given birth to a citizen, whose name everywhere produces a sentiment of regard for his country itself. In other countries, whenever or wherever this is spoken of to be praised, and with the highest praise, it is called the country of Washington. I believe there is no people, civilized or savage, in any place, however remote, where the name of Washington has not been heard, and where it is not repeated with the fondest admiration. We are told, that the Arab of the desert talks of Washington in his tent, and that his name is familiar to the wandering Scythian. He seems,

indeed, to be the delight of human kind, as their beau ideal of human nature. ‘Nil oriturum alias, nil ortum tale fatentes.’

“No American, in any part of the world, but has found the regard for himself increased by his connection with Washington, as his fellow-countryman; and who has not felt a pride, and had occasion to exult, in the fortunate connection?” ²³³

“Half a century and more has now passed away since he came upon the stage, and his fame first broke upon the world; for it broke like the blaze of day from the rising sun,—almost as sudden, and seemingly as universal. The eventful period since that era has teemed with great men, who have crossed the scene and passed off. Some of them have arrested great attention, very great; still Washington retains his preëminent place in the minds of men, still his peerless name is cherished by them in the same freshness of delight as in the morn of its glory.

“History will keep her record of his fame; but history is not necessary to perpetuate it. In regions where history is not read, where letters are unknown, it lives, and will go down from age to age, in all future time, in their traditionary lore.

“Who would exchange this fame, the common inheritance of our country, for the fame of any individual which any country of any time can boast? I would not; with my sentiments, I could not.

“I recollect the first time I ever saw Washington: indeed, it is impossible I should forget it, or recollect it without the liveliest emotion. I was then a child at school. The school was dismissed, and we were told, that General Washington was expected in town that day, on his way to Cambridge, to take command of the American army. We, the children, were permitted to mingle with the people, who had assembled in mass to see him. I did see him; I riveted my eyes upon him; I could now, were I master of the pencil, delineate with exact truth his form and features, and every particular of his costume: so vivid are my recollections. I can never forget the feelings his sublime presence inspired. How often, afterwards, when I came, in my studies, to learn them, have I repeated and applied, as expressive of that feeling, these lines,—

“Quem sese ore ferens! quam forti pectore et armis!
Credo equidem, nec vana fides, genus esse Deorum.”

He did seem to me more than mortal. It is true this was young and ignorant enthusiasm; but, though young and ignorant, it was not false; it was enthusiasm, which my riper judgment has always recognized as just; it was but the anticipated sentiment of the whole human kind.

“I now beg leave to offer this sentiment:—

“The written legacy of Washington to his countrymen,—a code of politics by which, and by which alone, as he believed, their union and their liberties can be made immortal.”

FOOTNOTES

[94]

A Speech delivered at a Public Dinner in Honor of the Centennial Birthday of Washington, on the 22d of February, 1832.

[\[95\]](#)

See Works of Fisher Ames, pp. 122, 123.

NATIONAL REPUBLICAN CONVENTION AT WORCESTER.^[96]

Mr. President,—I offer no apology for addressing the meeting. Holding, by the favor of the people of this Commonwealth, an important public situation, I deem it no less than a part of my duty, at this interesting moment, to make known my opinions on the state of public affairs, and, however I may have performed other duties, this, at least, it is my purpose, on the present occasion, fully to discharge. Not intending to comment at length on all the subjects which now attract public attention, nor to discuss any thing in detail, I wish, nevertheless, before an assembly so large and respectable as the present, and through them before the whole people of the State, to lay open, without reserve, my own sentiments, hopes, and fears respecting the state and the prospects of our common country.

The resolutions which have been read from the chair express the opinion, that the public good requires an effectual change, in the administration of the general government, both of measures and of men. In this opinion I heartily concur.

Mr. President, there is no citizen of the State, who, in principle and by habitual sentiment, is less disposed than myself to general opposition to government, or less desirous of frequent changes in its administration. I entertain this feeling strongly, and at all times, towards the government of the United States; because I have ever regarded the Federal Constitution as a frame of government so peculiar, and so delicate in its relations to the State governments, that it might be in danger of overthrow, as well from an indiscriminate and wanton opposition, as from a weak or a wicked administration. But a case may arise in which the government is no longer safe in the hands to which it has been intrusted. It may come to be a question, not so much in what particular manner, or according to what particular political opinions, the government shall be administered, as whether the Constitution itself shall be preserved and maintained. Now, Sir,

in my judgment, just such a case and just such a question are at this moment before the American people. Entertaining this sentiment, and thoroughly and entirely convinced of its truth, I wish, as far as my humble power extends, to produce in the people a more earnest attention to their public concerns. With the people, and the people alone, lies any remedy for the past or any security for the future. No delegated power is equal to the exigency of the present crisis. No public servants, however able or faithful, have ability to check or to stop the fearful tendency of things. It is a case for sovereign interposition. The rescue, if it come at all, must come from that power which no other on earth can resist. I earnestly wish, therefore, unimportant as my own opinions may be, and entitled, as I know they are, to no considerable regard, yet, since they are honest and sincere, and since they respect nothing less than dangers which appear to me to threaten the government and Constitution of the country, I fervently wish that I could now make them known, not only to this meeting and to this State, but to every man in the Union. I take the hazard of the reputation of an alarmist; I cheerfully submit to the imputation of over-excited apprehension; I discard all fear of the cry of false prophecy, and I declare, that, in my judgment, not only the great interests of the country, but the Constitution itself, are in imminent peril, and that nothing can save either the one or the other but that voice which has authority to say to the evils of misrule and misgovernment, "Hitherto shall ye come, but no further."

It is true, Sir, that it is the natural effect of a good constitution to protect the people. But who shall protect the constitution? Who shall guard the guardian? What arm but the mighty arm of the people itself is able, in a popular government, to uphold public institutions? The constitution itself is but the creature of the public will; and in every crisis which threatens it, it must owe its security to the same power to which it owes its origin.

The appeal, therefore, is to the people; not to party nor to partisans, not to professed politicians, not to those who have an interest in office and place greater than their stake in the country, but to the people, and the whole people; to those who, in regard to political affairs, have no wish but for a good government, and who have power to accomplish their own wishes.

Mr. President, are the principles and leading measures of the administration hostile to the great interests of the country?

Are they dangerous to the Constitution, and to the union of the States?

Is there any prospect of a beneficial change of principles and measures, without a change of men?

Is there reasonable ground to hope for such a change of men?

On these several questions, I desire to state my own convictions fully, though as briefly as possible.

As government is intended to be a practical institution, if it be wisely formed, the first and most natural test of its administration is the effect produced by it. Let us look, then, to the actual state of our affairs. Is it such as should follow a good administration of a good constitution?

Sir, we see one State openly threatening to arrest the execution of the revenue laws of the Union, by acts of her own. This proceeding is threatened, not by irresponsible persons, but by those who fill her chief places of power and trust.

In another State, free citizens of the country are imprisoned, and held in prison, in defiance of a judgment of the Supreme Court, pronounced for their deliverance. Immured in a dungeon, marked and patched as subjects of penitentiary punishment, these free citizens pass their days in counting the slow-revolving hours of their miserable, captivity, and their nights in feverish and delusive dreams of their own homes and their own families; while the Constitution stands adjudged to be violated, a law of Congress is effectually repealed by the act of a State, and a judgment of deliverance by the Supreme Court is set a naught and contemned.^[97]

Treaties, importing the most solemn and sacred obligations, are denied to have binding force.

A feeling that there is great insecurity for property, and the stability of the means of living, extensively prevails.

The whole subject of the tariff, acted on for the moment, is at the same moment declared not to be at rest, but liable to be again moved, and with greater effect, just so soon as power for that purpose shall be obtained.

The currency of the country, hitherto safe, sound, and universally satisfactory, is threatened with a violent change; and an embarrassment in

pecuniary affairs, equally distressing and unnecessary, hangs over all the trading and active classes of society.

A long-used and long-approved legislative instrument for the collection of revenue, well secured against abuse, and always responsible to Congress and to the laws, is denied further existence; and its place is proposed to be supplied by a new branch of the executive department, with a money power controlled and conducted solely by executive agency.

The power of the VETO is exercised, not as an extraordinary, but as an ordinary power; as a common mode of defeating acts of Congress not acceptable to the executive. We hear, one day, that the President needs the advice of no cabinet; that a few secretaries, or clerks, are enough for him. The next, we are informed that the Supreme Court is but an obstacle to the popular will, and the whole judicial department but an encumbrance to government. And while, on one side, the judicial power is thus derided and denounced, on the other arises the cry, "Cut down the Senate!" and over the whole, at the same time, prevails the loud avowal, shouted with all the lungs of conscious party strength and party triumph, that the spoils of the enemy belong to the victors. This condition of things, Sir, this general and obvious aspect of affairs, is the result of three years' administration, such as the country has experienced.

But, not resting on this general view of results, let me inquire what the principles and policy of the administration are, on the leading interests of the country, subordinate to the Constitution itself. And first, what are its principles, and what its policy, respecting the tariff? Is this great question settled, or unsettled? And is the present administration for, or against, the tariff?

Sir, the question is wholly unsettled, and the principles of the administration, according to its most recent avowal of those principles, are adverse to the protective policy, decidedly hostile to the whole system, root and branch; and this on permanent and alleged constitutional grounds.

In the first place, nothing has been done to settle the tariff question. The anti-tariff members of Congress who voted for the late law have, none of them, said they would adhere to it. On the contrary, they supported it, because, as far as it went, it was reduction, and that was what they wished; and if they obtained this degree of reduction now, it would be easier to

obtain a greater degree hereafter; and they frankly declared, that their intent and purpose was to insist on reduction, and to pursue reduction, unremittingly, till all duties on imports should be brought down to one general and equal percentage, and that regulated by the mere wants of the revenue; or, if different rates of duty should remain on different articles, still, that the whole should be laid for revenue, and revenue only; and that they would, to the utmost of their power, push this course, till protection by duties, as a special object of national policy, should be abandoned altogether in the national councils. It is a delusion, therefore, Sir, to imagine that the present tariff stands, safely, on conceded ground. It covers not an inch that has not been fought for, and must not be again fought for. It stands while its friends can protect it, and not an hour longer.

In the next place, in that compend of executive opinion contained in the veto message, the whole principle of the protective policy is plainly and pointedly denounced.

Having gone through its argument against the bank charter, as it now exists, and as it has existed, either under the present or a former law, for near forty years, and having added to the well-doubted logic of that argument the still more doubtful aid of a large array of opprobrious epithets, the message, in unveiled allusion to the protective policy of the country, holds this language:—

“Most of the difficulties our government now encounters, and most of the dangers which impend over our Union, have sprung from an abandonment of the legitimate objects of government by our national legislation, and the adoption of such principles as are embodied in this act. Many of our rich men have not been content with equal protection and equal benefits, but have besought us to make them richer by act of Congress. By attempting to gratify their desires, we have, in the results of our legislation, arrayed section ²⁴² against section, interest against interest, and man against man, in a fearful commotion which threatens to shake the foundations of our Union. It is time to pause in our career, to review our principles, and, if possible, revive that devoted patriotism and spirit of compromise which distinguished the sages of the Revolution and the fathers of our Union. If we cannot at once, in justice to interests vested under improvident legislation, make our government what it ought to be, we can at least take a stand against all new grants of monopolies and exclusive privileges, against any prostitution of our government to the advancement of the few at the expense of the many, and in favor of compromise and gradual reform in our code of laws and system of political economy.”

Here, then, we have the whole creed. Our national legislature has abandoned the legitimate objects of government. It has adopted such principles as are embodied in the bank charter; and these principles are

elsewhere called objectionable, odious, and unconstitutional. All this has been done, because rich men have besought the government to render them richer by acts of Congress. It is time to pause in our career. It is time *to review these principles*. And if we cannot at once MAKE OUR GOVERNMENT WHAT IT OUGHT TO BE, we can, at least, take a stand against new grants of power and privilege.

The plain meaning of all this is, that our protecting laws are founded in an abandonment of the legitimate objects of government; that this is the great source of our difficulties; that it is time to stop in our career, to review the principles of these laws, and, as soon as we can, MAKE OUR GOVERNMENT WHAT IT OUGHT TO BE.

No one can question, Mr. President, that these paragraphs, from the last official publication of the President, show that, *in his opinion, the tariff, as a system designed for protection, is not only impolitic, but unconstitutional also*. They are quite incapable of any other version or interpretation. They defy all explanation, and all glosses.

Sir, however we may differ from the principles or the policy of the administration, it would, nevertheless, somewhat satisfy our pride of country, if we could ascribe to it the character of consistency. It would be grateful if we could contemplate the President of the United States as an identical idea. But even this secondary pleasure is denied to us. In looking to the published records of executive opinions, sentiments favorable to protection and sentiments against protection either come confusedly before us, at the same moment, or else follow each other in rapid succession, like the shadows of a phantasmagoria.

Having read an extract from the veto message, containing the statement of *present opinions*, allow me to read another extract from the annual message of 1830. It will be perceived, that in that message both the clear constitutionality of the tariff laws, and their indispensable policy, are maintained in the fullest and strongest manner. The argument on the constitutional point is stated with more than common ability; and the policy of the laws is affirmed in terms importing the deepest and most settled conviction. We hear in this message nothing of improvident legislation; nothing of the abandonment of the legitimate objects of government; nothing of the necessity of pausing in our career and reviewing our

principles; nothing of the necessity of changing our government, *till it shall be made what it ought to be*. But let the message speak for itself.

“The power to impose duties on imports originally belonged to the several States. The right to adjust those duties with a view to the encouragement of domestic branches of industry is so completely incidental to that power, that it is difficult to suppose the existence of the one without the other. The States have delegated their whole authority over imports to the general government, without limitation or restriction, saving the very inconsiderable reservation relating to their inspection laws. This authority having thus entirely passed from the States, the right to exercise it for the purpose of protection does not exist in them; and consequently, if it be not possessed by the general government, it must be extinct. Our political system would thus present the anomaly of a people stripped of the right to foster their own industry, and to counteract the most selfish and destructive policy which might be adopted by foreign nations. This surely cannot be the case; this indispensable power, thus surrendered by the States, must be within the scope of the authority on the subject expressly delegated to Congress.

“In this conclusion I am confirmed, as well by the opinions of Presidents Washington, Jefferson, Madison, and Monroe, who have each repeatedly recommended the exercise of this right under the Constitution, as by the uniform practice of Congress, the continued acquiescence of the States, and the general understanding of the people.

“I am well aware that this is a subject of so much delicacy, on account of the extended interests it involves, as to require that it should be touched with the utmost caution; and that, while an abandonment of the policy in which it originated, a policy coeval with our government, pursued through successive administrations, is neither to be expected nor desired, the people have a right to demand, and have demanded, that it be so modified as to correct abuses and obviate injustice.” 244

Mr. President, no one needs to point out inconsistencies plain and striking as these. The message of 1830 is a well-written paper; it proceeded, probably, from the cabinet proper. Whence the veto message of 1832 proceeded, I know not; perhaps from the cabinet improper.

But, Sir, there is an important record of an earlier date than 1830. If, as the President avers, we have been guilty of improvident legislation, what act of Congress is the most striking instance of that improvidence? Certainly it is the act of 1824. The principle of protection, repeatedly recognized before that time, was, by that act, carried to a new and great extent; so new and so great, that the act was considered as the foundation of the system. That law it was which conferred on the distinguished citizen, whose nomination for President this meeting has received with so much enthusiasm, (Mr. Clay,) the appellation of the “Author of the American System.” Accordingly, the act of 1824 has been the particular object of attack, in all the warfare waged against the protective policy. If Congress ever abandoned legitimate objects of legislation in favor of protection, it did so by that law. If any laws now

on the statute-book, or which ever were there, show, by their character as laws of protection, that our government is not what it ought to be, and that it ought to be altered, and, in the language of the veto message, *made* what it ought to be, the law of 1824 is the very law which, more than any and more than all others, makes good that assertion. And yet, Sir, the President of the United States, then a Senator in Congress, voted for that law! And, though I have not recurred to the journal, my recollection is, that, as to some of its provisions, his support was essential to their success. It will be found, I think, that some of its enactments, and those now most loudly complained of, would have failed, but for his own personal support of them by his own vote.

After all this, it might have been hoped that there would be, in 1832, some tolerance of opinion toward those who cannot think that improvidence, abandonment of all the legitimate objects of legislation, a desire to gratify the rich, who have besought Congress to make them still richer, and the adoption of principles unequal, oppressive, and odious, are the true characteristics to be ascribed to the system of protection.

But, Sir, it is but a small part of my object to show inconsistencies in executive opinions. My main purpose is different, and tends to more practical ends. It is, to call the attention of the meeting, and of the people, to the principles avowed in the late message as being the President's *present opinions*, and proofs of *his present purposes*, and to the consequences, if they shall be maintained by the country. These principles are there expressed in language which needs no commentary. They go, with a point-blank aim, against the fundamental stone of the protective system; that is to say, against the constitutional power of Congress to establish and maintain that system, in whole or in part. The question, therefore, of the tariff, the question of every tariff, the question between maintaining our agricultural and manufacturing interests where they now are, and breaking up the entire system, and erasing every vestige of it from the statute book, is a question materially to be affected by the pending election.

The President has exercised his NEGATIVE power on the law for continuing the bank charter. Here, too, he denies both the constitutionality and the policy of an existing law of the land. It is true that the law, or a similar one, has been in operation nearly forty years. Previous Presidents and previous

Congresses have, all along, sanctioned and upheld it. The highest courts, and indeed all the courts, have pronounced it constitutional. A majority of the people, greater than exists on almost any other question, agrees with all the Presidents, all the Congresses, and all the courts of law. Yet, against all this weight of authority, the President puts forth his own individual opinion, and has negatived the bill for continuing the law. Which of the members of his administration, or whether any one of them, concur in his sentiments, we know not. Some of them, we know, have recently advanced precisely the opposite opinions, and in the strongest manner recommended to Congress the continuation of the bank charter. Having himself urgently and repeatedly called the attention of Congress to the subject, and his Secretary of the Treasury—who, and all the other secretaries, as the President's friends say, are but so many pens in his hand—having, in his communication to Congress, at this very session, insisted both on the constitutionality and necessity of the bank, the President nevertheless saw fit to negative the bill, passed, as it had been, by strong majorities in both Houses, and passed, without doubt or question, in compliance with the wishes of a vast majority of the American people.

The question respecting the constitutional power of Congress to establish a bank, I shall not here discuss. On that, as well as on the general expediency of renewing the charter, my opinions have been elsewhere expressed. They are before the public, and the experience of every day confirms me in their truth. All that has been said of the embarrassment and distress which will be felt from discontinuing the bank falls far short of an adequate representation. What was prophecy only two months ago is already history.

In this part of the country, indeed, we experience this distress and embarrassment in a mitigated degree. The loans of the bank are not so highly important, or at least not so absolutely necessary, to the present operations of our commerce; yet we ourselves have a deep interest in the subject, as it is connected with the general currency of the country, and with the cheapness and facility of exchange.

The country, generally speaking, was well satisfied with the bank. Why not let it alone? No evil had been felt from it in thirty-six years. Why conjure up a troop of fancied mischiefs, as a pretence to put it down? The message struggles to excite prejudices, from the circumstance that foreigners are stockholders; and on this ground it raises a loud cry against a moneyed

aristocracy. Can any thing, Sir, be conceived more inconsistent than this? any thing more remote from sound policy and good statesmanship? In the United States the rate of interest is high, compared with the rates abroad. In Holland and England, the actual value of money is no more than three, or perhaps three and a half, per cent. In our Atlantic States, it is as high as five or six, taking the whole length of the seaboard; in the Northwestern States, it is eight or ten, and in the Southwestern ten or twelve. If the introduction, then, of foreign capital be discountenanced and discouraged, the American moneylender may fix his own rate anywhere from five to twelve per cent. per annum. On the other hand, if the introduction of foreign capital be countenanced and encouraged, its effects to keep down the rate of interest, and to bring the value of money in the United States so much the nearer to its value in older and richer countries. Every dollar brought from abroad, and put into the mass of active capital at home, by so much diminishes the rate of interest; and by so much, therefore, benefits all the active and trading classes of society, at the expense of the American capitalist. Yet the President's invention, for such it deserves to be called, that which is to secure us against the possibility of being oppressed by a moneyed aristocracy, is to shut the door and bar it safely against all introduction of foreign capital!

Mr. President, what is it that has made England a sort of general banker for the civilized world? Why is it that capital from all quarters of the globe accumulates at the centre of her empire, and is thence again distributed? Doubtless, Sir, it is because she invites it, and solicits it. She sees the advantage of this; and no British minister ever yet did a thing so rash, so inconsiderate, so startling, as to exhibit a groundless feeling of dissatisfaction at the introduction or employment of foreign capital.

Sir, of all the classes of society, the larger stockholders of the bank are among those least likely to suffer from its discontinuance. There are, indeed, on the list of stockholders many charitable institutions, many widows and orphans, holding small amounts. To these, and other proprietors of a like character, the breaking up of the bank will, no doubt, be seriously inconvenient. But the capitalist, he who has invested money in the bank merely for the sake of the security and the interest, has nothing to fear. The refusal to renew the charter will, it is true, diminish the value of the stock; but, then, the same refusal will create a scarcity of money; and this

will reduce the price of all other stocks; so that the stockholders in the bank, receiving, on its dissolution, their portion respectively of its capital, will have opportunities of new and advantageous investment.

The truth is, Sir, the great loss, the sore embarrassment, the severe distress, arising from this VETO, will fall on the public, and especially on the more active and industrious portion of the public. It will inevitably create a scarcity of money; in the Western States, it will most materially depress the value of property; it will greatly enhance, everywhere, the price of domestic exchange; it threatens, everywhere, fluctuations of the currency; and it drives all our well-settled and safe operations of revenue and finance out of their accustomed channels. All this is to be suffered on the pretended ground of a constitutional scruple, which no respect for the opinion of others, no deference to legislative precedent, no decent regard to judicial decision, no homage to public opinion, expressed and maintained for forty years, have power to overcome. An idle apprehension of danger is set up against the experience of almost half a century; loose and flimsy theories are asserted against facts of general notoriety; and arguments are urged against continuing the charter, so superficial and frivolous, and yet so evidently addressed to those of the community who have never had occasion to be conversant with subjects of this sort, that an intelligent reader, who wishes to avoid imputing obliquity of motive, is obliged to content himself with ascribing to the source of the message, whatever and wherever that source may have been, no very distinguished share of the endowments of intellect.

Mr. President, as early as December, 1829, the President called the attention of Congress to the subject of the bank, in the most earnest manner. Look to his annual message of that date. You will find that he then felt constrained, by an irresistible sense of duty to the various interests concerned, not to delay beyond that moment his urgent invitation to Congress to take up the subject. He brought forward the same topic again, in all his subsequent annual messages; yet when Congress *did* act upon it, and, on the fourth of July, EIGHTEEN HUNDRED AND THIRTY-TWO, *did* send him a bill, he returned it with his objections; and among these objections, he not only complained *that the executive was not consulted on the propriety of present action*, but affirmed also, in so many words, *that present action was deemed premature by the executive department*.

Let me ask, Mr. President, if it be possible that the same President, the same chief magistrate, the same mind, could have composed these two messages? Certainly they much more resemble the production of *two* minds, holding, on this point, precisely opposite opinions. The message of December, 1829, asserts that the time had *then* come for Congress to consider the bank subject; the message of 1832 declares, that, even then, the action of Congress on the same subject was *premature*; and both these messages were sent to Congress by the President of the United States. Sir, I leave these two messages to be compared and considered by the people.

Mr. President, I will here take notice of but one other suggestion of the President, relative to the time and manner of passing the late bill. A decent respect for the legislature of the country has hitherto been observed by all who have had occasion to hold official intercourse with it, and especially by all other branches of the government. The purity of the motives of Congress, in regard to any measure, has never been assailed from any respectable quarter. But in the veto message there is one expression, which, as it seems to me, no American can read without some feeling. There is an expression, evidently not casual or accidental, but inserted with design and composed with care, which does carry a direct imputation of the possibility of the effect of *private interest* and *private influence* on the deliberations of the two Houses of Congress. I quote the passage, and shall leave it without a single remark:—"Whatever interest or influence, whether public or private, has given birth to this act, it cannot be found either in the wishes or necessities of the executive department, by which present action is deemed premature."

Among the great interests of the country, Mr. President, there is one which appears to me not to have attracted from the people of this Commonwealth a degree of attention altogether equal to its magnitude. I mean the public lands.

If we run our eye over the map of the country, and view the regions, almost boundless, which now constitute the public domain, and over which an active population is rapidly spreading itself, and if we recollect the amount of annual revenue derived from this source, we shall hardly fail to be convinced that few branches of national interest are of more extensive and lasting importance. So large a territory, belonging to the public, forms a

subject of national concern of a very delicate nature, especially in popular governments. We know, in the history of other countries, with what views and designs the public lands have been granted. Either in the form of gifts and largesses, or in that of reduction of prices to amounts merely nominal, or as compensation for services, real or imagined, the public domain, in other countries and other times, has not only been diverted from its just use and destination, but has been the occasion, also, of introducing into the state and into the public counsels no small portion both of distraction and corruption.

Happily, our own system of administering this great interest has hitherto been both safe and successful. Nothing under the government has been better devised than our land system; and nothing, thus far, more beneficially conducted. But the time seems to have arrived, in the progress of our growth and prosperity, when it has become necessary to reflect, not on any new mode of sale, for that can hardly be improved, but on some disposition of the proceeds such as shall be just and equal to the whole country, and shall insure also a constant and vigilant attention to this important subject from the people of all the States. It is not to be denied or disguised, that sentiments have recently sprung up, in some places, of a very extraordinary character, respecting the ownership, the just proprietary interest, in these lands. The lands are well known to have been obtained by the United States, either by grants from individual States, or by treaties with foreign powers. In both cases, and in all cases, the grants and cessions were to the United States, for the interest of the whole Union; and the grants from individual States contain express limitations and conditions, binding up the whole property to the common use of all the States for ever. Yet, of late years, an idea has been suggested, indeed seriously advanced, *that these lands, of right, belong to the States respectively in which they happen to lie*. This doctrine, Sir, which, I perceive, strikes this assembly as being somewhat extravagant, is founded on an argument derived, as is supposed, from the nature of State sovereignty. It has been openly espoused, by candidates for office, in some of the new States, and, indeed, has been announced in the Senate of the United States.

To the credit of the country, it should be stated, that, up to the present moment, these notions have not spread widely; and they will be repudiated, undoubtedly, by the power of general opinion, so soon as that opinion shall

be awakened and expressed. But there is another tendency more likely, perhaps, to run to injurious excess; and that is, a constant effort to reduce the price of land to sums almost nominal, on the ground of facilitating settlement. The sound policy of the government has been, uniformly, to keep the prices of the public lands low; so low that every actual settler might easily obtain a farm; but yet not so low as to tempt individual capitalists to buy up large quantities to hold for speculation. The object has been to meet, at all times, the whole actual demand, at a cheap rate; and this object has been attained. It is obviously of the greatest importance to keep the prices of the public lands from all influences, except the single one of the desire of supplying the whole actual demand at a cheap rate. The present minimum price is one dollar and a quarter per acre; and millions of acres of land, much of it of an excellent quality, are now in the market at this rate. Yet every year there are propositions to reduce the price, and propositions to graduate the price; that is to say, to provide that all lands having been offered for sale for a certain length of time at the established rate, if not then sold, shall be offered at a less rate; and again reduced, if not sold, to one still less. I have myself thought, that, in some of the oldest districts, some mode might usefully be adopted of disposing of the remainder of the unsold lands, and closing the offices; but a universal system of graduation, lowering prices at short intervals, and by large degrees, could have no other effect than a general depression of price in regard to the whole mass, and would evidently be great mismanagement of the public property. This convention, Sir, will think it singular enough, that a reduction of prices of the public lands should have been demanded on the ground *that other impositions for revenue, such as the duty on tea and coffee, have been removed*; thus considering and treating the sums received for lands sold as a *tax*, a *burden*, an *imposition*, and a great *drain* on the means and the industry of the new States. A man goes from New England to one of the Western States, buys a hundred acres of the best land in the world for one hundred and twenty-five dollars, pays his money, and receives an indisputable title; and immediately some one stands up in Congress to call this operation the laying of a *tax*, the imposition of a *burden*; and the whole of these purchases and payments, taken together, are represented as an intolerable *drain* on the money and the industry of the new States. I know not, Sir, which deserves to pass for the original, and which for the copy; but this reasoning is not unlike that which maintains that the trading community

of the West will be exhausted and ruined by the privilege of borrowing money of the Bank of the United States at six per cent interest; this interest being, as is said in the veto message, a burden upon their industry, and a drain of their currency, which no country can bear without inconvenience and distress!

It was in a forced connection with the reduction of duties of impost, that the subject of the public lands was referred to the Committee of Manufactures in the Senate, at the late session of Congress. This was a legislative movement, calculated to throw on Mr. Clay, who was acting a leading part on the subject of the tariff and the reduction of duties, a new and delicate responsibility. From this responsibility, however, Mr. Clay did not shrink. He took up the subject, and his report upon it, and his speech delivered afterwards in defence of the report, are, in my opinion, among the very ablest of the efforts which have distinguished his long public life. I desire to commend their perusal to every citizen of Massachusetts. They will show him the deep interest of all the States, his own among the rest, in the security, and proper management, and disposal, of the public domain. Founded on the report of the committee, Mr. Clay introduced a bill, providing for the distribution among all the States, according to population, of the proceeds of the sales of the public lands for five years, first making a deduction of a considerable percentage in favor of the new States; the sums thus received by the States to be disposed of by them in favor of education, internal improvement, or colonization, as each State might choose for itself. This bill passed the Senate. It was vigorously opposed in the House of Representatives by the main body of the friends of the administration, and finally lost by a small majority. By the provisions of the bill, Massachusetts would have received, as her dividend, at the present average rate of sales, one hundred and thirty-seven thousand dollars a year.

I am free to confess, Sir, that I had hoped to see some unobjectionable way of disposing of this subject, with the observance of justice towards all the States, by the government of the United States itself, without a distribution through the intervention of the State governments. Such a way, however, I have not discovered. I therefore voted for the bill of the last session.

Mr. President, let me remind the meeting of the great extent of this public property.

Only twenty millions of acres have been as yet sold, from the commencement of the government. One hundred and twenty millions, or about that quantity, are now cleared from the Indian title, surveyed into townships, ranges, and sections, and ready in the market for sale. I think, Sir, the whole surface of Massachusetts embraces about six millions of acres; so that the United States have a body of land, now surveyed and in market, equal to twenty States, each of the size of Massachusetts. But this is but a very small portion of the whole domain, much the greater part being yet unsurveyed, and much, too, subject to the original Indian title. The present income to the treasury from the sales of land is estimated at three millions of dollars a year. The meeting will thus see, Sir, how important a subject this is, and how highly it becomes the country to guard this vast property against perversion and bad management.

Mr. President, among the bills which failed, at the last session, for want of the President's approval, was one in which this State had a great pecuniary interest. It was the bill for the payment of interest to the States on the funds advanced by them during the war, the principal of which had been paid, or assumed, by the government of the United States. Some sessions ago, a bill was introduced into the Senate by my worthy colleague, and passed into a law, for paying a large part of the principal sum advanced by Massachusetts for militia expenses for defence of the country. This has been paid. The residue of the claim is in the proper course of examination; and such parts of it as ought to be allowed will doubtless be paid hereafter, *vetos* being out of the way, be it always understood. In the late bill, it was proposed that *interest* should be paid to the States on these advances, in cases where it had not been already paid. It passed both Houses. I recollect no opposition to it in the Senate nor do I remember to have heard of any considerable objection in the House of Representatives. The argument for it lay in its

own obvious justice; a justice too apparent, as it seems to me, to be denied by any one. I left Congress, Sir, a day or two before its adjournment, and, meeting some friends in this village on my way home, we exchanged congratulations on this additional act of justice thus rendered to Massachusetts, as well as other States. But I had hardly reached Framingham, before I learned that our congratulations were premature. The President's signature had been refused, and the bill was not a law! The only reason which I have ever heard for this refusal is, that Congress had not been in the practice of allowing interest on claims. This is not true, as a universal rule; but if it were, might not Congress be trusted with the maintenance of its own rules? Might it not make exceptions to them for good cause? There is no doubt that, in regard to old and long-neglected claims, it has been customary not to allow interest; but the Massachusetts claim was not of this character, nor were the claims of other States. None of them had remained unpaid for want of presentment. The executive and legislature of this Commonwealth have never omitted to press her demand for justice, and her delegates in Congress have endeavored to discharge their duty by supporting that demand. It has been already decided, in repeated instances, as well in regard to States as to individuals, that when money has been actually *borrowed*, for objects for which the general government ought to provide, interest paid on such *borrowed money* shall be refunded by the United States. Now, Sir, would it not be a distinction without a difference to allow interest in such a case, and yet refuse it in another, in which the State had not borrowed the money, and paid interest for it, but had raised it by taxation, or, as I believe was the case with Massachusetts, by the sale of valuable stocks, *bearing interest*? Is it not apparent, that, in her case, as clearly as in that of a *borrowing* State, she has actually *lost* the interest? Can any man maintain that between these two cases there is any sound distinction, in law, in equity, or in morals? The refusal to sign this bill has deprived Massachusetts and Maine of a very large sum of money, justly due to them. It is now fifteen or sixteen years since the money was advanced; and it was advanced for the most necessary and praiseworthy public purposes. The interest on the sum already refunded, and on that which may reasonably be expected to be hereafter refunded, is not less than *five hundred thousand dollars*. But for the President's refusal, in this unusual mode, to give his approbation to a bill which had passed Congress almost unanimously, these two States would

already have been in the receipt of a very considerable portion of this money, and the residue, to be received in due season, would have been made sure to them.

Mr. President, I do not desire to raise mere pecuniary interests to an undue importance in political matters. I admit there are principles and objects of paramount obligation and importance. I would not oppose the President merely because he has refused to the State what I thought her entitled to, in a matter of money, provided he had made known his reasons, and they had appeared to be such as might fairly influence an intelligent and honest mind. But in a matter of such great and direct importance to a State, where the justice of the case is so plain, that men agree in it who agree in hardly any thing else, where her claim has passed Congress without considerable opposition in either House, a refusal to approve the bill without giving the slightest reason, the taking advantage of the rising of Congress to give it a silent go-by, *is* an act that may well awaken the attention of the people in the States concerned. It *is* an act requiring close examination. It *is* an act which calls loudly for justification by its author. And now, Sir, I will close what I have to say on this particular subject by stating, that, on the 22d of March, 1832, the President did actually approve and sign a bill, in favor of South Carolina, by which it was enacted that her claim *for interest upon money actually expended* by her for military stores during the late war should be settled and paid; *the money so expended having been drawn by the State from a fund upon which she was receiving interest*. This was precisely the case of Massachusetts.

Mr. President, I now approach an inquiry of a far deeper and more affecting interest. Are the principles and measures of the administration dangerous to the Constitution and to the union of the States? Sir, I believe them to be so, and I shall state the grounds of that belief.

In the first place, any administration is dangerous to the Constitution and to the union of the States, which denies the essential powers of the Constitution, and thus strips it of the capacity to do the good intended by it.

The principles embraced by the administration, and expressed in the veto message, are evidently hostile to the whole system of protection by duties of impost, *on constitutional grounds*. Here, then, is *one* great power struck at once out of the Constitution, and one great end of its adoption defeated.

And while this power is thus struck out of the Constitution, it is clear that it exists nowhere else, since the Constitution expressly takes it away from all the States.

The veto message denies the constitutional power of creating or continuing such an institution as our whole experience has approved, for maintaining a sound, uniform, national currency, and for the safe collection of revenue. Here is *another* power, long used, and now lopped off. And *this* power, too, thus lopped off from the Constitution, is evidently not within the power of any of the individual States. No State can maintain a national currency; no State institution can render to the revenue the services performed by a national institution.

The principles of the administration are hostile to internal improvements. Here is another power, heretofore exercised in many instances, now denied. The administration denies the power, except with qualifications which cast an air of ridicule over the whole subject; being founded on such distinctions as between salt water and fresh water, places above custom-houses and places below, and others equally extraordinary.

Now, Sir, in all these respects, as well as in others, I think the principles of the administration are at war with the true principles of the Constitution; and that, by the zeal and industry which it exerts to support its own principles, it does daily weaken the Constitution, and does put in doubt its long continuance. The inroad of to-day opens the way for an easier inroad to-morrow. When any one essential part is rent away, or, what is nearer the truth, when many essential parts are rent away, who is there to tell us *how long any other part is to remain?*

Sir, our condition is singularly paradoxical. We have an administration opposed to the Constitution; we have an opposition which is the main support of the government and the laws. We have an administration denying to the very government which it administers powers that have been exercised for forty years; it denies the protective power, the bank power, and the power of internal improvement. The great and leading measures of the national legislature are all resisted by it. These, strange as it may seem, depend on the *opposition* for support. We have, in truth, an opposition, without which it would be difficult for the government to get along at all. I appeal to every member of Congress present, (and I am happy to see many

here,) to say what would now become of the government, if all the members of the opposition were withdrawn from Congress. For myself, I declare my own conviction that its continuance would probably be very short. Take away the opposition from Congress, and let us see what would probably be done, the first session. The TARIFF would be entirely *repealed*. Every enactment having protection by duties as its main object would be struck from the statute-book. This would be the first thing done. Every work of internal improvement would be stopped. This would follow, as matter of course. The bank would go down, and a *treasury money agency* would take its place. The Judiciary Act of 1789 would be repealed, so that the Supreme Court should exercise no power of revision over State decisions. And who would resist the doctrines of NULLIFICATION? Look, Sir, to the votes of Congress for the last three years, and you will see that each of these things would, in all human probability, take place at the next session, if the opposition were to be withdrawn. The Constitution is threatened, therefore, imminently threatened, by the very fact that those intrusted with its administration are hostile to its essential powers.

But, Sir, in my opinion, a yet greater danger threatens the Constitution and the government; and that is from the attempt *to extend the power of the executive at the expense of all the other branches of the government, and of the people themselves*. Whatever accustomed power is denied to the Constitution, whatever accustomed power is denied to Congress, or to the judiciary, *none is denied to the executive*. Here there is no retrenchment; here no apprehension is felt for the liberties of the people; here it is not thought necessary to erect barriers against corruption.

I begin, Sir, with the subject of removals from office for opinion's sake, ³⁵⁸ one of the most signal instances, as I think, of the attempt to extend executive power. This has been a leading measure, a cardinal point, in the course of the administration. It has proceeded, from the first, on a settled proscription for political opinions; and this system it has carried into operation to the full extent of its ability. The President has not only filled all vacancies with his own friends, generally those most distinguished as personal partisans, but he has turned out political opponents, and thus created vacancies, in order that he might fill them with his own friends. I think the number of removals and appointments is said to be *two thousand*. While the administration and its friends have been attempting to circumscribe and to decry the powers

belonging to other branches, it has thus seized into its own hands a patronage most pernicious and corrupting, an authority over men's means of living most tyrannical and odious, and a power to punish free men for political opinions altogether intolerable.

You will remember, Sir, that the Constitution says not one word about the President's power of removal from office. It is a power raised entirely by construction. It is a constructive power, introduced at first to meet cases of extreme public necessity. It has now become coextensive with the executive will, calling for no necessity, requiring no exigency for its exercise; to be employed at all times, without control, without question, without responsibility. When the question of the President's power of removal was debated in the first Congress, those who argued for it limited it to *extreme cases*. Cases, they said, might arise, in which it would be *absolutely necessary* to remove an officer before the Senate could be assembled. An officer might become insane; he might abscond; and from these and other supposable cases, it was said, the public service might materially suffer if the President could not remove the incumbent. And it was further said, that there was little or no danger of the abuse of the power for party or personal objects. No President, it was thought, would ever commit such an outrage on public opinion. Mr. Madison, who thought the power ought to exist, and to be exercised in cases of high necessity, declared, nevertheless, that if a President should resort to the power when not required by any public exigency, and merely for personal objects, *he would deserve to be impeached*. By a very small majority,—I think, in the Senate, by the casting vote of the Vice-President,—Congress decided in favor of the existence of the power of removal, upon the grounds which I have mentioned; granting the power in a case of clear and absolute necessity, and denying its existence everywhere else.

Mr. President, we should recollect that this question was discussed, and thus decided, when Washington was in the executive chair. Men knew that in his hands the power would not be abused; nor did they conceive it possible that any of his successors could so far depart from his great and bright example, as, by abuse of the power, and by carrying that abuse to its utmost extent, to change the essential character of the executive from that of an impartial guardian and executor of the laws into that of the chief dispenser of party rewards. Three or four instances of removal occurred in the first twelve

years of the government. At the commencement of Mr. Jefferson's administration, he made several others, not without producing much dissatisfaction; so much so, that he thought it expedient to give reasons to the people, in a public paper, for even the limited extent to which he had exercised the power. He rested his justification on particular circumstances and peculiar grounds; which, whether substantial or not, showed, at least, that he did not regard the power of removal as an ordinary power, still less as a mere arbitrary one, to be used as he pleased, for whatever ends he pleased, and without responsibility. As far as I remember, Sir, after the early part of Mr. Jefferson's administration, hardly an instance occurred for near thirty years. If there were any instances, they were few. But at the commencement of the present administration, the precedent of these previous cases was seized on, and a *system*, a regular *plan of government*, a well-considered scheme for the maintenance of party power by the patronage of office, and this patronage to be created by general removal, was adopted, and has been carried into full operation. Indeed, before General Jackson's inauguration, the party put the system into practice. In the last session of Mr. Adams's administration, the friends of General Jackson constituted a majority in the Senate; and nominations, made by Mr. Adams to fill vacancies which had occurred in the ordinary way, were postponed, by this majority, beyond the 3d of March, *for the purpose, openly avowed, of giving the nominations to General Jackson.* A nomination for a judge of the Supreme Court, and many others of less magnitude, were thus disposed of.

And what did we witness, Sir, when the administration actually commenced, in the full exercise of its authority? One universal sweep, one undistinguishing blow, levelled against all who were not of the successful party. No worth, public or private, no service, civil or military, was of power to resist the relentless greediness of proscription. Soldiers of the late war, soldiers of the Revolutionary war, the very contemporaries of the independence of the country, all lost their situations. No office was too high, and none too low; for *office* was the spoil, and "*all the spoils,*" it is said, "*belong to the victors!*" If a man holding an office necessary for his daily support had presented himself covered with the scars of wounds received in every battle, from Bunker Hill to Yorktown, these would not have protected him against this reckless rapacity. Nay, Sir, if Warren himself had been among the living, and had possessed any office under

government, high or low, he would not have been suffered to hold it a single hour, unless he could show that he had strictly complied with the party statutes, and had put a well-marked party collar round his own neck. Look, Sir, to the case of the late venerable Major Melville. He was a personification of the spirit of 1776, one of the earliest to venture in the cause of liberty. He was of the Tea Party; one of the very first to expose himself to British power. And his whole life was consonant with this, its beginning. Always ardent in the cause of liberty, always a zealous friend to his country, always acting with the party which he supposed cherished the genuine republican spirit most fervently, always estimable and respectable in private life, he seemed armed against this miserable petty tyranny of party as far as man could be. But he felt its blow, and he fell. He held an office in the custom-house, and had held it for a long course of years; and he was deprived of it, as if unworthy to serve the country which he loved, and for whose liberties, in the vigor of his early manhood, he had thrust himself into the very jaws of its enemies. There was no mistake in the matter. His character, his standing, his Revolutionary services, were all well known; but they were known to no purpose; they weighed not one feather against party pretensions. It cost no pains to remove him; it cost no compunction to wring his aged heart with this retribution from his country for his services, his zeal, and his fidelity. Sir, you will bear witness,^[98] that, when his successor was nominated to the Senate, and the Senate were informed who had been removed to make way for that nomination, its members were struck with horror. They had not conceived the administration to be capable of such a thing; and yet, they said, What can we do? The man is removed; we cannot recall him; we can only act upon the nomination before us. Sir, you and I thought otherwise; and I rejoice that we did think otherwise. We thought it our duty to resist the nomination to fill a vacancy thus created. We thought it our duty to oppose this proscription, when, and where, and as, we constitutionally could. We besought the Senate to go with us, and to take a stand before the country on this great question. We invoked them to try the deliberate sense of the people; to trust themselves before the tribunal of public opinion; to resist at first, to resist at last, to resist always, the introduction of this unsocial, this mischievous, this dangerous, this belligerent principle into the practice of the government.

Mr. President, as far as I know, there is no civilized country on earth, in which, on a change of rulers, there is such an *inquisition for spoil* as we have witnessed in this free republic. The Inaugural Address of 1829 spoke of a *searching operation* of government. The most searching operation, Sir, of the present administration, has been its search for office and place. When, Sir, did any English minister, Whig or Tory, ever make such an inquest? When did he ever go down to low-water-mark, to make an ousting of tide-waiters? When did he ever take away the daily bread of weighers, and gaugers, and measurers? When did he ever go into the villages, to disturb the little post-offices, the mail contracts, and every thing else in the remotest degree connected with government? Sir, a British minister who should do this, and should afterwards show his head in a British House of Commons, would be received by a universal hiss.

I have little to say of the selections made to fill vacancies thus created. It is true, however, and it is a natural consequence of the system which has been acted on, that, within the last three years, more nominations have been rejected on the ground of *unfitness*, than in all the preceding forty years of the government. And these nominations, you know, Sir, could not have been rejected but by votes of the President's own friends. The cases were too strong to be resisted. Even party attachment could not stand them. In some not a third of the Senate, in others not ten votes, and in others not a single vote, could be obtained; and this for no particular reason known only to the Senate, but on general grounds of the want of character and qualifications; on grounds known to every body else, as well as to the Senate. All this, Sir, is perfectly natural and consistent. The same party selfishness which drives good men out of office will push bad men in. Political proscription leads necessarily to the filling of offices with incompetent persons, and to a consequent mal-execution of official duties. And in my opinion, Sir, this principle of claiming a monopoly of office by the right of conquest, unless the public shall effectually rebuke and restrain it, will entirely change the character of our government. It elevates party above country; it forgets the common weal in the pursuit of personal emolument; it tends to form, it does form, we see that it has formed, a political combination, united by no common principles or opinions among its members, either upon the powers of the government, or the true policy of the country; but held together simply as an association, under the charm of a popular head, seeking to maintain possession of the government by a *vigorous exercise of its*

patronage; and for this purpose agitating, and alarming, and distressing social life by the exercise of a tyrannical party proscription. Sir, if this course of things cannot be checked, good men will grow tired of the exercise of political privileges. They will have nothing to do with popular elections. They will see that such elections are but a mere selfish contest for office; and they will abandon the government to the scramble of the bold, the daring, and the desperate.

It seems, Mr. President, to be a peculiar and singular characteristic of the present administration, that it came into power on a cry against abuses, *which did not exist*, and then, as soon as it was in, as if in mockery of the perception and intelligence of the people, *it created those very abuses*, and carried them to a great length. Thus the chief magistrate himself, before he came into the chair, in a formal public paper, denounced the practice of appointing members of Congress to office. He said, that, if that practice continued, *corruption would become the order of the day*; and, as if to fasten and nail down his own consistency to that point, he declared that it was *due to himself to practise what he recommended to others*. Yet, Sir, as soon as he was in power, these fastenings gave way, the nails all flew, and the promised *consistency* remains a striking proof of the manner in which political assurances are sometimes fulfilled. He has already appointed more members of Congress to office than any of his predecessors, in the longest period of administration. Before his time, there was no reason to complain of these appointments. They had not been numerous under any administration. Under this, they have been numerous, and some of them such as may well justify complaint.

Another striking instance of the exhibition of the same characteristics may be found in the sentiments of the Inaugural Address, and in the subsequent practice, on the subject of *interfering with the freedom of elections*. The Inaugural Address declares, that it is necessary to reform abuses which have *brought the patronage of the government into conflict with the freedom of elections*. And what has been the subsequent practice? Look to the newspapers; look to the published letters of officers of the government, advising, exhorting, soliciting, friends and partisans to greater exertions in the cause of the party; see all done, everywhere, which patronage and power can do, to affect, not only elections in the general government, but also in every State government, and then say, how well *this* promise of

reforming abuses has been kept. At what former period, under what former administration, did public officers of the United States thus interfere in elections? Certainly, Sir, never. In this respect, then, as well as in others, that which was not true as a charge against previous administrations would have been true, if it had assumed the form of a prophecy respecting the acts of the present.

But there is another attempt to grasp and to wield a power over public opinion, of a still more daring character, and far more dangerous effects.

In all popular governments, a FREE PRESS is the most important of all agents and instruments. It not only expresses public opinion, but, to a very great degree, it contributes to form that opinion. It is an engine for good or for evil, as it may be directed; but an engine of which nothing can resist the force. The conductors of the press, in popular governments, occupy a place, in the social and political system, of the very highest consequence. They wear the character of public instructors. Their daily labors bear directly on the intelligence, the morals, the taste, and the public spirit of the country. Not only are they journalists, recording political occurrences, but they discuss principles, they comment on measures, they canvass characters; they hold a power over the reputation, the feelings, the happiness, of individuals. The public ear is always open to their addresses, the public sympathy easily made responsive to their sentiments. It is indeed, Sir, a distinction of high honor, that theirs is the only profession expressly protected and guarded by constitutional enactments. Their employment soars so high, in its general consequences it is so intimately connected with the public happiness, that its security is provided for by the fundamental law. While it acts in a manner worthy of this distinction, the press is a fountain of light, and a source of gladdening warmth. It instructs the public mind, and animates the spirit of patriotism. Its loud voice suppresses every thing which would raise itself against the public liberty; and its blasting rebuke causes incipient despotism to perish in the bud.

But remember, Sir, that these are the attributes of a FREE press only. And is a press that is purchased or pensioned more free than a press that is fettered? Can the people look for truths to partial sources, whether rendered partial through fear or through favor? Why shall not a manacled press be trusted with the maintenance and defence of popular rights? Because it is supposed

to be under the influence of a power which may prove greater than the love of truth. Such a press may screen abuses in government, or be silent. It may fear to speak. And may it not fear to speak, too, when its conductors, if they speak in any but one way, may lose their means of livelihood? Is dependence on government for bread no temptation to screen its abuses? Will the press always speak the truth, when the truth, if spoken, may be the means of silencing it for the future? Is the truth in no danger, is the watchman under no temptation, when he can neither proclaim the approach of national evils, nor seem to descry them, without the loss of his place?

Mr. President, an open attempt to secure the aid and friendship of the public press, by bestowing the emoluments of office on its active conductors, seems to me, of every thing we have witnessed, to be the most reprehensible. It degrades both the government and the press. As far as its natural effect extends, it turns the palladium of liberty into an engine of party. It brings the agency, activity, energy, and patronage of government all to bear, with united force, on the means of general intelligence, and on the adoption or rejection of political opinions. It so completely perverts the true object of government, it so entirely revolutionizes our whole system, that the chief business of those in power is directed rather to the propagation of opinions favorable to themselves, than to the execution of the laws. This propagation of opinions, through the press, becomes the main administrative duty. Some fifty or sixty editors of leading journals have been appointed to office by the present executive. A stand has been made against this proceeding, in the Senate, with partial success; but, by means of appointments which do not come before the Senate, or other means, the number has been carried to the extent I have mentioned. Certainly, Sir, the editors of the public journals are not to be disfranchised. Certainly they are fair candidates either for popular elections, or a just participation in office. Certainly they reckon in their number some of the first geniuses, the best scholars, and the most honest and well-principled men in the country. But the complaint is against the *system*, against the *practice*, against the undisguised attempt to secure the favor of the press by means addressed to its pecuniary interest, and these means, too, drawn from the public treasury, being no other than the appointed compensations for the performance of official duties. Sir, the press itself should resent this. Its own character for purity and independence is at stake. It should resist a connection rendering it obnoxious to so many imputations. It should point to its honorable

denomination in our constitutions of government, and it should maintain the character, there ascribed to it, of a FREE PRESS.

There can, Sir, be no objection to the appointment of an editor to office, if he is the fittest man. There can be no objection to considering the services which, in that or in any other capacity, he may have rendered his country. He may have done much to maintain her rights against foreign aggression, and her character against insult. He may have honored, as well as defended her; and may, therefore, be justly regarded and selected, in the choice of faithful public agents. But the ground of complaint is, that the aiding, by the press, of the election of an individual, is rewarded, by that same individual, with the gift of moneyed offices. Men are turned out of office, and others put in, and receive salaries from the public treasury, on the ground, either openly avowed or falsely denied, that they have rendered service in the election of the very individual who makes this removal and makes this appointment. Every man, Sir, must see that this is a vital stab at the purity of the press. It not only assails its independence, by addressing sinister motives to it, but it furnishes from the public treasury the means of exciting these motives. It extends the executive power over the press in a most daring manner. It operates to give a direction to opinion, not favorable to the government, in the aggregate; not favorable to the Constitution and laws; not favorable to the legislature; but favorable to the executive alone. The consequence often is, just what might be looked for, that the portion of the press thus made fast to the executive interest denounces Congress, denounces the judiciary, complains of the laws, and quarrels with the Constitution. This exercise of the right of appointment to this end is an augmentation, and a vast one, of the executive power, singly and alone. It uses that power strongly against all other branches of the government, and it uses it strongly, too, for any struggle which it may be called on to make with the public opinion of the country. Mr. President, I will quit this topic. There is much in it, in my judgment, affecting, not only the purity and independence of the press, but also the character and honor, the peace and security, of the government. I leave it, in all its bearings, to the consideration of the people.

Mr. President, among the novelties introduced into the government by the present administration is the frequent use of the President's negative on acts of Congress. Under former Presidents, this power has been deemed an

extraordinary one, to be exercised only in peculiar and marked cases. It was vested in the President, doubtless, as a guard against hasty or inconsiderate legislation, and against any act, inadvertently passed, which might seem to encroach on the just authority of other branches of the government. I do not recollect that, by all General Jackson's predecessors, this power was exercised more than four or five times. Not having recurred to the journals, I cannot, of course, be sure that I am numerically accurate in this particular; but such is my belief. I recollect no instance in the time of Mr. John Adams, Mr. Jefferson, or Mr. John Quincy Adams. The only cases which occur to me are two in General Washington's administration, two in Mr. Madison's, and one in Mr. Monroe's. There may be some others; but we all know that it is a power which has been very sparingly and reluctantly used, from the beginning of the government. The cases, Sir, to which I have now referred, were cases in which the President returned the bill with objections. The silent veto is, I believe, the exclusive adoption of the present administration. I think, indeed, that, some years ago, a bill, by inadvertence or accident, failed to receive the President's signature, and so did not become a law. But I am not aware of any instance, before the present administration, in which the President has, by design, omitted to sign a bill, and yet has not returned it to Congress. But since that administration came into power, the veto, in both kinds, has been repeatedly applied. In the case of the Maysville Road, the Montgomery Road, and the bank, we have had the veto, *with* reasons. In an internal improvement bill of a former session, in a similar bill at the late session, and in the State interest bill, we have had the silent veto, or refusal *without* reasons.

Now, Sir, it is to be considered, that the President has the power of recommending measures to Congress. Through his friends, he may and does oppose, also, any legislative movement which he does not approve. If, in addition to this, he may exercise a silent veto, at his pleasure, on all the bills presented to him during the last ten days of the session; if he may refuse assent to them all, without being called upon to assign any reasons whatever,—it will certainly be a great practical augmentation of his power. Any one, who looks at a volume of the statutes, will see that a great portion of all the laws are actually passed within the last ten days of each session. If the President is at liberty to negative any or all of these laws, at pleasure, or rather, to refuse to render the bills laws by approving them, and still may neglect to return them to Congress for renewed action, he will hold a very

important control over the legislation of this country. The day of adjournment is usually fixed some weeks in advance. This being fixed, a little activity and perseverance may easily, in most cases, and perhaps in all, where no alarm has been excited, postpone important pending measures to a period within ten days of the close of the session; and this operation subjects all such measures to the discretion of the President, who may sign the bills or not, without being obliged to state his reasons publicly.

The bill for rechartering the bank would have been inevitably destroyed by the silent veto, if its friends had not refused to fix an any term for adjournment before the President should have had the bill in his possession so long as to be required constitutionally to sign it, or to send it back with his reasons for not signing it. The two houses did not agree, and would not agree, to fix a day for adjournment, until the bill was sent to the President; and then care was taken to fix on such a day as should allow him the whole constitutional period. This seasonable presentment rescued the bill from the power of the silent negative.

This practical innovation on the mode of administering the government, so much at variance with its general principles, and so capable of defeating the most useful acts, deserves public consideration. Its tendency is to disturb the harmony which ought always to exist between Congress and the executive, and to turn that which the Constitution intended only as an extraordinary remedy for extraordinary cases into a common means of making executive discretion paramount to the discretion of Congress, in the enactment of laws.

Mr. President, the executive has not only used these unaccustomed means to prevent the passage of laws, but it has also refused to enforce the execution of laws actually passed. An eminent instance of this is found in the course adopted relative to the Indian intercourse law of 1802. Upon being applied to, in behalf of the MISSIONARIES, to execute that law, for their relief and protection, the President replied, that, *the State of Georgia having extended her laws over the Indian territory, the laws of Congress had thereby been superseded*. This is the substance of his answer, as communicated through the Secretary of War. He holds, then, that the law of the State is paramount to the law of Congress. The Supreme Court has adjudged this act of Georgia to be void, as being repugnant to a constitutional law of the United States.

But the President pays no more regard to this decision than to the act of Congress itself. The missionaries remain in prison, held there by a condemnation under a law of a State which the supreme judicial tribunal has pronounced to be null and void. The Supreme Court have decided that the act of Congress is constitutional; that it is a binding statute; that it has the same force as other laws, and is as much entitled to be obeyed and executed as other laws. The President, on the contrary, declares that the law of Congress has been superseded by the law of the State, and therefore he will not carry its provisions into effect. Now we know, Sir, that the Constitution of the United States declares, that that Constitution, and all acts of Congress passed in pursuance of it, shall be the supreme law of the land, any thing in any State law to the contrary notwithstanding. This would seem to be a plain case, then, in which the law should be executed. It has been solemnly decided to be in actual force, by the highest judicial authority; its execution is demanded for the relief of free citizens, now suffering the pains of unjust and unlawful imprisonment; yet the President refuses to execute it.

In the case of the Chicago Road, some sessions ago, the President approved the bill, but accompanied his approval by a message, saying how far he deemed it a proper law, and how far, therefore, it ought to be carried into execution.

In the case of the harbor bill of the late session, being applied to by a member of Congress for directions for carrying parts of the law into effect, he declined giving them, and made a distinction between such parts of the law as he should cause to be executed, and such as he should not; and his right to make this distinction has been openly maintained, by those who habitually defend his measures. Indeed, Sir, these, and other instances of liberties taken with plain statute laws, flow naturally from the principles expressly avowed by the President, under his own hand. In that important document, Sir, upon which it seems to be his fate to stand or to fall before the American people, the veto message, he holds the following language:—“Each public officer who takes an oath to support the Constitution, swears that he will support it as he understands it, and not as it is understood by others.” Mr. President, the general adoption of the sentiments expressed in this sentence would dissolve our government. It would raise every man’s private opinions into a standard for his own conduct; and there

certainly is, there can be, no government, where every man is to judge for himself of his own rights and his own obligations. Where every one is his own arbiter, force, and not law, is the governing power. He who may judge for himself, and decide for himself, must execute his own decisions; and this is the law of force. I confess, Sir, it strikes me with astonishment, that so wild, so disorganizing, a sentiment should be uttered by a President of the United States. I should think it must have escaped from its author through want of reflection, or from the habit of little reflection on such subjects, if I could suppose it possible, that, on a question exciting so much public attention, and of so much national importance, any such extraordinary doctrine could find its way, through inadvertence, into a formal and solemn public act. Standing as it does, it affirms a proposition which would effectually repeal all constitutional and all legal obligations. The Constitution declares, that every public officer, in the State governments as well as in the general government, shall take an oath to support the Constitution of the United States. This is all. Would it not have cast an air of ridicule on the whole provision, if the Constitution had gone on to add the words, “as he understands it”? What could come nearer to a solemn farce, than to bind a man by oath, and still leave him to be his own interpreter of his own obligation? Sir, those who are to execute the laws have no more a license to construe them for themselves, than those whose only duty is to obey them. Public officers are bound to support the Constitution; private citizens are bound to obey it; and there is no more indulgence granted to the public officer to support the Constitution only *as he understands it*, than to a private citizen to obey it only *as he understands it*; and what is true of the Constitution, in this respect, is equally true of any law. Laws are to be executed, and to be obeyed, not as individuals may interpret them, but according to public, authoritative interpretation and adjudication. The sentiment of the message would abrogate the obligation of the whole criminal code. If every man is to judge of the Constitution and the laws for himself, if he is to obey and support them only as he may say he understands them, a revolution, I think, would take place in the administration of justice; and discussions about the law of treason, murder, and arson should be addressed, not to the judicial bench, but to those who might stand charged with such offences. The object of discussion should be, if we run out this notion to its natural extent, to enlighten the culprit himself how he ought to understand the law.

Mr. President, how is it possible that a sentiment so wild, and so dangerous, so encouraging to all who feel a desire to oppose the laws, and to impair the Constitution, should have been uttered by the President of the United States at this eventful and critical moment? Are we not threatened with dissolution of the Union? Are we not told that the laws of the government shall be openly and directly resisted? Is not the whole country looking, with the utmost anxiety, to what may be the result of these threatened courses? And at this very moment, so full of peril to the state, the chief magistrate puts forth opinions and sentiments as truly subversive of all government, as absolutely in conflict with the authority of the Constitution, as the wildest theories of nullification. Mr. President, I have very little regard for the law, or the logic, of nullification. But there is not an individual in its ranks, capable of putting two ideas together, who, if you will grant him the principles of the veto message, cannot defend all that nullification has ever threatened.

To make this assertion good, Sir, let us see how the case stands. The Legislature of South Carolina, it is said, will nullify the late revenue or tariff law, because, *they say*, it is not warranted by the Constitution of the United States, *as they understand the Constitution*. They, as well as the President of the United States, have sworn to support the Constitution. Both he and they have taken the same oath, in the same words. Now, Sir, since he claims the right to interpret the Constitution as he pleases, how can he deny the same right to them? Is his oath less stringent than theirs? Has he a prerogative of dispensation which they do not possess? How can he answer them, when they tell him, that the revenue laws are unconstitutional, *as they understand the Constitution*, and that therefore they will nullify them? Will he reply to them, according to the doctrines of his annual message in 1830, that *precedent* has settled the question, if it was ever doubtful? They will answer him in his own words in the veto message, that, in such a case, *precedent* is not binding. Will he say to them, that the revenue law is a law of Congress, which must be executed until it shall be declared void? They will answer him, that, in other cases, he has himself refused to execute laws of Congress which had not been declared void, but which had been, on the contrary, declared valid. Will he urge the force of judicial decisions? They will answer, that he himself does not admit the binding obligation of such decisions. Sir, the President of the United States is of opinion, that an individual, called on to execute a law, may himself judge of its

constitutional validity. Does nullification teach any thing more revolutionary than that? The President is of opinion, that judicial interpretations of the Constitution and the laws do not bind the consciences, and ought not to bind the conduct, of men. Is nullification at all more disorganizing than that? The President is of opinion, that every officer is bound to support the Constitution only according to what ought to be, in his private opinion, its construction. Has nullification, in its wildest flight, ever reached to an extravagance like that? No, Sir, never. The doctrine of nullification, in my judgment a most false, dangerous, and revolutionary doctrine, is this; that *the State*, or *a State*, may declare the extent of the obligations which its citizens are under to the United States; in other words, that a State, by State laws and State judicatures, may conclusively construe the Constitution for its own citizens. But that every individual may construe it for himself is a refinement on the theory of resistance to constitutional power, a sublimation of the right of being disloyal to the Union, a free charter for the elevation of private opinion above the authority of the fundamental law of the state, such as was never presented to the public view, and the public astonishment, even by nullification itself. Its first appearance is in the veto message. Melancholy, lamentable, indeed, Sir, is our condition, when, at a moment of serious danger and wide-spread alarm, such sentiments are found to proceed from the chief magistrate of the government. Sir, I cannot feel that the Constitution is safe in such hands. I cannot feel that the present administration is its fit and proper guardian.

But let me ask, Sir, what evidence there is, that the President is himself opposed to the doctrines of nullification: I do not say to the political party which now pushes these doctrines, but to the doctrines themselves. Has he anywhere rebuked them? Has he anywhere discouraged them? Has his influence been exerted to inspire respect for the Constitution, and to produce obedience to the laws? Has he followed the bright example of his predecessors? Has he held fast by the institutions of the country? Has he summoned the good and the wise around him? Has he admonished the country that the Union is in danger, and called on all the patriotic to come out in its support? Alas! Sir, we have seen nothing, nothing, of all this.

Mr. President, I shall not discuss the doctrine of nullification. I am sure it can have no friends here. Gloss it and disguise it as we may, it is a pretence incompatible with the authority of the Constitution. If direct separation be

not its only mode of operation, separation is, nevertheless, its direct consequence. That a State may nullify a law of the Union, and still remain in the Union; that she may have Senators and Representatives in the government, and yet be at liberty to disobey and resist that government; that she may partake in the common councils, and yet not be bound by their results; that she may control a law of Congress, so that it shall be one thing with her, while it is another thing with the rest of the States;—all these propositions seem to me so absolutely at war with common sense and reason, that I do not understand how any intelligent person can yield the slightest assent to them. Nullification, it is in vain to attempt to conceal it, is dissolution; it is dismemberment; it is the breaking up of the Union. If it shall practically succeed in any one State, from that moment there are twenty-four States in the Union no longer. Now, Sir, I think it exceedingly probable that the President may come to an open rupture with that portion of his original party which now constitutes what is called the Nullification party. I think it likely he will oppose the proceedings of that party, if they shall adopt measures coming directly in conflict with the laws of the United States. But how will he oppose? What will be his course of remedy? Sir, I wish to call the attention of the Convention, and of the people, earnestly to this question,—How will the President attempt to put down nullification, if he shall attempt it at all?

Sir, for one, I protest in advance against such remedies as I have heard hinted. The administration itself keeps a profound silence, but its friends have spoken for it. We are told, Sir, that the President will immediately employ the military force, and at once blockade Charleston! A military remedy, a remedy by direct belligerent operation, has been thus suggested, and nothing else has been suggested, as the intended means of preserving the Union. Sir, there is no little reason to think, that this suggestion is true. We cannot be altogether unmindful of the past, and therefore we cannot be altogether unapprehensive for the future. For one, Sir, I raise my voice beforehand against the unauthorized employment of military power, and against superseding the authority of the laws, by an armed force, under pretence of putting down nullification. The President has no authority to blockade Charleston; the President has no authority to employ military force, till he shall be duly required so to do, by law, and by the civil authorities. His duty is to cause the laws to be executed. His duty is to support the civil authority. His duty is, if the laws be resisted, to employ the

military force of the country, if necessary, for their support and execution; but to do all this in compliance only with law, and with decisions of the tribunals. If, by any ingenious devices, those who resist the laws escape from the reach of judicial authority, as it is now provided to be exercised, it is entirely competent to Congress to make such new provisions as the exigency of the case may demand. These provisions undoubtedly would be made. With a constitutional and efficient head of the government, with an administration really and truly in favor of the Constitution, the country can grapple with nullification. By the force of reason, by the progress of enlightened opinion, by the natural, genuine patriotism of the country, and by the steady and well-sustained operations of law, the progress of disorganization may be successfully checked, and the Union maintained. Let it be remembered, that, where nullification is most powerful, it is not unopposed. Let it be remembered, that they who would break up the Union by force have to march toward that object through thick ranks of as brave and good men as the country can show; men strong in character, strong in intelligence, strong in the purity of their own motives, and ready, always ready, to sacrifice their fortunes and their lives to the preservation of the constitutional union of the States. If we can relieve the country from an administration which denies to the Constitution those powers which are the breath of its life; if we can place the government in the hands of its friends; if we can secure it against the dangers of irregular and unlawful military force; if it can be under the lead of an administration whose moderation, firmness, and wisdom shall inspire confidence and command respect,—we may yet surmount the dangers, numerous and formidable as they are, which surround us.

Sir, I see little prospect of overcoming these dangers without a change of men. After all that has passed, the reflection of the present executive will give the national sanction to sentiments and to measures which will effectually change the government; which, in short, must destroy the government. If the President be reflected, with concurrent and coöperating majorities in both houses of Congress, I do not see, that, in four years more, all the power which is suffered to remain in the government will not be held by the executive hand. Nullification will proceed, or will be put down by a power as unconstitutional as itself. The revenues will be managed by a treasury bank. The use of the veto will be considered as sanctioned by the public voice. The Senate, if not “cut down,” will be bound down, and, the

President commanding the army and the navy, and holding all places of trust to be party property, what will then be left, Sir, for constitutional reliance?

Sir, we have been accustomed to venerate the judiciary, and to repose hopes of safety on that branch of the government. But let us not deceive ourselves. The judicial power cannot stand for a long time against the executive power. The judges, it is true, hold their places by an independent tenure; but they are mortal. That which is the common lot of humanity must make it necessary to renew the benches of justice. And how will they be filled? Doubtless, Sir, they will be filled by judges agreeing with the President in his constitutional opinions. If the court is felt as an obstacle, the first opportunity and every opportunity will certainly be embraced to give it less and less the character of an obstacle. Sir, without pursuing these suggestions, I only say that the country must prepare itself for any change in the judicial department such as it shall deliberately sanction in other departments.

But, Sir, what is the prospect of change? Is there any hope that the national sentiment will recover its accustomed tone, and restore to the government a just and efficient administration?

Sir, if there be something of doubt on this point, there is also something, perhaps much, of hope. The popularity of the present chief magistrate, springing from causes not connected with his administration of the government, has been great. Public gratitude for military service has remained fast to him, in defiance of many things in his civil administration calculated to weaken its hold. At length there are indications, not to be mistaken, of new sentiments and new impressions. At length, a conviction of danger to important interests, and to the security of the government, has made its lodgement in the public mind. At length, public sentiment begins to have its free course and to produce its just effects. I fully believe, Sir, that a great majority of the nation desire a change in the administration; and that it will be difficult for party organization or party denunciation to suppress the effective utterance of that general wish. There are unhappy differences, it is true, about the fit person to be successor to the present incumbent in the chief magistracy; and it is possible that this disunion may, in the end, defeat the will of the majority. But so far as we agree together, let us act together. Wherever our sentiments concur, let our hands coöperate. If we cannot at

present agree who should be President, we are at least agreed who ought not to be. I fully believe, Sir, that gratifying intelligence is already on the wing. While we are yet deliberating in Massachusetts, Pennsylvania is voting. This week, she elects her members to the next Congress. I doubt not the result of that election will show an important change in public sentiment in that State; nor can I doubt that the great States adjoining her, holding similar constitutional principles and having similar interests, will feel the impulse of the same causes which affect her. The people of the United States, by a countless majority, are attached to the Constitution. If they shall be convinced that it is in danger, they will come to its rescue, and will save it. It cannot be destroyed, even now, if THEY will undertake its guardianship and protection.

But suppose, Sir, there was less hope than there is, would that consideration weaken the force of our obligations? Are we at a post which we are at liberty to desert when it becomes difficult to hold it? May we fly at the approach of danger? Does our fidelity to the Constitution require no more of us than to enjoy its blessings, to bask in the prosperity which it has shed around us and our fathers? and are we at liberty to abandon it in the hour of its peril, or to make for it but a faint and heartless struggle, for the want of encouragement and the want of hope? Sir, if no State come to our succor, if everywhere else the contest should be given up, here let it be protracted to the last moment. Here, where the first blood of the Revolution was shed, let the last effort be made for that which is the greatest blessing obtained by the Revolution, a free and united government. Sir, in our endeavors to maintain our existing forms of government, we are acting not for ourselves alone, but for the great cause of constitutional liberty all over the globe. We are trustees holding a sacred treasure, in which all the lovers of freedom have a stake. Not only in revolutionized France, where there are no longer subjects, where the monarch can no longer say, I am the state; not only in reformed England, where our principles, our institutions, our practice of free government, are now daily quoted and commended; but in the depths of Germany, also, and among the desolated fields and the still smoking ashes of Poland, prayers are uttered for the preservation of our union and happiness. We are surrounded, Sir, by a cloud of witnesses. The gaze of the sons of liberty, everywhere, is upon us, anxiously, intently, upon us. They may see us fall in the struggle for our Constitution and government, but Heaven forbid that they should see us recreant.

At least, Sir, let the star of Massachusetts be the last which shall be seen to fall from heaven, and to plunge into the utter darkness of disunion. Let her shrink back, let her hold others back if she can, at any rate, let her keep herself back, from this gulf, full at once of fire and of blackness; yes, Sir, as far as human foresight can scan, or human imagination fathom, full of the fire and the blood of civil war, and of the thick darkness of general political disgrace, ignominy, and rain. Though the worst may happen that can happen, and though she may not be able to prevent the catastrophe, yet let her maintain her own integrity, her own high honor, her own unwavering fidelity, so that with respect and decency, though with a broken and a bleeding heart, she may pay the last tribute to a glorious, departed, free Constitution.

FOOTNOTES

[96]

A Speech delivered at the National Republican Convention held at Worcester, Mass., on the 12th of October, 1832, preparatory to the Annual Elections.

[97]

See [page 269](#), *infra*.

[98]

Hon. Nathaniel Silsbee, President of the Convention, was Mr. Webster's colleague in the Senate at the time referred to.

[99]

A Speech delivered at a Public Dinner in Honor of the Centennial Birthday of Washington, on the 22d of February, 1832.

[100]

Extract of a letter written by John Adams to Nathan Webb, dated at Worcester, Massachusetts, October 12, 1755.

“Soon after the Reformation, a few people came over into this New World, for conscience’ sake. Perhaps this apparently trivial incident may transfer the great seat of empire into America. It looks likely to me; for, if we can remove the turbulent Gallics, our people, according to the exactest computations, will, in another century, become more numerous than England itself. Should this be the case, since we have, I may say, all the naval stores of the nation in our hands, it will be easy to obtain a mastery of the seas; and then the united force of all Europe will not be able to subdue us. The only way to keep us from setting up for ourselves is to disunite us.”

RECEPTION AT BUFFALO. 101

In the summer of 1833, Mr. Webster made a visit to the State of Ohio. On his way thither, while at Buffalo, New York, he was invited by the citizens of that place to attend a public dinner, which his engagements, and the necessity of an early departure, compelled him to decline. He accepted, however, an invitation to be present at the launching of a steamboat, to which the proprietors had given the name of DANIEL WEBSTER, and, in reply to an address from one of them, made the following remarks:—

I avail myself gladly of this opportunity of making my acknowledgments to the proprietors of this vessel, for the honor conferred upon me by allowing her to bear my name. Such a token of regard, had it proceeded from my immediate friends and neighbors, could not but have excited feelings of gratitude. It is more calculated to awaken these sentiments, when coming from gentlemen of character and worth with whom I have not had the pleasure of personal acquaintance, and whose motive, I may flatter myself, is to be found in an indulgent opinion towards well-intentioned services in a public situation.

It gives me great pleasure, also, on the occasion of so large an assembly of the people of Buffalo, to express to them my thanks for the kindness and hospitality with which I have been received in this young, but growing and interesting city. The launching of another vessel on these inland seas is but a fresh occasion of congratulation on the rapid growth, the great active prosperity, and the animating prospects of this city. Eight years ago, fellow-citizens, I enjoyed the pleasure of a short visit to this place. There was then but one steamboat on Lake Erie; it made its passage once in ten or fifteen days only; and I remember that persons in my own vicinity, intending to travel to the Far West by that conveyance, wrote to their friends here to learn the day of the commencement of the contemplated voyage. I understand that there are now eighteen steamboats plying on the lake, all finding full employment; and that a boat leaves Buffalo twice every day for Detroit and the ports in Ohio. The population of Buffalo, now four times as large as it was then, has kept pace with the augmentation of its commercial business. This rapid progress is an indication, in a single instance, of what is

likely to be the rate of the future progress of the city. So many circumstances incline to favor its advancement, that it is difficult to estimate the rate by which it may hereafter proceed. It will probably not be long before the products of the fisheries of the East, the importations of the Atlantic frontier, the productions, mineral and vegetable, of all the Northwestern States, and the sugars of Louisiana, will find their way hither by inland water communication. Much of this, indeed, has already taken place, and is of daily occurrence. Many, who remember the competition between Buffalo and Black Rock for the site of the city, will doubtless live to see the city spread over both. This singular prosperity, fellow-citizens, so gratifying for the present, and accompanied with such high hopes for the future, is due to your own industry and enterprise, to your favored position, and to the flourishing condition of the internal commerce of the country; and the blessings and the riches of that internal commerce, be it ever remembered, are the fruits of a united government, and one general, common commercial system.

It is not only the trade of New York, of Ohio, of New England, of Indiana, or of Michigan, but it is a part of the great aggregate of the trade of all the States, in which you so largely and so successfully partake. Who does not see that the advantages here enjoyed spring from a general government and a uniform code? Who does not see, that, if these States had remained severed, and each had existed with a system of imposts and commercial regulations of its own, all excluding and repelling, rather than inviting, the intercourse of the rest, the place could hardly have hoped to be more than a respectable frontier post? Or can any man look to the one and to the other side of this beautiful lake and river, and not see, in their different conditions, the plain and manifest results of different political institutions and commercial regulations?

It would be pleasant, fellow-citizens, to dwell on these topics, so worthy at all times of regard and reflection; and especially so fit to engage attention at the present moment. But this is not the proper moment to pursue them; and, tendering to you once more my thanks and good wishes, I take my leave of you by expressing my hope for the continued success of that great interest, so essential to your happiness,—THE COMMERCE OF THE LAKES, A NEW-DISCOVERED SOURCE OF NATIONAL PROSPERITY, AND A NEW BOND OF NATIONAL UNION.

An address was also made to Mr. Webster in behalf of the mechanics and manufacturers of Buffalo, to which he returned the following reply:—

I need hardly say, Mr. Chairman and Gentlemen, that it gives me much satisfaction to receive this mark of approbation of my public conduct from the manufacturers and mechanics of Buffalo. Those who are the most immediately affected by the measures of the government are naturally the earliest to perceive their operation, and to foresee their final results. Allow me to say, Gentlemen, that the confidence expressed by you in my continuance in the general course which I have pursued must rest, and may rest safely, I trust, on the history of the past. Desiring always to avoid extremes, and to observe a prudent moderation in regard to the protective system, I yet hold steadiness and perseverance, in maintaining what has been established, to be essential to the public prosperity. Nothing can be worse than that laws concerning the daily labor and the daily bread of whole classes of the people should be subject to frequent and violent changes. It were far better not to move at all than to move forward and then fall back again.

My sentiments, Gentlemen, on the tariff question, are generally known. In my opinion, a just and a leading object in the whole system is the encouragement and protection of American manual labor. I confess, that every day's experience convinces me more and more of the high propriety of regarding this object. Our government is made for all, not for a few. Its object is to promote the greatest good of the whole; and this ought to be kept constantly in view in its administration. The far greater number of those who maintain the government belong to what may be called the industrious or productive classes of the community. With us labor is not depressed, ignorant, and unintelligent. On the contrary, it is active, spirited, enterprising, seeking its own rewards, and laying up for its own competence and its own support. The motive to labor is the great stimulus to our whole society; and no system is wise or just which does not afford this stimulus, as far as it may. The protection of American labor against the injurious competition of foreign labor, so far, at least, as respects general handicraft productions, is known historically to have been one end designed to be obtained by establishing the Constitution; and this object, and the constitutional power to accomplish it, ought never in any degree to be surrendered or compromised.

Our political institutions, Gentlemen, place power in the hands of all the people; and to make the exercise of this power, in such hands, salutary, it is indispensable that all the people should enjoy, first, the means of education, and, second, the reasonable certainty of procuring a competent livelihood by industry and labor. These institutions are neither designed for, nor suited to, a nation of ignorant paupers. To disseminate knowledge, then, universally, and to secure to labor and industry their just rewards, is the duty both of the general and the State governments, each in the exercise of its appropriate powers. To be free, the people must be intelligently free; to be substantially independent, they must be able to secure themselves against want, by sobriety and industry; to be safe depositaries of political power, they must be able to comprehend and understand the general interests of the community, and must themselves have a stake in the welfare of that community. The interest of labor, therefore, has an importance, in our system, beyond what belongs to it as a mere question of political economy. It is connected with our forms of government, and our whole social system. The activity and prosperity which at present prevail among us, as every one must notice, are produced by the excitement of compensating prices to labor; and it is fervently to be hoped that no unpropitious circumstances and no unwise policy may counteract this efficient cause of general competency and public happiness.

I pray you, Mr. Chairman and Gentlemen, to receive personally my thanks for the manner in which you have communicated to me the sentiments of the meeting which you represent.

FOOTNOTES

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Remarks made to the Citizens of Buffalo, June, 1833.

RECEPTION AT PITTSBURG.

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INTRODUCTORY NOTE.

Mr. Webster arrived at Pittsburg on the evening of the 4th of July accompanied by a numerous cavalcade of citizens. He was immediately waited on by a committee, with the following letter:—

“TO THE HON. DANIEL WEBSTER.

“Pittsburg, July 4, 1833.

“SIR,—At a meeting of the citizens of Pittsburg, the undersigned were appointed a committee to convey to you a cordial welcome, and an assurance of the exalted sense which is entertained of your character and public services.

“The feeling is one which pervades our whole community, scorning any narrower discrimination than that of lovers of our sacred Union, and admirers of the highest moral and intellectual qualities, steadily and triumphantly devoted to the noblest purposes.

“The resolutions under which the committee act indicate no particular form of tribute, but contain only an earnest injunction to seek the best mode by which to manifest the universal recognition of your claim to the admiration and gratitude of every American citizen. It will be deeply mortifying to us, if our execution of this trust shall fail adequately to represent the enthusiastic feeling in which it had its origin.

“The committee will have the honor of waiting on you in person, at such an hour as you may please to designate, with a view to ascertain how they can best fulfil the purposes of their appointment. It will be very gratifying if

your convenience will permit you to partake of a public dinner at any period during your stay.

“We have the honor to be, with the highest respect, &c.

JAMES ROSS,
BENJAMIN BAKEWELL,
CHARLES AVERY,
WILLIAM WADE,
SAMUEL PETTIGREW,
GEORGE MILTENBERGER,
ISAAC LIGHTNER,
SYLVANUS LATHROP,
JOHN ARTHURS,
ALEX. BRACKENRIDGE,
WILLIAM ROBINSON, JUN.
GEORGE A. COOK,
W. W. FETTERMAN,
SAMUEL ROSEBURGH,
WILLIAM MACKEY,
JAMES JOHNSTON,
RICHARD BIDDLE,
SAMUEL P. DARLINGTON,
MICHAEL TIERNAN,
SAMUEL FAHNESTOCK,
THOMAS BAKEWELL,
WALTER H. LOWRIE,
WILLIAM W. IRWIN,
ROBERT S. CASSAT,
CORNELIUS DARRAGH,
BENJAMIN DARLINGTON,
NEVILLE B. CRAIG,
WILSON McCANDLES,
OWEN ASHTON,
CHARLES SHALER,
THOMAS SCOTT,
CHARLES H. ISRAEL.”

“Pittsburg, July 5, 1833.

“GENTLEMEN,—I hardly know how to express my thanks for the hospitable and cordial welcome with which the citizens of Pittsburg are disposed to receive me on this my first visit to their city. The terms in which you express their sentiments, in your letter of yesterday, far transcend all merits of mine, and can have their origin only in spontaneous kindness and good feeling. I tender to you, Gentlemen, and to the meeting which you represent, my warmest acknowledgments. I rejoice sincerely to find the health of the city so satisfactory; and I reciprocate with all the people of Pittsburg the most sincere and hearty good wishes for their prosperity and happiness. Long may it continue what it now is, an abode of comfort and hospitality, a refuge for the well-deserving from all nations, a model of industry, and an honor to the country.

“It is my purpose, Gentlemen, to stay a day or two among you, to see such of your manufactories and public institutions as it may be in my power to visit. I most respectfully pray leave to decline a public dinner, but shall have great pleasure in meeting such of your fellow-citizens as may desire it, in the most friendly and unceremonious manner.

“I am, Gentlemen, with very true regard, yours,

“DANIEL WEBSTER.

“To HON. JAMES ROSS and others,
Gentlemen of the Committee.”

In deference to Mr. Webster’s wishes, the idea of a formal dinner was abandoned; but, as there was a general desire for some collective expression of public esteem, it was determined to invite him to meet the citizens in a spacious grove, at four o’clock on the afternoon of the 8th. Refreshments of a plain kind were spread around, under the charge of the committee; but the tables could serve only as a nucleus to the multitude. His Honor the Mayor called the company to order, and addressed them as follows:—

“I have to ask, Gentlemen, your attention for a few moments.

“We are met here to mark our sense of the extraordinary merits of a distinguished statesman and public benefactor. At his particular request, every thing like parade or ceremonial has been waived; and, in consequence, he has been the better enabled to receive, and to reciprocate, the hearty and spontaneous expression of your good-will. I am now desired

to attempt, in your name, to give utterance to the universal feeling around me.

“Gentlemen, we are this day citizens of the *United States*. The Union is safe. Not a star has fallen from that proud banner around which our affections have so long rallied. And when, with this delightful assurance, we cast our eyes back upon the eventful history of the last year,—when we recall the gloomy apprehensions, and perhaps hopeless despondency, which came over us,—who, Gentlemen, can learn, without a glow of enthusiasm, that the great champion of the Constitution, that DANIEL WEBSTER, is now in the midst of us. To his mighty intellect, the nation, with one voice, confided its cause,—of life or death. Shall there be withheld from the triumphant advocate of the nation a nation’s gratitude? Ours, Gentlemen, is a government not of force, but of opinion. The reason of the people must be satisfied before a call to arms. The mass of our peaceful and conscientious citizens cannot, and ought not, except in a clear case, to be urged to abandon the implements of industry for the sword and the bayonet. This consideration it is that imparts to intellectual preëminence in the service of truth its incalculable value. And hence the preciousness of that admirable and unanswerable exposition, which has put down, once and for ever, the artful sophisms of nullification.

“If, Gentlemen, we turn to other portions of the public history of our distinguished guest, it will be found that his claims to grateful acknowledgment are not less imposing. The cause of domestic industry, of internal improvement, of education, of whatever, in short, is calculated to render us a prosperous, united, and happy people, has found in him a watchful and efficient advocate. Nor is it the least of his merits, that to our gallant *Navy* Mr. Webster has been an early, far-sighted, and persevering friend. Our interior position cannot render us cold and unobservant on this point, whilst the victory of Perry yet supplies to us a proud and inspiring anniversary. And such is the wonderful chain of mutual dependence which binds our Union, that, in the remotest corner of the West, the exchangeable value of every product must depend on the security with which the ocean can be traversed.

“Gentlemen, I have detained you too long; yet I will add one word. I do but echo the language of the throngs that have crowded round Mr. Webster in declaring, that the frank and manly simplicity of his character and manners

has created a feeling of personal regard which no mere intellectual ascendancy could have secured. We approached him with admiration for the achievements of his public career, never supposing for a moment that our hearts could have aught to do in the matter; we shall part as from a valued friend, the recollection of whose virtues cannot pass away.”

MR. WEBSTER then addressed the assembly as follows:

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RECEPTION AT PITTSBURG.[\[102\]](#)

Mr. Mayor and Gentlemen:—I rise, fellow-citizens, with unaffected sensibility, to give you my thanks for the hospitable manner in which you have been kind enough to receive me, on this my first visit to Pittsburg, and to make all due acknowledgments to your worthy Mayor, for the sentiments which he has now seen fit to express.

Although, Gentlemen, it has been my fortune to be personally acquainted with very few of you, I feel, at this moment, that we are not strangers. We are fellow-countrymen, fellow-citizens, bound together by a thousand ties of interest, of sympathy, of duty; united, I hope I may add, by bonds of mutual regard. We are bound together, for good or for evil, in our great political interests. I know that I am addressing Americans, every one of whom has a true American heart in his bosom; and I feel that I have also an American heart in my bosom. I address you, then, Gentlemen, with the same fervent good wishes for your happiness, the same brotherly affection, and the same feelings of regard and esteem, as if, instead of being upon the borders of the Ohio, I stood by the Connecticut or the Merrimack. As citizens, countrymen, and neighbors, I give you my hearty good wishes, and thank you, over and over again, for your abundant hospitality.

Gentlemen, the Mayor has been pleased to advert, in terms beyond all expectation or merit of my own, to my services in defence of the glorious Constitution under which we live, and which makes you and me all that we are, and all that we desire to be. He has done much more than justice to my

efforts; but he has not overstated the importance of the occasion on which those efforts were made.

Gentlemen, it is but a few short months since dark and portentous clouds *did* hang over our heavens, and *did* shut out, as it were, the sun in his glory. A new and perilous crisis was upon us. Dangers, novel in their character, and fearful in their aspect, menaced both the peace of the country and the integrity of the Constitution. For forty years our government had gone on, I need hardly say how prosperously and gloriously, meeting, it is true, with occasional dissatisfaction, and, in one or two instances, with ill-concerted resistance to law. Through all these trials it had successfully passed. But now a time had come when the authority of law was opposed by authority of law, when the power of the general government was resisted by the arms of State government, and when organized military force, under all the sanctions of State conventions and State laws, was ready to resist the collection of the public revenues, and hurl defiance at the statutes of Congress.

‘Gentlemen, this was an alarming moment. In common with all good citizens, I felt it to be such. A general anxiety pervaded the breasts of all who were, at home, partaking in the prosperity, honor, and happiness which the country had enjoyed. And how was it abroad? Why, Gentlemen, every intelligent friend of human liberty, throughout the world, looked with amazement at the spectacle which we exhibited. In a day of unparalleled prosperity, after a half-century’s most happy experience of the blessings of our Union; when we had already become the wonder of all the liberal part of the world, and the envy of the illiberal; when the Constitution had so amply falsified the predictions of its enemies, and more than fulfilled all the hopes of its friends; in a time of peace, with an overflowing treasury; when both the population and the improvement of the country had outrun the most sanguine anticipations;—it was at this moment that we showed ourselves to the whole civilized world as being apparently on the eve of disunion and anarchy, at the very point of dissolving, once and for ever, that Union which had made us so prosperous and so great. It was at this moment that those appeared among us who seemed ready to break up the national Constitution, and to scatter the twenty-four States into twenty-four unconnected communities.

Gentlemen, the President of the United States was, as it seemed to me, at this eventful crisis, true to his duty. He comprehended and understood the case, and met it as it was proper to meet it. While I am as willing as others to admit that the President has, on other occasions, rendered important services to the country, and especially on that occasion which has given him so much military renown, I yet think the ability and decision with which he rejected the disorganizing doctrines of nullification create a claim, than which he has none higher, to the gratitude of the country and the respect of posterity. The appearance of the proclamation of the 10th of December inspired me, I confess, with new hopes for the duration of the republic. I regarded it as just, patriotic, able, and imperiously demanded by the condition of the country. I would not be understood to speak of particular clauses and phrases in the proclamation; but I regard its great and leading doctrines as the true and only true doctrines of the Constitution. They constitute the sole ground on which dismemberment can be resisted. Nothing else, in my opinion, can hold us together. While these opinions are maintained, the Union will last; when they shall be generally rejected and abandoned, that Union will be at the mercy of a temporary majority in any one of the States.

I speak, Gentlemen, on this subject, without reserve. I have not intended heretofore, and elsewhere, and do not now intend here, to stint my commendation of the conduct of the President in regard to the proclamation and the subsequent measures. I have differed with the President, as all know, who know any thing of so humble an individual as myself, on many questions of great general interest and importance. I differ with him in respect to the constitutional power of internal improvements; I differ with him in respect to the rechartering of the Bank, and I dissent, especially, from the grounds and reasons on which he refused his assent to the bill passed by Congress for that purpose. I differ with him, also, probably, in the degree of protection which ought to be afforded to our agriculture and manufactures, and in the manner in which it may be proper to dispose of the public lands. But all these differences afforded, in my judgment, not the slightest reason for opposing him in a measure of paramount importance, and at a moment of great public exigency. I sought to take counsel of nothing but patriotism, to feel no impulse but that of duty, and to yield not a lame and hesitating, but a vigorous and cordial, support to measures which, in my conscience, I believed essential to the preservation of the

Constitution. It is true, doubtless, that if myself and others had surrendered ourselves to a spirit of opposition, we might have embarrassed, and probably defeated, the measures of the administration. But in so doing, we should, in my opinion, have been false to our own characters, false to our duty, and false to our country. It gives me the highest satisfaction to know, that, in regard to this subject, the general voice of the country does not disapprove my conduct.

I ought to add, Gentlemen, that, in whatever I may have done or attempted in this respect, I only share a common merit. A vast majority of both houses of Congress cordially concurred in the measures. Your own great State was seen in her just position on that occasion, and your own immediate representatives were found among the most zealous and efficient friends of the Union.

Gentlemen, I hope that the result of that experiment may prove salutary in its consequences to our government, and to the interests of the community. I hope that the signal and decisive manifestation of public opinion, which has, for the time at least, put down the despotism of nullification, may produce permanent good effects. I know full well that popular topics may be urged against the proclamation. I know it may be said, in regard to the laws of the last session, that, if such laws are to be maintained, Congress may pass what laws they please, and enforce them. But may it not be said, on the other side, that, if a State may nullify one law, she may nullify any other law also, and, therefore, that the *principle* strikes at the whole power of Congress? And when it is said, that, if the power of State interposition be denied, Congress may pass and enforce what laws it pleases, is it meant to be contended or insisted, that the Constitution has placed Congress under the guardianship and control of the State legislatures? Those who argue against the power of Congress, from the possibility of its abuse, entirely forget that, if the power of State interposition be allowed, that power may be abused also. What is more material, they forget the will of the people, as they have plainly expressed it in the Constitution. They forget that *the people have chosen* to give Congress a power of legislation, independent of State control. They forget that the Confederation has ceased, and that a *Constitution*, a *government*, has taken its place. They forget that this government is a popular government, that members of Congress are but agents and servants of the people, chosen for short periods, periodically

removable by the people, as much subservient, as much dependent, as willingly obedient, as any other of their agents and servants. This dependence on the people is the security that they will not act wrong. This is the security which the people themselves have chosen to rely on, in addition to the guards contained in the Constitution itself.

I am quite aware, Gentlemen, that it is easy for those who oppose measures deemed necessary for the execution of the laws, to raise the cry of *consolidation*. It is easy to make charges, and to bring general accusations. It is easy to call names. For one, I repel all such imputations. I am no *consolidationist*. I disclaim the character altogether, and, instead of repeating this general and vague charge, I will be obliged to any one to show how the proclamation, or the late law of Congress, or, indeed, any measure to which I ever gave my support, tends, in the slightest degree, to consolidation. By consolidation is understood a grasping at power, on behalf of the general government, not constitutionally conferred. But the proclamation asserted no new power. It only asserted the right in the government to carry into effect, in the form of law, power which it had exercised for forty years. I should oppose any grasping at new powers by Congress, as zealously as the most zealous. I wish to preserve the Constitution as it is, without addition, and without diminution, by one jot or tittle. For the same reason that I would not grasp at powers not given, I would not surrender nor abandon powers which are given. Those who have placed me in a public station placed me there, not to alter the Constitution, but to administer it. The power of change the people have retained to themselves. *They* can alter, they can modify, they can change the Constitution entirely, if they see fit. *They* can tread it under foot, and make another, or make no other; but while it remains unaltered by the authority of the people, it is our power of attorney, our letter of credit, our credentials; and we are to follow it, and obey its injunctions, and maintain its just powers, to the best of our abilities. I repeat, that, for one, I seek to preserve to the Constitution those precise powers with which the people have clothed it. While no encroachment is to be made on the reserved rights of the people or of the States, while nothing is to be usurped, it is equally clear that we are not at liberty to surrender, either in fact or form, any power or principle which the Constitution does actually contain.

And what is the ground for this cry of consolidation? I maintain that the measures recommended by the President, and adopted by Congress, were measures of self-defence. Is it consolidation to execute laws? Is it consolidation to resist the force that is threatening to overturn our government? Is it consolidation to protect officers, in the discharge of their duty, from courts and juries previously sworn to decide against them?

Gentlemen, I take occasion to remark, that, after much reflection upon the subject, and after all that has been said about the encroachment of the general government upon the rights of the States, I know of no one power, exercised by the general government, which was not, when that instrument was adopted, admitted by the immediate friends and foes of the Constitution to have been conferred upon it by the people. I know of no one power, now claimed or exercised, which every body did not agree, in 1789, was conferred on the general government. On the contrary, there are several powers, and those, too, among the most important for the interests of the people, which were then universally allowed to be conferred on Congress by the Constitution of the United States, and which are now ingeniously doubted, or clamorously denied.

Gentlemen, upon this point I shall detain you with no further remarks. It does, however, give me the most sincere pleasure to say, that, in a long visit through the State west of you, and the great State north of you, as well as in a tour of some days' duration in the respectable State to which you belong, I find but one sentiment in regard to the conduct of the government upon this subject. I know that those who have seen fit to intrust to me, in part, their interests in Congress, approve of the measures recommended by the President. We see that he has taken occasion, during the recess of Congress, to visit that part of the country; and we know how he has been received. Nowhere have hands been extended with more sincerity of friendship; ³⁹⁷ and for one, Gentlemen, I take occasion to say, that, having heard of his return to the seat of government with health rather debilitated, it is among my most earnest prayers that Providence may spare his life, and that he may go through his administration and come out of it with as much success and glory as any of his predecessors.

Your worthy chief magistrate has been kind enough, Gentlemen, to express sentiments favorable to myself, as a friend of domestic industry. Domestic industry! How much of national power and opulence, how much of

individual comfort and respectability, that phrase implies! And with what force does it strike us, as we stand here, at the confluence of the two rivers whose united currents constitute the Ohio, and in the midst of one of the most flourishing and distinguished manufacturing cities in the Union! Many thousand miles of inland navigation, running through a new and rapidly-improving country, stretch away below us. Internal communications, completed or in progress, connect the city with the Atlantic and the Lakes. A hundred steam-engines are in daily operation, and nature has supplied the fuel which feeds their incessant flames on the spot itself, in exhaustless abundance. Standing here, Gentlemen, in the midst of such a population, and with such a scene around us, how great is the import of these words, “domestic industry”!

Next to the preservation of the government itself, there can hardly be a more vital question, to such a community as this, than that which regards their own employments, and the preservation of that policy which the government has adopted and cherished for the encouragement and protection of those employments. This is not, in a society like this, a matter which affects the interest of a particular class, but one which affects the interest of all classes. It runs through the whole chain of human occupation and employment, and touches the means of living and the comfort of all.

Gentlemen, those of you who may have turned your attention to the subject know, that, in the quarter of the country with which I am more immediately connected, the people were not early or eager to urge the government to carry the protective policy to the height which it has reached. Candor obliges me to remind you, that, when the act of 1824 was passed, neither he who now addresses you, nor those with whom he usually acted on such subjects, were ready or willing to take the step which that act proposed. They doubted its *expediency*. It passed, however, by the great and overwhelming influence of the central States, New York, Pennsylvania, and Ohio. New England acquiesced in it. She conformed to it, as the settled policy of the country, and gave to her capital and her labor a corresponding direction. She has now become vitally interested in the preservation of the system. Her prosperity is identified, not perhaps with any particular degree of protection, but with the preservation of the principle; and she is not likely to consent to yield the principle, under any circumstances whatever. And who would dare to yield it? Who, standing here, and looking round on this

community and its interests, would be bold enough to touch the spring which moves so much industry and produces so much happiness? Who would shut up the mouths of these vast coal-pits? Who would stay the cargoes of manufactured goods, now floating down a river, one of the noblest in the world, and stretching through territories almost boundless in extent and unequalled in fertility? Who would quench the fires of so many steam-engines, or check the operations of so much well-employed labor? Gentlemen, I cannot conceive how any subversion of that policy which has hitherto been pursued can take place, without great public embarrassment and great private distress.

I have said, that I am in favor of protecting American manual labor; and after the best reflection I can give the subject, and from the lights which I can derive from the experience of ourselves and others, I have come to the conclusion that such protection is just and proper; and that to leave American labor to sustain a competition with that of the over-peopled countries of Europe would lead to a state of things to which the people could never submit. This is the great reason why I am for maintaining what has been established. I see at home, I see here, I see wherever I go, that the stimulus which has excited the existing activity, and is producing the existing prosperity, of the country, is nothing else than the stimulus held out to labor by compensating prices. I think this effect is visible everywhere, from Penobscot to New Orleans, and manifest in the condition and circumstances of the great body of the people; for nine tenths of the whole people belong to the laborious, industrious, and productive classes; and on these classes the stimulus acts. We perceive that the price of labor is high, and we know that the means of living are low; and these two truths speak volumes in favor of the general prosperity of the country. I am aware, as has been said already, that this high price of labor results partly from the favorable condition of the country. Labor was high, comparatively speaking, before the act of 1824 passed; but that fact affords no reason, in my judgment, for endangering its security and sacrificing its hopes, by overthrowing what has since been established for its protection.

Let us look, Gentlemen, to the condition of other countries, and inquire a little into the causes, which, in some of them, produce poverty and distress, the lamentations of which reach our own shores. I see around me many whom I know to be emigrants from other countries. Why are they here?

Why is the native of Ireland among us? Why has he abandoned scenes as dear to him as these hills and these rivers are to you? Is there any other cause than this, that the burden of taxation on the one hand, and the low reward of labor on the other, left him without the means of a comfortable subsistence, or the power of providing for those who were dependent upon him? Was it not on this account that he left his own land, and sought an asylum in a country of free laws, of comparative exemption from taxation, of boundless extent, and in which the means of living are cheap, and the prices of labor just and adequate? And do not these remarks apply, with more or less accuracy, to every other part of Europe? Is it not true, that sobriety, and industry, and good character, can do more for a man here than in any other part of the world? And is not this truth, which is so obvious that none can deny it, founded in this plain reason, that labor in this country earns a better reward than anywhere else, and so gives more comfort, more individual independence, and more elevation of character? Whatever else may benefit particular portions of society, whatever else may assist capital, whatever else may favor sharp-sighted commercial enterprise, professional skill, or extraordinary individual sagacity or good fortune, be assured, Gentlemen, that nothing can advance the mass of society in prosperity and happiness, nothing can uphold the substantial interest and steadily improve the general condition and character of the whole, but this one thing, *compensating rewards to labor*. The fortunate situation of our country tends strongly, of itself, to produce this result; the government has adopted the policy of coöperating with this natural tendency of things; it has encouraged and fostered labor and industry, by a system of discriminating duties; and the result of these combined causes may be seen in the present circumstances of the country.

Gentlemen, there are important considerations of another kind connected with this subject. Our government is popular; popular in its foundation, and popular in its exercise. The actual character of the government can never be better than the general moral and intellectual character of the community. It would be the wildest of human imaginations, to expect a poor, vicious, and ignorant people to maintain a good popular government. Education and knowledge, which, as is obvious, can be generally attained by the people only where there are adequate rewards to labor and industry, and some share in the public interest, some stake in the community, would seem indispensably necessary in those who have the power of appointing all

public agents, passing all laws, and even of making and unmaking constitutions at their pleasure. Hence the truth of the trite maxim, that knowledge and virtue are the only foundation of republics. But it is to be added, and to be always remembered, that there never was, and never can be, an intelligent and virtuous people who at the same time are a poor and idle people, badly employed and badly paid. Who would be safe in any community, where political power is in the hands of the many and property in the hands of the few? Indeed, such an unnatural state of things could nowhere long exist.

It certainly appears to me, Gentlemen, to be quite evident at this time, and in the present condition of the world, that it is necessary to protect the industry of this country against the pauper labor of England and other parts of Europe. An American citizen, who has children to maintain and children to *educate*, has an unequal chance against the pauper of England, whose children are not to be educated, and are probably already on the parish, and who himself is half fed and clothed by his own labor, and half from the poor-rates, and very badly fed and clothed after all. As I have already said, the condition of our country of itself, without the aid of government, does much to favor American manual labor; and it is a question of policy and justice, at all times, what and how much government shall do in aid of natural advantages. In regard to some branches of industry, the natural advantages are less considerable than in regard to others; and those, therefore, more imperiously demand the regard of government. Such are the occupations, generally speaking, of the numerous classes of citizens in cities and large towns; the workers in leather, brass, tin, iron, &c.; and such, too, under most circumstances, are the employments connected with ship-building.

Our own experience has been a powerful, and ought to be a convincing and long-remembered, preacher on this point. From the close of the war of the Revolution, there came on a period of depression and distress, on the Atlantic coast, such as the people had hardly felt during the sharpest crisis of the war itself. Ship-owners, ship-builders, mechanics, artisans, all were destitute of employment, and some of them destitute of bread. British ships came freely, and British goods came plentifully; while to American ships and American products there was neither protection on the one side, nor the equivalent of reciprocal free trade on the other. The cheaper labor of

England supplied the inhabitants of the Atlantic shores with every thing. Ready-made clothes, among the rest, from the crown of the head to the soles of the feet, were for sale in every city. All these things came free from any general system of imposts. Some of the States attempted to establish their own partial systems, but they failed. Voluntary association was resorted to, but that failed also. A memorable instance of this mode of attempting protection occurred in Boston. The ship-owners, seeing that British vessels came and went freely, while their own ships were rotting at the wharves, raised a committee to address the people, recommending to them, in the strongest manner, not to buy or use any articles imported in British ships. The chairman of this committee was no less distinguished a character than the immortal John Hancock. The committee performed its duty powerfully and eloquently. It set forth strong and persuasive reasons why the people should not buy or use British goods imported in British ships. The ship-owners and merchants having thus proceeded, the mechanics of Boston took up the subject also. They answered the merchants' committee. They agreed with them cordially, that British goods, imported in British vessels, ought not to be bought or consumed; but then they took the liberty of going a step farther, and of insisting *that such goods ought not to be bought or consumed at all*. (Great applause.) "For," said they, "Mr. Hancock, what difference does it make to us, whether hats, shoes, boots, shirts, handkerchiefs, tin-ware, brass-ware, cutlery, and every other article, come in British ships or come in your ships; since, in whatever ships they come, they take away our means of living?"

Gentlemen, it is an historical truth, manifested in a thousand ways by the public proceedings and public meetings of the times, that the necessity of a general and uniform impost system, which, while it should provide revenue to pay the public debt, and foster the commerce of the country, should also encourage and sustain domestic manufactures, was the leading cause in producing the present national Constitution. No class of persons was more zealous for the new Constitution, than the handicraftsmen, artisans, and manufacturers. There were then, it is true, no large manufacturing establishments. There were no manufactories in the interior, for there were no inhabitants. Here was Fort Pitt,—it had a place on the map,—but here were no people, or only a very few. But in the cities and towns on the Atlantic, the full importance, indeed the absolute necessity, of a new form of government and a general system of imposts was deeply felt.

It so happened, Gentlemen, that at that time much was thought to depend on Massachusetts; several States had already agreed to the Constitution; if her convention adopted it, it was likely to go into operation. This gave to the proceedings of that convention an intense interest, and the country looked with trembling anxiety for the result. That result was for a long time doubtful. The convention was known to be almost equally divided; and down to the very day and hour of the final vote, no one could predict, with any certainty, which side would preponderate. It was under these circumstances, and at this crisis, that the tradesmen of the town of Boston, in January, 1788, assembled at the Green Dragon tavern, the place where the Whigs of the Revolution, in its early stages, had been accustomed to assemble. They resolved, that, in their opinion, if the Constitution should be adopted, "trade and navigation would revive and increase, and employ ^{and} subsistence be afforded to many of their townsmen, then suffering for the want of the necessaries of life"; and that, on the other hand, should it be rejected, "the small remains of commerce yet left would be annihilated; the various trades and handicrafts dependent thereon decay; the poor be increased, and many worthy and skilful mechanics compelled to seek employ and subsistence in strange lands." These resolutions were carried to the Boston delegates in the convention, and placed in the hands of Samuel Adams. That great and distinguished friend of American liberty, it was feared, might have doubts about the new Constitution. Naturally cautious and sagacious, it was apprehended he might fear the practicability, or the safety, of a general government. He received the resolutions from the hands of Paul Revere, a brass-founder by occupation, a man of sense and character, and of high public spirit, whom the mechanics of Boston ought never to forget. "How many mechanics," said Mr. Adams, "were at the Green Dragon when these resolutions were passed?" "More, Sir," was the reply, "than the Green Dragon could hold." "And where were the rest, Mr. Revere?" "In the streets, Sir." "And how many were in the streets?" "More, Sir, than there are stars in the sky." This is an instance only, among many, to prove, what is indisputably true, that the tradesmen and mechanics of the country did look to the new Constitution for encouragement and protection in their respective occupations. Under these circumstances, it is not to be expected that they will abandon the principle, in its application to their own employments, any more than in its application to the commercial and shipping interests. They believe the power is in the Constitution; and

doubtless they mean, so far as depends on them, to keep it there. Desirous of no extravagant measure of protection, desirous of oppressing or burdening nobody, seeking nothing as a substitute for honest industry and hard work, as a part of the American family, having the same interests as other parts, they will continue their attachment to the Union and the Constitution, and to all the great and leading interests of the country.

Gentlemen, your worthy Mayor has alluded to the subject of internal improvements. Having no doubt of the power of the general government over various objects comprehended under that name, I confess I have felt great pleasure in forwarding them, to the extent of my ability, by means of reasonable aid from the government. It has seemed strange to me, that, in the progress of human knowledge and human virtue (for I have no doubt that both are making progress), the efforts of government should so long have been principally confined to external affairs, and to the enactment of the general laws, without considering how much may be done by government, which cannot be done without it, for the improvement of the condition of the people. There are many objects, of great value to man, which cannot be attained by unconnected individuals, but must be attained, if at all, by association. For many of them government seems the most natural and the most efficient association. Voluntary association has done much, but it cannot do all. To the great honor and advantage of your own State, she has been forward in applying the agency of government to great objects of internal utility. But even States cannot do every thing. There are some things which belong to all the States; and, if done at all, must be done by all the States. At the conclusion of the late war, it appeared to me that the time had come for the government to turn its attention inward; to survey the condition of the country, and particularly the vast Western country; to take a comprehensive view of the whole; and to adopt a liberal system of internal improvements. There are objects not naturally within the sphere of any one State, which yet seemed of great importance, as calculated to unite the different parts of the country, to open a better and shorter way between the producer and consumer, to promise the highest advantage to government itself, in any exigency. It is true, Gentlemen, that the local theatre for such improvement is not mainly in the East. The East is old, pretty fully peopled, and small. The West is new, vast, and thinly peopled. Our rivers can be measured; yours cannot. We are bounded; you are boundless. The West was, therefore, most deeply interested in this system, though certainly not alone

interested, even in such works as had a Western locality. To clear her rivers was to open them for the commerce of the whole country; to construct harbors, and clear entrances to existing harbors, whether on the Gulf of Mexico or on the Lakes, was for the advantage of that whole commerce. And if this were not so, he is but a poor public man whose patriotism¹⁰⁹ is governed by the cardinal points; who is for or against a proposed measure, according to its indication by compass, or as it may happen to tend farther from, or come nearer to, his own immediate connections. And look at the West; look at these rivers; look at the Lakes; look especially at Lake Erie, and see what a moderate expenditure has done for the safety of human life, and the preservation of property, in the navigation of that lake; and done, let me add, in the face of a fixed and ardent opposition.

I rejoice, sincerely, Gentlemen, in the general progress of internal improvement, and in the completion of so many objects near you, and connected with your prosperity. Your own canal and railroad unite you with the Atlantic. Near you is the Ohio Canal, which does so much credit to a younger State, and with which your city will doubtless one day have a direct connection. On the south and east approaches the Baltimore and Ohio Railroad, a great and spirited enterprise, which I always thought entitled to the aid of government, and a branch of which, it may be hoped, will yet reach the head of the Ohio.

I will only add, Gentlemen, that for what I have done in the cause of internal improvement I claim no particular merit, having only acted with others, and discharged, conscientiously and fairly, what I regarded as my duty to the whole country.

Gentlemen, the Mayor has spoken of the importance and necessity of education. And can any one doubt, that to man, as a social and an immortal being, as interested in the world that is, and infinitely more concerned for that which is to be, education, that is to say, the culture of the mind and the heart, is an object of infinite importance? So far as we can trace the designs of Providence, the formation of the mind and character, by instruction in knowledge, and instruction in righteousness, is a main end of human being. Among the new impulses which society has received, none is more gratifying than the awakened attention to public education. That object begins to exhibit itself to the minds of men in its just magnitude, and to possess its due share of regard. It is but in a limited degree, and indirectly

only, that the powers of the general government have been exercised in the promotion of this object. So far as these powers extend, I have concurred in their exercise with great pleasure. The Western States, from the recency of their settlement, from the great proportion of their population which are children, and from other circumstances which must, in all new countries, more or less curtail individual means, have appeared to me to have peculiar claims to regard; and in all cases where I have thought the power clear, I have most heartily concurred in measures designed for their benefit, in this respect. And amidst all our efforts for education, literary, moral, or religious, be it always remembered that we leave opinion and conscience free. Heaven grant that it may be the glory of the United States to have established two great truths, of the highest importance to the whole human race; first, that an enlightened community *is* capable of self-government; and, second, that the toleration of all sects does *not* necessarily produce indifference to religion.

But I have already detained you too long. My friends, fellow-citizens, and countrymen, I take a respectful leave of you. The time I have passed on this side the Alleghanies has been a succession of happy days. I have seen much to instruct and much to delight me. I return you, again and again, my unfeigned thanks for the frankness and hospitality with which you have made me welcome; and wherever I may go, or wherever I may be, I pray you to believe I shall not lose the recollection of your kindness.

FOOTNOTES

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Address delivered to the Citizens of Pittsburg, on the 8th of July, 1833.

RECEPTION AT BANGOR. 103

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During a visit to Maine, in the summer of 1835, on business connected with his profession, Mr. Webster was at Bangor, where he partook of a collation with many of the citizens of that place. There were so many more people, however, desirous to see and hear him than could be accommodated in the hall of the hotel, that, after the cloth was removed, he was compelled to proceed to the balcony, where, after thanking the company for their hospitality, and their manifestation of regard, he addressed the assembly as follows:—

Having occasion to come into the State on professional business, I have gladly availed myself of the opportunity to visit this city, the growing magnitude and importance of which have recently attracted such general notice. I am happy to say, that I see around me ample proofs of the correctness of the favorable representations which have gone abroad. Your city, Gentlemen, has certainly experienced an extraordinary growth; and it is a growth, I think, which there is reason to hope is not unnatural, or greatly disproportionate to the eminent advantages of the place. It so happened, that, at an early period of my life, I came to this spot, attracted by that favorable position, which the slightest glance on the map must satisfy every one that it occupies. It is near the head of tide-water, on a river which brings to it from the sea a volume of water equal to the demands of the largest vessels of war, and whose branches, uniting here, from great distances above, traverse in their course extensive tracts now covered with valuable productions of the forest, and capable, most of them, of profitable agricultural cultivation. But at the period I speak of, the time had not come for the proper development and display of these advantages. Neither the place itself, nor the country, was then ready. A long course of commercial restrictions and embargo, and a foreign war, were yet to be gone through, before the local advantages of such a spot could be exhibited or enjoyed, or the country would be in a condition to create an active demand for its main products.

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I believe some twelve or twenty houses were all that Bangor could enumerate, when I was in it before; and I remember to have crossed the stream which now divides your fair city on some floating logs, for the

purpose of visiting a former friend and neighbor, who had just then settled here; a gentleman always most respectable, and now venerable for his age and his character, whom I have great pleasure in seeing among you to-day, in the enjoyment of health and happiness.

It is quite obvious, Gentlemen, that while the local advantages of a noble river, and of a large surrounding country, may be justly considered as the original spring of the present prosperity of the city, the current of this prosperity has, nevertheless, been put in motion, enlarged, and impelled, by the general progress of improvement, and growth of wealth throughout the whole country.

At the period of my former visit, there was, of course, neither railroad, nor steamboat, nor canal, to favor communication; nor do I recollect that any public or stage coach came within fifty miles of the town.

Internal improvement (as it is comprehensively called in this country) has been the great agent of this favorable change; and so blended are our interests, that the general activity which exists elsewhere, supported and stimulated by internal improvement, pervades and benefits even those portions of the country which are locally remote from the immediate scene of the main operations of this improvement. Whatever promotes communication, whatsoever extends general business, whatsoever encourages enterprise, or whatsoever advances the general wealth and prosperity of other States, must have a plain, direct, and powerful bearing on your own prosperity. In truth, there is no town in the Union, whose hopes can be more directly staked on the general prosperity of the country, than this rising city. If any thing should interrupt the general operations of business, if commercial embarrassment, foreign war, pecuniary derangement, domestic dissension, or any other causes, were to arrest the general progress of the public welfare, all must see with what a blasting and withering effect such a course must operate on Bangor.

Gentlemen, I have often taken occasion to say, what circumstances may render it proper now to repeat, that, at the close of the last war, a new era, in my judgment, had opened in the United States. A new career then lay before us. At peace ourselves with the nations of Europe, and those nations, too, at peace with one another, and the leading civilized states of the world no longer allowing that carrying trade which had been the rich harvest of our

neutrality in the midst of former wars, but all now coming forward to exercise their own rights, in sharing the commerce and navigation of the world, it seemed to me to be very plain, that, while our commerce was still to be fostered with the most zealous care, yet quite a new view of things was presented to us in regard to our internal pursuits and concerns. The works of peace, as it seemed to me, had become our duties. A hostile exterior, a front of brass, and an arm of iron, all necessary in the just defence of the country against foreign aggression, naturally gave place, in a change of circumstances, to the attitude, the objects, and the pursuits of peace. Our true interest, as I thought, was to explore our own resources, to call forth and encourage labor and enterprise upon internal objects, to multiply the sources of employment and comfort at home, and to unite the country by ties of intercourse, commerce, benefits, and prosperity, in all parts, as well as by the ties of political association. And it appeared to me that government itself clearly possessed the power, and was as clearly charged with the duty of helping on, in various ways, this great business of internal improvement. I have, therefore, steadily supported all measures directed to that end, which appeared to me to be within the just power of the government, and to be practicable within the limits of reasonable expenditure. And if any one would judge how far the fostering of this spirit has been beneficial to the country, let him compare its state at this moment with its condition at the commencement of the late war; and let him then say how much of all that has been added to national wealth and national strength, and to individual prosperity and happiness, has been the fair result of internal improvement.

Gentlemen, it has been your pleasure to give utterance to sentiments expressing approbation of my humble efforts, on several occasions, in defence and maintenance of the Constitution of the country. I have nothing to say of those efforts, except that they have been honestly intended. The country sees no reason, I trust, to suppose that on those occasions I have taken counsel of any thing but a deep sense of duty. I have, on some occasions, felt myself called on to maintain my opinions, in opposition to power, to place, to official influence, and to overwhelming personal popularity. I have thought it my imperative duty to put forth my most earnest efforts to maintain what I considered to be the just powers of the government, when it appeared to me that those to whom its administration was intrusted were countenancing doctrines inevitably tending to its

destruction. And I have, with far more pleasure, on other occasions, supported the constituted authorities, when I have deemed their measures to be called for by a regard to its preservation.

The Constitution of the United States, Gentlemen, has appeared to me to have been formed and adopted for two grand objects. The first is the Union of the States. It is the bond of that union, and it states and defines its terms. Who can speak in terms warm enough and high enough of its importance in this respect, or the admirable wisdom with which it is formed? Or who, when he shall have stated the benefits and blessings which it has conferred upon the States most strongly, will venture to say that he has done it justice? For one, I am not sanguine enough to believe that, if this bond of union were dissolved, any other tie uniting all the States would take its place for generations to come. It requires no common skill, it is no piece of ordinary political journey-work, to form a system which shall hold together four-and-twenty separate State sovereignties, the line of whose united territories runs down all the parallels of latitude from New Brunswick to the Gulf of Mexico, and whose connected breadth stretches from the sea far beyond the Mississippi. Nor are all times or all occasions suited to such great operations. It is only under the most favorable circumstances, and only when great men are called on to meet great exigencies, only once in centuries, that such fortunate political results are to be attained. Whoever, therefore, undervalues this National Union, whoever depreciates it, whoever accustoms himself to consider how the people might get on without it, appears to me to encourage sentiments subversive of the foundations of our prosperity.

It is true that these twenty-four States are, more or less, different in climate, productions, and local pursuits. There are planting States, grain-growing States, manufacturing States, and commercial States. But those several interests, if not identical, are not therefore inconsistent and hostile. Far from it. They unite, on the contrary, to promote an aggregate result of unrivalled national happiness. It is not precisely a case in which

“All nature’s difference keeps all nature’s peace”;

but it is a case in which variety of climate and condition, and diversities of pursuits and productions, all unite to exhibit one harmonious, grand, and

magnificent whole, to which the world may be proudly challenged to show an equal. In my opinion, no man, in any corner of any one of these States, can stand up and declare, that he is less prosperous or less happy than if the general government had never existed. Entertaining these sentiments, and feeling their force most deeply, I regard it as the bounden duty of every good citizen, in public and in private life, to follow the admonition of Washington, and to cherish that Union which makes us one people. I most earnestly deprecate, therefore, whatever occurs, in the government or out of it, calculated to endanger the Union or disturb the basis on which it rests.

Another object of the Constitution I take to be such as is common to all written constitutions of free governments; that is, to fix limits to delegated authority, or, in other words, to impose constitutional restraints on political power. Some, who esteem themselves republicans, seem to think no other security for public liberty necessary than a provision for a popular choice of rulers. If political power be delegated power, they entertain little fear of its being abused. The people's servants and favorites, they think, may be safely trusted. Our fathers, certainly, were not of this school. They sought to make assurance doubly sure, by providing, in the first place, for the election of political agents by the people themselves, at short intervals, and, in the next place, by prescribing constitutional restraints on all branches of this delegated authority. It is not among the circumstances of the times most ominous for good, that a diminished estimate appears to be placed on those constitutional securities. A disposition is but too prevalent to substitute personal confidence for legal restraint; to put trust in men rather than in principles; and this disposition being strongest, as it most obviously is, whenever party spirit prevails to the greatest extent, it is not without reason that fears are entertained of the existence of a spirit tending strongly to an unlimited, if it be but an elective, government.

Surely, Gentlemen, this government can go through no such change. Long before that change could take place, the Constitution would be shattered to pieces, and the Union of the States become matter of past history. To the Union, therefore, as well as to civil liberty, to every interest which we enjoy and value, to all that makes us proud of our country, or which renders our country lovely in our own eyes, or dear to our own hearts, nothing can be more repugnant, nothing more hostile, nothing more directly destructive, than excessive, unlimited, unconstitutional confidence in men; nothing

worse, than the doctrine that official agents may interpret the public will in their own way, in defiance of the Constitution and the laws; or that they may set up any thing for the declaration of that will except the Constitution and the laws themselves; or that any public officer, high or low, should undertake to constitute himself or to call himself *the representative of the people*, except so far as the Constitution and the laws create and denominate him such representative. There is no usurpation so dangerous as that which comes in the borrowed name of the people. If from some other authority, or other source, prerogatives be attempted to be enforced upon the people, they naturally oppose and resist it. It is an open enemy, and they can easily subdue it. But that which professes to act in their own name, and by their own authority, that which calls itself their servant, although it exercises their power without legal right or constitutional sanction, requires something more of vigilance to detect, and something more of stern patriotism to repress; and if it be not seasonably both detected and repressed, then the republic is already in the downward path of those which have gone before it.

I hold, therefore, Gentlemen, that a strict submission, by every branch of the government, to the limitations and restraints of the Constitution, is of the very essence of all security for the preservation of liberty; and that no one can be a true and intelligent friend of that liberty, who will consent that any man in public station, whatever he may think of the honesty of his motives, shall assume to exercise an authority above the Constitution and the laws. Whatever government is not a government of laws, is a despotism, let it be called what it may.

Gentlemen, on an occasion like this, I ought not to detain you longer. Let us hope for the best, in behalf of this great and happy country, and of our glorious Constitution. Indeed, Gentlemen, we may well congratulate ourselves that the country is so young, so fresh, and so vigorous, that it can bear a great deal of bad government. It can take an enormous load of official mismanagement on its shoulders, and yet go ahead. Like the vessel impelled by steam, it can move forward, not only without other than the ordinary means, but even when those means oppose it; it can make its way in defiance of the elements, and

“Against the wind, against the tide,

Still steady, with an upright keel.”

There are some things, however, which the country cannot stand. It cannot stand any shock of civil liberty, or any disruption of the Union. Should either of these happen, the vessel of the state will have no longer either steerage or motion. She will lie on the billows helpless and hopeless, the scorn and contempt of all the enemies of free institutions, and an object of indescribable grief to all their friends.

FOOTNOTES

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Remarks made to the Citizens of Bangor, Maine, on the 25th of August, 1835.

PRESENTATION OF A VASE.

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INTRODUCTORY NOTE.

A large number of the citizens of Boston being desirous to offer to Mr. Webster some enduring testimony of their gratitude for his services in Congress, and more especially for his defence of the Constitution during the crisis of Nullification, a committee was raised, in the spring of 1835, to procure a piece of plate which should be worthy of such an object. By their direction, and more particularly under the superintendence of one of their number, the late Mr. George W. Brimmer, to whose taste and skill the committee were deeply indebted for the selection of the model and the arrangement of the devices, the beautiful vase, now well known throughout the country as the WEBSTER VASE, was prepared at the manufactory of Messrs. Jones, Lows, & Ball, in Boston. After it was finished, the committee found it impossible to withstand the wish, both of the numerous subscribers and of the public generally, to witness the ceremonies and hear the remarks by which its presentation might be accompanied. It was accordingly presented to Mr. Webster in the presence of three or four thousand spectators, assembled at the Odeon, on the evening of the 12th of October. The Vase was placed on a pedestal covered with the American flag, and contained on its front the following inscription:—

PRESENTED TO
DANIEL WEBSTER
THE DEFENDER OF THE CONSTITUTION,
BY THE CITIZENS OF BOSTON,
Oct. 12, 1835.

The chairman of the committee (Mr. Z. Jellison) opened the meeting with the following remarks:—

“Fellow-Citizens:—The friends of the Hon. Daniel Webster in this city, conceiving the propriety of giving that gentleman an expression of the high estimation in which they hold his public services, and wishing also to tender him a testimonial of their regard for his moral worth and social virtues, called a meeting of consultation on the subject, some months since, at which a committee was appointed, with instructions to procure a suitable piece of plate, to be presented to him in their behalf, before his official duty

should again require his departure hence for the seat of government. In obedience to their instructions, that committee have procured, from the hands of the most skilful artists in this country, the piece of plate I now have the honor to exhibit to you.

“They have now called their constituents together, for the purpose of presenting this Vase in their presence. Had the committee consulted the wishes only of the gentleman for whom it is intended, this presentation might, perhaps, have taken place in a more private or less imposing manner; but, in the course they have adopted, they have been governed by the wishes of the citizens at large. They now respectfully ask your kind indulgence while they proceed in the discharge of this part of their duty.

“The committee have appointed, as their organ of communication, the Hon. Francis C. Gray, with whom I now have the pleasure to leave the subject.”

Mr. GRAY then rose, and spoke as follows:—

“Mr. Webster:—By direction of the committee, and in behalf of your fellow-citizens, who have caused this Vase to be made, I now request your acceptance of it. They offer it in token of their high sense of your public character and services. But on these it were not becoming to dwell in addressing yourself. Nor is a regard for these the only, or the principal, motive of those for whom I speak. They offer it mainly to evince the high estimation in which they hold the political sentiments and principles which you have professed and maintained. There may undoubtedly be differences of opinion among them with regard to this or that particular measure; and a blind, indiscriminate, wholesale adhesion to the life and opinions of any one would not be worth offering, nor worth accepting, among freemen. We are not man-worshippers here in Massachusetts. But the great political principles, the leading views of policy, which you have been forward to assert and vindicate, these they all unite to honor; and in rendering public homage to these, they feel that they are not so much paying a compliment to you, as performing a duty to their country.

“In a free republic, where all men exercise political power, the prevalence of correct views and principles on political subjects is essential to the safety of the state. It is not enough that their truth should be recognized. Their operation and tendency must be understood and appreciated; they must be made familiar to the mass of the people, become closely interwoven with

their whole habits of thought and feeling, objects of attachment to which they may cling instantly and instinctively in all time of doubt or peril, so as not to be swept away by any sudden flood of prejudice or passion. Hence it is the duty of every man to embrace all fit occasions, nay, to seek fit occasions, for declaring his adherence to such principles, and giving them the support of his influence, however high or however humble that influence may be. There is no justice, therefore, in the complaint often made against the members of our legislative assemblies, that they sometimes speak not for their audience merely, but for their constituents; seeking not simply to affect the decision of the question then pending, but to influence the public sentiment with regard to the principles involved in it. This affords no ground of censure against them, so they speak well and wisely. The practice may be abused, no doubt; but, in itself, it is a natural, inevitable right. So it should be in relation to all important principles in a free country. Nothing else but the excitement, kindled by the conflict of debate, will ever make those great principles subjects of general attention and interest. Nothing else but the observation of their application in practice can make them generally understood and appreciated. We all recollect questions (and among them that on Mr. Foot's resolutions, not likely soon to be forgotten), the vote on which was as certainly known before the discussion as after it, and known to be unalterable by any argument or persuasion; and yet the discussion of which was so far from being uninteresting and unprofitable, that it was echoed and reëchoed through the land, making a deep and lasting impression on the public mind, establishing incontrovertibly vital principles before disputed, and thus giving new strength and stability to our free institutions, and forming, I may almost say, an epoch in our political history.

“On this and similar occasions, not to dwell on your steadfast adherence to those more general principles of civil liberty, which are equally important in every age and country,—on such occasions the fundamental principles peculiar to our system of government have always had in you a decided advocate, ever ready to develop and illustrate their nature and operation, and to enforce the obligations which they impose. Among the most prominent peculiarities of our system is the fact that the United States are not a confederacy of independent sovereigns, the subjects of each of whom are responsible to him alone for their compliance with the obligations of the compact, but that, for certain specified purposes, they form one nation,

every citizen of which is responsible, directly, immediately, exclusively, to the whole nation for the performance of his duties to the whole; that the Constitution is not a treaty, nor any thing like a treaty, but a frame of government, resting on the same foundations, and supported by the same sanctions, as any other government, to be subverted only by the same means, by revolution,—revolution to be brought about by the same authority which would warrant a revolution in any government, and by none other,—to be justified, when justifiable, by the same paramount necessity, and by nothing less. This government is not the government of the States, but that of the people; and it behooves the people, every one of the people, to do his utmost to preserve it; not in form merely, but in its full efficiency, as a practical system; to maintain the Union as it is, in all its integrity,—the Constitution as it is, in all its purity, and in all its strength; and when they are in danger, to hasten to their support promptly, frankly, fearlessly, undeterred, and unencumbered by any political combination, let who will be his companions in the good cause, and let who will hang back from it.

“The other great peculiarity of our political system—and on these two hang all the liberty and hopes of America—is this: that the supreme power or sovereignty is divided between the State and national governments, and the portion allotted to each distributed—among several independent departments; and this, notwithstanding the maxim of European politicians, too hastily adopted by some of our own statesmen, that sovereignty is, in its nature, indivisible. By sovereignty, I do not mean, and they do not mean, the ultimate right of the people to establish and subvert governments, the right of revolution, as it has been called; for, thus understood, it would be absurd to inquire, as they constantly do, where the sovereignty resides in any particular government, since this ultimate sovereignty never can reside anywhere but in the people themselves. It is inherent in them and inalienable, existing equally as a right, however its exercise may be impeded, in free and despotic governments. But by sovereignty must be understood the supreme power of the government, the highest power which can lawfully be exercised by any constituted authority. Now, let the politicians of Europe say what they will of the indivisibility of this power, we know that, among us, it is in point of fact divided; that in relation to some objects, the supreme power is in the national government, subject to no earthly control but that of the people, exercising their right of revolution;

and that in relation to others, it is in the State governments, subject to the same and to no other control; and that in each of these governments the power conferred is divided among the legislative, executive, and judicial departments, each of which is entirely independent in the performance of its appropriate duties.

“This system of practical checks and balances, altogether peculiar to us, is designed to operate, and does operate, for the restraint of power and the protection of liberty. But, like every earthly good, it brings with it its attendant evil in the danger of encroachment and collision. To guard against these dangers is one of the most important, most difficult, most delicate of our public duties; to see that the national government shall not encroach upon the power of the States, nor the States on that of the nation; that no State shall interfere with the domestic legislation of another, nor lightly nor unjustly suspect another of seeking to interfere with its own; but that each of these several governments, and every department in each, shall be strictly confined to its proper sphere; that no one shall evade any responsibility which is imposed on him by the Constitution and the laws, and no one assume any responsibility which is not so.

“But by what power can this be accomplished? There is only one. Physical force will not do it. The system of our government has been compared to that of the heavenly bodies, which move on, orb within orb cycle within cycle, in apparent confusion, but in real, uninterrupted, unalterable harmony. And the harmony of our system can only be maintained by a power, which, like that regulating their movements, is unseen, unfelt, yet irresistible,—*Public Opinion*.

“This is the precise circumstance which renders the prevalence of just political views and principles peculiarly important among us, and secures to him, who labors faithfully and successfully to promote their diffusion, the praise of having deserved well of his country.

“The opinions of men, however, are invariably and inevitably affected by their interests and their feelings. This consideration opens a wide field of duty to the American statesman, requiring him to prevent, by every means in his power, all collisions of interest and all exasperations of feeling; to correct and rebuke the misrepresentations which tend to array one part of the country against another, or one portion of society against another, as if

their interests were adverse, whereas in truth they are one; and, avoiding the paltry cunning which plays off the different parts of the country against each other, sacrificing the interests of the whole to this part to-day, on condition that they shall be sacrificed to another to-morrow, by which means they are always sacrificed, to be governed by that liberal, enlightened, far-sighted policy, which in all questions of expediency looks invariably and exclusively to the permanent interests of the whole nation, considered as one,—which aims to impress on the minds and the hearts of this people, deeply, indelibly, the great truth, that the prosperity and the glory of the United States, their improvement and happiness at home, their rank among the nations of the earth, must be proportioned to the strength and cordiality of their union, and can only be carried to their highest pitch by the universal conviction, the deep-seated and overruling sentiment, that, for the purposes set forth in the Constitution, we are one people, one and indivisible; and that for us to break the bond that makes us one, and resolve this glorious Union into its original elements, would be as mad and as fatal as for England to go back again to her Heptarchy.

“The statesman who is governed by these principles and this policy, whose great object is not to win the spoils of victory, nor even its laurels, but to fight the good fight and render faithful service to his country, will never want opportunity to merit the public gratitude, whatever may be his political position. If in the majority, considering that the duration of any administration is only a day in the existence of the government, and yet a day which must affect all that are to follow it, he will never be tempted to swerve from these great principles by any temporary advantage, even to the whole community, still less by any local or partial benefit, and least of all by any party or personal consideration. He will not make it the chief object of government to extend and perpetuate the power of his party. He will not regard his political opponents as enemies, over whom he has triumphed and whom he is to despoil. He will not seek to throw off or evade the restraints imposed by the Constitution on all power, nor will he bestow public offices as the reward or the motive for adherence to his party or his person. If in the minority, he will find inducement enough and reward enough for the most strenuous exertion, in the conviction, that an intelligent, resolute, vigilant minority is not utterly powerless in our government, but may often control, modify, or even arrest the most pernicious schemes of reckless rulers, and diminish, if not prevent, the evils of misrule. He will consider also, that in

political science, as in the other moral sciences, truth must always force its way slowly against general opposition, and that although the great principles for which he contends should not triumph in the debate of the day, they may yet, if ably sustained, ultimately triumph in the hearts of the people, and come at last to rule the land; and that thenceforward, so long as their beneficent influence shall endure, so long as they shall be remembered upon earth, so long will his name and his praise endure who shall have watched over them in their weakness, and struggled for them in their adversity.

“But I must not be tempted beyond the tone which befits the part assigned me, which is simply to state the motives and feelings of those for whom I speak on this occasion; and I am sure, Gentlemen, that I am the faithful interpreter of your sentiments, when I say, that it is from attachment to the great principles of civil liberty and constitutional government, that you offer this token of respect to one who has always maintained them and been governed by them; to one whom this people, because he has been guided by those principles, and for the sake of those principles, delight to honor; whom they honor with their confidence, whom they honor by cherishing the memory of his past services, and by their best hopes and wishes for the future, and whom they will honor, let who else may shrink and falter, by their cordial efforts to raise him to that high station for which so many patriotic citizens, in various parts of the country, are now holding him up as a candidate; and they will do this on the full conviction, that he will always be true to those principles, wherever his country may call him.”

To this address Mr. WEBSTER made the following reply.

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PRESENTATION OF A VASE.[\[104\]](#)

MR. CHAIRMAN AND GENTLEMEN:—I accept, with grateful respect, the present which it is your pleasure to make. I value it. It bears an expression of your regard for those political principles which I have endeavored to maintain; and though the material were less costly, or the workmanship less elegant, any durable evidence of your approbation could not but give me high satisfaction.

This approbation is the more gratifying, as it is not bestowed for services connected with local questions, or local interests, or which are supposed to have been peculiarly beneficial to yourselves, but for efforts which had the interests of the whole country for their object, and which were useful, if useful at all, to all who live under the blessings of the Constitution and government of the United States.

It is twelve or thirteen years, Gentlemen, since I was honored with a seat in Congress, by the choice of the citizens of Boston. They saw fit to repeat that choice more than once; and I embrace, with pleasure, this opportunity of expressing to them my sincere and profound sense of obligation for these manifestations of confidence. At a later period, the Legislature of the State saw fit to transfer me to another place;^[105] and have again renewed the trust, under circumstances which I have felt to impose upon me new obligations of duty, and an increased devotion to the political welfare of the country. These twelve or thirteen years, Gentlemen, have been years of labor, and not without sacrifices; but both have been more than compensated by the kindness, the good-will, and the favorable interpretation with which my discharge of official duties has been received. In this changing world, we can hardly say that we possess what is present, and the future is all unknown. But the past is ours. Its acquisitions, and its enjoyments, are safe. And among these acquisitions, among the treasures of the past most to be cherished and preserved, I shall ever reckon the proofs of esteem and confidence which I have received from the citizens of Boston and the Legislature of Massachusetts.

In one respect, Gentlemen, your present oppresses me. It overcomes me by its tone of commendation. It assigns to me a character of which I feel I am not worthy. "The Defender of the Constitution" is a title quite too high for me. He who shall prove himself the ablest among the able men of the country, he who shall serve it longest among those who may serve it long, he on whose labors all the stars of benignant fortune shall shed their selectest influence, will have praise enough, and reward enough, if, at the end of his political and earthly career, though that career may have been as bright as the track of the sun across the sky, the marble under which he sleeps, and that much better record, the grateful breasts of his living countrymen, shall pronounce him "the Defender of the Constitution." It is enough for me, Gentlemen, to be connected, in the most humble manner, with the defence and maintenance of this great wonder of modern times, and this certain wonder of all future times. It is enough for me to stand in the ranks, and only to be counted as one of its defenders.

The Constitution of the United States, I am confident, will protect the name and the memory both of its founders and of its friends, even of its humblest friends. It will impart to both something of its own ever memorable and

enduring distinction; I had almost said, something of its own everlasting remembrance. Centuries hence, when the vicissitudes of human affairs shall have broken it, if ever they shall break it, into fragments, these very fragments, every shattered column, every displaced foundation-stone, shall yet be sure to bring them all into recollection, and attract to them the respect and gratitude of mankind.

Gentlemen, it is to pay respect to this Constitution, it is to manifest your attachment to it, your sense of its value, and your devotion to its true principles, that you have sought this occasion. It is not to pay an ostentatious personal compliment. If it were, it would be unworthy both of you and of me. It is not to manifest attachment to individuals, independent of all considerations of principles; if it were, I should feel it my duty to tell you, friends as you are, that you were doing that which, at this very moment, constitutes one of the most threatening dangers to the Constitution itself. Your gift would have no value in my eyes, this occasion would be regarded by me as an idle pageant, if I did not know that they are both but modes, chosen by you, to signify your attachment to the true principles of the Constitution; your fixed purpose, so far as in you lies, to maintain those principles; and your resolution to support public men, and stand by them, so long as they shall support and stand by the Constitution of the country, and no longer.

“The Constitution of the country!” Gentlemen, often as I am called to contemplate this subject, its importance always rises, and magnifies itself more and more, before me. I cannot view its preservation as a concern of narrow extent, or temporary duration. On the contrary, I see in it a vast interest, which is to run down with the generations of men, and to spread over a great portion of the earth with a direct, and over the rest with an indirect, but a most powerful influence. When I speak of it here, in this thick crowd of fellow-citizens and friends, I yet behold, thronging about me, a much larger and more imposing crowd. I see a united rush of the present and the future. I see all the patriotic of our own land, and our own time. I see also the many millions of their posterity, and I see, too, the lovers of human liberty from every part of the earth, from beneath the oppressions of thrones, and hierarchies, and dynasties, from amidst the darkness of ignorance, degradation, and despotism, into which any ray of political light has penetrated; I see all those countless multitudes gather

about us, and I hear their united and earnest voices, conjuring us, in whose charge the treasure now is, to hold on, and hold on to the last, by that which is our own highest enjoyment and their best hope.

Filled with these sentiments, Gentlemen, and having through my political life hitherto always acted under the deepest conviction of their truth and importance, it is natural that I should have regarded the preservation of the Constitution as the first great political object to be secured. But I claim ³³⁸no exclusive merit. I should deem it, especially, both unbecoming and unjust in me to separate myself, in this respect, from other public servants of the people of Massachusetts. The distinguished gentlemen who have preceded and followed me in the representation of the city, their associates from other districts of the State, and my late worthy and most highly esteemed colleague, are entitled, one and all, to a full share in the public approbation. If accidental circumstances, or a particular position, have sometimes rendered me more prominent, equal patriotism and equal zeal have yet made them equally deserving. It were invidious to enumerate these fellow-laborers, or to discriminate among them. Long may they live! and I could hardly express a better wish for the interest and honor of the States, than that the public men who may follow them may be as disinterested, as patriotic, and as able as they have proved themselves.

There have been, Gentlemen, it is true, anxious moments. That was an anxious occasion, to which the gentleman who has addressed me in your behalf has alluded; I mean the debate in January, 1830. It seemed to me then that the Constitution was about to be abandoned. Threatened with most serious dangers, it was not only not defended, but attacked, as I thought, and weakened and wounded in its vital powers and faculties, by those to whom the country naturally looks for its defence and protection. It appeared to me that the Union was about to go to pieces, before the people were at all aware of the extent of the danger. The occasion was not sought, but forced upon us; it seemed to me momentous, and I confess that I felt that even the little that I could do, in such a crisis, was called for by every motive which could be addressed to a lover of the Constitution. I took a part in the debate, therefore, with my whole heart already in the subject, and careless for every thing in the result, except the judgment which the people of the United States should form upon the questions involved in the discussion. I believe that judgment has been definitely pronounced; but nothing is due to me,

beyond the merit of having made an earnest effort to present the true question to the people, and to invoke for it that attention from them, which its high importance appeared to me to demand.

The Constitution of the United States, Gentlemen, is of a peculiar structure. Our whole system is peculiar. It is fashioned according to no existing model, likened to no precedent, and yet founded on principles which lie at the foundations of all free governments, wherever such governments exist. It is a complicated system. It is elaborate, and in some sense artificial, in its composition. We have twenty-four State sovereignties, all exercising legislative, judicial, and executive powers. Some of the sovereignties, or States, had long existed, and, subject only to the restraint of the power of the parent country, had been accustomed to the forms and to the exercise of the powers of representative republics. Others of them are new creations, coming into existence only under the Constitution itself; but all now standing on an equal footing.

The general government, under which all these States are united, is not, as has been justly remarked by Mr. Gray, a confederation. It is much more than a confederation. It is a popular representative government, with all the departments, and all the functions and organs, of such a government. But it is still a limited, a restrained, a severely-guarded government. It exists under a written constitution, and all that human wisdom could do is done, to define its powers and to prevent their abuse. It is placed in what was supposed to be the safest medium between dangerous authority on the one hand, and debility and inefficiency on the other. I think that happy medium was found, by the exercise of the greatest political sagacity, and the influence of the highest good fortune. We cannot move the system either way, without the probability of hurtful change; and as experience has taught us its safety, and its usefulness, when left where it is, our duty is a plain one.

It cannot be doubted that a system thus complicated must be accompanied by more or less of danger, in every stage of its existence. It has not the simplicity of despotism. It is not a plain column, that stands self-poised and self-supported. Nor is it a loose, irregular, unfixed, and undefined system of rule, which admits of constant and violent changes, without losing its character. But it is a balanced and guarded system; a system of checks and controls; a system in which powers are carefully delegated, and as carefully

limited; a system in which the symmetry of the parts is designed to produce an aggregate whole, which shall be favorable to personal liberty, favorable to public prosperity, and favorable to national glory. And who can deny, that, by a trial of fifty years, this American system of government has proved itself capable of conferring all these blessings? These years have been years of great agitation throughout the civilized world. In the course of them the face of Europe has been completely changed. Old and corrupt governments have been destroyed, and new ones, erected in their places, have been destroyed too, sometimes in rapid succession. Yet, through all the extraordinary, the most extraordinary scenes of this half-century, the free, popular, representative government of the United States has stood, and has afforded security for liberty, for property, and for reputation, to all citizens.

That it has been exposed to many dangers, that it has met critical moments, is certain. That it is now exposed to dangers, and that a crisis is now before it, is equally clear, in my judgment. But it has hitherto been preserved, and vigilance and patriotism may rescue it again.

Our dangers, Gentlemen, are not from *without*. We have nothing to fear from foreign powers, except those interruptions of the occupations of life which all wars occasion. The dangers to our system, as a system, do not spring from that quarter. On the contrary, the pressure of foreign hostility would be most likely to unite us, and to strengthen our union, by an augmented sense of its utility and necessity. But our dangers are from within. I do not now speak of those dangers which have in all ages beset republican governments, such as luxury among the rich, the corruption of public officers, and the general degradation of public morals. I speak only of those peculiar dangers to which the structure of our government particularly exposes it, in addition to all other ordinary dangers. These arise among ourselves; they spring up at home; and the evil which they threaten is no less than disunion, or the overthrow of the whole system. Local feelings and local parties, a notion sometimes a sedulously cultivated of opposite interests in different portions of the Union, evil prophecies respecting its duration, cool calculations upon the benefits of separation, a narrow feeling that cannot embrace all the States as one country, an unsocial, anti-national, and half-belligerent spirit, which sometimes betrays itself,—all these undoubtedly are causes which affect, more or less, our prospect of holding together. All these are unpropitious influences.

The Constitution, again, is founded on compromise, and the most perfect and absolute good faith, in regard to every stipulation of this kind contained in it is indispensable to its preservation. Every attempt to accomplish even the best purpose, every attempt to grasp that which is regarded as an immediate good, in violation of these stipulations, is full of danger to the whole Constitution. I need not say, also, that possible collision between the general and the State governments always has been, is, and ever must be, a source of danger to be strictly watched by wise men.

But, Gentlemen, as I have spoken of dangers now, in my judgment actually existing, I will state at once my opinions on that point, without fear and without reserve. I reproach no man, I accuse no man; but I speak of things as they appear to me, and I speak of principles and practices which I deem most alarming. I think, then, Gentlemen, that a great practical change is going on in the Constitution, which, if not checked, must completely alter its whole character. This change consists in the diminution of the just powers of Congress on the one hand, and in the vast increase of executive authority on the other. The government of the United States, in the aggregate, or the legislative power of Congress, seems fast losing, one after another, its accustomed powers. One by one, they are practically struck out of the Constitution. What has become of the power of internal improvement? Does it remain in the Constitution, or is it erased by the repeated exercise of the President's veto, and the acquiescence in that exercise of all who call themselves his friends, whatever their own opinions of the Constitution may be? The power to create a national bank, a power exercised for forty years, approved by all Presidents, and by Congress at all times, and sanctioned by a solemn adjudication of the Supreme Court, is it not true that party has agreed to strike this power, too, from the Constitution, in compliance with what has been openly called the interests of party? Nay, more; that great power, the power of protecting domestic industry, who can tell me whether that power is now regarded as in the Constitution, or out of it?

But, if it be true that the diminution of the just powers of Congress, in these particulars, has been attempted, and attempted with more or less success, it is still more obvious, I think, that the executive power of the government has been dangerously increased. It is spread, in the first place, over all that ground from which the legislative power of Congress is driven. Congress

can no longer establish a bank, controlled by the laws of the United States, amenable to the authority, and open, at all times, to the examination and inspection of the legislature. It is no longer constitutional to make such a bank, for the safe custody of the public treasure. But of the thousand State corporations already existing, it is constitutional for the executive government to select such as it pleases, to intrust the public money to their keeping, without responsibility to the laws of the United States, without the duty of exhibiting their concerns, at any time, to the committees of Congress, and with no other guards or securities than such as executive discretion on the one hand, and the banks themselves on the other, may see fit to agree to.

And so of internal improvement. It is not every thing in the nature of public improvements which is forbidden. It is only that the selection of objects is not with Congress. Whatever appears to the executive discretion to be of a proper nature, or such as comes within certain not very intelligible limits, may be tolerated. And even with respect to the tariff itself, while as a system it is denounced as unconstitutional, it is probable some portion of it might find favor.

But it is not the frequent use of the power of the veto, it is not the readiness with which men yield their own opinions, and see important powers practically obliterated from the Constitution, in order to subserve the interest of the party, it is not even all this which furnishes, at the present moment, the most striking demonstration of the increase of executive authority. It is the use of the power of patronage; it is the universal giving and taking away of all place and office, for reasons no way connected with the public service, or the faithful execution of the laws; it is this which threatens with overthrow all the true principles of the government. Patronage is reduced to a system. It is used as the patrimony, the property of party. Every office is a largess, a bounty, a favor; and it is expected to be compensated by service and fealty. A numerous and well-disciplined corps of office-holders, acting with activity and zeal, and with incredible union of purpose, is attempting to seize on the strong posts, and to control, effectually, the expression of the public will. As has been said of the Turks in Europe, they are not so much mingled with us, as encamped among us. And it is more lamentable, that the apathy which prevails in a time of general prosperity produces, among a great majority of the people, a

disregard to the efforts and objects of this well-trained and effective corps. But, Gentlemen, the principle is vicious; it is destructive and ruinous; and whether it produces its work of disunion to-day or to-morrow, it must produce it in the end. It must destroy the balance of the government, and so destroy the government itself. The government of the United States controls the army, the navy, the custom-house, the post-office, the land-offices, and other great sources of patronage. What have the States to oppose to all this? And if the States shall see all this patronage, if they shall see every officer under this government, in all its ramifications, united with every other officer, and all acting steadily in a design to produce political effect, even in State governments, is it possible not to perceive that they will, before long, regard the whole government of the Union with distrust and jealousy, and finally with fear and hatred?

Among other evils, it is the tendency of this system to push party feelings and party spirit to their utmost excess. It involves not only opinions and principles, but the pursuits of life and the means of living, in the contests of party. The executive himself becomes but the mere point of concentration of party power; and when executive power is exercised or is claimed for the supposed benefit of party, party will approve and justify it. When did heated and exasperated party ever complain of its leaders for seizing on new degrees of power?

This system of government has been openly avowed. Offices of trust are declared, from high places, to be the regular spoils of party victory; and all that is furnished out of the public purse, as a reward for labor in the public service, becomes thus a boon, offered to personal devotion and partisan service. The uncontrolled power of removal is the spring which moves all this machinery; and I verily believe the government is, and will be, in serious danger, till some check is placed on that power. To combine and consolidate a great party by the influence of personal hopes, to govern by the patronage of office, to exercise the power of removal at pleasure, in order to render that patronage effectual,—this seems to be the sum and substance of the political systems of the times. I am sorry to say, that the germ of this system had its first being in the Senate.

The policy began in the last year of Mr. Adams's administration, when nominations made by him to fill vacancies occurring by death or resignation were postponed, by a vote of the majority of the Senate, to a period beyond

the ensuing 4th of March; and this was done with no other view than that of giving the patronage of these appointments to the incoming President. The nomination of a judge of the Supreme Court, among others, was thus disposed of. The regular action of the government was, in this manner, deranged, and undue and unjustly obtained patronage came to be received as among the ordinary means of government. Some of the gentlemen who concurred in this vote have since, probably, seen occasion to regret it. But they thereby let loose the lion of executive prerogative, and they have not yet found out how they can drive it back again to its cage. The debates in the Senate on these questions, in the session of 1828-29, are not public; but I take this occasion to say, that the minority of the Senate, as it was then constituted, including, among others, myself and colleague, contended against this innovation upon the Constitution, for days and for weeks; but we contended in vain.

The doctrine of patronage thus got a foothold in the government. A general removal from office followed, exciting, at first, no small share of public attention; but every exercise of the power rendered its exercise in the next case still easier, till removal at will has become the actual system on which the government is administered.

It is hardly a fit occasion, Gentlemen, to go into the history of this power of removal. It was declared to exist in the days of Washington, by a very small majority in each house of Congress. It has been considered as existing to the present time. But no man expected it to be used as a mere arbitrary power; and those who maintained its existence declared, nevertheless, that it would justly become matter of impeachment, if it should be used for purposes such as those to which the most blind among us must admit they have recently seen it habitually applied. I have the highest respect for those who originally concurred in this construction of the Constitution. But, as discreet men of the day were divided on the question, as Madison and other distinguished names were on one side, and Gerry and other distinguished names on the other, one may now differ from either, without incurring the imputation of arrogance, since he must differ from some of them. I confess my judgment would have been, that the power of removal did not belong to the President alone; that it was but a part of the power of appointment, since the power of appointing one man to office implies the power of vacating that office, by removing another out of it; and as the whole power of

appointment is granted, not to the President alone, but to the President and Senate, the true interpretation of the Constitution would have carried the power of removal into the same hands. I have, however, so recently expressed my sentiments on this point in another place, that it would be improper to pursue this line of observation further.

In the course of the last session, Gentlemen, several bills passed the Senate, intended to correct abuses, to restrain useless expenditure, to curtail the discretionary authority of public officers, and to control government patronage. The post-office bill, the custom-house bill, and the bill respecting the tenure of office, were all of this class. None of them, however, received the favorable consideration of the other house. I believe, that in all these respects a reform, a real, honest reform, is decidedly necessary to the security of the Constitution; and while I continue in public life, I shall not halt in my endeavors to produce it. It is time to bring back the government to its true character as an agency for the people. It is time to declare that offices, created for the people, are public trusts, not private spoils. It is time to bring each and every department within its true original limits. It is time to assent, on one hand, to the just powers of Congress, in their full extent, and to resist, on the other, the progress and rapid growth of executive authority.

These, Gentlemen, are my opinions. I have spoken them frankly, and without reserve. Under present circumstances, I should wish to avoid any concealment, and to state my political opinions in their full length and breadth. I desire not to stand before the country as a man of no opinions, or of such a mixture of opposite opinions that the result has no character at all. On the contrary, I am desirous of standing as one who is bound to his own consistency by the frankest avowal of his sentiments, on all important and interesting subjects. I am not partly for the Constitution, and partly against it; I am wholly for it, for it altogether, for it as it is, and for the exercise, when occasion requires, of all its just powers, as they have heretofore been exercised by Washington, and the great men who have followed him in its administration.

I disdain, altogether, the character of an uncommitted man. I am committed, fully committed; committed to the full extent of all that I am, and all that I hope, to the Constitution of the country, to its love and reverence, to its defence and maintenance, to its warm commendation to every American

heart, and to its vindication and just praise, before all mankind. And I am committed *against* every thing which, in my judgment, may weaken, endanger, or destroy it. I am committed against the encouragement of local parties and local feelings; I am committed against all fostering of anti-national spirit; I am committed against the slightest infringement of the original compromise on which the Constitution was founded; I am committed against any and every derangement of the powers of the several departments of the government, against any derogation from the constitutional authority of Congress, and especially against all extension of executive power; and I am committed against any attempt to rule the free people of this country by the power and the patronage of the government itself. I am committed, fully and entirely committed, against making the government the people's master.

These, Gentlemen, are my opinions. I have purposely avowed them with the utmost frankness. They are not the sentiments of the moment, but the result of much reflection, and of some experience in the affairs of the country. I believe them to be such sentiments as are alone compatible with the permanent prosperity of the country, or the long continuance of its union.

And now, Gentlemen, having thus solemnly avowed these sentiments and these convictions, if you should find me hereafter to be false to them, or to falter in their support, I now conjure you, by all the duty you owe your country, by all your hopes of her prosperity and renown, by all your love for the general cause of liberty throughout the world,—I conjure you, that, renouncing me as a recreant, you yourselves go on, right on, straightforward, in maintaining, with your utmost zeal and with all your power, the true principles of the best, the happiest, the most glorious Constitution of a free government, with which it has pleased Providence, in any age, to bless any of the nations of the earth.

FOOTNOTES

[\[104\]](#)

Speech delivered in the Odeon, at Boston, on Occasion of the Presentation of a Vase by Citizens of that Place, on the 12th of October, 1835.

[\[105\]](#)

The Senate of the United States.

RECEPTION AT NEW YORK.

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INTRODUCTORY NOTE.

At a meeting of the political friends of the Hon. Daniel Webster, held at Euterpian Hall, in the city of New York, on Tuesday evening, the 21st of February, 1837, Chancellor Kent was called to the chair, and Messrs. Hiram Ketchum and Gabriel P. Dissosway were appointed secretaries.

The object of the meeting having been explained, the following resolutions were, on motion, duly seconded and unanimously adopted:—

“Resolved, That this meeting has heard with deep concern of the intention of the Hon. Daniel Webster to resign his seat in the Senate of the United States at the close of the present session of Congress, or early in the next session.

“Resolved, That while we regret the resignation of Mr. Webster, it would be most unreasonable to censure the exercise of his right to seek repose, after fourteen years of unremitted, zealous, and highly distinguished labors in the Congress of the United States; but we indulge the hope that the nation will, at no distant day, again profit by his ripe experience as a statesman and his extensive knowledge of public affairs, by his wisdom in council and eloquence in debate.

“Resolved, That in the judgment of this meeting there is none among the living or the dead who has given to the country more just or able expositions of the Constitution of the United States; none who has enforced, with more lucid and impassionate eloquence, the necessity and importance of the preservation of the Union, or exhibited more zeal or ability in defending the Constitution from the foes without the government, and foes within it, than Daniel Webster.

“*Resolved*, That there is no part of our widely extended country more deeply interested in the preservation of the Union than the city of New York; her motto should be ‘Union and Liberty, now and for ever, one and inseparable,’ and her gratitude should be shown to the statesman who first gave utterance to this sentiment.

“*Resolved*, That David B. Ogden, Peter Stagg, Jonathan Thompson, James Brown, Philip Hone, Samuel Stevens, Robert Smith, Joseph Tucker, Peter Sharpe, Egbert Benson, Hugh Maxwell, Peter A. Jay, Aaron Clark, Ira B. Wheeler, William W. Todd, Seth Grosvenor, Simeon Draper, Jr., Wm. Aspinwall, Nathaniel Weed, Jonathan Goodhue, Caleb Bartow, Hiram Ketchum, Gabriel P. Dissosway, Henry K. Bogert, James Kent, Wm. S. Johnson, and John W. Leavitt, Esqrs., be a committee authorized and empowered to receive the Hon. Daniel Webster on his return from Washington, and make known to him, in the form of an address or otherwise, the sentiments which this meeting, in common with the friends of the Union and the Constitution in the city, entertain for the services which he has performed for the country; that the committee correspond with Mr. Webster, and ascertain the time when his arrival may be expected, and give public notice of the same, together with the order of proceedings which may be adopted under these resolutions.

“*Resolved*, That these resolutions, signed by the Chairman and Secretaries, be published when the committee shall notify the public of the expected arrival of Mr. Webster.

“JAMES KENT, *Chairman*.

“HIRAM KETCHUM, GABRIEL P. DISSOSWAY, *Secretaries*.”

“*New York, March 1, 1837.*

“SIR:—It having been currently reported that you have signified your intention to resign your seat in the Senate of the United States, a number of the friends of the Union and the Constitution in this city were convened on the evening of the 21st of last month, to devise measures whereby they might signify to you the sentiments which they, in common with all the Whigs in this city, entertain for the eminent services you have rendered to the country. At this meeting, the Hon. James Kent was called to the chair, and resolutions, a copy of which I inclose you, were adopted, not only with

entire unanimity, but with a feeling of warm and hearty concurrence. On behalf of the committee appointed under one of these resolutions, I now have the honor to address you. It will be gratifying to the committee to learn from you at what time you expect to arrive in this city on your return to Massachusetts. If informed of the time of your arrival, it will afford the committee pleasure to meet you, and, in behalf of the Whigs of New York, to welcome you, and to offer you, in a more extended form than the resolutions present, their views of your public services. I am instructed by the committee to say, that, whether you shall choose to appear among us as a public man or a private citizen, you will be warmly greeted by every sound friend of that Constitution for which you have been so distinguished a champion. Should your resolution to resign your seat in the Senate be relinquished, you will, in the opinion of the committee, impose new obligations upon the friends of the Union and the Constitution.

“I have the honor to be, very truly, your obedient servant,

“D. B. OGDEN.

“To Hon. DANIEL WEBSTER, Washington.”

“Washington, March 4th, 1837.

“MY DEAR SIR:—I have the honor to acknowledge the receipt of your letter of the 1st instant, communicating the resolutions adopted at a meeting of a number of political friends in New York.

“The character of these resolutions, and the kindness of the sentiments expressed in your letter, have filled me with unaffected gratitude. I feel, at the same time, how little deserving are any political services of mine of such commendation from such a source. To the discharge of the duties of my public situation, sometimes both anxious and difficult, I have devoted time and labor without reserve; and have made sacrifices of personal and private convenience not always unimportant. These, together with integrity of purpose and fidelity, constitute, I am conscious, my only claim to the public regard; and for all these I find myself richly compensated by proofs of approbation such as your communication affords.

“My desire to relinquish my seat in the Senate for the two years still remaining of the term for which I was chosen, would have been carried into

execution at the close of the present session of the Senate, had not circumstances existed which, in the judgment of others, rendered it expedient to defer the fulfilment of that purpose for the present.

“It is my expectation to be in New York early in the week after next; and it will give me pleasure to meet the political friends who have tendered me this kind and respectful attention, in any manner most agreeable to them.

“I pray you to accept for yourself, and the other gentlemen of the committee, my highest regard.

“DANIEL WEBSTER.

“To D. B. OGDEN, Esq., New York.”

“At a meeting of the committee appointed under the above resolution, Philip Hone, Robert Smith, John W. Leavitt, Egbert Benson, Ira B. Wheeler, Caleb Bartow, Simeon Draper, Jr., and Wm. S. Johnson, Esqrs., were appointed a sub-committee to make arrangements for the reception of Mr. Webster. The committee have corresponded with Mr. Webster, and ascertained that he will leave Philadelphia on the morning of Wednesday next. He will be met by the committee, and, on landing at Whitehall, at about two o’clock on Wednesday afternoon, will thence be conducted by the committee, accompanied by such other citizens as choose to join them, to a place hereafter to be designated. In the evening, at half past six o’clock, he will be addressed by the committee, in a public meeting of citizens, at Niblo’s Saloon.

“D. B. OGDEN, *Chairman.*”

On the subsequent day, March 15th, the committee appointed for that purpose met Mr. Webster at Amboy, and accompanied him to the city, where he was met, on landing, by a very numerous assemblage of citizens, who thronged to see the distinguished Senator, and give him a warm welcome; after landing, he was attended by the committee and a numerous cavalcade through Broadway, which was crowded with the most respectable citizens, to lodgings provided for him at the American Hotel. Here he made a short address to the assembled citizens, and in the evening was accompanied by the committee to Niblo’s Saloon. One of the largest meetings ever held in the city of New York assembled in the Saloon, and at half past six o’clock was called to order by AARON CLARK; DAVID B. OGDEN was called to the chair as President of the meeting; Robert C. Cornell, Jonathan Goodhue,³⁴² Joseph Tucker, and Nathaniel Weed were nominated Vice-Presidents; and Joseph Hoxie and George S. Robbins, Secretaries.

After the meeting was organized, PHILIP HONE introduced Mr. Webster with a few appropriate remarks, and he was received with the most enthusiastic greetings. Mr. OGDEN

then addressed him as follows:—

“On behalf of a committee, appointed at a meeting of a number of your personal and political friends in this city, I have now the honor of addressing you.

“It has afforded the committee, and, I may add, all your political friends, unmingled pleasure to learn that you have, at least for the present, relinquished the intention which I know you had formed of resigning your seat in the Senate of the United States. While expressing their feelings upon this change in your determination, the committee cannot avoid congratulating the country that your public services are not yet to be lost to it and that the great champion of the Constitution and of the Union is still to continue in the field upon which he has earned so many laurels, and has so nobly asserted and defended the rights and liberties of the people.

“The effort made by you, and the honorable men with whom you have acted in the Senate, to resist executive encroachments upon the other departments of the government, will ever be remembered with gratitude by the friends of American liberty. That these efforts were not more successful, we shall long have reason to remember and regret. The administration of General Jackson is fortunately at an end. Its effects upon the Constitution and upon the commercial prosperity of the country are not at an end. Without attempting to review the leading measures of his administration, every man engaged in business in New York feels, most sensibly, that his experiment upon the currency has produced the evils which you foretold it would produce. It has brought distress, to an extent never before experienced, upon the men of enterprise and of small capital, and has put all the primary power in the hands of a few great capitalists.

“Upon the Senate our eyes and our hopes are fixed; we know that you and your political friends are in a minority in that body, but we know that in that minority are to be found great talents, great experience, great patriotism, and we look for great and continued exertions to maintain the Constitution, the Union, and the liberties of this people. And we take this opportunity of expressing our entire confidence, that whatever men can do in a minority will be done in the Senate to relieve the country from the evils under which she is now laboring, and to save her from being sacrificed by folly, corruption, or usurpation.

“It gives me, Sir, pleasure to be the organ of the committee to express to you their great respect for your talents, their deep sense of the importance of your public services, and their gratification to learn that you will still continue in the Senate.”

To this address Mr. WEBSTER replied in the following speech.

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RECEPTION AT NEW YORK. [106]

MR. CHAIRMAN, AND FELLOW-CITIZENS:—It would be idle in me to affect to be indifferent to the circumstances under which I have now the honor of addressing you.

I find myself in the commercial metropolis of the continent, in the midst of a vast assembly of intelligent men, drawn from all the classes, professions, and pursuits of life.

And you have been pleased, Gentlemen, to meet me, in this imposing manner, and to offer me a warm and cordial welcome to your city. I thank you. I feel the full force and importance of this manifestation of your regard. In the highly-flattering resolutions which invited me here, in the respectability of this vast multitude of my fellow-citizens, and in the approbation and hearty good-will which you have here manifested, I feel cause for profound and grateful acknowledgment.

To every individual of this meeting, therefore, I would now most respectfully make that acknowledgment; and with every one, as with hands joined in mutual greeting, I reciprocate friendly salutation, respect, and good wishes.

But, Gentlemen, although I am well assured of your personal regard, I cannot fail to know, that the times, the political and commercial condition of things which exists among us, and an intelligent spirit, awakened to new activity and a new degree of anxiety, have mainly contributed to fill these avenues and crowd these halls. At a moment of difficulty, and of much alarm, you come here as Whigs of New York, to meet one whom you

believe to be bound to you by common principles and common sentiments, and pursuing, with you, a common object Gentlemen, I am proud to admit this community of our principles, and this identity of our objects. You are for the Constitution of the country; so am I. You are for the Union of the States: so am I. You are for equal laws, for the equal rights of all men, for constitutional and just restraints on power, for the substance and not the shadowy image only of popular institutions, for a government which has liberty for its spirit and soul, as well as in its forms; and so am I. You feel that if, in warm party times, the executive power is in hands distinguished for boldness, for great success, for perseverance, and other qualities which strike men's minds strongly, there is danger of derangement of the powers of government, danger of a new division of those powers, in which the executive is likely to obtain the lion's part; and danger of a state of things in which the more popular branches of the government, instead of being guards and sentinels against any encroachments from the executive, seek, rather, support from its patronage, safety against the complaints of the people in its ample and all-protecting favor, and refuge in its power; and so I feel, and so I have felt for eight long and anxious years.

You believe that a very efficient and powerful cause in the production of the evils which now fall on the industrious and commercial classes of the community, is the derangement of the currency, the destruction of the exchanges, and the unnatural and unnecessary *misplacement* of the specie of the country, by unauthorized and illegal treasury orders. So do I believe. I predicted all this from the beginning, and from before the beginning. I predicted it all, last spring, when that was attempted to be done by law which was afterwards done by executive authority; and from the moment of the exercise of that executive authority to the present time, I have both foreseen and seen the regular progress of things under it, from inconvenience and embarrassment, to pressure, loss of confidence, disorder, and bankruptcies.

Gentlemen, I mean, on this occasion, to speak my sentiments freely on the great topics of the day. I have nothing to conceal, and shall therefore conceal nothing. In regard to political sentiments, purposes, or objects, there is nothing in my heart which I am ashamed of; I shall throw it all open, therefore, to you, and to all men. [That is right, said some one in the crowd; let us have it, with no non-committal.] Yes, my friend, without non-

committal or evasion, without barren generalities or empty phrase, without *if* or *but*, without a single touch, in all I say, bearing the oracular character of an Inaugural, I shall, on this occasion, speak my mind plainly, freely, and independently, to men who are just as free to concur or not to concur in my sentiments, as I am to utter them. I think you are entitled to hear my opinions freely and frankly spoken; but I freely acknowledge that you are still more clearly entitled to retain, and maintain, your own opinions, however they may differ or agree with mine.

It is true, Gentlemen, that I have contemplated the relinquishment of my seat in the Senate for the residue of the term, now two years, for which I was chosen. This resolution was not taken from disgust or discouragement, although some things have certainly happened which might excite both those feelings. But in popular governments, men must not suffer themselves to be permanently disgusted by occasional exhibitions of political harlequinism, or deeply discouraged, although their efforts to awaken the people to what they deem the dangerous tendency of public measures be not crowned with immediate success. It was altogether from other causes, and other considerations, that, after an uninterrupted service of fourteen or fifteen years, I naturally desired a respite. But those whose opinions I am bound to respect saw objections to a present withdrawal from Congress; and I have yielded my own strong desire to their convictions of what the public good requires.

Gentlemen, in speaking here on the subjects which now so much interest the community, I wish in the outset to disclaim all personal disrespect towards individuals. He whose character and fortune have exercised such a decisive influence on our politics for eight years, has now retired from public station. I pursue him with no personal reflections, no reproaches. Between him and myself, there has always existed a respectful personal intercourse. Moments have existed, indeed, critical and decisive upon the general success of his administration, in which he has been pleased to regard my aid as not altogether unimportant. I now speak of him respectfully, as a distinguished soldier, as one who, in that character, has done the state much service; as a man, too, of strong and decided character, of unsubdued resolution and perseverance in whatever he undertakes. In speaking of his civil administration, I speak without censoriousness or harsh imputation of motives; I wish him health and happiness in his retirement;

but I must still speak as I think of his public measures, and of their general bearing and tendency, not only on the present interests of the country, but also on the well-being and security of the government itself.

There are, however, some topics of a less urgent present application and importance, upon which I wish to say a few words, before I advert to those which are more immediately connected with the present distressed state of things.

My learned and highly-valued friend (Mr. Ogden) who has addressed me in your behalf, has been kindly pleased to speak of my political career as being marked by a freedom from local interests and prejudices, and a devotion to liberal and comprehensive views of public policy.

I will not say that this compliment is deserved. I will only say, that I have earnestly endeavored to deserve it. Gentlemen, the general government, to the extent of its power, is national. It is not consolidated, it does not embrace all powers of government. On the contrary, it is delegated, restrained, strictly limited.

But what powers it does possess, it possesses for the general, not for any partial or local good. It extends over a vast territory, embracing now six-and-twenty States, with interests various, but not irreconcilable, infinitely diversified, but capable of being all blended into political harmony.

He, however, who would produce this harmony must survey the whole field, as if all parts were as interesting to himself as they are to others, and with that generous, patriotic feeling, prompter and better than the mere dictates of cool reason, which leads him to embrace the whole with affectionate regard, as constituting, altogether, that object which he is so much bound to respect, to defend, and to love,—his country. We have around us, and more or less within the influence and protection of the general government, all the great interests of agriculture, navigation, commerce, manufactures, the fisheries, and the mechanic arts. The duties of the government, then, certainly extend over all this territory, and embrace all these vast interests. We have a maritime frontier, a sea-coast, of many thousand miles; and while no one doubts that it is the duty of government to defend this coast by suitable military preparations, there are those who yet suppose that the powers of government stop at this point; and that as to works of peace and works of improvement, they are beyond our

constitutional limits. I have ever thought otherwise. Congress has a right, no doubt, to declare war, and to provide armies and navies; and it has necessarily the right to build fortifications and batteries, to protect the coast from the effects of war. But Congress has authority also, and it is its duty, to regulate commerce, and it has the whole power of collecting duties on imports and tonnage. It must have ports and harbors, and dock-yards also, for its navies. Very early in the history of the government, it was decided by Congress, on the report of a highly respectable committee, that the transfer by the States to Congress of the power of collecting tonnage and other duties, and the grant of the authority to regulate commerce, charged Congress, necessarily, with the duty of maintaining such piers and wharves and light-houses, and of making such improvements, as might have been expected to be done by the States, if they had retained the usual means, by retaining the power of collecting duties on imports. The States, it was admitted, had parted with this power; and the duty of protecting and facilitating commerce by these means had passed, along with this power, into other hands. I have never hesitated, therefore, when the state of the treasury would admit, to vote for reasonable appropriations, for breakwaters, light-houses, piers, harbors, and similar public works, on any part of the whole Atlantic coast or the Gulf of Mexico, from Maine to Louisiana.

But how stands the inland frontier? How is it along the vast lakes and the mighty rivers of the North and West? Do our constitutional rights and duties terminate where the water ceases to be salt? or do they exist, in full vigor, on the shores of these inland seas? I never could doubt about this; and yet, Gentlemen, I remember even to have participated in a warm debate, in the Senate, some years ago, upon the constitutional right of Congress to make an appropriation for a pier in the harbor of Buffalo. What! make a harbor at Buffalo, where Nature never made any, and where therefore it was never intended any ever should be made! Take money from the people to run out piers from the sandy shores of Lake Erie, or deepen the channels of her shallow rivers! Where was the constitutional authority for this? Where would such strides of power stop? How long would the States have any powers at all left, if their territory might be ruthlessly invaded for such unhallowed purposes, or how long would the people have any money in their pockets, if the government of the United States might tax them, at pleasure, for such extravagant project as these? Piers, wharves, harbors, and

breakwaters in the Lakes! These arguments, Gentlemen, however earnestly put forth heretofore, do not strike us with great power, at the present day, if we stand on the shores of Lake Erie, and see hundreds of vessels, with valuable cargoes and thousands of valuable lives, moving on its waters, with few shelters from the storm, except what is furnished by the havens created, or made useful, by the aid of government. These great lakes, stretching away many thousands of miles, not in a straight line, but with turns and deflections, as if designed to reach, by water communication, the greatest possible number of important points through a region of vast extent, cannot but arrest the attention of any one who looks upon the map. They lie connected, but variously placed; and interspersed, as if with studied variety of form and direction, over that part of the country. They were made for man, and admirably adapted for his use and convenience. Looking, Gentlemen, over our whole country, comprehending in our survey the Atlantic coast, with its thick population, its advanced agriculture, its extended commerce, its manufactures and mechanic arts, its varieties of communication, its wealth, and its general improvements; and looking, then, to the interior, to the immense tracts of fresh, fertile, and cheap lands, bounded by so many lakes, and watered by so many magnificent rivers, let me ask if such a MAP was ever before presented to the eye of any statesman, as the theatre for the exercise of his wisdom and patriotism? And let me ask, too, if any man is fit to act a part, on such a theatre, who does not comprehend the whole of it within the scope of his policy, and embrace it all as his country?

Again, Gentlemen, we are one in respect to the glorious Constitution under which we live. We are all united in the great brotherhood of American liberty. Descending from the same ancestors, bred in the same school, taught in infancy to imbibe the same general political sentiments, Americans all, by birth, education, and principle, what but a narrow mind, or woful ignorance, or besotted selfishness, or prejudice ten times blinded, can lead any of us to regard the citizens of any part of the country as strangers and aliens?

The solemn truth, moreover, is before us, that a common political fate attends us all.

Under the present Constitution, wisely and conscientiously administered, all are safe, happy, and renowned. The measure of our country's fame may fill

all our breasts. It is fame enough for us all to partake in *her* glory, if we will carry her character onward to its true destiny. But if the system is broken, its fragments must fall alike on all. Not only the cause of American liberty, but the grand cause of liberty throughout the whole earth, depends, in a great measure, on upholding the Constitution and Union of these States. If shattered and destroyed, no matter by what cause, the peculiar and cherished idea of United American Liberty will be no more for ever. There may be free states, it is possible, when there shall be separate states. There may be many loose, and feeble, and hostile confederacies, where there is now one great and united confederacy. But the noble idea of United American Liberty, of *our* liberty, such as our fathers established it, will be extinguished for ever. Fragments and shattered columns of the edifice may be found remaining; and melancholy and mournful ruins will they be. The august temple itself will be prostrate in the dust. Gentlemen, the citizens of this republic cannot sever their fortunes. A common fate awaits us. In the honor of upholding, or in the disgrace of undermining the Constitution, we shall all necessarily partake. Let us then stand by the Constitution as it is, and by our country as it is, one, united, and entire; let it be a truth engraven on our hearts, let it be borne on the flag under which we rally, in every exigency, that we have ONE COUNTRY, ONE CONSTITUTION, ONE DESTINY.

Gentlemen, of our interior administration, the public lands constitute a highly important part. This is a subject of great interest, and it ought to attract much more attention than it has hitherto received, especially from the people of the Atlantic States. The public lands are public property. They belong to the people of all the States. A vast portion of them is composed of territories which were ceded by individual States to the United States, after the close of the Revolutionary war, and before the adoption of the present Constitution. The history of these cessions, and the reasons for making them, are familiar to you. Some of the Old Thirteen possessed large tracts of unsettled lands within their chartered limits. The Revolution had established their title to these lands, and as the Revolution had been brought about by the common treasure and the common blood of all the Colonies, it was thought not unreasonable that these unsettled lands should be transferred to the United States, to pay the debt created by the war, and afterwards to remain as a fund for the use of all the States. This is the well-

known origin of the title possessed by the United States to lands northwest of the River Ohio.

By treaties with France and Spain, Louisiana and Florida, containing many millions of acres of public land, have been since acquired. The cost of these acquisitions was paid, of course, by the general government, and was thus a charge upon the whole people. The public lands, therefore, all and singular, are national property; granted to the United States, purchased by the United States, paid for by all the people of the United States.

The idea, that, when a new State is created, the public lands lying within her territory become the property of such new State in consequence of her sovereignty, is too preposterous for serious refutation. Such notions have heretofore been advanced in Congress, but nobody has sustained them. They were rejected and abandoned, although one cannot say whether they may not be revived, in consequence of recent propositions which have been made in the Senate. The new States are admitted on express conditions, recognizing, to the fullest extent, the right of the United States to the public lands within their borders; and it is no more reasonable to contend that some indefinite idea of State sovereignty overrides all these stipulations, and makes the lands the property of the States, against the provisions and conditions of their own constitution, and the Constitution of the United States, than it would be, that a similar doctrine entitled the State of New York to the money collected at the custom-house in this city; since it is no more inconsistent with sovereignty that one government should hold lands, for the purpose of sale, within the territory of another, than it is that it should lay and collect taxes and duties within such territory. Whatever extravagant pretensions may have been set up heretofore, there was not, I suppose, an enlightened man in the whole West, who insisted on any such right in the States, when the proposition to cede the lands to the States was made, in the late session of Congress. The public lands being, therefore the common property of all the people of all the States, I shall never consent to give them away to particular States, or to dispose of them otherwise than for the general good, and the general use of the whole country.

I felt bound, therefore, on the occasion just alluded to, to resist at the threshold a proposition to cede the public lands to the States in which they lie, on certain conditions. I very much regretted the introduction of such a measure, as its effect must be, I fear, only to agitate what was well settled,

and to disturb that course of proceeding in regard to the public lands, which forty years of experience have shown to be so wise, and so satisfactory in its operation, both to the people of the old States and to those of the new.

But, Gentlemen, although the public lands are not to be given away, nor ceded to particular States, a very liberal policy in regard to them ought certainly to prevail. Such a policy has prevailed, and I have steadily supported it, and shall continue to support it so long as I may remain in public life. The main object, in regard to these lands, is undoubtedly to settle them, so fast as the growth of our population, and its augmentation by emigration, may enable us to settle them.

The lands, therefore, should be sold, at a low price; and, for one, I have never doubted the right or expediency of granting portions of the lands themselves, or of making grants of money, for objects of internal improvement, connected with them.

I have always supported liberal appropriations for the purpose of opening communications to and through these lands, by common roads, canals, and railroads; and where lands of little value have been long in market, and, on account of their indifferent quality are not likely to command a common price, I know no objection to a reduction of price, as to such lands, so that they may pass into private ownership. Nor do I feel any objections to removing those restraints which prevent the States from taxing the lands for five years after they are sold. But while, in these and all other respects, I am not only reconciled to a liberal policy, but espouse it and support it, and have constantly done so, I still hold the national domain to be the general property of the country, confided to the care of Congress, and which Congress is solemnly bound to protect and preserve for the common good.

The benefit derived from the public lands, after all, is, and must be, in the greatest degree, enjoyed by those who buy them and settle upon them. The original price paid to government constitutes but a small part of their actual value. Their immediate rise in value, in the hands of the settler, gives him competence. He exercises a power of selection over a vast region of fertile territory, all on sale at the same price, and that price an exceedingly low one. Selection is no sooner made, cultivation is no sooner begun, and the first furrow turned, than he already finds himself a man of property. These are the advantages of Western emigrants and Western settlers; and they are

such, certainly, as no country on earth ever before afforded to her citizens. This opportunity of purchase and settlement, this certainty of enhanced value, these sure means of immediate competence and ultimate wealth,—all these are the rights and the blessings of the people of the West, and they have my hearty wishes for their full and perfect enjoyment.

I desire to see the public lands cultivated and occupied. I desire the growth and prosperity of the West, and the fullest development of its vast and extraordinary resources. I wish to bring it near to us, by every species of useful communication. I see, not without admiration and amazement, but yet without envy or jealousy, States of recent origin already containing more people than Massachusetts. These people I know to be part of ourselves; they have proceeded from the midst of us, and we may trust that they are not likely to separate themselves, in interest or in feeling, from their kindred, whom they have left on the farms and around the hearths of their common fathers.

A liberal policy, a sympathy with its interests, an enlightened and generous feeling of participation in its prosperity, are due to the West, and will be met, I doubt not, by a return of sentiments equally cordial and equally patriotic.

Gentlemen, the general question of revenue is very much connected with this subject of the public lands, and I will therefore, in a very few words, express my views on that point.

The revenue involves not only the supply of the treasury with money, but the question of protection to manufactures. On these connected subjects, therefore, Gentlemen, as I have promised to keep nothing back, I will state my opinions plainly, but very shortly.

I am in favor of such a revenue as shall be equal to all the just and reasonable wants of the government; and I am decidedly opposed to all collection or accumulation of revenue beyond this point. An extravagant government expenditure, and unnecessary accumulation in the treasury, are both, of all things, to be most studiously avoided.

I am in favor of protecting American industry and labor, not only as employed in large manufactories, but also, and more especially, as employed in the various mechanic arts, carried on by persons of small

capitals, and living by the earnings of their own personal industry. Every city in the Union, and none more than this, would feel severely the consequences of departing from the ancient and continued policy of the government respecting this last branch of protection. If duties were to be abolished on hats, boots, shoes, and other articles of leather, and on the articles fabricated of brass, tin, and iron, and on ready-made clothes, carriages, furniture, and many similar articles, thousands of persons would be immediately thrown out of employment in this city, and in other parts of the Union. Protection, in this respect, of our own labor against the cheaper, ill-paid, half-fed, and pauper labor of Europe, is, in my opinion, a duty which the country owes to its own citizens. I am, therefore, decidedly, for protecting our own industry and our own labor.

In the next place, Gentlemen, I am of opinion, that, with no more than usual skill in the application of the well-tried principles of discriminating and specific duties, all the branches of national industry may be protected, without imposing such duties on imports as shall overcharge the treasury.

And as to the revenues arising from the sales of the public lands, I am of opinion that they ought to be set apart for the use of the States. The States need the money. The government of the United States does not need it. Many of the States have contracted large debts for objects of internal improvement; and others of them have important objects which they would wish to accomplish. The lands were originally granted for the use of the several States; and now that their proceeds are not necessary for the purposes of the general government, I am of opinion that they should go to the States, and to the people of the States, upon an equal principle. Set apart, then, the proceeds of the public lands for the use of the States; supply the treasury from duties on imports; apply to these duties a just and careful discrimination, in favor of articles produced at home by our own labor, and thus support, to a fair extent, our own manufactures. These, Gentlemen, appear to me to be the general outlines of that policy which the present condition of the country requires us to adopt.

Gentlemen, proposing to express opinions on the principal subjects of interest at the present moment, it is impossible to overlook the delicate question which has arisen from events which have happened in the late Mexican province of Texas. The independence of that province has now

been recognized by the government of the United States. Congress gave the President the means, to be used when he saw fit, of opening a diplomatic intercourse with its government, and the late President immediately made use of those means.

I saw no objection, under the circumstances, to voting an appropriation to be used when the President should think the proper time had come; and he deemed, very promptly, it is true, that the time had already arrived. Certainly, Gentlemen, the history of Texas is not a little wonderful. A very few people, in a very short time, have established a government for themselves, against the authority of the parent state; and this government, it is generally supposed, there is little probability, at the present moment, of the parent state being able to overturn.

This government is, in form, a copy of our own. It is an American constitution, substantially after the great American model. We all, therefore, must wish it success; and there is no one who will more heartily rejoice than I shall, to see an independent community, intelligent, industrious, and friendly towards us, springing up, and rising into happiness, distinction, and power, upon our own principles of liberty and government.

But it cannot be disguised, Gentlemen, that a desire, or an intention,¹³⁵⁹ is already manifested to annex Texas to the United States. On a subject of such mighty magnitude as this, and at a moment when the public attention is drawn to it, I should feel myself wanting in candor, if I did not express my opinion; since all must suppose that, on such a question, it is impossible that I should be without some opinion.

I say then, Gentlemen, in all frankness, that I see objections, I think insurmountable objections, to the annexation of Texas to the United States. When the Constitution was formed, it is not probable that either its framers or the people ever looked to the admission of any States into the Union, except such as then already existed, and such as should be formed out of territories then already belonging to the United States. Fifteen years after the adoption of the Constitution, however, the case of Louisiana arose. Louisiana was obtained by treaty with France, who had recently obtained it from Spain; but the object of this acquisition, certainly, was not mere extension of territory. Other great political interests were connected with it. Spain, while she possessed Louisiana, had held the mouths of the great

rivers which rise in the Western States, and flow into the Gulf of Mexico. She had disputed our use of these rivers already, and with a powerful nation in possession of these outlets to the sea, it is obvious that the commerce of all the West was in danger of perpetual vexation. The command of these rivers to the sea was, therefore, the great object aimed at in the acquisition of Louisiana. But that acquisition necessarily brought territory along with it, and three States now exist, formed out of that ancient province.

A similar policy, and a similar necessity, though perhaps not entirely so urgent, led to the acquisition of Florida.

Now, no such necessity, no such policy, requires the annexation of Texas. The accession of Texas to our territory is not necessary to the full and complete enjoyment of all which we already possess. Her case, therefore, stands upon a footing entirely different from that of Louisiana and Florida. There being no necessity for extending the limits of the Union in that direction, we ought, I think, for numerous and powerful reasons, to be content with our present boundaries.

Gentlemen, we all see that, by whomsoever possessed, Texas is likely to be a slave-holding country; and I frankly avow my entire unwillingness to do any thing that shall extend the slavery of the African race on this continent, or add other slave-holding States to the Union. When I say that I regard slavery in itself as a great moral, social, and political evil, I only use language which has been adopted by distinguished men, themselves citizens of slave-holding States. I shall do nothing, therefore, to favor or encourage its further extension. We have slavery already amongst us. The Constitution found it in the Union; it recognized it, and gave it solemn guaranties. To the full extent of these guaranties we are all bound, in honor, in justice, and by the Constitution. All the stipulations contained in the Constitution in favor of the slave-holding States which are already in the Union ought to be fulfilled, and, so far as depends on me, shall be fulfilled, in the fullness of their spirit and to the exactness of their letter. Slavery, as it exists in the States, is beyond the reach of Congress. It is a concern of the States themselves; they have never submitted it to Congress, and Congress has no rightful power over it. I shall concur, therefore, in no act, no measure, no menace, no indication of purpose, which shall interfere or threaten to interfere with the exclusive authority of the several States over the subject

of slavery as it exists within their respective limits. All this appears to me to be matter of plain and imperative duty.

But when we come to speak of admitting new States, the subject assumes an entirely different aspect. Our rights and our duties are then both different.

The free States, and all the States, are then at liberty to accept or to reject. When it is proposed to bring new members into this political partnership, the old members have a right to say on what terms such new partners are to come in, and what they are to bring along with them. In my opinion, the people of the United States will not consent to bring into the Union a new, vastly extensive, and slave-holding country, large enough for half a dozen or a dozen States. In my opinion, they ought not to consent to it. Indeed, I am altogether at a loss to conceive what possible benefit any part of this country can expect to derive from such annexation. Any benefit to any part is at least doubtful and uncertain; the objections are obvious, plain, and strong. On the general question of slavery, a great portion of the community is already strongly excited. The subject has not only attracted attention as a question of politics, but it has struck a far deeper-toned chord. It has arrested the religious feeling of the country; it has taken strong hold on the consciences of men. He is a rash man, indeed, and little conversant with human nature, and especially has he a very erroneous estimate of the character of the people of this country, who supposes that a feeling of this kind is to be trifled with or despised. It will assuredly cause itself to be respected. It may be reasoned with, it may be made willing, I believe it is entirely willing, to fulfil all existing engagements and all existing duties, to uphold and defend the Constitution as it is established, with whatever regrets about some provisions which it does actually contain. But to coerce it into silence, to endeavor to restrain its free expression, to seek to compress and confine it, warm as it is, and more heated as such endeavors would inevitably render it,—should this be attempted, I know nothing, even in the Constitution or in the Union itself, which would not be endangered by the explosion which might follow.

I see, therefore, no political necessity for the annexation of Texas to the Union; no advantages to be derived from it; and objections to it of a strong, and, in my judgment, decisive character.

I believe it to be for the interest and happiness of the whole Union to remain as it is, without diminution and without addition.

Gentleman, I pass to other subjects. The rapid advancement of the executive authority is a topic which has already been alluded to.

I believe there is serious cause of alarm from this source. I believe the power of the executive has increased, is increasing, and ought now to be brought back within its ancient constitutional limits. I have nothing to do with the motives which have led to those acts, which I believe to have transcended the boundaries of the Constitution. Good motives may always be assumed, as bad motives may always be imputed. Good intentions will always be pleaded for every assumption of power; but they cannot justify it, even if we were sure that they existed. It is hardly too strong to say, that the Constitution was made to guard the people against the dangers of good intention, real or pretended. When bad intentions are boldly avowed, the people will promptly take care of themselves. On the other hand, they will always be asked why they should resist or question that exercise of power which is so fair in its object, so plausible and patriotic in appearance, and which has the public good alone confessedly in view? Human beings, we may be assured, will generally exercise power when they can get it; and they will exercise it most undoubtedly, in popular governments, under pretences of public safety or high public interest. It may be very possible that good intentions do really sometimes exist when constitutional restraints are disregarded. There are men, in all ages, who mean to exercise power usefully; but who mean to exercise it. They mean to govern well; but they mean to govern. They promise to be kind masters; but they mean to be masters. They think there need be but little restraint upon themselves. Their notion of the public interest is apt to be quite closely connected with their own exercise of authority. They may not, indeed, always understand their own motives. The love of power may sink too deep in their own hearts even for their own scrutiny, and may pass with themselves for mere patriotism and benevolence.

A character has been drawn of a very eminent citizen of Massachusetts, of the last age, which, though I think it does not entirely belong to him, yet very well describes a certain class of public men. It was said of this distinguished son of Massachusetts, that in matters of politics and

government he cherished the most kind and benevolent feelings towards the whole earth. He earnestly desired to see all nations well governed; and to bring about this happy result, he wished that the United States might govern the rest of the world; that Massachusetts might govern the United States; that Boston might govern Massachusetts; and as for himself, his own humble ambition would be satisfied by governing the little town of Boston.

I do not intend, Gentlemen, to commit so unreasonable a trespass on your patience as to discuss all those cases in which I think executive power has been unreasonably extended. I shall only allude to some of them, and, as being earliest in the order of time, and hardly second to any other in importance, I mention the practice of removal from all offices, high and low, for opinion's sake, and on the avowed ground of giving patronage to the President; that is to say, of giving him the power of influencing men's political opinions and political conduct, by hopes and by fears addressed directly to their pecuniary interests. The great battle on this point was fought, and was lost, in the Senate of the United States, in the last session of Congress under Mr. Adams's administration. After General Jackson was known to be elected, and before his term of office began, many important offices became vacant, by the usual causes of death and resignation. Mr. Adams, of course, nominated persons to fill these vacant offices. But a majority of the Senate was composed of the friends of General Jackson; and, instead of acting on these nominations, and filling the vacant offices with ordinary promptitude, the nominations were postponed to a day beyond the 4th of March, for the purpose, openly avowed, of giving the patronage of the appointments to the President who was then coming into office. When the new President entered on his office, he withdrew these nominations, and sent in nominations of his own friends in their places. I was of opinion then, and am of opinion now, that that decision of the Senate went far to unfix the proper balance of the government. It conferred on the President the power of rewards for party purposes, or personal purposes, without limit or control. It sanctioned, manifestly and plainly, that exercise of power which Mr. Madison had said would deserve impeachment; and it completely defeated one great object, which we are told the framers of the Constitution contemplated, in the manner of forming the Senate; that is, that the Senate might be a body not changing with the election of a President, and therefore likely to be able to hold over him some check or restraint in

regard to bringing his own friends and partisans into power with him, and thus rewarding their services to him at the public expense.

The debates in the Senate, on these questions, were long continued and earnest. They were of course in secret session, but the opinions of those members who opposed this course have all been proved true by the result. The contest was severe and ardent, as much so as any that I have ever partaken in; and I have seen some service in that sort of warfare.

Gentlemen, when I look back to that eventful moment, when I remember who those were who upheld this claim for executive power, with so much zeal and devotion, as well as with such great and splendid abilities, and when I look round now, and inquire what has become of these gentlemen, where they have found themselves at last, under the power which they thus helped to establish, what has become now of all their respect, trust, confidence, and attachment, how many of them, indeed, have not escaped from being broken and crushed under the weight of the wheels of that engine which they themselves set in motion. I feel that an edifying lesson may be read by those who, in the freshness and fullness of party zeal, are ready to confer the most dangerous power, in the hope that they and their friends may bask in its sunshine, while enemies only shall be withered by its frown.

I will not go into the mention of names. I will give no enumeration of persons; but I ask you to turn your minds back, and recollect who the distinguished men were who supported, in the Senate, General Jackson's administration for the first two years; and I will ask you what you suppose they think now of that power and that discretion which they so freely confided to executive hands. What do they think of the whole career of that administration, the commencement of which, and indeed the existence of which, owed so much to their own great exertions?

In addition to the establishment of this power of unlimited and causeless removal, another doctrine has been put forth, more vague, it is true, but altogether unconstitutional, and tending to like dangerous results. In some loose, indefinite, and unknown sense, the President has been called the *representative of the whole American people*. He has called himself so repeatedly, and been so denominated by his friends a thousand times. Acts, for which no specific authority has been found either in the Constitution or

the laws, have been justified on the ground that the President is the representative of the whole American people. Certainly, this is not constitutional language. Certainly, the Constitution nowhere calls the President the universal representative of the people. The constitutional representatives of the people are in the House of Representatives, exercising powers of legislation. The President is an executive officer, appointed in a particular manner, and clothed with prescribed and limited powers. It may be thought to be of no great consequence, that the President should call himself, or that others should call him, the sole representative of all the people, although he has no such appellation or character in the Constitution. But, in these matters, words are things. If he is the people's representative, and as such may exercise power, without any other grant, what is the limit to that power? And what may not an unlimited representative of the people do? When the Constitution expressly creates representatives, as members of Congress, it regulates, defines, and limits their authority. But if the executive chief magistrate, merely because he is the executive chief magistrate, may assume to himself another character, and call himself the representative of the whole people, what is to limit or restrain this representative power in his hands?

I fear, Gentlemen, that if these pretensions should be continued and justified, we might have many instances of summary political logic, such as I once heard in the House of Representatives. A gentleman, not now living, wished very much to vote for the establishment of a Bank of the United States, but he had always stoutly denied the constitutional power of Congress to create such a bank. The country, however, was in a state of great financial distress, from which such an institution, it was hoped, might help to extricate it; and this consideration led the worthy member to review his opinions with care and deliberation. Happily, on such careful and deliberate review, he altered his former judgment. He came, satisfactorily, to the conclusion that Congress might incorporate a bank. The argument which brought his mind to this result was short, and so plain and obvious, that he wondered how he should so long have overlooked it. The power, he said, to create a bank, was either given to Congress, or it was not given. Very well. If it was given, Congress of course could exercise it; if it was not given, the people still retained it, and in that case, Congress, as the representatives of the people, might, upon an emergency, make free to use it.

Arguments and conclusions in substance like these, Gentlemen, will not be wanting, if men of great popularity, commanding characters, sustained by powerful parties, *and full of good intentions towards the public*, may be permitted to call themselves the universal representatives of the people.

But, Gentlemen, it is the *currency*, the currency of the country,—it is this great subject, so interesting, so vital, to all classes of the community, which has been destined to feel the most violent assaults of executive power. The consequences are around us and upon us. Not unforeseen, not unforecast, here they come, bringing distress for the present, and fear and alarm for the future. If it be denied that the present condition of things has arisen from the President's interference with the revenue, the first answer is, that, when he did interfere, just such consequences were predicted. It was then said, and repeated, and pressed upon the public attention, that that interference must necessarily produce derangement, embarrassment, loss of confidence, and commercial distress. I pray you, Gentlemen, to recur to the debates of 1832, 1833, and 1834, and then to decide whose opinions have proved to be correct. When the treasury experiment was first announced, who supported, and who opposed it? Who warned the country against it? Who were they who endeavored to stay the violence of party, to arrest the hand of executive authority, and to convince the people that this experiment was delusive; that its object was merely to increase executive power, and that its effect, sooner or later, must be injurious and ruinous? Gentlemen, it is fair to bring the opinions of political men to the test of experience. It is just to judge of them by their measures, and their opposition to measures; and for myself, and those political friends with whom I have acted, on this subject of the currency, I am ready to abide the test.

But before the subject of the currency, and its present most embarrassing state, is discussed, I invite your attention, Gentlemen, to the history of executive proceedings connected with it. I propose to state to you a series of facts; not to argue upon them, not to *mystify* them, nor to draw any unjust inference from them; but merely to state the case, in the plainest manner, as I understand it. And I wish, Gentlemen, that, in order to be able to do this in the best and most convincing manner, I had the ability of my learned friend, (Mr. Ogden,) whom you have all so often heard, and who usually states his case in such a manner that, when stated, it is already very well argued.

Let us see, Gentlemen, what the train of occurrences has been in regard to our revenue and finances; and when these occurrences are stated, I leave to every man the right to decide for himself whether our present difficulties have or have not arisen from attempts to extend the executive authority. In giving this detail, I shall be compelled to speak of the late Bank of the United States; but I shall speak of it historically only. My opinion of its utility, and of the extraordinary ability and success with which its affairs were conducted for many years before the termination of its charter, is well known. I have often expressed it, and I have not altered it. But at present I speak of the bank only as it makes a necessary part in the history of events which I wish now to recapitulate.

Mr. Adams commenced his administration in March, 1825. He had been elected by the House of Representatives, and began his career as President under a powerful opposition. From the very first day, he was warmly, even violently, opposed in all his measures; and this opposition, as we all know, continued without abatement, either in force or asperity, through his whole term of four years. Gentlemen, I am not about to say whether this opposition was well or ill founded, just or unjust. I only state the fact as connected with other facts. The Bank of the United States, during these four years of Mr. Adams's administration, was in full operation. It was performing the fiscal duties enjoined on it by its charter; it had established numerous offices, was maintaining a large circulation, and transacting a vast business in exchange. Its character, conduct, and manner of administration were all well known to the whole country.

Now there are two or three things worthy of especial notice. One is, that during the whole of this heated political controversy, from 1825 to 1829, the party which was endeavoring to produce a change of administration in the general government brought no charge of political interference against the Bank of the United States. If any thing, it was rather a favorite with that party generally. Certainly, the party, as a party, did not ascribe to it undue attachment to other parties, or to the then existing administration. Another important fact is, that, during the whole of the same period, those who had espoused the cause of General Jackson, and who sought to bring about a revolution under his name, did not propose the destruction of the bank, or its discontinuance, as one of the objects which were to be accomplished by the intended revolution. They did not tell the country that the bank was

unconstitutional; they did not declare it unnecessary; they did not propose to get along without it, when they should come into power themselves. If individuals entertained any such purposes, they kept them much to themselves. The party, as a party, avowed none such. A third fact, worthy of all notice, is, that during this period there was no complaint about the state of the currency, either by the country generally or by the party then in opposition.

In March, 1829, General Jackson was inaugurated as President. He came into power on professions of reform. He announced reform of all abuses to be the great and leading object of his future administration; and in his inaugural address he pointed out the main subjects of this reform. But the bank was not one of them. It was not said by him that the bank was unconstitutional. It was not said that it was unnecessary or useless. It was not said that it had failed to do all that had been hoped or expected from it in regard to the currency.

In March, 1829, then, the bank stood well, very well, with the new administration. It was regarded, so far as appears, as entirely constitutional, free from political or party taint, and highly useful. It had as yet found no place in the catalogue of abuses to be reformed.

But, Gentlemen, nine months wrought a wonderful change. New lights broke forth before these months had rolled away; and the President, in his message to Congress in December, 1829, held a very unaccustomed language and manifested very unexpected purposes.

Although the bank had then five or six years of its charter unexpired, he yet called the attention of Congress very pointedly to the subject, and declared,

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1. That the constitutionality of the bank was well doubted by many;
 2. That its utility or expediency was also well doubted;
 3. That all must admit that it had failed to establish or maintain a sound and uniform currency; and
 4. That the true bank for the use of the government of the United States would be a bank which should be founded on the revenues and credit of the government itself.

These propositions appeared to me, at the time, as very extraordinary, and the last one as very startling. A bank founded on the revenue and credit of the government, and managed and administered by the executive, was a conception which I had supposed no man holding the chief executive power in his own hands would venture to put forth.

But the question now is, what had wrought this great change of feeling and of purpose in regard to the bank. What events had occurred between March and December that should have caused the bank, so constitutional, so useful, so peaceful, and so safe an institution, in the first of these months, to start up into the character of a monster, and become so horrid and dangerous, in the last?

Gentlemen, let us see what the events were which had intervened. General Jackson was elected in December, 1828. His term was to begin in March, 1829. A session of Congress took place, therefore, between his election and the commencement of his administration.

Now, Gentlemen, the truth is, that during this session, and a little before the commencement of the new administration, a disposition was manifested by political men to interfere with the management of the bank. Members of Congress undertook to nominate or recommend individuals as directors in the branches, or offices, of the bank. They were kind enough, sometimes, to make out whole lists, or tickets, and to send them to Philadelphia, containing the names of those whose appointments would be satisfactory to General Jackson's friends. Portions of the correspondence on these subjects have been published in some of the voluminous reports and other documents connected with the bank, but perhaps have not been generally heeded or noticed. At first, the bank merely declined, as gently as possible, complying with these and similar requests. But like applications began to show themselves from many quarters, and a very marked case arose as early as June, 1829. Certain members of the Legislature of New Hampshire applied for a change in the presidency of the branch which was established in that State. A member of the Senate of the United States wrote both to the president of the bank and to the Secretary of the Treasury, strongly recommending a change, and in his letter to the Secretary hinting very distinctly at political considerations as the ground of the movement. Other officers in the service of the government took an interest in the matter, and urged a change; and the Secretary himself wrote to the bank, suggesting and

recommending it. The time had come, then, for the bank to take its position. It did take it; and, in my judgment, if it had not acted as it did act, not only would those who had the care of it have been most highly censurable, but a claim would have been yielded to, entirely inconsistent with a government of laws, and subversive of the very foundations of republicanism.

A long correspondence between the Secretary of the Treasury and the president of the bank ensued. The directors determined that they would not surrender either their rights or their duties to the control or supervision of the executive government. They said they had never appointed directors of their branches on political grounds, and they would not remove them on such grounds. They had avoided politics. They had sought for men of business, capacity, fidelity, and experience in the management of pecuniary concerns. They owed duties, they said, to the government, which they meant to perform, faithfully and impartially, under all administrations; and they owed duties to the stockholders of the bank, which required them to disregard political considerations in their appointments. This correspondence ran along into the fall of the year, and finally terminated in a stern and unanimous declaration, made by the directors, and transmitted to the Secretary of the Treasury, that the bank would continue to be independently administered, and that the directors once for all refused to submit to the supervision of the executive authority, in any of its branches, in the appointment of local directors and agents. This resolution decided the character of the future. Hostility towards the bank, thenceforward, became the settled policy of the government; and the message of December, 1829, was the clear announcement of that policy. If the bank had appointed those directors, thus recommended by members of Congress; if it had submitted all its appointments to the supervision of the treasury; if it had removed the president of the New Hampshire branch; if it had, in all things, showed itself a complying, political, party machine, instead of an independent institution;—if it had done this, I leave all men to judge whether such an entire change of opinion, as to its constitutionality, its utility, and its good effects on the currency, would have happened between March and December.

From the moment in which the bank asserted its independence of treasury control, and its elevation above mere party purposes, down to the end of its

charter, and down even to the present day, it has been the subject to which the selectest phrases of party denunciation have been plentifully applied.

But Congress manifested no disposition to establish a treasury bank. On the contrary, it was satisfied, and so was the country, most unquestionably, with the bank then existing. In the summer of 1832, Congress passed an act for continuing the charter of the bank, by strong majorities in both houses. In the House of Representatives, I think, two thirds of the members voted for the bill. The President gave it his negative; and as there were not two thirds of the Senate, though a large majority were for it, the bill failed to become a law.

But it was not enough that a continuance of the charter of the bank was thus refused. It had the deposit of the public money, and this it was entitled to by law, for the few years which yet remained of its chartered term. But this it was determined it should not continue to enjoy. At the commencement of the session of 1832-33, a grave and sober doubt was expressed by the Secretary of the Treasury, in his official communication, whether the public moneys were safe in the custody of the bank! I confess, Gentlemen, when I look back to this suggestion, thus officially made, so serious in its import, so unjust, if not well founded, and so greatly injurious to the credit of the bank, and injurious, indeed, to the credit of the whole country, I cannot but wonder that any man of intelligence and character should have been willing to make it. I read in it, however, the first lines of another chapter. I saw an attempt was now to be made to remove the deposits of the public money from the bank, and such an attempt was made that very session. But Congress was not to be prevailed upon to accomplish the end by its own authority. It was well ascertained that neither house would consent to it. The House of Representatives, indeed, at the heel of the session, decided against the proposition by a very large majority.

The legislative authority having been thus invoked, and invoked in vain, it was resolved to stretch farther the long arm of executive power, and by that arm to reach and strike the victim. It so happened that I was in this city in May, 1833, and here learned, from a very authentic source, that the deposits would be removed by the President's order; and in June, as afterwards appeared, that order was given.

Now it is obvious, Gentlemen, that thus far the changes in our financial and fiscal system were effected, not by Congress, but by the executive; not by law, but by the will and the power of the President. Congress would have continued the charter of the bank; but the President negatived the bill. Congress was of opinion that the deposits ought not to be removed; but the President removed them. Nor was this all. The public moneys being withdrawn from the custody which the law had provided, by executive power alone, that same power selected the places for their future keeping. Particular banks, existing under State charters, were chosen. With these especial and particular arrangements were made, and the public moneys were deposited in their vaults. Henceforward these selected banks were to operate on the revenue and credit of the government; and thus the original scheme, promulgated in the annual message of December, 1829, was substantially carried into effect. Here were banks chosen by the treasury; all the arrangements with them made by the treasury; a set of duties to be performed by them to the treasury prescribed; and these banks were to hold the whole proceeds of the public revenue. In all this, Congress had neither part nor lot. No law had caused the removal of the deposits; no law had authorized the selection of deposit State banks; no law had prescribed the terms on which the revenues should be placed in such banks. From the beginning of the chapter to the end, it was all executive edict. And now, Gentlemen, I ask if it be not most remarkable, that, in a country professing to be under a government of laws, such great and important changes in one of its most essential and vital interests should be brought about without any change of law, without any enactment of the legislature whatever? Is such a power trusted to the executive of any government in which the executive is separated, by clear and well-defined lines, from the legislative department? The currency of the country stands on the same general ground as the commerce of the country. Both are intimately connected, and both are subjects of legal, not of executive, regulation.

It is worthy of notice, that the writers of the Federalist, in discussing the powers which the Constitution conferred on the President, made it matter of commendation, that it withdraws this subject altogether from his grasp. “He can prescribe no rules,” say they, “concerning the commerce or *currency* of the country.” And so we have been all taught to think, under all former administrations. But we have now seen that the President, and the President alone, does prescribe the rule concerning the currency. He makes it, and he

alters it. He makes one rule for one branch of the revenue, and another rule for another. He makes one rule for the citizen of one State, and another for the citizen of another State. This, it is certain, is one part of the treasury order of July last.

But at last Congress interfered, and undertook to regulate the deposits of the public moneys. It passed the law of July, 1836, placing the subject under legal control, restraining the power of the executive, subjecting the banks to liabilities and duties, on the one hand, and securing them against executive favoritism, on the other. But this law contained another important provision; which was, that all the money in the treasury, beyond what was necessary for the current expenditures of the government, should be deposited with the States. This measure passed both houses by very unusual majorities, yet it hardly escaped a veto. It obtained only a cold assent, a slow, reluctant, and hesitating approval; and an early moment was seized to array against it a long list of objections. But the law passed. The money in the treasury beyond the sum of five millions was to go to the States. It has so gone, and the treasury for the present is relieved from the burden of a surplus. But now observe other coincidences. In the annual message of December, 1835, the President quoted the fact of the rapidly increasing sale of the public lands as proof of high national prosperity. He alluded to that subject, certainly with much satisfaction, and apparently in something of the tone of exultation. There was nothing said about monopoly, not a word about speculation, not a word about over-issues of paper, to pay for the lands. All was prosperous, all was full of evidence of a wise administration of government, all was joy and triumph.

But the idea of a deposit or distribution of the surplus money with the people suddenly damped this effervescing happiness. The color of the rose was gone, and every thing now looked gloomy and black. Now no more felicitation or congratulation, on account of the rapid sales of the public lands; no more of this most decisive proof of national prosperity and happiness. The executive Muse takes up a melancholy strain. She sings of monopolies, of speculation, of worthless paper, of loss both of land and money, of the multiplication of banks, and the danger of paper issues; and the end of the canto, the catastrophe, is, that lands shall no longer be sold but for gold and silver alone. The object of all this is clear enough. It was to diminish the income from the public lands. No desire for such a diminution

had been manifested, so long as the money was supposed to be likely to remain in the treasury. But a growing conviction that some other disposition must be made of the surplus, awakened attention to the means of preventing that surplus.

Toward the close of the last session, Gentlemen, a proposition was brought forward in Congress for such an alteration of the law as should admit payment for public lands to be made in nothing but gold and silver. The mover voted for his own proposition; but I do not recollect that any other member concurred in the vote. The proposition was rejected at once; but, as in other cases, that which Congress refused to do, the executive power did. Ten days after Congress adjourned, having had this matter before it, and having refused to act upon it by making any alteration in the existing laws, a treasury order was issued, commanding that very thing to be done which Congress had been requested and had refused to do. Just as in the case of the removal of the deposits, the executive power acted in this case also against the known, well understood, and recently expressed will of the representatives of the people. There never has been a moment when the legislative will would have sanctioned the object of that order; probably never a moment in which any twenty individual members of Congress would have concurred in it. The act was done without the assent of Congress, and against the well-known opinion of Congress. That act altered the law of the land, or purported to alter it, against the well-known will of the law-making power.

For one, I confess I see no authority whatever in the Constitution, or in any law, for this treasury order. Those who have undertaken to maintain it have placed it on grounds, not only different, but inconsistent and contradictory. The reason which one gives, another rejects; one confutes what another argues. With one it is the joint resolution of 1816 which gave the authority; with another, it is the law of 1820; with a third, it is the general superintending power of the President; and this last argument, since it resolves itself into mere power, without stopping to point out the sources of that power, is not only the shortest, but in truth the most just. He is the most sensible, as well as the most candid reasoner, in my opinion, who places this treasury order on the ground of the pleasure of the executive, and stops there. I regard the joint resolution of 1816 as mandatory; as prescribing a legal rule; as putting this subject, in which all have so deep an interest,

beyond the caprice, or the arbitrary pleasure, or the discretion, of the Secretary of the Treasury. I believe there is not the slightest legal authority, either in that officer or in the President, to make a distinction, and to say that paper may be received for debts at the custom-house, but that gold and silver only shall be received at the land offices. And now for the sequel.

At the commencement of the last session, as you know, Gentlemen, a resolution was brought forward in the Senate for annulling and abrogating this order, by Mr. Ewing, of Ohio, a gentleman of much intelligence, of sound principles, of vigorous and energetic character, whose loss from the service of the country I regard as a public misfortune. The Whig members all supported this resolution, and all the members, I believe, with the exception of some five or six, were very anxious in some way to get rid of the treasury order. But Mr. Ewing's resolution was too direct. It was deemed a pointed and ungracious attack on executive polity. It must therefore be softened, modified, qualified, made to sound less harsh to the ears of men in power, and to assume a plausible, polished, inoffensive character. It was accordingly put into the plastic hands of friends of the executive to be moulded and fashioned, so that it might have the effect of ridding the country of the obnoxious order, and yet not appear to question executive infallibility. All this did not answer. The late President is not a man to be satisfied with soft words; and he saw in the measure, even as it passed the two houses, a substantial repeal of the order. He is a man of boldness and decision; and he respects boldness and decision in others. If you are his friend, he expects no flinching; and if you are his adversary, he respects you none the less for carrying your opposition to the full limits of honorable warfare. Gentlemen, I most sincerely regret the course of the President in regard to this bill, and certainly most highly disapprove it. But I do not suffer the mortification of having attempted to disguise and garnish it, in order to make it acceptable, and of still finding it thrown back in my face. All that was obtained by this ingenious, diplomatic, and over-courteous mode of enacting a law, was a response from the President and the Attorney-General, that the bill in question was obscure, ill penned, and not easy to be understood. The bill, therefore, was neither approved nor negatived. If it had been approved, the treasury order would have been annulled, though in a clumsy and objectionable manner. If it had been negatived, and returned to Congress, no doubt it would have been passed by two thirds of both houses, and in that way have become a law, and

abrogated the order. But it was not approved, it was not returned; it was retained. It had passed the Senate in season; it had been sent to the House in season; but there it was suffered to lie so long without being called up, that it was completely in the power of the President when it finally passed that body; since he is not obliged to return bills which he does not approve, if not presented to him ten days before the end of the session. The bill was lost, therefore, and the treasury order remains in force. Here again the representatives of the people, in both houses of Congress, by majorities almost unprecedented, endeavored to abolish this obnoxious order. On hardly any subject, indeed, has opinion been so unanimous, either in or out of Congress. Yet the order remains.

And now, Gentlemen, I ask you, and I ask all men who have not voluntarily surrendered all power and all right of thinking for themselves, whether, from 1832 to the present moment, the executive authority has not effectually superseded the power of Congress, thwarted the will of the representatives of the people, and even of the people themselves, and taken the whole subject of the currency into its own grasp? In 1832, Congress desired to continue the bank of the United States, and a majority of the people desired it also; but the President opposed it, and his will prevailed. In 1833, Congress refused to remove the deposits; the President resolved upon it, however, and his will prevailed. Congress has never been willing to make a bank founded on the money and credit of the government, and administered, of course, by executive hands; but this was the President's object, and he attained it, in a great measure, by the treasury selection of deposit banks. In this particular, therefore, to a great extent, his will prevailed. In 1836, Congress refused to confine the receipts for public lands to gold and silver; but the President willed it, and his will prevailed. In 1837, both houses of Congress, by more than two thirds, passed a bill for restoring the former state of things by annulling the treasury order; but the President willed, notwithstanding, that the order should remain in force, and his will again prevailed. I repeat the question, therefore, and I would put it earnestly to every intelligent man, to every lover of our constitutional liberty, are we under the dominion of the law? or has the effectual government of the country, at least in all that regards the great interest of the currency, been in a single hand?

Gentlemen, I have done with the narrative of events and measures. I have done with the history of these successive steps, in the progress of executive power, towards a complete control over the revenue and the currency. The result is now all before us. These pretended reforms, these extraordinary exercises of power from an extraordinary zeal for the good of the people, what have they brought us to?

In 1829, the currency was declared to be *neither sound nor uniform*; a proposition, in my judgment, altogether at variance with the fact, because I do not believe there ever was a country of equal extent, in which paper formed any part of the circulation, that possessed a currency so sound, so uniform, so convenient, and so perfect in all respects, as the currency of this country, at the moment of the delivery of that message, in 1829.

But how is it now? Where has the improvement brought it? What has reform done? What has the great cry for hard money accomplished? Is the currency *uniform* now? Is money in New Orleans now as good, or nearly so, as money in New York? Are exchanges at par, or only at the same low rates as in 1829 and other years? Every one here knows that all the benefits of this experiment are but injury and oppression; all this reform, but aggravated distress.

And as to the *soundness* of the currency, how does that stand? Are the causes of alarm less now than in 1829? Is there less bank paper in circulation? Is there less fear of a general catastrophe? Is property more secure, or industry more certain of its reward? We all know, Gentlemen, that, during all this pretended warfare against all banks, banks have vastly increased. Millions upon millions of bank paper have been added to the circulation. Everywhere, and nowhere so much as where the present administration and its measures have been most zealously supported, banks have multiplied under State authority, since the decree was made that the Bank of the United States should be suffered to expire. Look at Mississippi, Missouri, Louisiana, Virginia, and other States. Do we not see that banking capital and bank paper are enormously increasing? The opposition to banks, therefore, so much professed, whether it be real or whether it be but pretended, has not restrained either their number or their issues of paper. Both have vastly increased.

And now a word or two, Gentlemen, upon this hard-money scheme, and the fancies and the delusions to which it has given birth. Gentlemen, this is a subject of delicacy, and one which it is difficult to treat with sufficient caution, in a popular and occasional address like this. I profess to be a *bullionist*, in the usual and accepted sense of that word. I am for a solid specie basis for our circulation, and for specie as a part of the circulation, so far as it may be practicable and convenient. I am for giving no value to paper, merely as paper. I abhor paper; that is to say, irredeemable paper, paper that may not be converted into gold or silver at the will of the holder. But while I hold to all this, I believe, also, that an exclusive gold and silver circulation is an utter impossibility in the present state of this country and of the world. We shall none of us ever see it; and it is credulity and folly, in my opinion, to act under any such hope or expectation. The States will make banks, and these will issue paper; and the longer the government of the United States neglects its duty in regard to measures for regulating the currency, the greater will be the amount of bank paper overspreading the country. Of this I entertain not a particle of doubt.

While I thus hold to the absolute and indispensable necessity of gold and silver, as the foundation of our circulation, I yet think nothing more absurd and preposterous, than unnatural and strained efforts to import specie. There is but so much specie in the world, and its amount cannot be greatly or suddenly increased. Indeed, there are reasons for supposing that its amount has recently diminished, by the quantity used in manufactures, and by the diminished products of the mines. The existing amount of specie, however, must support the paper circulations, and the systems of currency, not of the United States only, but of other nations also. One of its great uses is to pass from country to country, for the purpose of settling occasional balances in commercial transactions. It always finds its way, naturally and easily, to places where it is needed for these uses. But to take extraordinary pains to bring it where the course of trade does not bring it, where the state of debt and credit does not require it to be, and then to endeavor, by unnecessary and injurious regulations, treasury orders, accumulations at the mint, and other contrivances, there to retain it, is a course of policy bordering, as it appears to me, on political insanity. It is boasted that we have seventy-five or eighty millions of specie now in the country. But what more senseless, what more absurd, than this boast, if there is a balance against us abroad, of which payment is desired sooner than remittances of our own products are

likely to make that payment? What more miserable than to boast of having that which is not ours, which belongs to others, and which the convenience of others, and our own convenience also, require that they should possess? If Boston were in debt to New York, would it be wise in Boston, instead of paying its debt, to contrive all possible means of obtaining specie from the New York banks, and hoarding it at home? And yet this, as I think, would be precisely as sensible as the course which the government of the United States at present pursues. We have, beyond all doubt, a great amount of specie in the country, but it does not answer its accustomed end, it does not perform its proper duty. It neither goes abroad to settle balances against us, and thereby quiet those who have demands upon us; nor is it so disposed of at home as to sustain the circulation to the extent which the circumstances of the times require. A great part of it is in the Western banks, in the land offices, on the roads through the wilderness, on the passages over the Lakes, from the land offices to the deposit banks, and from the deposit banks back to the land offices. Another portion is in the hands of buyers and sellers of specie; of men in the West, who sell land-office money to the new settlers for a high premium. Another portion, again, is kept in private hands, to be used when circumstances shall tempt to the purchase of lands. And, Gentlemen, I am inclined to think, so loud has been the cry about hard money, and so sweeping the denunciation of all paper, that private holding, or hoarding, prevails to some extent in different parts of the country. These eighty millions of specie, therefore, really do us little good. We are weaker in our circulation, I have no doubt, our credit is feebler, money is scarcer with us, at this moment, than if twenty millions of this specie were shipped to Europe, and general confidence thereby restored.

Gentlemen, I will not say that some degree of pressure might not have come upon us, if the treasury order had not issued. I will not say that there has not been over-trading, and over-production, and a too great expansion of bank circulation. This may all be so, and the last-mentioned evil, it was easy to foresee, was likely to happen when the United States discontinued their own bank. But what I do say is, that, acting upon the state of things as it actually existed, and is now actually existing, the treasury order has been, and now is, productive of great distress. It acts upon a state of things which gives extraordinary force to its stroke, and extraordinary point to its sting. It arrests specie, when the free use and circulation of specie are most important; it cripples the banks, at a moment when the banks more than

ever need all their means. It makes the merchant unable to remit, when remittance is necessary for his own credit, and for the general adjustment of commercial balances. I am not now discussing the general question, whether prices must not come down, and adjust themselves anew to the amount of bullion existing in Europe and America. I am dealing only with the measures of our own government on the subject of the currency, and I insist that these measures have been most unfortunate, and most ruinous in their effects on the ordinary means of our circulation at home, and on our ability of remittance abroad.

Their effects, too, on domestic exchanges, by deranging and misplacing the specie which is in the country, are most disastrous. Let him who has lent an ear to all these promises of a more uniform currency see how he can now sell his draft on New Orleans or Mobile. Let the Northern manufacturers and mechanics, those who have sold the products of their labor to the South, and heretofore realized the prices with little loss of exchange, let them try present facilities. Let them see what reform of the currency has done for them. Let them inquire whether, in this respect, their condition is better or worse than it was five or six years ago.

Gentlemen, I hold this disturbance of the measure of value, and the means of payment and exchange, this derangement, and, if I may so say, this violation of the currency, to be one of the most unpardonable of political faults. He who tampers with the currency robs labor of its bread. He panders, indeed, to greedy capital, which is keen-sighted, and may shift for itself; but he beggars labor, which is honest, unsuspecting, and too busy with the present to calculate for the future. The prosperity of the working classes lives, moves, and has its being in established credit, and a steady medium of payment. All sudden changes destroy it. Honest industry never comes in for any part of the spoils in that scramble which takes place when the currency of a country is disordered. Did wild schemes and projects ever benefit the industrious? Did irredeemable bank paper ever enrich the laborious? Did violent fluctuations ever do good to him who depends on his daily labor for his daily bread? Certainly never. All these things may gratify greediness for sudden gain, or the rashness of daring speculation; but they can bring nothing but injury and distress to the homes of patient industry and honest labor. Who are they that profit by the present state of things? They are not the many, but the few. They are speculators, brokers, dealers in

money, and lenders of money at exorbitant interest. Small capitalists are crushed, and, their means being dispersed, as usual, in various parts of the country, and this miserable policy having destroyed exchanges, they have no longer either money or credit. And all classes of labor partake, and must partake, in the same calamity. And what consolation for all this is it, that the public lands are paid for in specie? that, whatever embarrassment and distress pervade the country, the Western wilderness is thickly sprinkled over with eagles and dollars? that gold goes weekly from Milwaukee and Chicago to Detroit, and back again from Detroit to Milwaukee and Chicago, and performs similar feats of egress and regress in many other instances, in the Western States? It is remarkable enough, that, with all this sacrifice of general convenience, with all this sky-rending clamor for government payments in specie, government, after all, never gets a dollar. So far as I know, the United States have not now a single specie dollar in the world. If they have, where is it? The gold and silver collected at the land-offices is sent to the deposit banks; it is there placed to the credit of the government, and thereby becomes the property of the bank. The whole revenue of the government, therefore, after all, consists in mere bank credits; that very sort of security which the friends of the administration have so much denounced.

Remember, Gentlemen, in the midst of this deafening din against all banks, that, if it shall create such a panic as shall shut up the banks, it will shut up the treasury of the United States also.

Gentlemen, I would not willingly be a prophet of ill. I most devoutly wish to see a better state of things; and I believe the repeal of the treasury order would tend very much to bring about that better state of things. And I am of opinion, that, sooner or later, the order will be repealed. I think it must be repealed. I think the East, West, North, and South will demand its repeal. But, Gentlemen, I feel it my duty to say, that, if I should be disappointed in this expectation, I see no immediate relief to the distresses of the community. I greatly fear, even, that the worst is not yet.^[107] I look for severer distresses; for extreme difficulties in exchange, for far greater inconveniences in remittance, and for a sudden fall in prices. Our condition is one which is not to be tampered with, and the repeal of the treasury order, being something which government can do, and which will do good, the public voice is right in demanding that repeal. It is true, if repealed now, the

relief will come late. Nevertheless its repeal or abrogation is a thing to be insisted on, and pursued, till it shall be accomplished. This executive control over the currency, this power of discriminating, by treasury order, between one man's debt and another man's debt, is a thing not to be endured in a free country; and it should be the constant, persisting demand of all true Whigs, "Rescind the illegal treasury order, restore the rule of the law, place all branches of the revenue on the same grounds, make men's rights equal, and leave the government of the country where the Constitution leaves it, in the hands of the representatives of the people in Congress." This point should never be surrendered or compromised. Whatever is established, let it be equal, and let it be legal. Let men know, to-day, what money may be required of them to-morrow. Let the role be open and public, on the pages of the statute-book, not a secret, in the executive breast.

Gentlemen, in the session which has now just closed, I have done my utmost to effect a direct and immediate repeal of the treasury order.

I have voted for a bill anticipating the payment of the French and Neapolitan indemnities by an advance from the treasury.

I have voted with great satisfaction for the restoration of duties on goods destroyed in the great conflagration in this city.

I have voted for a deposit with the States of the surplus which may be in the treasury at the end of the year. All these measures have failed; and it is for you, and for our fellow-citizens throughout the country, to decide whether the public interest would, or would not, have been promoted by their success.

But I find, Gentlemen, that I am committing an unpardonable trespass on your indulgent patience. I will pursue these remarks no further. And yet I cannot persuade myself to take leave of you without reminding you, with the utmost deference and respect, of the important part assigned to you in the political concerns of your country, and of the great influence of your opinions, your example, and your efforts upon the general prosperity and happiness.

Whigs of New York! Patriotic citizens of this great metropolis! Lovers of constitutional liberty, bound by interest and by affection to the institutions

of your country, Americans in heart and in principle!—you are ready, I am sure, to fulfil all the duties imposed upon you by your situation, and demanded of you by your country. You have a central position; your city is the point from which intelligence emanates, and spreads in all directions over the whole land. Every hour carries reports of your sentiments and opinions to the verge of the Union. You cannot escape the responsibility which circumstances have thrown upon you. You must live and act, on a broad and conspicuous theatre, either for good or for evil to your country. You cannot shrink from your public duties; you cannot obscure yourselves, nor bury your talent. In the common welfare, in the common prosperity, in the common glory of Americans, you have a stake of value not to be calculated. You have an interest in the preservation of the Union, of the Constitution, and of the true principles of the government, which no man can estimate. You act for yourselves, and for the generations that are to come after you; and those who ages hence shall bear your names, and partake your blood, will feel, in their political and social condition, the consequences of the manner in which you discharge your political duties.

Having fulfilled, then, on your part and on mine, though feebly and imperfectly on mine, the offices of kindness and mutual regard required by this occasion, shall we not use it to a higher and nobler purpose? Shall we not, by this friendly meeting, refresh our patriotism, rekindle our love of constitutional liberty, and strengthen our resolutions of public duty? Shall we not, in all honesty and sincerity, with pure and disinterested love of country, as Americans, looking back to the renown of our ancestors, and looking forward to the interests of our posterity, here, to-night, pledge our mutual faith to hold on to the last to our professed principles, to the doctrines of true liberty, and to the Constitution of the country, let who will prove true, or who will prove recreant? Whigs of New York! I meet you in advance, and give you my pledge for my own performance of these duties, without qualification and without reserve. Whether in public life or in private life, in the Capitol or at home, I mean never to desert them. I mean never to forget that I have a country, to which I am bound by a thousand ties; and the stone which is to lie on the ground that shall cover me, shall not bear the name of a son ungrateful to his native land.

FOOTNOTES

[\[106\]](#)

A Speech delivered at Niblo's Saloon, in New York, on the 15th of March, 1837.

[\[107\]](#)

On the 10th of June following the delivery of this speech, all the banks in the city of New York, by common consent, suspended the payment of their notes in specie. On the next day, the same step was taken by the banks of Boston and the vicinity, and the example was followed by all the banks south of New York, as they received intelligence of the suspension of specie payments in that city. On the 15th of June, (just three months from the day this speech was delivered,) President Van Buren issued his proclamation calling an extra session of Congress for the first Monday of September.

RECEPTION AT WHEELING. 108

The following toast having been proposed,—“Our distinguished guest,—his manly and untiring, though unsuccessful, efforts to sustain the supremacy of the Constitution and the laws against the encroachments of executive power, and to avert the catastrophe that now impends over the country, have given him a new claim to the gratitude of his countrymen, and added a new lustre to that fame which was already imperishably identified with the history of our institutions,”—Mr. Webster rose and responded, in substance, as follows.

MR. CHAIRMAN AND FELLOW-CITIZENS:—I cannot be indifferent to the manifestations of regard with which I have been greeted by you, nor can I suffer any show of delicacy to prevent me from expressing my thanks for your kindness.

I travel, Gentlemen, for the purpose of seeing the country, and of seeing what constitutes the important part of every country, the people. I find everywhere much to excite, and much to gratify admiration; and the pleasure I experience is only diminished by remembering the unparalleled state of distress which I have left behind me, and by the apprehension, rather than the feeling, of severe evils, which I find to exist wherever I go.

I cannot enable those who have not witnessed it to comprehend the full extent of the suffering in the Eastern cities. It was painful, indeed, to behold it. So many bankruptcies among great and small dealers, so much property sacrificed, so many industrious men altogether broken up in their business, so many families reduced from competence to want, so many hopes crushed, so many happy prospects for ever clouded, and such fearful looking for still greater calamities,—all united form such a mass of evil as I had never expected to see, except as the result of war, a pestilence, or some other external calamity.

I have no wish, in the present state of things, nor should I have, indeed, if the state of things were different, to obtrude the expression of my political sentiments on such of my fellow-citizens as I may happen to meet; nor, on the other hand, have I any motive for concealing them, or suppressing their expression, whenever others desire that I should make them known. Indeed,

on the great topics that now engage public attention, I hope I may flatter myself that my opinions are already known.

Recent evils have not at all surprised me, except that they have come sooner and faster than I had anticipated. But, though not surprised, I am afflicted; I feel any thing but pleasure in this early fulfilment of my own predictions. Much injury is done, which the wisest future counsels can never repair, and much more that can never be remedied but by such counsels and by the lapse of time. From 1832 to the present moment, I have foreseen this result. I may safely say I have foreseen it, because I have foretold and proclaimed its approach in every important discussion and debate in the public body of which I am a member. In 1832, I happened to meet with a citizen of Wheeling, now present, who has this day reminded me of what I then anticipated, as the result of the measures which the administration appeared to be adopting in regard to the currency. In the summer of the next year, 1833, I was here, and suggested to friends what I knew to be resolved upon by the executive, namely, the removal of the deposits of the public funds from the Bank of the United States, which was announced two months afterwards. That was the avowed and declared commencement of the “experiment.” You know, Gentlemen, the obloquy then and since cast upon those of us who opposed this “experiment.” You know that we have been called bank agents, bank advocates, bank hirelings. You know that it has been a thousand times said, that the experiment worked admirably, that nothing could do better, that it was the highest possible evidence of the political wisdom and sagacity of its contrivers, and that none opposed it or doubted its efficiency but the wicked or the stupid. Well, Gentlemen, here is the end, if this *is* the end, of this notable “experiment.” Its singular wisdom has come to this; its fine workings have wrought out an almost general bankruptcy.

Its lofty promises, its grandeur, its flashes, that threw other men’s sense and understanding back into the shade, where are they now? Here is the “fine of fines and the recovery of recoveries.” Its panics, its scoffs, its jeers, its jests, its gibes at all former experience,—its cry of “a new policy,” which was so much to delight and astonish mankind,—to this conclusion has it come at last.

“But yesterday, it might

Have stood against the world; now lies it there,
And none so poor to do it reverence!”

It is with no feelings of boasting or triumph, it is with no disposition to arrogate superior wisdom or discernment, but it is with mortification, with humiliation, with unaffected grief and affliction, that I contemplate the condition of difficulty and distress to which this country, so vigorous, so great, so enterprising, and so rich in internal wealth, has been brought by the policy of her government.

We learn to-day that most of the Eastern banks have stopped payment, the deposit banks as well as others. The experiment has exploded. That bubble, which so many of us have all along regarded as the offspring of conceit, presumption, and political quackery, has burst. A general suspension of payment must be the result; a result which has come even sooner than was predicted. Where is now that better currency that was promised? Where is that specie circulation? Where are those rivers of gold and silver, which were to fill the treasury of the government as well as the pockets of the people? Has the government a single hard dollar? Has the treasury any thing in the world but credit and deposits in banks that have already suspended payment? How are public creditors now to be paid in specie? How are the deposits, which the law requires to be made with the States on the 1st of July, now to be made? We must go back to the beginning, and take a new start. Every step in our financial banking system, since 1832, has been a false step; it has been a step which has conducted us farther and farther from the path of safety.

The discontinuance of the national bank, the illegal removal of the deposits, the accumulation of the public revenue in banks selected by the executive, and for a long time subject to no legal regulation or restraint, and finally the unauthorized and illegal treasury order, have brought us where we are. The destruction of the national bank was the signal for the creation of an unprecedented number of new State banks, often with nominal capitals, out of all proportion to the business of the quarters where they were established. These banks, lying under no restraint from the general government or any of its institutions, issued paper money corresponding to their own sense of their immediate interests and hopes of gain. The deposit with the State banks of the whole public revenue, then accumulated to a vast amount, and making this deposit without any legal restraint or control whatever,

increased both the power and disposition of these banks for extensive issues. In this way the government seems to have administered every possible provocation to the banks to induce them to extend their circulation. It uniformly, zealously, and successfully opposed the land bill, a most useful measure, by which accumulation in the treasury would have been prevented; and, as if it desired and sought this accumulation, it finally resisted, with all its power, the deposit among the States. It is urged as a reason for the present overthrow, that an extraordinary spirit of speculation has gone abroad, and has been manifested particularly and strongly in the endeavor to purchase the public lands; but has not every act of the government directly encouraged this spirit? It accumulated revenue which it did not need, all of which is left in the deposit banks. The banks had money to lend, and there were enough who were ready to borrow, for the purpose of purchasing the public lands at government prices. The public treasury was thus made the great and efficient means of effecting those purchases which have since been so much denounced as extravagant speculation and extensive monopoly. These purchasers borrowed the public money; they used the public money to buy the public property; they speculated on the strength of the public money; and while all this was going on, and every man saw it, the administration resisted, to the utmost of its power, every attempt to withdraw this money from the banks and from the hands of those speculators, and distribute it among the people to whom it belonged.

If, then, there has been over-trading, the government has encouraged it;³⁹⁷ if there have been rash speculations in the public lands, the government has furnished the means out of the treasury. These unprecedented sales of the public domain were boasted of as proofs of a happy state of things, and of a wise administration of the government, down to the moment when Congress, in opposition to executive wishes, passed the distribution law, thus withdrawing the surplus revenue from the deposit banks. The success of that measure compelled a change in the executive policy, as the accumulation of a vast amount of money in the treasury was no longer desirable. This is the most favorable motive to which I can ascribe the treasury order of July. It is now said that that order was issued for the purpose of enforcing a strict execution of the law which forbids the allowance of credits upon purchases of the public lands; but there was no such credit allowed before; not an hour was given beyond the time of sale. In this respect, the order produces no difference whatever. Its only effect is

to require an immediate payment in specie, whereas, before, an immediate payment in the bills of specie-paying banks was demanded. There is no more credit in the one case than in the other; and the government gets just as much specie in one case as in the other; for no sooner is the specie, which the purchaser is compelled to procure, often at great charge, paid to the receiver, than it is sent to the deposit banks, and the government has credit for it on the books of the bank; but the specie itself is again sold by the bank, or disposed of as it sees fit. It is evident that the government gets nothing by all this, though the purchasers of small tracts are put to great trouble and expense. No one gains any thing but the banks and the brokers. It is, moreover, most true that the art of man could not have devised a plan more effectually to give to the large purchasers or speculators a decided preference and advantage over small purchasers, who bought for actual settlement, than the treasury order of July, 1836. The stoppage of the banks, however, has now placed the actual settler in a still more unfortunate situation. How is he to obtain money to pay for his quarter-section? He must travel three or four times as many miles for it as he has dollars to pay, even if he should be able to obtain it at the end of that journey.

I will not say that other causes, at home and abroad, have not had an agency in bringing about the present derangement. I know that credits have been used beyond all former example. It is probable the spirit of trade has been too highly excited, and that the pursuit of business may have been pressed too fast and too far. All this I am ready to admit. But instead of doing any thing to abate this tendency, the government has been the prime instrument of fostering and encouraging it. It has parted voluntarily, and by advice, with all control over the actual currency of the country. It has given a free and full scope to the spirit of banking; it has aided the spirit of speculation with the public treasures; and it has done all this, in the midst of loud-sounding promises of an exclusive specie medium, and a professed detestation of all banking institutions.

It is vain, therefore, to say that the present state of affairs is owing, not to the acts of government, but to other causes, over which government could exercise no control. Much of it is owing to the course of the national government; and what is not so, is owing to causes the operation of which government was bound in duty to use all its legal powers to control.

Is there an intelligent man in the community, at this moment, who believes that, if the Bank of the United States had been continued, if the deposits had not been removed, if the specie circular had not been issued, the financial affairs of the country would have been in as bad a state as they now are? When certain consequences are repeatedly depicted and foretold from particular causes, when the manner in which these consequences will be produced is precisely pointed out beforehand, and when the consequences come in the manner foretold, who will stand up and declare, that, notwithstanding all this, there is no connection between the cause and the consequence, and that all these effects are attributable to some other causes, nobody knows what?

No doubt but we shall hear every cause but the true one assigned for the present distress. It will be laid to the opposition in and out of Congress; it will be laid to the bank; it will be laid to the merchants; it will be laid to the manufacturers; it will be laid to the tariff; it will be laid to the north star, or to the malign influence of the last comet, whose tail swept near or across the orbit of our earth, before we shall be allowed to ascribe it to its just, main causes, a tampering with the currency, and an attempt to stretch executive power over a subject not constitutionally within its reach.

We have heard, Gentlemen, of the suspension of some of the Eastern banks only; but I fear the same course must be adopted by all the banks throughout the country. The United States Bank, now a mere State institution, with no public deposits, no aid from government, but, on the contrary, long an object of bitter persecution by it, was, at our last advices, still firm. But can we expect of that bank to make sacrifices to continue specie payment? If it continue to do so now that the deposit banks have stopped, the government, if possible, will draw from it its last dollar, in order to keep up a pretence of making its own payments in specie. I shall be glad if this institution find it prudent and proper to hold out;^[109] but as it owes no more duty to the government than any other bank, and, of course, much less than the deposit banks, I cannot see any ground for demanding from it efforts and sacrifices to favor the government, which those holding the public money, and owing duty to the government, are unwilling or unable to make. Nor do I see how the New England banks can stand alone in the general crash. I believe those in Massachusetts are very sound and entirely solvent; I have every confidence in their ability to pay and I shall rejoice if, amidst the present wreck, we find them able to withstand the storm. At the same time, I confess I shall not be disappointed, if they, seeing no public object to be attained proportioned to the private loss, and individual sacrifice and ruin, which must result from resorting to the means necessary to enable them to hold out, should not be distinguished from their Southern and Western neighbors.

I believe, Gentlemen, the “experiment” must go through. I believe every part and portion of our country will have a satisfactory taste of the “better currency.” I believe we shall be blest again with the currency of 1812, *when money was the only uncurrent species of property*. We have, amidst all the distress that surrounds us, men in and out of power, who condemn a national bank in every form, maintain the efficacy and efficiency of State banks for domestic exchange, and, amidst all the sufferings and terrors of the “experiment,” cry out, that they are establishing “a better currency.” The “experiment,”—the experiment upon what? The experiment of one man upon the happiness, the well-being, and, I may almost say, upon the lives, of twelve millions of human beings,—an “experiment” that found us in health, that found us with the best currency on the face of the earth, the same from the North to the South, from Boston to St. Louis, equalling silver

or gold in any part of our Union, and possessing the unlimited confidence of foreign countries, and which leaves us crushed, ruined, without means at home, and without credit abroad.

This word “experiment” appears likely to get into no enviable notoriety. It may probably be held, in future, to signify any thing which is too excruciating to be borne, like a pang of the rheumatism or an extraordinary twinge of the gout. Indeed, from the experience we now have, we may judge that the bad eminence of the Inquisition itself may be superseded by it, and if one shall be hereafter stretched upon the rack, or broken on the wheel, it may be said, while all his bones are cracking, all his muscles snapping, all his veins are pouring, that he is only passing into a better state through the delightful process of an “experiment.”

Gentlemen, you will naturally ask, Where is this to end, and what is to be the remedy? These are questions of momentous importance; but probably the proper moment has not come for considering this. We are yet in the midst of the whirlwind. Every man’s thoughts are turned to his own immediate preservation. When the blast is over, and we have breathing-time the country must take this subject, this all-important subject of relief for the present and security for the future, into its most serious consideration. It will, undoubtedly, first engage the attention and wisdom of Congress. It will call on public men, intrusted with public affairs, to lay aside party and private preferences and prejudices, and unite in the great work of redeeming the country from this state of disaster and disgrace. All that I mean at present to say is, that the government of the United States stands chargeable, in my opinion, with a gross dereliction from duty, in leaving the currency of the country entirely at the mercy of others, without seeking to exercise over it any control whatever. The *means* of exercising this control rest in the wisdom of Congress, but the duty I hold to be imperative. It is a power that cannot be yielded to others with safety to itself or to them. It might as well give up to the States the power of making peace or war, and leave the twenty-six independent sovereignties to select their own foes, raise their own troops, and conclude their own terms of peace. It might as well leave the States to impose their own duties and regulate their own terms and treaties of commerce, as to give up control over the currency in which all are interested.

The present government has been in operation forty-eight years. During forty of these forty-eight years we have had a national institution performing the duties of a fiscal agent to the government, and exercising a most useful control over the domestic exchanges and over the currency of the country. The first institution was chartered on the ground that such an institution was *necessary* to the safe and economical administration of the treasury department in the collection and disbursement of its revenue. The experience of the new government had clearly proved this necessity. At that time, however, there were those who doubted the power of Congress, under the provisions of the Constitution, to incorporate a bank; but a majority of both houses were of a different opinion. President Washington sanctioned the measure, and among those who entertained doubts on the subject, the statesmen of most weight and consideration in the Union, and whose opinions were entitled to the highest respect, yielded to the opinion of Congress and the country, and considered it a settled question. Among those who first doubted of the power of the government to establish a national bank, was one whose name should never be mentioned without respect, one for whom I can say I feel as high a veneration as one man can or ought to feel for another, one who was intimately associated with all the provisions of the Constitution,—Mr. Madison. Yet, when Congress had decided on the measure, by large majorities, when the President had approved it, when the judicial tribunals had sanctioned it, when public opinion had deliberately and decidedly confirmed it, *he* looked on the subject as definitely and finally settled. The reasoners of our day think otherwise. No decision, no public sanction, no judgment of the tribunals, is allowed to weigh against their respect for their own opinions. They rush to the argument as to that of a new question, despising all lights but that of their own unclouded sagacity, and careless alike of the venerable living and of the mighty dead. They poise this important question upon some small points of their own slender logic, and decide it on the strength of their own unintelligible metaphysics. It never enters into all their thoughts that this is a question to be judged of on broad, comprehensive, and practical grounds; still less does it occur to them that an exposition of the Constitution, contemporaneous with its earliest existence, acted on for nearly half a century, in which the original framers and government officers of the highest note concurred, ought to have any weight in their decision, or inspire them with the least doubt of the accuracy and soundness of their own opinions. They soar so

high in the regions of self-respect as to be far beyond the reach of all such considerations.

For sound views upon the subject of a national bank, I would commend you, Gentlemen, to the messages of Mr. Madison, and to his letter on the subject. They are the views of a truly great man and a statesman.

As the first Bank of the United States had its origin in necessity, so had the second; and, although there was something of misfortune, and certainly something of mismanagement, in its early career, no candid and intelligent man can, for a moment, doubt or deny its usefulness, or that it fully accomplished the object for which it was created. Exchanges, during all the later years of its existence, were easily effected, and a currency the most uniform of any in the world existed throughout the country. The opponents of these institutions did not deny that general prosperity and a happy state of things existed at the time they were in operation, but contended that equal prosperity would exist without them, while specie would take the place of their issues as a circulating medium. How have their words been verified? Both in the case of the first bank and that of the last, a general suspension of specie payments has happened in about a year from the time they were suffered to expire, and a universal confusion and distrust prevailed. The charter of the first bank expired in 1811, and all the State banks, south of New England, stopped payment in 1812. The charter of the late bank expired in March, 1836, and in May, 1837, a like distrust, and a like suspension of the State banks, have taken place.

The same results, we may readily suppose, are attributable to the same causes, and we must look to the experience and wisdom of the people and of Congress to apply the requisite remedy. I will not say the only remedy is a national bank; but I will say that, in my opinion the only sure remedy for the evils that now prey upon us is the assumption, by the delegates of the people in the national government, of some lawful control over the finances of the nation, and a power of regulating its currency.

Gentlemen, allow me again to express my thanks for the kindness you have shown me this day, and in conclusion to assure you, that, though a representative in the federal government of but a small section, when compared with the vast territory that acknowledges allegiance to that government, I shall never forget that I am acting for the whole country, and,

so far as I am capable, will pledge myself impartially to use every exertion for that country's welfare.

FOOTNOTES

[\[108\]](#)

A Speech delivered on the 17th of May, 1837, at a Public Dinner given to Mr. Webster by the Citizens of Wheeling, Virginia.

[\[109\]](#)

The mail of that day brought advice of its suspension. See [the note on page 378](#).

RECEPTION AT MADISON.

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INTRODUCTORY NOTE.

The following account of Mr. Webster's visit to Madison, Indiana, is taken from the "Republican Banner," of the 7th of June, 1837.

"DANIEL WEBSTER visited our town on Thursday last. Notice had been given the day previous of the probable time of his arrival. At the hour designated, crowds of citizens from the town and country thronged the quay. A gun from the Ben Franklin, as she swept gracefully round the point, gave notice of his approach, and was answered by a gun from the shore. Gun followed gun in quick succession, from boat and shore, and the last of the old national salute was echoing from hill and glen as the Franklin reached the wharf. Mr. Webster was immediately waited on by the committee appointed to receive him, and, attended by them, a committee of invitation from Cincinnati, and several gentlemen from Louisville, he landed amidst the cheers and acclamations of the assembled multitude. He was seated in an elegant barouche, supported by Governor Hendricks and John King, Esq., and, with the different committees, and a large procession of citizens in barouches, on horseback, and on foot, formed under the direction of Messrs. Wharton and Payne of the committee of arrangements, marshals of the day, proceeded to the place appointed for his reception, an arbor erected at the north end of the market-house, fronting the large area formed by the intersection of Main and Main Cross Streets and the public square, and tastefully decorated with shrubbery, evergreens, and wreaths of flowers. In the background appeared portraits of Washington and Lafayette, the Declaration of Independence, and several other appropriate badges and emblems, while in front a flag floated proudly on the breeze, bearing for its motto the ever-memorable sentiment with which he concluded his immortal

speech in defence of the Constitution, ‘LIBERTY AND UNION, NOW AND FOR EVER, ONE AND INSEPARABLE.’ When the procession arrived, Mr. Webster ascended the stand in the arbor, supported by Governor Hendricks and the committee of arrangements, when he was appropriately and eloquently addressed by J. G. Marshall, Esq., on behalf of the citizens, to which he responded in a speech of an hour’s length.”

The following correspondence preceded Mr. Webster’s visit.

“*Louisville, May 30, 1837.*

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“HON. DANIEL WEBSTER:—

“Sir,—Your fellow-citizens of the town of Madison, Indiana, deeply impressed with a sense of the obligations which they and all the true lovers of constitutional liberty, and friends to our happy and glorious Union, owe you for the many prominent services rendered by you to their beloved, though now much agitated and injured country, having appointed the undersigned a committee through whom to tender you their salutations and the hospitalities of their town, desire us earnestly to request you to partake of a public dinner, or such other expression of the high estimation in which they hold you as may be most acceptable, at such time as you may designate.

“Entertaining the hope that you may find it convenient to comply with this request of our constituents and ourselves, we beg leave, with sentiments of the most profound respect and regard, to subscribe ourselves,

“Your fellow-citizens,

W. LYLE,
W. J. McCLURE,
WM. F. COLLUM,
A. W. PITCHER,
JAS. E. LEWIS,
D. L. McCLURE,
} *Committee.*”

ANSWER.

Louisville, May 30, 1837.

“GENTLEMEN,—I feel much honored by the communication which I have received from you, expressing the friendly sentiments of my fellow-citizens of Madison, and desiring that I should pay them a visit.

“Although so kind an invitation, meeting me at so great a distance, was altogether unlooked for, I had yet determined not to pass so interesting a point on the Ohio without making some short stay at it. I shall leave this place on Thursday morning, and will stop at Madison, and shall be most happy to see any of its citizens who may desire to meet me. I must pray to be excused from a formal public dinner, as well from a regard to the time which it will be in my power to pass with you, as from a general wish, whenever it is practicable, to avoid every thing like ceremony or show in my intercourse with my fellow-citizens.

“You truly observe, Gentlemen, that the country at the present moment is agitated. I think, too, that you are right in saying it is injured; that is, I think public measures of a very injurious character and tendency have been unfortunately adopted. But our case is not one that leads us to much despondency. The country, the happy and glorious country in which you and I live, is great, free, and full of resources; and, in the main, an intelligent and patriotic spirit pervades the community. These will bring all things right. Whatsoever has been injudiciously or rashly done may be corrected by wiser counsels. Nothing can, for any great length of time, depress the great interests of the people of the United States, if wisdom and honest good-sense shall prevail in their public measures. Our present point of suffering is the *currency*. In my opinion, this is an interest with the preservation of which Congress is charged, solemnly and deeply charged. A uniform currency was one of the great objects of the Union. If we fail to maintain it, we so far fail of what was intended by the national Constitution. Let us strive to avert this reproach from that government and that Union, which make us, in so many respects, ONE PEOPLE! Be assured, that to the attainment of this end every power and faculty of my mind shall be directed; and may Providence so prosper us, that no one shall be able to say, that in any thing this glorious union of the States has come short of fulfilling either its own duties or the just expectations of the people.

“With sentiments of true regard, Gentlemen, I am your much obliged friend and fellow-citizen,

“DANIEL WEBSTER.

“To W. LYLE,
W. J. McCLURE,
WM. F. COLLUM,
A. W. PITCHER,
JAMES E. LEWIS,
D. L. McCLURE,
} *Committee.*”

The address of Mr. Marshall, above alluded to, was as follows:—

“SIR,—The people now assembled around you, through me, the humble organ of their selection, do most sincerely and cordially welcome you to Madison. In extending to you the most liberal hospitality, they do no more, however, than they would be inclined to do towards the humblest citizen of our common country. But this public and formal manifestation of the feeling of regard which they entertain for you is intended to do more than inform you of the simple fact that here you can find food and shelter, and partake with them of the pleasures of the social circle. If this were all, it might be communicated in a manner more acceptable, by extending to you the hand of friendship and kindly pointing you to the family board; but by this public parade, this assembling of the people around you, it is intended to give you that consolation, (most grateful and cheering to every true American heart,) *the people’s* approbation of your acts as a public servant. This is done, not with that abject feeling which characterizes the homage of subjects, but with that nobler feeling which prompts freemen to honor and esteem those who have been their country’s benefactors. Prompted by such feeling, the patriots of the Revolution delighted to honor the *father of our country*. He led his armies to victory, and thus wrested the liberties of his countrymen from the grasp of a tyrant; and may we not from like impulses manifest gratitude towards those who, by the power of their intellects, have effectually rebuked erroneous principles, which were evidently undermining and endangering the very existence of our beloved Union? Yes, Sir, our country has now nothing to fear from external violence. It is a danger which the whole country can see on its first approach, and every arm

will be nerved at once to repel it; it can be met at the point of the bayonet, and millions would now, as in days that are past, be ready to shed their blood in defence of their country. But, Sir, in *those* who artfully excite the passions and prejudices of the people, and, by presenting to them the most plausible pretexts (for their own selfish purposes), lead them thoughtlessly to abandon the sacred principles upon which our government is founded, and to reject the measures which can alone promote the prosperity of the country,—in such we meet an enemy against whom the most daring bravery of the soldier is totally unavailing.

“The injury which is inflicted is not at first felt; time is required to develop it; and when developed, the closest investigation may be necessary to trace it to its cause; this the people may not be able to accomplish. This enemy to the country can only be discerned by the keen eye of the statesman, and met and conquered by the power of his intellect. And he who is successful in thus defending his country may well be held in grateful remembrance by his fellow-citizens. It is for such reasons, Sir, that we have presented to you these testimonials of our approbation. Though personally a stranger to us, your public character, your masterly efforts in defence of the Constitution, the services you have rendered the West, and the principles and measures which you have so ably advocated, are known and approved, and I hope will ever be remembered by us. And although some of your efforts have proved for the time unsuccessful, it is to be hoped they would now have a different effect. When the old and established measures of any government have been abandoned for new ones, simply as an *experiment*, and when that experiment, if it does not produce, is, to say the least, immediately followed by, ruin and distress in every part of the country, may we not hope that men will at least calmly and dispassionately hear and weigh the reasons why a different policy should be adopted? But if the people’s representatives cannot be convinced of the error into which they have been led, it is high time the people themselves should awake from their slumbers. A dark cloud hangs over the land, so thick, so dark, a ray of hope can hardly penetrate it. But shall the people gird on their armor and march to battle? No, Sir; it is a battle which they must fight through the ballot-box; and perhaps they do not know against what to direct their effort; they are almost in a state of despondency, ready to conclude that they are driven to the verge of ruin by a kind of irresistible destiny. The cause of the evil can be discovered only by investigation; and to their public men they must look for information and

for wisdom to direct them. But, Sir, it is not our object to relate to you our grievances, or recount the past services which you have rendered your country. We wish to cheer you on to increased efforts in urging the measures you have heretofore so zealously and ably advocated. May your success be equal to your efforts, and may happiness and prosperity attend you through life.”

RECEPTION AT MADISON.[\[110\]](#)

If, fellow-citizens, I can make myself heard by this numerous assembly, speaking, as I do, in the open air, I will return to you my heartfelt thanks for the kindness you have shown me. I come among you a stranger. On the day before yesterday I placed my foot, for the first time, on the soil of the great and growing State of Indiana. Although I have lived on terms of great intimacy and friendship with several Western gentlemen, members of Congress, among whom is your estimable townsman near me, (Governor Hendricks,) I have never before had an opportunity of seeing and forming an acquaintance for myself with my fellow-citizens of this section of the Union. I travel for this purpose. I confess that I regard with astonishment the evidences of intelligence, enterprise, and refinement everywhere exhibited around me, when I think of the short time that has elapsed since the spot where I stand was a howling wilderness. Since I entered public life, this State was unknown as a political government. All the country west of the Alleghanies and northwest of the Ohio constituted but one Territory, entitled to a single delegate in the counsels of the nation, having the right to speak, but not to vote. Since then, the States of Ohio, Indiana, Illinois, Michigan, and the long strip of country known as the Territory of Wisconsin, have been carved out of it. Indiana, which numbers but twenty years since the commencement of her political existence, contains a population of six hundred thousand, equal to the population of Massachusetts, a State of two hundred years' duration. In age she is an infant; in strength and resources a giant. Her appearance indicates the full vigor of maturity, while, measured by her years, she is yet in the cradle.

Although I reside in a part of the country most remote from you, although I have seen you spring into existence and advance with rapid strides in the march of prosperity and power, until your population has equalled that of my own State, which you far surpass in fertility of soil and mildness of climate; yet these things have excited in me no feelings of dislike, or jealousy, or envy. On the contrary, I have witnessed them with pride and pleasure, when I saw in them the growth of a member of our common country; and with feelings warmer than pride, when I recollect that there are those among you who are bone of my bone and flesh of my flesh, who inherit my name and share my blood. When they came to me for my advice, before leaving their hearths and homes, I did not oppose their desires or suggest difficulties in their paths. I told them, “Go and join your destinies with those of the hardy pioneers of the West, share their hardships, and partake their fortunes; go, and God speed you; only carry with you your own good principles, and whether the sun rises on you, or sets on you, let it warm American hearts in your bosoms.”

Though, as I observed, I live in a part of the country most remote from you, fellow-citizens, I have been no inattentive observer of your history and progress. I have heard of the reports made in your legislature, and the acts passed in pursuance thereof. I have traced on the map of your State the routes marked out for extensive turnpikes, railroads, and canals. I have read with pleasure the acts providing for their establishment and completion. I do not pretend to offer you my advice; it would perhaps be presumptuous; but you will permit me to say, that, as far as I have examined them, they are conceived in wisdom, and evince great political skill and foresight. You have commenced at the right point. To open the means of communication, by which man may, when he wishes, see the face of his friend, should be the first work of every government. We may theorize and speculate about it as we please,—we may understand all the metaphysics of politics; but if men are confined to the narrow spot they inhabit, because they have not the means of travelling when they please, they must go back to a state of barbarism. Social intercourse is the corner-stone of good government. The nation that provides no means for the improvement of its communications, has not taken the first step in civilization. Go on, then, as you have begun; prosecute your works with energy and perseverance; be not daunted by imaginary difficulties, be not deterred by exaggerated calculations of their cost. Go on; open your wilderness to the sun; turn up the soil; and in the

wide-spread and highly-cultivated fields, the smiling villages, and the busy towns that will spring up from the bosom of the desert, you will reap a rich reward for your investment and industry.

Another of the paramount objects of government, to which I rejoice to see that you have turned your attention, is education. I speak not of college education, nor of academy education, though they are of great importance; I speak of free-school education, common-school education.

Among the luminaries in the sky of New England, the burning lights which throw intelligence and happiness on her people, the first and most brilliant is her system of common schools. I congratulate myself that my first speech on entering public life was in their behalf. Education, to accomplish the ends of good government, should be universally diffused. Open the doors of the school-house to all the children in the land. Let no man have the excuse of poverty for not educating his own offspring. Place the means of education within his reach, and if they remain in ignorance, be it his own reproach. If one object of the expenditure of your revenue be protection against crime, you could not devise a better or cheaper means of obtaining it. Other nations spend their money in providing means for its detection and punishment, but it is the principle of our government to provide for its never occurring. The one acts by *coercion*, the other by *prevention*. On the diffusion of education among the people rest the preservation and perpetuation of our free institutions. I apprehend no danger to our country from a foreign foe. The prospect of a war with any powerful nation is too remote to be a matter of calculation. Besides, there is no nation on earth powerful enough to accomplish our overthrow. Our destruction, should it come at all, will be from another quarter. From the inattention of the people to the concerns of their government, from their carelessness and negligence, I must confess that I do apprehend some danger. I fear that they may place too implicit a confidence in their public servants, and fail properly to scrutinize their conduct; that in this way they may be made the dupes of designing men, and become the instruments of their own undoing. Make them intelligent, and they will be vigilant; give them the means of detecting the wrong, and they will apply the remedy.

The gentleman who has just addressed me in such flattering, but unmerited terms, has been pleased to make kind mention of my devotion to the Constitution, and my humble efforts in its support. I claim no merit on that

account. It results from my sense of its surpassing excellences, which must strike every man who attentively and impartially examines it. I regard it as the work of the purest patriots and wisest statesmen that ever existed, aided by the smiles of a benignant Providence; for when we regard it as a system of government growing out of the discordant opinions and conflicting interests of thirteen independent States, it almost appears a Divine interposition in our behalf. I have always, with the utmost zeal and the moderate abilities I possess, striven to prevent its infraction in the slightest particular. I believed, if that bond of union were broken, we should never again be a united people. Where, among all the political thinkers, the constitution-makers and the constitution-menders of the day, could we find a man to make us another? Who would even venture to propose a reunion? Where would be the starting-point, and what the plan? I do not expect miracles to follow each other. No plan could be proposed that would be adopted; the hand that destroys the Constitution rends our Union asunder for ever.

My friend has been pleased to remember, in his address, my humble support of the constitutional right of Congress to improve the navigation of our great internal rivers, and to construct roads through the different States. It is well known that few persons entertain stronger opinions on this subject than myself. Believing that the great object of the Union is to secure the general safety and promote the general welfare, and that the Constitution was designed to point out the means of accomplishing these ends, I have always been in favor of such measures as I deemed for the general benefit, under the restrictions and limitations prescribed by the Constitution itself. I supported them with my voice, and my vote, not because they were for the benefit of the West, but because they were for the benefit of the whole country. That they are local in their advantages, as well as in their construction, is an objection that has been and will be urged against every measure of the kind. In a country so widely extended as ours, so diversified in its interests and in the character of its people, it is impossible that the operation of any measure should affect all alike. Each has its own peculiar interest, whose advancement it seeks; we have the sea-coast, and you the noble river that flows at your feet. So it must ever be. Go to the smallest government in the world, the republic of San Marino, in Italy, possessing a territory of but ten miles square, and you will find its citizens, separated but by a few miles, having some interests which, on account of local situation,

are separate and distinct. There is not on the face of the earth a plain, five miles in extent, whose inhabitants are all the same in their pursuits and pleasures. Some will live on a creek, others near a hill, which, when any measure is proposed for the general benefit, will give rise to jarring claims and opposing interests. In such cases, it has always appeared to me that the point to be examined was, whether the principle was general. If the principle were general, although the application might be partial, I cheerfully and zealously gave it my support. When an objection has been made to an appropriation for clearing the snags out of the Ohio River, I have answered it with the question, "Would you not vote for an appropriation to clear the Atlantic Ocean of snags, were the navigation of your coast thus obstructed? The people of the West contribute their portion of the revenue to fortify your sea-coast, and erect piers, and harbors, and light-houses, from which they derive a remote benefit, and why not contribute yours to improve the navigation of a river whose commerce enriches the whole country?"

It may be expected, fellow-citizens, that I should say something on a topic which agitates and distracts the public mind, I mean the deranged state of the currency, and the general stagnation of business. In giving my opinions on this topic, I wish it to be distinctly understood, that I force them on no man. I am an independent man, speaking to independent men. I think for myself; you, of course, enjoy and exercise the same right. I cheerfully concede to every one the liberty of differing with me in sentiment, readily granting that he has as good chance of being right as myself, perhaps a better. But I have some respect for my character as a public man. The present state of things has grown out of a series of measures, to which I have been in uniform opposition. In speaking of their consequences, I am doing but justice to myself in showing them in justification of my conduct. I am performing a duty to my fellow-citizens, who have a right to know the opinions of every public man. The present state of things is unparalleled in the annals of our country. The general suspension of specie payments by the banks, beginning I know not where, and ending I know not where, but comprehending the whole country, has produced wide-spread ruin and confusion through the land. To you the scene is one as yet of apprehension; to us, of deep distress. You cannot understand, my fellow-citizens, nor can I describe it so as to enable you to understand, the embarrassment and suffering which are depressing the spirit and crushing the energies of the

people of the sea-girt States of the East. You are agriculturists, you produce what you consume, and always have the means of living within your reach. We depend on others for their agricultural productions; we live by manufactures and commerce, of which credit is the lifeblood. The destruction of credit is the destruction of our means of living. The man who cannot fulfil his daily engagements, or with whom others fail to fulfil theirs, must suffer for his daily bread. And who are those who suffer? Not the rich, for they can generally take care of themselves. Capital is ingenious and far-sighted, ready in resources and fertile in expedients to shelter itself from impending storms. Shut it out from one source of increase, and it will find other avenues of profitable investment. It is the industrious, working part of the community, men whose hands have grown hard by holding the plough and pulling the oar, men who depend on their daily labor and their daily pay, who, when the operations of trade and commerce are checked and palsied, have no prospect for themselves and their families but beggary and starvation,—it is these who suffer. All this has been attributed to causes as different as can be imagined; over-trading, over-buying, over-selling, over-speculating, over-production, terms which I acknowledge I do not very well understand. I am at a loss to conceive how a nation can become poor by over-production, producing more than she can sell or consume. I do not see where there has been over-trading, except in public lands; for when every thing else was up to such an enormous price, and the public land tied down to one dollar and a quarter an acre, who would not have bought it if he could?

These causes could not have produced all those consequences which have occasioned such general lamentation. They must have proceeded from some other source. And I now request you, my fellow-citizens, to bear witness, that here, in this good city, on the banks of the Ohio, on the first day of June, 1837, beneath the bright sun that is shining upon us, I declare my conscientious conviction that they have proceeded from the measures of the general government in relation to the currency. I make this declaration in no spirit of enmity to its authors; I follow no man with rebukes or reproaches. To reprobate the past will not alleviate the evils of the present. It is the duty of every good citizen to contribute his strength, however feeble, to diminish the burden under which a people groans. To apply the remedy successfully, however, we must first ascertain the causes, character, and extent of the evil.

Let us go back, then, to its origin. Forty-eight years have elapsed since the adoption of our Constitution. For forty years of that time we had a national bank. Its establishment originated in the imperious obligation imposed on every government to furnish its people with a circulating medium for their commerce. No matter how rich the citizen may be in flocks and herds, in houses and lands, if his government does not furnish him a medium of exchange, commerce must be confined to the petty barter suggested by mutual wants and necessities, as they exist in savage life. The history of all commercial countries shows that the precious metals can constitute but a small part of this circulating medium. The extension of commerce creates a system of credit; the transmission of money from one part of the country to the other gives birth to the business of exchange. To keep the value of this medium and the rates of exchange equal and certain, was imperiously required by the necessities of the times when the bank was established. Under the old confederacy, each of the thirteen States established and regulated its own money, which passed for its full value within the State, and was useless the moment it crossed the State border. The little State of Rhode Island, for instance, (I hope no son of hers present will take offence at what I say,) so small that an Indiana man might almost cover her territory with his hand, was crowded with banks. A man might have been rich at Providence, but before he could travel to Boston, forty miles distant, he would starve for want of money to pay for his breakfast.

Had this state of things continued, some of the provisions of the Constitution would have been of no force or virtue. Of what value to Congress would have been the right to levy taxes, imposts, and duties, and to regulate commerce among different States, and of what effect or consequence the prohibition on the different States of levying and collecting imposts, if each and every one of them had possessed the right of paying her taxes and duties in a currency of her own, which would not pass one hundred miles, perhaps, from the bank whence it was issued? The creation of a national bank presented the surest means of remedying these evils, and accomplishing one of the principal objects of the Constitution, the establishment and maintenance of a currency whose value would be uniform in every part of the country. During the forty years it existed, under the two charters, we had no general suspension of specie payments, as at present. We got along well with it, and I am one of those who are disposed to let *well* alone. I am content to travel along the good old turnpike on

which I have journeyed before with comfort and expedition, without turning aside to try a new track. I must confess that I do not possess that soaring self-respect, that lofty confidence in my own political sagacity and foresight, which would induce me to set aside the experience of forty years, and risk the ruin of the country for the sake of an *experiment*. To this is all the distress of the country attributable. This has caused such powerful invasions of bank paper, like sudden and succeeding flights of birds of prey and passage, and the rapid disappearance of specie at its approach. You all know that bank-notes have been almost as plenty as the leaves of the forest in the summer. But of what value are they to the holder, if he is compelled to pay his debts in specie? And who can be expected to pay his debts in this way, when the government has withdrawn the specie from circulation?

You have not yet felt the evil in its full extent. It is mostly in prospect, ⁴⁰⁰ and you are watching its approach. While you are endeavoring to guard against it, strive to prevent its future recurrence. As you would hunt down, with hound and horn, the wolf who is making nightly havoc of your flocks and herds, pursue and keep down those who would make havoc in your business and property by experiments on our currency.

Although the country has bowed beneath the pressure, I do not fear that it will be broken down and prostrated in the dust. Depress them as it may, the energy and industry of the people will enable them to rise again. We have for a long time carried a load of bad government on our shoulders, and we are still able to bear up under it. But I do not see that, for that reason, we should be willing and eager to carry it. I do not see why it should prevent us from wishing to lessen it as much as possible, if not to throw it off altogether, when we know that we can get along so much easier and faster without it. While we are exerting ourselves with renewed industry and economy to recover from its blighting effects, while we plough the land and plough the sea, let us hasten the return of things to their proper state, by such political measures as will best accomplish the desired end. Let us inform our public servants of our wishes, and pursue such a course as will compel them to obey us.

In conclusion, my fellow-citizens, I return you my thanks for the patience and attention with which you have listened to me, and pray the beneficent Giver of all good, that he may keep you under the shadow of his wing, and continue to bless you with peace and prosperity.

FOOTNOTES

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A Speech delivered at Madison, in the State of Indiana, on the first of June 1837,
on Occasion of a Public Reception by the Citizens of that Place.

PUBLIC DINNER IN FANEUIL HALL.

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INTRODUCTORY NOTE.

On the return of Mr. Webster from the session in which he had particularly signalized himself by the delivery of his masterly speeches on the sub-treasury bill, and in reply to Mr. Calhoun (contained in a subsequent volume of this collection), a large number of his fellow-citizens of Boston could not be restrained from manifesting their sense of his extraordinary efforts, in exhibiting the true character of the odious sub-treasury project, and in procuring its ultimate rejection by Congress. He was accordingly invited to meet them at a public dinner, on the 24th of July, 1838. More than fifteen hundred persons attended it, every ticket having been eagerly taken as soon as issued. Every portion of the Hall, floor and galleries, was filled. The Governor of the Commonwealth (Hon. Edward Everett) presided at the table, and the spirit of the occasion and of the company may be gathered from the following remarks with which he introduced Mr. Webster to the assembly:

“And now, fellow-citizens,” said he, “I rise to discharge the most pleasing part of my duty, which I fear you will think I have too long postponed; the duty which devolves on me, as the organ of your feelings toward our distinguished guest, the senior Senator of the Commonwealth. And yet, fellow-citizens, I appeal to you, that I have approached this duty through the succession of ideas which most naturally conducts our minds and hearts to the grateful topic. I have proposed to you, Our country and its prosperity. Who among the great men, his contemporaries, has more widely surveyed and comprehended the various interests of all its parts? I have proposed, The Union of the States. What public man is there living, whose political course has been more steadily consecrated to its perpetuity? I have proposed to you, The Constitution. And who of our statesmen, from the time of its framers, has more profoundly investigated, more clearly expounded, more powerfully vindicated and sustained it? But these topics I may pass over. They are matters which have been long familiar to you; they need not any comment from me.

“The events of the last year, and of the last session of Congress, and the present state of the country, invite our attention more particularly to the recent efforts of our distinguished guest on the subject of THE CURRENCY. I know not but some persons may think that undue importance has been attached to the questions which have divided parties on this subject; that these questions are not so vital to liberty as they have been represented. But such an opinion would be erroneous. Undoubtedly there are countries, not free ones, in which money questions, as connected with the government, are of minor consequence. In China, in Turkey, in Persia, I presume they are very little discussed. In these countries the great question is, whether a man’s head at night will be found in the same pleasing and convenient proximity to his shoulders that it was in the morning; and this is a kind of previous question, which, if decided against him, cuts off all others. Under those arbitrary governments of Europe, where the prince takes what he pleases, and when he pleases, it is of very little moment where he deposits it, on its way from the pockets of the people to his own. But it was remarked by Edmund Burke, more than seventy years ago, that in England, (and *a fortiori* in the United States, that is, under constitutional governments,) the great struggles for liberty had been almost always money questions, and on this ground he excused the Americans for the stand they took in opposition to a paltry tax. But, most certainly, the money question, as it has been agitated among us, is vastly more important, more intimately connected with constitutional liberty, than that which brought on the Revolution. The question with our fathers was one of a small tax; ours, of the entire currency. Theirs concerned three pence per pound on tea, illegally levied; ours, the entire currency illegally disposed of, the entire medium of circulation deranged, and for a period annihilated, the whole business of the country, in all its great branches, brought under the control of the treasury. The noble stand, therefore, taken by our distinguished Senator in this controversy has been upon points which concern the dearest interests of the people, and the elemental principles of the government.

“In fact, I know not that a policy can be imagined more at war with the true character of the government, than that which he has been called to combat. The past and present administrations, relying too confidently on the popular delusions which brought them into office, have systematically defeated one of the great original objects for which the Union was framed, that of a uniform medium of commerce. Nor has the manner of their policy been less

objectionable than its design. They have crowded experiment upon experiment, with the fatal recklessness of the rash engineer who urges the fires in his furnaces till some noble steamer bursts in an awful explosion. [111] Our Senators and Representatives, and their associates, could they have forgotten that a revered Constitution and a beloved country were the chief victims, might well have folded their arms, and left the authors of the calamity to extricate themselves, as best they might, from the ruin. But not thus have they understood their duty; and we have seen them with admiration, in the last days of the session, gallantly putting out in the life-boat of the Constitution, with an eye of fire at the top, and an arm of iron at the helm, to cruise about on the boiling waters, and pick up all that is left undestroyed. When I have seen the adherents of the administration rejecting, so far as they ventured, the salutary measures proposed or supported by our distinguished guest and his associates, for the restoration of the currency and the reestablishment of the public credit, and clinging to all that events have spared of their discredited measures, they have seemed to me to resemble the sun-stricken victims of a moody madness, who, instead of thankfully embracing the proffered relief, would prefer to float about on the weltering waters, clinging to the broken planks and the shivered splinters of their exploded policy, sure as they are, at the very best, if they reach solid ground, to do so beneath the overwhelming surge of popular indignation.

“I should take up a great deal more time than belongs to me, did I attempt even to sketch the distinguished services of our friend and guest in this constitutional warfare. They are impressed on your memories, and on your hearts. In the thickest of the conflict, his plume, like that of Henry the Fourth of France, discerned from afar, has pointed out the spot where, to use his own language, ‘the blows fall thickest and hardest’; and there he has been found, with the banner of the Union above his head, and the flaming cimeter of the Constitution in his hand. If the public mind has been thoroughly awakened to the inconsistency of the government policy with the genius of our institutions, if, to the experience we have all had of the pernicious operation of this policy, there has been added a clear understanding of the false principles, as well of constitutional law as of political economy, on which it rests, how much of this is not fairly to be ascribed to the efforts of our distinguished guest, efforts never stinted in or out of Congress, repeated in every form which can persuade the judgment

or influence the conduct of men, never less than cogent, eloquent, irrefutable, but in the last session of Congress, perhaps more than ever before, grand, masterly, and overwhelming. It has indeed been a rare, I had almost said a sublime spectacle, to see him, unsupported by a majority in either house, opposed by the entire influence of the government, denounced by the administration press from one end of the Union to the other, yet carrying resolution after resolution against the administration, carrying them alike against the old guard and the new recruits, and, notwithstanding their abrupt and ill-compacted alliance, compelling them, in spite of themselves, to afford some relief to the country.

“These are the services, fellow-citizens, for which you this day tender your thanks to your distinguished guest. These are the services for which, Sir, on behalf of my fellow-citizens, I thank you; for which they thank you themselves. Behold, Sir, how they rise to pay you a manly homage.^[112] The armies of Napoleon could not coerce it; the wealth of the Indies could not buy it; but it is freely, joyously paid, by fifteen hundred freemen, to the man of their affections. They thank you for having stood by them in these dark times,—at all times. They thank you, because they think they are beginning to feel the fruit of your exertions in the daily round of their pursuits. They ascribe it in no small degree to you, that the iron grasp of the government policy has been relaxed; that its bolts and chains, relics of a barbarous age, have been shivered as soon as forged, and before they were riveted on the necks of the people. They thank you for having stood by the Constitution, in which their all of human hope for themselves and their children is enshrined. They thank you as one of themselves; and because they know that your affections are with the people from which you sprung. They thank you because you have at all times shown, that, as the Whig blood of the Revolution circles in your veins, the Whig principles of the Revolution are imprinted on your heart. They thank you for the entire manliness of your course; that you have never joined the treacherous cry of the ‘hatred of the poor against the rich,’—a cry raised by artful men, who think to flatter the people, while in reality they are waging war against the people’s business, the people’s prosperity, and the people’s Constitution. They are willing that this day’s offering should be remembered, when all this mighty multitude shall have passed from the stage. When that day shall have arrived, history will have written your name on one of her brightest pages; fame will have encircled your bust with her greenest laurels; but neither history nor fame

will have paid you a truer, heartier tribute, than that which now, beneath the arches of this venerable hall, in the approving presence of these images of our canonized fathers, is tendered you by this great company of your fellow-citizens.

“I give you, Gentlemen,—

“DANIEL WEBSTER,—the statesman and the man; whose name is engraven alike on the pillars of the Constitution and the hearts of his fellow-citizens. He is worthy of that place in the councils of the nation which he fills in the affections of the people.”

Mr. Webster then rose, amidst enthusiastic cheering, and addressed the meeting in the following speech.

FOOTNOTES

[\[111\]](#)

The disaster of the Pulaski occurred about the time of the delivery of these remarks.

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The entire audience rose at this moment.

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PUBLIC DINNER IN FANEUIL HALL. [\[113\]](#)

GENTLEMEN:—I shall be happy indeed, if the state of my health and the condition of my voice shall enable me to express, in a few words, my deep and heartfelt gratitude for this expression of your approbation. If public life has its cares and its trials, it has occasionally its consolations also. Among these, one of the greatest, and the chief, is the approbation of those whom we have honestly endeavored to serve. This cup of consolation you have now administered,—full, crowned, abundantly overflowing.

It is my chief desire at this time, in a few spontaneous and affectionate words, to render you the thanks of a grateful heart. When I lately received your invitation in New York, nothing was farther from my thoughts or

expectations, than that I should meet such an assembly as I now behold in Boston.

But I was willing to believe that it was not meant merely as a compliment, which it was expected would be declined, but that it was in truth your wish, at the close of the labors of a long session of Congress, that I should meet you in this place, that we might mingle our mutual congratulations, and that we might enjoy together one happy, social hour.

The president of this assembly has spoken of the late session as having been not only long, but arduous; and, in some respects, it does deserve to be so regarded. I may indeed say, that, in an experience of twenty years of public life, I have never yet encountered labors or anxieties such as this session brought with it.

With a short intermission in the autumn, so short as not to allow the ¹¹⁸more distant members to visit their homes, we have been in continual session from the early part of September to the 9th of July, a period of ten months. ^[114] On our part, during this whole time, we have been contending in minorities against majorities; majorities, indeed, not to be relied on for all measures, as the event has proved, but still acknowledged and avowed majorities, professing general attachment and support to the measures, and to the men, of the administration. My own object, and that of those with whom I have had the honor to act, has been steady and uniform. That object was, to resist new theories, new schemes, new and dangerous projects, until time could be gained for their consideration by the people. This was our great purpose, and its accomplishment required no slight effort. It was the commencement of a new Congress. The organization of the two houses showed clear and decisive administration majorities. The administration itself was new, and had come into its fresh power with something of the popularity of that which preceded it. It was no child's play, therefore, to resist, successfully, its leading measures, for so long a period as should allow time for an effectual appeal to the people, pressed, as those measures were, with the utmost zeal and assiduity.

The president of the day has alluded in a very flattering manner to my own exertions and efforts, made at different times, in connection with the leading topics. But I claim no particular merit for myself. In what I have done, I have only acted with others. I have acted, especially, with my most

estimable, able, and excellent colleague,^[115] and with the experienced and distinguished men who form the delegation of Massachusetts in the House of Representatives, a delegation of which any State might be justly proud. We have acted together, as men holding, in almost all cases, common opinions, and laboring for a common end. It gives me great pleasure to have the honor of seeing so many of the Representatives of the State in Congress here to-day; but I must not be prevented, even by their presence, from bearing my humble but hearty testimony to the fidelity and ability ⁴¹⁹with which they have, in this arduous struggle, performed their public duties. The crisis has, indeed, demanded the efforts of all; and we of Massachusetts, while we hope we have done our duty, have done it only in concurrence with other Whigs, whose zeal, ability, and exertions can never be too much commended.

This is not an occasion in which it is fit or practicable to discuss very minutely, and at length, the questions which have been chiefly agitated during this long and laborious session of Congress. Yet, so important is the great and general question, which, for the last twelve or fifteen months, has been presented to the consideration of the legislature, that I deem it proper, on this, as on all occasions, to state, at the risk of some repetition, perhaps, what is the nature of that important question, and briefly to advert to some of the circumstances in which it had its origin.

Whatever subordinate questions may have been raised touching a sub-treasury, or a constitutional treasury, or a treasury in one, or in another, or in yet a third form, I take the question, the plain, the paramount, the practical question, to be this; namely, whether it be among the powers and the duties of Congress to take any further care of the national currency than to regulate the coinage of gold and silver. That question lies at the foundation of all. Other questions, however multiplied or varied, have but grown out of that.

If government is bound to take care that there is a good currency for all the country, then, of course, it will have a good currency for itself, and need take no especial pains to provide for itself any thing peculiar. But if, on the other hand, government is at liberty to abandon the general currency to its fate, without concern and without remorse, then, from necessity, it must take care of itself; amidst the general wreck of currency and credit, it must have places of resort and a system of shelter; it must have a currency of its

own, and modes of payment and disbursement peculiar to itself. It must burrow and hide itself in sub-treasury vaults. Scorning credit, and having trust in nobody, it must grasp metallic money, and act as if nothing represented, or could represent, property, which could not be counted, paid piece by piece, or weighed in the scales, and made to ring upon the table; or it must resort to special deposits in banks, even in those banks whose conduct has been so loudly denounced as flagitious and criminal, treacherous to the government, and fraudulent towards the people. All these schemes and contrivances are but the consequences of the general doctrine which the administration has advanced, and attempted to recommend to the country; that is, that Congress has nothing to do with the currency, beyond the mere matter of coinage, except to provide for itself. How such a notion should come to be entertained, at this day, may well be a matter of wonder for the wise; since it is a truth capable of the clearest demonstration, that, from the first day of the existence of the Constitution, from the moment when a practical administration of government drew a first breath under its provisions, the superintendence and care over the currency of the country have been admitted to be among the clear and unquestioned powers and duties of Congress. This was the opinion in Washington's time, and his administration acted upon it, vigorously and successfully. And in Mr. Madison's time, when the peculiar circumstances of the country again brought up the subject, and gave it new importance, it was held to be the exclusive, or at least the paramount and unquestioned, right of Congress to take care of the currency; to restore it when depreciated; to see that there was a sound, convertible paper circulation, suited to the circumstances of the country, and having equal value, and the same credit, in all parts of it. This was Mr. Madison's judgment. He acted upon it; and both houses of Congress concurred with him. But if we now quote Mr. Madison's sentiments, we get no reply at all from the friends of the government system. We may read his messages of 1815 and 1816 as often as we please. No man answers them, and yet the party of the administration, professing to belong to Mr. Madison's political school, acts upon directly opposite principles.

Now, what has brought about this state of things? What has caused this attempt, now made, at the end of half a century, to change a great principle of administration, and to surrender a most important power of the government? Gentlemen, it has been a crisis of party, not of the country,

which has given birth to these new sentiments. The tortuous windings of party policy have conducted us, and nothing else could well have conducted us, to such a point. Nothing but party pledges, nothing but courses of political conduct entered upon for party purposes, and pursued from necessary regard to personal and party consistency, could so far have pushed the government out of its clear and well-trodden path of constitutional duty. From General Washington's presidency to the last hour of the late President's, both the government and the country have supposed Congress to be clothed with the general duty of protecting the currency, either as an inference from the coinage power or from the obvious and incontestable truth, that the regulation of the currency is naturally and plainly a branch of the commercial power. General Jackson himself was behind no one of his predecessors in asserting this power, and in acknowledging the corresponding duty. We all know that his very first complaint against the late Bank of the United States was, that it had not fulfilled the expectation of the country, by furnishing for the use of the people a sound and uniform currency. There were many persons, certainly, who did not agree with him in his opinions respecting the bank and the effects of its agency on the country; but it was expressly on the ground of this alleged failure of the bank, that he undertook what was called the great reform. There are those, again, who think that of this attempted reform he made a very poor and sorry business; but still the truth is, that he undertook this reform for the very purpose professed and avowed, that he might fulfil better than it had yet been fulfilled the duty of government in furnishing the people with a good currency. The President thought that the currency, in 1832 and 1833, was not good enough; that the people had a right to expect a better; and to meet this expectation, he began what he himself called his experiment. He said the currency was not so sound, and so uniform, as it was the duty of government to make it; and he therefore undertook to give us a currency more sound and more uniform. And now, Gentlemen, let us recur shortly to what followed; for there we shall find the origin of the present constitutional notions and dogmas. Let us see what has changed the Constitution in this particular.

In 1833, the public deposits were removed, by an act of the President himself, from the Bank of the United States, and placed in certain State banks, under regulations prescribed by the executive alone. This was the experiment. The utmost confidence, indeed, an arrogant and intolerant

confidence, was entertained and expressed of its success; and all who doubted were regarded as blind bigots to a national bank. When the experiment was put into operation, it was proclaimed that its success was found to be complete. Down to the very close of General Jackson's administration, we heard of nothing but the wonderful success of the experiment. It was declared, from the highest official sources, that the State banks, used as banks of deposit, had not only shown themselves perfectly competent to fulfil the duties of fiscal agents to government, but also that they had sustained the currency, and facilitated the great business of internal exchanges, with the most singular and gratifying success, and better than the same thing had been done before. In all this glow and fervor of self-commendation, the late administration went out of office, having bequeathed the experiment, with all its blushing honors and rising glories, to its successor. But a frost, a nipping frost, was at hand. Two months after General Jackson had retired, the banks suspended specie payments, deposit banks and all; a universal embarrassment smote down the business and industry of the country; the treasury was left without a dollar, and the brilliant glory of the experiment disappeared in gloom and thick darkness! And now, Gentlemen, came the change of sentiments, now came the new reading of the Constitution. A national bank had already been declared by the party to be unconstitutional, the State bank system had failed, and what more could be done? What other plan was to be devised? How could the duty of government over the currency be now performed? The administration had decried a national bank, and it now felt bound to denounce all State institutions; and what, therefore, could it do? The whole party had laid out its entire strength, in an effort to render the late Bank of the United States, and any bank of the United States, unpopular and odious. It had pronounced all such institutions to be dangerous, anti-republican and monarchical. It had, especially, declared a national bank to be plainly and clearly unconstitutional. Now, Gentlemen, I have nothing to say of the diffidence and modesty of men, who without hesitation or blushing, set up their own favorite opinions on a question of this kind against the judgment of the government and the judgment of the country, maintained for fifty years. I will only remark, that, if we were to find men acting thus in their own affairs, if we should find them disposing of their own interests, or making arrangements for their own property, in contempt of rules which they knew the legislative and the judicial authorities had all sanctioned for

half a century, we should be very likely to think them out of their heads. Yet this ground had been taken against the late bank, and against all national banks; and it could not be surrendered without apparent and gross inconsistency. What, then, I ask again, was the administration to do? You may say, it should have retracted its error, it should have seen the necessity of a national institution, and yielded to the general judgment of the country.

But that would have required an effort of candor and magnanimity, of which all men are not capable. Besides, there were open, solemn, public pledges in the way. This commitment of the party against a national bank, and the disastrous results of its experiment on the State institutions, brought the party into a difficulty, from which it seemed to have no escape, but in shifting off, altogether, the duty of taking care of the currency. I was at Wheeling, in Virginia, in May of last year, when the banks suspended payment; and, at the risk of some imputation of bad taste, I will refer to observations of mine made then, to the citizens of that town, and published, in regard to the questions which that event would necessarily bring before the country.^[116] I saw at once that we were at the commencement of a new era, and that a controversy must arise, which would greatly excite the community.

No sooner had the State banks suspended specie payments, and among the rest those which were depositories of the government, than a cry of fraud and treachery was raised against them, with no better reason, perhaps, than existed for that loud, and boisterous, and boastful confidence, with which the late administration had spoken of their capacity of usefulness, and had assured the country that its experiment could not fail. But whether the suspension by the banks was a matter of necessity with them, or not, the administration, after it had happened, seeing itself now shut out from the use of all banks by its own declared opinions and the results of its own policy, and seeing no means at hand for making another attempt^[424] at reforming the currency, turned a short corner, and in all due form denied that the government had any duty of the kind to discharge. From the time of the veto of the bank charter, in 1832, the administration had been like a man who had voluntarily deserted a safe bottom, on deep waters, and, having in vain sought to support himself by laying hold on one and another piece of floating timber, chooses rather to go down than to seek safety in returning to what he has abandoned.

Seeing that it had deprived itself of the common means of regulating the currency, it now denied its obligation to do so; declared it had nothing to do with the currency beyond coinage; that it would take care of the revenues of the government, and as for the rest, the people must look out for themselves. This decision thus evidently grew out of party necessity. Having deprived themselves of the ordinary and constitutional means of performing their duty, they sought to avoid the responsibility by declaring that there was no such duty to perform. They have looked further into the Constitution, and examined it by daylight and by moonlight, and cannot find any such duty or obligation. Though General Jackson saw it very plainly, during the whole course of his presidency, it has now vanished, and the new commentators can nowhere discern a vestige of it. The present administration, indeed, stood pledged to tread in the steps of its predecessor; but here was one footprint which it could not, or would not, occupy, or one stride too long for it to take. The message, I had almost said the fatal message, communicated to Congress in September, contained a formal disavowal, by the administration, of all power under the Constitution to regulate the general actual currency of the country.

The President says, in that message, that if he refrains from suggesting to Congress any specific plan for regulating the exchanges, relieving mercantile embarrassments, or interfering with the ordinary operations of foreign or domestic commerce, it is from the conviction that such measures are not within the constitutional provision of government.

How all this could be said, when the Constitution expressly gives to Congress the power to regulate commerce, both foreign and domestic, I cannot conceive. But the Constitution was not to be trifled with, and the people are not to be trifled with. The country, I believe, by a great majority, is of opinion that this duty *does belong* to government, and ought to be exercised. All the new expounders have not been able to erase this general power over commerce, and all that belongs to commerce. Their fate, in this respect, is like that of him in ancient story. While endeavoring to tear up and rend asunder the Constitution, its strong fibres have recoiled, and caught them in the cleft. They experience

“Milo’s fearful end,
Wedged in the timber which they strove to rend.”

Gentlemen, this constitutional power can never be surrendered. We may as well give up the whole commercial power at once, and throw every thing connected with it back upon the States. If Congress surrender the power, to whom shall it pass, or where shall it be lodged? Shall it be left to six-and-twenty different legislatures? To eight hundred or a thousand unconnected State banks? No, Gentlemen, to allow that authority to be surrendered would be to abandon the vessel of state, without pilot or helm, and to suffer her to roll, darkling, down the current of her fate.

For the sake of avoiding all misapprehensions on this most important subject, I wish to state my own opinion, clearly, and in few words. I have never said, that it is an indispensable duty in Congress, under all circumstances, to establish a national bank. No such duty, certainly, is created by the Constitution, in express terms. I did not say *what particular measures* are enjoined by the Constitution, in this respect. Congress has its discretion, and is left to its own judgment, as to the means most proper to be employed. But I say the general duty does exist.

I maintain that Congress is bound to take care, by some proper means, to secure a good currency for the people; and that, while this duty remains unperformed, one great object of the Constitution is not attained. If we are to have as many different currencies as there are States, and these currencies are to be liable to perpetual fluctuation, it would be folly to say that we had reached that security and uniformity in commercial regulation, which we know it was the purpose of the Constitution to establish.

The banks may all resume specie payments to-morrow,—I hope they will; but how much will this resumption accomplish? It will doubtless afford good local currencies; but will it give the country any proper and safe paper currency, of equal and universal value? Certainly it cannot, and will not. Will it bring back, for any length of time, exchanges to the state they were in when there was a national currency in existence? Certainly, in my opinion, it will not. We may heap gold bags upon gold bags, we may create what securities, in the constitution of local banks, we please, but we cannot give to any such bank a character that shall insure the receipt of its notes, with equal readiness, everywhere throughout the valley of the Mississippi, and from the shores of the Gulf of Mexico to the St. Lawrence. Nothing can accomplish this, but an institution which is national in its character. The

people desire to see, in their currency, the marks of this nationality. They like to see the spread eagle, and where they see that they have confidence.

Who, if he will look at the present state of things, is not wise enough to see that there is much and deep cause for fear in regard to the future, unless the government will take the subject of currency under its own control, as it ought to do. For one, I think I see trouble ahead, and I look for effectual prevention and remedy only to a just exercise of the powers of Congress. I look not without apprehension upon the creation of numerous and powerful State institutions, full of competition and rivalry, and under no common control. I look for other and often-repeated expansions of paper circulation, inflations of trade, and general excess; and then, again, for other violent ebbings of the swollen flood, ending in other suspensions. I see no steadiness, no security, till the government of the United States shall fulfil its constitutional duty. I shall be disappointed, certainly, if, for any length of time, the benefits of a sound and uniform convertible paper currency can be enjoyed, while the whole subject is left to six-and-twenty States, and to eight hundred local banks, all anxious for the use of money and the use of credit in the highest degree.

As I have already said, these sub-treasury schemes are but contrivances for getting away from a disagreeable duty. And, after all, there are scarcely any two of the friends of the administration who can agree upon the same sub-treasury scheme. Each has a plan of his own. One man requires that all banks shall be discarded, and nothing but gold and silver shall be received for revenue. Another will exclaim, "That won't do; that's not my thunder." Another would prohibit all the small notes, and another would banish all the large ones. Another is for a special deposit scheme; for making the banks sub-treasuries and depositories; for making sub-treasuries of the broken, rotten, treacherous banks; for taking bank-notes, tying them up with red strings, depositing them in the vaults, and paying them out again.

It has been the proposition of the administration to separate the money of the government from the money of the people; to secure a good medium of payments, for the use of the treasury, in collecting and disbursing revenue, and to take no care of the general circulation of the country. This is the sum of its policy. Looking upon this whole scheme but as an abandonment of clear constitutional obligation, I have opposed it, in every form in which it has been presented. My object, as I have already said, and that of those with

whom I acted, has been, to prevent the sanction of all or any of these new projects, by authority of law, until another Congress should be elected, which might express the will of the people formed after the present state of things arose. In this object we have succeeded. If we have done little positive good, we have at least prevented the introduction and establishment of new theories and new contrivances, and we have preserved the Constitution, in this respect, entire. No surrender or abandonment of important powers is, as yet, indorsed on the parchment of that instrument. No new clause is appended to it, making its provisions a mere *non obstante* to executive discretion. It has been snatched from the furnace. From this furnace of party contention, heated seven times hotter than it has been wont to be heated, the Constitution has been rescued, and we may hold it up to the people this day, and tell them that even the smell of the fire is not upon it.

But now, Gentlemen, a stronger arm must be put forth. A mightier guardianship must now interfere. Time has been gained for public discussion and consideration, and the great result is now with the people. That they will ultimately decide right, I have the fullest confidence. Party attachment and party patronage, it is true, may do much to delay the results of general opinion, but they cannot long resist the convictions of a whole people. It is most certain that, up to the present hour, this new policy has been most unfavorably received. State after State has fallen off from the ranks of the administration, on account of its promulgation, and of the persevering attempt to raise upon it a system of legal, practical administration. The message of September completed the list of causes necessary to produce a popular revolution in sentiment in Maine, Ohio, New Jersey, and New York. Since the proposition was renewed, at the late session, we have witnessed a similar revolution in Connecticut and Louisiana, and very important changes, perhaps equivalent to revolutions, in the strength of parties in other States. There is little reason to doubt, if all the electors of the country could be polled to-day, that a great and decisive majority would be found against all this strange policy. Yet, Gentlemen, I do not consider the question, by any means, as decided. The policy is not abandoned. It is to be persisted in. Its friends look for a reaction in public opinion. I think I understand their hopes and expectations. They rely on this *reaction*. Every thing is to be accomplished by *reaction*. A month ago, this reaction was looked for to show itself in Louisiana. Altogether disappointed

in that quarter, the friends of the policy now stretch their hopes to the other extremity of the Union, and look for it in Maine. In my opinion, Gentlemen, there can be no reaction which can reconcile the people of this country to the policy at present pursued.

There must, in my opinion, be a change. If the administration will not change its course, it must be changed itself. But I repeat, that the decision now lies with the people; and in that decision, when it shall be fairly pronounced, I shall cheerfully acquiesce. We ought to address ourselves, on this great and vital question, to the whole people, to the candid and intelligent of all parties. We should exhibit its magnitude, its essential consequence to the Constitution, and its infinite superiority to all ordinary strifes of party. We may well and truly say, that it is a new question; that the great mass of the people, of any party, is not committed on it; and it is our duty to invoke all true patriots, all who wish for the well-being of the government and the country, to resist these experiments upon the Constitution, and this wild and strange departure from our hitherto approved and successful policy.

At the same time, Gentlemen, while we thus invoke aid from all quarters, we must not suffer ourselves to be deceived. We must yield to no expedients, to no schemes and projects unknown to the Constitution, and alien to our own history and our habits. We are to be saved, if saved at all, *in* the Constitution, not *out* of it. None can aid us, none can aid the country, by any thing in the nature of mere political project, nor can any *devices* supply the place of regular constitutional administration. It was to prevent, or to remedy, such a state of things as now exists, that the Constitution was formed and adopted. The time when there is a disordered currency, and a distracted commerce, is the very time when its agency is required; and I hope those who wish for a restoration of general prosperity will look steadily to the light which the Constitution sheds on the path of duty.

As to you and me, fellow-citizens, our course is not doubtful. However others may decide, we hold on to the Constitution, and to all its powers, as they have been authentically expounded, and practically and successfully experienced, for a long period. Our interests, our habits, our affections, all bind us to the principles of our Union as our leading and guiding star.

Gentlemen, I cannot resume my seat without again expressing my sense of gratitude for your generous appreciation of my services. I have the pleasure to know that this festival originated with the Boston mechanics, a body always distinguished, always honored, always patriotic, from the first dawn of the Revolution to the present time. Who is here, whose father has not told him—there are some here old enough to know it themselves—that they were Boston mechanics whose blood reddened State Street on the memorable 5th of March. And as the tendencies of the Revolution went forward, and times grew more and more critical, it was the Boston mechanics who composed, to a great extent, the crowds which frequented the old Whig head-quarters in Union Street; which assembled, as occasion required patriots to come together, in the Old South; or filled to suffocation this immortal Cradle of American Liberty.

When Independence was achieved, their course was alike intelligent, wise, and patriotic. They saw, as quick and as fully as any men in the country, the infirmities of the old Confederation, and discerned the means by which they might be remedied. From the first, they were ardent and zealous friends of the present Constitution. They saw the necessity of united councils, and common regulations, for all the States, in matters of trade and commerce. They saw, what indeed is obvious enough, that their interest was completely involved with that of the mercantile class, and other classes; and that nothing but one general, uniform system of commerce, trade, and imports could possibly give to the business and industry of the country vigor and prosperity. When the convention for acting on the Constitution sat in this city, and the result of its deliberations was doubtful, the mechanics assembled at the Green Dragon tavern, and passed the most firm and spirited resolutions in favor of the Constitution; and when these resolutions were presented to the Boston delegation, by a committee of which Colonel Revere was chairman, they were asked by one of the members, how many mechanics were at the meeting; to which Colonel Revere answered, “More than there are stars in heaven.” With statesmanlike sagacity, they foresaw the advantages of a united government. They celebrated, therefore, the adoption of the Constitution by rejoicings and festivals, such, perhaps, as have not since been witnessed. Emblematic representations, long processions of all the trades, and whatever else might contribute to the joyous demonstration of gratified patriotism, distinguished the occasion. Gentlemen, I can say with great truth, that an occasion intended to manifest

respect to me could have originated nowhere with more satisfaction to myself than with the mechanics of Boston.

I am bound to make my acknowledgments to other classes of citizens who assemble here to join with the mechanics in the purpose of this meeting. I see with pleasure the successors and followers of the Mathers, of Clarke, and of Cooper; and I am gratified, also, by the presence of those of my own profession, in whose immediate presence and society so great a portion of my life has been passed. It is natural that I should value highly this proof of their regard. We have walked the same paths, we have listened to the same oracles, we have been guided together by the lights of Dana, and Parsons, and Sewall, and Parker, not to mention living names, not unknown⁴³¹ or unhonored either at home or abroad. As I honor the profession, so I honor and respect its worthy members, as defenders of truth, as supporters of law and liberty, as men who ever act on steady principles of honor and justice, and from whom no one, with a right cause, is turned away, though he may come clothed in rags.

Mingling in this vast assembly, I perceive, Gentlemen, many citizens who bear an appellation which is honored, and which deserves to be honored, wherever a spirit of enlightened liberality, humanity, and charity finds regard and approbation among men, I mean the appellation of Boston merchants. In a succession of generations, they have contributed uniformly to great objects of public interest and advantage. They have founded institutions of learning, of piety, and of charity. They have explored the field of human misfortune and calamity; they have sought out the causes of vice, and want, and ignorance, and have sought them only that they might be removed and extirpated. They have poured out like water the wealth acquired by their industry and honorable enterprise, to relieve the necessities of poverty, administer comfort to the wretched, soothe the ravings of distressed insanity, open the eyes of the blind, unstop the ears of the deaf, and shed the light of knowledge, and the reforming influences of religion where ignorance and crime have abounded. How am I to commend, not only single acts of benevolence, but whole lives of benevolence, such as this? May He reward them,—may that Almighty Being reward them, in whose irreversible judgment, in that day which is to come, the merit even of the widow's mite shall outweigh the advantages of all the pomp and grandeur of the world!

Gentlemen, citizens of Boston, I have been in the midst of you for twenty years. It is nearly sixteen years since, quite unexpectedly to myself, you saw fit to require public service at my hands and to place me in the national legislature. If, in that long period, you have found in my public conduct something to be approved, and more to be forgiven than to be reprehended, and if we meet here to-day better friends for so many years of acquaintance and mutual confidence, I may well esteem myself happy in the enjoyment of a high reward.

I offer you again, fellow-citizens, my grateful acknowledgments, and all ⁴³³my sincere and cordial good wishes; and I propose to you as a toast:—

“The City of Boston: May it continue to be the head-quarters of good principles, till the blood of the Revolutionary patriots shall have run through a thousand generations!”

FOOTNOTES

[\[113\]](#)

Speech delivered at a Public Dinner in Faneuil Hall, given by the Citizens of Boston to Mr. Webster, at the Close of the Session of Congress, on the 24th of July, 1838.

[\[114\]](#)

An extra session of Congress had been called by President Van Buren, in September, 1837, in consequence of the general suspension of specie payments by the banks.

[\[115\]](#)

Hon. John Davis.

[\[116\]](#)

See the Speech above, [page 383](#).

ROYAL AGRICULTURAL SOCIETY. [117]

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In the spring of 1839, Mr. Webster went for a short time to England. He went in no public capacity, but his reputation had preceded him, and he was received with every mark of the most distinguished consideration. He was present at several public festivals, and his addresses appear to have made a deep impression on those who heard them. The following is the only one, however, which was reported at any length. It was delivered at the first Triennial Celebration of the Royal Agricultural Society, held at Oxford, on the 18th of July. Three thousand persons were at table. Earl Spencer presided, and, in introducing Mr. Webster, said they had “already drunk the health of a foreign minister who was present, but they had the honor and advantage of having among them other foreigners, not employed in any public capacity, who had come among them for the purpose of seeing a meeting of English farmers, such as he believed never had been witnessed before, but which he hoped might often be seen again. Among these foreigners was one gentleman, of a most distinguished character, from the United States of America, that great country, whose people we were obliged legally to call foreigners, but who were still our brethren in blood. It was most gratifying to him that such a man was present at that meeting, that he might know what the farmers of England really were, and be able to report to his fellow-citizens the manner in which they were united, from every class, in promoting their peaceful and most important objects.” He gave,—

“The health of Mr. Webster, and other distinguished strangers.”

The toast was received with much applause.

MR. WEBSTER said the notice which the noble Earl at the head of the table had been kind enough to take of him, and the friendly sentiments which he had seen fit to express towards the country to which he belonged, demanded his most cordial acknowledgments. He should therefore begin by saying how much he was gratified in having it in his power to pass one day among the proprietors, the cultivators, the farmers, of Old England; that England of which he had been reading and conversing all his life, and now for once had the pleasure of visiting.

I would say, in the next place, continued Mr. Webster, if I could say, how much I have been pleased and gratified with one portion of the exhibition for which we are indebted to the formation of the Royal Agricultural Society, and that is, the assemblage of so large a number of the farmers of England. When persons connected with some pursuit, of whatever description, assemble in such numbers, I cannot look on them but with

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respect and regard; but I freely confess that I am more than ordinarily moved on all such occasions, when I see before me, on either continent, a great assemblage of those whose interests, whose hopes, whose objects and pursuits in life, are connected with the cultivation of the soil.

Whatever else may tend to enrich and beautify society, that which feeds and clothes comfortably the great mass of mankind should always be regarded as the great foundation of national prosperity. I need not say that the agriculture of England is instructive to all the world; as a science, it is here better understood; as an art, it is here better practised; as a great interest, it is here as highly esteemed as in any other part of the globe.

The importance of agriculture to a nation is obvious to every man; but it, perhaps, does not strike every mind so suddenly, although certainly it is equally true, that the annual produce of English agriculture is a great concern to the whole civilized world. The civilized and commercial states are so connected, their interests are so blended, that it is a matter of notoriety, that the fear or the prospect of a short crop in England deranges and agitates the business transactions and commercial speculations of the whole trading world.

It is natural that this should be the case in those nations which look to the occurrence of a short crop in England as an occasion which may enable them to dispose profitably of their own surplus produce. But the fact goes much farther, for when such an event occurs in the English capital,—the centre of commercial speculations, where the price of commodities⁴³⁷ is settled and arranged for the whole world, where the exchanges between nations are conducted and concluded,—its consequences are felt everywhere, as no one knows better than the noble Earl who occupies the chair. Should there be a frost in England fifteen days later than usual in the spring, should there be an unseasonable drought, or ten cold and wet days, instead of ten warm and dry ones, when the harvest is reaped, every exchange in Europe and America is more or less affected by the result.

I will not pursue these remarks. [Loud cries of “Go on! Go on!”] I must, however, say, that I entertain not the slightest doubt of the great advantage to the interest of agriculture which must result from the formation and operation of this society. Is it not obvious to the most common observer, that those who cultivate the soil have not the same conveniences,

opportunities, and facilities of daily intercourse and comparison of opinions, as the commercial and manufacturing interests? Those who are associated in the pursuits of commerce and manufactures naturally congregate together in cities; they have immediate means of frequent communication. Their sympathies, feelings, and opinions are instantaneously circulated, like electricity, through the whole body.

But how is it with the cultivators of the soil? Separated, spread over a thousand fields, each attentive to his own acres, they have only occasional opportunities of communicating with each other. If among commercial men chambers of commerce, and other institutions of that character,—if among the trades guilds are found expedient, how much more necessary and advisable to have some such institutions as this society, which, at least annually, shall bring together the representatives of the great agricultural interest!

In many parts of the country to which I belong, there are societies upon a similar principle, which have been found very advantageous. As with you, they offer rewards for specimens of fine animals, and for implements of husbandry supposed to excel those which have been known before. They turn their attention to every thing designed to facilitate the operations of the farmer, and improve his stock, and interest in the country. Among other means of improving agriculture, they have imported largely from the best breeds of animals known in England. I am sure that a gentleman who has to-day deservedly obtained many prizes for stock will not be displeased to learn that I have seen, along the rich pastures of the Ohio and its tributary streams, animals raised from those which had been furnished by his farms in Yorkshire and Northumberland.

But, apart from this subject, I beg leave to make a short response to the very kind sentiments, which went near to my heart, as uttered by the noble Earl at the head of the table.

The noble chairman was pleased to speak of the people of the United States as kindred in blood with the people of England. I am an American. I was born on that great continent and I am wedded to the fortunes of my country, for weal or for woe. There is no other region of the earth which I can call my country. But I know, and I am proud to know, what blood flows in these veins.

I am happy to stand here to-day, and to remember, that, although my ancestors, for several generations, lie buried beneath the soil of the western continent, yet there has been a time when my ancestors and your ancestors toiled in the same cities and villages, cultivated adjacent fields, and worked together to build up that great structure of civil polity which has made England what England is.

When I was about to embark for this country, some friends asked me what I was going to England for. To be sure, Gentlemen, I came for no object of business, public or private; but I told them I was coming to see the elder branch of the family. I told them I was coming to see my distant relations, my kith and kin of the old Saxon race.

With regard to whatsoever is important to the peace of the world, its prosperity, the progress of knowledge and of just opinions, the diffusion of the sacred light of Christianity, I know nothing more important to the promotion of those best interests of humanity, and the cause of the general peace, amity, and concord, than the good feeling subsisting between the Englishmen on this side of the Atlantic, and the descendants of Englishmen on the other.

Some little clouds have overhung our horizon,—I trust they will soon pass away. I am sure that the age we live in does not expect that England and America are to have controversies carried to the extreme, upon ^{any} ~~any~~ occasion not of the last importance to national interests and honor.

We live in an age when nations, as well as individuals, are subject to a moral responsibility. Neither governments nor people—thank God for it!—can now trifle with the general sense of the civilized world; and I am sure that the civilized world would hold your country and my country to a very strict account, if, without very plain and apparent reason, deeply affecting the independence and great interests of the nation, any controversy between them should have other than an amicable issue.

I will venture to say that each country has intelligence enough to understand all that belongs to its just rights, and is not deficient in means to maintain them; and if any controversy between England and America were to be pushed to the extreme of force, neither party would or could have any signal advantage over the other, except what it could find in the justice of its cause and the approbation of the world.

With respect to the occasion which has called us together, I beg to repeat the gratification which I have felt in passing a day in such a company, and to conclude with the most fervent expression of my wish for the prosperity and usefulness of the Agricultural Society of England.

FOOTNOTES

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Address at the Triennial Celebration of the Royal Agricultural Society of England, at Oxford on the 18th of July, 1839.

THE AGRICULTURE OF ENGLAND. [118]

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Mr. Webster has at all periods of life cherished a strong attachment to agricultural pursuits. Of late years, when not obliged to be at Washington, in the discharge of his public duties, he has resided wholly on his farm at Marshfield, Massachusetts. The condition of the agriculture of England was one of the objects which most received his attention, during his short visit to that country in 1839. On his return to the United States in January, 1840, a strong desire was entertained by his friends to meet him on some public occasion, and a wish was expressed, particularly by many members of the Legislature of Massachusetts, who were in the habit of holding occasional meetings for the discussion of agricultural subjects, to learn the result of his observations on the present state of English agriculture. These wishes were communicated to Mr. Webster, and an early day was appointed for a meeting, at which the following remarks were made by him.

MR. CHAIRMAN, I would observe in the outset of these remarks, that I regard agriculture as the leading interest of society; and as having, in all its relations, a direct and intimate bearing upon human comfort and the national prosperity. I have been familiar with its operations in my youth; and I have always looked upon the subject with a lively and deep interest. I do not esteem myself to be particularly qualified to judge of the subject in all its various aspects and departments; and I neither myself regard, nor would I have others regard, my opinions as authoritative. But the subject has been one of careful observation to me, both in public and private life; and my visit to Europe, at a season of the year particularly favorable for this purpose, has given me the opportunity of seeing its improved husbandry, and as far as it may be interesting, or can have a bearing upon the subject of the evening's discussion, the agriculture of Massachusetts, I will, as the meeting appear to expect, say a few words upon what has attracted my notice.

How far, in a question of this kind, the example of other countries is to be followed, is an inquiry worthy of much consideration. The example of a foreign country may be too closely followed. It will furnish a safe rule of imitation only as far as the circumstances of the one country correspond with those of the other.

The great objects of agriculture, and the great agricultural products of England and of Massachusetts, are much the same. Neither country produces olives, nor rice, nor cotton, nor the sugar-cane. Bread, meat, and clothing are the main productions of both. But, although the great productions are mainly the same, there are many diversities of condition and circumstances, and various modes of culture.

The primary elements which enter into the consideration of the agriculture of a country are four,—climate, soil, price of land, and price of labor. In any comparison, therefore, of the agriculture of England with that of Massachusetts, these elements are to be taken particularly into view.

The climate of England differs essentially from that of this country. England is on the western side of the eastern, and we on the eastern side of the western continent. The climate of all countries is materially affected by their respective situations in relation to the ocean. The winds which prevail most, both in this country and in England, are from the west. It is known that the wind blows, in our latitude, from some point west to some point east, on an average of years, nearly or quite three days out of four. These facts are familiar. The consequences resulting from them are, that our winters are colder and our summers much hotter than in England. Our latitude is about that of Oporto, yet the temperature is very different. On these accounts, therefore, the maturing of the crops in England, and the power of using these crops, creates a material difference between its agriculture and ours. It may be supposed that our climate must resemble that of China in the same latitudes; and this fact may have an essential bearing upon that branch of agriculture which it is proposed to introduce among us, the production of silk.

The second point of difference between the two countries lies in the soil. The soil of England is mainly argillaceous, a soft and unctuous loam upon a substratum of clay. This may be considered as the predominant characteristic in the parts which I visited. The soil in some of the southern counties of England is thinner; some of it is what we should call stony; much of it is a free, gravelly soil, with some small part which, with us, would be called sandy. Through a great extent of country, this soil rests on a deep bed of chalk. Ours is a granite soil. There is granite in Great Britain; but this species of soil prevails in Scotland, a part of the country which more resembles our own. We may have some lands as good as any in

England. Our alluvial soils on Connecticut River, and in some other parts of the country, are equal to any lands; but these have not, ordinarily, a wide extent of clay subsoil. The soil of Massachusetts is harder, more granitic, less abounding in clay, and altogether more stony, than the soil of England. The surface of Massachusetts is more uneven, more broken with mountain ridges, more diversified with hill and dale, and more abundant in streams of water, than that of England.

The price of land in that county, another important element in agricultural calculations, differs greatly from the price of land with us. It is three times as high as in Massachusetts, at least.

On the other hand, the price of agricultural labor is much higher in Massachusetts than in England. The price of labor varies considerably in different parts of England; but it may be set down as twice as dear with us here.

These are the general remarks which have suggested themselves to me in regard to the state of things abroad. Now, have we any thing to learn from them? Is there any thing in the condition of England applicable to us, or in regard to which the agriculture of England may be of use to Massachusetts and other countries?

The subject of agriculture, in England, has strongly attracted the attention and inquiries of men of science. They have studied particularly the nature of the soil. More than twenty years ago, Sir Humphrey Davy undertook to treat the subject of the application of chemical knowledge to agriculture in the analysis of soils and manures. The same attention has been continued to the subject; and the extraordinary discoveries and advances in chemical science, since his time, are likely to operate greatly to the advantage of agriculture. The best results may be expected from them. These inquiries are now prosecuted in France with great enthusiasm and success. We may hope for like beneficial results here from the application of science to the same objects.

But although the circumstances of climate and situation, and nature of the soil, form permanent distinctions which cannot be changed, yet there are other differences, resulting from different modes of culture, and different forms of applying labor; and it is to these differences that our attention should be particularly directed. Here, there is much to learn. English

cultivation is more scientific, more systematic, and more exact, a great deal, than ours. This is partly the result of necessity. A vast population is to be supported on comparatively a small surface. Lands are dear, rents are high, and hands, as well as mouths, are numerous. Careful and skillful cultivation is the natural result of this state of things. An English farmer looks not merely to the present year's crop. He considers what will be the condition of the land when that crop is off; and what it will be fit for the next year. He studies to use his land so as not to abuse it. On the contrary, his aim is to get crop after crop, while still the land shall be growing better and better. If he should content himself with raising from the soil a large crop this year, and then leave it neglected and exhausted, he would starve. It is upon this fundamental idea of constant production without exhaustion, that the system of English cultivation, and, indeed, of all good cultivation, is founded. England is not original in this. Flanders, and perhaps Italy, have been her teachers. This system is carried out in practice by a well-considered rotation of crops. The form or manner of this rotation, in a given case, is determined very much by the value of the soil, and partly by the local demand for particular products. But some rotation, some succession, some variation in the annual productions of the same land, is essential. No tenant could obtain a lease, or, if he should, could pay his rent and maintain his family, who should wholly disregard this. White crops (wheat, barley, rye, oats, &c.) are not to follow one another. Our maize, or Indian corn, must be considered a white crop; although, from the quantity of stalk and leaf which it produces, and which are such excellent food for cattle, it is less exhausting than some other white crops; or, to speak more properly,⁴⁴⁷ it makes greater returns to the land. The cultivation of maize has not, however, been carried to any extent in England. Green crops are turnips, potatoes, beets, vetches, or tares (which are usually eaten while growing, by cattle and sheep, or cut for green food), and clover. Buck or beech wheat, and winter oats,—thought to be a very useful product,—are regarded also as green crops, when eaten on the land; and so, indeed, may any crop be considered, which is used in this way. But the turnip is the great green crop of England. Its cultivation has wrought such changes, in fifty years, that it may be said to have revolutionized English agriculture.

Before that time, when lands became exhausted by the repetition of grain crops, they were left, as it was termed, fallow; that is, were not cultivated at all, but left to recruit themselves as they might. This occurred as often as

every fourth year, so that one quarter of the arable land was always out of cultivation, and yielded nothing. Turnips are now substituted in the place of these naked fallows; and now land in turnips is considered as fallow. What is the philosophy of this? The raising of crops, even of any, the most favorable crop, does not, in itself, enrich, but in some degree exhausts, the land. The exhaustion of the land, however, as experience and observation have fully demonstrated, takes place mainly when the seeds of a plant are allowed to perfect themselves. The turnip is a biennial plant. It does not perfect its seed before it is consumed.

There is another circumstance in respect to the turnip plant which deserves consideration. Plants, it is well understood, derive a large portion of their nutriment from the air. The leaves of plants are their lungs. The leaves of turnips expose a wide surface to the atmosphere, and derive, therefore, much of their subsistence and nutriment from these sources. The broad leaves of the turnips likewise shade the ground, preserve its moisture, and prevent, in some measure, its exhaustion by the sun and air.

The turnips have a further and ultimate use. Meat and clothing come from animals. The more animals are sustained upon a farm, the more meat and the more clothing. These things bear, of course, a proportion to the number of bullocks, sheep, swine, and poultry which are maintained. The great inquiry, then, is, What kind of crops will least exhaust the land in their cultivation, and furnish, at the same time, support to the largest number of animals?

A very large amount of land, in England, is cultivated in turnips. Fields of turnips of three, four, and even five hundred acres, are sometimes seen, though the common fields are much less; and it may be observed here, that, in the richest and best cultivated parts of England, enclosures of ten, fifteen, twenty, or thirty acres seemed more common. Since the introduction of the turnip culture, bullocks and sheep have trebled in number. Turnips, for the reasons given, are not great exhausters of the soil; and they furnish abundant food for animals. Let us suppose that one bushel of oats or barley may be raised at the same cost as ten bushels of turnips, and will go as far in support of stock. The great difference in the two crops is to be found in the farmer's barn-yard. Here is the test of their comparative value. This is the secret of the great advantages which follow from their cultivation. The value of manure in agriculture is well appreciated. M'Queen states the

extraordinary fact, that the value of the animal manure annually applied to the crops in England, at current prices, surpasses in value the whole amount of its foreign commerce. There is no doubt that it greatly exceeds it. The turnip crop returns a vast amount of nutritive matter to the soil. The farmer, then, from his green crops, and by a regular system of rotation, finds green fodder for his cattle and wheat for the market.

Among the lighter English soils is that of the county of Norfolk, a county, however, which I had not the pleasure of visiting. Its soil, I understand, is light, a little inclined to sand, or light loam. Such soils are not unfavorable to roots. Here is the place of the remarkable cultivation and distinguished improvements of that eminent cultivator, Mr. Coke, now Earl of Leicester. In these lands, as I was told, a common rotation is turnips, barley, clover, wheat. These lands resemble much of the land in our county of Plymouth, and the sandy lands to be found in the vicinity of the Connecticut and Merrimack Rivers. The cultivation of green crops in New England deserves attention. There is no incapacity in our soil, and there are no circumstances unfavorable to their production. What would be the best kind of succulent vegetables to be cultivated, whether turnips or carrots, I am not prepared to say. But no attempts, within my knowledge, have been made among us of a systematic agriculture; and until we enter upon some regular rotation of crops, and our husbandry becomes more systematic, no distinguished success can be looked for. As to our soil, as has been remarked, there is no inherent incapacity for the production of any of the common crops. We can raise wheat in Massachusetts. The average crop in England is twenty-six bushels to the acre. From my own farm, where the soil is comparatively thin and poor, I have obtained this summer seventy-six bushels of wheat upon three acres of land. It is not, therefore, any want of capability in the soil; but the improvement and success of our husbandry must depend upon a succession of crops adapted to the circumstances of our soil, climate, and peculiar condition.

In England, a large portion of the turnip crop is consumed on the land where it grows. The sheep are fed out of doors all winter; and I saw many large flocks, in the aggregate thousands and even millions of sheep, which were never housed. This was matter of surprise, especially considering the wetness of the climate; and these sheep are often exposed in fields where a dry spot cannot be found for them to lie down upon. Sheep are often folded

in England by wattled fences, or hurdles temporarily erected in different parts of the field, and removed from place to place, as the portions of the crop thus fenced off are consumed. In some cases they are folded, and the turnips dug and carried to them. In such cases, they are always fed upon lands which are intended the next year to be, as far as practicable, brought under cultivation. I have seen many laborers in fields, employed in drawing the turnips, splitting them, and scattering them over the land, for the use of the sheep, which is considered better, often, than to leave the sheep to dig for themselves. These laborers are so employed all winter, and if the ground should become frozen, the turnips are taken up with a bar. Together with the turnips, it is thought important that sheep should have a small quantity of other food. Chopped hay, sometimes a little oil-cake, or oats, is usually given. This is called *trough* food, as it is eaten in troughs, standing about in the field. In so moist a climate as that of England, some land is so wet that, in the farmer's phrase, it will not *carry sheep*; that is, it is quite too wet for sheep to lie out upon it. In such cases, the turnips must be *carried*, that is, removed from the field, and fed out elsewhere. The last season was uncommonly wet, and for that reason, perhaps, I could not so well judge; but it appeared to me that it would be an improvement in English husbandry, to furnish for sheep, oftener than is done, not only a tolerably dry ground to lie on, but some sort of shelter against the cold rains of winter. The turnips, doubtless, are more completely consumed, when dug, split, and fed out. The Swedish turnip, I have little doubt, is best suited to cold climates. It is scarcely injured by being frozen in the ground in the winter, as it will thaw again, and be still good, in spring. In Scotland, in the Lothians, where cultivation is equal to that in any part of England, it is more the practice than farther south to house turnips, or draw them, and cover them from frost. I have been greatly pleased with Scotch farming, and as the climate and soil of Scotland more resemble the soil and climate of Massachusetts than those of England do, I hope the farmers of Massachusetts will acquaint themselves, as well as they can, with Scotch husbandry. I had the pleasure of passing some time in Scotland, with persons engaged in these pursuits, and acknowledge myself much instructed by what I learned from them, and saw in their company. The great extent of the use of turnips and other green crops in Scotland is evidence that such crops cannot be altogether unsuited to Massachusetts.

Among the subjects which of late years have engaged much of the attention of agriculturists in England, few are more important than that of tile draining. This most efficient and successful mode of draining is getting into very extensive use. Much of the soil of England, as I have already stated, rests on a clayey and retentive subsoil. Excessive wetness is prejudicial and destructive to the crops. Marginal drains, or drains on the outside of the fields, do not produce the desired results. These tile-drains have effected most important improvements. The tile itself is made of clay, baked like bricks; it is about one foot in length, four inches in width, three fourths of an inch in thickness, and it stands from six to eight inches in height, being hemispherical, or like the half of a cylinder, with its sides elongated. It somewhat resembles the Dutch tiles which are seen on the roofs of the old houses in Albany and New York. A ditch is sunk, eighteen or twenty inches in depth, and these drains are multiplied over a field, sometimes at a distance of only seven yards apart. The ditch or drain being dug, these tiles are laid down, with the hollow side at bottom, on the smooth clay, or any other firm subsoil, the sides placed near to each other, some little straw thrown over the joints to prevent the admission of dirt, and the whole covered up. This is not so expensive a mode of draining as might be supposed. The ditch or drain need only be narrow, and tiles are of much cheaper transportation than stone would be. But the result is so important as well to justify the expense. It is estimated that this thorough draining adds often twenty per cent. to the production of the wheat crop. A beautiful example came under my observation in Nottinghamshire, not long before I left England. A gentleman was showing me his grounds for next year's crop of wheat. On one side of the lane, where the land had been drained, the wheat was already up and growing luxuriantly; on the other, where the land was subject to no other disadvantage than that it had not been drained, it was still too wet to be sowed at all. It may be thought singular enough, but it is doubtless true, that, on stiff, clayey lands, thorough draining is as useful in dry, hot summers as in cold and wet summers; for such land, if a wet winter or spring be suddenly followed by hot and dry weather, is apt to become hard and baked, so that the roots of plants cannot enter it. Thorough draining, by giving an opportunity to the water on the surface to be constantly escaping, corrects this evil. Draining can never be needed to so great an extent in Massachusetts as in England and Scotland, from the different nature of the soil; but we have yet quantities of low meadow lands,

producing wild, harsh, sour grasses, or producing nothing, which, there is little doubt, might be rendered most profitable hay-fields, by being well drained. When we understand better the importance of concentrating labor, instead of scattering it,—when we shall come to estimate duly the superior profit of “a little farm, well tilled,” over a great farm, half cultivated and half manured, overrun with weeds, and scourged with exhausting crops,—we shall then fill our barns, and double the winter fodder for our cattle and sheep by the products of these waste meadows.

There is in England another mode of improvement, most important, instances of which I have seen, and one of which I regard as the most beautiful agricultural improvement which has ever come under my observation. I mean irrigation, or the making of what are called *water meadows*. I first saw them in Wiltshire, and was much struck with them, not having before understood, from reading or conversation, exactly what they were. But I afterwards had an opportunity of examining a most signal and successful example of this mode of improvement, on the estates of the Duke of Portland, in the North of England, on the borders of Sherwood forest. Indeed, it was part of the old forest known by that name. Sherwood forest, at least in its present state, is not like the pine forests of Maine, the heavy, hard wood forests of the unredeemed lands of New Hampshire and Vermont, or the still heavier timbered lands of the West. It embraces a large extent of country, with various soils, some of them thin and light, with beautiful and venerable oaks, of unknown age, much open ground between them and underneath their wide-spread branches, and this covered with heather, lichens, and fern. Sherwood forest, indeed, is not less interesting for the natural beauty which charms the eye, than for its venerable antiquity and historical associations. But in many parts the soil is far enough from being rich. Upon the borders of this forest are the water meadows of which I am speaking. A little river runs through the forest in this part, at the bottom of a valley with sides moderately sloping, and of considerable extent, between the river at the bottom and the common level of the surrounding country above. This little river, before reaching the place, runs through a small town, and gathers, doubtless, some refuse matter in its course. From this river, the water is taken at the upper end of the valley, conducted along the edge, or bank, in a canal or carrier, and from this carrier, at proper times, suffered to flow out very gently, spreading over and irrigating the whole surface, trickling and shining, when I saw it, (and it

was then November,) among the light-green of the new-springing grass, and collected below in another canal, from which it is again let out, to flow in like manner over land lying still farther down towards the bottom of the valley. Ten years ago, this land, for production, was worth little or nothing. I was told that some of it had been let, for no more than a shilling an acre. It has not been manured, and yet is now most extensively productive. It is not flooded; the water does not stand upon it; it flows gently over, and is applied several times in a year to each part, say in March, May, July, and October. In November, when I saw it, the farmers were taking off the third crop of hay cut this season, and that crop was certainly not less than two tons to the acre. This last crop is mostly used as green food for cattle. When I speak of the number of tons, I mean tons of dried hay. After this crop was off, sheep were to be put on it, to have lambs at Christmas, so as to come into market in March, a time of year when they command a high price. Upon taking off the sheep in March, the land would be watered. The process of watering lasts two or three days, or perhaps eight or ten days, according to circumstances, and is repeated after the taking off of each successive crop. Although this water has no doubt considerable sediment in it, yet the general fact shows how important water itself is to the growth of plants, and how far, even, it may supply the place of other sources of sustenance. Now we in Massachusetts have a more uneven surface, more valleys with sloping sides, by many times more streams, and such a climate that our farms suffer much oftener from drought than farms in England. May we not learn something useful, therefore, from such examples of irrigation in that country?

With respect to implements of husbandry, I am of opinion that the English, upon the whole, have no advantage over us. Their wagons and carts are no better; their ploughs, I thought, not better anywhere, and in some counties far inferior, because unnecessarily heavy. The subsoil plough, for which we have little use, is esteemed a useful invention, and the mole plough, which I have seen in operation, and the use of which is to make an underground drain, without disturbing the surface, is an ingenious contrivance, likely to be useful in clay soils, free from stone and gravel, but which can be little used in Massachusetts. In general, the English utensils of husbandry seemed to me unnecessarily cumbrous and heavy. The ploughs, especially, require a great strength of draught. But as drill husbandry is extensively practised in England, and very little with us, the various implements, or machines, for

drill-sowing in that country quite surpass all we have. I do not remember⁴⁵⁴ to have seen the horse-rake used in England, although I saw in operation implements for spreading hay from the swath to dry, or rather, perhaps, for turning it, drawn by horses.

There are other matters connected with English agriculture, upon which I might say a word or two. Crops are cultivated in England, of which we know little. The common English field bean, a small brown bean, growing not on a clinging vine, like some varieties of the taller bean, runs in what is called with us the bush form, like our common white bean, upon a slight, upright stalk, two or two and a half feet high, and producing from twenty to forty bushels to the acre. It is valuable as food for animals, especially for horses. This bean does not grow well in thin soils, or what is called a hot bottom. A strong, stiff, clayey land, well manured, suits it best. Vetches, or tares, a sort of pea, are very much cultivated in England, although almost unknown here, and are there either eaten green, by sheep, on the land, or cut and carried for green food.

The raising of sheep in England is an immense interest. England probably clips fifty millions of fleeces this year, lambs under a year old not being shorn. The average yield may be six or seven pounds to a fleece. There are two principal classes of sheep in England, the long-wooled and the short-wooled. Among these are many varieties, but this is the general division or classification. The Leicester and the South Down belong, respectively, to these several families. The common clip of the former may be estimated from seven to eight pounds; and of the last, from three to three and a half, or four. I mention these particulars only as estimates; and much more accurate information may doubtless be obtained from many writers. In New England, we are just beginning to estimate rightly the importance of raising sheep. England has seen it much earlier, and is pursuing it with far more zeal and perseverance. Our climate, as already observed, differs from that of England; but the great inquiry, applicable in equal force to both countries, is, How can we manage our land in order to produce the largest crops, while, at the same time, we keep up the condition of the land, and place it, if possible, in a course of gradual improvement? The success of farming must depend, in a considerable degree, upon the animals produced and supported on the farm. The farmer may calculate, in respect to animals,⁴⁵⁵ upon two grounds of profit, the natural growth of the animal, and the weight

obtained by fattening. The skilful farmer, therefore, expects, where he gains one pound in the fattening of his animal, to gain an equal amount in the growth. The early maturity of stock is consequently a point of much importance.

Oxen are rarely reared in England for the yoke. In Devonshire and Cornwall, ox teams are employed; but in travelling one thousand miles in England, I saw only one ox team, and in that case they were driven one before the other, and in harnesses similar to those of horses. Bullocks are raised for the market. It is highly desirable, therefore, both in respect to neat cattle and sheep, that their growth should be rapid, and their fattening properties favorable, that they may be early disposed of, and the expense of production proportionably lessened.

Is it practicable, on the soil and in the climate of Massachusetts, to pursue a succession of crops? I cannot question it; and I have entire confidence in the improvements to our husbandry, and the other great advantages, which would accrue from judicious rotation of products. The capacities of the soil of Massachusetts are undoubted. One hundred bushels of corn to an acre have been repeatedly produced, and other crops in like abundance. But this will not effect the proper ends of a judicious and profitable agriculture, unless we can so manage our husbandry that, by a judicious and proper succession of the crops, land will not only be restored after an exhausting crop, but gradually enriched by cultivation. It is of the highest importance that our farmers should increase their power of sustaining live stock, that they may obtain in that way the means of improving their farms.

The breed of cattle in England is greatly improved, and still improving. I have seen some of the best stocks, and many individual animals from others, and think them admirable. The short-horned cattle brought to this country are often very good specimens. I have seen the flocks from which some of them have been selected, and they are certainly among the best in England. But in every selection of stock, we are to regard our own climate, and our own circumstances. We raise oxen for work, as well as for beef; and I am of opinion that the Devonshire stock furnishes excellent animals for our use. We have suffered that old stock, brought hither by our ancestors, to run down, and be deteriorated. It has been kept up and greatly improved in England, and we may now usefully import from it. The Devonshire ox is a hardy animal, of size and make suited to the plough, and though certainly

not the largest for beef, yet generally very well fattened. I think quite well, also, of the Ayrshire cows. They are good milkers, and, being a hardy race, are on that account well suited to a cold climate and to the coarse and sometimes scanty pasturage of New England. After all, I think there can be no doubt that the improved breed of short horns are the finest cattle in the world, and should be preferred wherever plenty of good fodder and some mildness of climate invite them. They are well fitted to the Western States, where there is an overflowing abundance, both of winter and summer fodder, and where, as in England, bullocks are raised for beef only. I have no doubt, also, that they might be advantageously raised in the rich valleys of the Connecticut, and perhaps in some other favored parts of the State. But for myself, as a farmer on the thin lands of Plymouth County, and on the bleak shores of the sea, I do not feel that I could give to animals of this breed that entertainment which their merit deserves.

As to sheep, the Leicesters are like the short-horned cattle. They must be kept well; they should always be fat; and, pressed by good keeping to early maturity, they are found very profitable. "Feed well," was the maxim of the great Roman farmer, Cato; and that short sentence comprises much of all that belongs to the profitable economy of live stock. The South Downs are a good breed, both for wool and mutton. They crop the grass that grows on the thin soils, over beds of chalk, in Wiltshire, Hampshire, and Dorsetshire. They ought not to scorn the pastures of New England.

When we turn our thoughts to the condition of England, we must perceive of what immense importance is every, even the smallest, degree of improvement in its agricultural productions. Suppose that, by some new discovery, or some improved mode of culture, only one per cent. could be added to the annual results of English cultivation; this, of itself, would materially affect the comfortable subsistence of millions of human beings. It is often said that England is a garden. This is a strong metaphor. There is poor land and some poor cultivation in England. All people are not equally industrious, careful, and skillful. But, on the whole, England is a prodigy of agricultural wealth. Flanders may possibly surpass it. I have not seen Flanders; but England quite surpasses, in this respect, whatever I have seen. In associations for the improvement of agriculture we have been earlier than England. But such associations now exist there. I had the pleasure of attending the first meeting of the Royal Agricultural Society of England,

and I found it a very pleasant and interesting occasion. Persons of the highest distinction for rank, talents, and wealth were present, all zealously engaged in efforts for the promotion of the agricultural interest. No man in England is so high as to be independent of the success of this great interest; no man so low as not to be affected by its prosperity or its decline. The same is true, eminently and emphatically true, with us. Agriculture feeds us; to a great degree it clothes us; without it we could not have manufactures, and we should not have commerce. These all stand together, but they stand together like pillars in a cluster, the largest in the centre, and that largest is agriculture. Let us remember, too, that we live in a country of small farms and freehold tenements; a country in which men cultivate with their own hands their own fee-simple acres, drawing not only their subsistence, but also their spirit of independence and manly freedom, from the ground they plough. They are at once its owners, its cultivators, and its defenders. And, whatever else may be undervalued or overlooked, let us never forget that the cultivation of the earth is the most important labor of man. Man may be civilized, in some degree, without great progress in manufactures and with little commerce with his distant neighbors. But without the cultivation of the earth, he is, in all countries, a savage. Until he gives up the chase, and fixes himself in some place and seeks a living from the earth, he is a roaming barbarian. When tillage begins, other arts follow. The farmers, therefore, are the founders of human civilization.

FOOTNOTES

[118]

Remarks on the Agriculture of England, made at a Meeting of the Legislature of Massachusetts, and others interested in Agriculture, held at the State-House in Boston, on the Evening of the 13th of January, 1840.

END OF VOLUME FIRST.

Transcriber Notes

Typographical inconsistencies have been changed and are highlighted.

The following significant changes were made to the original text:

[Page 3](#): No footnote for marker (INTRODUCTORY NOTE.*)

[Footnote 99](#): Footnote marker missing

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